

HISTORY
OF
MERCHANT SHIPPING
AND
ANCIENT COMMERCE.

BY
W. S. LINDSAY.

IN FOUR VOLUMES.

VOL. II.

With numerous Illustrations.

L O N D O N :
SAMPSON LOW, MARSTON, LOW, AND SEARLE.
CROWN BUILDINGS, 188 FLEET STREET.

1874.

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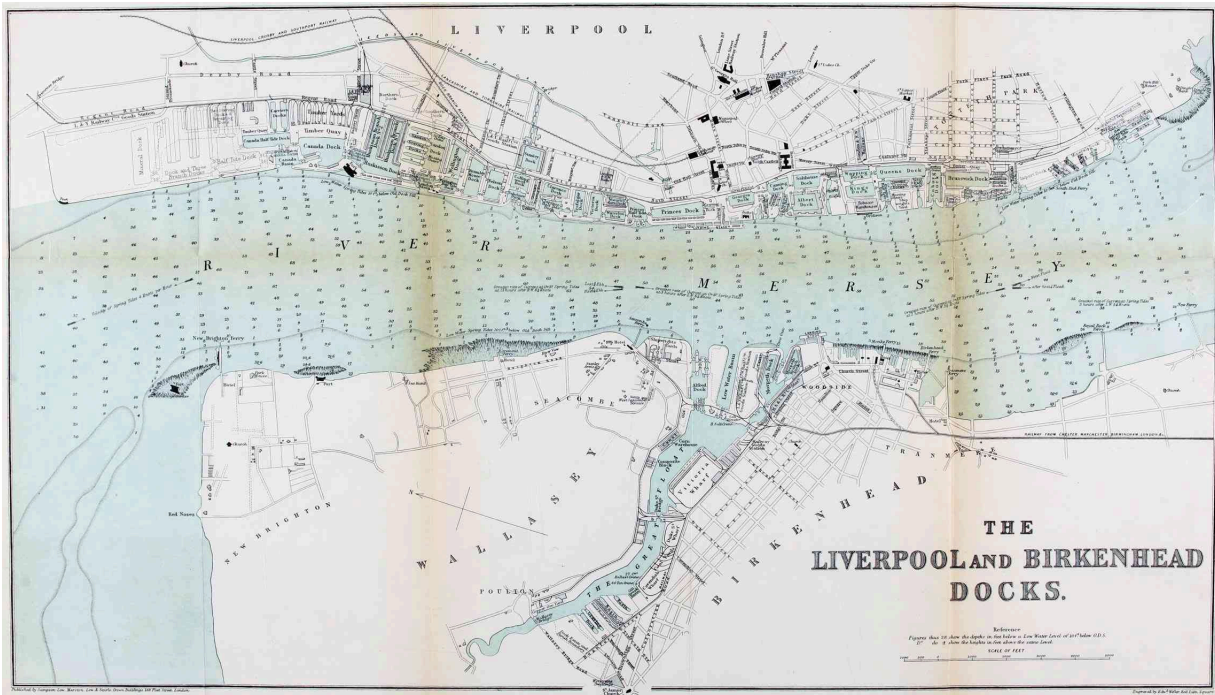
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THE LIVERPOOL AND BIRKENHEAD DOCKS.

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MERCHANT SHIPPING.

CHAPTER I.

Dom John of Portugal prosecutes his researches for India—Expedition under Vasco de Gama, 1497—Description of the ships—The expedition sails 9th July, 1497—Doubles the Cape of Good Hope, 25th Nov.—Sights land at Natal, 25th Dec., 1498—Meets the first native vessel and obtains information about India—Arrives at Mozambique, 10th March—Departs for Quiloa, 8th April—Arrives at Melinde, 29th April—Sails for Calicut, 6th August—Reaches the shores of India, 26th August—Arrives at Calicut—Vasco de Gama disembarks and concludes a treaty with the king—His treachery—Leaves Calicut for Cananore—Enters into friendly relations and leaves Cananore, 20th Nov.—Reaches Melinde, 8th Jan., 1499—Obtains pilots and sails for Europe, 20th Jan.—Doubles the Cape of Good Hope—Death of Paul de Gama—The expedition reaches the Tagus, 18th Sept., 1499—Great rejoicings at Lisbon—Arrangements made for further expeditions—Departure of the second expedition, 25th March, 1502—Reaches Mozambique and Quiloa, where De Gama makes known his power, and threatens to capture the city—His unjust demands—Arrives at Melinde—Departs, 18th Aug., 1502—Encounter with the Moors—Levies tribute, and sails for Cananore—Disgraceful destruction of a Calicut ship, and massacre of her crew—De Gama's arrangements with the king of Cananore—Departure for Calicut—Bombards the city—Horrible cruelties—Arrives at Cochym 7th Nov., where he loads, and at Coulam—Opens a factory at Coulam—Calicut declares war against Dom Gama—Success of the Portuguese—Desecration of the Indian vessels, and further atrocities—Completes his factory and fortifications at Cananore, and sails for Lisbon, where he arrives, 1st Sept., 1503—De Gama arrives in India for the third time, 11th Sept., 1524—His death, 24th Dec., 1524—His character as compared with that of Columbus—Discovery of the Pacific by Vasco Nuñez de Bilboa—Voyage of Magellan.

Dom John, of Portugal, prosecutes his researches for India.

While the Spaniards under Columbus were prosecuting their researches for India among the islands and along the coasts of a new-found world, Dom John, of Portugal, was vigorously following up the voyages of discovery which Prince Henry had commenced in the early part of the fifteenth century. “He had heard,” remarks Gaspar Correa,^[1] “from a Caffre or Negro king of Benin, who in 1484 took up his quarters in Lisbon, many marvellous things about India, and its affairs.” But though this sable monarch spoke of “Prester John,” he does not appear to have had any idea of the position of the golden land, over which he was the traditional ruler. Dom John, however, resolved to ascertain this fact, and despatched “secretly two young men of his equerries, to learn of many lands, and wander in many parts, because they knew many languages.”

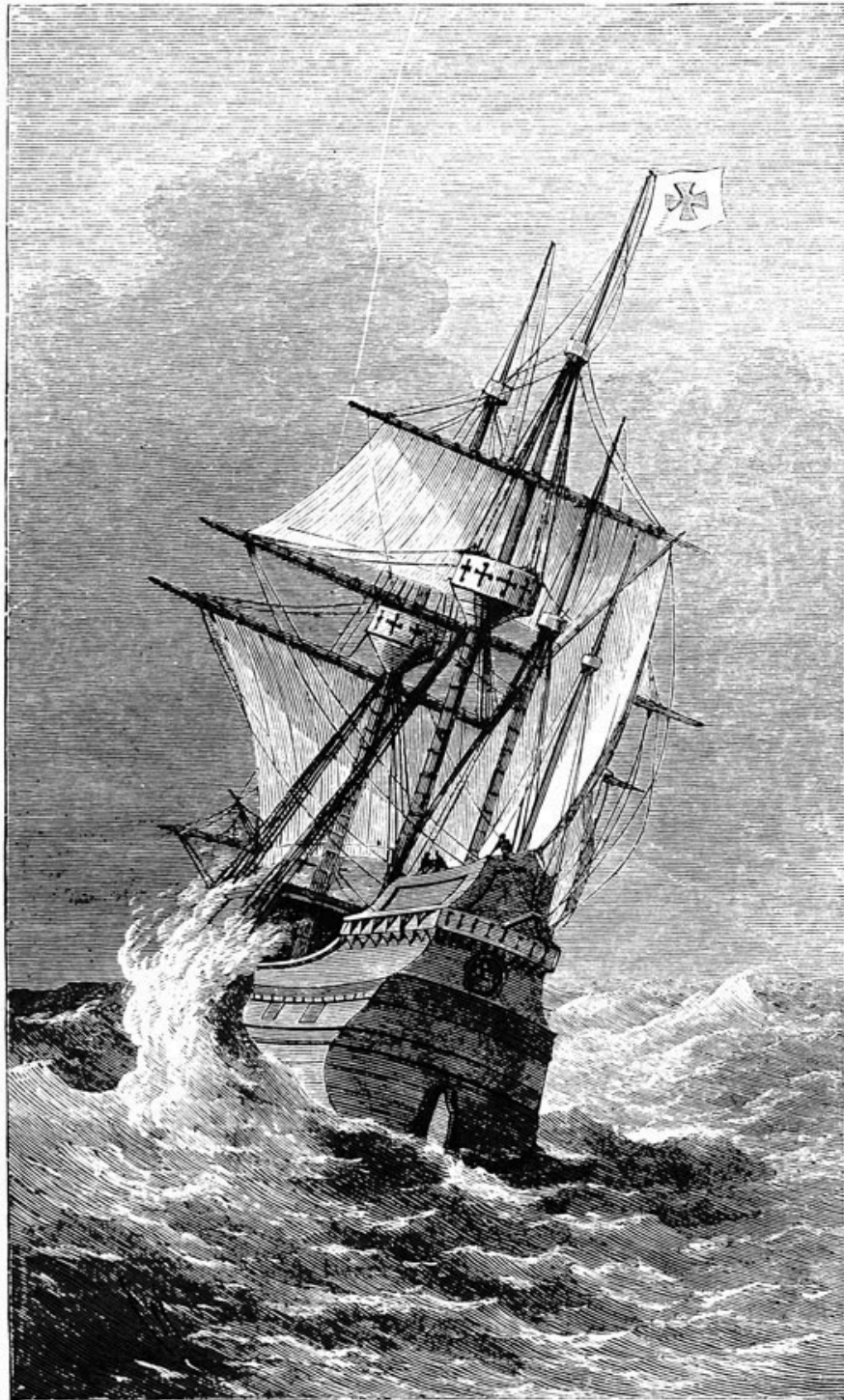
“The king,” continues Correa, “promised them a large recompense for their labour, and for such great services as they would be rendering him; and for

as long as they should continue in this service, he would take good care for the support of their wives and children.” He directed them to separate and to go by different roads, giving to each of them letters of acknowledgment of the recompense which he promised them if they returned alive, or to their sons and widows if they should die in this service. He likewise ordered a plate of brass like a medal to be given to each of them, bearing an inscription engraved in all languages, with the name of ‘*The King Dom Joam of Portugal, brother of the Christian King,*’ which they might show to Prester John, and to whomsoever they thought fit.^[2]

Expedition under
Vasco de Gama,
1497.

Description of the
ships.

The celebrated expedition of Vasco de Gama which followed this inquiry is generally described as consisting of three vessels, one of 120 tons, another of 100 tons, and the third somewhat less.^[3] Correa says they were all very similar in size and equipment, in order that each ship might avail itself of any part of the tackle and fittings; and he describes their outfit and cargoes as follows: “The king ordered the ships to be supplied with double tackle and sets of sails, and artillery and munitions in great abundance; above all, provisions, with which the ships were to be filled, with many preserves and perfumed waters, and in each ship all the articles of an apothecary’s shop for the sick; a master, and a priest for confession. The king also ordered all sorts of merchandise of what was in the kingdom and from outside of it, and much gold and silver, coined in the money of all Christendom and of the Moors. And cloths of gold, silk, and wool, of all kinds and colours, and many jewels of gold, necklaces, chains, and bracelets, and ewers of silver and silver-gilt, yataghans, swords, daggers, smooth and engraved, and adorned with gold and silver workmanship. Spears and shields, all adorned so as to be fit for presentation to the kings and rulers of the countries where they might put into port; and a little of each kind of spice. The king likewise commanded slaves to be bought who knew all the languages which might be fallen in with, and all the supplies which seemed to be requisite were provided in great abundance and in double quantities.”



SAN GABRIEL.

Such was the equipment of De Gama's ships for this perilous and unknown voyage; and, though a man of indefatigable energy, he had to accomplish a task of an extraordinary character; no less than the discovery of a land of

which nothing was known, but the vague idea that it lay beyond distant seas “where there would not be navigation by latitude nor charts, only the needle to know the points of the compass, and the sounding plummets for running down the coast.”^[4]

On the Sunday fixed for the purpose of offering prayers before the departure of this memorable expedition, the king, with his nobles and most of the leading families of Lisbon, assembled in that beautiful cathedral which still adorns the northern bank of the Tagus, to hear mass from the Bishop Calçadilha, who with deep solemnity offered up prayers, beseeching God “that the voyage might be for His holy service, for the exaltation of His holy faith, and the good and honour of the kingdom of Portugal.” At the conclusion of mass, the king stood before the curtain where Vasco de Gama and his brother Paulo de Gama placed themselves, with the captains of the expeditions, on their knees, and devoutly prayed that they might have strength of mind and body to carry out the wishes of the king, to increase the power and greatness of his dominion, and to spread the Christian religion into other and far distant lands.

The expedition sails
9th July 1497.

Doubles the Cape
of Good Hope, 25th
Nov.

Sights land at Natal
25th Dec.

With these professed objects and amid splendid demonstrations, in which the whole population of Lisbon took part, Vasco de Gama set sail on the 9th of July 1497. Favoured by a northerly wind and fine weather, the expedition reached St. Iago, Cape Verde Islands, in thirteen days from the time of its departure. Having replenished his stock of provisions, De Gama shaped his course to the south, and on the 4th of November anchored in the bay of St. Helena, on the west coast of Africa. Though aided by the skill and knowledge of Pedro d’Alemquer, Dias’s pilot, it was not until the 22nd November that he succeeded in doubling the now famous Cape of Good Hope, entering on the 25th the bay to the eastward of it, which Dias had named San Bras. Here he encountered one of those storms so frequent on the Agulhas banks, which Correa graphically describes.^[5] The ships were in imminent danger, the crews mutinied and resolved to put back; and the fine weather, as had been anticipated, did not restore either contentment or resignation. At length on Sunday, the 17th of December, they passed the Rio do Iffante, the limit of the discoveries of Dias, and on the 25th of that

month sighted land. In commemoration of the birthday of Christ, De Gama gave to this spot the name of Costa de Natal. Continuing his course along the coast to the north-east, he arrived on the 22nd of January, 1498, at a river which he named the Rio de Bons Sinaes^[6] (now called the Quillimane), where he was detained for a month, owing to an outbreak of scurvy among the crew. His ships, too, had suffered so severely, that they had to be careened and thoroughly caulked, and many of the ropes and shrouds replaced by others, to provide which the transport, as unworthy of repair, was broken up, and the best of her spars and stores appropriated to the equipment of the other vessels.

Meets the first native vessel, and obtains information about India.

When the ships were repaired “they sailed with much satisfaction along the coast, keeping a good look-out by day and night,” and at length fell in with a small native vessel, in which there was an intelligent Moor. From this man, whom the captain-major luxuriously entertained, a great deal of information was obtained as to the character and habits of the people on the coast; and, when spices were presented to him, he intimated that he knew where they could be obtained abundantly. Ultimately the Moor, who appears to have been a trader or broker in the produce of the East, agreed to conduct De Gama to Cambay of which he was a native, asserting that it was a rich country, and “the greatest kingdom in the world.”

Arrives at Mozambique, 10th March.

Having arrived at the island of Mozambique, which was then in the territory of the king of Quiloa, Vasco de Gama sent the Moor on shore with a scarlet cap, a string of small coral beads, and other presents, to conciliate the natives, and induce them to visit his ships. The sheikh of the district was naturally suspicious at first of the strangers, whom he took for Turks, the only white men known to him who had ships unlike the trading vessels of India. When, however, he was satisfied of their friendly intentions, he paid the Portuguese ships a visit in great state; but, on being shown samples of the merchandise brought to exchange for the produce of the East, though making many professions of assistance and friendship, he seems to have treacherously designed obtaining unlawful possession of them. In this scheme, however, he was frustrated by the Moor, who, faithful to his new friends, revealed the plot to De Gama, who was thus enabled to proceed in safety on his voyage.

Departs for Quiloa,
8th April.

From Mozambique the expedition proceeded to Quiloa, described as an important city, trading in “much merchandise,” which came from abroad in a great many ships from all parts, especially from Mecca. Here were “many kinds of people,” including Armenians, who “called themselves Christians” like the Portuguese; here also pilots could be obtained for Cambay. But the sheikh of Mozambique, frustrated in his treacherous designs, had anticipated the arrival of the expedition, by sending a swift boat to inform his chief, the king of Quiloa, that the strangers “were Christians and robbers who came to plunder and spy the countries, under the device that they were merchants, and that they made presents and behaved themselves very humbly in order to deceive, and afterwards come with a fleet and men to take possession of countries; and, therefore, he knowing that, had wished to capture them, and they had fled from the port.” This king appears to have been as treacherous as his sheikh; but though after sending many presents, he endeavoured, by means of false pilots, to run De Gama’s ships on the shoals at the entrance of his port, his plan signally failed.

Arrives at Melinde,
29th April.

Soon after leaving Quiloa, the expedition fell in with a native vessel, which conducted them in safety to Melinde, described as a city on the open coast, containing many noble buildings, surrounded by walls, and of a very imposing appearance from the sea. Here they anchored in front of the city, “close to many ships which were in the port, all dressed out with flags,” in honour of the Portuguese, whose reputation for wealth and power had spread along the coast to such an extent as to induce the king’s soothsayer to recommend that they should “be treated with confidence and respect, and not as Christian robbers.” Large supplies of fresh provisions were sent on board of the vessels; and the king having spoken with his “magistrates and counsellors,” resolved that they should be received in a peaceable and amicable manner, because “there were no such evil people in the world as to do evil to any who did good to them.”

The king having arranged to visit the Portuguese ships, Vasco de Gama received him with royal honours, presenting him with many articles of European manufacture, which were highly prized. After frequent interchanges of civilities, the king informed De Gama that Cambay, of which he was in search, did not contain the produce he desired, for it was

not of the growth of that country, but was conveyed thither “from abroad, and cost much there.” “I will give you pilots,” he added, “to take you to the city of Calicut, which is in the country where the pepper and ginger grows, and thither come from other parts all the other drugs, and whatever merchandise there is in these parts, of which you can buy that which you please, enough to fill the ships, or a hundred ships if you had so many.”^[7]

Sails for Calicut,
6th Aug.

Towards the close of May, 1498, the expedition was again ready to sail, but finding they had little chance of successful progress, De Gama resolved to wait till the change of the monsoons. The interval was spent in a more thorough repair of their ships. The pilots whom the king had furnished appear to have been well skilled in their profession, and were not surprised when Vasco de Gama showed them the large wooden astrolabe he had brought with him, and the quadrants of metal with which he measured at noon the altitude of the sun. They informed him that some pilots of the Red Sea used brass instruments of a triangular shape and quadrants for a similar purpose, but more especially for ascertaining the altitude of a particular star, better known than any other, in the course of their navigation. Their own mariners, however, they explained, and those of India were generally guided by various stars both north and south, and also by other notable stars which traversed the middle of the heavens from east to west, adding that they did not take their distance with instruments such as were in use amongst the Red Sea pilots, but by means of three tables, or the cross-staff, sometimes described as Jacob’s staff. In those days the seamen of the eastern nations were, indeed, as far advanced in the art of navigation as either the Spaniards or the Portuguese, having gained their knowledge from the Arabian mariners, who, during the Middle Ages, carried on, as we have seen, an extensive trade between the Italian republics and the whole of the Malabar coast.

Reaches the shores
of India, 26th
August.

After a passage of twenty (or twenty-three) days, Vasco de Gama first sighted the high land of India, at a distance of about eight leagues from the coast of Cananore. The news of the strange arrival spread with great rapidity, and the soothsayers and diviners were consulted, the natives having a legend, “that the whole of India would be taken and ruled over by a distant king, who had white people, who would do great harm to those

who were not their friends;”^[8]—a prophecy which has been remarkably fulfilled, not merely by the Portuguese, but more especially as regards the government of India by the English people. The soothsayers, however, added that the time had not yet arrived for the realisation of the prophecy.

Arrives at Calicut.

Vasco De Gama
disembarks,

On the arrival of the expedition at Calicut,^[9] multitudes of people flocked to the beach, and the Portuguese were at first well received; for the king, having ascertained the real wealth of the strangers, and that Vasco de Gama had gold, and silver, and rich merchandise on board, to exchange for the pepper, spices, and other produce of the East, immediately sent him presents of “many figs, fowls, and cocoa-nuts, fresh and dry,” and professed a desire to enter into relations with the “great Christian king,” whom he represented. Calicut, the capital of the Malabar district, was then one of the chief mercantile cities of India, having for centuries carried on an extensive trade with Arabia and the cities of the West, in native and Arabian vessels. Hence among its merchants were many Moors,^[10] who, holding in their hands the most profitable branches of the trade, naturally “perceived the great inconvenience and certain destruction which would fall upon them and upon their trade if the Portuguese should establish trade in Calicut.”^[11] These men therefore took counsel together, and at length succeeded in persuading the king’s chief factor, and his minister of justice, that the strangers had been really sent to spy out the nature of the country, so that they might afterwards come and plunder it at their leisure. But, as Correa remarks, “it is notorious that officials take more pleasure in bribes than in the appointments of their offices,” so the factor and the minister did not hesitate to receive bribes, both from the Moors and from the strangers, and recommended the king, whose interests were opposed to his fears, to open up a commercial intercourse with Vasco de Gama. Accompanied by twelve men, of “good appearance,” composing his retinue, and taking with him numerous presents, De Gama at last presented himself on shore. The magnificent display of scarlet cloth, the crimson velvet, the yellow satin, the hand-basins and ewers chased and gilt, besides a splendid gilt mirror, fifty sheaths of knives of Flanders, with ivory handles and glittering blades, and many other objects of curiosity and novelty, banished, at least for the time, any doubts in the mind of the Malabar monarch with regard to the honest intentions of the strangers.

and concludes a treaty with the king.

Having concluded a treaty, whereby it was stipulated that the Portuguese should have security to go on shore and sell and buy as they pleased, and that they should be placed in all respects on the same footing as other foreign merchants, the king added his desire that the stranger should be treated “with such good friendship as if he was own brother to the king of Portugal.”^[12]

His treachery.

De Gama was fully satisfied with the arrangement, and had he been dealing with the king only, it seems probable that everything would have gone on well; the more so as the Malabar monarch was already realising large profits from the new trade. But the merchant Moors were less easily satisfied. They knew from the covetous character of the king that so long as the Portuguese were willing to buy, he would continue to supply whatever they required, and that thus the market would be stripped of the articles best adapted for their annual shipments to the Red Sea. They felt that “whenever the Christians should come thither, he would prefer selling his goods to them to supplying cargoes for the Moors;” and that, in the end, they would be “entirely ruined;” a plea, indeed, repeatedly used in many other countries whenever competition first made its appearance. The Moors further argued that the Portuguese could not be merchants, but “evil men of war,” for they paid whatever price was demanded for the produce they required, and made no difference between articles of inferior and superior qualities. But the king refused to listen to their complaints until he had obtained all he desired from the strangers; then, giving heed to the reports of the Moors, and to the entreaties of his factor and minister, who had been doubly bribed, he turned round upon Gama, and by stratagem endeavoured to capture him and his ships. Finding it unsafe to remain any longer in port, the expedition, although only half laden, prepared to take its departure from Calicut, after a sojourn of about seventy days, the captain-major remarking that he was “not going to return to the port, but that he would go back to his country to relate to his king all that had happened to him; that he should also tell him the truth about the treachery of his own people with the Moors; and that, if at any time he should return to Calicut, he would revenge himself upon the Moors.”^[13]

Terrified by this threat of revenge, the king repented, and believing that the expedition would proceed to Cananore, wrote a letter to the king of that

Leaves Calicut for
Cananore.

place giving him an account of all that had taken place and of his ill-treatment of the Portuguese, and, at the same time, entreating him to induce De Gama to return to his country, that he might “see the punishment he would inflict on those who were in fault, and complete the cargo of his ships.” The Portuguese, however, had seen enough of the fickle ruler of Calicut, and declined to accede to his urgent entreaties to return. In the king of Cananore they found a monarch equally disposed to trade, and one who, at the same time, having consulted his soothsayers, had decided that it would be alike profitable and politic to enter into commercial relations with strangers who could, if they pleased, destroy their enemies at sea or ruin their trade on land. How they were received and how they conducted their trade with this monarch is told at much length by Correa, in his quaint and graphic relation of the incidents of this remarkable voyage.^[14]

Enters into friendly
relations,

Suffice it to state that, after many fine speeches on both sides, the king swore eternal friendship with the Christian king of Portugal, and as a trustworthy proof of their oaths, presented to De Gama a sword, with a hilt enamelled with gold, and a velvet scabbard, the point of which was sheathed with that precious metal.

Abundant presents followed these solemn pledges—pledges made only to be broken; while gifts of golden collars, mounted with jewels and pearls, and chains of gold, and rings set with valuable gems, were offered to and accepted by the Portuguese as tokens of a friendship which was to last “for ever,” but which in a few years afterwards they rudely destroyed. “A factory,” said the king, “you may establish in this country; goods your ships shall always have of the best quality, and at the prices they are worth.” But as the sequel shows, in the case alike of the Portuguese, the Dutch, and the English, around the factory there arose fortifications, and from these there went forth, not merely traders to collect the produce of the country, but conquerors to overthrow ancient dynasties, and claim as their own the land to which a few years before they had been utter strangers.^[15]

and leaves
Cananore, 20th
Nov.

Having fully completed their cargoes, the Portuguese ships took their departure from Cananore on the 20th of November, 1498, but finding that the monsoons were not then sufficiently set in to be favourable for the

Reaches Melinde,
8th Jan., 1499.

homeward voyage, they anchored at “Angediva,”^[16] an island on the coast of Malabar, where there were good water springs, and where they “enjoyed themselves much.” After remaining there ten days, they departed on their voyage to Melinde. They were, however, delayed for a time by corsairs, fitted out at Goa, in the hope that the Portuguese ships might be captured by stratagem, a hope which was rudely demolished; the fleet of “fustas” were entirely destroyed, and Vasco de Gama arrived, homeward bound, without further molestation or misfortune, safely at the African port (Melinde), on the 8th January, 1499.

Having been received with great rejoicings, De Gama, in reply to the affectionate welcome of the king, made a glowing speech, in which by the way he remarked that “the king, our sovereign, will send many ships and men to seek India, *which will be all of it his*, he will confer great benefits on his friends, and you will be the one most esteemed above them all, like a brother of his own; and when you see his power, then your heart will feel entire satisfaction.”

Obtains pilots, and
sails for Europe,
20th Jan.

A letter, written “on a leaf of gold,” was then prepared for the king of Portugal, in which all that had taken place at Melinde was mentioned, with many requests that the Christian sovereign would send his fleets and men to his ports. Rich presents were at the same time placed in the charge of De Gama to be delivered on the part of his majesty of Melinde to the king and queen of Portugal; while presents of a similar kind, and scarcely less valuable, were given to De Gama and his officers. In return for these handsome gifts, De Gama, “desiring that the king of Portugal should excel all others in greatness,” ordered to be put into the boats ten chests of different sorts of uncut coral, a considerable quantity of amber, vermilion, and quicksilver; numerous pieces of brocade, velvet, satin, and coloured damasks, with many other things which he considered it was “not worth while to take back to Portugal, as of little value there.” The king, besides furnishing him with pilots, presented to them various things that might be useful or pleasant on the voyage; such as jars of ginger, preserved with sugar, for the captain-major, and for Paul de Gama, “which they were to eat at sea when they were cold,” and two hundred cruzados in gold, “to be distributed among

their wives.” Thus enriched and replenished, the expedition set sail for Europe on the day of St. Sebastian, the 20th of January, 1499.^[17]

Doubles the Cape
of Good Hope.

Having shaped a course along the coast, the captains gave orders to note with care the various headlands, and every conspicuous landmark, especially the outlines and marks presented by the land when seen astern of the vessels, and also to note down the names of the towns and the rivers, and their position from the more conspicuous headlands, for the guidance of future voyagers. With a fair wind, and under the direction of the native pilots, who were familiar with the navigation, the expedition passed swiftly through the Mozambique channel, and without calling at any place, rounded, in fine weather, the dreaded Cape of Good Hope, and saw “the turn which the coast takes towards Portugal with shouts of joy, and prayers and praises for the benefits that had been granted to them.”

Death of Paul de
Gama.

“When it was night,” continues Correa in his narrative, “the Moorish pilots took observations with the stars, so that they made a straight course. When they were on the line they met with showers and calms, so that our men knew that they were in the region of Guinea. Here they encountered contrary winds, which came from the Straits of Gibraltar, so that they took a tack out to sea on a bowline, going as close to the wind as possible. They sailed thus, with much labour at the pumps, for the ships made much water with the strain of going on a bowline, and in this part of the sea they found some troublesome weed, of which there was much that covered the sea, which had a leaf like *sargarço*,^[18] which name they gave to it, and so named it for ever. Our pilots got sight of the north star at the altitude which they used to see it in Portugal, by which they knew they were near Portugal. They then ran due north until they sighted the islands, at which their joy was unbounded, and they reached them and ran along them to Terceira, at which they anchored in the port of Angra, at the end of August. There the ships could hardly keep afloat by means of the pumps, and they were so old that it was a wonder how they kept above water, and many of the crews were dead, and others sick, who died on reaching land. There also Paul de Gama died, for he came ailing ever since he passed the Cape; and off Guinea he took to his bed, and never again rose from it.”^[19]

The expedition
reaches the Tagus
18th Sept, 1499.

The death of Paul de Gama was a source of the greatest grief to his brother Vasco. His body was buried in the monastery of St. Francis with much honour, and amidst the lamentations of the crews, and the chief inhabitants of the island, who followed it to the grave. The crews having, chiefly by death, been reduced to fifty-five, and many of the men being in a weak state, the government officers of Terceira sent an extra supply of seamen on board, to navigate the ships to Lisbon, for which port the expedition sailed as soon as the vessels had received the necessary refit, reaching the Tagus on the 18th of September, 1499, after an absence of two years and eight months, on one of the most remarkable and interesting voyages on record.

But the news of the arrival of the fleet at Terceira had preceded its actual arrival at Lisbon, more than one adventurer having started thence while De Gama was detained, so as to secure the reward for bringing the first good tidings to the king, then at Cintra.

It spread, indeed, far and wide. Another road had been discovered to a country which, famed for its riches, had been the envy of the Western nations from the earliest historic period, as well as the dream of the youth of every age and land since the days of Solomon and Semiramis. Well might Lisbon be in a state of the greatest ecstasy when the tidings of the great discovery reached its people. They were indeed tidings of the highest importance, not merely to them, but to the people of every maritime and commercial city of Europe.

Great rejoicings at
Lisbon.

The information reaching the king at midnight, he resolved to start with his retinue early in the morning for Lisbon, to receive further intelligence, and to welcome the ships on their entry into the Tagus. There the glad tidings were confirmed. The king waited at the India House until the ships arrived at the bar, where there were boats with pilots, who brought them into port, decorated with numerous flags, and firing a salute as they anchored. When Vasco de Gama landed on the beach before the city, he was received by "all the nobles of the court, and by the Count of Borba and the Bishop of Calçadilha; and he went between these two before the king, who rose up from his chair, and did him great honour," conferring upon him the title of "Dom," with various grants and privileges, and creating him high admiral, an office which the Marquis of Niza, his lineal descendant, holds to this

day. “Then the king mounted his horse, and went to the palace above the Alcasoba, where his apartments then were, and took Vasco de Gama with him, who, on entering where the queen was, kissed her hand, and she did him great honour.”^[20]

While rewards were freely bestowed upon all persons who had taken part in the expedition, costly offerings were made to the monastery of Belem, with gifts to numerous churches, as also to various holy houses and convents of nuns, that “all might give thanks and praises to the Lord for the great favour which He had shown to Portugal.” The king, with the queen, went in splendid state and in solemn procession from the cathedral to St. Domingo, where Calçadilha preached on the grandeur of India, and its “miraculous discovery.”

Arrangements made
for further
expeditions.

Soon afterwards the king arranged to send another fleet, consisting of large and strong ships of his own, with great capacity for cargo, which, if navigated in safety, “would bring him untold riches.” All these matters his majesty talked over very fully with Vasco de Gama, who was to proceed as captain-major, if he pleased, in any fleet fitted out from Portugal to India, with power to supersede all other persons, and to appoint or discharge at his will the captains or officers of any of the vessels belonging to every expedition for India that might be equipped from the Tagus.

Indeed, the first expedition had yielded such immense profits, that arrangements for various others were readily entered into without delay. Correa states that a quintal of pepper realised eighty cruzados, cinnamon one hundred and eighty, cloves two hundred, nutmegs one hundred, ginger one hundred and twenty, while mace sold for three hundred cruzados the quintal.^[21] So great were the profits, that when the accounts of the cost of the expedition were made up, by order of the king, and added to the prices paid for the merchandise when shipped, it was found that “the return was fully sixty-fold.”

Departure of the
second expedition,
25th March, 1502.

The second expedition, however, under Vasco de Gama’s direct control, was destined for other and less laudable objects than commerce.^[22] Dom Manuel had resolved to punish “the treachery of the king of Calicut.” Ten large ships were therefore prepared, fitted with heavy guns and

munitions of war of every kind then known, besides abundance of stores, and with these, and five lateen-rigged caravels, Dom Vasco set sail for India on Lady-day, the 25th March, 1502, to wreak his sovereign's "vengeance" on those contumacious kings of the East who had not treated his subjects with the respect which he felt was due to the representatives of "a great Christian monarch." In this instance, as has been the case before and since in numerous other instances, solemn prayers were offered that the depredations about to be committed in the name of God and under the banner of a Christian king might be attended with success. "I feel in my heart," exclaimed De Gama, addressing his sovereign, "a great desire and inclination to go and make havoc of him (the king of Calicut), and I trust in the Lord that He will assist me, so that I may take vengeance of him, and that your highness may be much pleased." But though "vengeance is *Mine*, saith the Lord," has been the text of every Christian church from the earliest ages, a solemn mass and numerous prayers were offered in the cathedral, at which the king was present and all his court, to invoke Heaven to strengthen the arm of Dom Gama in his openly-avowed mission of vengeance.

In the fifteen sail of vessels composing the second expedition, there were "eight hundred men at arms, honourable men, and many gentlemen of birth, with the captain-major and others, his relations and friends, with the captains."^[23] Each soldier had three cruzados a month, and one for his maintenance on shore, besides the privilege of shipping on his own account two quintals of pepper, at a nominal rate of freight, and subject only to a small tax, "paid towards the completion of the monastery at Belem." Considerably greater space was allowed in the ship to the masters, pilots, bombardiers, and other officers, a practice which prevailed to our own time in the ships of the English East India Company.

"When the fleet was quite ready to set sail from the river off Lisbon, after cruising about with a great show of banners, and standards, and crosses of Christ on all the sails, and saluting with much artillery, they went to Belem, where the crews were mustered, each captain with his crew, all dressed in livery and galas, and the king was present, and showed great favour and honour to all."^[24] Here the fleet lay for three days, and when the wind became fair, the king went in his barge to each ship, dismissing them with

good wishes, the whole of the squadron saluting him with trumpets as they took their departure.

Reaches
Mozambique and
Quiloa, where De
Gama makes
known his power,

With the exception of some sickness, when crossing the equator in the vicinity of Guinea, of which one of the captains and a few of the men died, the expedition had a favourable passage round the Cape of Good Hope, but immediately afterwards encountered a heavy gale, which lasted for six days. During this storm most of the vessels were dispersed and one of them lost, though her crew and cargo were saved. When the weather moderated, each ship, in accordance with previous instructions, steered for Mozambique as the appointed rendezvous, where they again assembled under the captain-major, some of them, however, having joined company before reaching that place. Here the sheikh, who does not appear to have been the same person who held that office on Gama's first expedition, sent to the ships presents of cows, sheep, goats, and fowls, for which, however, the captain-major paid, and ordered a piece of scarlet cloth to be given to him. From Mozambique the expedition proceeded to Quiloa, but remembering the treachery of the king of that place, De Gama, after he had moved his fleet within range of the town, sent the following message to his sable majesty: "Go," he said to an ambassador whom the king had sent on board, "go and say to the king that this fleet is of the king of Portugal, lord of the sea and of the land, and I am come here to establish with him good peace and friendship and trade, and for this purpose let him come to me to arrange all this, because it cannot be arranged by messenger. And in the name of the king of Portugal, I give him a safe conduct to come and return, without receiving any harm, even though we should not come to an agreement; and if he should not come, I will at once send people on shore, who will go to his house to take and bring him."^[25]

and threatens to
capture the city.

The king, on receipt of this apparently friendly, but very peremptory message, was with his chiefs amazed and greatly alarmed. Having held a council, he despatched a reply to the captain-major, that he would send him a signed paper to the effect that he and his crew might land freely, if no injury were done to him or the city. De Gama, however, resolved to put pressure upon the king; who, over persuaded by a crafty and rich Moor, ventured on board the ship of the

Portuguese admiral, with large, and, so far as we can judge, true professions of friendship and amity.

But the captain-major required something more than this. “If,” said he, “the king of Quiloa became a friend of the king, his sovereign, he must also do as did the other kings and sovereigns who newly became his friends, which was that each year he should pay a certain sum of money or a rich jewel, which they did as a sign that by this yearly payment it was known that they were in good friendship.”^[26] In a word, that he should subject himself and his dominion to the government of Portugal. The African king seems to have clearly understood and felt the force of this plausible mode of abdicating his sovereign rights, for he replied, “That to have to pay each year money or a jewel was not a mode of good friendship, because it was tributary subjection, and was like being a captive; and, therefore, if the captain-major was satisfied with good peace and friendship without exactions, he was well pleased, but that to pay tribute would be his dishonour.” The captain-major, however, cared little for anything except submission. “I am the slave of the king, my sovereign,” he haughtily replied, “and all the men whom you see here, and who are in that fleet, will do that which I command; and know for certain, that if I chose, in one single hour your city would be reduced to embers; and if I chose to kill your people, they would all be burned in the fire.” Thus the Western nations, under the plea of peace and friendship, and on the pretence at first of only desiring to establish factories for the purposes of peaceful and mutually beneficial commerce, became lords of the East, and for centuries exercised a dominion founded on despotism and injustice over its native sovereigns. The king of Quiloa might remonstrate as he pleased, submission was his only course. “If I had known,” he replied, with great warmth and energy, “that you intended to make me a captive, I would not have come, but have fled to the woods, for it is better to be a jackal at large than a greyhound bound with a golden leash.”^[27] “Go on shore and fly to the woods,” said the now exasperated representative of the Christian king—“go on shore to the woods, for I have greyhounds who will catch you there, and fetch you by the ears, and drag you to the beach, and take you away with an iron ring round your neck, and show you throughout India, so that all might see what would be gained by not choosing to be the captive of the king of Portugal.” And this Christian speech was accompanied with an order to his captains

“to go to their ships, and bring all the crews armed, and go and burn the city.”

His unjust demands.

As De Gama refused to grant the king even one hour for consultation, he submitted, and this submission, having been ratified on a leaf of gold, and signed by the king and all who were with him, presents were exchanged, while the rich Arab, whose treachery soon afterwards became known, was left on board, by way of security for the delivery of other articles which had been promised; but the king sent word that Mahomed Arcone “might pay himself, since he had deceived him.” On receipt of this information the captain-major became very angry with the rich Moor, and ordered him and the Moors who had accompanied him to be “stripped naked, and bound hand and foot, and put into his boat, and to remain thus roasting in the sun until they died, since they had deceived him; and when they were dead he would go on shore and seek the king, and do as much for him, lading his ships with the wealth of the city, and making captive slaves of its women and children.” It was not, however, necessary to carry into effect these terrible threats. The Moor sent to fetch from his house a ransom, valued at 10,000 cruzados (£1,000 sterling), which he gave with other perquisites to the “Christian” ambassador, who immediately afterwards pursued his voyage to Melinde.

Arrives at Melinde.

On arriving in sight of the port, the king, who had already received the news, was prepared with “much joy to welcome his great friend Dom Vasco de Gama;” while the fleet anchored amidst a salvo of artillery. The king with haste embarked in a barge which he had ready, to visit and pay his respects to the captain-major, “bringing after him boats spread with green boughs, accompanied by festive musical instruments; and De Gama, as soon as he was aware that it was the king, went to receive him on the sea, the two at once embracing and exchanging many courtesies.”^[28]

Departs 18th Aug.,
1502.

An exchange of presents continued for the three days the fleet remained at Melinde, and much rejoicing and festivity prevailed. Fresh provisions of every kind were sent in abundance for each of the vessels, as also tanks for water, which the king of Melinde had prepared in anticipation of the arrival of the expedition, with pitch for the necessary repairs to the ships, and coir sufficient for a fresh outfit of hawsers and cordage for the whole expedition.

On the day of departure the king went on board, and gave De Gama a valuable jewelled necklace for his sovereign, worth three thousand cruzados, and others of not much less value for himself, with various other gifts, among which were a bedstead of Cambay, wrought with gold and mother of pearl, a very beautiful thing, and he gave him letters for the king, and a chest full of rich stuffs for the queen, with a white embroidered canopy for her bed, the most delicate piece of needlework, “like none other that had ever been seen.”^[29]

Encounter with the Moors.

Soon after their departure the expedition fell in with five ships, which had been fitting out in the Tagus for India when Vasco de Gama sailed, and which had been placed under the command of his relation Estevan de Gama. The combined fleets proceeding on their voyage, called at the “port of Baticala,”^[30] where there were many Moorish ships loading rice, iron, and sugar, for all parts of India.” The Moors, on the approach of the Portuguese, prepared to offer resistance to them entering the harbour, by planting some small cannon on a rock which was within range of the bar. The boats, however, belonging to the Portuguese ships made their way into the harbour without damage, although amid showers of stones from the dense mass of people who had collected to resist their approach, until they reached some wharves, which had been erected for the convenience of loading the vessels frequenting the port. The Moors then fled in great disorder, leaving behind them a large quantity of rice and sugar, which lay on the wharf ready for shipment, and the Portuguese returned to their boats in order to proceed to the town, which was situated higher up the river. On their way, however, a message was sent from the king of Baticala to say that, though he “complained of their carrying on war in his port, without first informing themselves of him, whether he would obey him or not, he would do whatever the captain-major commanded.” Upon which De Gama replied, “that he did not come with the design of doing injury to him, but when he found war, he ordered it to be made; for this is the fleet of the king of Portugal, my sovereign, who is lord of the sea of all the world, and also of all this coast.”^[31]

Levies tribute, and sails for Cananore.

In this spirit the trade between Europe and India, by way of the Cape of Good Hope, was opened by the Portuguese. It was thus continued by them and the Dutch for somewhere about a century, and perpetuated in the same

domineering manner by the servants of the English East India Company, even until our own time.^[32] To the demand for gold or silver, the king of Baticala could only reply that he had none. His country was too poor to possess such treasure, but such articles as his country possessed he would give as tribute to Portugal; and having signed the requisite treaty of submission, he despatched in his boats a large quantity of rice and other refreshments for the fleet, on the receipt of which the captain-major set sail for Cananore.

Disgraceful
destruction of a
Calicut ship, and
massacre of her
crew.

On the passage the expedition encountered a heavy storm, and sustained so much damage, that it was necessary to anchor in the bay of Marabia for repairs. Here they fell in with a large Calicut ship from Mecca, laden with very valuable produce, which the captain-major pillaged, and afterwards burned, because the vessel belonged to a wealthy merchant of Calicut, who he alleged had counselled the king of that place to plunder the Portuguese on their previous voyage. Nor were these Christian adventurers satisfied by this act of impudent piracy; they slaughtered the whole of the Moors belonging to the ship, because they had stoutly resisted unjust demands, the boats from the fleet “plying about, killing the Moors with lances,” as they were swimming away, having leapt from their burning and scuttled ship into the sea.^[33]

On the arrival of the expedition at Cananore, De Gama related to the king how gratified his sovereign had been by the reception which his fleet had formerly received, and presented him with a letter and numerous presents. He then narrated the course of retaliation which he intended to pursue with the king of Calicut, expressing a hope that the merchants of Cananore would have no dealings with those of Calicut, for he intended to destroy all its ships, and ruin its commerce. This vindictive policy seems to have gratified the jealous Cananore king, for “he swore upon his head, and his eyes, and by his mother’s womb which had borne him, and by the prince, his heir,” that he would assist the captain-major in his work of revenge by every means in his power. Upon which De Gama “made many compliments of friendship to the king on the part of the king his sovereign, saying that kings and princes of royal blood used to do so amongst one another; and maintained good faith, which was their greatest ornament, and was of more value than their kingdoms.”^[34]

De Gama's
arrangements with
the king of
Cananore.

Having arranged how the king of Calicut and his subjects were to be disposed of, his majesty of Cananore returned to his palace, and matured with his council the measures to be taken so as to carry out wishes of his friend and ally the king of Portugal. In matters of trade it was agreed that a fixed price should be set upon all articles offered for sale, and that there should be no bargaining between the buyer or seller for the purpose of either lowering or raising prices. The chief merchants of the city and natives of the country were to arrange with the factors from the ships what the prices were to be, and these "should last for ever." A factory was to be established where goods were to be bought and sold; and all these things were written down by the scribes, so as to constitute an agreement, which both parties signed. When completed, De Gama took counsel with his captains, and settled that two divisions of the fleet should cruise along the coast, "making war on all navigators, except those of Cananore, Cochym, and Coulam,"^[35] while the factors should remain on shore, with a sufficient number of men to buy and gather into their warehouse at Cananore, "for the voyage to the kingdom, much rice, sugar, honey, butter, oil, dried fish, and cocoa-nuts, to make cables of coir and cordage."

Departure for
Calicut.

Bombards the city.

Horrible cruelties.

Having arranged all these matters to the satisfaction of everybody at the place, except the Moorish merchants, who were "very sad" when they saw their ancient trade by the Red Sea passing into the hands of strangers, Dom Gama sailed with his combined fleet for Calicut, where, on arrival, he found the port deserted of its shipping, the news of his doings at Onor and Baticala having reached the ears of the people of Calicut; the king, however, sent one of the chief Brahmins of the place, with a white flag of truce, in the vain hope that some terms of peace might be agreed upon. But the captain-major rejected every condition, and ordering the Indian boat to return to the shore, and the Brahmin to be safely secured on board of his ship, he bombarded the city, "by which he made a great destruction." Nor was his vengeance satisfied by this wanton destruction of private property, and the sacrifice of the lives of many of the inhabitants of the city; while thus engaged "there came in from the offing two large ships, and twenty-two sambacks and Malabar vessels from Coromandel, laden with rice for the Moors of Calicut:" these he seized and plundered, with the exception of six

of the smaller vessels belonging to Cananore. Had the acts of this representative of a civilised monarch been confined to plunder, and the destruction of private property at sea and on shore, they might have been passed over without comment as acts of too frequent occurrence; but besides this, they were deeply dyed with the blood of his innocent victims. The prayers he had offered to God with so much solemnity on the banks of the Tagus proved, indeed, a solemn farce; his own historian adding the shameful statement, that after the capture of these peaceable vessels, “the captain-major commanded them” (his soldiers) “to cut off the hands, and ears, and noses of all the crews of the captured vessels, and put them into one of the small vessels, in which he also placed the friar, without ears, or nose, or hands, which he ordered to be strung round his neck with a palm-leaf for the king, on which he told him to have a curry made to eat of what his friar brought him.”^[36]

Perhaps no more refined acts of barbarity are to be found recorded in the page of history than those which Correa relates with so much simplicity of his countryman; they would seem, indeed, to have been almost matters of course in the early days of the maritime supremacy of the Portuguese, and may in some measure account for the unsatisfactory condition into which that once great nation has now fallen. Supposing, however, the exquisite barbarism of sending to the king the hands, ears, and nose of his ambassador, *to whom Dom Gama had granted a safe conduct*, not enough to convey to the ruler of Calicut a sufficiently strong impression of the greatness, and grandeur, and power, and wisdom, and civilisation of the Christian monarch, whose subjects he had offended, the captain-major ordered the feet of these poor innocent wretches, whom he had already so fearfully mutilated, “to be tied together, as they had no hands with which to untie them; and in order that they should not untie them with their teeth, he ordered them” (his crew) “to strike upon their teeth with staves, and they knocked them down their throats, and they were thus put on board, heaped up upon the top of each other, mixed up with the blood which streamed from them; and he ordered mats and dry leaves to be spread over them, and the sails to be set for the shore, and the vessel set on fire.”^[37]

Arrives at Cochym,
7th Nov., where he

In this floating funeral pile eight hundred Moors, who had been captured in peaceful commerce, were driven on shore as a warning to the people of Calicut, who

loads,

flocked in great numbers to the beach to extinguish the fire, and draw out from the burning mass those whom they found alive, over whom “they made great lamentations.” When the friar reached the king with his revolting message, and deprived of his hands, ears, and nose, an object of the deepest humiliation, he found himself in the midst of the wives and relations of those who had been so shamefully massacred, bewailing in the most heart-rending manner their loss, and imploring the king to render them aid and protection from further injury. Although the king’s power was feeble compared to that of the Portuguese, with their trained men of war, and vastly superior instruments of destruction, the sight of his faithful Brahmin, *whom he had despatched in good faith* to offer any conditions of peace which Dom Gama might demand, led him to resolve with “great oaths” that he would expend the whole of his kingdom in avenging the terrible wrongs which had been inflicted upon his people. Summoning to his council his ministers and the principal Moors of the city, he arranged measures for their protection from the even still greater dishonour and ruin which was threatened with awful earnestness by their invaders. The Moors, with one voice, “offered to spend their lives and property for vengeance.” In every river arrangements were made for the construction of armed proas, large rowing barges and sambacks, and as many vessels of war as the means which their country afforded could produce. But long before this fleet was ready, Dom Gama had sailed with his expedition for Cochym, where he arrived on the 7th of November, having on his passage done as much harm as he could to the merchants of Calicut, many of whose vessels he fell across in his cruise along the coast.

Cochym, like Cananore, had resolved from the first to court the friendship of Portugal. Its rulers conceived it more to their interests to submit to the conditions of Dom Gama, however humiliating, than to resist his assumed authority. Consequently when his fleet made its appearance, the king of Cochym was ready to receive him with every honour; and when his boat, with its canopy of crimson velvet, very richly dressed, approached the shore, the king, accompanied by his people, came to the water-side to meet him, prepared to secure his friendship by any submission, however abject. Numerous rich and valuable presents having been interchanged, arrangements were made to provide the cargo the captain-major required, on similar conditions to those which had been entered into at Cananore.

and at Coulam.

When the queen of Coulam, a neighbouring and friendly state, where the pepper was chiefly produced, heard of the wealth which the king of Cochym and his merchants were making by their commercial intercourse with the Portuguese, she sent an ambassador to Dom Gama to entreat him to enter into similar arrangements with herself and her people, saying that “she desired for her kingdom the same great profit, because she had pepper enough in her kingdom to load twenty ships each year:” but Dom Gama was a diplomatist, or at least a dissembler, as well as an explorer. To fall out with the king of Cochym did not then suit his purpose, which he would very likely have done had he allowed the queen of Coulam to share in the lucrative trade without his sanction; but he nevertheless appears to have made up his mind to reap the advantage of the queen’s trade under any circumstances. Consequently, he sent word to the queen “that he was the vassal of so truthful a king, that for a single lie or fault which he might commit against good faith, he would order his head to be cut off; therefore he could not answer anything with certainty, nor accept her friendship, nor the trade which she offered, and for which he thanked her much, without the king (of Cochym) first commanded him.”^[38]

Opens a factory at Coulam.

After this palaver he recommended that she should ask the king of Cochym’s permission to open up commercial intercourse with the Portuguese, an arrangement he was not likely to assent to, as besides curtailing his profits, he would lose the revenue he derived from the queen’s pepper, which now passed through his kingdom for shipment. The king was naturally perplexed and “much grieved, because he did not wish to see the profit and honour of his kingdom go to another.” So after talking the matter over with De Gama’s factor, he resolved to leave it entirely in the hands of the captain-major, and informed the queen’s messenger that the matter was left altogether to his good pleasure, no doubt himself believing that the trade would be therefore declined. But the king of Cochym had made a sad mistake, for the Portuguese navigator was a diplomatist far beyond the king’s powers of comprehension; to his discomfiture and amazement Gama informed the ambassador of Coulam “that he was the king’s vassal, and in that port was bound to obey him as much as the king his sovereign, and, therefore, he would obey him in whatever was his will and pleasure; and since the queen

was thus his relation and friend, he was happy to do all that *she* wished!”^[39] Consequently he despatched two of his ships to load pepper, at “a river called Calle Coulam,” sending the queen a handsome mirror and corals, and a large bottle of orange-water, with scarlet barret-caps for her ministers and household, and thirty dozen of knives with sheaths for her people. Soon afterwards he established a factory in her kingdom.

While Dom Gama was employed loading his ships with the produce of India for Portugal, the king of Calicut had prepared a fleet which he hoped would capture and destroy the fleet of the Christian monarch who had done his people such grievous wrongs. It consisted of “several large ships, and sambacks, and rowing barges, with much artillery and fighting men, and two captain-majors.” But the king of Calicut, either anxious to avoid war, or to obtain information of the condition and power of the vessels then under Dom Gama, sent a confidential Brahmin to Cochym, with a letter to the captain-major, in which, after stating the force now at his command, he expressed a wish that there should be “no more wars nor disputes”^[40] between them, and that he would make compensation for the injury his people had sustained on the previous voyage; but the Brahmin received no better reception than his predecessor had done. He was tied to the bits, or framework that surrounds the main-mast; an iron shovel, full of embers, was put “close to his shins, until large blisters rose upon them, whilst the interpreter shouted to him to tell the truth,” as to whether the king his master meant what he said in the letter he had addressed by him to Dom Gama; but as he would not speak, “the fire was brought closer by degrees, until he could not bear it,” and when he had told all he knew, the captain-major “ordered the upper and lower lips of the Brahmin to be cut off, so that all his teeth showed; and he ordered the ears of a dog on board the ship to be cut off, and he had them fastened and sewn with many stitches on the Brahmin, instead of his, and he sent him in the Indian boat to return to Calicut!”^[41]

Calicut declares war against Dom Gama.

The king, as well he might, when his mutilated and insulted ambassador presented himself, at once ordered his fleet to proceed in search of the Portuguese, and to intercept them on their way from Cochym back to Cananore, where they had gone to fill their ships with the ginger which had been collected for them at that place. Dom Gama’s departure was, however,

delayed for a few days. He had to permanently establish his factory at Cochym, and make arrangements for its protection during his absence, and for the purchase and storage of produce ready for the ships which would annually be despatched to India from the Tagus. He had also to found a Portuguese colony, the first colony of Europeans in India, for which purpose he “left carpenters, and caulkers, blacksmiths, turners, and cordage-makers, who were to refit the ships which had to remain at Cochym,” as well as other “workmen and men-at-arms,” in all sixty persons, to whom “the factor was to give their pay, and a cruzado per month for their maintenance.”

Success of the
Portuguese.

Desecration of the
Indian vessels,

When Dom Gama had completed his arrangements at Cochym, he sailed for Cananore. The king of Calicut with his fleet lay in wait for him. “Coming along the coast with a light land breeze, there were so many sail” that the Portuguese did not see the end of them. In the van there might be as many as “twenty large ships, with many fustas and sambacks.” These Dom Gama ordered his caravels, each of which carried thirty men with four heavy guns below, and six falconets, and ten swivel-guns on deck, to attack, which they did with great vigour, and soon brought down the mast of the flag-ship of the Moors, killing many of the crew, and sinking three of the large vessels. Amid this havoc, Dom Gama himself bore down with the rest of his fleet, and, as the wind freshened, he came with great force through the midst of his opponents, “doing wonders” with his artillery, and firing both broadsides as he passed, shattering them both in hull and rigging, and leaving the Calicut fleet almost a helpless mass.

and further
atrocities.

But conquest and submission were not enough for this Portuguese marauder. His fiendish spirit of revenge seems to have had no limits. He “sent the boats with falconets and swivel-guns, and in each boat twenty armed men, with crossbow-men, to go to the ships which were becalmed, and shoot at them above, and kill the crews. This they did, so that the Moors threw themselves into the sea, and went swimming round the ships.” Gama then “sent his boat to the ships and caravels, to tell the crews to flock to the Moorish ships and plunder them, and set them on fire.”^[42] After which he proceeded on his

course for Cananore, “giving the Lord great praise and thanks for the great favour which He had shown him.”^[43]

Completes his factory and fortifications at Cananore, and sails for Lisbon,

Having finished his work of colonization and horrible cruelty, Dom Gama, concluding that his heavy guns were not likely to be again required on his homeward voyage, left them at Cananore, and completed his cargoes, set sail for Portugal. He did not, however, forget before he took his departure, to induce the king to send his masons to erect a high stone wall round the Portuguese settlement, where the guns were deposited, having a strong gate, of which the king was to keep the key, “so that the Portuguese should remain at night shut in under his key.”^[44] The king was “much pleased with this arrangement, and promised the captain-major that it would be done at once; for he thought that the captain-major did it with the desire that the Portuguese should remain subject to him.” Poor innocent-minded, good-natured king!

where he arrives, Sept. 1, 1503.

Having called at Melinde for a day, to take in a fresh stock of sheep, fowls, and water, Dom Gama proceeded on his course with a fair wind, and “without even meeting with any storm or hindrance, but only winds with which all his sails served.”^[45] On the 1st of September, 1503, he reached Lisbon, anchoring “before the city,” with “ten ships laden with very great wealth, after leaving such great services accomplished in India.”

When the king of Portugal heard the news of Dom Gama’s arrival he was greatly rejoiced, and sent the captain of his guard to bid him welcome, he himself proceeding on horseback with many people to the cathedral, “to give much praise to the Lord before the altar of Saint Vincent,” an example which the captain-major and all his captains soon afterwards followed; when prayers were ended, he kissed the hand of the king, who bestowed many favours upon the officers and crews of the ships, while granting to Dom Gama and his heirs “the anchorage dues of India,” and conferring upon him and his descendants the title of the “admiral of its seas for ever.”

Dom Gama arrives in India for the third time, 11th Sept., 1524.

The re-discovery of the route to India by way of the Cape of Good Hope, proved an immense source of wealth to Portugal. The profits of her merchants on the products of the East were enormous, and for many years,

as regarded the rest of Europe, this trade was kept a close monopoly. Lisbon then became the entrepôt which the Italian republics had so long held for the spices and other produce of India; and the palaces of her traders with that country, which still adorn, even amid their decay, and, in too many instances, their ruins, the banks of the Tagus, testify to the wealth of their original owners and occupants. Though Dom Gama now desired to remain at home to reap the fruits of his discovery and enjoy the rewards and honours conferred upon him by his sovereign, the state of affairs in India too soon required his presence in that country. The example he himself had set of tyranny formed the basis for a despotic rule on the part of the Portuguese governors or factors, which at even this early stage required a remedy, and no one was considered so competent to correct this evil as its author. Consequently, according to the testimony of Correa, “on the 11th September, 1524, there arrived at the bar of Goa, Dom Vasco de Gama, as Viceroy of India.”

From the same source we learn that the viceroy was on this occasion accompanied by his two sons, Dom Estevan de Gama, who was captain-major of the expedition, and afterwards governor of India, and Dom Paulo de Gama, who unfortunately lost his life in a war with Malacca. The viceroy had now another object to serve than that of trade. He was to be the future ruler of India, and, as such, a regal display became necessary to give the natives a proper impression of his greatness and power. Correa remarks (p. 381) that he “was served by men bearing maces, by a major-domo, and two pages with gold neck-chains, and many esquires.” All the forms of kingly state appear to have been adopted. He had “rich vessels of silver and rich tapestry of Flanders; and for the table at which he sate, brocade cloths;” he had also a “guard of two hundred men with gilt pikes, clothed with his livery,” and an army of “brilliant soldiery.” Nor was he without kingly power, and even something more. While his rule extended over “all persons who might be found eastward of the Cape of Good Hope,” he himself established laws^[46] “that, under *pain* of *death* and loss of property, no one should navigate without his license.” Every person likewise who came to India, even with a commission from the king of Portugal, was liable to be dismissed without compensation or appeal, should he not, in the opinion of the viceroy, prove competent for the office to which he had been nominated.

His death, 24th
Dec., 1524.

Such stringent laws may have been necessary from the state of things which then existed in India. That he was strict in his administration, even to tyranny, over his own people, cannot be doubted; and it is well known that his brief rule was embittered by his hostile relations with his predecessors, whom he accused of various mal-practices, and ordered to be sent back to Lisbon. In the midst of these difficulties he was seized with a fatal illness; and having, as Correa states, “set his affairs in order, like a good Christian, with all the sacraments of the church, and ordered that his bones should be conveyed to the kingdom of Portugal, he died on Christmas Eve, 24th December, 1524.”

His character, as
compared with that
of Columbus.

Although the first voyage of Dom Gama may be read with satisfaction, no language can be found sufficiently strong to denounce his subsequent career, and especially his diabolical conduct towards the Moors and natives on his second expedition to India.^[47] And to that conduct, too faithfully adopted by his successors, may in a great measure be attributed the loss, as well as the gain, of the Portuguese empire in the East. But though Dom Gama was a man of no mean abilities, and of indomitable courage, who evidently thoroughly understood his profession as a seaman, he cannot for an instant be compared, either as an individual or as a navigator, with his great contemporary Columbus. Dom Gama, in his voyage to India, had with him pilots who had frequently sailed along the western shores of Africa, and one, at least, who had doubled the Cape of Good Hope under Bartholomew Dias, while the crews of his ships consisted of his own countrymen, and partly, too, of his own dependants. But Columbus was a stranger among strangers; and the seamen who manned his vessels were altogether devoid of confidence in a commander into whose service they had been forced by the imperative order of their sovereigns. His voyages of discovery lay across unknown seas, amid a wilderness of waters, which both ancient and modern mariners had alike portrayed in the most gloomy colours; and so far from having the benefit of the services of any pilot who had ever attempted to navigate that then mysterious ocean, most persons in his service considered the voyages on which he was about to embark as alike visionary and dangerous.

Discovery of the
Pacific, by Vasco

While the Portuguese were prosecuting their valuable discoveries in the East, the Spaniards were following up

Nuñez de Bilboa.

their less lucrative but more important researches to the West. In their voyages to the Caribbean Sea, and along the shores of the Mexican Gulf, they had heard rumours of great seas still further to the West; but it was not until 1513, a few years after a small colony had been established at Darien, that one of their countrymen, Vasco Nuñez de Bilboa, discovered the Pacific Ocean. The discovery was hailed with great joy by the Spaniards, who, having been restricted by the Pope to confine their researches to the West, now hoped to find within the prescribed limits another road to that far-famed Cathay, which had proved such a vast source of wealth to their rivals the Portuguese.

Voyage of
Magellan.

It was not, however, until Magellan [Fernando de Magalhaens], a Portuguese by birth but in the service of the King of Spain, discovered the straits which bear his name that the Spaniards were enabled to derive any advantages from this great addition to their knowledge. Furnished by the King of Spain with five small vessels, the largest of which was only one hundred and thirty tons, their crews in all amounting to only two hundred and thirty-four men, this daring adventurer and most intrepid mariner set sail in September 1519 from S. Lucar for the Brazils, anchored at Rio, and thence pursued his way over these unknown seas to the south, until he reached the straits, where he encountered very severe weather. After many difficulties and great hardships he reached that beautiful and fertile group of islands in the Pacific which he named the Ladrões. Thence proceeding to the Philippines, Magellan, a navigator second only to Columbus, and superior in many respects to Vasco de Gama, unfortunately lost his life in an engagement with the natives. But in November, 1521, the expedition reached the Moluccas, the object of their search. Thence, but greatly reduced in strength and number, they steered for the Cape of Good Hope, which they doubled on the 6th of May, 1522, and anchored at St. Lucar on the 6th of September of that year, having been the first to accomplish a voyage round the world.

FOOTNOTES:

[1] As is well known, there is considerable variation in the dates assigned to different portions of Vasco de Gama's voyages by different writers. It has been thought, on the whole, best on this occasion to follow those given by Gaspar Correa, whose narrative has been translated from the Portuguese and edited for the Hakluyt Society by the Hon. H. E. J. Stanley (now Lord Stanley of Alderley): Lond. 1869. Correa states that he went to India sixteen years after it was discovered, which would be therefore in 1514, and that he had access to the Journals of Joam Figueira, a priest who accompanied De Gama in his first voyage. Correa, when in India, was secretary to the governor, Alfonzo d'Albuquerque; and died at Goa, some time before 1583.

[2] The two young men were named, respectively, Pero de Covilhan, and Gonsalvo de Pavia. Though accounts differ, they seem to have travelled together by Venice, Alexandria, and Cairo, to Mecca, where they separated. One of them (and here again accounts vary) went on to Aden, Cananore, Calicut, and Goa (Mr. Stanley and Mr. Major think this was Covilhan), the other to Abyssinia. It is certain that Pavia died soon afterwards, probably at Cairo; and that, by the agency of a Spanish Jew, Covilhan was able to send home word that India could be reached by sea by continuing the coasting voyage from Guinea round the Cape to Sofala. Mr. Major, therefore (p. 339), is justified in stating that to him belongs the honour of the *theoretical* discovery of the Cape. His report to the king, however, did not reach Portugal till shortly after Bartholomew Dias and Joam Infante had started, in August 1486. Covilhan, on his way home, went to Abyssinia, and was detained there for the rest of his life (33 years).

[3] The author is of opinion that the vessels engaged under Vasco de Gama were, as in the case of Columbus, much larger than historians have represented, though very much alike, as Correa describes, especially in the size of their yards and sails. Unable to find any work which furnished an illustration of any kind of these vessels, he applied to his friend Mr. Edward Pinto Basto, of Lisbon, for information on the subject. After considerable research, (for which he is greatly indebted,) Mr. Basto furnished the author with the drawing—[see following page](#)—which in his letter he describes as a "sketch representing the *San Gabriel* passing the Cape of Good Hope on November 25th, 1497. This sketch," he remarks, "is copied from an original picture in Lisbon that belonged to D. Ioam de Castro, and I have no doubt," he adds, "that it is a correct representation of Gama's ship. I have spoken," he continues, "to the Marquis of Nisa, whom you know, and who is the lineal descendant of the renowned navigator, and he confirms that opinion. The expedition," he adds, "sailed from Lisbon (Belem) on July 9th 1497. It consisted of the *San Gabriel*, commanded by Vasco de Gama; *San Raphael*, commanded by his brother Paulo de Gama; *Birrio*, under charge of Nicolas Coelho; and a transport which was a storeship to carry provisions, called a *naveta*." Mr. Pinto Basto confirms the opinion the author entertained with regard to the dimensions of these ships. "The *San Gabriel*," he says, "had a high poop and forecastle. The tonnage in those days was calculated by the number of pipes of wine the vessel could carry. The *San Gabriel* was constructed to carry 400 pipes," equivalent to about 400 tons measurement, or about from 250 to 300 tons register, which is much more likely to have been the size of the vessels engaged on so distant and hazardous an expedition than those which historians describe. It should be added that Correa calls De Gama's ship the *Sam Rafael*.

[4] Correa, p. 33.

[5] Correa, pp. 55-57.

[6] Ibid. p. 74. Note.

[7] Correa, p. 128.

[8] Correa, p. 146.

[9] Our calico (in French, *calicot*) derives its name from Calicut, as muslin from Mosul, &c.

[10] It should be remembered that with most of our early writers and navigators “Moor” was a generic name for Muhammedan. The governor of Calicut is called by the Portuguese “Zamorin,” a corruption, probably, of “Samudri-Rajah.”

[11] Correa, p. 156.

[12] Correa, p. 176.

[13] Correa, p. 222.

[14] Correa, p. 225, *et seq.*

[15] *Ibid.*, p. 232.

[16] Correa, p. 239. The termination of the name (like Laccadive, Maldiva, &c.) shows it to have been an island, but its exact situation has not been determined.

[17] Correa, p. 259.

[18] Sargarço (or as it is more usually written Sargaço) is the Portuguese name for what is known (botanically) as the “*Nasturtium aquaticum*.”—Linschoten, *Hist. Orient.*, pt. iii. p. 34.

[19] Correa, pp. 264-5.

[20] Correa, p. 269.

[21] A cruzado is worth about 2s.; a quintal equivalent to 128 lbs.

[22] Cabral was originally selected to command this expedition; but the king, having some doubts of his ability, though on his previous voyage to India in 1500-1 he had discovered the Brazils, gladly availed himself of De Gama’s expressed desire to take charge of it; another fleet was to be despatched in the following year (Correa, p. 279). There were two grievances against the king of Calicut, the original one of De Gama, and his subsequently similar treatment of Cabral.

[23] Correa, p. 282.

[24] *Ibid.* p. 283.

[25] Correa, p. 292.

[26] Correa, p. 294.

[27] Correa, pp. 295-6.

[28] Correa, p. 303.

[29] *Ibid.*, p. 306.

[30] The names “Baticala” and “Cochym” have been retained as those used by Correa; the more modern names are “Batticola” and “Cochin.”

[31] Correa, p. 311.

[32]

“Degenerate trade, whose minions could despise
The heart-born anguish of a thousand cries;
Could lock with impious hands its teaming stores,
Whilst famished nations died along its shores;
Could mock the groans of fellow men, and bear
The curse of kingdoms peopled with despair;
Could stamp disgrace on man’s polluted name,
And barter with their gold eternal shame.”—CAMPBELL.

[33] Correa, p. 315.

[34] Correa, pp. 321-2.

[35] Correa, p. 324.

[36] Correa, p. 331.

[37] Correa, pp. 331-2.

[38] Correa, p. 349.

[39] Ibid., p. 352.

[40] Correa, p. 358.

[41] Correa, pp. 363-4.

[42] Correa, pp. 371-2.

[43] Ibid., p. 373.

[44] Correa, p. 373.

[45] Ibid., p. 377.

[46] Correa, p. 397.

[47] The Popish nations of the south of Europe have, throughout all history, been remarkable for atrocities of cruelty found among no other races. But neither the cruel persecution of the Jews by the *soi-disant* deliverers of the Holy City, nor the greatly exaggerated crimes of the Hindus and Muhammedans, who may at least have believed they were ridding their native land of robbers and oppressors by the Indian mutiny of 1856-7, can compare with the cruelties of Vasco de Gama, or with the atrocities of the mob at Palermo during the insurrection of 1849.

CHAPTER II.

Progress of maritime discovery—Henry VII., 1485-1509—His encouragement of maritime commerce, and treaties with foreign nations—Voyages to the Levant—Leading English ship-owners—Patent to the Cabots, 1496—Discovery of the north-west coast of America, June 21, 1497—Second patent, Feb. 3, 1498—Rival claimants to the discovery of the North American continent—Sebastian Cabot and his opinions—Objects of the second expedition—Third expedition, March 1501—How Sebastian Cabot was employed from 1498 to 1512—He enters the service of Spain, 1512—Letter of Robert Thorne to Henry VIII. on further maritime discoveries—Sebastian Cabot becomes pilot-master in Spain, 1518, and afterwards (1525) head of a great trading and colonising association—Leaves for South America, April 1526, in command of an expedition to the Brazils—A mutiny and its suppression—Explores the river La Plata while waiting instructions from Spain—Sanguinary encounter with the natives—Returns to Spain, 1531, and remains there till 1549, when he settles finally in Bristol—Edward VI., 1547-1553—Cabot forms an association for trading with the north, known as the “Merchant Adventurers”—Despatch of the first expedition under Sir H. Willoughby—Instructions for his guidance, probably drawn up by Cabot—Departure, May 20, 1553—Great storm and separation of the ships—Death of Sir H. Willoughby—Success of Chancellor—His shipwreck and death at Pitsligo—Arrival in London of the first ambassador from Russia, Feb. 1557—His reception—Commercial treaty—Early system of conducting business with Russia—The benefits conferred by the Merchant Adventurers upon England—The Steelyard merchants partially restored to their former influence—Cabot loses favour with the court, and dies at an advanced age.

Progress of
maritime discovery.

The re-opening of the route to India by way of the Cape of Good Hope and the discovery of the West Indian Islands gave, at an early period, an impetus to the maritime commerce of England, and consequently rendered the reign of Henry VII. more important, so far as concerns her naval history, than that of any previous English monarch.

Henry VII., 1485 to
1509.

Like the sovereigns of more ancient times, Henry was not only a merchant on his own account, but a great encourager of maritime expeditions; in that he often himself furnished the ships and advanced the requisite capital for their equipment. Indeed, it seems probable that the vast sums found in his exchequer at his death were, in a great measure, derived from his own successful commercial adventures. Although the pursuit of trade may be sometimes deemed incompatible with regal functions and dignity, there can be no doubt that the example and practice of Henry VII. extended the field for maritime adventure among his subjects, and at the same time aroused

the cupidity of the English nation by the prospect of incalculable wealth derivable from intercourse with distant foreign lands.

His encouragement
of maritime
commerce,

Beyond the encouragement he afforded to maritime discovery, Henry adopted various measures to promote, as he conceived, the interests of the merchant navy, among others removing the differential duties which had been in force against English shipping; but unfortunately, as has been too frequently the case in the conduct of the navigation laws of England, he adopted a policy of protection almost as ruinous to her commerce as that which had previously conferred special advantages upon the shipping of foreign nations. Thus we find a law of his first parliament^[48] prohibiting the importation of Bordeaux wines in any other than English, Irish, and Welsh bottoms, these vessels being manned with sailors wholly of their own countrymen, a law which was, two years afterwards, even further extended and enlarged, the reasons assigned being “that great minishing and decay hath been now of late time of the navy of this realm of England, and idleness of the mariners within the same, by the which this noble realm, within short process of time, without reformation be had therein, shall not be of ability, nor of strength and power, to defend itself.” Of course such reasoning was then unanswerable; indeed, has been held to be so even in our own time. Accordingly it was enacted^[49] that no wines of Gascony or Guienne should be imported into England unless in ships belonging to the king (of which, by the way, his Majesty had a goodly number) or to his subjects; nay more, any such wines imported in foreign bottoms were to be forfeited.

Many arguments might, indeed, at that time have been urged in favour of these stringent laws, more especially as the policy of the Italian republics aimed at monopolising in their own ships the transport of all they required, and at rendering their ports the entrepôt for the supply of goods not merely for their own peoples, but for all other nations. Although a difference of opinion has ever existed as to the best means of attaining these objects, Henry VII. lays down sound principles of political economy and liberal sentiments with regard to the advantages to be derived from free intercourse with all nations, in his instructions to the commissioners appointed to negotiate treaties of commercial reciprocity with foreign countries. “The earth,” he says, “being the common mother of all mankind, what can be

more pleasant and more humane than to communicate a portion of all her productions to all her children by commerce?" This opinion, though at variance with the laws prohibiting the importation of French wines except in English ships, was practically carried into effect with the maritime states of Italy. His chief object in doing so may have been to obtain reciprocal advantages in their ports, and such was no doubt the case, for it is well known that Henry VII. materially reduced his import duties on the goods of Venice and of other Italian cities, and that he afterwards entered into a liberal commercial treaty with France.

and treaties with
foreign nations.

Voyages to the
Levant.

On the 1st July, 1486, Henry likewise concluded a treaty with James III. of Scotland, by which a cessation of hostilities by sea and land was stipulated and mutual good will exchanged; while he also procured privileges for English fishermen in Norway and Sweden with the view of giving greater scope to the enterprise of English ship-owners.^[50] These liberal measures produced the desired effect. We now^[51] read of "tall ships" belonging to London, Southampton, and Bristol making their annual voyages to the Levant; their principal trading places at first being Sicily, Crete, Chios, and sometimes Cyprus, Tripoli, and Beyrout in Syria. Their outward cargoes consisted chiefly of fine kerseys of divers colours, coarse kerseys, and other kinds of cloths, in return for which they obtained silks, camlets, rhubarb, malmseys, muscatel and other wines, sweet oils, cotton, wool, Turkey carpets, galls, pepper, cinnamon and other spices. These details, with particulars of the more important of these voyages, were copied by Hakluyt himself "from certaine auncient Ligier bookes"^[52] of Sir William Locke, mercer, of London, Sir Wm. Bowyer, Alderman, and Master John Gresham.

Many of these accounts are interesting and instructive, and two of them may be referred to with advantage as illustrative of the size and character of the ordinary English merchant vessels then trading with the Mediterranean. One of the smaller class, named the *Holy Cross*, is described as "a short ship of 160 tons burthen." She traded with Crete and with Chios, and her last voyage seems to have been an unfortunate one. Having been a full year at sea in performance of this voyage, "she with great danger returned home, where, upon her arrival at Blackwall, her wine and oil casks were found so weak that they were not able to hoist them out of the ship, but were

constrained to draw them as they lay, and put their wine and oil into new vessels, and so unload the ship.” As to the ship herself, she is described as having been “so shaken in this voyage and so weakened that she was laid up in the dock and never made voyage afterwards.”

As there is no reason for doubting the accuracy of the above statement, it is clear that these English merchantmen must have been badly-built vessels and very slow sailors. Indeed, the description of the voyage of a larger vessel confirms this opinion so far as regards speed. She is spoken of as “the good ship *Matthew Gonson*, of burthen 300 tons,” and the names of her owner, “old Mr. William Gonson, Pay-master of the King’s Navie,” and of her principal officers are also given. The whole number of this ship’s company is represented to have been one hundred men; she is said to have had “a great boat which was able to carry ten tons of water, which at our return homewards we towed all the way from Chio until we came through the Strait of Gibraltar into the main ocean,” as well as a long-boat and skiff; while it is remarked that, “we were out upon this voyage eleven months, and yet in all this time there died of sickness but one man.”

These are the only extant narratives furnishing any insight into the working of English merchant ships at the beginning of the sixteenth century; but the trade with the Levant must then have been of considerable importance, as an English consul was established at Chios in the year 1513,^[53] while English factors were about that period sent to Cuba and the other countries in the West discovered and colonised by the Spaniards.

Leading English
shipowners.

Patent to the
Cabots, 1496.

Among the earliest and most enterprising men engaged in the trade with the West Indies may be mentioned Mr. Robert Thorne, of Bristol, than whom the age produced no more shrewd and intelligent merchant. Having established agents in Cuba and placed others on board of the Spanish fleet, he expended large sums of money in procuring exact descriptions and charts of the newly-discovered seas, and, by his representations, the king was, in a great measure, induced to follow the example of Spain and Portugal, and to encourage voyages of discovery. Indeed before Vasco de Gama had doubled the Cape of Good Hope or Columbus discovered the West Indian Islands, the ship-owners of Bristol had found their way to Iceland, and had almost, if not quite, reached the coasts of Newfoundland. There is, however, no well-authenticated account

of any of these voyages to the West till 1496, when Henry granted, March 5th, a patent to John Cabot, a Venetian by birth, who had settled at Bristol, and to his three sons, Lewis, Sebastian, and Sanctus, giving them authority to “sail to all parts, countries, and seas of the East, of the West, and of the North, under our banner and ensign, with four ships of what burden or quantity so ever they be, and as many mariners or men as they will have with them in the said ships, upon their own proper costs and charges.”^[54] Cabot and his followers are therein authorised to set up the royal banner “in every village, town, castle, isle, or mainland by them newly found,” and to subdue, occupy, and possess all such regions, and to exercise jurisdiction over them in the name of the king of England. They were also to enjoy the privilege of exclusive resort and traffic to all places they might discover, reserving one-fifth of the clear profit of the enterprise to the crown.

Discovery of the
north-west coast of
America, 21 June,
1497.

The expedition proposed under this patent did not, however, actually set sail till the beginning of the year 1497. On the 21st of June of that year, Sebastian Cabot, in the ship *Matthew*, of Bristol, a vessel of two hundred tons burthen, first discovered, according to the common opinion, Newfoundland,^[55] being the first Englishman (for he was born at Bristol) who had landed in America. How far he proceeded south has been a question of much controversy; it is, however, generally admitted that his voyage north and south was confined within the 67th and 38th degrees of north latitude, and that it did not occupy altogether more than six months. In the account of the privy purse expenses of Henry VII. there is the following entry: “10th of August, 1497. To hym that found the New Isle, 10*l.*,” and Hakluyt states, in the dedication of his second volume to Sir Robert Cecil, that “all that mighty tract of land from 67 degrees northward to the latitude almost of Florida was first discovered out of England by the commandment of Henry VII.” The same authority, quoting from Peter Martyr, further says, “He” (Cabot) “was thereby brought so far with the south, by reason of the land bending so much to the southward, that it was there almost equal in latitude with the sea Fretum Herculeum, having the North Pole elevated in manner in the same degree. He sailed likewise in this tract so far towards the west that he had the island of Cuba on his left hand in manner in the same degree of longitude.”^[56]

Second patent, 3
Feb., 1498.

Rival claimants to
the discovery of the
North American
continent.

That one of the Cabots discovered the northern continent of America, at the period named, is well authenticated, and in Biddle's memoirs of him many other authorities are quoted in confirmation of this fact.^[57] But if any doubt still remains, the second patent, granted on the 3rd of July, 1498, by Henry VII., the original of which was found by Mr. Biddle in the Rolls Chapel, sets this question finally at rest. That document indeed only named the father, "John," but the previous patent was in the names of "John Cabot and his sons," and it does not follow that the discovery of the "Lande and Isles" is intended to be attributed to the personal action of the elder Cabot. However, though the continent of America was first discovered by an expedition commissioned to "set up the banner" of England, this in no way detracts from the honour justly due to Christopher Columbus, who had five years previously made known, for the first time, the existence of a world in the West. Although his great discoveries were confined to the West Indian Islands and to a portion of the South American continent, they revealed the important fact that rich lands, hitherto unknown, lay in a certain quarter of the globe, and could be reached with no extraordinary difficulty or danger by intrepid and skilful mariners. Again, as Columbus did not sight the continent of America until August 1498, in the course of his third voyage, he could hardly then have been ignorant of the discoveries made by Cabot on the 24th of June, 1497, which created nearly as much noise in Europe as his own had done a few years before, and were considered of such vast importance that Henry VII., whose court was then filled with the agents of various foreign powers, fitted out the second expedition under the decree of 3rd July, 1498, which had for its object commercial intercourse with a continent the existence of which was unknown to Columbus, except, perhaps, by common report, until six months afterwards.

The discovery of a new world of vast extent is, however, too high an honour to be conferred on any one man. While the great Genoese navigator fully deserves the credit of having explored the mysteries of the Atlantic Ocean, and of having shown the existence of rich continental lands to the west, Sebastian Cabot is entitled to the honour of having been the first to discover that portion of those lands now constituting the United States of America; and to Great Britain more than to any other country is due the fame of the

thorough exploration and first colonisation of a world destined to surpass in wealth and power the greatest of modern nations.

Sebastian Cabot,
and his opinions.

Cabot, like Columbus and all of the navigators of the fifteenth century, was of opinion that Cathay (China or India) could be reached by sailing to the west, and more especially to the north-west, an opinion which has prevailed even to our own times. Consequently the vessels under his first patent sailed from Bristol to discover a north-west passage to that country; and it was only when Cabot found his voyage to the north and north-west impeded by ice and land respectively, that he turned to the south in the hope, no doubt, of finding either a western passage or reaching the countries which had been discovered by Columbus.

Sebastian Cabot.

For this voyage of 1498, English merchants adventured small stocks of different kinds of merchandise, besides despatching various small vessels, all of which were placed under charge of Sebastian Cabot;^[58] so that England commenced trading operations with America in the course of the very first year after its discovery. Henry VII. appears also to have taken a pecuniary interest in this expedition, for in the account of the privy purse expenses there are the following entries:—

“22nd March, 1498. To Lancelot Thirkill of London, upon a prest (loan or advance) for his shipp going towards the New Islande, 20*l*.”

“Delivered to Lancelot Thirkill (for himself), going towards the New Isle, on prest, 20*l*.”

“April 1st, 1498. To Thomas Bradley, and Lancelot Thirkill, going to the New Isle, 30*l*.”

“To I. Carter, as going to the New Isle, in rewerde, 2*l*.”

Object of the
second expedition.

Third expedition,
March 1501.

The object of this second expedition seems to have embraced colonisation as well as commerce, for, in the words of the patent, it extended “to all such masters, mariners, pages and other subjects, as of their own free will, will go and pass with him in the same ships, to the said Lande or Isles.” Three hundred men altogether are said to have gone with Cabot on this occasion, but there is no description of

the vessels in which they embarked, beyond the expression in the patent that they were to be of the “bourdeyn of C.C. tonnes or under.” Nor are there any clear and well-authenticated accounts of the voyage. It, however, does not appear to have been so successful as had been anticipated; and as the great interest which the discoveries had at first excited languished soon afterwards, no further patents were granted by Henry until March 1501, when he commissioned three merchants of Bristol and three Portuguese to proceed in search of lands to the west. Sebastian Cabot himself would seem to have abandoned for a time any further expedition from England, and to have either sought employment in Spain or perhaps settled for a time in America, as we lose sight of him for a few years about that period. Nor are there any authentic accounts of the result of the expedition fitted out under the patent of 1501, nor of one subsequently issued by Henry VII., the last during his reign, and bearing date 9th December, 1502; but an intercourse, which had for its object both trade and colonisation, was, from the following entries in the account of the privy purse expenses, evidently maintained for some years afterwards:—

“17th November, 1503. To one that brought hawkes from the Newfound Island, 1*l*.”

“8th April, 1504. To a preste (priest) that goeth to the New Island, 2*l*.”

“25th August, 1505. To Clays going to Richmond with wylde cattis and popyngays of the Newfound Island; for his costs, 13*s*. 4*d*.”

“To Portugales” (Portuguese) “that brought popyngays and cattis of the Mountaigne with other stuff to the King’s grace, 5*l*.”

How Sebastian
Cabot was
employed from
1498 to 1512.

No mention is made of Cabot in either of these patents, but as it is certain that he did not enter the service of Spain until the 13th of September, 1512, and as it is hardly possible to suppose that so active a mind would have remained unemployed during the intermediate period, it may therefore be presumed that for a portion at least of that time he was in some manner engaged on the coast of America. In confirmation of this opinion, the Calendars of Bristol of the year 1499 contain the following entry:—

“This yeare, Sebastian Cabot, borne in Bristoll, proferred his service to King Henry for discovering new countries; which had noe greate or favorable entertainment of the king, but he, with no extraordinary preparation, set forth from Bristoll, and made greate discoveries.”^[59]

If Cabot was thus employed, the omission of any mention of his name in the patents of 1501 and 1502 is in some measure accounted for; and, in support of the Bristol records, it may be mentioned that Navarette, in describing from the records in the Spanish archives the voyage of Hojeda, who sailed from Spain on the 20th of May, 1499, says,^[60] “What is *certain* is that Hojeda in his first voyage found certain Englishmen in the neighbourhood of Caquibaco.”

He enters the
service of Spain,
1512.

When it is considered that Cabot did not enter a foreign service for many years after this period, and that he was the only man in England at that time fully competent to conduct an expedition to America, it is likely that the Englishmen Hojeda saw were no other than Sebastian Cabot himself with his exploring party. Having been stopped the year before by the failure of provisions while sailing southward, it is natural to suppose that he would in a new expedition resume his former search, till at length he reached that part of the coast where Hojeda met with the party of Englishmen, and where the “great discoveries” mentioned in the Bristol manuscript were no doubt made. It is, however, a remarkable fact that while the name of Amerigo Vespucci, the pilot who accompanied Hojeda, is now for ever associated with the whole of that vast continent, no headland, cape, or bay has preserved the memory of Sebastian Cabot. But the mysterious disappearance of his “maps and discourses,” which he had prepared for publication,^[61] may account in a great measure for the name of Cabot having been unnoticed in connection with America, and may be adduced as a reason why doubts have so long existed as to his occupations between 1498 and 1512. Had these documents been preserved, they would assuredly have supplied abundant information on this point. Peter Martyr says,^[62] that Cabot did not leave England until after the death of Henry VII., which occurred in 1509; and Herrera, the Historiographer of the king of Spain, records the additional fact that, in 1512, he entered the service of Ferdinand, who, anxious to secure the services of so distinguished a navigator, “gave

him the title of his Captain, and a liberal allowance, and retained him in his service, directing that he should reside at Seville, to await orders.”^[63]

No specific duties were, however, assigned to him beyond the general revision of the Spanish maps and charts then extant, till, in 1515, he became a member of the Council of the Indies, with the expectation of commanding in the following year another expedition for the discovery of a north-west passage to India.^[64] But the death of Ferdinand put an end to this scheme, and the troubles which then ensued in Spain induced Cabot to return to England, where, shortly afterwards, he was appointed to prepare an expedition similar to that which Ferdinand, shortly before his death, had proposed. The result, however, of this further attempt in the same direction, in 1517, while it confirmed the opinion which had been formed of Cabot’s ardent love of enterprise and dauntless intrepidity, proving, as all other similar expeditions have done, a failure, though, in this instance, chiefly as it would seem from the cowardice of Cabot’s companion Sir Thomas Pert, retarded for a time any renewed efforts in that most forbidding, but favourite region of discovery. Then, and for years afterwards, many persons were so impressed with the idea that the rich lands of Cathay could be reached either by passage directly across the North Pole, or to the east or west of it, that it has been a subject of almost constant discussion; and the following extracts from a letter addressed by the intelligent Robert Thorne to Henry VIII. describe pretty accurately the opinions prevailing in his time:

—^[65]

Letter from Robert Thorne to Henry VIII. on further maritime explorations.

“Yet these dangers or darknesse hath not letted the Spanyards and Portingals and other to discover many unknowen realms to their great perill. Which considered (and that your Grace’s subjects may have the same light) it will seem your Grace’s subjects to be without activity or courage, in leaving to doe this glorious and noble enterprise. For they being past this little way which they named so dangerous (which may be two or three leagues before they come to the Pole, and as much more after they pass the Pole), it is cleere, that from thencefoorth the seas and landes are as temperate as in these partes, and that then it may be at the will and pleasure of the mariners to choose whether they will sayle by the coasts that be cold, temperate, or hot. For they, being past the Pole, it is plain they may decline to what part they list.

“If they will go toward the Orient, they shall enjoy the regions of all the Tartarians that extend toward the midday, and from thence they may go and proceed to the land of the Chinas, and from thence to the land of Cathaio Orientall, which is, of all the mainland, most orientall that can be reckoned from our habitation. And if, from thence, they doe continue their navigation, following the coasts that returne toward the Occident, they shall fall in with Malaca, and so with all the Indies which we call oriental, and following the way, may returne hither by the Cape of Buona Speransa, and thus they shall compasse the whole worlde. And if they will take their course, after they be past the Pole, toward the Occident, they shall go in the backside of the new foundland, which *of late was discovered by your Grace’s* subjects, until they come to the backside and south seas of the Indies Occidental. And so continuing their voyage, they may return through the Strait of Magellan to this countrey, and so they compasse also the world by that way; and if they go this third way, and after they be past the Pole, goe right toward the Pole Antarctike, and then decline towards the lands and islands situated between the Tropicks, and under the Equinoctiall, without doubt they shall find there the richest landes and islands of the world of golde, precious stones, balmes, spices, and other thinges that we here esteeme most; which come out of strange countries, and may return the same way.

“By this it appeareth, your Grace hath not onely a great advantage of the riches, but also your subjects shall not travell halfe of the way that other doe, which goe round about as aforesayd.”

Mr. Thorne further explains that as the Spaniards and Portuguese had found a way by the south to the rich lands of the East, and had thus gained a material advantage over English traders, his Majesty ought not to rest until a way was found by the north, “because the situation of this your realme is thereunto nearest and aptest of all other; and also for that you *have already taken it in hand.*”^[66] And in mine opinion it will not seeme well to leave so great and profitable an enterprise, seeing it may so easily, and with so little cost, labour, and danger, be followed and obtayned.” “The labour is much lesse,” he goes on to say, “yea, nothing at all where so great honour and glory is hoped for; and considering well the courses, truly the danger and way, shorter to us than to Spain or Portugal, as by evident reasons appeareth.”

Sebastian Cabot
becomes Pilot-
Master in Spain,
1518,

Such were the arguments which had been used in the sixteenth century to induce the crown of England to fit out another expedition and discover an easier route to the world of “gold, balmes, and spices;” but beyond the failure of Cabot’s enterprise, a fearful scourge, the *sweating sickness*, had, from July to December of the year 1517, spread death and dismay, not only through the English court and city of London, but throughout the whole kingdom.^[67] Suspending even the ordinary operations of commerce, it necessarily checked any further expeditions of discovery, so that Cabot would probably have remained for a time without employment, had he not been induced by the more promising aspect of affairs in Spain to return to that country. In 1518 he was appointed Pilot-Master to the Spanish monarchy, returning to Spain with Charles V. from England in 1520.

Though the functions of this office were of so much importance that no pilot was allowed to proceed to the Indies without previous examination and approval by him, they supply few incidents for record in his life. But a misunderstanding between Spain and Portugal soon brought him conspicuously forward in connection with the discoveries then being made by adventurous Spaniards, who were directing their attention to the Moluccas, through the passage which Magellan had been fortunate enough to find near the extreme southern point of the American continent. Portugal maintained that these discoveries fell within the limits assigned to her under the Papal Bull, and remonstrated in the strongest terms against any attempt on the part of Spain to carry on commerce in that quarter of the world.^[68] A conference was consequently held to consider the claims of Portugal, to which the men most famed for their nautical knowledge and experience were invited. At the head of the list^[69] stands the name of Sebastian Cabot, and in the roll of those present there will also be found that of Ferdinand, the son of Christopher Columbus. This conference was held at Badajos in April, 1524, and, on the 31st of May, its members solemnly proclaimed that the Moluccas were situate by at least twenty degrees within the Spanish limits.

and afterwards
(1525) the head of a
great trading and

As rumours had reached Spain that the king of Portugal (in spite of the decision of this conference) was determined to maintain his pretensions by force, a

colonising
association.

company, under Spanish protection, was formed at Seville to prosecute the trade with these eastern islands. Cabot was appointed chief of this association, and among its members appears the name of his sincere friend Robert Thorne^[70] of Bristol, then a resident in Spain. The agreement, which was executed at Madrid on the 4th of March, 1525, stipulated that the king of Spain was to receive from the company four thousand ducats, besides a share of the profits of the expedition, and that a squadron of at least three vessels, of not less than one hundred tons,^[71] and of one hundred and fifty men each, should be furnished and placed under the command of Cabot, who was to receive the title of Captain-General. But many vexatious obstacles were thrown in the way of the expedition. Instead of pushing directly across the Pacific after traversing the Straits of Magellan, Cabot had instructions to proceed deliberately to explore on every side, particularly the western coast of the continent,^[72] where the Portuguese traded.

Leaves for South
America, April
1526, in command
of an expedition to
the Brazils.

A mutiny and its
suppression.

As Portugal had hitherto monopolised the lucrative commerce of that new-found region, the utmost alarm was excited when it became known that a Spanish expedition was preparing to sail under the charge of so daring and intrepid a mariner as Sebastian Cabot. Remonstrances in every conceivable form were addressed to the government of Spain; threats and entreaties were alternately used to terrify or to soothe the navigator himself, and even assassination was openly spoken of as not an unmerited punishment to defeat “so nefarious a project.” The king of Portugal himself had, more than once, in the most public manner, asserted that it would be “the utter destruction of his poor kingdom” if he was deprived of the monopoly of the trade with the Moluccas.^[73] Although the opposition did not prevail, the influence which had been used delayed the departure of the expedition until April 1526, and the seeds of discontent had been so extensively sown among the fleet, that a mutiny on the coast of Brazil, not unlike what Columbus had encountered on his first great voyage of discovery, threatened the annihilation of the Spanish fleet. Cabot, like Columbus, when similarly situated, saw that his only safety lay in extreme boldness, for, like him, he belonged to that rare class of men whose powers unfold at trying moments. He knew that by a daring exercise of that rightful

authority, to which the habit of command on the ocean lends a moral influence, men ready to commit murder may be awed into passive instruments. He therefore seized the three leaders of the mutiny, though they were his confidential officers, and the men next to himself in authority, and placing them in a boat, ordered them to be pulled on shore and there left. The effect throughout the fleet of these bold and summary proceedings was instantaneous. Discord disappeared with the chief conspirators, and, during the five years of service through which the expedition passed, full as they were of toil, peril, and privation, the voice of discontent was never afterwards heard.

Explores the river La Plata while waiting instructions from Spain.

Having expelled the only individuals who, in the event of his death, had been named in succession to the command of the expedition, Cabot felt that he would not have been justified in proceeding with the squadron on the long and perilous voyage originally contemplated. He therefore put into the La Plata, and sent advice to the king of what had occurred, by John Barlow, one of the Englishmen who had accompanied him; resolving in the meantime to explore that great river, in attempting which his predecessor in the office of pilot-major, Diego de Solis, had not long before been slain. ^[74]

Sanguinary encounter with the natives.

Running boldly up the river, which, until very recently, was the dread of navigators, Cabot reached a small island about half a league from the northern shore, and nearly opposite to the present Buenos Ayres. Here the natives made a very formidable show of resistance, but were repulsed. Proceeding seven leagues farther up the river, he erected a fort. Having completed this work, and taken every precaution for the safety of the ships, he commenced the exploration of the Parana, taking care, as he proceeded, to build small forts, on which he could fall back with his boats and caravels in case of disaster, until he reached its junction with the Paraguay, which he ascended thirty-four leagues. Here everything presented a new aspect, with indications of a comparatively higher state of civilisation; but the natives engaged in the cultivation of the soil, being jealous of the strangers, and under the impression that they had come to take away their produce, seized three of Cabot's men, who had incautiously strayed from the main body,

and a sanguinary conflict ensued, in which three hundred of them were killed, and twenty-five of the Spaniards.

When Cabot returned to his ships, he made arrangements to convey to the king intelligence of his discoveries, and entered more fully into detail of the incidents which had occurred since he left, especially of those which had compelled him to abandon the voyage originally contemplated. The prospects were so promising that Charles V. resolved to fit out a fresh expedition to aid Cabot in the prosecution of further discoveries; means were, however, wanting to furnish the promised aid, the Cortes having, in the same year, refused a grant of money solicited by the king for pressing necessities of State. It was therefore hopeless to expect that they would vote fresh supplies for remote and hazardous expeditions. But though Cabot's residence in the La Plata was measured tediously by hope deferred, and finally blasted, it was not passed in inactivity, his researches while there having ultimately proved of great value to the commerce of Spain.

Returns to Spain, 1531, and remains there till 1549, when he settles finally in Bristol.

Edward VI., A.D. 1547-1553.

On Cabot's return to Spain, in 1531, he resumed his former position of pilot-major, and about eighteen years afterwards, or fifty-three years after the date of his first commission from Henry VII., he, then an old man, returned to Bristol, the place of his birth in 1549. Whatever may have been the motives of the king of Spain for consenting to the departure of his pilot-major, he soon became alarmed at the event. To England the services of a man of Cabot's skill and knowledge was then invaluable. The youth who had then just ascended the English throne had already given such evidence of capacity as to excite the attention of Europe, and anticipations were universally expressed of the memorable part he was destined to perform. Edward VI. saw the advantages to be derived from the services of Sebastian Cabot. Naval affairs had from his boyhood seized his attention as a sort of passion. Even when a child "he knew all the harbours and ports both of his own dominions and of France and Scotland, and how much water they had, and what was the way of coming into them: and, hence,"^[75] Charles V., seeing the mistake he had made in parting with Cabot, endeavoured by various means, though without avail, to induce him to return to Spain.^[76]

But for some time after his arrival in England Cabot lived in comparative retirement, devoting himself to the consideration of questions of importance to navigators, and endeavouring to improve the means whereby they were enabled to shape their courses with greater safety and certainty across the ocean. Not the least important of his studies was the variation of the compass; if not the first he was among the first who showed the extent of these variations in different places, and who attempted to frame a theory on this important subject. His earliest transatlantic voyage had carried him to a quarter where the variations of the needle are most sudden and striking. Nor are they much less sudden in the La Plata, where, from Cabot's long residence, they must have secured his deliberate attention and careful consideration. But, in the absence of his "maps and discourses," there are now no means extant of ascertaining the nature of the theory he had formed, though it must have been of a practical character, as the seamen brought up in his school, and sailing under his instructions, were particularly attentive in noting the variations of the needle.^[77]

Though seeking retirement, his knowledge and experience, were of too varied and valuable a character to be allowed any lengthened repose. Frequently consulted, and his advice generally adopted, many adventures owe their origin to his genius; and one of the greatest of these, which arose out of the then prevailing stagnation of trade, is especially worthy of note. "Our merchants," remarks Hakluyt,^[78] "perceived the commodities and wares of England to be in small request about us and near unto us, and that their merchandise, which strangers, in the time and memory of our ancestors, did earnestly seek and desire, were now neglected and the price thereof abated, although they be carried to their own parts."

Cabot forms an association for trading to the North,

Cabot, having been consulted as to the best mode of remedying this depressed state of things, recommended, after a conference with the merchants of London, "that three ships should be prepared and furnished out for the search and discovery of the northern part of the world, to open a way and passage to our men for travel to new and unknown kingdoms."^[79]

So general was the desire to secure a continuation of Cabot's services, that, notwithstanding his advanced age, the Letters Patent incorporating the

association for carrying out the expedition he had recommended declared him to be governor, an office he was to enjoy “during his natural life, without a moving or dismissing from the same room.” But the association had to encounter the opposition of the Steel-yard, the powerful foreign body whose monopoly had long exercised a very prejudicial influence on English manufactures and commerce.

known as the
Merchant
Adventurers’
Company.

For the interests, therefore, of England, and to afford a fair field in the then known markets of the world to her merchants and manufacturers, it became necessary to break down the monopoly exercised by the Germans, from their privileged site on the banks of the Thames, and the “Merchant Adventurers’ Company,” with Sebastian Cabot as its governor, was made the instrument of effecting this desirable change. Edward himself, fully alive to the necessity of abolishing the foreign monopoly, seems, by the records in his journals,^[80] to have taken great interest in the formation and progress of this company of English traders, and, in spite of the vast influence of the Steel-yard, to have afforded to his merchants every facility in his power for the despatch of the expedition which Cabot had recommended.

Despatch of the first
expedition under
Sir H. Willoughby.

“Strong; and well-seasoned planks for the building of the requisite ships were provided,” and to guard against the worms, “which many times pearceth and eateth through the strongest oak,” it was resolved for the first time in England, though sheathing had been used for some years previously in Spain, “to cover a piece of the keel of the shippes with thinne sheets of lead.”^[81] Sir Hugh Willoughby, “a most valiant gentleman and well borne,” and highly recommended for his “skill in the services of war,”^[82] was placed in command of the expedition. Nor were these the only requisite qualities, for it seems to have been thought no slight recommendation that he should be of “tall and commanding stature.” Richard Chancellor, the second in command, with the title of Pilot-Major, is described as a man of highly-cultivated intellect and refined manners, combined with great shrewdness and powers of observation, and withal a skilful and intrepid seaman.

Instructions for his guidance, probably drawn up by Cabot.

Following the example of Portugal when she sent forth Vasco de Gama, and of Spain when Columbus was first despatched on his famous voyage, Edward had letters of safe conduct prepared for his expedition of discovery to the North, which were written in the Latin, Hebrew, and Chaldee tongues, and addressed to kings, princes, and foreign potentates and states.^[83] By these addresses the people of strange nations were to be propitiated and enlightened as to the advantages they would derive from friendly intercourse with England. But all the instructions for the government of the expedition, which have been justly regarded as models, and as reflecting the highest credit on his sagacity, good sense, and comprehensive knowledge, were prepared by Cabot himself; they contain thirty-two voluminous articles. After the regulations to enforce discipline and obedience, it is therein required that “all courses in navigation are to be set and kept up by the advice of the captain, pilot-major, masters, and masters’ mates, with the assents of the counsailers and the most number of them, and in voyces uniformly agreeing in one to prevaile, and take place, so that the Captaine-generall shall in all counsailes and assemblies have a double voyce.” A log-book is ordered to be kept containing the courses steered and the observations on the winds, weather, and tides: the daily altitude of the sun at noon, and the position of the moon and stars, attention to these matters being carefully and specially enjoined. The captain is also required to record the “names of the people of every island, with the commodities and incommunities of the same, their natures, qualities, and dispositions, the site of the same, and what things they are most desirous of, and what commodities they will most willingly part with, and what mettals they have in hils, mountains, streames, or rivers, in or under the earth.”

But beyond these special and minute instructions for the navigation of the fleet, and for the discovery of new branches of commerce or sources of mineral wealth, the most rigid attention is enjoined to the moral and religious duties of the crews, so “that no blaspheming of God, or detestable swearing be used in any ship, nor communication of ribaldrie, filthy tales, or ungodly talke to be suffred in the company of any ship, neither dicing, carding, tabling, nor other devilish games to be frequented, whereby ensueth not only povertie to the players, but also strife, variance, brawling, fighting, and oftentimes murther, to the utter destruction of the parties, and provoking of God’s most just wraathe and sworde of vengeance. These, and

all such like pestilences, and contagions of vices, and sinnes to be eschewed, and the offenders once monished and not reforming, to be punished at the discretion of the captaine and master, as appertaineth.” It is likewise ordered “that morning and evening prayer, with other common services appointed by the King’s Majestie, and lawes of this realme, to be reade and saide in every ship daily by the minister in the Admirall, and the marchant or some other person learned, in other ships, and the Bible or paraphrases to be read devoutly and Christianly to God’s honour, and for his grace to be obtained and had by humble and heartie praier of the navigants accordingly.”

Indeed, the whole document is full of admirable advice and of the soundest principles, as valuable to the success of the commercial adventure as to the discipline and comfort of every person engaged in the expedition. ^[84]

Descending to minute details, the cook or steward is required to give weekly, or oftener if desired by their superiors, an exact account of the victuals, such as “flesh, fish, biscuit, meat, bread,” as also of “beer, wine, oil, or vinegar,” with any other things under his charge. Incompetent officers and incapable seamen are to be discharged, whenever a suitable opportunity occurs of getting rid of them. Economy is strictly enjoined, and cleanliness in the cook’s room rigidly enforced. The best clothes of the sailors are only to be used when mustered in good array for the honour and advancement of the voyage. Various instructions are given for the security of health and general good management of the crew, and the sailors are warned against people who “can swim in the sea in havens, naked, armed with bows and shafts, who are desirous to seize the bodies of the sailors, which they covet for meat.”

Departure 20 May,
1553.

On the 20th of May, 1553, the squadron dropped down the river Thames to Greenwich, and its departure is thus quaintly described:—

“The greater shippes are towed downe with boates and oares, and the mariners being all appparelled in watchet or skie-coloured cloth, rowed amaine and made way with diligence. And being come neere to Greenwich (where the court then lay), presently upon the newes thereof, the courtiers came running out, and the common people flocked together, standing very thicke upon the shoare: the Privie Counsel, they lookt out at the windowes

of the court, and the rest ranne up to the toppe of the towers; the shippes hereupon discharge their ordinance, and shoot off their pieces after the manner of warre and of the sea, insomuch that the toppes of the hilles sounded therewith, the valleys and the waters gave an eccho, and the mariners they shouted in such sort that the skie rang again with the noyse thereof. One stood in the poope of the ship, and by his gesture bids farewell to his friendes in the best manner hee could, another walkes upon the hatches, another climbs the shrowds, another stands upon the maine yard, and another in the top of the shippe. To be short, it was a very triumph (after a sort) in all respects to the beholders. But (alas) the good King Edward (in respect of whom principally all this was prepared) hee only by reason of his sicknesse was absent from this shewe, and not long after the separation of these ships, the lamentable and most sorrowful accident of his death followed.”^[85]

Great storm and separation of the ships.

Death of Sir H. Willoughby.

Amidst these great rejoicings, mingled with many lamentations and numerous misgivings, this celebrated expedition took its departure from the Thames. After leaving Harwich the ships had favourable winds, but, anticipating severe weather as they proceeded northwards, arrangements were made that in the event of separation, they were to rendezvous at the Castle of Wardhouse in Norway. Their anticipations were soon realised. Violent storms arose. The ships, though superior to most of the vessels of the period, were ill adapted to contend against the angry gales of the Northern Ocean. Sir Henry, with two of the ships, having been separated from the one under the command of Richard Chancellor, failed to make the contemplated progress to the eastward, and wintered in Lapland. But the rigour of the climate proved far more severe than had been anticipated. After terrible sufferings, he and the whole of the crews of the two ships perished, through cold, famine, and disease, amidst the ice and snow of the Arctic regions.

Success of Chancellor.

The pilot-major, Chancellor, was more fortunate. He reached the “Wardhouse” with his ship in safety, and having remained there several days, resolved to proceed, notwithstanding the disheartening representations which were made to him. Passing through unknown seas, he at last reached the Bay of St. Nicholas,

where he anchored, and afterwards landed at a castle on the beach not far from the place where the town of Archangel has since been built. The natives, “being amazed with the strange greatnesse of the shippe (for in those parts before they had never seen the like), beganne presently to avoyde and to flee;” but Chancellor, in accordance with his instructions, “looked pleasantly upon them, comforting them by signs and gestures,”^[86] and by numerous acts of courtesy and kindness he soon secured their confidence and friendship. Having gained in time an imperfect knowledge of their language, this remarkable seaman made a long tour through a portion of the interior, visiting Moscow, where he was well received. Here he opened the first commercial intercourse between Russia and England, which soon proved a source of great wealth to the people of both countries.

His shipwreck and death at Pitsligo.

Arrival in London of the first Russian ambassador, Feb. 1557.

Though his task must have been of the most arduous character, he seems to have performed it with so much skill and judgment that the Emperor of Russia readily entered into his plans for promoting commercial intercourse between England and Russia, and despatched with him an ambassador to negotiate treaties on the most liberal bases, at the same time granting to the “Association of Merchant Adventurers” and “their successors for ever” special privileges. Chancellor, however, did not live to reap the fruit of his labours and receive the rewards and honours to which he was so well entitled. On his return to England, his ship was dashed to pieces during a furious gale at Pitsligo, in the north of Scotland; and, in his praiseworthy and successful exertions to save the life of the Russian ambassador, he unfortunately lost his own.^[87] But mourning is only for a season. The lamentations on the loss of so many brave men, and especially on Chancellor, were drowned in the shouts of rejoicing which soon afterwards welcomed the Russian ambassador to the city of London. On the 27th February, 1557, he was met twelve miles from the City by “fourscore merchants with chaines of gold and goodly apparell,” with their retinue of servants and “horses and geldings” more gaudily adorned than themselves, and on reaching the boundaries of the City, the “Lord Mayor, accompanied by all the aldermen, received him, accompanied by Viscount Montague and other members of the court of the Queenes Majestie, together with a great

number of merchants and notable personages riding before, and a large troupe of servants and apprentices following.”

So great, indeed, we are told, were the crowds of people that lined his path that the ambassador had much difficulty in reaching his lodging “in Fantchurch Streete,” where he was provided with every luxury befitting his dignity and the importance of the embassy on which he had come, till he finally left London on the 3rd of May following.^[88]

His reception.

Commercial treaty.

Nor, indeed, were the attentions shown to this first Russian envoy bestowed in vain. Before he set out homewards, in “the noble shippe the *Primrose*,” a valuable commercial treaty was concluded with Russia, which continued in force almost until our own day, to the great advantage of the people of both countries, but especially of the English.

Early system of
conducting business
with Russia.

It is not a little curious now to look back to the early history of that trade and the mode whereby it was conducted, nor is it either uninteresting or uninformative. The correspondence between the Company and its agents in Russia furnishes ample means for showing how it was conducted, and provides, probably, the earliest specimens extant of the English mode of conducting business with foreign countries, and of the care and precision with which it was carried on. Nothing can be clearer than the Company’s letter of instructions and bill of parcels,^[89] containing as it does in the shortest possible space all that was necessary for the guidance of their agents.

The benefits
conferred by the
Merchant
Adventurers upon
England.

To the Company of Merchant Adventurers, and more especially to its first governor, Sebastian Cabot, England is deeply indebted. They were among the earliest traders who gave an impetus to her over-sea commerce, aiming as they did to make England a depôt for foreign produce, and her ships the carriers by sea for the merchants of other nations as well as their own. “For we must take care,” remarks the Company in one of those letters to its agents, “to utter good quantitie of wares, especially the commodities of our realme, although we afford a good peny-worth to the intent to make others that have traded thither, wearie, and

so to bring ourselves and commodities in estimation, and likewise to procure and have the chiefe commodities of that country in our hands as waxe and such others, *that other nations may be served by us and at our hands.*”^[90]

It was by these means that England obtained her mercantile pre-eminence, achieving her maritime superiority by such methods rather than by any complicated scheme of legislative enactments, and in this she was assuredly far more indebted to the discoveries and wise policy of Sebastian Cabot, than to the so-called “celebrated Navigation Laws of Oliver Cromwell,” a hundred years afterwards. Barrow in his history frankly owns that Cabot’s knowledge and experience, combined with his zeal and penetration, were the means, not only of extending the foreign commerce of England, but of keeping alive the “spirit of enterprise which even in his lifetime was crowned with success, and which ultimately led to the most happy results for the nation”;^[91] and Campbell observes “that with equal justice it may be said of Sebastian Cabot, that he was the author of our maritime strength, and opened the way to those improvements which have rendered us so great, so eminent, so flourishing a people.”^[92]

But the Merchant Adventurers, besides leading the way to and developing the trade with Russia, were instrumental in the establishment of the whale fishery of Spitzbergen, and in the equally great, if not more important, fisheries on the banks of Newfoundland. Nor were their efforts confined to discoveries of new sources of wealth at sea, for, besides their extensive commercial operations with the interior of Russia where they had established various agencies, they entered into trading relations with Persia. Writing to one of these agents, they remark, “We have further hope of some good trade to be found out by Master Anthonie Jenkinson, by reason we do perceive by your letters, that raw silk is as plentiful in Persia as flax is in Russia, besides other commodities that may come from thence.”^[93]

The Steel-Yard merchants partially restored to their former influence.

The untimely death of Edward VI. (6 July, 1553), while it operated as a severe check on the advancing commercial prosperity of England, was no less inauspicious to the fortunes of Sebastian Cabot, who had given to it the first great impulse. The generosity of the youthful monarch, his ingenuous and enterprising spirit, and his fondness

Cabot loses favour
with the court,

for maritime affairs, offer a melancholy contrast to the sullen bigotry of Mary.^[94] Without one spark of feeling for the commercial interests of the people whom she had been called to govern, or one thought about their happiness, she deputed all such matters to her husband, who reduced Cabot's pension one half, and materially curtailed the influence he so long possessed, it may be with some gain to his own peace of mind in his now declining years, though to England's loss. Foreign traders with England had now their former special privileges partially restored, while the Steel-Yard merchants, bringing the influence of Germany to bear upon Philip II., were thus enabled to obtain relief from the Act passed by Edward VI. They were not, however, satisfied with these changes in their favour, for "at an assembly of the Houses at Lubeck, an Edict was published against all Englishmen, forbidding all trade or commerce with them."^[95]

and dies at a very
advanced age.

From this time Cabot sank into comparative insignificance. Sixty-one years had elapsed since the date of his first commission from Henry VII.; he was now a very old man, and the powers of nature, fast failing through age, were still more rapidly exhausted by the usage he received from the court. The exact date of his death is not known, nor has any record been left where he was buried. He who, with Christopher Columbus, had presented a new world to his sovereign, died like him neglected, if not despised, and at last so thoroughly unknown, that England cannot point to the spot of earth where rests all that was mortal of one of her best and bravest seamen.^[96]

FOOTNOTES:

^[48] 1 Hen. VII. c. 8.

^[49] Hen. VII. c. 8; see Parl. Hist. vol. i. p. 407.

^[50] Rymer's 'Fœdera,' vol. xii. p. 335.

^[51] According to Hakluyt, "In the yeeres of our Lord 1511, 1512, &c., till the year 1534" (ii., p. 96).

^[52] Hakluyt's remark here is worthy of note, "Neither did our merchants onely employ their owne English shipping before mentioned, but sundry strangers also—Candiots, Raguseans, Venetian galiasses, Spanish and Portugal ships" (II., p. 96).

[53] Macpherson, vol. ii. p. 46.

[54] Macpherson, vol. ii. p. 11. The charter of patent is dated at Westminster, March 5, 1495-6.—Rymer, xii. p. 595.

[55] A close examination of the story of Cabot shows that the spot first seen by him could not have been Newfoundland. Moreover, Ortelius, who had Cabot's own map before him, places an island of St. John in lat. 56° N., off the coast of Labrador, with which the account of its general sterility and the abundance of Polar bears agrees much better than with Newfoundland. The present Isle of St. John's, off the coast of Newfoundland, was so called by Cartier, A.D. 1534 (Hakluyt, iii. p. 204). The second patent, too, speaks of "land and islands" as distinct discoveries of the first voyage. The fact is, all the territory round that neighbourhood was called "New Land," as in the Stat. 33 Henry VIII., and Robert Thorne (ap. Hakluyt, i. p. 214) speaks of "*our New found lands*." Thus, West Indies once meant the whole of America. That Cabot reached 67½° of N. lat. cannot be doubted, as Ramusio, in the Preface to the third volume of his 'Voyages,' distinctly states that the navigator had written to him to that effect (Ramusio, iii. 417). The presumption is, further, strong that John Cabot, the father, did not make any voyages, but that all the credit of the new discoveries is due to Sebastian and his brothers. Indeed, Sir George Peckham (ap. Hakluyt, iii. p. 165) asserts this as a fact. Sir Humphrey Gilbert, too, while saying that Sebastian was specially sent, makes no allusion to the father.

[56] Hakluyt, *ibid*.

[57] A very interesting memoir of Sebastian Cabot, recently published (1869) by Mr. J. F. Nicholls, the City Librarian of Bristol, enables us to add some particulars of his life (and of that of his father) which have been only just discovered. Thus we learn from Mr. Rawdon Brown's 'Venetian Calendars' that John Cabot (the father) was made a citizen of Venice, A.D. 1476; and from the Spanish State Papers, vol. i. p. 177, under date July 25, 1498, "that the people of Bristol sent out every year two or three light ships, *caravelas*, in search of the island of Brazil and the seven cities, according to the fancy of that Italian Cabot; and that *they have done so for the last seven years*," (i. e., *before* Columbus had landed on Guanahani). Mr. Nicholls further quotes from a hitherto unpublished tract by Hakluyt, only lately discovered (see Wood's Maine Hist. Soc., 1868), the following remarkable words. "A great part," says Hakluyt, "of the continent (of America) as well as of the islands was first discovered for the king of England by Sebastian Gabote, an Englishman, born in Bristowe, son of John Gabote, in 1496; nay, more, Gabote discovered this large tract of prime lande two years before Columbus saw any part of the continent." Again, under the date of Aug. 24, 1497, Mr. Rawdon Brown quotes from the Venetian Archives this passage: "Also some months ago, his Majesty Henry VII. sent out a Venetian (so called, naturally, as having been made a Venetian citizen), who is a very good mariner, *and has good skill in discovering new islands*, and he has returned safe ... and next spring his Majesty means to send him with twenty ships." All this shows the strong presumption that the first charter was granted *after* discoveries that Cabot had made previously on his own or his father's account. Mr. Nicholls also gives an engraving of a remarkable portrait of Cabot, then a very old man, and a copy of the unique map of his travels, dated 1544, preserved in the Bibliothèque at Paris. On this map it is stated in Latin and Spanish that John and Sebastian Cabot together discovered the New Land on June the 24th, 1494, and that Cabot himself "made this figure extended in plane" (i. e. the Map) in 1544. The street in Bristol where Canynge, and probably the Cabots, lived is still called 'Cathay.'

[58] 'Memoir of Sebastian Cabot,' by Biddle, p. 86, Lond., 1832.

[59] 'Memoirs, Historical and Topographical, of Bristol and its neighbourhood, from the earliest period down to the present time,' by the Rev. J. W. Seyer, vol. ii. p. 208.

[60] Tom. iii. p. 41.

[61] In a tract addressed to Sir Philip Sydney and published in 1582, Hakluyt says: “But, shortly, God willing, shall come out in print all his (Sebastian Cabot’s) own mappes and discourses drawne and written by himselfe;” at the same time, stating that these were then in the “custody of Mr. William Worthington.”

[62] Peter Martyr speaks of Cabot as “his very friend whom I use familiarly, and delight to have him sometimes keep me company in mine own house; for being called out of England, by command of the Catholic King of Castile, after the death of King Henry VII., he was made *one of our council*, as touching the affair of the New Indies, looking daily for ships to be furnished for him, to discover this hid secret of nature (i. e. why the seas in these parts ran with so swift a current from the east to the west), this voyage is appointed to be begun in March in the year next following, being the year of Christ 1516.”—Decades, ii. c. 12.

[63] Herrera, dec. i. lib. ix. cap. xiii.

[64] R. Eden’s ‘Munster,’ Lond., 1553. Cabot calls himself on the map previously referred to “Captain and Pilot-Major of his sacred Imperial Majesty the Emperor Don Carlos the Vth.” Robert Thorne (said by Stowe to have been born in 1492) was one of the most eminent of the Bristol merchants of his days. He died in London in 1532, and is buried in the Temple Church. At his death he forgave all his debtors, at the same time leaving £4440 for charitable purposes, and £5140 to poor relations.

[65] Hakluyt, vol. i. p. 112.

[66] A note on the margin of Hakluyt (vol. i. p. 213) adds, “in the eighth year of his reigne” i. e. 1516-7. This letter is not dated, but cannot be earlier than 1517, when Henry VIIIth’s voyage of discovery was undertaken.

[67] This malady had broken out before. It appears from the history of Bristol to have been very severe in 1486. Erasmus directly attributes it to the dirty habits of the English people at that period, and to the utter want of ventilation in their houses. Nicholls’s Life of Cabot, p. 33.

[68] Peter Martyr, dec. vi. cap. ix.

[69] Peter Martyr, dec. vi. cap. x.

[70] Nicholls says, that Thorne entered into this adventure chiefly that two English friends of his might go in one of the ships, and bring back an account of the lands discovered.—‘Life of Cabot,’ p. 115.

[71] The ships of the expedition must have been much larger than one hundred tons to have required or even found suitable accommodation for so many men.

[72] Peter Martyr, dec. vii. cap. vi.; Herrera, dec. iii. lib. ix. cap. iii. Letter from Robert Thorne to Dr. Ley, ambassador to the Emperor Charles V. Appendix. No. I.

[73] Peter Martyr, dec. vii. cap. vii.

[74] Peter Martyr, dec. iii. cap. x.

[75] Burnet’s ‘History of the Reformation,’ vol. ii. p. 225.

[76] Strype’s ‘Historical Memorials,’ ii. p. 190.

[77] Biddle’s ‘Life of Sebastian Cabot,’ pp. 177-180.

[78] Hakluyt, vol. i. p. 243.

[79] Hakluyt, vol. i. p. 243.

[80] Burnet’s ‘History of the Reformation,’ vol. ii., from the Cotton MSS.

- [81] Hakluyt, vol. i. p. 243.
- [82] Ibid. vol. i. p. 244.
- [83] Strype's 'Memorials,' vol. ii. p. 76. The Coronation Medal of Edward VI. gives his titles in Greek, Latin, and Hebrew.
- [84] Hakluyt, vol. i. pp. 226-229.
- [85] Hakluyt, vol. i. p. 245, who calls the place "the Ward-house," probably a small fort or guard-house.
- [86] Hakluyt, vol. i. p. 246.
- [87] Chancellor was drowned, according to Hakluyt, Nov. 7, 1556 (vol. ii. p. 286).
- [88] Hakluyt, vol. i. pp. 286, 287.
- [89] [Appendix No. 2.](#)
- [90] Hakluyt, vol. i. p. 297.
- [91] Barrow's 'Chronological History,' &c., p. 36.
- [92] Campbell's 'Lives of the Admirals.'
- [93] Hakluyt, vol. i. p. 307.
- [94] Among the first acts of Elizabeth, when she ascended the throne, was to address a letter on the subject of commercial intercourse "To the right mightie and right victorious Prince, the Great Sophie, Emperour of the Persians, Medes, &c., &c., and the people on this side and beyond the river of Tigris."
- [95] Treaties of Commerce, by Wheeler, ed. of 1601, p. 97.
- [96] The last public appearance recorded of Cabot was his dining on board the pinnace *Seathrift*, Capt. W. Burroughs, at Gravesend, on April 27, 1556. But he is known to have been alive on May 27, 1557, when Philip of Spain compelled him to resign his pension. It further appears that Eden (see his 'Taisnerus' in the King's Library, British Museum) was present at his death; but he has not noted either the place or date thereof.—J. F. Nicholls, 'Life of Cabot,' p. 186, Lond. 1869. One of the most eminent early members of the Merchant Adventurers' company was Sir Andrew Judde, the founder of Tonbridge School, whose name appears as the owner of two ships despatched to Russia in 1577, one of them being commanded by Anthony Jenkinson, who went on the first embassy from England to Persia. Judde in early life had been to Guinea, and had brought back some gold dust for Edward VI., as is recorded on his monument in St. Helen's Church, Bishopsgate. Hakluyt thus describes an elephant's head which he saw in his house. "This head divers have seen in the house of the worthy merchant Sir Andrew Judde, where also I saw it and beheld it, not only with my bodily eyes, but more with the eyes of my mind and spirit considering by the worke, the cunning and the wisdome of the work maister." Judde was Lord Mayor in 1550-1, and took an active part against Wyatt in his rebellion.—Rivington, 'Histy. of Tonbridge School,' 4to., 1869, p. 10.

CHAPTER III.

Henry VIII. resolves to establish a permanent Royal Navy—Derives his first supply of men from English fishermen—Royal fleet equipped and despatched from Portsmouth—Its first engagement—Increase of the French fleets—Extraordinary exertions of the English to meet the emergency—The rapidity with which they supplied men and vessels—Outfit of the ships—The *Great Harry*—Number and strength of the fleet at the death of Henry VIII., 28 Jan., 1547—The *Great Michael*—Trade monopolies—Mode of conducting business—Mistaken laws—The Bridport petition—Chartered companies—Prices regulated by law, and employment provided—The petition of the weavers—State of the currency, A.D. 1549—Its depreciation—Corruption of the government—Recommendation of W. Lane to Sir W. Cecil, who acts upon it, A.D. 1551, August—The corruption of the council extends to the merchants—Accession of Elizabeth, A.D. 1558—War with Spain—Temporary peace with France, soon followed by another war—Demand for letters of marque—Number of the royal fleet, A.D. 1559—The desperate character of the privateers—Conduct of the Spaniards—Daring exploits and cruelty of Lord Thomas Cobham, and of other privateers or marauders—Piratical cruises of the mayor of Dover—Prompt retaliation of the king of Spain—Reply of Elizabeth—Elizabeth attempts to suppress piracy, 29th Sept., 1564—Her efforts fail, but are renewed with increased vigour, though in vain—Opening of the African slave trade—Character of its promoters—John Hawkins' daring expedition—Fresh expeditions sanctioned by Elizabeth and her councillors—Cartel and Hawkins—They differ and separate, 1565—Hawkins reaches the West Indies with four hundred slaves, whom he sells to much advantage, and sails for England—Fresh expeditions, 1556—They extend their operations, 1568—The third expedition of Sir John Hawkins departs, October 1567, and secures extraordinary gains—Attacked by a Spanish fleet and severely injured—Reaches England in distress—Prevails on the Queen to make reprisals—Questionable conduct of Elizabeth—Vigorous action of the Spanish ambassador—Prompt retaliation—Injury to English trade less than might be supposed—Hatred of the Catholics—Increase of the privateers, 1570—Their desperate acts, 1572.

Henry VIII.
resolves to establish
a permanent Royal
Navy.

Beyond the encouragement afforded by Henry VIII. to the development of the maritime commerce of his own people, England is mainly indebted to that monarch for her first organised Royal Navy. Though her merchants' ships had hitherto been her chief means of defence from foreign invasion, and had played a conspicuous part in all her naval engagements, they were frequently dangerous instruments during periods of peace. Commissioned in war "to burn, plunder, and destroy," they were with difficulty restrained from following similar avocations on their own account when peace had been restored. The patriot of to-day too often became the pirate of to-morrow.

In his attempts, however vain, to suppress the lawless acts of his own people, as well as to clear the English Channel of foreign buccaneers,

Derives his first supply of men from English fishermen.

Henry, soon after his accession, saw the necessity of forming a standing royal navy. Among his many and varied abilities, he was his own engineer, and with workmanlike understanding, he likewise planned improvements in the mode of shipbuilding, conducting experiments in the construction of the hulls, and in plans for rigging and sailing. The few ships the government then possessed had fallen into decay, and a royal cruiser carrying the flag of England was rarely seen in the Channel. Ample materials, however, to man a fleet were to be found in the vast numbers of her own fishermen, and especially from among those employed in Iceland, which, before the discovery of Newfoundland, had become the chief rendezvous for these hardy men. Taught by necessity the arts of war as well as of peace, they, in following their usual peaceful employments, were always armed. Yet, though a fleet worthy of the name was built and equipped, the process, from the want of the requisite funds, was necessarily tedious, and the first result far from satisfactory.

In the meantime the war between Charles and Francis had broken out. French and Flemish cruisers captured prizes, or fought battles, in the mouths of English rivers or under the windows of English towns, and both belligerents too frequently made what they deemed lawful prey of the ships of England. Even when the courts of Brussels and Paris were making professions of good-will, the cruisers of both governments openly seized English traders, and Henry had for a time to submit, and to leave those of his subjects who resided on the coasts to such inadequate defences as they could themselves provide. So daring were the acts of these piratical cruisers that two French ships attempted even to cut out two merchantmen from the harbour of Dartmouth, and only failed in this exploit through the bravery of the mayor and inhabitants of that town, who attacked them with their boats; nay, more, the rival fleets of France and Spain did not scruple to test their strength in deadly combat in the harbour of Falmouth,^[97] and not unfrequently placed, at other times, embargoes on vessels entering the Thames.

Royal fleet equipped and despatched from Portsmouth.

The London merchants declared that, although the country was nominally at peace, their ships could not venture out of port; but every remonstrance, though made in no measured terms at the courts of Paris and

Its first
engagement.

Increase of the
French fleets.

Brussels, and received with courtesy and verbal apologies, was practically ineffectual in suppressing these wanton depredations. Unfortunately, at this juncture, Henry could not afford to declare war, as his exchequer was very poorly furnished; but the country itself had not sunk so low as to be unable to defend its own coasts and its own traders. Sufficient money having, through the aid of the London merchants, been at last found for their immediate purposes, a small but admirably equipped fleet was silently fitted out at Portsmouth, secrecy being observed as far as possible, in the hope of taking the offenders by surprise. Sweeping out into the Channel, this fleet soon fell across four French ships of war which had been plundering English merchant vessels in the vicinity of Mount's Bay, and closing against heavy odds, sunk one of them and drove the other three from the coast.^[98] The time had, indeed, arrived when it became essential to the independence of England that a fleet sufficient to command the Channel should be permanently maintained. France, having resolved on open war, was straining every nerve to humiliate her old and inveterate rival. One hundred and fifty of her ships of war and twenty-five swift galleys had assembled at the mouth of the Seine ready to convoy transports with sixty thousand troops on board; the intention being to occupy the Isle of Wight as a prelude to a further attack on Portsmouth, and the destruction of the small English fleet collecting at Spithead.

Extraordinary
exertions of the
English to meet the
emergency.

The rapidity with
which they supplied
men and vessels.

To meet this imposing force Henry VIII., warmly backed by his people, made extraordinary exertions. One hundred and forty thousand English soldiers, with a few German contingents, supported his efforts; but there were only sixty available ships of all sorts, though of these several were larger than any of the French. The requisite number was, however, soon supplied. Indeed, throughout the whole history of England there is no instance on record in which her people were not prepared to make any sacrifices to provide a fleet for the protection of their shores, or to redress their wrongs; and now the fact that France was attempting to rival England on her own element, at once supplied all that was wanting. But on this, as on many previous occasions, the royal squadron, that is the ships actually the property of the Crown, formed only a small part of the naval strength of

the country. So thoroughly, however, did the English people throw themselves into the scale, that they relinquished in numerous cases their ordinary occupations, and though the Iceland and Irish fishing fleets were about to sail, nearly all the fishermen who had previously been employed in these vessels entered for the navy, their wives and daughters taking their places, and keeping up the necessary supply of fish for the markets, though frequently driven into harbour by the French cruisers.^[99] Numerous vessels of various sizes, belonging to Plymouth, Dartmouth, Falmouth, Fowey, Truro, Dittisham, Totnes, Poole, Rye, Bristol, and other places, which, during the winter, had been cruising as privateers, joined the royal fleet, under the Admiral at Spithead, the two services absorbing the whole of the effective male inhabitants of the seaports, amounting to sixteen thousand hands, distributed over one hundred sail of fighting vessels of one sort and another. Some of the best families in England sought employment in this fleet, and in the long muster roll there will be found, either in command of the King's ships or of privateers equipped by themselves, names which will ever be remembered as famous in the history of their country. On the first occasion when England possessed an organised navy, we find a Russell, a Berkeley, a Clinton, a Seymour, a Dudley, a Willoughby, a Chichester, and a St. Clair proudly rejoicing to occupy their places as leaders.

It is not our province to narrate the desperate actions which ensued on the waters of the Solent, the chief scene of the struggle, or how, after terrible slaughter and numerous engagements, the French were repulsed. It is rather our object to ascertain, so far as is possible, of what nature were the vessels of which the fleets were composed.

Outfit of the ships.

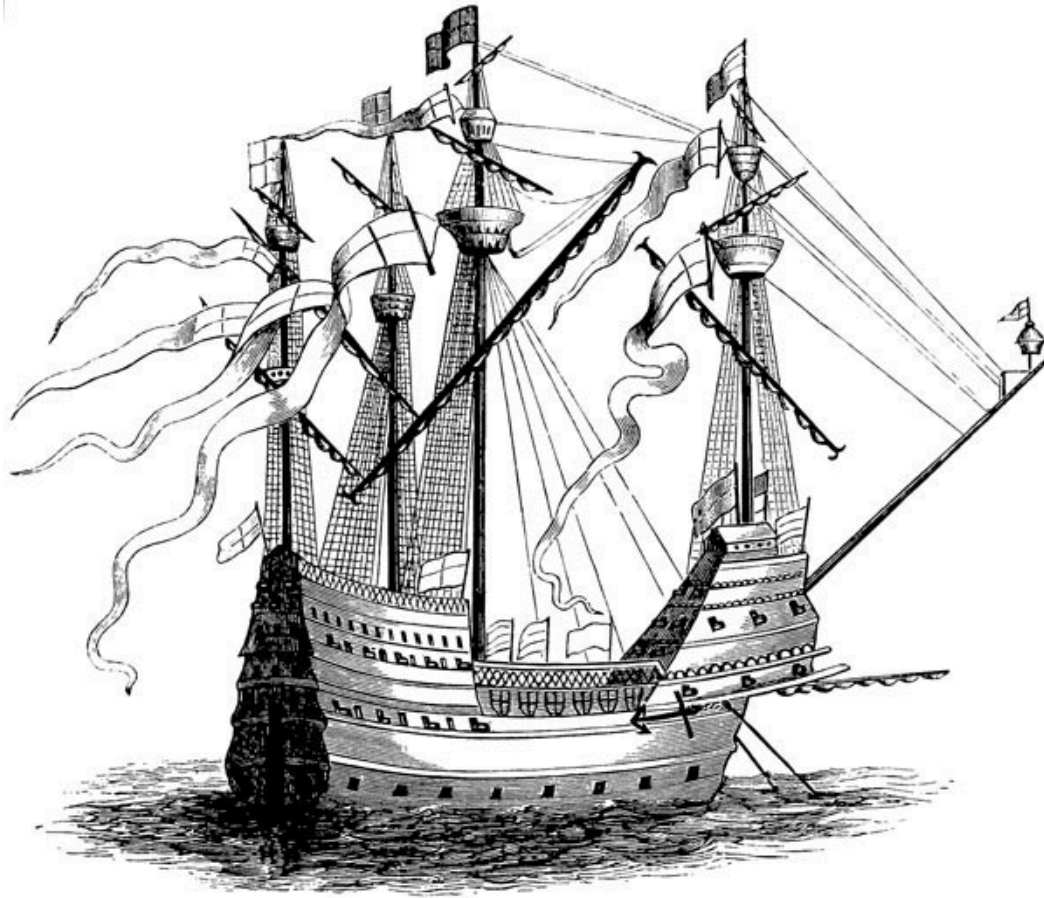
Previously to the reign of Henry VIII. no reliance can be placed on any details with respect to English ships; indeed it was only when in his reign the royal navy became a regular and permanent branch of the government service, that any careful record was kept of the fittings of vessels so employed. Happily one of these accounts has been preserved in the Cottonian collection at the British Museum, and this document derives further elucidation from another manuscript in the Harleian collection, explaining, as this does, many antiquated or obsolete words in the former. In [Appendix \(3\)](#) will be found the substance of the 'Inventory of the Great Barke,' which is the oldest account extant of the details of an English ship; but whatever

antiquaries may have written about this ‘Great Barque,’ she appears to have been simply a large merchant ship of the period, which on the sixth day of October, in the twenty-third year of the reign of Henry VIII. (A.D. 1531), was *viewed* or inspected by Christopher Morris, a government officer, for the purpose of being employed in the public service.

The *Great Harry*.

The largest and most important vessel built at this period in England appears to have been King Henry’s *Harry Grace à Dieu*.^[100] Two representations of this ship are extant, one in the Pepysian Library in Magdalen College, Cambridge, another in an original picture of Hans Holbein, published by Allen in 1756.^[101] The drawings however differ so widely that it is probable they refer to different vessels.

With the exception of the very high forecastle, an extra range of cabins on her poop, and her extraordinary rig, she does not materially differ from the wooden line-of-battle ships of much later times. All accounts agree in describing the *Harry Grace à Dieu* as the largest English man-of-war up to the period of her construction; but Henry VIII. had also previously built a vessel called the *Regent*, of one thousand tons, to carry a crew of eight hundred men, a ship, however, surpassed by a French one, the *Cordilier*, which carried one thousand one hundred men. The *Harry Grace à Dieu* was destroyed by fire when lying at Woolwich on the 27th of August, 1563.

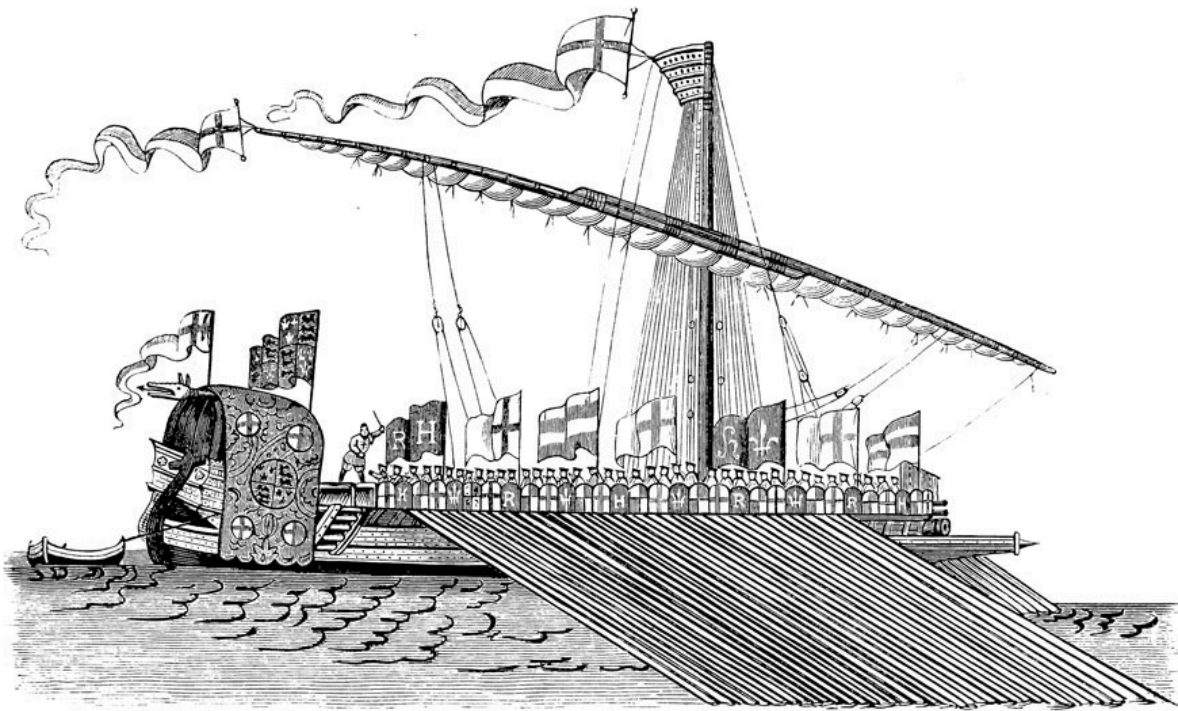


**HARRY GRACE A DIEU.—FROM PEPYSIAN LIBRARY,
CAMBRIDGE.**

Number and
strength of the fleet
at the death of
Henry VIII., 28
Jan., 1547.

On the death of Henry VIII. an account was taken of everything appertaining to the navy of England, and in the 'Archæologia' will be found the names of all the royal "shippes, galleys, pynnasses, and row-barges, with their tonnage, number of soldiers, mariners, and gunners."^[102] In this official inventory, taken by a commission specially appointed for the purpose, the *Great Harry* appears at the head of the list, and is there recorded as being of one thousand tons; if, however, the calculation had been made on the mode of admeasurement usual in England up to the middle of the present century, and known as the old measurement (O.M.), her capacity must have been considerably greater. Besides this great ship, twelve others of the royal navy are mentioned of from one hundred and forty to seven hundred and fifty tons, fourteen galleys of from sixty to four hundred and fifty tons, five pynnasses of from fifteen to eighty-five tons, and eleven row-barges, each of twenty tons, stationed at Portsmouth.

In the arsenal at Deptford Stronde there were six vessels, the largest being four hundred and fifty tons, while four other vessels of from twenty to four hundred tons were stationed in Scotland. The crews of these vessels when fully manned consisted of one thousand eight hundred and eighty-five soldiers, seven hundred and fifty-seven gunners, and five thousand one hundred and thirty-six seamen. According to a return printed by the navy-office in 1791, the gross measurement of the fleets belonging to the Crown at the death of Henry VIII. amounted to twelve thousand four hundred and fifty-five tons, which shows that the average size of the vessels then belonging to the royal navy, including the *Great Harry*, was under two hundred and forty tons each. On the [following page](#) will be found an illustration of one of the galliases, called the *Galley Subtile*, selected from among the fourteen or fifteen curious contemporary water-colour drawings by Anthony Anthony of Henry VIII.'s vessels, preserved in the MSS. department of the British Museum.



THE GALLEY "SUBTILE."—FROM THE ROLL OF THE KING'S GALLIASES, 1546.

The *Great Michael*.

But the Scottish people previous to this time, jealous of the honour of their independent action in the matter of ship-building, constructed under James IV. a vessel of even larger

dimensions than the *Great Harry* of England. Lindsay of Pitscottie gives a circumstantial description of her, received from Sir Andrew Wood of Largs, the quartermaster, and from Robert Bartyne her master-skipper.^[103] “In 1512,” he says, “the King of Scotland, King James IV., rigged a great ship called the *Great Michael*, which was the greatest ship and of the most strength that ever sailed in England or France; for this ship was of so great stature, and took so much timber, that, except Falkland, she wasted all the woods of Fife, which was oak wood, besides all timber that was gotten out of Norway; for she was so strong, and of so great length and breadth, to wit, she was twelve score (240) feet of length and thirty-six feet by two within her sides. All the wrights of Scotland, and many other strangers, were at her device, by the king’s commandment, who wrought very busily upon her; but it was a year and a day ere she was complete. This great ship cumbered Scotland to get her to the sea. From the time that she was afloat, and her masts and sails complete, with ropes and ancores effiering thereto, she was counted to the king to be thirty thousand pounds of expences, besides her artillery, which was very costly to the king, and besides all the rest of her furniture.^[104] She had three hundred mariners to sail her; she had six score gunners to use her artillery, and had a thousand men of war, besides her captains, skippers, and quartermasters.” The historian says further, “if any man believe that this description of the ship is not of verity as we have written, let him pass to the gate of Tillibarden, and there before the same ye will see the length and breadth of the *Great Michael* planted with hawthorn by the wright that helped to make her.” This circumstantial account shows that she was deemed a marvellous effort of naval architecture. “This schip lay still in the road, and the king tuik great plesour everie day to cum down and sie huir, and would dyne and sup in her sundrie tymes, and be showing his Lordes his ordour and munitioun.”^[105]

Trade monopolies.

The commerce of England during the reign of Henry VIII. and his immediate successor had been almost wholly monopolised by the two very powerful corporations to which we have already referred. But the association of German merchants having become unpopular, a large portion of their trade soon afterwards fell into the hands of the “Merchant Adventurers.” To this influential fraternity English merchants were admitted on payment of a small fine; the government of the day, in their ignorance of the requirements

of trade and navigation, having hitherto divided the commerce so far as practicable between these two companies, attempting at the same time to fix the boundaries of their respective rights by charters. But towards the close of the reign of Edward VI., when the interests of the English merchants greatly predominated, and when a committee which had been specially appointed to inquire discovered that the Steel-Yard traders, though exempted from the alien duties, had largely defrauded the revenue by giving rights of denizenship to foreigners, the Crown deprived them of many of their most valuable privileges, and practically revoked their charter.

Mode of conducting business.

Mistaken laws.

Nor is it surprising that foreigners should have so long held in their hands the largest share of the maritime commerce of England, though when Henry VIII. ascended the throne there were no reliable accounts of its extent. A sort of haphazard mode of conducting business was then the rule of her merchants, who had then no means of early and accurate information of what their foreign competitors were doing, or of the quantity or quality of merchandise they themselves required; moreover, their commercial laws were so ill defined and so liable to uncertain and extraordinary changes that no dependence could be placed upon them. Hence it was that Henry endeavoured to give consistency to his legislative measures, though even these (as might have been expected) were in most instances far from perfect; as, for instance, when he attempted to regulate the price of labour, and to determine by law what sum each employer should pay to the labourers and others they employed.^[106] No doubt there was more pretence for such a system where, as in most parts of England, there were still large ranges of common and unenclosed forest land on which the labourer might feed a cow, where his pigs, ducks, and geese might range, and where he could obtain his fuel without charge. Moreover, in those days labour was not, as now, a marketable commodity, it being then a recognised principle of law to apportion out, so far as seemed possible, the rights of the various classes of society, and to determine the price of such labour, not according to the demand, but according to the presumed cost of the necessities of life.

The Bridport petition.

Naturally in such attempts to regulate prices, Henry VIII. and his ministers committed many ludicrous as well as palpable mistakes, and admitted the justice of

demands equally indefensible. For instance, when the bailiffs and burgesses of Bridport presented, in 1529, a petition to Parliament, stating that the inhabitants of their town had been accustomed from time immemorial to manufacture the greater portion of the large cables, etc., required for the royal navy and for merchant shipping, by which their town was “right well maintained,” asserting further that “evil disposed persons” resident in the vicinity had begun to do similar work to the injury of their town, an Act of Parliament ordered that all hemp grown within five miles of the town of Bridport should be sold only in that town, and that no person within the same distance from that highly favoured seaport should manufacture any hempen goods under pain of forfeiting what they had manufactured! The first principles of sound political economy being then unknown, class interests, as a natural consequence, were protected either by the help of favoured corporations, under royal charters, or by special enactments. ^[107]

Chartered
companies.

Of these some still survive to remind us of a period in the history of England when the favoured few had means placed at their disposal of accumulating wealth denied to the great mass of the community. Although most of these charters are now objects of no value except to satisfy the curiosity of antiquaries, others remain vesting their possessors with a power which, if ever it did, can no longer render any public service. For centuries the vast organisation of these companies penetrated the entire trading life of England. Laws were framed to protect them in all their operations, and to provide that no person should supply articles he had not been educated to manufacture, nor any manufacturer be permitted to sell what he had produced on the best terms he could obtain: the Legislature also decided for him the price at which each article was to be sold.

Prices regulated by
law, and
employment
provided.

In London, a control council in communication with the Council and the Crown ^[108] attempted to regulate every branch of trade. Its duty was to determine prices and fix wages, so that each might be kept in harmony with the acts of the Legislature; to arrange the conditions of apprenticeship, and discuss all minor details. In company with the Lord Mayor and other civic dignitaries, its members inspected the shops and stores of the respective traders, and received and examined into their complaints. In connection with the municipal authorities of London there

were local councils in nearly every provincial town who fulfilled similar duties, reporting to the control body or the Privy Council such matters as were to be submitted to Parliament. When these representations had been duly considered, the necessary statutes were passed and forwarded through the chancellor to the mayors of the various towns and cities. By these arrangements no person was allowed to commence any description of trade or manufacture till he had served a regular apprenticeship, and had proved himself competent to exercise his craft to the satisfaction of the authorities. But the care of the Legislature was not extended solely to able-bodied adults; attempts were made to compel every child to be brought up to some special business or calling.^[109] Such a principle may have been plausible in theory, but it broke down in practice; the Legislature, however, insisted that the mayors in towns and the magistrates in counties should find means to apprentice every child to agriculture, so that they might not be drawn to “dishonest courses,” whenever the parents were unable to pay the fees for apprenticeship in other trades.

The petition of the weavers.

Although it may now be a matter of surprise that such laws remained so long in force, we find even in our own time considerable sections of the community who would if they could^[110] have all legislation adapted to suit their own wants, like the ropemakers of Bridport, or the weavers of the whole realm, who in the reign of Philip and Mary,^[111] induced the Legislature to pass an Act containing the following extraordinary provisions: “Foreasmuch as the weavers of this realm, have, as well at this present parliament as at divers other times, complained that the rich and wealthy clothiers do in many ways oppress them, some by setting up and keeping in their houses divers looms, and keeping and maintaining them by journeymen and persons unskilful, to the decay of a great number of artificers which were brought up in the said science of weaving with their families and their households; some by engrossing of looms into their hands and possession and letting them out at such unreasonable rents as the poor artificers are not able to maintain themselves, much less to maintain their wives, families, and children; some also by giving much less wages and hire for weaving and workmanship than in times past they did, whereby they are enforced utterly to forsake their art and occupation wherein they have been brought up. It is, therefore, for remedy of the premises, and for the avoiding of a great number of

inconveniences which may grow if in time it be not foreseen, ordained and enacted by authority of this present parliament, that no person using the feat or mystery of cloth-making and dwelling out of a city, borough, market town or corporate town, shall keep or retain or have in his or their houses or possession, any more than one woollen loom at a time, nor shall by any means, directly or indirectly, receive or take any manner of profit, gain or commodity, by letting or selling any loom or any house wherein any loom is or shall be used or occupied, which shall be together by him set or let, upon pain of forfeiture for every week that any person shall do the contrary to the tenor and true meaning hereof, twenty shillings.”^[112]

In this unwise Act, the spirit of which still prevails among many of the working classes of England, and still forms in many other countries the basis of commercial legislation, another clause provided that weavers who lived in towns might have two looms but no more, so that as many persons as possible might be employed in their own houses, and, without the aid of capitalists, earn and obtain their own independent living—thus treating capital and labour as not merely distinct interests, but as opposed to each other.

State of the
currency, A.D. 1549.

Its depreciation.

The currency was then as it is now, a question on which a multiplicity of opinions were entertained; but the coins of the realm were in those days tampered with by the State to an extent sufficient to afford even a chancellor of the exchequer of our own time an excuse for attempting to mulct the sovereign of one per cent. of its gold to cover the cost of coinage and provide a seigniorage for the Crown. In 1549 a pound weight of silver was coined into 7*l.* 4*s.*, out of which the Crown retained 4*l.* for seigniorage and cost of minting, paying the merchant only 3*l.* 4*s.* for his silver.^[113] Of course the prices of all articles rose to the level of the metallic value of the current coin, and that, too, in the teeth of the numerous statutes passed to regulate prices, and in defiance of proclamations forbidding sales except on conditions specified by law. Indeed, coins of the realm became mere tokens, and though convenient enough for the people at home, were of no value abroad beyond that of the amount of pure metal they might happen to contain; hence exchanges with foreign countries ceased to be any longer intelligible. The measure of corn worth formerly, on an average, ten

shillings and sixpence, sold in 1551 for six shillings and eightpence, and rose to thirty shillings in the following year.

Corruption of the government.

Recommendation of W. Lane to Sir W. Cecil,

To make matters worse, there were in those days men high in authority who reaped pecuniary advantages from the debasement of the currency. Indeed those of the Lords of the Council who had provided funds for the suppression of the rebellion adopted the following extraordinary if not nefarious means of repaying themselves. They addressed a warrant to the Master of the Mint, setting forth that “Whereas our well-beloved councillor, Sir William Herbert, in suppressing the rebels had not only spent the great part of his plate and substance, but also had borrowed for the same purpose great sums of money for which he remained indebted,” and requesting that the officers of the Mint might receive at his hands two thousand pounds weight in bullion in fine silver, the said bullion to be coined and printed into money current according to the established standard, the money so made to be delivered to the said Sir William Herbert, with all such profits as would otherwise have gone to the Crown after deducting the expenses of the coining.^[114] By this transaction Sir William realised a profit of 6710*l.*, and as similar privileges were extended to the remaining Lords of the Council, and other favoured persons about court, more than 150,000*l.* worth of base silver coins were thus thrown at once upon the market, producing, as might have been anticipated, numerous commercial complications and disasters. By such means as these monarchs, as well as councillors, at that period of English history paid their debts. Edward VI. records in his journal^[115] that Yorke, the Master of the Mint, by a process easily enough understood by men of business, but unintelligible as described by his Majesty, had undertaken to pay all his debts, amounting to something more than 120,000*l.*, and to remain accountable for the overplus. The description of this process will be found at length in a letter from William Lane, merchant of London, to Sir William Cecil, wherein, too, its evils are exposed, with much excellent advice for his guidance in the future.^[116]

who acts upon it, A.D. 1551, August.

Although Sir William appears to have consigned to the official pigeon-hole this thoroughly sensible document, the common sense of the London merchant in time produced its effect upon the government; and, towards the close of the

following year, the Council had no course left but to accept the advice of Mr. Lane and of other merchants of the City. However oppressive upon the people at large, there was no way of overcoming the difficulty, or of meeting the sufferings which the issue of base money had created, but by the desperate remedy of proclaiming that all the holders of coin must rest satisfied with receiving in exchange for it the value of the pure silver it contained. This loss, however, would have been so serious to many persons, the silver coin consisting of at least fifty per cent. of alloy, that the Council did not venture at first to do more than order that the shilling in future was to pass for ninepence, and the groat for threepence, a proclamation which did not remedy the evil. Every holder of coin felt that the second fall must follow sooner or later, yet, in the face of this certainty, the Council ordered a fresh issue of 80,000*l.* worth of silver coins, of which no less than two-thirds was alloy, and, in a fortnight afterwards, a further issue of 40,000*l.* in coins of which three-quarters was alloy.^[117] The falling process once begun had to be completed, and the second proclamation, which appeared within two months of the first, ordered that the shilling should pass for no more than sixpence, nor the groat for more than twopence!! Proceedings such as these could not fail to seriously affect every branch of the national commerce.

The corruption of the Council extends to the merchants.

English cloth had hitherto borne the palm in the markets of Europe. Genoese and Venetian shipowners had bought the woollens of England as cargoes for their vessels in preference to all other similar manufactures. Portuguese ships sailed with them from the Thames for the Brazils, Peru, and the Indies, East and West. The Germans on the Rhine, and the Magyars on the Danube, were clothed in English broadcloth. But the spirit of deception which had pervaded the Council in the debasement of its coin extended to the merchants, and the guilds became powerless because their members were corrupt. Huge bales of English goods lay unsold on the wharves at Antwerp, because they were “fraudulent in weight, make, and size.” Such was the state of commercial affairs in England when Edward VI. closed his reign, and it was only by the sale of the crown lands, and other property, that the government was enabled to remedy the many evils which a debased currency had created.

Accession of
Elizabeth, A.D.
1558.

War with Spain.

Nor did commercial affairs improve when Mary ascended the throne. Though her marriage with Philip of Spain may have given English merchants an increased knowledge of the West Indies, Mexico, and South America, that unfortunate union became the source of so much trouble, that the maritime commerce of England decreased during the five years of her reign, and, when Elizabeth succeeded her sister, was even more depressed than it had been at the death of Edward. The events that followed did not tend to improve it. The war with Spain, the immediate result of her accession, if it developed the energy and daring of English seamen, and opened wider and richer fields for buccaneering, almost annihilated for a time the now limited legitimate commerce of England.

Temporary peace
with France, soon
followed by another
war.

Demand for letters
of marque.

Having broken off all political connection with Spain, and having reserved only such commercial and maritime intercourse as it was necessary to maintain between the two countries, Elizabeth found it desirable to make a hasty, though honourable, peace with France, more especially as that country had meditated the annexation of Scotland. But the death of Francis II., king of France, husband of the unfortunate Mary Queen of Scots, changed the face of affairs, and the return of this princess to Scotland created new and harassing complications. France after his death was torn by civil and religious wars, and Elizabeth finding it necessary for her own security to support the Protestants in that country, a war again ensued, which in this instance perhaps more than in any other created immense excitement, especially among the maritime population of England. Religious sentiments, in the case of a misunderstanding with Spain, blended with the love of pecuniary gain, had raised, as in the war of the Crusades, people to a state of speculative fury against their hereditary enemies far more bitter and far stronger than had ever happened before. And when it became known that one Clarke, an English shipowner, with only three vessels, had in a cruise of six weeks captured and carried into Newhaven as prizes no less than eighteen vessels, whose cargoes were valued at 50,000*l.*, applications to the Queen for letters of marque poured in from all parts of the kingdom.

Number of the royal
fleet, A.D. 1559.

The desperate
character of the
privateers.

Such applications were granted with little discrimination, a conduct easily accounted for by the fact that when England found herself actually at war with the then second power in the world, the whole of her naval force in commission consisted of only seven coast-guard vessels, the largest not exceeding one hundred and twenty tons, and eight brigs and schooners, which had been purchased from the merchant service, and fitted with guns. Besides these she had in harbour and fit for service only twenty-three vessels of war, one of them measuring eight hundred tons, and nearly new; the others, which had seen service, consisting of one vessel of seven hundred tons, together with some of from six hundred to two hundred tons, the remaining portion of the fleet being sloops, or similar small craft. These were all that were left of the royal fleet which Henry VIII. had created. Poverty-stricken through the impolitic measures adopted by Edward VI. and his improvident council, and by the contentions during the reign of Philip and Mary, England, for the time finding herself unable to create or maintain a fleet of her own which could cope with the navy of France, much less with that of Spain, had, therefore, in a great measure to depend on the privateers whom she licensed. Knowing the weakness of the government whom they professed to serve, and the importance attached to their services, the owners of these vessels felt no hesitation in far exceeding the limits of their licence, whenever they could with impunity increase their own wealth. The rich merchantmen of Spain and Flanders, although there had been no formal declaration of war, became the objects of their prey, and were much more eagerly sought after than the poor coasters of Brittany. Under the pretence of retaliation for sufferings inflicted on English subjects by the Spanish Inquisition, and often without any professions at all, English merchants and English gentlemen, whose estates lay contiguous to the sea coast, or on the creeks and navigable rivers, fitted out vessels as traders, under vague and questionable commissions, and sent them forth, heavily armed, to plunder on the high seas whatever ships, including not unfrequently those of their own countrymen, they might consider worthy of their prey.

A.D. 1561.

Indeed, men belonging to the best families in England then became lawless rovers, especially as one of them, Sir Thomas Seymour, had formed the idea of

establishing a private sovereignty among the Scilly Islands, where, as on the coast of Ireland, there were numerous narrow channels affording safe and convenient rendezvous for any desperate cruiser, who levied war on his own account whenever he thought the government neglected its duty, or whenever, by a fortunate chance, richly laden vessels happened to cross his path. The annals of the period^[118] frequently mention traders which had sailed from Antwerp to Cadiz, never having reached their destination; no danger of the sea had impeded their progress, but, when hugging the land, they had met a mysterious stranger, who had ordered them to heave-to, and deliver their cargo: boats from the nearest shore in league with the cruiser, were frequently in attendance, and, during the course of the night, carts and waggons were ready at some sheltered nook on the beach to relieve the boats of their loads, and to convey bales of goods or tubs of spirits to the convenient cellars of the country squires.^[119] Sometimes the unsuspecting trader was pounced upon during the course of the night by a lugger full of armed men, which had lain in wait for her, hidden, during the day, among the rocks or in one of the inlets on the coast.

Conduct of the
Spaniards.

A.D. 1563.

No doubt the Spaniards had, in many instances, provoked acts of piracy by rousing a spirit of revenge for the cruel sufferings Englishmen had sustained at the hands of the Inquisition. Thus Dorothy Seely, when petitioning the Lords of Elizabeth's Council for recovery of the losses and sufferings of her husband, who, with others of the Queen's subjects, had been thrown into a Spanish prison, prays that she and "the friends of such of Her Majesty's subjects as be there imprisoned, afflicted and tormented against all reason, may be allowed to fit out certain ships for the sea at their own proper charges, and to capture such Inquisitors, or other such Papistical subjects of the King of Spain, as they can take by sea or land, and to retain them in prison in England with such torment and diet as Her Majesty's subjects had suffered in Spain.... Or that it may please Her Majesty to grant unto the Archbishop of Canterbury and the bishops the like commission in all points for foreign Papists, as the Inquisition has in Spain for the Protestants, that thereby they may be forced not to trouble her subjects repairing to Spain, or that there may be hereupon an interchange or delivery of prisoners."^[120]

Daring exploits and
cruelty of Lord
Thomas Cobham,

Not the least daring of the English aristocratic freebooters were the sons of Lord Cobham of Cowling Castle. Having distinguished themselves during their youth in Wyatt's rebellion, they had grown up after the type of their boyhood, lawless Protestants, half knight-errants of the Reformation, and half pirates roving the seas, with a combined spirit of revenge and love of plunder. Thomas Cobham, the most intrepid and daring of the sons, was one of many whom Elizabeth was, for some time, powerless to suppress, even had she been so disposed. Indeed, he was continually at war on his own account with the enemies of the truth wherever he could combine the service of the cause of Protestantism with pecuniary gain. Although in his case there may have been more of the crusader than of the marauder, he had become so desperate a rover, that Elizabeth was at last forced to proclaim him an outlaw, but she was evidently not anxious about his capture. Alike cruel and daring, Cobham had resolved not to be outdone in this respect by the Inquisitors of Spain. Froude says of him^[121] that, whilst cruising in the Channel, he caught sight of a Spanish ship, which had been freighted in Flanders for Bilbao, with a cargo valued at eighty thousand ducats, and forty prisoners who were going to Spain to serve in the galleys, and that he chased her into the Bay of Biscay, where he fired into her, killed the captain's brother and a number of his men, and, boarding her when all resistance had ceased, sewed up the captain himself and the survivors of the crew in their own sails, and flung them overboard. Having scuttled the ship, Cobham made off with the booty to his pirate's den in the south of Ireland.

Though English hearts had often been broken with the news of brothers, sons, or husbands wasting to skeletons in the dungeons of Cadiz, or burning to ashes in the Plaza at Valladolid, the eighteen drowned bodies, with the mainsail for their winding sheet, which were washed upon the Spanish shores, tended only to increase the horrors and to magnify the punishments to which English prisoners in Spain had long been subjected.^[122]

and of other
privateers or
marauders.

English privateers, however, licensed by the Crown, still swarmed in the Channel, and though limited by their commissions to make war only on acknowledged enemies, were unwilling to be restricted to less lucrative game. Flemings and Spaniards, if laden with valuable cargoes, were still too

frequently the objects of their plunder, under the pretext that as neutrals they had articles on board which the government of England held to be contraband of war.

Piratical cruises of
the mayor of Dover.

Among these lawless rovers were to be found the mayor of Dover,^[123] and other leading inhabitants, who, not satisfied with the capture, in a few months of the summer of 1563, of from six to seven hundred French prizes, appear to have plundered many neutral vessels, sixty-one of which were Spanish, for the most part laden with very valuable cargoes. Nor were the depredations of these pirates confined to the capture of neutrals. Their own countrymen were not safe from their rapacious talons, and it is recorded that rich harvests were often reaped by the plunder of the small English vessels employed in the valuable trade between Antwerp and London. Indeed, the vessels of no nation were safe; even the fishermen on the coast became occasionally the objects of their prey, and were stripped not merely of their cargoes of herrings, but of their ropes and anchors, and left to perish of hunger.

Prompt retaliation
of the king of
Spain, 1564.

Philip of Spain could now no longer endure the lawless outrages his people had suffered, so in January 1564 he issued a sudden order for the arrest of every English vessel in his harbours, with their crews and owners. Estimating that his people had suffered by them to the extent of one million and a half of ducats, he seized thirty of their vessels then in the ports of Spain, and imprisoned their crews as security for the repayment of this loss, at the same time excluding, by a general order, all English traders from the ports of the Low Countries.^[124]

Reply of Elizabeth.

With the French war still upon her hands Elizabeth was obliged to endure the affront, limiting her remonstrance to a request that the innocent might not be made to suffer for the guilty, and, while admitting that, in the confusion of the times and the imperfectly understood views of international maritime law, wrong might have been done to his subjects, she, as an earnest of her good intentions, proposed a joint commission to inquire into his claims. At the same time she prohibited Flemish vessels from entering her ports, and instructed her ambassador to say to Philip that whatever injury might have been done to subjects of Spain, she had even greater grounds for complaint,

and that until her ships and subjects were released, and redress afforded for the wrongs they had sustained, she prohibited all importations of Spanish merchandise.

Elizabeth attempts
to suppress piracy,
29 Sept., 1564.

As it did not suit Philip any more than Elizabeth to go to war, he listened to the remonstrances of her ambassador; the English ships, and those of their crews who had survived the terrible sufferings of a Spanish prison, were released, and the commissioners commenced their inquiry at Bruges. But although all letters of marque expired on the declaration of peace with France, and the marauders had had to seek in many cases other fields for their depredations, Elizabeth, in this instance evidently meaning what she wrote, instructed Sir Peter Carew, then at Dartmouth, to fit out an expedition with speed and secresy, and clear the seas of any “pirates and rovers” which might still haunt the coasts of Devonshire and Cornwall, or who, with that taste for a lawless life which the nature of these commissions had engendered, lurked in the western rivers, or had their rendezvous among the numerous creeks on the shores of Ireland.

Her efforts fail,

Elizabeth’s efforts were, however, not crowned with success. The land-owners, who had too long been in league with the pirates, rendered every assistance to defeat Sir Peter Carew’s attempts for their suppression. At Berehaven, O’Sullivan Bere afforded them the protection of his castle, covering their vessels with its ordnance, and mustering a fleet of small craft and a sufficient number of men to bid defiance to the Queen’s authority,^[125] thus giving fresh courage to the pirates. Fresh outrages were consequently committed on Spanish commerce, and fresh demands made by Philip that pirates who had been taken and convicted should in no case be pardoned, that the Queen’s officers in the western harbours should no longer allow these marauders to take in stores or to frequent her ports, that rewards should be offered for their capture and conviction, and that all persons on shore who aided these lawless expeditions should be severely punished.

but are renewed
with increased
vigour, though in
vain.

In reply to these peremptory demands Elizabeth “resolved to show to the world that she intended to deal honestly in that matter.”^[126] More ships of war were sent to sea to prosecute the search with greater vigour, yet, in the October following, a vessel from Flanders to

Spain laden with tapestry, clocks, and various household articles, belonging to Philip himself, was intercepted and plundered. So audacious an act seems to have excited real alarm to Elizabeth and her Council. Orders were issued to make strict inquiry along the coast so as to discover the haunts of the pirates, with a view to their immediate trial and conviction; harbour commissioners were appointed to inquire and report upon all vessels entering or leaving places within their jurisdiction; rules were framed for the detection and detention of suspicious vessels, and any landed proprietors or other persons on the coasts who harboured or encouraged them were threatened with severe punishment. But the pirates whom the law had sent forth as privateers had become too strong for the law itself. Somehow or other, those of them who had been captured were soon free, and again at their lawless work; not one was hanged as he ought to have been, and the worst that befel them was a short-lived alarm.

Opening of the
African slave trade.

Philip fortunately was not in a warlike humour, and Elizabeth's excuses that she could do no more than she had done to suppress the piratical acts of her subjects were accepted by the court of Spain. Moreover, a new trade had arisen, affording employment thoroughly congenial to these marauders. The New World, not long discovered in the West, had been suffering so severely from a scarcity of labour, that a supply from other countries was urgently demanded by the colonists. The native Indian, unaccustomed to domestic life or to regular habits of industry, would not, or could not, be taught to familiarise himself with the ways of civilised man; as the forest supplied everything sufficient for his wants, the proud lord of the soil would not subject himself to the dominion of the invaders, while he refused to accept their servitude. Hence it was that as the Europeans advanced, the Indians retired, red men decaying as the white men increased; but the English pirates soon found them substitutes. On the shores of Western Africa, which they had frequented in quest of the Spanish merchant vessels from India, men of a quiet and peaceable nature were to be found basking in the sunshine in harmless idleness, and, too frequently, in a state little better than that of "the beasts that perish."

Vast in number, and with little or no occupations, they offered a profitable source of commerce to such persons as were disposed to enter upon the traffic of human beings, and who would not hesitate to forcibly transport

the superabundant population of Africa to meet the rapidly increasing demands for labour in the Western world.

In those days, when the transition from privateering to piracy was easy of accomplishment, the pirate soon became a practised and desperate slaver. There were then no laws to prevent this inhuman traffic. Indeed the nobler Spaniards, who first peopled the tropical portion of the vast American continent and the West India Islands, were of opinion that, in the innocent and docile children of Africa might be found, if kindly treated, servants who would labour without repugnance, and who, while replacing the native Indians, would materially improve their own then wretched condition. The Spanish settlers therefore encouraged the exchange, and, as emigrants from other nations flocked in great numbers to the newly discovered West, the demand for African labour soon became enormous.

Character of its promoters.

When the freebooters of England found it either necessary or expedient to seek elsewhere other opportunities for their lawless and plundering propensities, no employment could have been more agreeable to their habits than that of a slave trade on the coast of Africa, and thus a commerce, which, if it had been conducted from the first by honest men, on a well-defined system of immigration, might have proved of immense benefit to every one connected with it, became, in the hands of worthless adventurers, one of the most depraved and demoralising recorded in history. Good, possibly, in its original intentions, this trade, from its earliest dawn, was made infamous by the desperate class of men engaged in it from its commencement, and it maintained its character for infamy, unredeemed by any civilising influences, even to our own time.

A privateer accustomed to plunder would naturally acknowledge no right of opinion on the part of those he captured: a slave was an article to be dealt with like any other article of commerce, and to be disposed of in any market where the highest price could be obtained. The consent of the negro himself to exchange a state of even starvation and misery for one of comparative comfort was an idea which did not enter the brains of those who first developed the trade; nor was it, indeed, ever entertained by their successors. Throughout the whole of three centuries during which it was carried on, no man on either side of the Atlantic seems to have attempted to introduce a legitimate system of immigration between the two great continents. What a

blessing it would have been to mankind had some such system been adopted! What myriads of human lives would have been saved, while the rich lands of the Southern States of America and the equally luxuriant islands of the West, over many portions of which rank grass now grows, would have been beehives of industry and homes of peace, prosperity, and plenty. But, established in sin, the African slave trade thus continued, through its long term of existence, a sink of iniquity.

John Hawkins' daring expedition.

Though the Portuguese were, in after years, more largely engaged in this nefarious traffic than the people of any other nation, the fact must not be overlooked that John Hawkins, of Plymouth, so famous afterwards in the naval annals of England, was among its earliest promoters. In connection with one Thomas Hampton, he fitted out in October 1562, three vessels, the largest being only a hundred and twenty tons register, with which he sailed for Sierra Leone. ^[127] Having collected, "partly by the sword" and by other equally questionable means, three hundred negroes, he crossed the Atlantic to St. Domingo, where he disposed of them to considerable advantage, investing the proceeds in hides, half of which he took to England, despatching the remainder in Spanish vessels to Cadiz, under the care of his partner in the transaction. Philip the Second of Spain, however, confiscated the cargo on its arrival at Cadiz, while Hampton himself narrowly escaped the Inquisition; and a peremptory order was sent to the West Indies prohibiting English vessels from trading there. But Hawkins fitted out another expedition to proceed thither, in spite of every warning. Indeed the prospect of large profits was so tempting, that he even induced Lord Pembroke and other members of the English Council of State to take shares privately in this adventure. Moreover, if the letter of Philip's ambassador can be relied upon, ^[128] Elizabeth herself had no objection to a share in any profits that might be realised, and placed one of the best ships of her navy at his disposal!

Fresh expeditions sanctioned by Elizabeth and her councillors.

Under the patronage of the queen of England and of many of her councillors, Hawkins set sail from Plymouth on a second slave-hunting expedition, on the 18th of October, 1564. His fleet consisted of the *Jesus of Lubeck*, ^[129] of seven hundred tons, very fully armed, of his old vessel, the *Solomon*, which had been somewhat enlarged, and of two

small sloops, of a light draught of water, suited to enter rivers and shallow waters.

Cartel and
Hawkins.

“A rival expedition sailed at the same time and for the same purpose from the Thames, under David Cartel, to whom the Queen had also given a ship. Cartel had three vessels, the *Minion*, Elizabeth’s present; the *John the Baptist*, and the *Merlin*. The *Merlin* had bad luck; she had the powder on board for the nigger hunt, fire got into the magazine, and she was blown to pieces. Cartel, therefore, for a time attached himself with his two remaining ships to Hawkins, and the six vessels ran south together. Passing Teneriffe on the 29th of November, they touched first at the Cape Verde Islands, where the natives being very gentle and loving, and more civil than any other, it was proposed to take in a store of them. But the two commanders could not agree; Hawkins claimed the lion’s share of the spoil, and when they quarrelled, the *Minion*’s men, being jealous, gave the islanders to understand what was intended to be done with them, so that they avoided the snares laid for them.”^[130]

They differ, and
separate.

1565, Hawkins
reaches the West
Indies with four
hundred slaves,
whom he sells to
much advantage,

Hawkins and Cartel then parted company, the former shaping his course for the coast beyond the Rio Grande, and filling up, as he proceeded, the hold of his ship with negroes, whom he had entrapped among the rivers and islands. Between purchases from the Portuguese, who were the first to establish factories and barracoons on these coasts, and the spoils made by his own desperate crews, Hawkins in a few weeks had collected on board of his ships no less than four hundred slaves, with whom he shaped his course for the West Indies, and came to an anchor close to the tower of Barbaratto. Finding that the interdict had arrived from the king of Spain forbidding the colonists, under pain of death, to admit any foreign vessels at any of the Spanish possessions, or have any dealings with them, Hawkins was entreated to leave. But he was not the man to be thwarted in his object whenever he felt that he had power to enforce it. Under the pretence that his ship was in distress and required refitting, he intimated that if he was refused the necessary supplies he should be obliged to send his men on shore to take them. The menace produced its effect by affording the governor a pretext for yielding and allowing the inhabitants to purchase the

negroes, for whose services there was a rapidly increasing demand. In a few days half the cargo was disposed of, when Hawkins proceeded with the rest to the Rio de la Hacha, where he disposed of them to great advantage, in defiance of the king's interdict, and the remonstrances of the governor.

and sails for
England.

With the proceeds of human beings, stolen from their homes, and sold under cover of his guns to the Spanish planters, Hawkins, having washed the pens in which he had cooped his unfortunate victims, sailed in high spirits for England. On his way home he made a cruise through the Carribean Sea, surveying, in the ostensible fulfilment of his mission, the islands, and mapping down the currents and the shoals. He then shaped his course round Cuba, steered through the Bahama Channel, and along the coast of Florida, to examine the capabilities of the country, as he explained, but more likely, from his marauding propensities, to see if he could pick up any of the treasure ships of Spain. He at length reached Padstow Harbour, and thence proceeded to London, where he rendered to his co-partners an account of his spoils, and for a time was the lion of the metropolis. Lord Pembroke and his colleagues in the Council realised a clear profit of sixty per cent. on their adventure, and it was generally supposed that Elizabeth was not uninterested in the spoils which the ship she had supplied had assisted in realising, unconscious, it may be hoped, that her favourite captain had done anything to offend her friend and ally the king of Spain.

Fresh expeditions.

Thus encouraged, the slave trade flourished. Nor was it surprising that the vast profits which Hawkins had secured should have induced others to fit out slaving expeditions. The merchants of London felt no hesitation in supplying the requisite funds.^[131] They did not inquire very minutely into the mode in which their employés conducted their business. Ostensibly their capital was required to fit out vessels to carry on the trade of immigration from the coast of Africa, where labour was too abundant, to the shores of the newly discovered country, which had no bounds to its vast and rich territory, and where labour was in still greater demand. If these roving Englishmen ruined the colonies Spain had established and menaced the safety of her merchant fleets, that was a matter of no concern to England; and if they pillaged a few of them when a favourable opportunity occurred, the capitalists who supplied the means received a bonus on their investment beyond the

ordinary dividend, and did not of course trouble themselves to inquire how it had been obtained.

1566.

As might have been anticipated, slave fleets were fitted out at most of the leading ports; they had orders, it is true, not to approach the West Indies, or break the laws or injure in any way the subjects of the king of Spain; but when they returned richly laden, no formal inquiries were made whether these riches had been obtained from the freightage of some Spanish vessel which the silent ocean had engulfed, or from the proceeds of the slaves the freebooters had landed at some rendezvous on the shores of the West India Islands or on the American colonies, in concert with the planters, whose profits were measured by the number of Africans whom they could obtain to cultivate the soil on which they had settled. “Your mariners,” remonstrated the Spanish ambassador with Elizabeth, “rob my master’s ships on the sea, and trade where they are forbidden to go; they plunder our people in the streets of your towns; they attack our vessels in your very harbours, and take our prisoners from them; your preachers insult my master from their pulpits, and when we apply for justice we are answered with threats.”^[132]

They extend their operations.

1568.

The third expedition of Sir John Hawkins.

These freebooting expeditions continuing for some years practically unchecked, Elizabeth at last felt uneasy for her relations with Spain. Her attempts to suppress them, which were always languid, had been laughed at and evaded. Though the Channel was less infested with privateers than it had been at the commencement of her reign, or during that of her immediate predecessors, they had extended and increased their ravages on the ocean and in distant lands. With the Huguenots of Rochelle, under Condé’s flag and with Condé’s commission, they had made a prey of the property of Papists; and, like the crusaders of former ages, had, on the plea of propagating and extending the Protestant faith, plundered Papists wherever they could be found. But when Hawkins (now Sir John Hawkins) prepared to fit out a third expedition, this time on a much more extensive scale, the Spanish ambassador gave notice to Elizabeth that unless it was prohibited serious consequences would follow. Of course Sir John was reprimanded by the Council, and enjoined to respect the laws which closed the ports of the Spanish colonies against unlicensed traders. The reprimand,

however, was but an empty display of friendship to the king of Spain, made merely to satisfy for the moment the demands of his ambassador. The slave trade had proved much too profitable to be thus relinquished. It had become a large source of profit to Elizabeth and many of her most influential counsellors, and consequently Hawkins had no difficulty in persuading her Majesty that he himself would not only be ruined if prevented from sailing with the expedition he had equipped, but that the crews whom he had engaged would be driven to misery and ready, therefore, to commit acts of folly which might seriously injure her merchants and endanger the well-being of her kingdom. “The voyage,” he promised, “would give no offence to the least of her Highness’s allies and friends.... It was only to lade negroes in Guinea, and sell them to the West Indies, in truck for gold, pearls, and emeralds, whereof he doubted not but to bring home great abundance, to the contentment of her Highness, and the benefit of the whole realm.”^[133]

departs, October
1567,

His arguments, or it might be the greatness of the temptation, overcame his sovereign’s scruples, and in October 1567, Hawkins sailed from Plymouth with five well-appointed vessels, including the Queen’s ship, the *Jesus*, which carried his flag, and among his crew was Francis Drake, his kinsman, who afterwards became famous or infamous, as our readers may interpret his career, in the maritime history of England.

and secures
extraordinary gains.

The voyage was prosperous beyond Sir John’s most sanguine expectations. At Sierra Leone he formed an alliance with an African tribe, then at war with their neighbours; sacked a densely peopled town, was rewarded with as many prisoners as his ships could carry; and, in the spring of the following year, found himself among the Spanish settlements conducting a business fully answering his most glittering hopes. Where the ports were open he found an easy market for his slaves, and when the governors resisted his attempts to open negotiations, he carried his purpose by force of arms, for in either case the planters were eager to deal with him. Ere the summer was over he had amassed a very large sum of money^[134] in bars of gold and silver, and other commodities, materially enhanced by even more desperate and depraved measures than that of slave dealing, as stray vessels, with valuable property on board, too frequently became objects of his plunder.

Attacked by a
Spanish fleet and
severely injured.

Having suffered severely during a gale of wind, which he encountered in the Gulf of Mexico, and finding also that the bottoms of his ships, foul with sea-weed and barnacles, required cleaning, he put into St. Jean d'Ulloa to refit; but the day after he entered a Spanish fleet made its appearance at the mouth of the harbour, consisting of thirteen men of war, the smallest of them larger than the *Jesus*; and though Hawkins, if he had been on the open sea, might have managed to make his escape from this very formidable force, it was sheer madness to seek an engagement. "If he could," remarks Froude, ^[135] "have made up his mind to dispute the entrance of a Spanish admiral into one of his own harbours, he believed that he could have saved himself, for the channel was narrow and the enemy's numbers would give him no advantage. But neither his own nor Elizabeth's ingenuity could have invented a pretext for an act of such desperate insolence; at best he would be blockaded, and, sooner or later, would have to run. The Spaniards passed in and anchored close on board the Englishmen. For three days there was an interchange of ambiguous courtesies. On the fourth, Philip's admiral had satisfied himself of Hawkins' identity." He had been commissioned specially to look for him, "and by the laws of nations he was unquestionably justified in treating the English commander as a pirate."

The formality of summoning him to surrender was dispensed with. The name of Hawkins had become so terrible, that the Spanish admiral dare not give him any warning of his intentions. But, taking possession of the mole during the night, and mounting batteries upon it, and guns on every point of land where they could be brought to bear, the Spaniards opened fire upon the *Jesus* and her comrades. Though taken by surprise, and while many of their boats' crews were in the town, "the English fought so desperately, that two of the largest of the Spanish ships were sunk, and another set on fire." The men on shore forced their way on board to their companions, and, notwithstanding the tremendous odds, the result of the action still seemed uncertain, when the Spaniards sent down two fire ships, and then Hawkins saw that all was over, and that vessels and treasures were lost. "The only hope now," continues Froude in his graphic description of the encounter, "was to save the men. The survivors of them now crowded on board two small tenders, one of fifty tons, the other rather larger, and leaving the *Jesus* and the other ships, the gold and silver bars, the negroes, and their other spoils to burn or sink, they crawled out under the fire of the mole, and

gained the open sea. There their position scarcely seemed less desperate. They were short of food and water. Their vessels had suffered heavily under the fire; they were choked up with men, and there was not a harbour on the western side of the Atlantic into which they could venture to run; in this emergency a hundred seamen volunteered to take their chance on shore, some leagues distant down the coast, and after wandering miserably in the woods for a few days, they were taken and carried as prisoners to Mexico. Hawkins and Drake and the rest made sail for the English Channel, which, in due time, in torn and wretched plight, they contrived to reach.”

Reaches England in distress.

Immediately on their arrival at Plymouth, Drake rode in all haste to London with a schedule of the property of which he represented they had been plundered by the Spaniards, and prayed that he and Sir John, and his brother William Hawkins, might be allowed to make reprisals under the commission which they held from the Prince of Condé. Relating what had taken place in a way least prejudicial to themselves, Elizabeth, smarting under the great loss she had sustained through the failure of the expedition, listened eagerly to what they had to say, and was prepared to meet their wishes after hearing from the Bishop of Salisbury, whom she had consulted, that “God would be pleased to see the Spaniards plundered”—a theory which too generally then prevailed among all ranks of Protestants.

Prevails on the Queen to make reprisals.

Questionable conduct of Elizabeth.

It was, however, no easy matter to accomplish. It would have been too monstrous an outrage to have openly seized any of the rich Spanish vessels which then lay in her ports, or to have fitted out a fleet for Hawkins, granting him liberty to plunder as many of them as he could catch in the Channel. Some other means must be devised as there was not sufficient pretext for wanton violence. It required grave consideration, for it would expose the Queen’s government to reproach if any of the subjects of her “good ally” king Philip suffered wrong in English waters. While hesitating what to do, some English privateers, sailing under the flag of the Prince of Orange, and holding his letter of marque, brought into Plymouth Spanish and Portuguese prizes, with treasure on board said to be worth 200,000 ducats. The Spanish ambassador lodged a complaint with Elizabeth, and expressed his alarm for the safety of the large amount of treasure which was

on board these vessels. Here an excellent opportunity presented itself for obtaining the recompense to which she considered herself entitled. With many expressions of regret for the insecurity of the seas, she offered either to convey the treasure by land to London and to transport it thence, or to permit the Duke of Alva, then in the Netherlands endeavouring to suppress the rebellion, to take it in his own ships to its destination. The ambassador, not without misgivings, accepted the latter alternative; nor, indeed, were his fears groundless. Elizabeth landed the treasure under the plea that “the audacity of the pirates” had rendered it necessary that she should keep it on shore under her own charge, as it would have been unsafe at sea even under convoy of her own fleets.

Vigorous action of the Spanish ambassador.

The Spanish ambassador was amazed. He could not suppress his astonishment; but, when he urged that the money was required immediately for the payment of his master’s troops, Elizabeth simply pleaded the insecurity of transport, remarking that she would keep it in perfect safety, though afterwards admitting that, as she was in want of money, her vigorous government had retained it “as a loan.” No sooner had the ambassador ascertained that this “loan” was to be appropriated, one half in doubling the English fleet, and the other in enabling the Prince of Orange to raise a second army against Alva, than he drew up a statement of the circumstances in Spanish and English for circulation in the city of London, and despatched his secretary in a swift boat to urge Alva to immediate reprisals. As the English trade with Flanders, though less than what it had been, was still a considerable source of the wealth of the London merchants, the Spanish ambassador hoped that they would join him in his protest and force the Queen to reimburse the treasure she had so unceremoniously retained for her own purposes. The Duke of Alva acted on the instant by arresting every English resident in the Low Countries, seizing such English ships as were in its ports, sequestering their cargoes, and imprisoning their crews; while couriers rode post haste across France to Spain, so that Philip might extend the embargo to every port within his dominions before the English had time to depart.

Prompt retaliation.

Elizabeth had hoped that her frivolous excuse for seizing the treasure would be accepted: at least she had no idea that such prompt reprisals would have been made; but,

though the shock was great, she had taken a step from which, after the reprisals by Spain, she felt she could not at the time retreat. Forthwith a retaliating edict of the most stringent character appeared, ordering the immediate imprisonment of every Spaniard and Netherlander found in England, and the arrest of every vessel in her ports or in the Channel owned by any of Philip's subjects. That very night the mayor and aldermen of the city of London went round to the houses of all the Spanish merchants, sealed up their warehouses, and carried them off from their beds to the Fleet prison. Even without Philip's treasure the value of the Spanish and Flemish goods thus detained far exceeded the confiscation of Alva.^[136] But the suppression of trade which these acts created caused great discontent in London, and there were many persons in England, especially among the old aristocracy, who felt that Elizabeth's conduct had been far from creditable, and was a gross affront to her professed friend and ally, the king of Spain.

Injury to English trade less than might have been supposed.

The injury to English trade proved, however, less complete than the Spanish minister had anticipated. An eventual open rupture with Spain had long been foreseen and prepared for. But changes in the course of commerce were made with greater ease than he had calculated upon. Fresh openings of ports in the Baltic afforded new facilities for intercourse; and Hamburg readily took the place of Antwerp as the mart through which English goods could be carried into Germany. The merchants of London had also found new and more distant fields for their enterprise. They had pushed their way to Moscow, penetrated to Persia, and had opened out, by way of the Straits of Gibraltar, direct commercial intercourse with Constantinople and Alexandria, the ancient centres of the commerce of the world, and even with the Catholic state of Venice. Rochelle supplied the best wines and fruits of France; while its privateers intercepted the vessels sailing from the Catholic harbours, and their cargoes lay ready for export in the Huguenot storehouses. English spirit and energy having converted the loss feared by an exclusion from the Spanish and Flemish trades into gain, Elizabeth and her ministers became even more imperative in their demands. Alva, who had come to England to arrange, if possible, terms of conciliation and renewed intercourse, was informed that, if relations between Spain and England were to be re-established, the king himself must send a direct commission for that purpose; and, as a proof of Elizabeth's determination to maintain the position she had taken in this

affair, the ships which escorted Alva back to Dunkirk actually cut out from Calais roads a dozen rich Spanish merchantmen, and sent them to the Thames.

Hatred of the Catholics.

Whenever a ship could be found with a Catholic owner she was plundered by the English rovers. In harbour, in the Channel, or on the open sea, they became alike objects of their eager prey. While some of these freebooters were content to lie in wait for such vessels as contained Flemish prisoners whom they would set at liberty, others resolutely entered Spanish ports to rescue the English vessels, crews, and cargoes which had been detained in them. But their patriotism, like their religious enthusiasm, was ever blended with a love of plunder, for they invariably helped themselves to any valuables they came across in their cruises by land or by sea. To the yet deeper distress of Philip, the houses of the largest Spanish merchants in London were not merely searched and ransacked by Elizabeth's police, but the plundered furniture of his chapel, the crucifixes and the images of the saints were borne in mock procession through the streets, and burnt in Cheapside amid the jeers of the populace, who cried as they saw them blazing, "These are the gods of Spain—to the flames with them and their worshippers."^[137]

Increase of the privateers, 1570.

Their desperate acts.

While such insults were of too frequent occurrence on shore, the aggressions of the privateers had rather increased than diminished in the Channel. Elizabeth felt that, for the safety of the kingdom against invasion, she must chiefly depend on the force which could be maintained in the immediate neighbourhood of her own shores, and that it was quite as safe, and much more economical, to encourage the voluntary action of her subjects than to rely entirely upon a royal standing navy. Throughout the whole of the English coast, and especially in the Channel ports, the sea-going population regarded Papists generally as their natural enemies and their legitimate prey. Between forty and fifty vessels, corsairs or privateers, for the difference was not easily discernible, held the coast from Dover to Penzance. The English, French, or Flemish seamen, of whom their crews were promiscuously composed, were united by a common creed and a common pursuit. At one time they sailed under a commission from the Prince of Orange; at another under one from the Queen of Navarre. In every English harbour they had abundant stores

ready for their use. Prizes were brought in almost every day to Dover, Southampton, or Plymouth and other western ports, where the cargoes were openly sold and the vessels refitted and armed. At times their acts were of the most desperate character: thus, three ships with valuable cargoes from Flanders, bound to a port in Spain, were captured outside the Goodwins, and, because they had stoutly resisted these privateers or pirates, the crews were ruthlessly flung into the sea, and left to perish before the eyes of their murderers.

1572.

When, somewhat later, the Spanish people heard that Hawkins was fitting out a squadron to cruise for the gold fleet, they were furious, and were roused to the highest pitch of anger. Philip, however, still lagged behind his subjects. A war with England would have been then a serious matter; he knew that in any such emergency France would send an army over the Rhine and revolutionise the Netherlands. He was therefore obliged to endure these continued insults and the piratical depredations upon the ships and merchandise of his subjects. It was the lesser of two evils. Encouraged by the richness of the spoils and the impunity with which the capture of Spanish property could be made, the English merchants and sailors were tempted to such an extent from their legitimate trade by the more exciting and far more lucrative occupation of bucaneeering, that in the fourteenth year of Elizabeth's reign the burden of all the vessels in the kingdom which were engaged in ordinary commerce scarcely exceeded fifty thousand tons.^[138] The largest merchantman which then sailed from the port of London was only two hundred and forty tons register. Indeed, one hundred and fifty vessels of all kinds, most of them small coasters, comprised the whole fleet engaged in lawful commerce from the harbours of Cornwall and Devonshire; but so numerous were the pirates that no unarmed ship in the Channel worthy of their notice could escape from their clutches. Nor did they confine themselves to depredations at sea. Some of the crews of the more daring cruisers harassed the Spanish coast, sacking villages, plundering mansions, pilfering churches and convents, and had, moreover, the audacity to drink success to piracy out of the silver sacramental vessels which they had stolen. If not in all cases furnished with the Queen's letter to "burn, plunder, and destroy," they too frequently exercised that calling; and if ever England was justified in claiming the "Dominion of the Narrow Seas," she had at no period of her history greater claims to it than when these freebooters, in vessels of every kind, poured

forth from her ports, and scoured the English Channel like a flock of locusts—an eternal disgrace to the name they bore, and to the flag under which they had been launched for peaceful purposes upon the ocean.

FOOTNOTES:

[97] Froude's 'History of England,' vol. iii. p. 248.

[98] Froude's 'History of England,' vol. iii. p. 250, *et seq.*

[99] State Papers, vol. i. p. 828.

[100] Macpherson states that the name of the *Great Harry* was first given to the *Lion*, a Scotch ship belonging to Andrew Barton, which was taken by Lord Edward Howard in 1511 (vol. ii. p. 39).

[101] Mr. Spedding, in his elaborate edition of Lord Bacon's works, has given [this plate \(reduced\)](#) as the title-page of his second volume; and in editing Lord Bacon's paper entitled 'The History of the Winds,' has suggested that Bacon, when speaking of a ship "of 1200 tons," must have had in his mind either this ship or the *Prince Royal*, which was built in 1610 by Phineas Pett of Emmanuel College, Cambridge (vol. v. p. 79). The whole of Bacon's short treatise, and his details about the masts, sails, and rigging of large ships, is most interesting. See also [Appendix No. 4: 'Furniture of the Harry Grace à Dieu,' Pepys' Library, Cambridge.](#)

[102] [Appendix, No. 4, 5.](#)

[103] See also Macpherson, vol. ii. p. 42.

[104] 30,000*l.* Scots, estimated by the quantity of silver in the coins, was equivalent to about 50,000*l.* present value.

[105] The *Great Michael* was afterwards sold to the king of France.

[106] From the middle of the thirteenth to the close of the sixteenth century, wheat, which has always, in a greater or less degree, regulated the price of all other commodities, averaged about seven shillings the quarter; sometimes, however, reaching twenty shillings, and at other times sinking as low as eighteenpence the quarter. When the price was above the average, importation was allowed (3 Edw. IV. ch. 2); when below, exportation to foreign markets might be made (10 Hen. VI. ch. 1). By an Act of Henry VIII. the price of beef and pork was fixed at one halfpenny a pound, and mutton at three farthings. Fat oxen realised twenty-six shillings each, fat wethers three shillings and fourpence, and fat lambs twelvepence a piece. The best description of beer sold for one penny a gallon, while table-beer could be had for half that price. Spanish and Portuguese wines were sold at a shilling the gallon, but French and German sold for eighteenpence. These were the highest prices which could be obtained by the law, which in those days regulated all such matters; and if any fault was discovered in either the quality or the quantity, the dealers were punished by fine equivalent to four times the value of the wine which had been sold (28 Hen. VIII. ch. 14). These prices would appear ridiculously low were it not that, owing to the subsequent increase of the value of money, a penny then would purchase as much wine or beer as a shilling would now.

[107] Macpherson, ii. p. 70.

[108] Froude's 'History of England,' vol. i. p. 52, etc.

[109] 27 Henry VIII. cap. 25, and Macpherson ii. p. 85.

[110] The *spirit* of the "Trades Unions" of the present day is almost as exclusive as anything in the Middle Ages.

[111] 2 & 3 of Philip and Mary, cap. 11.

[112] Macpherson (under A.D. 1544) notices a similar case on the part of the makers of coverlets at York (ii. p. 92).

[113] Harleian MSS. 660. See also, for debasement of the currency in the later years of Henry VIII., Hawkins' 'Silver Coins of England.' Lond., 1841.

[114] Froude, Harleian MSS. 660.

[115] Burnet.

[116] MS. Domestic, Ed. VI.

[117] Froude, vol. v. p. 349.

[118] Domestic MSS., reign of Elizabeth.

[119] An organised system of smuggling, only less desperate in the way in which it was carried out, prevailed along the west coast of Sussex in 1826-1831.

[120] Froude, vol. viii. chap. xii. To this petition there was attached the following curious addition:—"Long peace, such as it is by force of the Spanish Inquisition, becometh to England more hurtful than open war. It is the secret and determined policy of Spain to destroy the English fleets and pilots, masters and sailors, by means of the Inquisition. The Spanish king pretends that he dare not offend the Holy House, while it is said in England we may not proclaim war against Spain for the revenge of a few, forgetting that a good war may end all these mischiefs. Not long since, the Spanish Inquisition executed sixty persons of St. Malo in France notwithstanding an entreaty to the king of Spain to stay them. Whereupon the Frenchmen armed and manned forth their pinnaces, and lay in wait for the Spaniards, and took a hundred and beheaded them, sending the Spanish ships to the shore with the heads, leaving in each ship only one man to relate the cause of the revenge, since which time the Spanish Inquisition has never meddled with those of St. Malo."

[121] Froude, vol. viii. p. 447.

[122] In the midst of such terrible outrages it is surprising how peace with Spain was so long maintained, and this can only be accounted for by the strong religious feeling which then prevailed to such an extent among the people of both countries, that their governments, even if they had the power and inclination, do not seem to have used sufficient vigour in suppressing their individual revenge and love of plunder. Numerous vessels cleared from the ports of England and France to prey upon Spanish, Portuguese, and any other Papists whom they might encounter; and although their acts were not formally recognised by Elizabeth, the officers of customs were not restrained from supplying them with stores, arms, ammunition, and, indeed, with whatever they required for their lawless exploits. In December 1562 one of these piratical rovers, commanded by Jacques le Clerc, called by the Spaniards Pié de Pálo ("Timber leg"), sailed from Havre, and captured a Portuguese vessel worth forty thousand ducats, as well as a Biscayan ship laden with iron and wool, and afterwards chased another "Papist" ship into Falmouth, where he fired into her and drove her on shore. The captain of the Spaniard appealed for protection to the governor of Pendennis, but the governor replied that the privateer was properly commissioned, and that without special orders from the Queen he could not interfere. Pié de Pálo then took possession of her as a prize, and afterwards anchored under the shelter of Pendennis, waiting for further good fortune. As it was the depth of

winter, and the weather being unsettled, five Portuguese ships, a few days later, were driven in for shelter. Ascertaining the insecurity of their position, they attempted to escape to sea again, but Pié de Pálo dashed after them and seized two out of the five, which he brought back as prizes.—Froude, vol. viii. pp. 450, 451.

[123] Flanders MSS., Rolls House.

[124] Flanders MSS., Rolls House.

[125] Sir Peter Carew to the Council, April 17, 1565, MSS. Domestic, Eliz., vol. xxxvi.

[126] Council Register, August 1565.

[127] Hakluyt, vol. iii. p. 594; first voyage of Mr. John Hawkins. Macpherson thinks that this expedition was the first English slaving cruise (ii. p. 135).

[128] Da Silva to Philip, Nov. 5, 1563, MS. Simancas.

[129] So called from the port whence she had been purchased by Queen Elizabeth.—Macpherson, ii. 140.

[130] Froude, vol. viii. p. 474.

[131] These expeditions usually consisted of from two to four vessels, ranging from sixty-five to two hundred and fifty tons register each; and one or two pinnaces for the purpose of navigating shallow waters, ascending rivers and creeks, landing and shipping cargo, and so forth. They were, as a rule, fitted out and armed, ostensibly for protection, by a number of adventurers, who, having associated themselves together for the purpose, either chartered the requisite number of vessels, or found the capital to purchase and equip them for sea, the capital being divided into shares. Of these the person in charge of the expedition and the masters of the vessels generally held a considerable number. In a few instances, especially when the expedition consisted of only one vessel and a pinnace, the captain himself was the sole owner of ship and cargo. The rendezvous of these vessels after sailing from England was either Madeira or the Cape Verde Islands, whence they sailed wherever profit or plunder guided their course. Their profits in some instances were enormous.

[132] Froude, Da Silva to Elizabeth, October 6, 1567, Spanish MSS., Rolls House.

[133] Sir John Hawkins to Elizabeth, Sept. 15, 1567, Domestic MSS., Rolls House.

[134] The sum has been estimated at no less than one million of pounds sterling.

[135] Froude's 'History of England,' vol. ix. p. 360.

[136] Froude, vol. ix. p. 370, *et seq.*; and Macpherson, ii. p. 146.

[137] Froude, vol. ix. p. 430.

[138] Domestic MSS., 1572.

CHAPTER IV.

Certainty of war with Spain—Secret preparations for the invasion of England, and restoration of the Catholic faith—Philip intrigues with Hawkins, and is grossly deceived—The Spanish Armada, and England's preparations for defence—Destruction of the Armada, July 19, 1588—Voyages of discovery by Johnson—Finner and Martin Frobisher—Drake's voyage round the world, 1577—His piratical acts and return home, 1580—First emigration of the English to America—Discovery of Davis's Straits—Davis directs his attention to India—Fresh freebooting expeditions—Voyage of Cavendish to India, 1591, which leads to the formation of the first English India Company, in 1600—First ships despatched by the Company—The Dutch also form an East India Company—Extent of their maritime commerce—They take the lead in the trade with India—Expedition of Sir Henry Middleton—Its failure and his death—Renewed efforts of the English East India Company—They gain favour with the Moghul emperor of India, and materially extend their commercial operations—Treaty between English and Dutch East India Companies—Soon broken—Losses of East India Company—Sir Walter Raleigh's views on maritime commerce, 1603—His views confirmed by other writers opposed to his opinions—The views of Tobias, 1614—His estimate of the profits of busses—The effect of these publications—Colonising expeditions to North America—Charles I. assumes power over the colonies—English ship-owners resist the demand for ship-money—Its payment enforced by law—Dutch rivalry—Increase of English shipping—Struggles of the East India Company—Decline of Portuguese power in India—The trade of the English in India—Increase of other branches of English trade—Ships of the Turkey and Muscovy Company—The Dutch pre-eminent—The reasons for this pre-eminence.

Certainty of war
with Spain.

It was impossible for Philip to endure any longer the insults and injuries sustained by his people. Their patience had become exhausted; no wonder! The flag of Spain, they said with much truth, no longer afforded them protection. To make matters worse, the English minister at the court of Madrid, during the whole of the time that these wrongs were being perpetrated by English cruisers, was professing the most sincere friendship in the name of his Queen. "It was she," he said, "who had the greatest reason to complain, as the Duke of Alva, without the slightest provocation, had arrested English ships and goods in the harbours of the Low Countries."

Secret preparations
for the invasion of
England, and
restoration of the
Catholic faith.

But, though anxious to avoid war with England, Philip was not to be deceived by the professions of friendship and fair words of her minister. He, however, waited his time. When that time came he proposed to himself measures of retaliation which he conceived to be worthy of the proud and powerful Spanish nation. With this

view ever before him, he kept his secret and matured his arrangements until he felt that he could accomplish effectually his plans. To be slow and silent, to take every precaution for success, and then to deliver suddenly and unexpectedly the blow so long seriously but vaguely impending, was the policy he intended to pursue. When he did strike, he said to himself, the blow he intended should be terrible. His coasts had been plundered, his commerce destroyed, his colonies outraged by English desperadoes, in whose adventures he had heard that the Queen herself had become a partner. The seizure of his treasure he felt and knew was simply piracy on a gigantic scale, committed by the government itself. English harbours had been the home of a Dutch privateer fleet; ships built in England, armed in England, and manned by Englishmen had held the Channel under the flag of the Prince of Orange; and if Alva attempted to interfere with them, they were sheltered by English batteries. Dover had been made a second Algiers, where Spanish gentlemen were sold by public auction. The plunder of the privateers was openly disposed of in the English markets, even royal purveyors being occasionally its purchasers. Philip felt, and not without cause, that he was free in equity from any obligations to a nation which had set at defiance the usages of civilised countries, or to a government which had permitted and even aided these piratical expeditions. Open war would have been the legitimate remedy; but that did not suit his policy, and he thought that the wrongs and insults his people had sustained demanded a retribution of a more terrible character. He had also his own ends to serve on behalf of the Catholic faith, and he knew that if, while inflicting a summary though revolting punishment upon England, he could restore the people to the Church of their fathers, Catholic Europe would applaud his conduct, while the Pope would of course readily grant him pardon for any crimes he might commit for so just an end. In a word, the design he had been so long secretly maturing was nothing short of an invasion of England, the murder of Elizabeth, and the establishment of Mary Queen of Scots on the throne of that country.

Philip intrigues
with Hawkins, and
is grossly deceived.

Some of the old aristocracy of England, including the Duke of Norfolk, had too readily become converts to his views of restoring the supremacy of the Catholic Church. Froude in his 'History of England' relates with even more than his usual ability^[139] an extraordinary intrigue whereby Philip thought he had secured for his scheme the services of Sir John

Hawkins! The greatest freebooter of that freebooting age, with whose reputation Philip had become so terribly familiar that he had never read his name on a despatch without scoring opposite to it a note of dismay, had, by some unaccountable means, worked upon his credulity to such an extent that this negro hunter, who had sacked Spanish towns and plundered Spanish churches, was supplied by Philip with large sums of money to fit out a naval expedition, with the full conviction that he would render material aid to the cause of Spain in the invasion of England, and in the restoration of the Roman Catholic supremacy! Even the Spanish ambassador resident in England, who had no suspicion of treachery, was delighted at so important an acquisition to the Catholic cause, “and told the king that he might expect service from Hawkins of infinite value,”^[140] as he had “sixteen vessels, one thousand six hundred men, and four hundred guns, all at his disposition, ready to go anywhere and do anything which his Majesty might command, so long as it was in the Queen of Scots’ service.” With this fleet increased to twenty vessels, and equipped with Philip’s money, and manned in part with English seamen, whom he had further duped Philip into releasing from the Seville dungeons, Hawkins sailed for the Azores to lie in wait for the Mexican gold fleet!

The Spanish
Armada and

England’s
preparations for
defence.

Cherishing the vain hope that the English freebooter would render him powerful assistance, Philip despatched, after three years’ careful preparation, his famous Armada, comprising all the naval forces then at the disposal of the Peninsula. He had the most perfect confidence in the result. The invasion and subjugation of England were to his mind matters that could not admit of doubt; nor had the government and people of this country much hope of resisting so formidable a fleet, consisting as it did of one hundred and thirty-two ships and twenty caravels, amounting together to fifty-nine thousand one hundred and twenty tons, exclusive of four galliasses and four galleys, the whole manned by thirty-two thousand seven hundred and nine men of all ranks, under the command of the Duke of Medina Sidonia. But, though the defence appeared to be hopeless, the feeling of despair seems never to have entered the minds of the English people, who with one accord made the most strenuous efforts to meet this apparently overwhelming force. London, ever foremost in its loyalty, furnished Elizabeth with large sums of money, the citizens rivalling with each other in the amounts they

raised, and furnishing double the number of ships and men required by the royal edict. The same patriotic spirit pervaded the whole of the country, especially the seaport towns and the merchant marine. The collective force of the English fleet has often been published,^[141] and in abstract may be stated as follows:

	Ships.	Tons.	Mariners.
The Queen's ships, under Admiral Lord Howard of Effingham, consisted of	34	11,850	6,279
Serving with the Lord High Admiral	10	750	230
Serving with Sir Francis Drake	32	5,120	2,348
Fitted out by the City of London	38	6,130	2,710
Coasters with the Lord High Admiral	20	1,930	993
Coasters with Lord Henry Seymour	23	2,248	1,073
Volunteers with the Lord High Admiral	18	1,716	859
Victuallers (store transports?)	15	...	810
Sundry vessels, of which particulars are wanting	7	...	...
	197	29,744	15,785

Destruction of the
Armada, July 19,
1588.

This return shows that almost two-thirds of the comparatively small force, which achieved in less than twenty-four hours the destruction of the Armada of Spain, consisted of merchant vessels, many of which must have been small craft, for though the number of vessels exceeded those of Spain, the tonnage and proportion of their crews were only about one half; yet so thoroughly complete was the defeat of the great fleet which Philip had been so many years in preparing, that out of the one hundred and thirty-eight sail despatched from the Tagus to invade England, only fifty-three returned to Spain, the remainder being either sunk, destroyed, captured, or wrecked upon the English coasts. ^[142]

Voyages of
discovery by

While events were maturing which, with the assistance of Hawkins, ultimately led to the complete overthrow of the Spanish intrigues, English seamen were exploring seas then unknown, in search, it may be, of plunder, like their compeers in the English Channel, but professedly, though not in all cases ostensibly, to discover other lands, and to develop new sources of commerce. The spirit of enterprise which had fitted out fleets of privateers was equally ready to adapt itself to more laudable, if not in every instance to more legitimate sources of gain, and, during the whole of the disreputable exploits and expeditions to which we have briefly alluded, the rage in England for commercial adventure had become quite as great as that which had a century before prevailed in Spain and Portugal.

Johnson,

Finner,

The voyages of Hawkins to the coast of Guinea and to the West Indies in 1562 and 1563 had given fresh vigour to the spirit of adventure. In 1565 Richard Johnson, Alexander Kitching, and Arthur Edwards were sent by the Russia Company into Persia by way of the Caspian Sea, a journey in those days of great peril and of the most tedious character, where they obtained for their employers numerous commercial privileges. In December of the following year, George Finner, a shipowner of Plymouth, set sail on his own account with three ships and a pinnace to Guinea and the Cape Verde Islands, where he had a desperate but successful encounter with seven large Portuguese vessels off Terceira.

In 1576 the celebrated Martin Frobisher equipped an expedition with the view of reaching China by a north-west passage. It consisted of only the

and Martin
Frobisher.

Gabriel of twenty-five tons, and of another vessel of similar size, the *Michael*, with a pinnacle of ten tons; yet the difficulties to which the English merchant ships were exposed, by reason of the length of the voyage to India by way of the Cape of Good Hope, combined with the hostile policy of the Portuguese and Spaniards, induced this daring and skilful seaman to venture upon this perilous undertaking. But though it failed, as all similar undertakings have failed, Frobisher discovered Greenland, and reached the straits which now bear his name in 63° 8′ north latitude.

Drake's voyage
round the world,
1577.

In 1577 Francis Drake, the colleague of Hawkins, and alike famous and notorious, undertook his memorable voyage round the world. ^[143] Two years before Oxenham had, it is true, but unknown to Drake, built a pinnacle in which he sailed down one of the streams flowing into the Pacific, and had the honour of being the first English navigator who had ventured upon the waters of that great ocean; to Sir Francis, however, is due the credit of its more complete exploration. For this distant and hazardous voyage he had been provided with five vessels: the *Pelican*, of one hundred tons, commanded by himself as admiral, the *Elizabeth* of eighty tons, the *Swan* of fifty, the *Marigold* of thirty, and the *Christopher*, a pinnacle, of fifteen tons; the crew of the whole amounting to one hundred and sixty-four men. With these small vessels, having cleared out ostensibly for Alexandria in Egypt, on the 3rd of December, 1577, he reached the river La Plata on the 14th of April, 1578, and entered Port St. Julian, where Magellan's fleet had anchored a few years before, on the 20th of June of the same year, and having passed the Straits of Magellan was driven back southwards to Cape Horn.

His piratical acts,
and return home,
1580.

It is not our province, much less our pleasure, to furnish details of Drake's piratical proceedings on the coasts of Chili and Peru. We may merely state that the capture of a Spanish vessel with 150,000*l.* of silver on board, off Payta, crowned all his previous successes of that character. Resolving to return home by a north-west passage, he sailed one thousand four hundred leagues without seeing land, a marvellous expedition in those days, until, in 48° north latitude, he fell in with the American continent, making thence one of the Pellew Islands and the eastern coast of Celebes. After

encountering many perils, and failing of course to find any passage to the North, he reached the Cape of Good Hope, and finally arrived in England on the 3rd of November, 1580. A large portion of the treasure he had captured was sequestered by government at the instance of the Spanish ambassador, and restored to its rightful owners, but a considerable surplus remained to satisfy the exploring freebooter, and to stimulate the cupidity of fresh adventurers. ^[144]

The success of Drake paved the way to a new and more brilliant epoch in the history of maritime commerce. The love of adventure mingled with hopes, however vain, of obtaining incalculable wealth, combined with the knowledge that the Queen, shutting her eyes to Drake's heinous delinquencies, had dined on board his ship and conferred on him the honour of knighthood, ^[145] all tended to incite hosts of enterprising mariners to offer to undertake remote and hazardous expeditions. In the course of sixteen years from the date of his return, no fewer than six of these were equipped and despatched to the southern seas, the commanders mingling the peaceful pursuits of trade with the depredations of pirates whenever circumstances tempted them to plunder; but by these successive voyages the general outline of the main continents of Asia and America became tolerably well understood.

First emigration of
the English to
America.

Somewhere about this period Sir Walter Raleigh ^[146] furnished the first accurate information respecting the eastern sea-board of North America. In an expedition consisting of two small barks, fitted out by him, Sir Richard Greville, and others, the configuration of the coasts of Florida and Virginia became known, and as these districts were represented as "scenes laid open for the good and gracious Queen to propagate the gospel in," the natives being "soft as wax, innocent, and ignorant of all manner of politics, tricks, and cunning," a fresh expedition, headed by Sir Richard Greville, himself laid the foundation of many practical plans for their colonisation. These were happily attended, even in their infancy, with considerable success. Indeed the many inducements offered in the shape of a rich soil, pliable natives, hopes of gold, and of the propagation of the Protestant faith could hardly fail to encourage emigration on, for those times, a tolerably extensive scale.

Discovery of
Davis's Strait.

1585.

Davis directs his
attention to India.

It was also about this period that John Davis made the discovery of the straits which bear his name, Convinced that a north-west passage to India must sooner or later be discovered, the merchants of London fitted out two small vessels, the *Sunshine* of fifty tons with twenty-three hands, commanded by Davis himself, and the *Moonshine* of thirty-five tons and nineteen men, commanded by Captain William Bruton. These vessels sailed from Dartmouth on the 7th of June, 1585, and reached as far north as latitude $66^{\circ} 40'$, discovering the straits justly named after him. A second voyage during the following summer inspired Davis with such hopes of success that he wrote to one of his owners, William Sanderson, a mathematical instrument maker, "that he had gained such experience that he would forfeit his life if the voyage could not be performed, not only without further charge, but with certain profit to the adventurers." In his third voyage, during which he sailed with open water up the same straits as far as 73° north latitude, he was equally sanguine of success, and on his return to England, after again failing in his object, he writes, "The passage is most probable, and the execution easy," an opinion which, more or less, prevailed even until our own time. But his fourth voyage was altogether so unsuccessful that the owners of the ships under his charge were led to direct their attention to India by way of the Cape of Good Hope, and to these regions Davis made no less than five voyages, but was, unfortunately, killed in his last voyage by some Japanese pirates off the coast of Malacca, in December 1605.

Fresh freebooting
expeditions.

The destruction of the Spanish Armada, somewhere about the close of Davis's last attempt to discover a north-west passage to India, had rendered the voyage to that favoured land by way of the Cape of Good Hope a much less perilous undertaking than it had previously been. England had now become "Mistress of the seas," and her people embraced the maritime position they had achieved in their characteristic manner. Many more freebooting expeditions were now launched than had previously been attempted. The fleets of Spain and Portugal having for the time been swept from the seas, the shipowners of London, who had lent their aid to destroy the Armada, quickly followed up the blow by an expedition on their own account against the country whose vessels of war they had destroyed. Other cities and

towns, too, eagerly joined them in their daring adventures. Ipswich, Harwich, and Newcastle sent their quota of vessels, and Elizabeth herself, subscribing sixty thousand pounds, furnished six ships towards this very questionable expedition, the whole fleet numbering one hundred and forty-six vessels.^[147] Not satisfied with ravaging the coasts of Spain and Portugal, and capturing a great number of the ships of the enemy, these too enterprising shipowners captured sixty sail of vessels belonging to the Hanse Towns destined for the Peninsula.

A private expedition of this character so deeply mortified the Spaniards that Elizabeth, though a very prominent participator in it, at first thought of releasing the vessels belonging to the Hanse Towns; but on ascertaining that the Hanseatic League meditated serious designs of revenge for the loss of their shipping privileges in England (having held a meeting at Lubeck to take hostile measures against England), she ordered the whole of the ships and property which had been captured to be condemned, with the exception of two of the smallest vessels, which were despatched to carry the unwelcome news to the Hanse Towns of the misfortunes of their comrades.

Voyage of Thomas Cavendish to India, 1591, which leads to the formation of the first English East India Company, in 1600.

Amid the many cruises now made in search of gain not the least important, however unfortunate, was the voyage undertaken to the East Indies by Thomas Cavendish^[148] in 1591; its object, like most of the expeditions of the period, being to cruise against the Portuguese, who by this time had formed there important and valuable settlements, especially at Ormuz and along the coast of Malabar. Although his expedition proved a failure, the merchants of London ascertained from those who had been engaged in it, more fully than they had done from any previous navigators, the immense value of the Eastern trade and the vast profits realisable by its systematic development. Their representations urged the establishment of factories and the carrying on by such agencies a very extensive and lucrative trade. Each successive voyage added to the experience of the shipowning classes, and hence various private individuals undertook similar enterprises, incited, perhaps, as much by the love of adventure as by the hope of profit.

Such were the preludes to the East India Company, by far the largest and most important commercial undertaking recorded in history. Through Mr.

Thorne, an English merchant, whom we have already noticed as resident at Seville while Cabot was chief pilot of Spain, a complete knowledge was obtained of the course of the Spanish and Portuguese trade with the East, as he furnished a report on this subject to certain merchants resident in London, many of whom had for some time considered the project of establishing direct relations of their own with India. Consequently in the year 1600, on the petition of Sir John Hart of London, Sir John Spencer, Sir Edward Micheburn, William Candish or Caundish, and more than two hundred other merchants, shipowners, and citizens of London, this great company was formed, having a common seal as a body corporate, under the title of the Governor and Company of merchants trading to the East Indies. The Company was allowed many powers and privileges by the Crown, including that of punishing offenders either in body or purse, provided the mode of punishment was not repugnant to the laws of England. Its exports were not subjected to any duties for the four first voyages, important indulgences were granted in paying the duties on imports, and liberty was given to export 30,000*l.* each voyage in foreign coin or bullion, provided 6,000*l.* of this sum passed through the Mint. But not exceeding six ships, and an equal number of pinnaces, with five hundred seamen, were allowed to be despatched annually to whatever station might be formed in India, with the additional provisoes that the seamen were not at the time required for the service of the royal navy, and that all gold or silver exported by the Company should be shipped at either London, Dartmouth, or Plymouth. ^[149]

First ships
despatched by the
Company.

The stipulated capital of 72,000*l.* having been raised, almost as soon as the association had been mooted, the Company equipped five vessels to open the trade, consisting of the *Dragon*, of six hundred tons, her commander, according to the practice of the day, receiving the title of “Admiral of the Squadron;” the *Hector*, of three hundred tons, with the vice-admiral in command; two vessels of two hundred tons each; and the *Guest*, a store ship of one hundred and thirty tons. ^[150] The men employed in this expedition were four hundred and eighty, all told; the cost of the vessels and their equipment, 45,000*l.*, while their cargoes absorbed 27,000*l.*, the whole of the remaining capital of the Company. They had on board twenty merchants as supercargoes, and were fully provided with arms and ammunition—an exceedingly necessary precaution in those days. The

voyage proved successful; relations were formed with the king of Achin, in Sumatra, and a pinnacle having been despatched to the Moluccas and a factory established at Bantam, the ships returned to England richly laden.

The Dutch also form an East India Company.

But the English East India Company soon found in their trade with India a much more formidable rival than either the Spaniards or Portuguese. The people of the Netherlands had long been successful navigators. They had for more than a century carried on a large and profitable commercial intercourse with England, and, at the commencement of the reign of Elizabeth, the value of the trade between the two countries was estimated at 2,400,000*l.* per annum, then considered so large that the merchants engaged in it were said to “have fallen into the way of insuring their merchandise against losses by sea by a joint contribution.”^[151] This is the first notice of any mutual assurance association in England, though the principles and practice of insurance were probably known to the ancients, and would seem to be referred to in the compilation popularly known by the name of ‘The Rhodian Law.’

Extent of their maritime commerce.

They take the lead in the trade with India.

Expedition of Sir Henry Middleton.

Its failure and his death.

The separation of the Dutch provinces from the crown of Spain had induced their merchants to seek more distant and more lucrative channels of employment for their ships, while their superior information respecting Spanish and Portuguese affairs gave them a marked advantage over their English competitors in the valuable trade of the East. They had now supplanted the Portuguese^[152] in the Moluccas, driven them out of their most valuable trade with Japan, and become the predominant naval power in the Indian seas, a power they long maintained. Finding England, however, a more stubborn rival, they employed all their influence and artifices to molest the ships of the Company and other English traders. Just, in fact, as the Moors had endeavoured to ruin the Portuguese in the opinion of the native princes of India, so the Dutch, having expelled the Portuguese from the chief trade of the East, now resorted to any expedient, either by secret intrigue or open force, to drive the English merchant vessels from the same localities. But the profits realised in their first expedition had inspired the London merchants with

fresh energy. Having obtained a new charter (31st of May, 1609) for fifteen years, the Company set about constructing the *Trades' Increase*, of one thousand two hundred tons, the largest ship hitherto built for the English merchant service. At her launch, and at that of her pinnacle, of two hundred and fifty tons, bearing the equally appropriate name of the *Peppercorn*, the Company gave a great banquet, at which the dishes were of china-ware, then a novelty in England. With these vessels, and a victualling bark of one hundred and eighty tons, and the *Darling*, of ninety tons, Sir Henry Middleton, who had been placed in command, set sail for Mocha, on the Red Sea, where, ensnared on shore by the Muhammedans, eight of his crew were massacred, sixteen others disabled, and he himself severely wounded. Proceeding thence to Bantam, the *Trades' Increase* was unfortunately wrecked, and here Middleton, broken down by misfortunes and disasters, died, thus closing one of their most unfortunate expeditions on record.

Renewed efforts of the English East India Company.

The Company, however, persevered in their Eastern undertakings, and in 1611 despatched two other expeditions to the Indies; one consisting of a single ship, the *Globe*, which, though absent for nearly five years, owing to the artifices of their opponents, realised two hundred and eighteen per cent. on the capital invested; the other, consisting of the *Clove*, the *Hector*, and the *Thomas*, comparatively small vessels, which, though absent only three years, was even more successful: another expedition, which immediately followed, though absent only twenty months, earned in that time a profit of no less than three hundred and forty per cent. ^[153]

They gain favour with the Moghul Emperor of India, and materially extend their commercial operations.

Having opened negotiations with the Moghul emperor of India, Jehangir, the Company obtained the privilege of establishing a factory at Surat, and in return for the payment of certain fixed custom duties, secured their vessels and property against the hostility of the Portuguese, and their still more formidable rivals the Dutch. They also contrived to obtain a footing in Japan, through the influence of one William Adams, a native of Kent, who, having been pilot in one of the earliest Dutch expeditions, had settled there, and had gained the confidence of the emperor, from whom he received many favours. It is to be regretted that the intercourse thus formed was allowed to fall into abeyance after the death of Adams ^[154] in 1631, and that Europe,

during the long period since, has, till quite recently, derived little or no benefit from a commerce likely to become second only to that of China.

When, in 1614, the English Company despatched the *New Years Gift*, of six hundred and fifty tons; the *Hector*, of five hundred; the *Merchant's Hope*, of three hundred; and the *Solomon*,^[155] of two hundred tons, they for the first time consolidated their profits into one common stock. In this expedition they were fortunate enough to repel the Portuguese in their attack upon one of the ports belonging to the Moghul emperor, thus materially strengthening their relations with that powerful Indian monarch. An event so fortunate was promptly followed by the despatch of Sir Thomas Roe as ambassador from England to his court, where he resided until the year 1619. Numerous privileges were then granted to the Company, whose ships now traded with Achin, Tambee, and Jewa, in Sumatra, where they established factories, as well as to Surat, in the dominion of the Moghul, to Ferando in Japan, and to Bantam and Batana, in Java. They also carried on trading operations, to a greater or less extent, with Borneo, Banda, Malacca, Siam, Celebes, and the coasts of Malabar and Coromandel.^[156]

Treaty between the English and Dutch East India Companies, soon broken.

So prosperous had their affairs now become, that in 1617, when the stock of the Company had reached a premium of two hundred and three per cent., the Dutch East India Company were induced to suggest an amalgamation of the two companies, with a view to crush their common enemy, the Portuguese, and to exclude all other shipping from obtaining a footing in India. Though this scheme was never carried into effect, the two companies concluded, in 1619, a treaty of trade and friendship, whereby they should cease from rivalry, and apportion the profits of the different branches of commerce between them.^[157] But the treaty, like most others of a similar character, was made only to be broken, and in the course of the following year the Dutch governor-general really, though erroneously, under the impression that the English had gained undue advantages, attacked their possessions of Lantore and Pulo-Penang. A long series of hostile acts ensued, including the massacre of various Englishmen by the Dutch in Amboyna, and numerous conflicts between the merchant vessels of both countries, resulting in the exclusion of the English from the valuable trade of the Archipelago, and in losses most disastrous to the Company.

Losses of the East
India Company.

Thus, in a few years after the conclusion of a treaty which professed so much and performed so little for the benefit of either party, the Dutch had gained so complete an ascendancy over the English traders, that, notwithstanding their valuable acquisition of the island of Ormuz in the Persian Gulf, and the prospect of still being able to conduct a lucrative trade with the East, the Directors seriously meditated relinquishing all they had gained, and liquidating the affairs of the Company. They had already abandoned their scheme of the Greenland^[158] fishery, which had been incongruously intermingled with their East Indian adventures, and had withdrawn from Japan, notwithstanding the great encouragement they had received for the prosecution of its valuable trade. With an increased capital of more than one million and a half, their stock had decreased one half in value, and so powerful had the Dutch now become, that the Company for the time seems to have lost all hope of being able to compete against them and the Portuguese, who still maintained an important position in India. This great rivalry for maritime supremacy, which commenced during the reign of Elizabeth, formed one of the most important subjects for discussion during the whole lifetime of her successor.^[159]

Sir Walter Raleigh's
views on maritime
commerce, 1603.

Sir Walter Raleigh gives a graphic account^[160] of the state of things then existing, and of the condition of the English mercantile marine shortly before the union of the crowns of England and Scotland. In this remarkable paper, which contains many commercial principles far in advance of the age in which the author lived, Sir Walter states that the merchant ships of England were not to be compared with those of the Dutch, and that while an English ship of one hundred tons required a crew of thirty men, the Dutch would sail such a vessel with one third that number. Illustrative of the wise and progressive policy of the Dutch, he enumerates various instances where that country had an immense advantage over England, and where, following the example of ancient Tyre and of more modern Venice, Holland became the depôt of numerous articles “not one hundredth part of which were consumed” by the Dutch, while she gave “free custom inwards and outwards for the better maintenance of navigation and encouragement of the people to that business.”

Directing attention to the liberal policy of some other of the nations of his time, Sir Walter mentions the fact that France offered to the vessels of all nations free custom twice and sometimes three times each year, when she laid in her annual stock of provisions, and also in such raw materials as were not possessed by herself in equal abundance, adding that La Rochelle was an entirely free port, a small toll levied for the repair of the harbour alone excepted. Denmark also granted free custom throughout the year, with the exception of one month between Bartholomew-tide and Michaelmas. The merchandise of France, Spain, Portugal, Turkey, Italy, and England were then transported chiefly by the Dutch into the east and north-east kingdoms of Pomerania, as well as into Poland, Denmark, Norway, Sweden, Germany, and Russia, and some other countries of the south. Sir Walter, with great force, adds, "and yet the situation of England lieth far better for a store-house to serve the south-east and the north-east kingdoms than theirs do, and we have far the better means to do it if we apply ourselves to do it."

Sir Walter says with equal truth that, although the greatest fishery in the world is on the coasts of England, Scotland, and Ireland, Holland despatches annually to the four great towns on the Baltic, Königsburg, Elbing, Stettin, and Dantzic, herrings worth 620,000*l.*, while England does not send a boatload; nor even a single herring up the Rhine to Germany, whose people purchase annually from the Dutch fish to the value of 400,000*l.* "We send," remarks this enlightened statesman, "into the east kingdoms yearly only one hundred ships, and our trade chiefly depends on Elbing, Königsburg, and Dantzic," while "the shipowners of the low country send thither about three thousand ships, trading with every city and port and town, making their purchases at better rates than we do on account of the difference of coin." "The Hollanders," he continues, "send into France, Spain, Portugal, and Italy, from the east kingdoms, passing through the Sound yearly, with Baltic produce, about two thousand merchant ships, and we have none in that course. They traffick into every city and port around about this land with five or six hundred ships yearly, and we, chiefly, to three towns in their country and with forty ships; the Dutch trade to every port and town in France, and we only to five or six." Sir Walter estimated, that the Low Countries at the time he wrote (1603-4) possessed as many vessels of all sorts as eleven kingdoms of Christendom, including England; that they built one thousand ships annually, and "yet have not a

tree in their whole country;" and that all their home products might be carried in a hundred ships. Nor does his complaint end here. He alleges that "our Russian trade was going to ruin," and that, though for seventy years the English had carried on a very considerable commercial intercourse with Moscow, they had only four vessels engaged in that trade in the year 1600, and only "two or three" in 1602, whereas the Hollanders, who, about twenty years previously, had only two ships in the trade, had now increased the number of their vessels to thirty or forty, and were still increasing.

His views confirmed by other writers opposed to his opinions.

The views of Tobias, 1614.

Making every allowance for the spirit of exaggeration adopted, doubtless with the laudable intention of inciting English merchants and shipowners to greater exertions, "so that our ships and mariners might be trebled," there is, nevertheless, in the paper he presented to King James a very large amount of valuable information with regard to the merchant shipping of the period, and much still more valuable advice. It is manifest from what he states that in consequence of the laws which even then greatly favoured foreign shipping, the English stood no chance of competing with the Dutch. But though the shipowners of England were loud in their complaints against the privileges granted to foreign nations, neither their rulers nor they themselves were disposed to entertain Raleigh's liberal policy. They preferred that of one "Tobias, gentleman fisherman and mariner" [what a number of Tobiases we have had since then!] who afterwards published a pamphlet entitled "The best way to make England the richest and wealthiest kingdom in Europe," in which he recommends the construction of one thousand busses upon a "national design,"—"each ward in London to provide one Busse, every company, and, if needs be, every parish, one," in order to compete with the Dutch. To encourage these investments he furnishes an estimate of the capital required and of the probable profits.

His estimate of the profits of busses.

A busse, measuring from sixty to eighty tons, complete for sea, with her fishing implements and appurtenances, would cost, he estimates, somewhere about 500*l.* sterling, and such a vessel, he calculated, would hold good for twenty years with very little expenditure in the way of repairs, and only about 80*l.* annually for the wear and tear of her tackle, ropes, masts, and sails. Presuming that the busse caught herrings equal to one hundred last of

barrels, which he values at 10*l.* per last, she would earn in the gross 1000*l.*; and as he calculates that her expenses, exclusive of tear and wear, would not exceed 335*l.*,^[161] he shows a large and tempting profit to those corporations, companies, and parishes who might be induced to act on his advice. Having satisfied, as he conceives, all pecuniary considerations, he appeals to their patriotism by showing the advantage to the nation of having ready for its service in the hour of need “lusty-fed youngers bred in the Busses, who could furl a top-sail or sprit-sail, or shake out a bonnet in a dark and stormy night, and not shrink from their duty like the surfeited and hunger-pinched sailors who made the southern voyages.” Nor were the proverbial remarks of the Dutch forgotten, who taunted the English with the sneer, “that they would make them wear their old shoes.”

The effect of these publications.

Although this appeal did not produce the desired patriotic effect, it directed public attention to the depressed state of the merchant shipping interest of England, which reached so low an ebb in 1615 that there were only ten ships belonging to the port of London of more than two hundred tons burthen.^[162] In that year the corporation of the Trinity House presented a petition to the King pointing out, in very strong terms, the evil results which would ensue from a perseverance of such neglect of the shipping interest, and recommending a highly protective policy; but numerous persons who were deeply interested in maintaining the merchant navy in a high state of prosperity, opposed altogether any measure prohibiting, as had been proposed, the export of British commodities in foreign bottoms. When, however, extremes meet, the necessity of a change becomes apparent, and the unfair advantages so long granted to foreign nations as against English shipping had at length roused the people to adopt those retaliatory measures of legislation which, ignoring Raleigh’s sound advice, eventually culminated in the highly protective maritime laws of Cromwell.

Colonising expeditions to North America.

But amid the depression which then prevailed, English shipowners did not overlook the advantages to be derived from trading with the newly discovered world of North America. Though the expeditions to that country, promoted by Sir Walter Raleigh and his relations, had terminated disastrously, the merchants of London and Bristol frequently despatched small vessels thither with trinkets and articles of little value, exchanging

them profitably for the skins and furs of the native Indians. In 1602 Captain Gosnold^[163] made for the first time the voyage direct across the Atlantic, without sailing by way of the Canaries round the West Indies and through the Gulf of Florida, as had been the previous practice of navigators. In 1606, two maritime companies, under charter from King James, were authorised to colonise and plant the American coast within the 34th and 41st degrees of latitude. One of these, known as the South Virginia Company, afterwards formed the provinces of Maryland, Virginia, and North and South Carolina; and the second, the “Plymouth Adventurers,” was empowered to establish plantations as far as the 45th degree of latitude, their assignment of territory embracing Pennsylvania, New Jersey, New York, and other New England towns. In the same year the “London Company” sent out two ships and founded “James-Town” in Virginia; and in 1612 Bermuda was also settled.

1625.

Charles I. assumes power over the colonies.

When Charles I. ascended the throne he commenced putting into execution one of those doubtful prerogatives of the crown which, pushed too far, led to a fatal revolution. Either under the pretence or conviction that the government of the transatlantic colonies could be more advantageously carried on by himself and his council, through the intervention of a governor resident on the spot and appointed by the Crown, he assumed the direct government of Virginia, and not only treated the charter of the Company as annulled, but broadly declared that colonies founded by adventurers, or occupied by British subjects, were essentially part and parcel of the dominion of the mother country.^[164] The Company very justly complained that they had expended 200,000*l.* in the Virginian undertaking alone, and as yet had not received any returns. Nevertheless the whole of that province, as also the West India Islands not previously taken possession of and colonised, were occupied, under the authority of the Crown of England, within a few years afterwards. About that period also the Bahama Islands were appropriated, together with North and South Carolina, Georgia, Tennessee, and the southern part of Louisiana. This immense territory was granted to Robert Heath and his heirs, and afterwards conveyed by him to the Earl of Arundel. In like manner Maryland, previously considered a part of Virginia, became the property of Lord Baltimore, a Roman Catholic, a grant afterwards

productive of deep religious animosities, when the Puritans were driven to Virginia. In 1641 Lord Willoughby made a settlement at Surinam on the southern continent of America. The commercial results of these colonisation schemes were at first slow and unsatisfactory, but they eventually exercised a vast influence on merchant shipping, and contributed essentially to the gradual consolidation and greatness of England.

The French, whose commercial navy was now beginning to emerge from obscurity and insignificance, formed settlements in Acadia, the present Nova Scotia, and extended their dominion into the territory now known as the New England States. But in 1620 both they and the Dutch, who had founded the town of New Amsterdam (now the city of New York and capital of the province), were dislodged by English adventurers. ^[165]

English shipowners resist the demand for ship-money.

Passing on to events in England connected with merchant shipping, by far the most conspicuous about this period were the attempts of that unwise and unfortunate monarch Charles I. to burden the mercantile community with the expense of a fleet which his, perhaps natural, anxiety to support the Palatinate had rendered necessary. Demanding from the city of London and from the other seaports the requisite number of ships or their equivalent in money, the people of the maritime towns not actually dependent upon trade passively resisted, thereby making the burden yet more intolerable to those who remained on the coast. The proclamation which consequently followed, commanding the parties who had withdrawn to return to their dwellings, brought about the famous struggle of Hampden, who resisted the writs as illegal. The first writ recited that certain “Thieves, pirates, and robbers of the sea, as well Turks, ^[166] enemies of the Christian name, as others, gathered together and wickedly took by force, and spoiled the ships, goods, and merchandise, not only of the King’s subjects, but the subjects of our friends in the sea, which hath been defended by the English nation.” The writ went on to recite how men “were carried away into captivity, and the merchant shipping of the kingdom endangered by the preparations made to molest our merchants. Accordingly, the Princely honour of the King required that force should be employed to defend the kingdom, guard the seas, and give security to shipping.” Upon these grounds Ship-money was demanded by the King, without the sanction and authority of Parliament, and, out of this unconstitutional proceeding arose

the quarrel which had so fatal a termination for that ill-advised monarch. The city of London petitioned the King, setting forth that they were exempted by their privileges from the demand. But the King persevered; Hampden was defeated in the courts of law, which, under the influence of corrupt judges, pronounced the writ legal, and thus the levy of Ship-money, at first peculiar to the maritime towns, was imposed upon the entire kingdom.

Its payment
enforced by law.

This great struggle was no doubt the proximate cause of the final severance of the merchant vessels from the royal navy, as, after the Restoration, the constitutional action of Parliament provided the requisite funds for the maintenance of a royal navy on a permanent footing, so that the shipowners were relieved from duties which at intervals pressed heavily on their class, and only contributed to the cost of a national navy in a rateable proportion together with their fellow subjects. Combined with other concurring causes which supervened, these legislative measures gave hereafter no ordinary impulse to the merchant shipping of England. But they engendered a sanguinary civil war, besides a series of much more sanguinary struggles with the Dutch, to disenthral the English merchant service from the state of dependence in which it had lingered during many ages.

Dutch rivalry.

While England was fighting for political freedom, the Dutch, having already become a free republic, were the real masters of the seas. They were now at the height of their maritime glory. Their merchant ships penetrated to every quarter of the globe. No wonder then that they openly and derisively claimed the dominion of the Narrow Seas. We may now smile at such absurd pretensions, but these were then the cause of deep alarm and excitement in England, for statesmen well knew that the dominion of the Narrow Seas was an attribute of real and material power. It was at this period that the great Selden wrote his celebrated work, [\[167\]](#) which was honoured with every mark of royal approbation and popular commendation. The Dutch, having a vast number of merchantmen afloat, feared the increasing naval power of England, but nevertheless made all the encroachments they dared. Their busses fished on her coasts and were fired upon, but at last paid the stipulated sum of 3000*l.*, tribute to the King, to obtain his consent to their prosecution of the coast fisheries for one summer, undertaking to continue

the payment annually. This personal bribe to the King did not, however, render the proceedings of the Dutch more palatable to the parties who conceived themselves damnified.

Increase of English shipping.

Struggles of the East India Company.

Sir William Monson states that the shipping of the port of London had so augmented during the first fifteen years of the reign of Charles I. that it was now able to supply a hundred sail of stout vessels capable of being converted into men-of-war; while ten large ships had during that period been added to the effective force of the Royal Navy; but that, so far as regards the East India Company, there was no improvement. Their commanders in the Indian seas had still to fight their way harassed and outraged by the Dutch and the Portuguese at every point. Whatever may have been the state of the relations of the sovereigns of the various European subjects who trafficked in India, it was the proverb of the sailors of those days, “that there was no peace beyond the line.” Sanguinary encounters were constantly taking place, and the trade of the English to India at the period to which we refer had become so precarious that the most enterprising of her capitalists could hardly be induced to embark in it. Even in 1646, when the Company obtained possession of Madras,^[168] which for a long period was the chief seat of their commerce and power, only 105,000*l.* was subscribed for the new stock rendered necessary by this acquisition. It was feared that the Company would not, in their commercial operations, be able to contend successfully with the formidable Dutch and Portuguese monopolies which had been established in the East, and, though Portugal and Spain were then beginning to decline from the exalted position they had so long held, Holland, in possession of public liberty and a wise system of commerce, was in the zenith of her commercial and maritime greatness, and proved a rival whom the most enterprising of English merchants might well hesitate to encounter.

Decline of the Portuguese power in India.

But by this time the rapacious extortions of the Portuguese, combined with their cruelties, had so excited the natives of India against them, that there was great rejoicing when the overwhelming naval power of the Dutch dealt a fatal blow to their ascendancy in the East. When, however, the Dutch power predominated, the people of India, in shaking off

the yoke of their former tyrants, found that they had only changed their oppressors. In 1638 the Dutch expelled the Portuguese from the trade of Japan, and in 1656 Ceylon was surrendered to them. Their settlements at the Cape of Good Hope formed from an early period a convenient point whence they could direct their shipping eastwards; and the most common vessels they then employed in the trade (as may be seen from [the imperfect sketch on next page](#)) were so much in advance of even the best vessels then in the service of the English East India Company, that it is not, for these and other reasons, surprising that the Company should have had considerable difficulties in competing successfully with the Dutch, and at times in raising capital sufficient for their purposes.



A.D. 1621.

The trade of the
English in India.

In a return presented to Parliament on the 29th of November, 1621, there will be found an account of the trade carried on by the Company with the East Indies during the previous twenty years, and of the difficulties they had then to encounter. Out of eighty-six ships which they had in that time despatched, eleven were surprised and seized by the Dutch, nine were lost, five were worn out by long service, going from port to port in India, and only thirty-six had returned home with cargoes, the

remaining twenty-five being then in India, or on their way home. Indeed it is surprising that they were able to maintain any position whatever in India in opposition to the Dutch, whose settlements at that time prove that they enjoyed a virtual, and sometimes a real, monopoly of the trade in spices, cloves, nutmegs, mace, and cinnamon, the products exclusively of their Eastern possessions, including the Banda Islands, Moluccas, Ceylon, Sumatra, Tonquin, with part of Bengal and along the coast of Coromandel, besides stations at Surat and Gombroon, and important factories on the Malabar coast.^[169]

But though the Dutch have the credit of first introducing tea into general use in Europe, they were unfortunate in their attempts to establish themselves in China. The expensive embassy they sent to Peking proved of no service to them, and although they afterwards took possession of Formosa, they soon got involved in a war with the Chinese in which they were so rudely handled by the Governor of Tchi-chieng, that they were compelled to evacuate it, and all their attempts to displace the Portuguese, who since 1517 had carried on a trade between the Chinese ports and Europe, proved unavailing.

Increase of other branches of English trade.

Although unsuccessful in the East, as compared to of other the Dutch, the maritime commerce of England now rapidly increased in other quarters. The Merchant Adventurers' Company still carried on a successful trade, having not yet shaken off the old prejudices in favour of associations, though Lord Bacon had made it a reproach "that trading in companies was most agreeable to the English nature, which wanteth that same general vein of a republic which runneth in the Dutch, and serveth them instead of a company."^[170] The Turkey Company now conducted an important and profitable commercial intercourse with the Levant;^[171] London having in a great measure superseded Venice in that valuable traffic, even supplying that city with articles of Indian produce. By this time, also, English merchants had become importers of Indian produce into Constantinople, Alexandria, Aleppo, and many other Mediterranean ports.

Ships of the Turkey and Muscovy Company.

The Turkey Company alone despatched their ships, not yearly, but monthly, indeed almost weekly, thus securing a large proportion of that important trade;^[172] while the

Muscovy Company, on the other hand, in virtue of their exclusive monopoly, enjoyed with their own ships almost undisputed possession of the maritime commerce of the Baltic. ^[173]

The Dutch pre-
eminent.

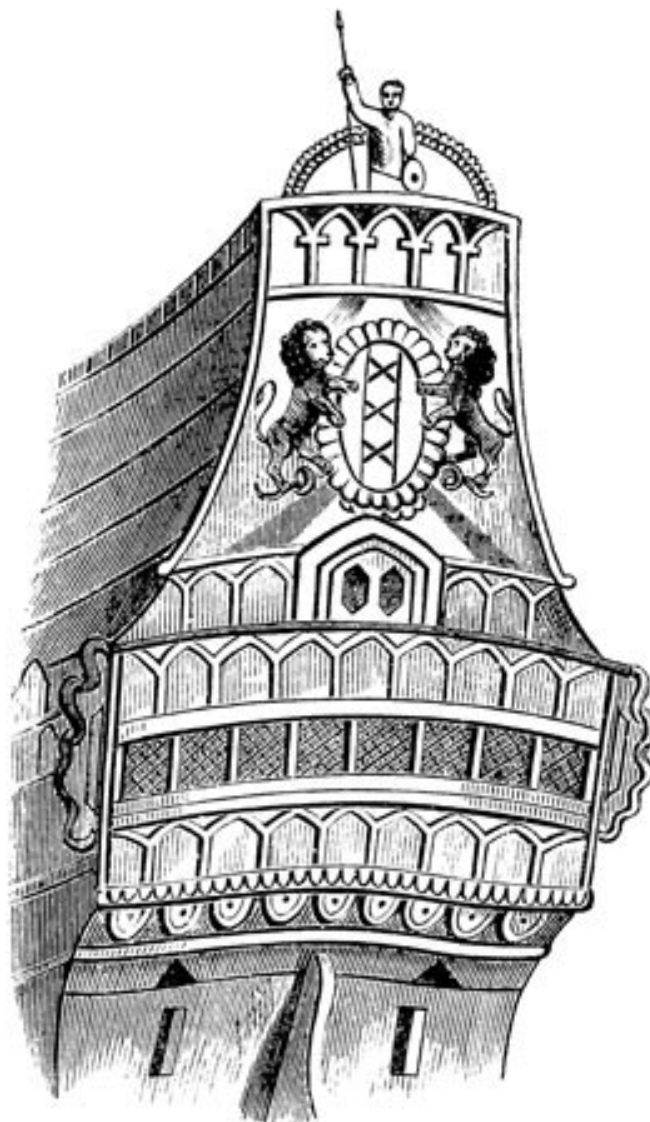
The reasons for this
pre-eminence.

But though English merchant shipping now stood higher than ever it had done, the Dutch were still far in advance of England, as of all other nations. Their commercial marine had been gradually arriving at its then high state of prosperity, through the efforts of many centuries; ^[174] the commerce of the north of Europe having, as we have seen, concentrated itself at a somewhat remote period in the Low Countries, and more especially in Holland, where after the destruction of Antwerp, when the States shook off the yoke of Spain, a fortunate combination of circumstances, improved by industry and economy, concurred to render them thus powerful in their commercial marine. No doubt the freedom of her government, tended materially to improve these natural, physical, and adventitious causes. Her fisheries formed a nursery for her seamen, from which her fleets could be constantly reinvigorated with hardy and able sailors. In addition to these highly favourable circumstances, Holland, during the long period that other nations of Europe were engaged in intestine or international wars, contrived generally to avoid intermingling in their affairs or quarrels, moreover was often able to adhere to this policy, partly through her prudence, and, still more so, as her comparatively small territory inspired little jealousy in surrounding nations. Like Tyre of old and Venice in her earlier history, Holland escaped from kindred causes convulsions which overthrew more powerful neighbours.

But apart from other considerations, the maintenance of the power of Holland may be ascribed in great measure to the care with which she always preserved her navy, so necessary in those times, if not to create, at least to maintain her commercial and maritime prosperity. While Spain and Portugal, either from internal corruptions, the supineness of their rulers, or national decay, neglected their navies, Holland zealously maintained a predominating naval force at sea, and was thereby enabled, if not to perpetuate her naval greatness, at least to retard its decline and fall. To her own people and to every foreigner who sought an asylum in her territories, she granted the fullest religious and political freedom, and though it is difficult to trace any special free-trade enactments, as regards her

navigation, to which her maritime success can be ascribed, abundant reasons for that success may be seen in her policy of non-intervention with the affairs of other nations, and in the facilities she afforded for the importation of every material suitable for ship-building purposes, and of the wool for her manufactures, which the English people preferred parting with to working it up at home. But, above all, the Dutch owed their success in maritime pursuits to many of the ancient laws of England, which, as we have seen in numerous instances, actually forbade any English exports in home bottoms, thus enabling the Dutch to grasp and keep to themselves large and valuable portions of the carrying trade, and thus laying the foundation of their wealth and greatness.

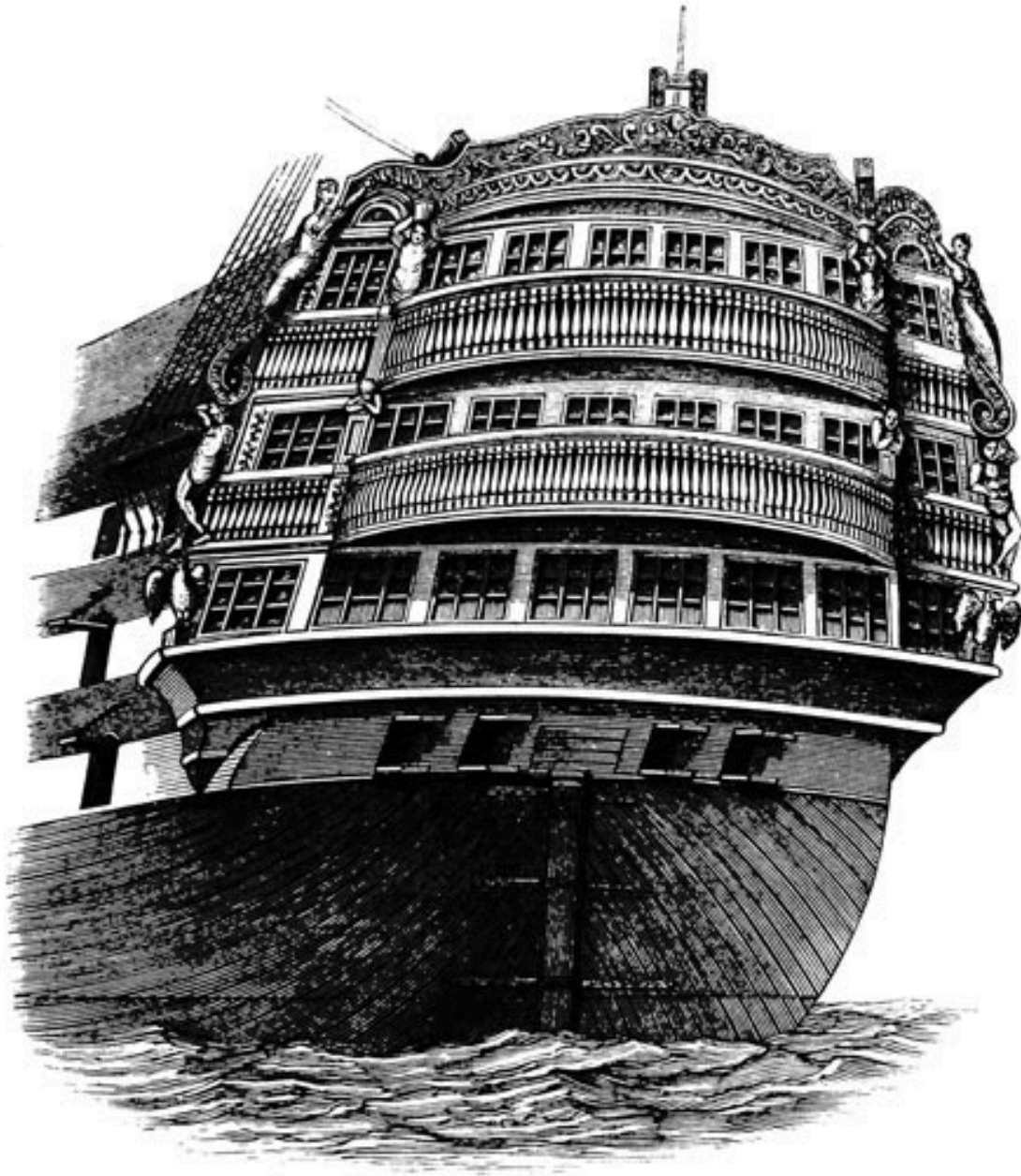
When the English were at last awakened by the advice of Sir Walter Raleigh and other writers who followed him to a full consciousness of their own strength and of their previous legislative errors, they, with characteristic energy, resolved to adopt the most effective measures then in their power to remedy existing evils, although in attempting to remove the yoke which ancient custom, combined with their own inconsistent and absurd laws, had imposed, they by rushing into the opposite extreme laid the foundation for those stringent navigation laws which, curiously enough, a republic was the first to enforce.



That they had maritime opponents of no ordinary kind to contend against, may be seen in the illustrations of some of the Dutch ships of the period which have been preserved. In the Print-room of the British Museum there will be found a drawing by Hollar of the stern of one of their largest and finest Indiamen, from which [the above](#) is a copy.

No doubt this vessel was built, like the English Indiamen of much more modern times, so as to be applicable for war when the necessity arose, as well as for the ordinary purposes of commerce; but neither England nor any other nation possessed at that period any vessel engaged in commerce which could be compared to her either in dimensions, construction, or equipment. Indeed the finish of the stern of one of the finest modern vessels

of the English navy, *The Asia*, constructed towards the close of the first quarter of the present century, and of which [this cut](#) is an illustration, shows no very marked improvement during the two centuries which had elapsed.



FOOTNOTES:

[139] Froude, vol. x. p. 259, *et seq.*

[140] Don Guerau to Philip, MSS. Samancas.

[141] It will be found in detail in the Cottonian MSS. at the British Museum. The English fleet was commanded by Lord Howard of Effingham, Drake, Hawkins, and Frobisher.

[142] See also Macpherson, ii. pp. 185, 186. The tables in the College Hall of Westminster School are made of Spanish chestnut, said to have been taken from some of the ships of the Armada.

[143] This was the second voyage round the world, but the first made by English ships. A chair is preserved in the Bodleian Library at Oxford made of the wood of the *Pelican*.

[144] In 'Maritime and Inland Discovery,' vol. ii. p. 156, the date of Drake's return is given as Sept. 26, 1580; and this is also the date given in the 'World Encompassed,' p. 162.

[145] There must have been strong reasons indeed to have induced Elizabeth to have conferred such honours upon Francis Drake. On the 26th May, 1572, long before war had been declared between England and Spain, he had set out with his brothers John and Joseph on an expedition of pure piracy in two small vessels, manned by seventy-three seamen almost as daring as himself. Starting from the Gulf of Florida, he landed near St. Martha, where he built a fort and commenced an attack on the house of the Spanish governor, which he had ascertained contained a very large amount of bar-silver. Defeated in his designs to plunder it, he set out with eighteen Englishmen, part of his crew, and thirty runaway slaves, whom he had entered into his service, for Vera Cruz, which he plundered. Thence he proceeded again toward Nombre de Dios, capturing on the road a caravan of mules laden with silver, appropriating as much of it as he and his gang of marauders could carry away, and returned to England with his ill-gotten spoils in August 1573.

[146] Raleigh's first personal expedition was in 1595; but he had already assisted in equipping no less than seven, the earliest in 1585 ('Maritime and Inland Discovery,' ii. pp. 205-209).

[147] Macpherson, ii. p. 189. Sir Francis Drake commanded the naval and Sir John Norris the military forces on this occasion.

[148] The first voyage of Cavendish is worthy of more note than it has received. Starting in July, 1586, he circumnavigated the globe, passing through the Straits of Magellan westwards, in eight months less than Drake. He was the first English navigator to discern the value of the position of St. Helena, to describe with accuracy the Philippine Islands, and to bring home a map and description of China. He is believed to have been only twenty-two years of age when he took the command in his first most adventurous voyage. In a third voyage he was shipwrecked in 1591 or 2 on the coast of Brazil, and died there.

[149] Pattern-pieces for the silver intended for circulation in the East Indies, bearing the name of Queen Elizabeth and the date 1601, exist in various collections. No coins, however, were actually struck from the dies of the patterns.

[150] See further details in Macpherson, ii. pp. 216-218. The money actually sent out he states to have been Spanish.

[151] Anderson's 'Annals of Commerce,' vol. ii. p. 208, quoting from Guicciardini. The Dutch sent fourteen ships to India in 1602. Macpherson, ii. p. 227.

[152] It is likely that the great value of their new trade with the Brazils led the Portuguese to care less for the rich but more distant and dangerous trade with the far East.

[153] See Meadows Taylor's 'Man. of India Hist.,' pp. 289-322; 'Mar. and Intl. Discov.,' vol. ii. pp. 195-198.

[154] The tomb of Adams is still in existence, is fenced round, and treated with the greatest respect by the Japanese people.

[155] Accounts differ in the names of the four vessels.

[156] See further details on all these matters in 'Calendar of State Papers, East India, 1617-1621,' in the 'Polls series,' Lond. 8, 1872.

[157] The text of this treaty is given by Macpherson, ii. pp. 293-295.

[158] The English Greenland fisheries seem to have paid best between 1598 to 1612.—Macpherson, ii. p. 265.

[159] However great our objections to every form of monopoly, it may well be questioned whether the merchant shipping of England could at this period have made any advance against the Dutch, Spaniards, Portuguese, Venetians, and others in their commercial intercourse with the East unless some inducement had been offered to great corporations to take the first and most hazardous risks of competing with established rivals. Indeed, most persons in England at this time felt, and not without valid reasons, that it would be impossible for individual capitalists to cope successfully with the powerful maritime associations which had in a great measure absorbed the most lucrative branches of commerce throughout the world. For these reasons the East India Company had been established, and for precisely similar reasons the English Government had been induced in 1606 to grant a charter to a company formed for trading to the Levant, though in this instance each individual traded on his own account subject to general regulations framed for the guidance of the whole of the members of the association.

[160] 'Select observations of the incomparable Sir Walter Raleigh relating to trade, as it was presented to King James.'—Published, London, 1696. See also Macpherson, vol. ii. pp. 233-239.

[161] Made up thus:—a hundred last of barrels, 72*l.*; salt, 88*l.*; men's wages for four months, 91*l.*; and their provisions during that time, consisting of bread, 21*l.*; beer, 42*l.*; bacon and butter, 18*l.*; and peas, 3*l.*

[162] See miscellaneous and interesting details relative to English trade for the year 1615, with Sir Dudley Diggs' 'Defence of Trade,' etc., in Macpherson, vol. ii. pp. 279-282.

[163] Captain Gosnold had been employed in several of the previous voyages. He appears to have traded direct with the Indians, in lat. 42°, in peltry, sassafras, and cedar-wood. He was also the first to sow English corn in the Island of Martha's Vineyard (so named by him). In the following year (1603) two ships from Bristol and one from London traded successfully to the same parts (Macpherson, ii. pp. 229-246, etc.). The most remarkable of all these expeditions was that of Captain John Smith, who sailed from London in 1607, and is deservedly considered the real founder of the colony of Virginia (see 'True Travels, Adventures, etc., of Captain John Smith,' Lond. 1627). Captain Smith is the hero of a famous old ballad, called 'The Honor of a London 'Prentice; being an account of his matchless manhood and boyhood.'

[164] Mr. Lucas has recently brought together and edited, with some excellent notes, the most important of the 'Charters of the Old English Colonies in America,' Lond. 8, 1850. Among these will be found three charters, one to Virginia, to Massachusetts, Connecticut, and Rhode Island respectively, Massachusetts' second charter, and that to New Hampshire and Maine. With these are also the "proprietary" charters to Maryland, the Carolinas, Pennsylvania, and Delaware; and also those of New York, New Jersey, and Georgia. The careful study of these documents shows clearly on what liberal terms our ancestors commenced colonising, when we bear in mind that, according to the theory of those times, colonies were assumed to be the property of the Crown.

[165] The first settlement of the Puritans was at New Plymouth, in 1621; the second and more important expedition secured Massachusetts, in 1627 and 1628, under the Plymouth Company (Macpherson, ii. p. 307).

[166] It is certain that the Barbary corsairs had come to the “chops” of the Channel and captured English merchantmen with impunity, though this rare occurrence was used by Charles and his advisers merely as a pretext for their questionable demands (Macpherson, ii. pp. 284 and 302). The earliest treaty between England and Algiers for the mutual protection of shipping is dated April 10, 1682 (Hertslet, ‘Treaties,’ etc., vol. ii. p. 58).

[167] ‘Mare Clausum, 12mo. 1636.’

[168] The rajah of Bijnagar built, in 1646, for the English the original Fort St. George, at Madras, to mount twelve guns (Meadows Taylor, p. 389).

[169] Macpherson gives some interesting details of the respective values of the Indian and Turkey trades, from a curious pamphlet published by Mr. Munn, in 1621, and entitled, ‘A Treatise, wherein it is demonstrated that the East India trade is the most national of all trades’ (ii. pp. 297-300).

[170] Letter of advice to the King on the breach with the new Company, Feb. 25, 1615, vol. v., p. 259.

[171] In the [Appendix No. 6](#), will be found a list of the vessels then employed in the trade between England and Turkey.

[172] Roberts’ ‘Map of Commerce,’ p. 270, ed. 1700, original edition being 1638.

[173] The cargoes from England of the vessels of the Muscovy Company chiefly consisted of the cloths of Suffolk, Gloucestershire, Worcestershire, and Coventry, dyed and dressed; kerseys of Hampshire and York; lead, tar, and a great quantity of Indian spices, indigo and calicoes; their return cargoes consisting of raw silks from Persia, Damascus and Tripoli; galls of Mosul and Tocat; camlets, grograins, and mohairs of Angola; cotton and cotton yarns of Cyprus and Smyrna, and sometimes the gums of India and drugs of Egypt and Arabia, with the currants and dried fruits of Zante, Cephalonia, and the Morea. The recital of cotton among these imports indicates that already the English had commenced the important business of weaving calicoes; and indeed, in a work published in 1641, Manchester is pointed out as the place where the raw material was made up, and when manufactured into “fustians, dimities and vermilion,” became an article of export for her merchantmen, a branch of business which has since reached an extent altogether unexampled in the history of commerce and navigation.

[174] Mons. Huet, in his celebrated ‘History of the Dutch Trade,’ claims for the Dutch the honour of having enjoyed their trade and navigation for a thousand years.

CHAPTER V.

English Navigation Laws—First Prohibitory Act, 1646—Further Acts, 1650-1651—Their object and effect—War declared between Great Britain and Holland, July 1652—The English capture prizes—Peace of 1654—Alleged complaints against the Navigation Acts of Cromwell—Navigation Act of Charles II.—The Maritime Charter of England—Its main provisions recited—Trade with the Dutch prohibited—The Dutch navigation seriously injured—Fresh war with the Dutch, 1664—Its naval results—Action off Harwich, 1665—Dutch Smyrna fleet—Coalition between French and Dutch, 1666—Battle of June 1 and of July 24, 1666—Renewed negotiations for peace, 1667—Dutch fleet burn ships at Chatham, threaten London, and proceed to Portsmouth—Peace concluded—Its effects—The Colonial system—Partial anomalies—Capital created—Economical theories the prelude to final free trade—Eventual separation from the mother country considered—Views of Sir Josiah Child on the Navigation Laws—Relative value of British and Foreign ships, 1666—British clearances, 1688, and value of exports—War with France—Peace of Ryswick, 1697—Trade of the Colonies—African trade—Newfoundland—Usages at the Fishery—Greenland Fishery—Russian trade—Peter the Great—Effect of legislative union with Scotland, 1707—The maritime Commerce of Scotland—Buccaneers in the West Indies—State of British shipping, temp. George I.—South Sea Company, 1710.

A.D. 1640-1650.

English Navigation
Laws.

First Prohibitory
Act, A.D. 1646.

Although the English people were jealous of the maritime power of Holland, and had often been annoyed by her arrogance, the two nations were still at peace. England, distracted by civil war, was not then prepared to adopt legislative measures which had for their object the curtailment of the commerce and maritime influence of the Dutch; but her rulers felt that they ought not to further encourage that influence by granting to the ships of their rivals the same advantages in her colonies they had so long possessed in her home ports. The possessions of England were steadily increasing in population and importance, and though she could not have contemplated such a country as America has now become,^[175] she saw sufficient in its early progress to justify the resolution to exclude the Dutch from participating in a trade she had herself established, and which bade fair to afford a large amount of valuable employment to her merchant shipping. Consequently, as soon as the English Parliament found time amid the domestic troubles, it enacted that no one in any of the ports of the Plantations of Virginia, Bermuda, “Barbadoes, and other places in America,” should suffer any goods or produce of the manufacture or growth

of the plantations to be carried away to foreign ports except in English ships.^[176]

Further Acts, 1650,

1651.

The shipowners of England speedily discovered that, under the circumstances in which they were placed, they were now legislating in a direction which, if not the wisest, was the only one that could at the time afford them relief and increase the means of obtaining remunerative employment for their property. Through their influence the policy thus initiated was pursued and strengthened. Four years afterwards they procured the passing of an Act prohibiting all foreign ships whatever from trading with the plantations of America except with a regular licence. And on the 9th of October of the following year the measure which for nearly two centuries was known as the “celebrated” Navigation Act of Cromwell came into operation. By this Act the navigation of the Dutch received a very serious blow; declaring as it did that no goods or commodities whatever of the growth, production, or manufacture of Asia, Africa, or America should be imported either into England, or Ireland, or any of the plantations of Great Britain, except in British-built ships, owned by British subjects, and of which the master and three-fourths of the crew belonged to that country. The unequivocal object of this clause was to secure to England, without however considering the interests of her colonists, the whole carrying trade of the world, Europe alone excepted.

Their object and effect.

Having done all that then appeared possible to secure the carrying trade of Asia, Africa, and America, the English Parliament now sought to obtain as much as was practicable of the import trade of Europe. Accordingly they further enacted that no goods of the growth, production, or manufacture of any country in Europe should be imported into Great Britain except in British ships, owned and navigated by British subjects, “*or in such ships as were the real property of the people of the country or place in which the goods were produced, or from which they could only be, or most usually were exported.*”^[177]

This stringent provision could only be aimed at the carrying trade of the Dutch, who had little or no produce of their own to export, and who for the reasons already mentioned had obtained a virtual monopoly of the carrying trade to many foreign markets. In such acts as these the long stifled feelings

of animosity, animated by deep commercial jealousy which had been smouldering for years against the Dutch, at last found expression and relief. So strong indeed had these feelings become, that when the States despatched an embassy to England to solicit a revocation of the navigation laws just passed, it was found necessary to appoint a guard to protect the envoys from the popular resentment openly expressed against them.

War declared
between Great
Britain and
Holland, April
1652.

England had now asserted the practical right to carry on her own over-sea trade in her own ships, and to obtain as much foreign trade as she could by her own industry and energy, and as this action was practically a defiance of the maritime supremacy of Holland, a struggle was evidently impending which could only be decided by an appeal to arms. But the Dutch amused the English Parliament with negotiations for a treaty, although in point of fact they had nothing to give as an equivalent for any concessions that England might make. In the meanwhile they got together one hundred and fifty vessels, and placing them under the command of Martin Tromp, ^[178] declared war against her in April 1652. As the desperate and sanguinary struggles which followed are matters of general history, it will be sufficient for our purpose if we recapitulate some only of the leading facts which show the effect of the war upon the merchant shipping of both countries.

The Dutch were at first, if not throughout, by far the heavier sufferers. Within a month of the declaration of war Blake captured one hundred of their herring fleet, together with twelve frigates of their convoy, sinking the thirteenth. He also made efforts to intercept five East Indiamen under the Dutch flag, which had endeavoured to get into port by sailing round Scotland, and he contrived to carry six more frigates into Yarmouth Roads. About the same period Sir George Ayscough, the admiral commanding in the Channel, having thirty-eight ships under him, made an attempt to stop the passage of a fleet of Dutch merchantmen, sailing under the protection of De Ruyter, another distinguished Dutch admiral, but after a furious engagement he was compelled to retire into Plymouth, and to leave a free passage for De Ruyter's convoy down Channel.

The English capture
prizes.

The English, however, again took possession of the Channel, and scarcely a day passed without Dutch prizes being brought into English ports: many of these having

Peace of 1654.

made long voyages to distant parts of the world, were on their homeward voyage without apprehension of war. Nor is it surprising that booty so valuable should have whetted the appetite of the English people for war. But happily, on the 5th of April 1654, a treaty of peace was concluded. Cromwell's enemies complained that in the treaty no mention was made of the sole right of the English to the fishing on their own coast, nor of any annual tribute to be paid by the Dutch for that privilege, which had been the case in the reign of Charles. They were displeased also that he gave up the right of search which Parliament had insisted upon; and, further, that he did not limit the number of Dutch men-of-war to be thereafter employed for the protection of their commerce. Cromwell, however, required in the treaty an admission of the English sovereignty of the seas, and the Dutch consented to strike their flag to the ships of the Commonwealth.^[179] We may add that this treaty made no reference to the obnoxious Navigation Act, although this was in all probability the actual cause of the war; as on this point neither Cromwell, the Parliament, nor the nation felt disposed to yield in the smallest degree.

Alleged complaints against the Navigation Acts of Cromwell.

It has been asserted that these laws at first occasioned loud complaints, to the effect "that while our own people (the English) had not shipping enough to import from all parts the goods they wanted, they were, nevertheless, by the Navigation Act debarred from receiving new supplies of merchandise from other nations, who only could, and till then, did import them."^[180] At a later period it was said "No doubt the people were right, the injustice was not seen at first, but the complaints being unheeded, the wrong dropped out of sight."^[181] No sudden revulsion, however, of a long established policy ever takes place without deep complaints from the parties whose monopoly, real or virtual, has been destroyed. But in this instance these alleged complaints had doubtless their origin in the mortification felt by foreign agents in London, whose principals abroad had for centuries enjoyed an undue share of the shipping trade of this country.

Navigation Act of Charles II.

During the ten years which followed the passing of the Act of 1651, the Legislature became more and more convinced of the efficacy of these prohibitive laws, and

The Maritime
Charter of England.

was prepared to render them practically even more stringent. If Charles II. could have reversed any of Cromwell's legislative measures with advantage or popularity, he and his court would gladly have taken such a step. But Charles and his ministers perceived the advantages which had already accrued from the legislation of the preceding government, and in the first year of his actual reign^[182] passed an Act (12 Charles II.) which obtained even from Sir Josiah Child, a liberal and enlightened merchant, the title of 'The Maritime Charter of England.'^[183] This Act may be deemed the complement of the Acts of 1646 and 1651, and its principles continued in force until the year 1849, when, under a totally different state of circumstances, they gave way to a system more liberal and better adapted to preserve that share of the trade of the world, both as manufacturers and carriers of merchandise, which Great Britain had acquired on the transfer of the maritime power of the Dutch to her own people two centuries before.

Its main provisions
recited.

Trade with the
Dutch prohibited.

The Act of Charles apparently modified Cromwell's law, by making the prohibition of "the importation of foreign commodities, except in British ships, or in ships belonging to the country or place where the goods were produced," to apply only to the goods of Russia and Turkey and to certain other specified articles, which could not be imported into the United Kingdom except in British ships. But as the enumerated articles comprehended almost all the chief articles of freight, it can scarcely be said that any relaxation of the principles of Cromwell's law was thus sanctioned. At all events, the supplemental statute of the 14th Charles II. fully carried into effect the declared intentions of the Legislature. By this Act all importation of a long list of enumerated goods, whether from Holland, the Netherlands, or Germany, was prohibited under any circumstances and in any vessels, British or foreign, under the penalty of the seizure and confiscation of the ships and goods.

The Dutch
navigation seriously
injured.

It would be vain to deny that, whatever prospective results in after times were produced by these laws, the Dutch trade and navigation suffered most seriously from them. The triumphant career of Blake against the Spanish navy in the Mediterranean had previously crippled the maritime power of Spain. The English had acquired a vast territory in North America,

and rich islands in the West Indies with a virgin soil. In the East they had surmounted their first difficulties in making settlements, and only required such protection as their own government could supply to become the general carriers of Indian produce to the chief consuming nations of Europe. As it was idle to expect relaxations of their prohibitive systems from France, Spain, or Portugal, the Parliament and the people saw clearly the necessity of maintaining at all hazards the maritime superiority of England, and by such means too as were then within their reach.

Fresh war with the Dutch, 1664.

Its naval incidents.

Action off Harwich, 1665.

The Dutch perceived in these regulations the augury of their maritime downfall, and a fresh war in consequence supervened, the origin of which we need not here discuss; indeed many circumstances concurred to bring about this second rupture. France had endeavoured, by secret intrigues, to embroil the English and the Dutch, in order that when their fleets had been crippled and destroyed, she might step in and acquire an undisputed maritime ascendancy. The conduct of the Dutch on the coast of Africa in excluding the African Company from trading to that country had given great umbrage. The King sent a fleet there, doubtless with no friendly intentions. On the other hand the Dutch complained that the English had forbidden the importation of Dutch commodities into England. The two countries were therefore ripe for a fresh war, but the Dutch endeavoured to gain time, so that their fleet of merchantmen might reach home previously to the declaration of war. Charles, however, without waiting for a formal declaration of hostilities, seized one hundred and thirty of their ships, laden with wine and brandy, homeward bound from Bordeaux, conveying them into English ports, where they were condemned as lawful prizes. Though such an act was rightly condemned as unjustifiable by the law of nations, the voice of the people forced the King into the war, and his desire to gain prize-money only accorded too well with the eagerness of the shipowners to plunge into another struggle with their powerful commercial opponents. War was consequently again declared, and a battle off Harwich took place on the 3rd (or 14th N. S.) of June 1665. The Dutch fleet under Cortenaar, Evertz, and Cornelis van Tromp, son of the famous Martin Tromp, was ordered to seek out the English, whose fleet was under the command of the Duke of York, Prince Rupert, and the Earl of Sandwich. It is unnecessary to detail the particulars of this celebrated engagement; suffice it to say that the

Dutch lost nineteen ships, burnt and sunk, with about six thousand men. The English lost only four vessels, and about fifteen hundred men; but the Dutch retired, with their remaining ships, to their own coasts, and the Duke of York refrained from pursuing them. ^[184]

Dutch Smyrna fleet.

In the meantime the Dutch Smyrna fleet and several of their East Indiamen, not daring to enter the English Channel, took refuge in the port of Bergen in Norway; but a plot was concerted between the kings of England and Denmark to seize these ships, worth several millions, and to divide the spoil. Through mismanagement, however, the scheme was defeated, and the Earl of Sandwich, who had been sent to carry out this intrigue, was so severely handled by the governor of Bergen, that the English ships were compelled to return home. A strong fleet of ninety-three ships, well equipped, under the command of De Ruyter, was then despatched from Holland to convey home the valuable merchant ships from Bergen, but a storm severely damaged this expedition, and ultimately twenty of the ships fell into the hands of the English.

Coalition between the French and Dutch, 1666.

Battle of June 1,

In the following year the affairs of England looked alarming, the States-General having induced the king of France to declare war against England, at the same time subsidising the king of Denmark, to enable him to keep a fleet at sea in the service of the allies. It is irrelevant to our main purpose to describe the tactics of the English and allied fleets; it will be only necessary to remind our readers that the English admirals, Monk and Prince Rupert, engaged the Dutch fleet under De Ruyter and Cornelis Van Tromp on the 1st of June, 1666, off the coast of Flanders, and, after a bloody struggle for four days, the English lost two admirals and twenty-three great ships, besides smaller vessels, six thousand men, and two thousand six hundred prisoners, while the losses of the Dutch amounted to four admirals, six ships, two thousand eight hundred soldiers, and eighty sailors. The latter of course claimed the victory, but the Londoners made bonfires as if they were the conquerors. ^[185]

and of July 24, 1666.

The two fleets soon put to sea again, and met on the 24th July, when another formidable struggle took place between the contending parties. The English had a hundred sail, the Dutch had eighty ships of the line and nineteen fireships,

the battle being fiercely disputed on each side with unequal and varying success; but, through an error of Van Tromp, the English beat De Ruyter, driving him into port; and afterwards made a descent upon the Dutch coasts, burning a hundred of their merchant ships and two men-of-war destined for convoys. The French fleet appeared in the Channel *after* the campaign was over, but whether it was in intelligence with the English court, while Louis XIV. only amused the Dutch with a hollow alliance, secretly rejoicing in the destruction of both the English and Dutch navies, and hoping that France might then step in and reap the benefit, certain it is that the Dutch received no real assistance from France.

Renewed negotiations for peace, 1667.

The Dutch fleet burn ships at Chatham, threaten London, and proceed to Portsmouth.

Renewed efforts were then made to procure peace. Charles, however, procrastinated until he had obtained a fresh and liberal vote of money from Parliament; and when, at length, negotiations were opened at Breda, claimed satisfaction for losses sustained before the treaty of 1662. The Dutch, believing the King to be trifling, and finding that he had not taken precaution to maintain his fleet upon a war footing, despatched De Ruyter to the Thames to force the English to come to terms. The Londoners were greatly alarmed. A strong chain was thrown across the Medway, but the Dutch, with an easterly wind and a strong tide, broke through it, destroyed the fortifications of Sheerness, burnt three large merchant ships, the *Matthias*, the *Unity*, and the *Charles V.*, which had been taken from them during the present war, and carried away with them the hull of the *Royal Charles*, besides burning and damaging several others. After this they pushed up the Medway as far as Upnor Castle, near Chatham, and burnt the *Royal Oak*, the *Royal London*, and the *Great James* before the eyes of the Dukes of York and Albemarle, who had just arrived with some troops. Fearing that the Dutch fleet would sail up to London Bridge, the English sunk thirteen ships at Woolwich, and four at Blackwall, and raised various platforms furnished with artillery to defend the approaches to the city. After committing all the damage he could in the Thames, De Ruyter sailed for Portsmouth with a design to burn the ships in the harbour, but, finding them secured, passed on down Channel and captured several vessels in Torbay. Thence proceeding eastwards, he routed the English off Harwich, and chased a squadron of nineteen men-of-war under Sir Edward Spragge, who was forced to retire into the Thames, thus

keeping the English coasts in continual alarm until the Treaty of Peace was signed in the following July.^[186]

Peace concluded.

By the Treaty of Breda each nation retained the goods and moveables they had respectively captured; and, by the nineteenth article, all ships of war as well as merchant vessels belonging to the United Provinces, meeting on British waters any of her ships of war, were required “to strike the flag and lower the sail as had been formerly practised.” Thus terminated this bitter and bloody struggle. If England suffered much, Holland, with a larger capital but fewer permanent resources, suffered still more severely.

Its effects.

Turning to events more within our province, it may be mentioned that, on the authority of Sir Josiah Child, the opponents of the Navigation Laws point out with exultation that, thirty years after these stringent Acts came into operation, “the Dutch were beating us in every quarter.” Such may have been the case in some special branches of commerce, but it is undeniable that, from the date of these laws, the merchant navy of England steadily increased; and that soon afterwards the power over the seas previously claimed by the Dutch was permanently transferred to the English. Whatever may have been the cause of these changes, whether the Navigation Acts, or “the stoppage of trade, insecurity of capital, inherited debts, and taxes on ships” sustained by the Dutch during the war, England’s maritime resources increased, while those of Holland declined; and London became what Amsterdam once was, the chief emporium of the commercial world. Perhaps the resolution of England to depend upon her own people instead of courting foreign aid by legislative measures, combined with the exclusion of foreign shipping from her rapidly-increasing colonial trade, had more to do with these changes than the other combined reasons which the political economists of various ages have assigned.

The colonial system.

Partial anomalies.

Capital created,

By what was known as the “Colonial System,” Great Britain secured not merely the exclusive carrying trade of all produce derived from her own plantations, but she exercised the monopoly of supplying them from this side of the Atlantic with such articles as they required or could afford to consume, while sharing in the carrying trade and commerce of those parts of the world to which

Economical theories the prelude to final free trade.

she had access in common with other maritime states. Many anomalies and some positive self-injuries, however, sprang out of this exclusive system, which of late years have been exposed in all their deformities. But it cannot be disputed, that whatever flagrant evils the exclusive colonial system engendered it was upon the whole one which tended materially to develop the maritime energies of British shipowners; and the rapidity with which the colonies in the West Indian Archipelago and on the continent of America rose to importance both in wealth and population, demonstrates that though not so advantageous as it otherwise might have been, it was certainly not as disastrous to the colonists as partial American historians would have us believe. There may at first have existed a paucity of sufficient capital and a deficiency of English ships to carry on with the fullest advantage the trade thus created; but this want was speedily supplied, and the foundation laid for an exclusive but highly flourishing trade and navigation, which continued in full vigour for more than a century, when the revolt of the North American Colonies formed a new epoch in history, and, by raising up an independent maritime people as direct rivals in the carrying trade of the world, gave a deathblow to a system no longer fitted for the new state of things. During this long interval the theory of trade and navigation became better understood. The French economists, ^[187] made intelligible and even popular by Adam Smith's great work, threw a flood of light on the faults prevailing in the most economical distribution of wealth in relation with colonies. But the arguments of theorists would have remained disregarded had the increasing number and influence of the American colonists and the attitude assumed by the Northern maritime powers not rendered it impossible to maintain a system now become obsolete, and the wisdom of the governments of both England and the United States effected a change which has proved not only to be safe, but salutary for all parties interested in this great commercial revolution.

Eventual separation from the mother country considered.

In the middle of the seventeenth century it was indeed unreasonable to expect that England, after her heavy expenditure on settlements all over the globe, would relinquish advantages from which the first adventurers, and ultimately the entire nation, anticipated some return for the amount invested in the plantations and in the ships fitted out for the carrying trade.

Even those writers who expatiate on the general unremunerative character of her colonial possessions, with especial reference to Canada, do not consider the foundation of colonies inexpedient, but, on the contrary, admit unreservedly “that colonies have been in their consequences highly advantageous to this, as they have been to most old settled countries in all ages.”^[188] Therefore, whatever differences of opinion may prevail respecting the relinquishment of the governmental powers of the mother country over a powerful colony as soon as it is capable of defending itself and of directing its own affairs, every person concurs in the expediency of forming new colonies, their eventual severance from the parent state being only a question of the more or less satisfactory progress they may make towards a position of independence. At the period when the English Navigation Laws were inaugurated in imitation of the successful policy of pre-existing maritime states, there is no doubt that the Dutch^[189] naval predominance on the seas rendered the distant possessions of Great Britain not only extremely insecure, but enabled her acute neighbours to carry away part of the prey which had been really acquired by her “bow and spear.”

Views of Sir Josiah Child on the Navigation Laws.

Relative value of British and foreign ships, 1666.

When these Acts were passed, and for some years afterwards, they created quite as much excitement and discussion as their repeal has caused in our own time. Even Sir Josiah Child,^[190] who took the lead among the few merchants of the period who questioned their policy, appears to have had strong protectionist views, one of which may be noticed, as it throws some light upon the cost of shipbuilding at that period. He proposes to impose a customs duty of no less than fifty per cent. on all Eastland commodities, timber, boards, pipe-staves, and salt imported into England and Ireland in any other than English-built ships, or at least in such as were not sailed by English masters and a crew whereof three-fourths were English. His reasons for this highly protectionist proceeding are that “the Danes, Swedes, and Easterlings will certainly, in a few years, carry off the whole trade, by reason of the difference of the cost of building the requisite ships, there and in this country.” Similar statements, we may remark, were the protectionist arguments used in our own day against the repeal of these same laws. “The cost,” he goes on to state, “of building a fly-boat of three

hundred tons in those countries would be 1300*l.* or 1400*l.*, whereas in England she could not be constructed for less than from 2200*l.* to 2400*l.*, which is so vast a disproportion,” he adds, “that it is impossible for an Englishman to cope with a Dane in that navigation under such discouragement.” The stranger’s duty of five or six pounds per ship each voyage was the only set-off against this alleged disadvantage, and in his opinion the prizes taken in the Dutch war alone enabled us to withstand that competition, Sir Josiah averring that “during the seventeen years the Act of Navigation had been in force, not one single English ship had been built for this, which we may call the Lower Baltic trade.”

Sir Josiah, it will be seen, estimates the cost of constructing an English ship at that time at somewhat under eight pounds per ton, while a vessel could be built by the Danes and Swedes at very little more than one half that price. We must, however, remember that in stating these prices he was arguing in favour of a certain line of policy, and, in doing so, may have made the cost of construction in the Northern ports of Europe considerably less than it actually was. Besides, so much depends upon quality and outfit that a price per ton, unless all the particulars are stated, gives only a vague idea of the actual value.

Another well-known writer of that period, Sir Henry Petty,^[191] estimates the value of the whole of the shipping of Europe, old and new, at eight pounds per ton. He also furnishes some valuable information with regard to the extent of the shipping of Europe at the time he wrote. Estimating the whole at 2,000,000 of tons, he apportions to the English 500,000, the Dutch 900,000, the French 100,000, the Hamburgers, with the subjects of Denmark and Sweden, and the town of Dantzic 250,000 tons, and he gives, which seems small, the remaining 250,000 tons as belonging to Spain, Portugal, and Italy. He further states that the Dutch East India Company had then a capital of 3,000,000*l.*, and that goods to the value of that sum were annually exported from Holland into England. The shipping belonging to France was then, it would appear, only one-ninth of that belonging to the Dutch, or one-fifth of that of Great Britain, which, on the authority of Dr. Charles Devonport, had doubled between 1666 and 1688, while her royal navy had in the same time increased from 62,594 to 101,032 tons.^[192]

British clearances,
1688, and value of
exports.

1692.

From another return^[193] we for the first time ascertain the annual clearances outwards from Great Britain, and the value of the cargoes of the ships. These in 1688 amounted to 190,533 tons of English, and 95,267 tons of foreign vessels, the gross value of these exports being 4,486,087*l.*, showing an annual increase not merely steady but rapid during the previous ten years. War, however, again harassed the people. France, the old enemy of England, now sought to pluck from her the laurels she had won from the Dutch, and to claim a maritime supremacy over both nations. Her naval force had now become so formidable, being augmented by numerous privateers, that it played havoc among the merchant vessels of Great Britain, destroying or capturing nearly the whole Smyrna fleet, consisting of many richly laden vessels, as also two of the English men-of-war which accompanied them.^[194]

War with France.

Such a disaster upon the element where England claimed supremacy was keenly felt, not merely by those persons who were interested in maritime affairs, but by the entire nation, while the direct loss sustained by the English was estimated by the French at one million sterling.^[195] The Turkey Company complained that, the Admiralty had neglected its duty; that spies in the pay of the French monarch were allowed facilities for ascertaining the strength and movements of the English fleets, and the destination of any ships worthy of capture. Numerous complaints were also made in Parliament, but, in the sequel, nothing was done to satisfy the nation or to compensate the parties directly interested for the losses they had sustained. The attitude, however, taken soon afterwards by the English fleet in the Mediterranean under the command of Admiral Russell,^[196] and the raising of the siege of Barcelona, with the undisputed command which she recovered over the Narrow Seas, restored the prestige of England, and forced the French to keep themselves cooped up in their harbours. But the war had proved disastrous to her commerce and her shipping; the clearances at its close, in 1696, having fallen to 91,767 tons, showing a decrease of no less than 98,766 tons in eight years, while the value of her exports during that period had declined to the extent of 1,356,567*l.*^[197]

The Treaty of Peace of Ryswick, concluded in 1697, brought with it great prosperity, the clearances outwards of British ships averaging in the

Peace of Ryswick,
1697.

following three years 393,703 tons annually, while the gross value of produce exported on the average in each of the same years reached 6,709,881, or three times more than it had been in 1696.

At this period the government paid for the hire of transports from the merchant service 716,220*l.* per annum, on an average of ten years. ^[198]

Trade of the
colonies.

African trade.

From the period of the Revolution in 1688 to the death of Queen Anne, the trade of the plantations had steadily and rapidly increased, employing five hundred sail of vessels, a large proportion of them being engaged in the transport of negroes from the coast of Africa. Though originally a monopoly in the hands of the African Company, ^[199] private speculation had entered so largely into it that, in 1698, an Act of Parliament gave permission to all the King's subjects, whether of England or of America, to trade to Africa on payment of a certain per centage to the Company on all goods exported or imported, negro slaves being nevertheless exempted from this contribution. The advocates of free trade considered the exemption a great boon to the colonies, as the competition of the private merchant vessels had greatly reduced the prices of slaves, whereby the British negro colonies had been enabled to undersell their rivals in the general market of the world. This process seems, however, to have had a twofold effect, or to have cut both ways. The keenest partisans for the unbounded liberty of commerce felt no scruple of conscience in depriving the poor Africans, who were only guilty of having black skins and woolly hair, of their liberty, in whatever part of the world they could be found; and on the east coast of Africa, where negroes were cheaper than elsewhere, the competition of the traders of various nations raised the price of human flesh. ^[200] Although the most hideous cruelties were practised to procure these slaves, the traffic continued to increase and, half a century afterwards, one hundred and fifty vessels were fitted out in one year for the east coast of Africa from the ports of France alone, transporting in the course of that year twenty thousand slaves to the island of St. Domingo.

Newfoundland.

The French, indeed, during the reign of Louis XIV. had encroached at all points on the English trade, especially on her fisheries at Newfoundland; hence William III. in

Usages at the fishery.

his declaration of war against that country in 1689, intimated “that whereas not long since the French had been accustomed to take licences from the British governor of Newfoundland for fishing in the seas upon that coast, and to pay tribute for such licences as an acknowledgment of the sole right of the Crown of England to that island, yet of late their encroachments upon his subjects’ trade and fishery there had been more like the invasions of an enemy than of becoming friends who enjoyed the advantages of the said trade only by permission.” But the capture of Nova Scotia at the commencement of this war restored English supremacy in that quarter. The preamble of an Act passed in 1698 for the encouragement of the trade with Newfoundland, declared it to be a beneficial trade to Great Britain, not only in so far as it employed great numbers of ships and seamen in those fisheries, but also in that it procured returns of valuable commodities direct from other countries in exchange for the produce of those fisheries. The prevailing customs at the fisheries were sanctioned expressly in this Act, one of the most important being that the master of any vessel from England who happened first to enter any harbour or creek in the island after the 25th of March should be admiral of the said harbour or creek during the ensuing fishing season, and should see the rules and orders laid down in the Act duly put into execution within the limits of the jurisdiction thus assigned to him. It was also expressly enacted that no subject of any foreign power “shall at any time hereafter take any bait, or use any sort of trade or fishing in Newfoundland, or in any of the adjacent islands;” though this complete exclusion of other rivals was not persevered in.

Greenland fishery.

A few years after the Revolution measures were taken to revive the Greenland fishery; and in 1692 a company, incorporated for carrying it on with a capital of 40,000*l.*, was granted by charter the exclusive possession of the trade for fourteen years. The preamble of their Act describes the previous trade to Greenland as “quite decayed and lost,” the merchants, who had been encouraged to enter into this business, in virtue of the previous Act of 1673, having only imported a small quantity of oil, blubber, and whale fins. They had found other nations enter into the trade with so large a number of ships, that the English fishermen were not enabled to compete with them on their separate interests; indeed the whole trade was then or soon after engrossed by foreigners. At length it was represented to the government that for several

years no ships had been despatched from England to Greenland, and that the produce of those fisheries had been wholly bought from foreigners, the prices paid being six times the rates they formerly were; and the memorial added that there were few, if any, English harpooners or English seamen skilled and exercised in whale-catching, so that “the said trade could not be regained nor carried on without foreign harpinierers, or upon individual risks without a joint-stock fund.” As, however, the Greenland fishery did not rally under the protective charter conferred upon the parties subscribing, an additional capital of 42,000*l.* was raised in 1696, and a new Act obtained, exempting the Company from all duties upon oil, blubber, and whale fins imported during the term of their charter, but before it expired the entire capital was lost, and the Company relinquished the business. Under these circumstances the trade in 1702 was thrown open by Parliament, the Act pronouncing that it had been neglected by the Company, and thus lost to the nation. Twenty years afterwards, in 1721, the number of foreign ships engaged in the Greenland and Davis’s Straits fishery were three hundred and fifty-five, of which Holland sent two hundred and fifty-one ships, Hamburg fifty-five, Bremen twenty-four, Biscay twenty, and Bergen, in Norway, five.

Russian trade.

Peter the Great.

In 1699 the trade with Russia, now daily becoming of greater importance, in consequence of the impulse given to the Russian mercantile navy by Peter the Great, was also practically thrown open by an Act entitling any person to admission to the Russia Company upon payment of an entrance fee of five pounds. It was about this time that the Czar abdicated temporarily his high functions as a powerful barbarian prince, and, assuming a pilot’s dress, repaired to the Dutch city of Saardam, then celebrated for its extensive ship-building, where he purchased a small vessel, at the finishing of which he worked with his own hands. He afterwards worked at every branch of ship-building, associating freely with his fellow artisans. Inscribed on the roll of ships’ carpenters as Peter Michaeloff, he passed among the workmen by the name of Master Peter. After having visited Amsterdam and other towns of Holland, this extraordinary man proceeded to England, where he worked in the dockyard at Deptford in the same industrious, unostentatious manner as he had done in Holland. The Dutch had taught him the mere routine of their method of ship-building; in England he was instructed in the higher branches of the

art, and was soon rendered capable of giving instructions to others. It is said that he assisted in building one of the best sailing vessels that had yet been launched. Soon after his return home Russia became a naval power, possessing for the first time a considerable fleet.^[201]

Effect of legislative union with Scotland, 1707.

The maritime commerce of Scotland.

Although by the accession of James VI. of Scotland and I. of England these two countries were brought under the same sovereign, they, until the reign of Queen Anne, were for all purposes of trade and legislation foreign and antagonistic states. There was little or no commercial, much less social, intercourse between them; and the advantages enjoyed by either one, and acquired by foreign treaties, were rigorously withheld from the other.

The whole amount of trade between the two countries rarely exceeding in value 150,000*l.* per annum, the amount of shipping employed in it was consequently altogether insignificant; but the Legislative Union in time gave an immense impulse to the commerce of Scotland, and opened to that country the rich fields of the English colonial possessions as well as her home markets. The merchants of Glasgow and Greenock were the first to reap the advantages of the Union, but their commercial operations were confined in a great measure, throughout the whole of the last century, to the West Indies, and to the plantations of British North America, more especially to Virginia, while the insurrection in favour of the son of James II., known as the “Pretender,” very materially retarded the incipient maritime prosperity of that portion of the now thoroughly united kingdom, obliging as it did the English to maintain a considerable fleet cruising off the coasts of Scotland. But when this insurrection was suppressed the trade of Scotland again steadily increased, and may be said to have gone hand-in-hand with England ever since, though interrupted for a time by the more serious rebellion of 1745-6.

Various circumstances tended to strengthen this commercial intercourse, and, not the least among the number, may be mentioned the establishment of the Board of Trade, which, though originally formed under Charles II. in 1668, only became a permanent establishment in 1696, consisting of a royal commission under the style of the “Commissioners for promoting the trade of the Kingdom, and for inspecting and improving the Plantations in America and elsewhere.” This Board afforded resources for enlarging and

materially benefiting the trade of the United Kingdom by the publication of its statistical returns, and in numerous other ways, and had the exclusive superintendence of the commerce of the plantations, and indeed of their government until 1786, when a Secretary of State was appointed for the colonies, and a new council for the affairs of trade organised on its present plan.

Buccaneers in the
West Indies.

No sooner had England become distracted at home by the civil war of the first Pretender and by the rupture with Charles XII. of Sweden, than the pirates of Barbary issued from their secret haunts, and greatly interrupted every branch of her maritime commerce. In the West Indies, too, the losses sustained by the ravages of the piratical buccaneers became so extensive that the most serious complaints were preferred against the Admiralty for tolerating the grievance, the result being a proclamation offering a reward of 100*l.* head-money for every captain, 40*l.* for a lieutenant down to a gunner, 30*l.* for an inferior officer, and 20*l.* for every private captured: more than this, any pirate who delivered up his captain or commander was entitled upon his conviction to a reward of 200*l.* [\[202\]](#)

State of British
merchant shipping,
temp. George I.

War, as we have too frequently seen, is a terrible obstacle to all industrial pursuits, and to no branch of commerce—however much a certain class of shipowners may have realised by having their vessels employed as government transports—is it a greater source of lasting injury than to the mercantile marine. This branch of industry, indeed, suffered not merely by the war itself, but by the hordes of privateers, buccaneers, and pirates which, up to the close of the last century, infested the seas whenever war was declared, thus interrupting legitimate commerce, and plundering wherever they had an opportunity, either by land or sea, too often with little regard whether the property they plundered was that of a friend or a foe. In the early part of the reign of George I. these marauders were almost as daring and as lawless as the pirates had been during the reign of Elizabeth and of the Henrys, and none more so than an Englishman named Roberts, who, in three vessels armed as frigates, the largest mounting forty guns, and commanded by himself, desolated the coasts of Africa and the West India Islands, plundering the ships of his own country with as little remorse as he did those of any other nation.

South Sea
Company, 1710.

But while the buccaneers at this period scoured the seas, there were knavish speculators on land who, under the pretence of fostering and developing the commercial and maritime resources of England, were really its greatest enemies. Among the numerous concerns then floated as joint stock companies, no one was more conspicuous or more disastrous than the “South Sea Bubble.” Having for its professed object the trade of the South Seas, yet with no basis for its operations beyond the dishonourable privilege of supplying Spanish America for thirty years with slaves torn from Africa, a very questionable favour granted to Great Britain by the Treaty of Utrecht, this company, in competition with the Bank of England, sought and obtained a monopoly of the South Sea trade on condition that the national floating debt, then about ten millions, should be paid out of its surplus profits!! Though perhaps no wilder scheme was ever propounded, it readily received the sanction of Parliament, and consequently a thousand and one other bubbles were speedily projected. The disastrous results are well known: thousands of families once well to do were irretrievably ruined, and the frenzy with which the people were seized, together with the impulse given to every form of gambling instead of to the steady pursuits of industry, materially aided the convulsion caused by the bursting of these bubbles, thus for many years paralysing commerce in all its branches, and laying prostrate the energies of the country.

Seized for a time with the spirit of insane speculation, the people thought of nothing else, and though in our own day we have witnessed many wild schemes submitted for public support, none have really proved so thoroughly disastrous in their results as those which were then launched. South Sea stock of 100*l.* sold for 1000*l.*; the Orkney Fishery stock rose from 25*l.* to 250*l.*; the York Buildings stock, whose shares were 10*l.*, reached 260*l.* The latter, a company erected to cut timber for ship-building and other purposes in Scotland, in spite of a protectionist bounty, proved a ruinous failure. There were besides eleven fishing projects; ten insurance companies; two companies for the remittance of money; four salt companies; two sugar companies; eleven companies for settlements in, or trading to, America; two building companies; thirteen land companies; six oil companies; four harbour and river companies; four companies for supplying London with coal, cattle, and hay, and for paving the streets; six hemp, flax, and linen companies; five companies for carrying on the

manufacture of silks and cottons; one for planting mulberry-trees in Chelsea Park, and breeding silkworms;^[203] fifteen mining companies; and some sixty more miscellaneous bubbles of the most preposterous character. One undertaking actually obtained subscriptions for an object “which in due time should be revealed!”

The bubble bursts,
1720.

But the South Sea Company, the greatest bubble of the lot, having prosecuted some of the rival bubble companies, and obtained a writ of *scire facias* from the Queen’s Bench, all stocks fell suddenly; and the South Sea scheme itself collapsed in the general ruin which ensued. The price of its stock fell from 1000*l.* to 175*l.* in a few weeks. The delusion was at an end, and the English nation awaking from its dreams of boundless wealth to a sense of its degradation, a terrible commercial distress ensued. Parliament stepped in at last with a bill to remedy the mischief which had been done, and which it had itself encouraged. Proofs were given of the deep and fraudulent complicity of the then Chancellor of the Exchequer (Aislabie), as well as of several South Sea directors and other persons of the highest rank at court and in the city. In the sequel, four members of the House of Commons who were South Sea directors were expelled the House; Aislabie was sent to the Tower; Knight, the cashier of the Company, absconded, and the estates of the chief criminals were confiscated.

But amid the numerous wildly speculative concerns then projected and launched, there were others which were sound and legitimate; among these may be mentioned the Royal Exchange Assurance Company, with a capital of 500,000*l.*, and the London Assurance Company, with a subscription list of four times that amount. Each of these have maintained their position to this day, ranking high as marine and fire insurance associations. By their original charters they were empowered to insure ships and merchandise from the dangers and accidents of the sea, and were also authorised to lend money on bottomry bonds. Subsequently they obtained charters for insuring from loss by fire. From the first they have had no exclusive privileges, although they might well have demanded them, for, just before their formation, the losses of private underwriters had been so great that no fewer than one hundred and fifty of them had become insolvent in the previous five years.^[204]

FOOTNOTES:

[175] There is a passage in Mr. Burke's famous speech on Conciliation with America, March 22, 1775, where he states her growth in the life of one man, Lord Bathurst, which reads now almost like a prophecy.

[176] The Ordinance is quoted in Macpherson, ii. p. 430.

[177] Details of the Navigation Act of 1651 (confirmed in 1660) will be found in Macpherson, ii. pp. 442-444.

[178] Martin Tromp, who fought this action, is often confounded with his even more famous son, Cornelis Van Tromp. In Dutch history he is always called Tromp. There would seem to have been five actions in the years 1652 and 1653. The first between Blake and Tromp, off Dover, May 29, 1652, when Blake was successful; the second in December, in which Blake was thoroughly beaten. After this occasion, Tromp placed the broom at his mainmast-head. The third on February 28, 1653, off Portland, when the Dutch were beaten, and lost three hundred merchantmen they had previously captured. The fourth on June 2, when the Dutch were again beaten. The fifth on August 10, an indecisive action, wherein Monk commanded the English instead of Blake, and Tromp was killed, leaving De Witt in command. The action between Ayscough and De Ruyter was fought on August 26, 1652.—See Sir E. Cust's 'Lives of the Admirals,' etc., i. p. 370.

[179] Art. xiii. of this treaty requires the striking of the flag (Macpherson, ii. p. 453).

[180] *Vide* Macpherson, ii. pp. 442-444.

[181] Ricardo's 'Anatomy of Navigation Laws.'

[182] As all Cromwell's Acts were ignored, the new laws were dated from the death of Charles I.; hence the Navigation Act of Charles II. is dated as passed in the *twelfth* of his regnal years, although really in the *first* of his actual reign.

[183] The principal enacting clauses of this Act are given in Macpherson, ii. pp. 484-486. Roger Coke, in his 'Discourse on Trade,' states that owing to the Acts of 1651 and 1660, the building of ships in England had become one-third dearer.

[184] A full account is given by Gérard Brandt of this celebrated action, quoted in Sir E. Cust's 'Lives of the Admirals,' vol. ii. pp. 452-454.

[185] All the accounts of the respective losses of the two fleets vary; but it is clear, from the life of Sir W. Penn, that the English had quite enough of the battle (Cust, vol. ii. p. 384).

[186] There is no doubt that in this raid on the English coast the Dutch were successful in doing a great amount of damage to the English marine; but at the same time more credit is due than has been usually given to Sir Edward Spragge, who, on two successive days, with only a small force of five frigates and seventeen fire-ships, repulsed the Dutch fleet under Van Nes, though on the first he was compelled to fall back for a few hours under the guns of Tilbury Fort. Van Nes had been sent by De Ruyter to force his way up the Thames, and Spragge deserves to be recorded as the English admiral who stopped his further advance (Cust, vol. ii. p. 391). There is at Hampton Court an original painting by Vandevelde of the later action of August 1673, in which Spragge was drowned.

[187] It is remarkable that the free trade theories, which had their origin in France, should have been so long altogether neglected in the legislation of that great country; but the most republican governments there, as elsewhere, seem to have been the most jealous champions of the protectionist system.

[188] Vide notes on Smith's 'Wealth of Nations' by J. R. McCulloch, 4th edition, p. 607; and E. Gibbon Wakefield's 'View of the Art of Colonisation,' Lond. 1849.

[189] See remarks on what the Dutch had done to the apparent injury of the English colonies previous to the passing of the Navigation Acts (Macpherson, ii. p. 487).

[190] 'New Discourse on Trade,' by Josiah Child, 1665, Glasgow, ed. 1751.

[191] Vide 'Political Arithmetick,' 4th ed. p. 103.

[192] 'Discourse on the Trade of England,' vol. i. pp. 129, 363.

[193] Chambers's 'Estimate of the Strength of Great Britain,' p. 68.

[194] A list of these vessels will be found in the *Gazette*, No. 2888.

[195] The French navy was, however, nearly destroyed in the great battle of La Hogue, fought by Admiral Russell on May 12, 1692.

[196] See 'Life of Admiral Russell, Earl of Oxford,' by Sir E. Cust, ii. p. 556.

[197] In 1701-1702 there were 3281 vessels measuring, or rather estimated at 261,222 tons, carrying 27,196 men, and 5660 guns, belonging respectively to the following ports:—

	Ships.	Tons.	Men.
London	560	84,882	10,065
Bristol	165	17,338	2,357
Yarmouth	143	9,914	668
Exeter	121	7,107	978
Hull	115	7,564	187
Whitby	110	8,292	571
Liverpool	102	8,619	1,101
Scarborough	102	6,860	506

No other ports of the kingdom possessed, at the time the return was made, one hundred vessels; but though Newcastle-on-Tyne owned then only thirty-nine vessels, they measured 11,170 tons, giving an average of two hundred and seventy-one tons to each. In reply to the circular from the Commissioners of Customs calling for this return, Hull accounted for her small number of seamen by stating that as it was winter (most of her vessels, no doubt, being employed in the Baltic and north of Europe trade, or in whaling) eighty vessels were laid up, and had consequently no crews on board. It is curious to note that no farther back than the commencement of the last century, such places as Yarmouth and Exeter owned more ships than Liverpool, which now owns a larger amount of tonnage than London; while there are now numerous ports in the kingdom of infinitely greater maritime importance than either Scarborough or Whitby, of which no mention whatever is made (Chambers's Estimates, p. 68; *ibid.* pp. 89, 90).

[198] 'History of the Debt' (Appendix), London 1753.

[199] The African Company arose out of the slave dealing along the coasts of Africa, but was at first occupied in a legitimate trade in gold and ivory from Guinea (Macph. ii. pp. 72, 115, s.A. 1531-1553), Captain John Hawkins being the first Englishman to trade in negroes, 1562. In 1571 a treaty was made between the Portuguese (who claimed the coast of Guinea as their own), which allowed equal rights of trade to the English (Macph. ii. 153). The French would seem to have had a

considerable trade with Senegal at a much earlier period (Macph. ii. 390). In 1637 the Dutch secured a direct commerce in negroes by taking from the Portuguese the castle of St. George del Mina, on the coast of Guinea; and, in 1642, by a special treaty, the Portuguese were permitted to hire English ships wherein to carry their negroes (Macph. ii. 420). At the peace, the result of Lord Rodney's action, England restored to France, in 1783, what she had taken from her along the coast of Africa. The Royal African Company was first incorporated in 1631. It was constantly in trouble, chiefly with the Dutch, and was repeatedly renewed with fresh privileges. As late as 1800 it received from government an annual grant of 20,000*l*. (Macph. iv. 501).

[200] *Vide* Macpherson, ii. pp. 277-278.

[201] One of the last acts of the life of Peter the Great was to plan the survey, entrusted to Behring, a Dane, to determine whether Russia was or was not joined to America. The expedition started, July, 1728, from Kamsachkatka, and Behring discovered the straits named after him, but did not himself see America ('*Mar. and Inl. Disc.*' ii. p. 345).

[202] A full account of the daring adventures of the buccaneers may be read in '*Mar. and Inl. Discovery*,' vol. ii. pp. 298-315; and in Archenholtz, '*Hist. des Filibustiers*,' 8vo. 1806.

[203] The attempt to grow mulberry-trees in England with the view of providing food for silkworms was not new. It had been suggested by James I. in 1608, indeed a patent had been granted for the same purpose to Walter Lord Aston in 1629 (see Macpherson, ii. pp. 250 and 358). But this scheme had failed, probably owing to the coldness or damp of the English climate; even in France, as is well known, mulberries are not found to grow sufficiently well north of the Loire. The ground secured for the mulberry plantation, in 1721, was Lord Wharton's park, of about forty acres, at Chelsea. In Reed's '*Weekly Journal*,' Aug. 21, 1721, it is stated that "there is a great concourse of foreigners and others daily in Chelsea Park to see the Raw Silk undertaking, for which a patent was granted by his present Majesty." One very ancient mulberry-tree still survives in the garden of Tudor House, No. 16 Cheyne Walk, and is perhaps the only survivor of the two thousand said to have been planted in the neighbourhood.

[204] See Reports to the Attorney-General, 1718-1720, and full details on this subject in Macpherson, vol. iii. pp. 77-114.

CHAPTER VI.

English voyages of discovery, 1690-1779—Dampier—Anson—Byron—Wallis and Carteret—Captain Cook—His first voyage, in the *Endeavour*—Second voyage, in the *Resolution*—Third voyage—Friendly, Fiji, Sandwich, and other islands—His murder—Progress of the North American colonies—Commercial jealousy in the West Indies—Seven Years' War, 1756-1763—Its effect on the colonies—Unwise legislative measures—Effect of the new restrictions—Passing of the Stamp Act—Trade interrupted—Non-intercourse resolutions—Recourse to hostilities—Position of the colonists—Fisheries—Shipping of North American colonies, A.D. 1769—Early registry of ships not always to be depended on—Independence of United States acknowledged, May 24, 1784—Ireland secures various commercial concessions—Scotch shipping—Rate of seamen's wages—British Registry Act, Aug. 1, 1786—American Registry Act—Treaty between France and England, 1786—Slave trade and its profits—Trade between England and America and the West Indies re-opened—Changes produced by the Navigation Laws consequent on the separation—New disputes—English Orders in council—Negotiations opened between Mr. Jay and Lord Grenville—Tonnage duties levied by them.

English voyages of discovery, 1690-1779.

In a former portion of this work^[205] attention has been directed to the remarkable discoveries of Columbus, Vasco da Gama, Cabot, Drake, Chancellor, and others. It is now proposed to furnish a very brief sketch of a few of the voyages of discovery of a later period—expeditions of which England has an especial reason for being proud, in that they greatly extended the geographical knowledge of mankind, and widely promoted the peaceful arts of commerce and navigation.^[206]

Dampier.

Among the earliest of these was the one, under government auspices, made by William Dampier, who had already become famous, towards the close of the seventeenth century as one of the most daring of the buccaneers, in various marauding and piratical expeditions, but who, on a speculative voyage of his own to the Pacific, had obtained so much valuable information respecting the Eastern archipelago, Celebes, Timor, the north coast of New Holland, and the Nicobar Islands, that when he reached England in 1691, the fame he had acquired induced the government to send him in 1699 to explore more particularly New Holland and New Zealand.

It appears from Dampier's able and amusing account of this voyage that though the government, with an unaccountable parsimony, had only placed

at his disposal the *Roebuck*, an old and worn-out vessel, he successfully completed the object they had in view, but was obliged to abandon his ship at Ascension on his way home, it being no longer possible to keep her afloat. Having made the coast of New Holland in latitude 26° south, he shaped his course to the north, where he fell in with an archipelago of islands stretching over 20° of latitude, from which he had some difficulty in extricating himself. Thence he proceeded to Timor, sailing round the coasts of New Guinea, giving names to its principal bays and harbours, which he surveyed with much accuracy.

Anson.

The expedition of Commodore Anson was fitted out, not so much for the purpose of discovering new lands, as to make reprisals on the Spanish for their behaviour in searching English ships found near any of their settlements in the West Indies and on the coasts of America. But this expedition also was wretchedly equipped and manned, and though the ships were placed under Anson's command in November 1739, they were not ready to sail till September 1740, while so much difficulty appears to have been experienced in getting men, that 500 out-pensioners from Chelsea Hospital were sent on board, many of whom were sixty years of age, and some threescore and ten. As might have been expected, two hundred and forty of them deserted before the ships sailed, and not one returned to England. In the place of the deserters, two hundred and ten raw marines were supplied, many of whom were so untrained that Anson would not permit them to fire their muskets! Of the squadron, originally composed of six ships of war, mounting two hundred and twenty-six guns, one alone, the *Centurion*, commanded by Anson himself, returned home after a cruise round the world of three years and nine months. The story of this memorable voyage, written by Mr. Walter, the chaplain of the *Centurion*, is one continued tale of misery and disaster, the greater part of which might, and probably would, have been avoided had the government at home listened to the repeated protests of the Commodore before he left St. Helen's Roads. Of the courage and humanity of Anson himself throughout the whole adventure it is impossible to speak too highly.

Byron.

The voyage of Commodore Byron, who sailed from England in 1764, was altogether one of discovery, his special instructions being to ascertain whether there was

Wallis and Carteret.

reason to believe “that lands and islands of great extent, hitherto unvisited by any European power, were to be found in the Atlantic Ocean between the Cape of Good Hope and the Magellanic Strait, within the latitudes convenient for navigation, and in the climates adapted for the produce of commodities useful to commerce.” He was further ordered to seek for “His Majesty’s islands called Pepys’s Island and Falkland’s Island,” about the position, or even the existence, of which there had previously been considerable doubt. Byron having already had some experience of the southern latitudes under Anson, gives an account of his voyage and adventures homewards after the wreck of the *Wager* on the coast of Chili, a narrative which is one of the most romantic stories in naval history. He shows that there was no ground for believing in the existence of Pepys’s Island; but, during a passage through the Falkland Islands and a considerable part of the Straits of Magellan, he furnishes much interesting information regarding the native Patagonians and the intricate navigation of these then scarcely known straits. Thence he made his way across the Pacific, passing and naming various small groups of islands, till he at length anchored in the harbour of Tinian, where Anson had been twenty years before, reaching England early in May 1766 after an absence of twenty months. The careful survey of the Straits of Magellan, which (contrary to the later judgment of Captain Cook) he prefers to rounding the Horn Islands, may be deemed the chief geographical result of Byron’s expedition, that being the course almost universally adopted at the present day, especially by steamers. On the coasts of Patagonia, in the Straits, and in the Falkland Islands, Byron met with enormous quantities of penguins, quaintly described by Sir John Narborough (an earlier navigator in these parts) as “like little children standing up with white aprons on.” Commodore Anson was followed in the same year by Captains Wallis and Carteret, the former of whom was the first to give any account of Otaheite (sometimes called King George’s Island), and the latter to discover Pitcairn’s Island, the home, till recently, of the descendants of several of the mutineers of the *Bounty*.

Captain Cook.

His first voyage in the *Endeavour*.

Captain James Cook, the greatest of our more modern discoverers, had in his early years undergone much hard service in the coal trade on the east coast of England. After entering the English naval service in 1755, he had greatly distinguished himself by the soundings he made

of the St. Lawrence, so as to allow the English fleet to co-operate with General Wolfe against Quebec; and subsequently by his surveys of the coast of Newfoundland, during the government of Sir Hugh Palliser. In 1768 he was appointed to the command of the *Endeavour*, the main object in view being an observation of the transit of Venus over the sun's disk, at the best place that could be selected for this purpose south of the line; and, on the advice of Captain Wallis, who had just returned from his voyage to the Pacific, the island of Otaheite was chosen, and Cook started for that place August 26th, 1768, accompanied by Mr. (afterwards Sir Joseph) Banks, and Dr. Solander, then the keeper of the Natural History in the British Museum. Having rounded the Horn Islands in thirty-four days, Cook held resolutely on his course, and in due time, reaching Otaheite, had the satisfaction of making with the utmost success the astronomical observations which were the main object of his expedition. During the three months' stay of the expedition at Otaheite he surveyed the group of islands of which it is the most important, and gave to them the collective title of the "Society Islands."

Proceeding onwards to the west, he at length reached the north end of that *Terra Australis Incognita*, now known as New Zealand, which had been first touched at by Tasman in 1642. Here Cook met with a class of natives in every way superior to those whom he had seen anywhere else; with some knowledge of cultivation, and habits of cleanliness uncommon even among far more civilised people. Their language, too, as was shown by their freely conversing with a native Otaheitan who accompanied him, proved the common ancestry of the natives of the Pacific islands. Tasman did not land on New Zealand, but coasted the eastern side from 34° to 43° S. Lat. Cook showed further that there were really two principal islands, separated by a narrow channel, since justly named after him Cook's Straits. Having circumnavigated New Zealand, he went on to Australia, striking its coasts very nearly at the same place where Tasman had been before him. But during a run of two thousand miles to the north, the natives were noticed to be very much below even those of the Society Islands, nor was their language intelligible. After a voyage of great danger between the coral-reefs to the north-east of the island, Cook reached the straits separating New Holland from New Guinea; and, formally taking possession of the enormous tract of land he had discovered, gave to it the name it still bears, of New South Wales. Thence he returned to England, by way of Batavia and

the Cape of Good Hope, where he arrived, after an absence of two years and eleven months. Throughout the whole narrative of this celebrated expedition the reader will be struck with the singular good sense and remarkable humanity characteristic of this great voyager, and which were equally conspicuous in his two subsequent voyages. In this respect he stands in marked contrast with all those who had preceded him, Columbus, Magellan, and Anson alone excepted. In every case we find him using his best influence to make friends with the natives, drawing up regulations of intercourse with them, to prevent his men taking unfair advantages, and, above all, restraining, as far as he could, their evil propensities. “Neither did I think,” says he on one memorable occasion, “that the thefts these people committed against us were, in them, crimes worthy of death. That thieves were hanged in England I thought no reason why they should be shot in Otaheite.”

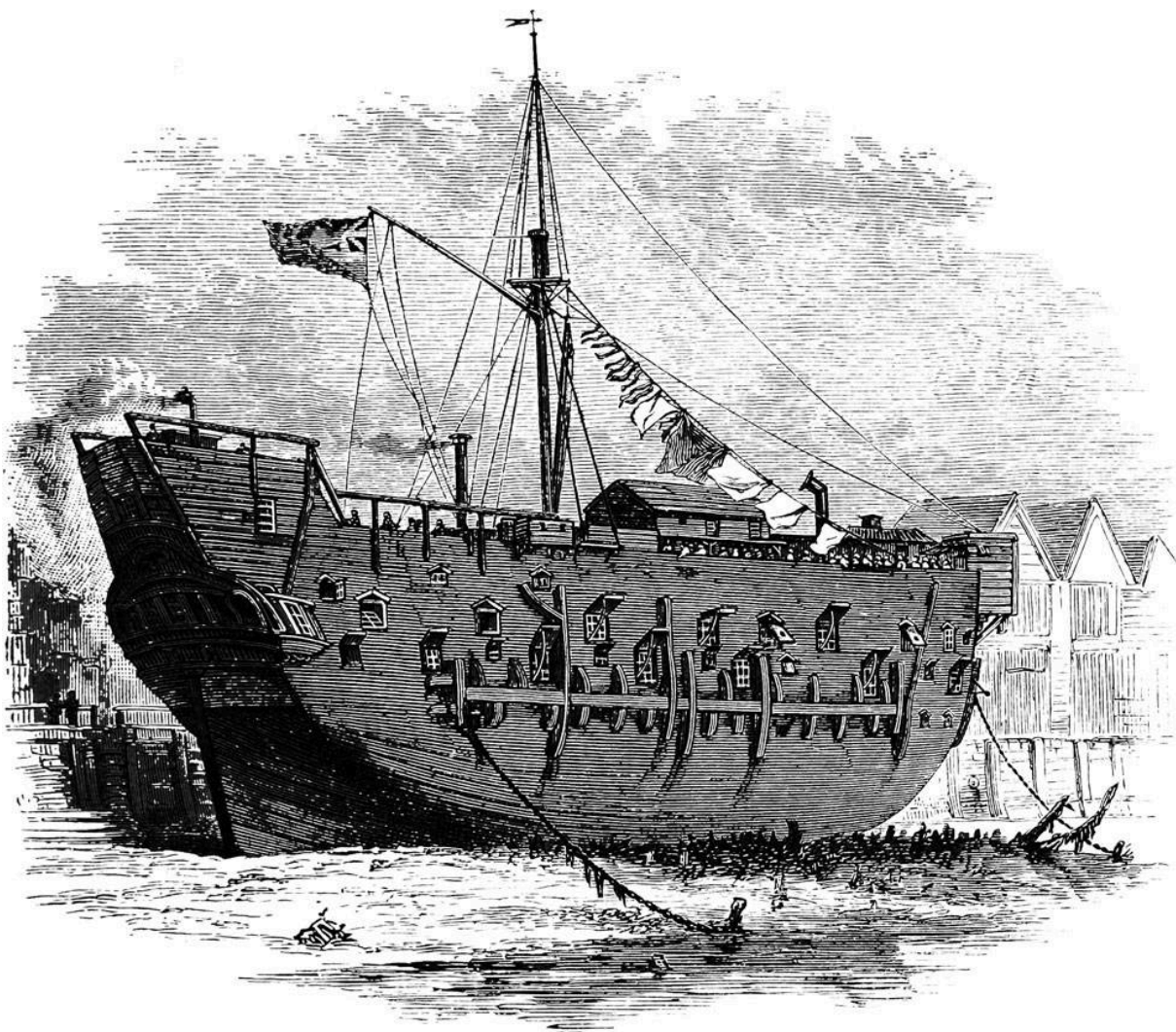
Second voyage in
the *Resolution*.

Not many months were allowed to elapse ere Cook was afloat again; this time to investigate the then unsolved problem of a great southern continent, which had been only in part set at rest by the discoveries of Byron, and by the circumnavigation of New Zealand. In this voyage he took the command of the *Resolution*, of four hundred and sixty-two tons, while Captain Furneaux took charge of the *Adventure*, of three hundred and thirty-six tons. Both, like the old *Endeavour*, were Whitby vessels; and Cook has himself recorded that every possible attention was paid to their proper equipment, and to the due supply of anti-scorbutics, and of other necessities, under the especial eye of Lord Sandwich, then at the head of the Admiralty. The ships left Plymouth on July 13th, 1772, and, after calling at the Cape, pushed at once to the south, till on January 17th, 1773, they reached 67° 15' S., where farther progress in that direction was barred by fields of solid ice. Thence Cook made his way to New Zealand, where he arrived, in Dusky Bay, March 25th, after having been one hundred and seventeen days at sea, and having traversed three thousand six hundred and sixty leagues. His companion, Captain Furneaux, who had been for some time separated from him, by asserting that the sea at the south end of New South Wales was only a deep bay, missed the opportunity of tracing the Straits of Van Diemen's Land, while he at the same time misled Captain Cook.

At New Zealand Cook landed several domestic animals, and the seeds of various vegetables, both of which have prospered remarkably. From that island he paid a second visit to his former friends in Otaheite, and, having surveyed several islands, among others New Amsterdam, the people of which were far more civilised than any natives he had as yet met with, returned to Queen Charlotte's Sound, New Zealand, to revictual and refit his ships. On the return of summer he determined to examine more minutely the question of a southern continent, proceeding as far as 71° south latitude, the highest latitude which has been as yet attained. Returning to the north, he examined Easter Island, [\[207\]](#) one of the group now known as the Marquesas, and describes the remarkable native statues existing there, of which two have been recently brought to the British Museum. Thence, passing by Otaheite, he sailed for the archipelago to which he had given the name of the Friendly Islands; thence to a still farther group, which he christened the New Hebrides; and thence to New Caledonia (the largest island in the Pacific after New Zealand), and to Norfolk Island, then wholly uninhabited. Resting for a short time in his old quarters at New Zealand, Cook again started, and made a clean run to Cape Horn, examining in detail Terra del Fuego and Staaten Island. After touching at the Cape, he sailed for England, and arrived at Portsmouth July 13th, 1775, having been absent on his second expedition three years and eighteen days. During this remarkable and perilous voyage he lost but four men, and only one of these by disease.

Third voyage.

On the 12th of July, 1776, Captain Cook undertook his third and last voyage; the object, on this occasion, being to explore the northern portions of the Pacific Ocean, and to ascertain, if possible, whether there was any water communication between the North Pacific and the North Atlantic. In this voyage he himself sailed in his old ship the *Resolution*, and had associated with him the *Discovery*, under Captain Clerke, an engraving of which we are enabled to give on the [following page](#), from a drawing by E. W. Cooke, R.A., F.R.S.



**THE “DISCOVERY,” CAPTAIN COOK’S SHIP.—E. W. COOKE,
R.A.**

Friendly, Fiji,
Sandwich, and
other islands.

His murder.

After calling at the Cape of Good Hope, he proceeded east, and passing the islands first seen by Marion and Kerguelen, finally reached Adventure Bay, at the south end of Van Diemen’s Land, on January 26th, 1777. Thence he proceeded to New Zealand, and thence again for the winter to the Friendly Islands, taking advantage of the nearly three months he spent in that part of the Pacific to examine more closely Amsterdam Island (or Tongataboo), and the Fiji Islands. Thence he went on to Otaheite, where he left a horse and mare and other live stock he had brought from England on purpose. Turning from Otaheite to the north, Cook discovered, in latitude 21°, north, five islands, to which

he gave the name of the Sandwich Islands; and thence pressing onward he fell in with New Albion in 44° 33′ north, and King George’s or Nootka Sound in the island now known as that of Vancouver. Pursuing his northern course, he surveyed a considerable portion of the American coast, doubled the projecting headland of Alaska, and passing through Behring’s Straits, anchored on the inhospitable coast of the Tchshudkis: the most northern point he was able to reach, being in 70° 44′, where his farther progress was completely barred by a wall of solid ice. Returning thence again to the south, with the view of wintering in the Sandwich Islands, he proceeded thither, and discovered Owhyhee, the largest of this group, which he had not seen when passing by these islands a few months before. At a southern bay of this island he remained for some time, his visit being highly appreciated by the great mass of the natives. Disputes, however, occasionally arose from the punishments necessarily inflicted on them to check their love of appropriating whatever articles they could carry away; and in one of these, for an offence which could not be overlooked, as they had stolen the *Discovery*’s cutter, Captain Cook, on landing with a party of marines to carry into effect his orders, unfortunately perished in the scuffle, on December 26th, 1779.

Progress of the
North American
colonies.

Previous to most of these important discoveries, and during the earlier portion of the eighteenth century, while England was distracted by war, and the nations of Europe were rivalling, by force of arms, to obtain an ascendancy over each other, her American colonies^[208] were, by peaceful and undisturbed pursuits, laying the foundation of that prosperity which enabled them, before the close of the century, to demand and obtain their severance from the mother-country, and their social and political independence. So early as 1729 the city of Philadelphia in the province of Pennsylvania owned vessels amounting to six thousand tons, employed in a lucrative trade with the West Indies, and had also in that year received no less than six thousand two hundred and eight emigrants from Great Britain. New York, as well as Pennsylvania, carried on a large trade in grain and provisions with Spain and Portugal, besides sending considerable quantities of furs and peltry, obtained from the native Indians, to England. Massachusetts had already one hundred and twenty thousand inhabitants, employing forty thousand tons of shipping in their foreign and coasting trades, or close upon six hundred vessels of one sort and another, one-half

of which traded to Europe; while the American fisheries were already so valuable and extensive that two hundred and fifty thousand quintals of dried fish were annually exported to Spain, Portugal, and the Mediterranean. ^[209]

New England then supplied the largest and finest masts in the world. The exportation of rice from Carolina, which in 1733 amounted to thirty-six thousand five hundred and eighty-four barrels, besides considerable quantities of pitch, turpentine, lumber, provisions, and Indian corn, had in 1740 increased to ninety-one thousand one hundred and ten barrels. Georgia, established in 1732 by a society of gentlemen, headed by General Oglethorpe, with the view of producing silk, the worm having been brought from Piedmont, was paving the way for the growth of rice, indigo, and other products suited to her soil and warm climate. ^[210]

Commercial
jealousy in the West
Indies.

But commercial jealousy had already seized the English colonists in the West Indies, and had led them to claim an exclusive monopoly of the trade with the colonies on the continent; while, at the same time, the contraband traffic carried on by the French and the Dutch was pressed on the consideration of parliament. Hence it was that a Bill received the sanction of the House of Commons prohibiting, under forfeiture of ship and cargo, the importation into any part of English America of sugar, rum, or molasses grown in plantations not of English origin. Although this bill failed in the House of Lords, an Act was passed in 1733 ^[211] for encouraging the sugar trade, the effect of which was to grant drawbacks on re-exportations from Great Britain of West India sugar, and to impose duties on the importation into America of the produce of foreign plantations. From the preamble of this Act foreign rivals appear to have surpassed the English colonists in the quality of their sugar, and to have supplanted their shipping in the carrying trade: so that the English professed they were unable to carry it on without relief from the parliament of Great Britain.

Following this example, all classes, as a matter of course, appealed for protection, and an artificial system grew up which, even if justifiable at the beginning, proved, when the separation of the colonies took place, to be altogether impracticable. The shipowners at home were equally ready to find pretexts for parliamentary interference in their favour. Thus, in 1749-50, they held a meeting in the city of London, “to promote British shipping

and British navigation,” at which sixty gentlemen were present, and “the Case” then drawn up was signed by fifty-nine of them.^[212] Their object seems to have been to prevent foreign ships taking away, as back-freight, goods entitled to drawback or bounty; the system of bounties practised by other nations operating against English shipping, though the policy of retaliation then adopted did not always remedy the evil complained of. Hence it is that we find incessant remonstrances by shipowners that foreigners came to English ports with freights and cargoes of small value, and loaded tin, lead, and other goods only to be obtained in England, and their assertion that, by the help of drawbacks and of bounties freely conceded abroad, the foreigners gained, on the whole, a larger freight than English vessels could do in the same time. English shipowners sought, therefore, to obtain fresh limitations on the foreigner, so as to raise their freights to an equality with those earned in the general market of the world. In the statements thus set forth, the shipowners, however, were compelled to admit that “at all foreign ports which had no shipping of their own, ours (English) are always chosen preferable to the ships of any other nation.”

Seven Years' War,
1756-1763.

Its effect on the
colonies.

Of the “Seven Years’ War” it is not our province to write, but of its results as affecting the English colonial arrangements, we may remark that the expenses of that war mainly induced the Legislature to pass in 1764 the Act of 4 George III., chap. 15, which ultimately led to the separation of the North American colonies from Great Britain. This Act, combined with various conditions taken from the Navigation Laws, requiring heavy duties on numerous articles imported into the colonies from the countries that produced them, or from anywhere else except from Great Britain, and prohibiting the importation of sugar from the colonies, except in British bottoms, necessarily aroused the indignation of the American colonists, and sowed the seeds of future rebellion.

Unwise legislative
measures.

But unfortunately these impolitic stipulations were only the commencement of a series of unwise, if not unjust measures, carried out with extreme rigour, with the object of preserving for the British shipowner and manufacturer the exclusive monopoly of the trade with the colonies. No doubt an extensive illicit trade had already been established between the continental North

American colonies and the foreign West India settlements, carried on in American ships and in defiance of British law. Indeed, the people of the New England States, of New York, Carolina, and Pennsylvania built numerous small vessels, expressly for the purpose of supplying these islands with various articles of their own production, especially lumber, provisions, horses, live stock, tobacco, corn, flour, and vegetables; and even made voyages to Europe, selling both ships and cargo in European ports in spite of the fiscal laws of the mother-country. But though this trade was ruined by the regulations for the suppression of smuggling, and by the collection of the King's duties in hard silver, which drained the colonies of the bullion they received in exchange for the sale of their ships and cargoes, these measures, which were carried into effect with great vigour, operated with an equally injurious severity on the West Indian colonies, especially on Jamaica, in spite of a very lucrative traffic still carried on between that island and the Spanish Main.

Unfortunately, the English government had viewed without compunction the infraction of the Spanish laws, so long as their shipowners and merchants reaped an immense advantage by their clandestine trade. Nor did the dread of perpetual imprisonment and slavery deter their mariners from engaging in this trade. Indeed, when these were wanting, Spanish-Americans supplied the deficiency by vessels of their own; while the governors of the islands connived at the illicit traffic. But a different spirit of morality was now to prevail. Directions were sent out from England to enforce the Navigation Acts in all their strictness: custom-house commissions were issued to the men-of-war, who were ordered to seize, without distinction, all foreign vessels found in any of the ports of the West India Islands; the British government becoming from one extreme of laxity the most strict and energetic repressors of Spanish as well as American smuggling. The result was that their own shipping suffered, and their exports to Jamaica declined 168,000*l.* in one year. In 1766 the ports of Jamaica and Dominica were opened to all foreign vessels whatsoever; but if credit can be given to one of the historians^[213] of the West Indies, the Spanish masters of vessels who resorted to Jamaica, having their names reported in the customs' lists, were thus betrayed to the Spanish authorities, who visited their offences with the most severe punishment.

Effect of the new restrictions.

On the continent of British North America the new duties and the rigorous measures adopted to restrict or put down the trade so long carried on with the French and Spanish settlements speedily produced consequences which the narrow-minded politicians at home did not anticipate. The extinction of the French and Spanish shipping trade caused, as its natural result, a serious diminution of the direct carrying trade between England and the North American colonies, and this, again, depriving them of their accustomed market, prevented their being any longer able to consume British manufactures to the same extent as formerly, or even to discharge debts due to creditors in England. Hence an effect not anticipated: in that the Americans, forming associations to dispense with English manufactures, were led to resort to native industry, and thus to lay the foundation of a permanent rivalry, the end of which cannot even now be conjectured. In short, a national American spirit was evoked, highly antagonistic to British interests.

Passing of the Stamp Act.

Trade interrupted.

Public opinion was in this excited state when the Stamp Act of the Grenville Administration received the Royal assent on the 22nd of March, 1765, and was to come into operation on the 1st November following. A distinction was instantly drawn in the colonies between that and the preceding measure. The language of the Act was severely criticised, but the real grievances were, that Great Britain, by this Act, indiscreetly interfered with the trade and shipping of the colonies, cut off one chief source of their prosperity, and sought by a Stamp Act to collect internal duties in the colonies under the authority of the Commissioners of Stamps at home. When the stamps arrived in New York, they were, with universal consent, committed to the flames by the people, excepting one small parcel which the magistrates secured, with the reservation that they should not be made use of. From that day the transaction of business between the two countries became impracticable. The rivers and wharfs were deserted; vessels lay in the harbours with their colours hoisted half-mast high; the courts of justice were closed; and instead of a thriving maritime population in the sea-ports, all was neglect and stagnation. A general agreement was entered into by the merchants not to import any more goods from Great Britain, nor to receive any goods on commission consigned from that country after the 1st January, 1766, and as Ireland was exempted from this ban, the seeds of discord were sown among all parties.

The Americans even meditated the prohibition of the export of tobacco to Great Britain, but this step would have proved even more fatal to the planters of Virginia and Maryland than to those persons against whom it had been imposed. The resistance to the authority of the mother-country was universal in New England, New York, New Jersey, Pennsylvania, Maryland, and the two Carolinas. But the provinces at the northern and southern extremities of the continent submitted to the authority of the British Crown, as did also the West India Islands, excepting those of St. Christopher and Nevis.

The effects of the Stamp Act in America recoiled with redoubled force upon Great Britain. Most of the merchants connected with the colonial trade suspended payment; while her shipowners felt severely the interruption of commerce between the two countries; the manufacturers and workmen throughout the kingdom were to a large extent thrown out of employment—misfortunes greatly aggravated by the high price of provisions, the vessels laden with them having been embargoed in all the ports. In the end, the shipowners of London, Liverpool, Bristol, Hull, and Glasgow, with the manufacturing towns in Lancashire, petitioned the Legislature for relief; and, in 1766, the obnoxious Stamp Act was repealed. This repeal, though received with great joy in all parts of England, and re-echoed by the Americans, was materially modified on the other side the Atlantic by the preamble of the Declaratory Act^[214] which censured the American legislatures for assuming the right of taxation in the colonies, declaring the American colonies subordinate to the English crown and parliament, whose legislative authority, it was asserted, extended to American subjects in all cases whatsoever. The resumption, however, of navigation and commerce produced the most salutary effects, and harmony was for a season restored between the two countries.

But in the interval between the repeal of the Stamp Act and the following year a new state of things had arisen. The notion of self-government had taken hold of the American agitators. In their provincial assemblies they set the Declaratory Act and the authority of the mother-country at defiance, while in England, on the other hand, it was deemed essential to assert the supremacy of the Legislature by even more effectual proceedings.

Accordingly a fresh American Taxation Act was passed in 1767, imposing import duties on tea, glass, and other articles, the object being to assert the

Non-intercourse
resolutions.

right of taxing the colonies. It was, however, found impossible to collect the new duties. The people of Boston, Massachusetts, were conspicuous for their violence in resisting this new and vexatious impost, at the same time proposing a strict union of all the local assemblies in British America to oppose the law and to insist on its repeal. Troops were sent to enforce allegiance to the authorities. The Boston merchants and shipowners, however, were resolute in their action, and the seizure of a sloop belonging to one of their citizens causing much excitement, they passed a further resolution of non-intercourse, at one of their numerous meetings, unless the last obnoxious Act was repealed. The inhabitants of New York carried similar resolutions. In this unsatisfactory way matters continued till 1770, when the Act was repealed in all articles except tea. The people of America had, however, begun to feel still more their strength, and declared any such reservation to be inadmissible. In 1774, when vessels having this article on board reached Boston, the people seized the tea, threw some portion of it overboard, and destroyed the remainder, suspending all business of landing and shipping goods in Boston harbour after the 1st June, 1774, and declaring all charter-parties, bills of lading, and contracts executed in England for shipping goods from that port null and void.

Recourse to
hostilities.

But commercial intercourse was soon afterwards opened by the British American colonies with France and Holland, which was connived at by both countries in spite of authoritative prohibitions and representations by the court of Great Britain. While the American colonists refused to have any trading intercourse with England, the Parliament of this country, in spite of the petitions of its shipowners and parties interested, and actuated by the same unwise and unaccountable policy, passed an Act to prevent the New Englanders from fishing on the coasts of Newfoundland, Labrador, or Nova Scotia, and declaring all vessels thus employed liable to seizure after the 20th of July, 1775. But before that time the fatal blow had been struck which led to a total severance of peaceful relations between the two countries. The inhabitants of the northern and southern provinces joined in a confederation against the British with all the vigour and well-known energy of their race; casting cannon, and employing themselves in learning military exercises with such a menacing attitude that Governor Gage seized the ammunition and stores lodged near Boston, thus causing an open rupture.

The skirmish at Lexington followed, where sixty men were killed on each side; and the king's forces were besieged in Boston. The military ardour of the Americans augmented as the crisis approached, their rulers at once assuming, after the oppression to which they had been subjected, the justifiable powers of an independent executive under the title, at first, of the UNITED COLONIES, with all the functions of a government *de facto*. The war with the Colonies then broke out. To trace the details of the struggle, which terminated in the separation of these vast regions from the British Empire, is not within the scope of this work, but it will be necessary to give as comprehensive a view of the state of our shipping business with America at that important epoch as our space will admit of: the documents published by both countries are very numerous.

Position of the
colonists.

Fisheries.

While the territories subject to the Spanish Crown in America abounded with the precious metals, and the mines of gold and silver of Mexico and Peru poured a flood of mineral wealth over Europe,^[215] the provinces colonised by Great Britain were destitute of these riches. The soil was, however, capable of affording the still more precious products of rice, corn, sugar, tobacco, indigo, and above all, of cotton. But the New Englanders could not boast of a fertile territory, their soil scarcely growing sufficient to feed its inhabitants. Accordingly they directed their attention to the sea as a source of subsistence, and the business of fishing and navigation afforded a boundless field for their unwearied industry. Thus they constructed vessels not only for their own convenience, but also for sale. These, though inferior to English-built vessels in quality of timber and workmanship, were low-priced and quickly put together. The New Englanders were, moreover, acute merchants, and carried on a considerable trade with Africa; so much so that from their general aptitude for commerce they were known as the "Dutchmen of America."

The provinces of New York, New Jersey, Pennsylvania, and Delaware, with a better soil than that of New England, produced in abundance corn and cattle of all kinds, together with hemp, flax, and lumber, iron, pot and pearl ashes. Their exports of corn and flour brought down from the interior were even then very considerable; they exported, also, live stock, boards, scantling, staves, shingles, and wooden houses framed and ready to set up. These and a multitude of other exports afforded large means of employment

to the shipping of New England, while the harbour of New York, one of the finest in the world, presented great maritime facilities to their rising merchant navy. Though Virginia and Maryland had directed their chief attention to the cultivation of tobacco, large quantities of grain were raised in those provinces prior to the revolution. By law their tobacco hitherto could only be exported to Great Britain; but they were now allowed to ship it and their corn, flour, timber, and other produce to the West Indies and elsewhere. North Carolina also grew tobacco, though to a limited extent; but her annual export of pitch, tar, and turpentine, was not less than one hundred and thirty thousand barrels, the larger portion of which was shipped to England. In South Carolina and Georgia (the growth of silk proving unprofitable) rice and indigo became the staple products; but it was not until a later period that these two regions, especially Georgia,^[216] became the seat of the vast produce of cotton now employing so large a portion of the merchant shipping of both the European and American States.

Shipping of the
North American
colonies, A.D. 1769.

That an idea may be formed of the actual state of the navigation and commerce of the North American Colonies when they declared their independence we furnish in the accompanying note an outline of the leading figures bearing on this subject from a report, issued shortly after the Declaration of Independence, by the Inspector General of the Customs, London, and presented to Parliament.^[217]

Early registry of
ships not always to
be depended on.

Prior to the Registry Act of the 24th of George III. vessels were measured in a very loose manner, and in order to evade the payment of lighthouse dues, and various port charges collected on tonnage, they were usually registered far below their real burthen; indeed the difference between the measurements under the old Act of William and that of George III., being on the aggregate no less than one third, accounts in some measure for the apparently very small tonnage of the vessels given in the returns to which we have just referred. But the return, as a whole, furnishes pretty accurately the position of the merchant navy and of the oversea commerce of the United States when they separated from the mother-country. That important event in the history of the world produced a complete revolution in the relative positions of the great maritime nations; a merchant navy having arisen on the other side of the Atlantic which in three

quarters of a century afterwards rivalled, and at one time surpassed in number, and especially in symmetry and speed, the finest merchantmen of any of the countries of the Old World.

In noting the progress of British merchant shipping during the earlier portion of the reign of George III., the dates at which the war with the colonies broke out, and when peace was finally concluded, must be remembered, as open hostilities did not actually commence until 1774, though for some years previously a state of non-intercourse had existed. The revolted colonies might possibly then have been retained as reluctant subjects for some years longer, had not the French, in 1778, espoused their cause with the object of striking a blow at the increasing maritime power of England. In the following year Spain also threw her weight into the scale against her, and finally the Dutch, in 1781, contributed to swell the number of her maritime foes. With three such nations in arms against her British shipping, clearing outwards and inwards from her ports, had fallen, in 1782, to 615,150 tons, while there were in that year 225,456 tons of foreign clearances; but, in 1785, such has ever been the elasticity of her commerce, the entries inwards and outwards reached 1,182,346 tons, of which only 107,484 tons were foreign vessels.^[218]

Independence of the
United States
acknowledged, May
24, 1784.

When peace was restored, the loss of the North American colonies, instead of diminishing the commercial shipping of England, tended rather to augment it,^[219] while the value of her exports and imports resumed that position of steady increase which characterised the earlier part of the reign of George III., at the same time making a considerable stride in advance when the war had completely ceased. Preliminaries of peace were adjusted with the now separated colonies at Paris on the 30th of November, 1782,^[220] although the definitive treaty was not signed till the 3rd of September, 1783, and ratified by Congress the 4th of January, 1784. With France and Spain similar treaties were signed about the same period, the Dutch alone keeping aloof from a final peace till the 24th of May, 1784. In India peace had been secured in March of that year by a treaty concluded with Tippoo Sahib,^[221] who, by the peace in Europe, found himself deprived of his French auxiliaries. By keeping these dates in view, and glancing at the table at the foot of the page, originally taken from Chalmers' tables, and now from McCulloch's

commercial dictionary,^[222] the reader will be enabled to form a clear idea of the state of progress of British maritime commerce during one of the most critical periods of her history.

Ireland secures various commercial concessions.

While England was incurring a vast debt in unavailing endeavours to subjugate the revolted colonies, Ireland seized the opportunity to secure her commercial freedom. Hitherto she had been treated as a conquered country, a vassal island, the people of which were looked upon as aliens in race as well as religion. As the Irish were successful in their demand for freedom of trade and industry, England now passed successive Acts by which certain goods were allowed to be shipped directly from Ireland to the British plantations in America and to the British settlements in Africa; Irish-built ships were declared to be entitled to the same privileges as British; and, by the 20th George III. chap. 10, free trade with these countries was guaranteed. No practical results, however, followed from these concessions, the Irish having, from some cause or other, it may have been from want of capital or continuous industry, rarely given any real attention to mercantile, and especially maritime pursuits. For a brief period they possessed the dangerous gift of an independent legislature,^[223] which, however, happily ceased its functions some twenty years afterwards, when a hopeless rebellion had been extinguished; nor indeed, even now, though possessing so many natural advantages, has Ireland progressed beyond a thriving coasting trade; while her efforts to encourage extensive fisheries even along her own coasts have proved unsuccessful. Indeed, it was only at a later period that her manufactures and her agriculture became the objects of national attention. Yet, with her fine harbours, rich soil, generous people, and admirable geographical position, it might have been hoped that Ireland would have taken a leading position as a naval power, or rather, as a commercial and maritime country.

Scotch shipping.

While Ireland continued to be a clog on the industry of the people of England, Scotland, restored to the blessings of domestic peace, was making rapid progress. The value of her exports, which during the war had in 1782 fallen to 653,709*l.*, reached 1,007,635*l.* in 1785. Her shipping also represented a satisfactory result.^[224] Scotland, like England, had now commenced a successful career of shipping business, and, however the colonial war may,

for a few years, have retarded the onward progress of the now united nation, its subsequent advance was steady and prosperous, and is now astounding.

Rate of seamen's wages.

With regard to the rate of wages paid to sailors in England and Scotland in 1784, no better authority can be quoted than Dr. Adam Smith,^[225] who says in his great work that, "the lottery of the sea is not altogether so disadvantageous to the sailor, as compared with the soldier. Common sailors more frequently obtain some fortune and preferment than common soldiers; and the hope of those prizes is what principally recommends the trade.... Their wages are not greater than those of common labourers at the port which regulates the rate of seamen's wages. As they are continually going from port to port, from all the different ports of Great Britain, their monthly pay is more nearly upon a level, and the rate of the port to and from which the greatest number sail, that is the port of London, regulates that of all the rest."

"In the time of peace, and in the merchant service, the London price is from one guinea to about seven and twenty shillings the calendar month." It must, however, be remembered that this estimate was made when the common labourer in London received nine or ten shillings per week, making in the month forty to forty-five shillings. The difference, of course, is accounted for by the sailor being supplied with provisions and shelter, such as it is, in addition to his pay. Taking the difference of the value of money and of the ordinary rate of wages paid three quarters of a century ago, we may presume that at the present rate of fifty to sixty shillings per month, the pay of a common sailor is considerably higher than it was at the period in question, and certainly he is much better fed. Indeed the position and condition of the common sailor have undoubtedly kept pace with the general improvement and progress of the nation.^[226]

British Registry Act, Aug. 1, 1786.

About this period the new Registry Act came into operation, requiring the owner of every decked vessel of fifteen tons and upwards to have her measurement accurately ascertained according to a prescribed scale, and providing that every vessel registered in the customs, and thus securing the advantages of a British ship, must have been built in the British dominions, or captured as a prize and, subsequently, owned by British subjects. The Act also ordered that her name and the port to which she belonged should be painted conspicuously on her stern, and that her certificate of registration should

contain full particulars of her dimensions, age, and owners, together with the name of her commander and other details.^[227]

Some eminent writers on commerce, among whom the late J. R. McCulloch^[228] stands conspicuous, have doubted the utility of compulsory registration; but this system, in after years materially improved, has been of great service to the State, as well as to individual shipowners. Indeed the exigencies of trade alone required that English merchant vessels should be provided in time of war with legally authorised certificates, so that they might be at once distinguished from those of other nations. Besides, the incalculable amount of property entrusted to owners of vessels obviously requires that their ships should be identifiable by a proper system of registration; for there would be little or no security for the safe transport of merchandise unless the title to the ship as well as to the cargo were indisputably established by the certificates of register, and by the customs' and clearance papers, which the ship was then by law required to carry.

American Registry
Act.

From the earliest period of American independence, Congress^[229] passed a registration measure corresponding almost exactly with that of Great Britain. The national privileges of trade were by it confined to ships built in America and belonging to and commanded by citizens of that country on the 16th of May, 1789, and continually thereafter, or which had been taken and condemned as prizes in war, or forfeited for a breach of the United States laws. Few nations have asserted the rights of neutral ships^[230] with greater energy than the people of the United States; and these rights could not have been enforced except by a system of registration. But it is superfluous to waste time in asserting the advantages of registration, which, in all cases where it is honestly performed, may be deemed one of the most salutary regulations introduced by civilisation and law, and one, too, of material value for the repression of crime and piracy.

Treaty between
France and
England, 1786.

On 26th of September, 1786, a treaty of commerce and navigation between Great Britain and France^[231] was concluded, whereby perfect freedom of navigation was mutually conceded; but before the expiration of twelve years, the stipulated period of its existence, one of the greatest political convulsions of modern times had overthrown the dynasty of the Bourbons,

and France and England were again plunged into a more deadly war than had ever before been waged by these ancient and inveterate foes. England also formed treaties with Spain, Prussia, and Holland, and the treaty with Russia, which had been allowed to expire in 1786, was also then renewed.

Slave trade, and its profits.

Among numerous other matters, the slave-trade occupied a very considerable portion of the attention of Parliament and of the country during this period. By a return laid before Parliament in 1789, the number of slaves annually carried from the coast of Africa in British vessels was thirty-eight thousand; the number taken to the British West Indies, upon an average of four years, being estimated at twenty-two thousand five hundred.^[232] Prior to the year 1760 no complete returns have been preserved of the number of ships thus employed; subsequently, however, it ranged from twenty-eight, measuring three thousand four hundred and seventy-five tons in the year 1761, to one hundred and ninety-two, measuring twenty thousand two hundred and ninety-six tons in 1776; but, during the war, from 1776 to 1783, this inhuman trade either languished, or the vessels formerly engaged in it were otherwise more profitably employed.^[233] The majority of the slave-vessels were built expressly for the trade; and at the date of the report, 1786, from which we derive our information, six vessels were in course of construction, and about a dozen fitting out or ready for sea. A slave then cost from 8*l.* to 22*l.* in Africa, and realised in the West Indies from 28*l.* to 35*l.*, the prices having about doubled during the previous century. In addition to the British import of slaves, the French carried away from Africa every year about twenty thousand; the Portuguese ten thousand; the Dutch four thousand; and the Danes two thousand; making a total of seventy-four thousand annually exported from Africa, including the thirty-eight thousand despatched in British vessels. A considerable portion of these found their way to the Spanish possessions. When after the restoration of peace with the colonies the London streets were filled with emancipated negroes, many of them, collected by an order of the 9th of December, 1786, were forwarded in British transports to Sierra Leone, where a settlement was formed.^[234]

Trade between England and America and the

Although the political connection of Great Britain with the United States of America had been violently rent asunder, there happily remained between the two

West Indies re-
opened.

countries the bonds of one common origin, language, religion, and mutual interest. No sooner had American independence been acknowledged than all prohibitory regulations made during the war were abolished. Indeed, for a time, no manifest or any other shipping document was required from any vessel of the United States arriving at or clearing out from a British port; and the Crown being meanwhile authorised to regulate the manner in which trade should be carried on, a royal proclamation was immediately issued on the 14th of March, 1783, for the admission, till further orders, into the ports of Great Britain, of any unmanufactured commodities, the produce of the United States, either in British or American ships, without the usual certificates, and on payment of the same duties as were payable on similar articles imported from British America. The same drawbacks and bounties were also allowed on goods coming from the United States as on those from the British possessions; and the benefit of the order was extended to all American vessels that had arrived since the 20th of January.

These concessions, however, neither gave satisfaction to the American shipowners, nor to the English sticklers for the Navigation Act in all its force. A controversy arose respecting the extent of commercial rights to be conceded permanently to the United States, the practical point in dispute at the time being whether the Navigation Act should be held to apply to American shipping as fully as it did to other foreign vessels, and should thus exclude them from the English West India Islands. But their claim to be treated upon a more favoured footing than other nations was deemed untenable, though an exemption in their favour was urged in this particular case upon the general grounds of expediency. The shipowners, however, of Great Britain upheld the Navigation Act as the palladium of their naval power, and urged that a people who had renounced their allegiance to the mother-country could have no right to any special favour. Much agitation was also raised by the West India planters, who asserted that the prosperity of those islands depended on an unrestricted intercourse with America; and as their influence was powerful in parliament, ministers were on the point of yielding to the clamour; at least they connived with the governors of some of the West India Islands in permitting the free access of American vessels to their ports.

A pamphlet by Lord Sheffield,^[235] and another by Mr. Chalmers,^[236] urged that the remaining loyal continental colonies sufficed to supply the British West India Islands with lumber and provisions, which the advocates on the opposite side of the question denied. Great discussions arose, in which all the controverted points of free trade and exclusion were again urged in innumerable publications; and, as usual, glaring exaggerations were resorted to on both sides. In the sequel, the English government adopted a middle course. A proclamation of the 2nd of July, 1783, by the King in council, permitted British subjects to carry in *British vessels* all kinds of naval stores, lumber, live-stock, corn, &c., from the United States of America to the West India Islands, and also to export rum, sugar, molasses, coffee, cocoa, &c., from the Islands to the States under the same regulations and duties as if these commodities had been cleared out for a British possession. This concession naturally satisfied neither parties; Great Britain and the United States alike regarding it with either alarm or disdain. The West India planters apprehended instant ruin if there were any check on the free and unrestricted intercourse with the continent; while the Americans carried their resentment to an extent sufficient to induce three of the States to make a requisition to Congress that all commercial intercourse with England should be prohibited. The British government, however, vigorously supported by the shipping interest, remained inexorable in its restrictive policy.

In this matter the American people, moved, as it would seem, entirely by an instinctive sense of self-interest, became the champions of a free-trade policy in shipping, while their shipowners, relying on the provisions of the Navigation Act, assumed the character of exclusionists. Thus the antagonistic interests of the shipowners of the two countries disturbed the friendly feelings which might otherwise have prevailed. Three temporary Orders in Council were issued, relating to the importation of tobacco, and payment of duties: a matter of no little difficulty before the organisation of the English warehousing system. The third of these "Orders" renewed that of the 2nd of July, regulating the intercourse between the United States and the West Indies, but relaxed the previous regulations for the British trade so far as to permit the importation of any unmanufactured goods not prohibited by law, except oil, pitch, tar, turpentine, indigo, masts, yards, and bowsprits, being the produce of the United States, either by British or American subjects, and either in British or American vessels. This arrangement,

having received parliamentary sanction, was continued annually with little alteration throughout the next five years; but the Americans during this period persisted in urging their claims to have both trades placed on a more liberal system.

In 1784 Congress recommended to the legislature of the different States the adoption of a resolution prohibiting, for fifteen years, the importation and exportation of every species of merchandise, in vessels belonging to any foreign powers not provided with a commercial treaty with the United States. The people of Boston had been highly exasperated by the exclusion of their vessels from the ports of the West Indies, and by the high duties on rice, oil, and tobacco, while their shipping had also suffered by the British regulations of her fisheries along the American coasts.

Changes produced
by the Navigation
Laws consequent
on the separation.

They overlooked the great fact that the independence of the North American colonies necessarily placed them in the same relative position to Great Britain as other countries affected by the English navigation laws, and thereby excluded them from the ports of the British Colonies, a result deeply prejudicial to the shipping interests of Boston, as their cheap ships could no longer trade with the West India Islands.^[237] The high differential duties on rice, oil, and tobacco which had been enforced against them, regulations combined with the fishery, led to retaliatory measures being resorted to by the people of Massachusetts; hence, after the 1st of August, 1785, the exportation of American produce and manufactures was altogether prohibited, and vessels owned by British subjects prohibited from entering the ports of that State. A proviso was indeed added to meet the case when the governor of any British settlement might be willing to rescind the proclamations against American vessels. In fact a new warfare of prohibitions and restrictions, with retaliatory and conciliatory measures to counteract or aid the contending parties as the case might be, was commenced by various States, the end of which was not foreseen upon either side the water. Unfortunately the States of the North of the Union had commercial interests antagonistic to those of the South, and hence arose a complex system which on all sides greatly increased the difficulties of the navigation laws, and became the parent of endless strife and animosity, which in after years assisted in some measure to bring about the terrible

civil war that raged from 1860 to 1865 between the Northern and Southern States.

Concessions were however soon made, and afterwards, in 1788, an Act was passed, permanently permitting the importation into the West Indies, in British vessels, of tobacco, pitch, tar, turpentine, horses, cattle, &c., the produce of the United States, and the exportation from the West Indies to the States of all goods or produce lawfully exportable to European countries. The commercial jealousies and animosities between the two countries now gradually subsided, though British shipowners still adhered to the principle of their Navigation Laws, and excluded American vessels from the colonial and inter-colonial trade, all such goods imported and exported being required to be carried in British bottoms.

New disputes.

English Orders in Council.

Negotiations opened between Mr. Jay and Lord Grenville.

Thus matters went on until the war broke out with France in 1792, when new disputes arose with the United States. In order to obtain the produce of their West India Islands, the French despatched their sugars and other produce to the continent of America, whence it was conveyed in American neutral vessels to France. Here is a striking illustration of a friendly power professing neutrality, yet enriching itself by a carrying trade for the benefit of one of the belligerents.

Accordingly an English Order in Council was issued for seizing all vessels conveying to France the produce of the French colonies, or supplies from France for the use of those colonies. No wonder that under such circumstances the Americans set up the demand that “free ships should make free goods,” which was echoed through the whole world at a later period. No fewer than six hundred American vessels were seized, or detained in English ports, under this order between the 6th of November, 1793, and the 28th of March, 1794, a proceeding which naturally excited much alarm among merchants connected with the United States, lest there should be an immediate rupture between the two countries. The American government took up the matter, and after having, on the 26th of March, 1794, laid an embargo for thirty days on all British merchant vessels in their ports, sent Mr. Jay as Envoy Extraordinary to London, in order to obtain redress. Upon this the English Order in Council was revoked, and friendly negotiations were entered into with the view of placing the maritime

relations of the two countries upon a more satisfactory footing; the result being the conclusion, in 1794, of a treaty of amity, commerce, and navigation, to which we shall hereafter more fully refer.

Tonnage duties
levied by them.

Although Mr. Jay, after the conclusion of this treaty, held out the flag of free trade, the Americans never acknowledged, for any lengthened period, his enlightened principles, but preferred following, in this respect, the example of the mother-country whose allegiance they had renounced; and, although admitting the vessels of all foreign nations to their ports, levied a tonnage duty on them higher than was paid by their own ships, with an additional ten per cent. on the duties payable on their cargoes.

FOOTNOTES:

[205] Vol. I. chaps. [xvi.](#), [xvii.](#), and vol. II. chaps. [i.](#), [ii.](#)

[206] This very condensed account of the voyages of Dampier, Anson, and Cook has been mainly taken from the collection of voyages published by J. Hawkesworth, London, 4to., 1773; and from Captain Cook's own narrative, London, 4to., 1779-1784; that of Dampier has been taken from his own account, and from 'Inland and Maritime Discovery,' vol. ii.

[207] Discovered by Davis, in 1686.

[208] Edmund Burke's brilliant sketch, entitled 'An Account of the European Settlements in America,' gives a clear and succinct history of their progress up to 1760.

[209] For the various details on this subject see Macpherson, vol. iii., and the annual register for each year of that period.

[210] It is estimated that since the Peace of 1783, and down to the end of 1873, there have been 8,779,174 aliens landed in the United States; emigrants arrived from various parts of the world. Various estimates have been made of the amount of money brought into the country by immigrants. The late John A. Kennedy, for many years Superintendent at Castle Garden, found it about \$68 per head for a given period. Placing it at only \$50, we have \$444,000,000 as the result up to this time. But the far greater value consists in the labour brought into the country, a very large proportion of which goes to build up new Territories and States in the West.—London 'Times' newspaper, January 20th, 1874.

[211] Statute of George II. chap. xiii.

[212] This "Case," with all the statements on both sides, will be found in the Accounts and Papers of the House of Commons, 1749-1777, vol. i. Miscellaneous, comprising No. 1 to No. 9.

[213] *Vide* Edwards' 'History of the West Indies,' vol. i. p. 239.

[214] 6 Geo. III. chap. ii.

[215] One especial cause of this was that Spain has at no modern period had a large internal commerce. Hence Spanish gold was largely spent in Europe in the purchase of many goods which she did not, or would not, produce herself.

[216] Cotton was first planted in Georgia in 1786, but made little progress for several years.

[217] In 1769 the colonies built and launched 389 vessels, 113 square rigged, and 276 sloops and schooners, of an aggregate burthen of 20,001 tons. Of these, Massachusetts (including Boston and Salem) provided nearly one-half, New Hampshire and Rhode supplied the next largest numbers, while New York had only 5 square-rigged vessels and 14 sloops and schooners, measuring in all 955 tons. Pennsylvania owned 1344 tons; Virginia, 1249; North and South Carolina, 1396; and Connecticut, 1542; while Georgia had 1 sloop and 1 schooner, whose combined measure was only 50 tons! In 1769 the entrances to all the ports of the present United States amounted to 332,146 tons, and the clearances to 339,362 tons; of which 99,121 tons cleared for Great Britain; 42,601 for Southern Europe and Africa; 96,382 for British and Foreign West Indies; and 101,198 for the continent of America and the Bahama Islands. The aggregate value of the whole imports amounted to 2,623,412*l.*, and of the exports to 2,852,441*l.*; of which Great Britain sent 1,604,975*l.*, receiving in return produce to the value of 1,531,516*l.* ('Journals of the House of Commons,' 1792, p. 357).

[218] The famous defence of Gibraltar, July 17, 1779, to Nov. 27, 1781, by General Elliott (Lord Heathfield), and Rodney's two actions, in which he defeated the Spanish and French fleets respectively, did more than anything to restore the prestige of England. In the first of these battles, fought off Cape St. Vincent, Jan. 1780, Rodney took the Spanish Admiral, Don Langara, and six of his ships; in the second, fought in the West Indies, on April 12, 1782, he took five ships and the French Admiral, the Count de Grasse, prisoners of war.

[219] Macpherson, vol. iv., *passim*.

[220] Sir Guy Carleton went to America to treat for peace May 5, 1782.

[221] This Treaty was signed in Tippoo's camp by Sir George Staunton as the English Ambassador, on the 11th of March, 1784.

[222]

Trade of Great Britain with foreign countries, 1760-1797.

Years.	Imports.	Exports of British and Foreign and Colonial Produce.
	Official Value.	Official Value.
	£	£
1760	10,683,596	15,781,176
1761	10,292,541	16,038,913
1762	9,579,160	14,543,336
1763	12,568,927	15,578,943
1764	11,250,660	17,446,306
1765	11,812,144	15,763,868
1766	12,456,765	15,188,669
1767	13,097,153	15,090,001

1768	13,116,281	16,620,132
1769	13,134,091	15,001,282
1770	13,430,298	15,994,572
1771	14,208,325	19,018,481
1772	14,508,716	17,720,169
1773	12,522,643	16,375,431
1774	14,477,876	17,288,486
1775	14,815,856	16,326,364
1776	12,443,435	14,755,704
1777	12,643,831	13,491,006
1778	11,033,898	12,253,890
1779	11,435,265	13,530,703
1780	11,714,966	13,698,178
1781	12,722,862	11,332,296
1782	10,341,629	13,009,459
1783	13,122,235	14,681,495

Years.	Imports.	Exports.—Official Value.		
	Official Value.	British Produce and Manufactures.	Foreign and Colonial Produce.	Total Exports.
	£	£	£	£
1784	15,272,877	11,255,057	3,846,434	15,101,491
1785	16,279,419	11,081,811	5,035,358	16,117,169
1786	15,786,072	11,830,195	4,470,536	16,300,731
1787	17,804,025	12,053,900	4,815,889	16,869,789
1788	18,027,170	12,724,720	4,747,519	17,472,239
1789	17,821,103	13,779,506	5,561,043	19,340,549
1790	19,130,886	14,921,084	5,199,037	20,120,121
1791	19,669,783	16,810,019	5,921,977	22,731,996
1792	19,659,358	18,336,851	6,568,349	24,905,200
1793	19,255,117	13,892,269	6,496,560	20,388,829
1794	22,276,916	16,725,403	10,021,681	26,748,084
1795	22,736,889	16,338,213	10,785,126	27,123,339
1796	23,187,320	19,102,220	11,416,694	30,518,914
1797	21,013,957	16,903,103	12,013,907	28,917,010

[223] For interesting details of this period of Irish history, see 'Life of Grattan,' by his son, and Phillipps's 'Memoirs of J. Philpot Curran.'

[224] The ships which entered the ports of Scotland, during the following years are thus reported by Chalmers:—

	Foreign trade.	Coast trade.	Fisheries, &c.
	Tons.	Tons.	Tons.
In 1769	48,271	21,615	10,275
In 1774	52,225	26,214	14,903
In 1784	50,386	31,542	10,421
In 1785	60,356	36,371	11,252

The Custom House accounts, from which the above is derived, state the ships to belong to Scotland, reckoning each vessel only one voyage in each year.

[225] *Vide* Adam Smith's 'Wealth of Nations,' by McCulloch, pp. 47, 48.

[226] Fleetwood gives the wages of a ship's carpenter, in 1514, at 3*d.* per day from Candlemas to Michaelmas, and 6*d.* from Michaelmas to Candlemas; a master caulker had 6*d.* and 5*d.*, and inferior caulkers 5*d.* and 4½*d.* per day respectively, 2*d.* per day being deducted for diet. A great service has been done, especially in the navy, by the diminishing the quantity of grog, and by the substitution for it of cocoa, &c.

[227] 26 George III. chap. 60.

[228] McCulloch's 'Commercial Dictionary,' article Registry; see also Macpherson, iv. pp. 107-111, who gives the rules for measuring the capacity of ships.

[229] Act of Congress, December 31, 1792, chap. i.

[230] For full details of the law with reference to neutral ships, see Wheaton's 'International Law,' vol. ii. c. iii.

[231] Macpherson, iv. pp. 112-116. It may create a smile when we state that one clause in this treaty stipulated "that the merchants are at liberty to keep their books as they please, and to write their letters in any language they think proper." Another clause provided that British subjects were "not compelled to keep their accounts on stamped paper with the exception of the Journal."

[232] Of one hundred and thirty-seven vessels thus engaged in the year 1787, eighty were owned in Liverpool, and thirty in Bristol.

[233] Macpherson (iv. 145) gives the following dimensions of a "slaver," from a return presented to Parliament in 1786. Taking the first on the list, a ship belonging to J. Brooks and Co., it appears that the length of the lower deck, with the thickness of the grating and the bulkhead, was 100 feet; her breadth of beam, from inside to inside, 25 ft. 4 in.; the depth of the hold, from ceiling to lower deck, 10 ft.; height between decks, 5 ft. 8 in.; length of the men's room on lower deck, 96 ft. 4 in.; breadth of the men's room on lower deck, 25 ft. 4 in.; length of the platform in men's room on the lower deck, 46 ft.; breadth of the same platform, 6 ft.; length of the boys' room, 13 ft. 9 in.; breadth of the boys' room, 25 ft.; length of platform in boys' room, 6 ft.; length of the women's room, 28 ft. 6 in.; breadth of women's room, 23 ft. 6 in.; length of platform in women's room, 28 ft. 6 in.; breadth of platform in women's room on each side, 6 ft. The number of air-ports going-through the side of the deck was 14; the length of the quarter-deck, 33 ft. 6 in., by a breadth of 19 ft. 6 in.; the length of the cabin was 14 ft., by 19 ft. in diameter, and 6 ft. 2 in. in height. The vessel, named after the owners,

the *Brooks*, is described as frigate-built without forecastle, and pierced for 20 guns. When leaving the coast of Africa she carried, besides her crew, 351 men, 121 women, 90 boys, and 41 girls, a total of 609! She lost by death, on her passage, 10 men, 5 women, 3 boys, and 1 girl. Her provisions for the negroes were:—20 tons of split beans, peas, rice, shelled barley, and Indian corn; 2 tons of bread; 12 cwt. of flour; 2070 yams, averaging 7 lbs. each; 34,002 gallons of water; 330 gallons of brandy, rum, &c.; 70 gallons of wine; 60 gallons of vinegar; 60 gallons of molasses; 200 gallons of palm oil; 10 barrels of beef; 20 cwt. of stock fish; with 100 lbs. of pepper. She was 49 days on the passage from the Gold Coast to the West Indies, the shortest passage of nine vessels reported being 42 days, and the longest 50 days.

[234] Sierra Leone was discovered in 1460. The number of slaves sent out is said to have been four hundred males and sixty women. As a settlement, Sierra Leone has met with indifferent success, and it has been attacked more than once by the French and the neighbouring Ashantees. The climate is peculiarly deadly to European constitutions (Macpherson, iv. pp. 128 and 223).

[235] ‘Observations on the Commerce of the American States,’ by Lord Sheffield.

[236] ‘Opinions on interesting subjects of Public Law and Commercial Policy, arising from American Independence,’ by George Chalmers.

[237] The story of the early life of Lord Nelson well illustrates the difficulties between the colonists, the Americans, and the English government. In 1784 Captain Nelson found himself, as commanding the *Boreas* frigate, the senior captain on the West India Station, under a general who hesitated about his duties, and was more than half inclined to support the enemies of England, and an admiral who candidly admitted he had not read the instructions from home under which he was bound to act. How Nelson solved the difficulty by simply enforcing the Acts of Parliament, and how Collingwood, in the *Mediator*, stood firmly by him, is well told by Southey in his ‘Life of Lord Nelson,’ pp. 54-60 (Bohn’s ed.).

CHAPTER VII.

Great Britain, A.D. 1792—War with France, Feb. 1, 1793—Commercial panic—Government lends assistance—High price of corn—Bounties granted on its importation—Declaration of Russia, 1780—Confederacy renewed when Bonaparte had risen to power—Capture of merchant vessels—Do “free ships make free goods?”—Neutral nations repudiate the English views—Their views respecting blockades—Right of search—Chief doctrines of the neutrals—Mr. Pitt stands firm, and is supported by Mr. Fox—Defence of the English principles—Nelson sent to the Sound, 1801—Bombardment of Copenhagen—Peace of Amiens, and its terms—Bonaparte’s opinion of free trade—Sequestration of English property in France not raised—All claims remain unanswered—Restraint on commerce—French spies sent to England to examine her ports, &c.—Aggrandisement of Bonaparte—Irritation in England—Bonaparte’s interview with Lord Whitworth—The English ministers try to gain time—Excitement in England—The King’s message—The invasion of England determined on—War declared, May 18, 1803—Joy of the shipowners—Preparations in England for defence—Captures of French merchantmen—Effect of the war on shipping—Complaints of English shipowners—Hardships of the pressing system—Apprentices—Suggestions to secure the Mediterranean trade, and to encourage emigration to Canada—Value of the Canadian trade.

Great Britain, A.D.
1792.

War with France,
Feb. 1, 1793.

Notwithstanding numerous predictions that the merchant shipping of Great Britain would be, to a great extent, supplanted by her now formidable rivals on the other side of the Atlantic, England possessed, in 1792, six hundred thousand tons of shipping, more than she had at the commencement of the American war, while at the same time her exports had risen to 5,457,733*l.*; and when the great war with France broke out, early in 1793, she owned 16,079 merchant vessels of 1,540,145 tons, under the management of 118,286 seamen. ^[238]

Commercial panic.

Government lends
assistance.

Yet though comparatively ready for war, its actual declaration caused a serious monetary convulsion, nor have we any record of so many commercial failures on the declaration of any previous war. The struggle for the retention of the American colonies had produced, as war invariably does, numerous evils; and the South Sea Bubble, many years earlier, had spread general ruin among those of her trading community who had rushed wildly into the field of speculation; but now commercial houses of the highest standing gave way under the shock. Indeed the sufferings of the people became so intense that Parliament, after much discussion, resolved to issue 5,000,000*l.* of exchequer bills as a temporary loan to such

of the merchants of London, Bristol, Hull, Liverpool, Glasgow, Edinburgh, and Leith as could furnish property equal to double the extent of the loan they requested. The announcement of the intention of the government to support the mercantile interests went so far towards dispelling the wide-prevailing alarm, that the entire amount applied for did not, after all, exceed 3,855,624*l.*; and in spite of this panic and of the calamities of war, English merchant shipping continued to prosper. Indeed war generally offers a large remunerative employment to her shipowners; moreover, in this instance, the dread of famine served to increase the demand for ships, and thereby enhanced their prosperity.

High price of corn.

As the winter of 1794-95 set in remarkably early, and proved to be of extraordinary length and severity, many apprehensions were entertained that the growing crops might suffer also. Nor were these fears groundless; the price of wheat, which was 55*s.* 7*d.* on the 1st of January, 1795, rose to 77*s.* 2*d.* on the 1st of July, and to no less than 108*s.* 4*d.* per quarter in August of the same year. Government had, early in 1795, [\[239\]](#) noticed with considerable anxiety the indications of impending dearth. To check or modify these extraordinary prices all neutral corn vessels bound to France were brought into English ports, their cargoes being, however, paid for with a very ample margin of profit to the owners.

Bounties granted on its importation.

Various remedies were proposed to counteract the evils of such high prices, and Parliament ultimately enacted that a bounty of from 16*s.* to 20*s.* per quarter (according to the quality of the corn), and of 6*s.* per barrel on flour from the south of Europe, should be paid till the quantity in store amounted to four hundred thousand quarters. This law was to be in force till the 30th of September, 1796. Indeed such was the state of alarm at the probable scarcity of food that the members of both Houses of Parliament bound themselves [\[240\]](#) to reduce the consumption of bread in their houses by one third, and to recommend, as far as possible, a similar reduction in the daily food of their friends and neighbours. By great exertions eight hundred thousand quarters of foreign wheat were brought into the kingdom during 1796; but even this extra quantity would have been insufficient to meet the wants of the people had not an abundant harvest at home during that year happily restored the

balance of supply and demand, so that prices once more declined to their ordinary range.

Declaration of
Russia, A.D. 1780.

But though saved from the calamities of famine at home, England had still to contend against the leading European powers. In 1780 Russia, roused from the lethargy of ages by an unusually energetic monarch, made great efforts to extend her power and commerce, not without a manifest desire to grasp as much as she could of that more justly belonging to other nations. With this view the Empress Catherine issued her famous “Declaration to the Courts of St. James, Versailles, and Madrid,” which is well worthy of consideration. In this celebrated document, which however remained for some years in abeyance, the Empress asserted that she had “fully manifested her sentiments of moderation, and, further, that she had supported against the Ottoman Empire the rights of neutrality and the liberty of universal commerce.” She also expressed her surprise that her subjects were not permitted “peaceably to enjoy the fruits of their industry, and the rights belonging to a neutral nation;” and as she considered these principles to be coincident with the primitive law of nations which every people may claim, and even the belligerent powers cannot invalidate without violating the laws of neutrality, she had declared:—

1. That all neutral ships may freely navigate from port to port and along the coasts of nations at war.
2. That effects belonging to the subjects of the said warring powers shall be free in all neutral vessels, not carrying goods contraband of war.
3. That all such merchandise be included as is mentioned in the 10th and 11th articles of her treaty of commerce with Great Britain, and similar obligations extended to all the powers at war.
4. That a blockaded port means one so well watched by the ships of the attacking power, that it is dangerous either to enter or leave it. [\[241\]](#)

Confederacy
renewed when
Bonaparte had risen
to power.

Such were the principles then hurled at England by Catherine of Russia, who placed herself at the head of an armed neutrality, consisting of Denmark, Sweden, and Russia. Lord North, for a while, evaded any direct reply to them; but the northern powers naturally found zealous

supporters in the nations now at war with Great Britain. Thus the contemporary declarations of France, Spain, and the United States lauded the moderation and public spirit which Catherine had displayed, while England maintained her principles inviolate. But it was only at the close of the century that the northern confederacy attempted to enforce their principles. Bonaparte had then concluded peace with Germany and Naples, had compelled Spain to coerce the Portuguese so as to destroy all English trade on the coast of Portugal, and had stimulated the action of the northern powers, by inspiring the Emperor Paul with an infatuation which could only succeed in men of weak minds like himself. The avowed aim of Bonaparte was to close every port in Europe against the merchant shipping of England, to combine the naval forces of Spain, Holland and France so as to make them act in concert, and, thus, if possible, to rescue the army he had left in Egypt.

Capture of
merchant vessels.

England's position had already become sufficiently perilous, owing to the order of the National Convention of France, issued in May 1793, to their ships of war and privateers not to respect British property in neutral vessels—an exception, however, being promptly made in favour of American vessels: a resolution which continued in force till the seizure by the English of the fleet of United States vessels, laden with provisions for France, forced the Convention to rescind their order.

American vessels thus became liable to capture on both sides, and continued so till the French government, hearing that Mr. Jay had been sent to London to remonstrate against the capture by English cruisers of American vessels, renewed the order in favour of the United States' ships. When, however, the National Convention found that Mr. Jay's remonstrances, so far from producing the effect anticipated, had led to the conclusion of a treaty of amity and commerce between the two countries adverse to France, they again decreed that their conduct to neutral flags would be regulated by that of their enemies. The French did not conceal their displeasure against the Americans, whom they accused of base ingratitude; although it was evident to the whole world that the assistance France had previously rendered to the revolted colonists was simply prompted by a desire to check the power of England, and not from any real sympathy with the American cause.

Do “free ships
make free goods?”

In this instance the enforcement of the paper treaties pre-existing between France and America threatened a rupture between the two countries. The French ambassador to the United States presented a remonstrance in September 1795 wherein he insisted upon the mutual duties of neutrality. Not having received any answer, he made further applications in the ensuing year, which were equally disregarded. In his last note (27th of October, 1796) he observed, “that neutrality no longer exists when, in the course of war, the neutral nation grants to one of the belligerent powers advantages not stipulated by treaties anterior to the war, or suffers that power to seize upon them.” Mr. Pickering, the United States Secretary of State, replied (3rd of November, 1796), that by the treaty of 1778 with France it was expressly stipulated *that free ships should make free goods*; ^[242] that the Americans, being now at peace, have the right of carrying the property of the enemies of France; and that the French could not expect them to renounce that privilege because it happened to operate to the disadvantage of one of the parties engaged in the war. He maintained *that the captures made by the British of American vessels having French property on board were warranted by the law of nations*; that the operation of this law was contemplated by France and the United States when they formed their treaty of commerce, and that their special stipulation on this point was meant as an exception to an universal rule. ^[243] The Americans, moreover, saw the advantage of preserving amicable commercial relations with Great Britain, and this “*perfidious condescension*,” as the French stigmatised it, “to the tyrannical and homicidal rage of the English government concurred to plunge the people of France into the horrors of famine.” ^[244] This violent correspondence thus threatened to embroil France and the United States, and in about three weeks afterwards (15th of November, 1796) M. Adet, the French Minister at Philadelphia, gave notice that his diplomatic functions were suspended, and, at the same time, the Directory of France refused to receive Mr. Pinckney, the accredited ambassador from the United States.

It was at this period, while French armies, under the generals of the Republic, were pursuing their victorious career by land, that England, on her natural element, the sea, sought to secure a compensating balance by the monopoly of the carrying trade of the world. Desperate measures were considered necessary to counteract the sweeping conquests of the French

and to save herself from what then appeared to be impending annihilation. In 1794 and 1795 the conquest of Belgium and Holland had been achieved by the arms of France; and in the following year Napoleon began his victorious campaign in Italy, his first battle having been gained at Montenotte on the 11th of April, 1796. ^[245]

But while the French were triumphant by land, the English soon became equally predominant on the ocean. Their fleets swept the seas of all their enemies. Through their vigilance, and the indomitable courage of their crews, the merchant vessels of England had never in any former war been so thoroughly protected. The premium of insurance which had, in 1782, been fifteen guineas per cent. on those of her ships engaged in the trade with India and China, did not exceed half that rate at any period between the spring of 1793 and the close of this terrible struggle. Nelson and his brave fellow-commanders were the only, but they were a complete, barrier to Napoleon's conquests. The fleets of France were either destroyed or shut up in her ports, and, to use Napoleon's own expression, he could not send a cockle boat to sea without the risk of its being captured. The loyalty and courage of the English nation had, amid all their sufferings, risen with the emergency. In Mr. Pitt the merchants, shipowners, and agriculturists had found a most able and truly loyal, though a cold, proud, disdainful champion; his extraordinary administrative talents and unswerving love of his country rendering him the idol of the mercantile and shipping classes. But though he had weathered the storm during seventeen years, he now felt it prudent to withdraw for a while from office; his retirement being, no doubt, greatly induced by the differences between him and the King respecting Catholic Emancipation. His influence, however, and the policy he had unflinchingly pursued, continued to guide the councils of the Addington administration which succeeded him.

Neutral nations
repudiate the
English views.

It was then that the question of neutral rights, originally promulgated by Catherine of Russia in 1780, first seriously attracted the attention of those nations of Europe who were not directly involved in the war, and especially of the United States of America, now fast becoming a power of no mean importance, and one, even then, prepared to assert her rights. These powers indignantly repudiated the claims which England, under Pitt, had enforced. They alleged that the accidents of war ought not to interfere

with the trade of those not engaged in it; and that they were justified in possessing themselves of such carrying trade as the belligerents had been obliged to relinquish. Holding these views, they claimed the right of frequenting freely all the ports of the world, and of passing to and fro between those of the belligerent nations; thus traversing from France and Spain to England, from England to Spain and France, and (what was still more disputable) of going from the colonies to the mother-countries, as for instance, from Mexico to Spain. They resolutely maintained the principle that “the flag covers the merchandise;” that the flag of neutrals sheltered from search the merchandise transported in their vessels; that in such vessels French merchandise could not be seized by the English, nor English merchandise by the French; in short, that the ships of neutrals were as sacred as the soil of the country to which they belonged. On the other hand, they admitted that they ought not to carry goods unquestionably contraband of war, it being incompatible with any notion of neutrality that the neutral should supply one of the belligerent nations with arms against the other. They, however, sought to limit their admission solely to articles fabricated for war, such as muskets, cannon, powder, projectiles, and materials for accoutrements of every kind; nor did they consider provisions interdicted, except such as were prepared for military and naval armaments, as, for example, biscuits.

Their views
respecting
blockades.

They made a second admission as to the ports which might be entered, but only on the express condition that these should be accurately defined; and, further, that it could be shown that such ports were *bonâ fide* blockaded by a naval force capable of laying siege to them, or of reducing them to famine. In such cases they allowed that running the blockade was an attempt to thwart one of the belligerents in the exercise of its legitimate right, while at the same time it afforded succour to one of the powers against the other. They insisted further, that the blockade should be preceded by formal declarations, that it should not be a mere paper blockade, and that it should be carried out by a force that it would be impossible to pass through without great danger.

Right of search.

Lastly, as it was necessary to ascertain whether a vessel really belonged to the nation whose flag she hoisted, and whether she had, or had not, on board goods contraband

Chief doctrines of the neutrals.

of war, the neutrals admitted the right of search if carried out with certain courtesies to be agreed upon, and if rigorously observed. Above all, they insisted that merchant vessels, regularly convoyed by a ship of war, should not be exposed to search, the naval, or royal flag, in their opinion, enjoying the privilege of being at once believed when it was affirmed, upon the honour of its nation, that the vessels so convoyed were of its own nation, and were not carrying interdicted articles. ^[246]

The doctrines asserted by the neutrals being similar in most respects to the declaration issued by Catherine of Russia, are therefore reducible to four principal points: (1) The flag covers the merchandise, that is to say, no neutral ship is to be searched for an enemy's goods. (2) No merchandise is to be interdicted except contraband of war. This contraband to be confined solely to articles made for the use of armies or navies, corn and naval stores not being included under this head. (3) Access not to be interdicted to any port unless it is *bonâ fide* blockaded. (4) No ships under regular convoy to be subjected to search. Such were the principles maintained by France, Prussia, Denmark, Sweden, Russia, and the United States of America: they were, however, but loosely observed when their own interests were involved.

Mr. Pitt stands firm, and is supported by Mr. Fox.

Notwithstanding this mighty confederacy, leagued together to overthrow the maritime supremacy of Great Britain, Mr. Pitt stood forward as the undaunted champion of her shipping interests, and asked the House of Commons whether they would tamely suffer the country to be borne down by the hostility of the northern powers, or "would submissively allow those powers to abuse and kick it out of its rights?" He declared that the four northern nations had leagued together to produce a code of maritime laws in defiance of the established law of nations, at the same time strenuously denying that "free bottoms make free goods," an opinion in which he was supported by Mr. Fox.

Defence of the English principles.

England accordingly insisted upon seizing enemy's merchandise wherever it could be found, maintaining the principle that contraband of war included naval and military stores, indeed everything which could give succour to an enemy; and, though she admitted that ports ought to be considered in a state of

blockade only when it was unsafe to enter them, she repudiated utterly the pretended right claimed by the neutral powers, that no vessel under convoy could be searched. “If,” exclaimed Mr. Pitt, “we subscribe to the doctrines laid down by the neutral powers, a small armed sloop would suffice to convoy the trade of the whole world. England would lose her own trade, and could not take any steps against the trade of her enemies. She could no longer prevent Spain from receiving the precious metals of the New World, nor preclude France from obtaining the naval munitions of war supplied by the North. Rather than thus sacrifice our naval greatness at the shrine of Russia, it were better to envelop ourselves in our own flag, and proudly find our grave in the deep, than admit the validity of such principles in the maritime code of civilised nations.”^[247]

Nelson sent to the Sound, 1801.

Bombardment of Copenhagen.

Although Mr. Pitt had retired about ten days from office when he delivered those opinions, his successors made prodigious efforts to maintain the policy he had so long pursued. Nelson, who had already gained immortal fame by the battle of the Nile (August 1st, 1798), was despatched, second in command to Admiral Sir Hyde Parker, to the Sound, with the double object of overawing Denmark and of preventing the junction of the fleets of the coalitionists. The details of Nelson’s extraordinary exploit are too well known to be here recapitulated. Practically assuming the chief command, he, amid the difficult navigation of the shoals which protect Copenhagen, bombarded the three Crown batteries of the Danes (April 2nd, 1801), attacked their fleet with signal success, and, when their determined resistance placed his squadron in the extremity of danger, and Admiral Sir Hyde Parker made the signal to discontinue the action, placing the glass to his blind eye, he exclaimed, “I really do not see Parker’s signal for leaving off action.”

After a terrible bombardment the Danes, who had suffered most severely, allowed their fire to slacken, and at length to cease. The captured vessels would not, however, yield up possession, so that an irregular firing was still partially kept up; and, in spite of their heavy losses, the Danes declined to withdraw from the confederacy of the neutral powers, or to open their ports to English merchant shipping, until that great confederacy^[248] was broken up by the death of Paul I. of Russia. When his successor, Alexander I., ascended the throne, the 24th of March, 1801, his first step was to remove

the embargo on merchant shipping, which had been so unjustifiably imposed by his predecessor; he had, indeed, no desire to wage a war of principles against France, and still less against England. The effects of this wise policy were soon apparent throughout Europe. England at once made peace with Russia^[249] and the northern powers, and secretly entered into negotiations for the settlement of preliminaries of peace with France.

Peace of Amiens,
and its terms.

Both nations were indeed by this time anxious for peace, Napoleon having in view the consolidation of his own personal power, while the English ministry sought repose for the country after a ten years' war; and the people themselves were equally anxious with their rulers that war should cease. By the treaty it was agreed that England should restore to France, and to the other powers of Europe, all the maritime conquests she had made, with the exception of those parts of India which she had definitively acquired, embracing Ceylon, captured from the Dutch, and Trinidad, wrested from the Spaniards. She proposed, however, to restore the Cape of Good Hope, Demerara, Berbice, Essequibo and Surinam to the Dutch; Martinique to the French; Minorca to the Spaniards; and to assign Malta to the still surviving members of the order of St. John of Jerusalem. England also evacuated Porto Ferrajo, which, with the island of Elba, was to be given back to the French. As an equivalent, the French were to evacuate the territory of Naples, that is, the gulf of Otranto, and Egypt, which France has ever been anxious to obtain, was restored to the Porte.

The preliminaries of this important treaty were signed on the night of the 1st of October, and a courier was despatched to Paris, with a view to make the public announcement simultaneously to the people on both sides of the Channel. The public joy both in France and England was of the most exciting character, as the negotiations, which had been carried on during nine months, had been kept profoundly secret up to the last moment. Napoleon and his colleagues, the other two consuls, Cambacérès and Lebrun, received the news at a cabinet council, and they embraced each other with undisguised delight. In this moment of satisfaction Cambacérès remarked, "Now that we have made peace with England, we have only to conclude a treaty of commerce, and all cause for future dissension between the two countries will be removed."

Bonaparte's opinion
of free-trade.

“Not quite so fast,” rejoined the First Consul, with some energy. “A political peace is concluded; so much the better, let us enjoy it. As regards a commercial peace, we will make one if we can. But I will not on any consideration whatever sacrifice French industry. I remember the distress of 1786.”^[250]

Treaties of peace were now formed between all the nations of the continent, and peace caused deeper public emotion in all ranks of people throughout Europe than perhaps any event which had happened for many centuries.

But this peace, in which so many millions of people rejoiced, was of short duration. Having by the treaties of Luneville and Amiens^[251] raised himself and France to the highest power and influence in Europe, Napoleon had now constituted himself consul for life; had restored the national religion to France, established tranquillity and good government in all the departments of the state, reorganised the finances, previously in a deplorable confusion; and had finally, with Prussia, secularised the ecclesiastical states of Germany, mediatised a number of smaller German princes, and parcelled out a large portion of Europe in the most arbitrary, though in some respects judicious manner. In a word, he had raised himself and France to the highest pitch of political influence, and only wanted the name of emperor, which in a year or two afterwards he assumed to be, in every sense the most powerful potentate in Europe. The world was dazzled with a success which, until that period, had been combined with many acts of profound wisdom. But this remarkable man, who could so well govern the unquiet spirit of France, could not govern himself—

“Oh! happy he who wisely can
Govern that little empire, man.”

Ere long his rage for power and distinction again involved all Europe in one of the most sanguinary wars recorded in the history of the world, a war which only terminated after the final struggle at Waterloo, and in the exile for ever of the Emperor from the scene of his glory.

Sequestrations of
English property in
France not raised.

By the fourteenth article of the treaty of Amiens it was provided that all sequestrations^[252] imposed in France and England on the property of their respective subjects during the war should be abolished, on the ratification of

All claims remain
unanswered.

the peace; and, acting in the spirit of good faith, the English government, to prove their desire of living on terms of amicable intercourse with France, at once and punctually performed their part of this agreement. Indeed as early as the 25th of May, 1802, Mr. Merry, the English diplomatic agent at Paris, notified to the French minister that His Majesty had, in conformity with this article, taken off the sequestration on the property of all French citizens in his dominions, at the same time adding his belief that the French government would perform the same act of justice towards such Englishmen as might have property in France. The reasonable request contained in the latter part of this notification was urged more than once by Mr. Merry, but Lord Whitworth's despatch from Paris to Lord Hawkesbury, dated the 10th of May, 1803, explains with how little success these applications were entertained by the French government. "With regard," said his lordship, "to the numerous memorials and representations which I have had to make to this government in behalf of those of His Majesty's subjects who have suffered by the detention and confiscation of their vessels and property in French ports, I have only to observe that they have, with one or two exceptions, remained unanswered." Under circumstances so studiously insulting, the British government, to the surprise of its own people, persisted in a pacific, if not submissive, demeanour. Instead of resenting such conduct, the English ministers were content with making new efforts at conciliation. They removed all the prohibitions on French trade imposed during the war, placing her shipping in all respects on the same footing as the vessels of other states in amity with Great Britain, a course involving much injustice to many British subjects whose interests were thus postponed to the paramount exigencies of state necessity.

Restraint on
commerce.

French spies sent to
England to examine
her ports, etc.

As every step of the First Consul indicated a desire to embarrass English commerce, it was impossible that friendly relations could be long maintained between France and England. Under the pretext of a renewal of arrangements formerly subsisting between the two countries, Napoleon despatched to England a number of agents whose ostensible occupation was to watch over the interests of French trade and navigation, their real business and most important commission being to make inquiries into the commercial value of each port; the course of exchange; the state of the neighbouring

manufactures and fairs; together with every detail necessary for establishing a rivalry in trade. These in themselves were legitimate and perhaps not unfriendly objects, but each agent was further required “to furnish a plan of the ports of his district,” with “a specification of the soundings for mooring vessels.” If no plan could be procured, then he was enjoined to point out, “with what wind vessels could come in and go out, and what was the greatest draught of water with which they could enter therein deeply laden.”

From the earliest moment of his assumption of power Napoleon had conceived the idea that England, “a mere nation of shopkeepers,” could be most effectually injured by directing his hostility against her trade, and certain it is that, with unintermitting pertinacity, he tried to carry out this design. It happened, however, that military men and engineers were selected to act as “commercial agents,” the two most able and active of whom having actually commenced their duties in Guernsey and Dublin, while others arrived in London to receive final instructions from leaders who had been recognised by Lord Hawkesbury, the English Commissary-general of the commercial relations with the French republic in London. The English government could hardly fail to notice these suspicious circumstances, revealing as they did but too plainly the object of these pseudo-commercial agents. Lord Hawkesbury consequently made a verbal representation to the French ambassador of the facts; but his reply was so flimsy and unsatisfactory, that the French agents were detained in London, with a further intimation that if they left it they would at once receive orders to quit the country.

Aggrandisement of
Bonaparte.

Irritation in
England.

It is unnecessary to recapitulate at length the various acts by which Bonaparte, during a presumed period of peace, endeavoured to aggrandise his power. Suffice it to say that he despatched an enormous military force to the island of San Domingo with a view of placing the colonial power of France in the West Indies on a level with that of Great Britain: an expedition which, however, proved most disastrous, many thousands of his soldiers finding their graves in a climate singularly dangerous to European constitutions.^[253] But when Bonaparte sent Ney with thirty thousand men “to give,” in the phraseology of the day, “a constitution” to Switzerland, the war party in England roused the entire nation to energetic action, and, though the public language of ministers still

breathed a spirit of peace, it was resolved that effectual steps should be taken to curb Napoleon's further progress.

Italy, Holland, and Liguria (as the Genoese republic was called at that time) had fallen under his iron rule. Spain he had likewise overawed, while exercising a predominating influence over Austria, whose power he had humbled; and, in the opinion of the French people, the insular position of England alone "prevented her from being absorbed into a French province," thus sinking beneath the domineering power of the French Dictator. The very thought of such humiliating conditions was totally incompatible with the independent spirit of Englishmen. The newspaper press, though at that time swayed by a spirit of party, yet still free, sounded the alarm, and attacked the ruler of France with an undaunted spirit, which Bonaparte could not endure. He lost all temper when complaining of the unmistakable opinions expressed of his conduct and intentions by the English press; though the too complaisant English ministers prosecuted the offending parties.^[254] In the midst of this excitement the question of the surrender of Malta arose, only to intensify the suspicions of the English people, the more so as Bonaparte was making prodigious preparations of a military and naval character in Holland.

Bonaparte's
interview with Lord
Whitworth.

Although Talleyrand on the 18th of February, 1803, in a conference, told Lord Whitworth that Sebastiani's mission was "purely commercial," his lordship on the same day received a message from the First Consul, appointing a personal interview to be held at the Tuileries three days afterwards, which revealed a very different state of things. This celebrated interview, which lasted two hours, had been previously carefully rehearsed by Bonaparte, with the idea of either deceiving or intimidating England. "Every wind which blows from England," exclaimed the petulant ruler of France, as he stood at one end of his table with Lord Whitworth at the other, "is charged with hatred and outrage;" and in this strain he harangued the ambassador throughout, inveighing with bitterness against England, though drawing the veil carefully to conceal his own acts of territorial ambition; and, in the midst of his tirades, throwing out broad hints that if England and France were but united they might share the whole world between them.^[255] "As for Malta," he exclaimed, after he had worked himself into a frenzy, "my mind is made up; I would rather see the English in possession

of the heights of Montmartre^[256] than that they should continue to hold Malta.” Lord Whitworth stared in calm, imperturbable silence at this outbreak of well-feigned passion; but, on that same evening, made his government acquainted with the extraordinary conversation to which he had listened, the most startling matter of which was the First Consul’s declaration “that Egypt must *sooner or later* belong to France;” and that in the dismemberment of the Turkish Empire France would take care to have her share. A few days later, conscious of the folly of his previous speech, he caused it to be notified to Lord Whitworth that “a project was in contemplation, by which the integrity of the Turkish Empire would be effectually secured,” Napoleon having evidently perceived that he had overshot his mark, and, therefore, that he must endeavour to obliterate the impression he had made on the mind of the English ambassador.

The English ministers try to gain time.

The bolt was however shot, and to retrieve his indiscretion was beyond his power. The English ministry, although they saw that war was inevitable, were desirous of protracting the issue; they, therefore, desired Lord Whitworth to state that His Majesty could not evacuate Malta till substantial security was provided for those objects which might be materially endangered by the removal of his troops. While England was firm, Bonaparte, on the other hand, as was often his habit whenever his schemes were thwarted, rashly published an extravagant paper in the *Moniteur*, as an exposition of the powerful state of France, and of his own glory. The whole of the past policy of France, together with his intentions, were disclosed in this ostentatious instrument. The other powers on the continent were plainly told how impossible it would be for any of them to obstruct or interfere with the prosecution of French designs; while they were reminded of the advantages to be derived from the protection of France, and of the destructive consequences of her enmity.

Excitement in England.

The public mind in England was wound up to the highest pitch of excitement by the publication, in the official *Moniteur*, of the “Acts of the Republic.” Nor did the love of peace, the desire of a commercial people to preserve an uninterrupted intercourse with the continent, or the dread of fresh burthens, allay their indignation. All the independent portion of the English press poured forth a ceaseless torrent of abuse of the French despot, thereby

accelerating the crisis; nay, even the government journals, which had previously observed a guarded silence, now joined the chorus of national indignation. The English ministers had sent orders to the Cape of Good Hope to surrender that colony; and some of its forts had been actually given up to the Dutch government. The commander-in-chief, however, learning from England the critical state of affairs, repossessed himself with adroitness of the places given up, relanded his troops, and held possession of the settlement until counter-orders arrived.

In the meantime Bonaparte was with the utmost secrecy preparing the most formidable preparations in Holland, and had already conceived and partly matured his grand design for the invasion of England. Yet even then, so completely were ministers unprepared or unconscious of his proceedings, that one of the Lords of the Admiralty said, in the course of a debate in Parliament, that only a few miserable fishing-boats existed in the Dutch ports; while, so late as the 23rd of February, the Prime Minister declared the country to be in a state of profound peace.

The King's
message.

The invasion of
England determined
upon.

War declared, 18
May, 1803.

However, on the 8th of March, 1803, the King sent a message to the House of Commons, acquainting them that he had judged it expedient to adopt additional measures of precaution for the security of his dominions, and, only two days later, the whole of the militia of the United Kingdom were called out and embodied. The energy and spirit of the monarch obtained an enthusiastic support from all ranks of his people; and Bonaparte, not yet quite prepared, launched forth one of his manifestoes in the form of a despatch to his ambassador at the English court, in which he disclaimed having any prepared armament except one at Helvoetsluys; adding, further, that this, though destined solely for purposes of colonisation, and ready to sail, should, in consequence of the king's message, at once be countermanded. Very soon afterwards, however, he despatched staff-officers to Holland, Cherbourg, St. Malo, Granville, and Brest, with orders to repair all the gun-boats of his former Boulogne flotilla, and to collect in every port all craft available for the transportation of troops. He further ordered the construction of a vast number of flat-bottomed boats to carry heavy guns, and made the most formidable preparations for his cherished scheme of

invading England. He also made arrangements for the occupation of Hanover, Portugal, and the gulf of Otranto (Tarentum), so as to control the Mediterranean, with the view of having thus under his command the whole continent of Europe from Denmark to the Adriatic.^[257] With a similar object he collected a vast force at Bayonne to march into the Peninsula, and a second army at Faenza of ten thousand men and eighty guns to fall upon Naples; while he, at the same time, relanded the troops at Helvoetsluys, which, he had declared, were destined for Louisiana, and despatched them to Flushing. All the ports of the north of France were fortified in the strongest manner, and when, a few weeks later, he formed the celebrated camp at Boulogne, war was declared on the 18th of May, 1803, after a peace of only a year and a half.^[258]

Joy of the
shipowners.

Preparations in
England for
defence.

Captures of French
merchantmen.

The shipowners and merchants of London, after what had taken place, heard the news of the formal declaration of war with tumultuous exultation; indeed war seemed then more acceptable than peace had been eighteen months before. Nelson was appointed to take charge of the Channel fleet, and a force of volunteers was speedily embodied, sufficient to convince Bonaparte that the invasion of England was not so easy as he had anticipated, even “although all France rallied around the hero which it admired.”^[259] The English government, not waiting for the formal declaration of war, seized upon all the French merchant vessels they could meet with. Indeed, the news reached Paris, just after Lord Whitworth left that capital, that two English frigates had captured in the bay of Audierne some French merchantmen which were endeavouring to get into Brest. The intelligence of other captures soon followed. There had been an agreement between France and the United States on the subject of such captures (30th of September, 1800); but, strangely enough, the treaty of Amiens was silent upon this subject; hence the English government, viewing the prodigious military preparations of Bonaparte on land, retaliated in the only way they could retaliate effectively, by claiming the supremacy of the ocean. In seizing the French merchantmen before war had been formally declared, England adhered to her invariable practice when war, though unproclaimed, existed de facto. But the ruler of France was unprepared for this blow, and, in the first

impulse of his resentment, he issued a decree arresting as prisoners of war all Englishmen then travelling in France. Nor was he induced till after long solicitation to limit the action of this decree to persons holding the king's commission.^[260]

Effect of the war on shipping.

The first effect of hostilities on England's maritime commerce and shipping seems to have been to reduce the nominal value of the cargoes exported from 41,411,966*l.* in 1802 to 31,438,985*l.* in 1803. The next effect was to introduce into the carrying trade of Great Britain an extra supply of one hundred and twelve thousand eight hundred and nineteen tons of foreign vessels, whilst the third was to lessen, by one hundred and seventy-three thousand nine hundred tons, her own mercantile shipping; so that the success which had attended the business of the shipowner during the previous war no longer accompanied him, especially during the earlier period of the renewal of hostilities, the majority of this class suffering heavy losses. The owners of neutral vessels, while enjoying many other privileges, had likewise the advantage of obtaining from the Baltic and elsewhere the materials necessary for the construction of their vessels, at less cost than the British shipowners. The English government also levied a heavy tax on timber, hemp, canvas, and other articles requisite for the conduct of their business, and insisted on licenses being taken out, and bonds given to the commissioners of customs for the construction and navigation of their ships.

Complaints of English shipowners.

Against these and other special burdens British shipowners now loudly, and not without cause, complained. They remarked, with much force, that it was of the last importance that their vessels should trade on equal terms with those of other nations, but that "so long as they continued to be burthened with tonnage, convoy, port-duties, extra insurance, heavy taxes for docks, canals, tunnels, and *a thousand other water-brain schemes*, they will continue to drag on a miserable existence, till even the profitable concerns of *ship-breaking* shall be seen no more."^[261] Had their complaints been confined to the special burdens with which they were afflicted, the sympathy of the country would have gone with them; but when they formed an association, which had for its object the maintenance of the old navigation laws in their original integrity, they received no support even

from Mr. Pitt, a leading member of whose Administration declared “that however wise and salutary the navigation laws might have been in the infancy of our commerce, he did not perceive the efficacy of them at present, and the necessity of strictly adhering to their original provisions.” This truth was, indeed, at last beginning to break forth upon the world; but it still required many years to convert the shipowners to what they not unnaturally regarded as a heretical doctrine.

Thus they contended, with redoubled force, that if, in the infancy of commerce, the navigation laws had been wise and salutary, their rigorous enforcement now was more than ever imperative, not only from the amazing increase of foreign shipping, but from the heavy duties to which British shipping was liable. British ships, they said, stood charged with duties not merely on every article necessary for their equipment, amounting to upwards of seven per cent. on their whole value, but double duty was levied on their gross tonnage, denominated a *war tax*, though really the offspring of what was termed “a profound peace.”^[262] The ships of Denmark, Norway, Sweden, and Prussia, they went on to state, could be built and navigated at much lower rates than those of Britain, while many naval stores were the original produce of countries whose ships were not burthened with heavy duties, and where, too, provisions were cheap and wages low. Hence foreigners, it was alleged, “were able to take freight at a lower rate; and, as the smallest difference in that respect determined the preference of the merchant, the carrying-trade of Europe was almost entirely wrested from us.”

Whatever may have been the cause that led to this result, it was stated publicly at the end of March 1804, that there was then scarcely a single offer of trade for a British bottom, except such as were employed in the coasting or colonial trades, which were held secure by the strict enforcement of the Navigation Act. The shipowners pointed with dismay to the mooring places in the river Thames, which were crowded with foreign ships in full employ; while British vessels covered the banks or filled the wet docks in a state of inactivity and decay.

Hardships of the
pressing-system.

Nor did their complaint stop here. The arbitrary system of impressing sea-apprentices, a system which acted with especial injury in the case of those of the watermen on the river who, being liable to be impressed in the fourth year of their

Apprentices.

apprenticeship, were lost to their masters when their services were becoming remunerative, was severely and justly criticised; indeed it is on record that, before this period, there had been no fewer than thirty thousand watermen, etc., at work on the river Thames, between Westminster-bridge and Gravesend, exclusive of the British and foreign seamen on board the shipping; but that in 1804 there was not a sixth part of that number. The new dock regulations and the employment of carts instead of lighters to carry goods to the merchants' inland warehouses swelled the general catalogue of grievances, while the erection of the East India Docks, then in progress, was looked on as the crowning act of mischief, and was therefore viewed by the forlorn shipowners with unmitigated horror.

Suggestions to
secure the
Mediterranean
trade,

Amid this numerous body of complainers, some of whose grievances were real, some insignificant, and others imaginary, there were happily men who had more enlarged views, and who were able to urge on the government^[263] to take effectual steps to extend the foreign trade, and to devote more attention than heretofore to the colonial and especially to the West India business, in which large commercial fortunes were soon afterwards realised. The trade of the Mediterranean was proposed by them to be cultivated and re-established, as a course of business likely to give vast employment to her shipping, and to secure for England a predominating power and influence over other nations. With this view the establishment of well-qualified agents, versed in commercial affairs, in various ports of that sea was strongly advocated.

and to encourage
emigration to
Canada.

Value of the
Canadian trade.

But perhaps the most important point of policy pressed upon the attention of the government in connection with shipping was the expediency of encouraging emigration to Canada, with a view to the cultivation of hemp, timber, and other naval stores, so as thus to render England independent of Russia and of the other Northern powers. Far-seeing politicians, and especially Mr. Pitt, had already perceived that the ultimate objects of Russia were to unite the Baltic and the Mediterranean, to secure the trade of the south by the naval stores of the north, and eventually to dispossess England of the trade of the Levant; and this judgment was confirmed by the fact that at this

juncture Russia held back and allowed Napoleon to prosecute his schemes of conquest unchecked. It was, therefore, deemed sound policy on the part of England to take every means in her power to enlarge her shipping business with her own colonies. The timber trade alone sufficed to tempt many enterprising Englishmen to strain every effort to open out the vast regions comprised under the names of Upper and Lower Canada. They soon discovered that in those colonies there were nine or ten different indigenous species of oak; that among these the live oak, a very superior description of timber, was of most use for ship-building; that firs and pines abounded in great variety; that the uncultivated parts of the country contained the most extensive forests in the world; and that the white Canadian pine was better adapted than any wood to be found in the Baltic for masts of the largest and best description.

They were also aware that when Canada was under the dominion of the French a sixty-gun ship had been constructed of the red pine of that country, which was found very suitable for the purpose. Besides various descriptions of timber well adapted for ship-building purposes, Canada produced the pitch-pine tree, which yields abundance of pitch, tar, resin, and turpentine, so that English shipowners had resources within their own colonies which would render them in a great measure independent of Russia if they were only developed. The great importance of these and other articles of naval stores, and their prodigious abundance in Canada, caused much more attention to be directed to the trade of that country than had hitherto been the case; but it was only after the perseverance of many years in these judicious efforts to develop the agricultural riches of her North American colonies, that English shipowners reaped the benefits of the extensive trade now carried on between them and the mother-country.

FOOTNOTES:

[238] Abundant evidence on the elasticity of the commerce of England in spite of all the odds against her may be seen in Macpherson, vol. iv. *passim*; in Lord Sheffield's 'Observations on the Treaty with America;' and Chalmers' 'Comparative Estimate of the Strength of Great Britain,' 1794.

[239] The sufferings of the French, especially in Paris, in March, 1795, from famine and the severity of the weather, was even greater than any experienced in England (Alison, ii. p. 604).

[240] ‘Parliamentary History,’ Dec. 11, 1795.

[241] *Vide* ‘Annual Register,’ 1780, p. 348, where the declarations of Great Britain and the other Powers will be found. Denmark and Sweden replied in July 1780, assenting to Catherine’s doctrines.

[242] See further details on this subject, and on the duties of neutrals, together with an examination of the Orders of Council, [infra ch. viii.](#)

[243] *Vide* ‘Annual Register,’ 1796, p. 308.

[244] *Vide* the American despatch quoting the French minister’s despatch of the 29th of Sept., 1795. This famine was subsequently noticed by Bonaparte in his speech to Cambacérès on receiving the news of the Peace of Amiens.

[245] Alison, iii. p. 28.

[246] See various details on these matters in the correspondence between Lord Hawkesbury and Mr. Rufus King, quoted in Mr. Alex. Baring’s pamphlet, pp. 39, 41, 53; and ‘Rights of War as to Neutrals,’ in Wheaton’s ‘Elements of International Law,’ vol. II. ch. iii. pp. 132-260; and in Furneaux, ‘Treaties of Peace since that of Westphalia,’ 8vo, Lond., 1817.

[247] On the 18th January, 1798, the French Directory issued a decree declaring: “that all ships having for their cargoes, in whole or in part, any English merchandise shall be held good prize, whoever is the proprietor of such merchandise, which should be held contraband from the single circumstance of its coming from England, or any of its foreign settlements; that the harbours of France shall be shut against all ships having touched at England except in cases of distress; and that neutral sailors found on board English vessels should be put to death”—Ann. Reg. 1800, 54, 55.

[248] The fleets of the Confederacy were as follows: Spain and Holland united possessed eighty ships fully equipped. Sweden had twenty-eight, Russia thirty-five, Denmark twenty-three, making a total of one hundred and sixty-six ships of the line: a force that would have been infinitely superior to the British navy, but that the efficiency of her vessels and armaments far surpassed those of the Confederacy. Austria alone was then in amity with Great Britain.

[249] Alison, iv. p. 529.

[250] M. Thiers, in his ‘Consulate and the Empire,’ book xi. vol. iii., relates this remarkable anecdote, and adds that “Cambacérès, with his usual sagacity, had touched upon the difficulty which at a subsequent period was again to embroil the two nations.” And see [ante, p. 294.](#)

[251] The preliminaries of peace were signed at Amiens October 1, 1801, and the definite Treaty March 27, 1802. See also Alison, iv., pp. 604-624.

[252] See excellent remarks on the ‘Rights of war as against Enemies’ in Wheaton, vol. ii. ch. ii. pp. 75-131.

[253] It is said that of thirty-five thousand men (including reinforcements) scarcely seven thousand reached France again (Alison, v. p. 43).

[254] The most striking instance was the prosecution of M. Peltier for an alleged libel on the First Consul. In this Peltier was condemned, though defended with extraordinary power and eloquence by Sir James Mackintosh (see ‘Trial of Peltier,’ etc., Lond. 1801).

[255] Perhaps the most graphic description of this remarkable scene is that by M. Thiers, in his ‘History of the Consulate and the Empire.’

[256] “*Effroyable parole!*” (“Frightful expression!”) ejaculates M. Thiers, “which was afterwards but too truly realised for the misfortune of our country” (France).

[257] M. Thiers dwells on all these aggressive schemes with a certain national pride. The lives of millions were to be sacrificed to carry out these mad freaks of ambition!

[258] The English Legislature was nearly unanimous in supporting the Declaration of War; the numbers in the House of Commons being three hundred and ninety-eight for, sixty-seven against; and in the House of Lords, one hundred and forty-two to ten (Alison, v. p. 126).

[259] Speech of M. de Fontanes in his reply to the *Corps d' l'Etat*, when war was announced by Bonaparte.

[260] Others who had not held the King's commission were occasionally thus detained. Thus the Rev. Mr. Lee, then a Fellow of New College Oxford, was kept a prisoner at Verdun till 1814. The number altogether arrested is said to have been ten thousand (Alison, v. 114).

[261] Extracted from two letters which appeared in the *Morning Chronicle* in the early part of 1804, and which attracted considerable attention at the time.

[262] Tonnage Duties Acts, 42 Geo. IV. c. 43; 43 Geo. IV. c. 70, United Kingdom.

[263] See sensible remarks in Mr. Baring's pamphlet (p. 7) on Mr. Pitt's firmness in not giving way to the popular clamour on this occasion.

CHAPTER VIII.

Mr. Fox tries to make peace with France, 1806—Napoleon's Proclamation—English Order in Council, April 8, 1806—Berlin Decree, Nov. 10, 1806—Its terms, and the stringency of its articles—Napoleon's skill and duplicity—Russian campaign conceived—Berlin decree enforced—Increased rates of insurance—English Orders in Council, 1807—Preamble of third Order in Council—Terms of this Order—Neutrals—The Orders discussed—Embargo on British ships in Russia—Milan Decree, Dec. 17, 1807—Preamble and articles—Bayonne Decree, April 17, 1808—Effect of the Decrees and Orders in Council in England—Interests of the shipowners maintained—Napoleon infringes his own decrees—*Moniteur*, Nov. 18, 1810—Rise in the price of produce and freights, partly accounted for by the Orders in Council—Ingenuity of merchants in shipping goods—Smuggling—Licence system in England—Cost of English licences—Their marketable value—Working of the licensing system in England—Simulated papers—Agencies for the purpose of fabricating them.

Mr. Fox tries to make peace with France, 1806.

Napoleon's proclamation.

On the death of Mr. Pitt, January the 23rd, 1806, his great political and rival successor, Mr. Fox, endeavoured to make peace with France, but in vain. Indeed before his own death, which took place the 13th of September the same year, he had become satisfied that any lasting peace with Napoleon was impossible. Having vanquished and humbled two of the greatest powers of Europe, the ambition of the ruler of France grew in proportion to his conquests; his arrogance being only qualified by the reflection that he could not reach England by land, and could not therefore crush her, as he had done so many other European states; in fact, she had proved to be the one stumbling-block between him and universal empire. Unable to reach her with his armies, and frustrated in every attempt to overcome her fleets at sea, he attempted her ruin by means which appeared at the moment more within the reach of one who had overrun Europe with his armies. Thus, he declared to the European Powers that he would not restore any of their territories till England had restored the colonies she had taken during the previous war from France and other countries. Allowing only a brief armistice to the Prussians, and having arranged everything in his own mind, he proclaimed the whole of their ports to be blockaded, and closed those of Hanover against the ships of England and her manufacturers. Defeated by this country in every action at sea, he resolved, if an alliance with all the leading European powers could be secured, to destroy her commerce by a

gigantic but impracticable scheme, known as his “continental system,” the one object of which was the exclusion of British ships from every port in Europe.

English Order in Council, April 8, 1806.

Conduct so outrageous was not to be endured by even the mild government of Mr. Fox, which, on receipt of the intelligence of the exclusion of the English flag from the harbours of the Elbe, recalled the British ambassador from Berlin, declared the rivers Ems, Weser, Elbe, and Trave, and all Prussian harbours to be in a state of blockade; laid an embargo on every ship of that nation then in British ports, and issued an Order in Council [April 8, 1806] authorizing the seizure of all vessels navigating under Prussian colours, so that before many weeks had elapsed four hundred of its merchant vessels were laid up in the harbours of Great Britain.

Berlin Decree, Nov. 10;

These stringent measures were the forerunners of Napoleon’s famous decrees.^[264] The redoubtable Berlin decree issued at that city on the 10th of November, 1806, was meant, we must presume, to be only applicable to the countries actually occupied by his armies, including France, Holland, Spain, Italy, and the whole of Germany, although it declared the British Islands to be in a state of blockade.

Its terms.

This extraordinary document set forth that England did not admit the right of nations as universally acknowledged by all civilised peoples; that she declared as an enemy every individual belonging to an enemy’s state, and in consequence made prisoners of war, not only of the crews of armed but also of merchant vessels, and of even their supercargoes; that she applied to merchant vessels and to articles of commerce, the property of private individuals, the right of capture; that she declared ports unfortified, and harbours and mouths of rivers to which she had not sent a single vessel of war, to be blockaded, although a place ought not to be considered blockaded excepting when it is so closely invested that no approach can be made to it without imminent hazard, and that she even declared places blockaded which her united forces would be incapable of blockading, such as entire coasts and a whole empire. It further stated that this unequalled abuse of the right of blockade had no other object than to interrupt the communication of different nations, and to extend the commerce and

industry of England upon the ruin of those of the continent; that, this being evidently the design of England, “whoever deals on the continent in English merchandise favours that design and becomes an accomplice; that this conduct of England (worthy of the first ages of barbarism) has benefited her to the detriment of other nations; that it being right to oppose to an enemy the same arms she makes use of, when all ideas of justice, and every liberal sentiment (the result of civilisation among men) are disregarded, we have resolved to enforce against England the usages which she has adopted in her maritime code.”^[265] Of course every reader of history knows that many of these charges have no foundation in fact. Nevertheless, Napoleon, then in the plenitude of his power, decreed:—

and the stringency
of its articles.

1. That the British Islands are in a state of blockade.
2. That all commerce and correspondence with them is prohibited, consequently no letters or packets, written in England, or to an Englishman, if written in the English language, shall be despatched from the post-offices, but shall be seized.
3. That every individual, a subject of Great Britain, of whatever rank or condition, who is found in countries occupied by French troops, or those of her allies, shall be made prisoner of war.
4. That every warehouse, and all merchandise or property whatever, belonging to an Englishman, are declared good prize.
5. That one half of the proceeds of merchandise declared to be good prize, and forfeited as in the preceding articles, shall go to indemnify merchants who have suffered losses by the English cruisers.
6. That no vessel coming directly from England, or her colonies, or having been there since the publication of this decree, shall be admitted into any port.
7. That every vessel which, by a false declaration, contravenes the foregoing dispositions, shall be seized, and the ship and cargo confiscated as English property; and that the councils of prizes at Paris and at Milan are authorized to take cognisance of whatever cases might arise in the empire and in Italy, under this article; the whole instrument winding up with orders to communicate its provisions to the kings of Spain, Naples, Holland, Etruria, and to all others the allies of the French, whose subjects, as well as

the subjects of France, “were victims of the injuries and barbarity of the English maritime code.”

Napoleon’s skill
and duplicity.

These extraordinary measures having been long conceived by Napoleon, were now, in the full tide of his continental victories, launched against the commerce of England. It will be seen by the calm perusal of this famous but outrageous document, how well Napoleon knew how to frame his edicts in a form to captivate the multitude, to mask his ulterior objects under the appearance of liberty, and to assume the character of a redresser of the wrongs of nations oppressed by the alleged malignity of England. But his staunchest encomiasts have scarcely dared to justify this atrocious decree, or to support his pretence that it was merely issued to compel the English to renounce the supremacy over the ocean, or to intimidate the agents connected with English shipping, and principally the merchants of the Hanseatic towns, whom he stigmatised as “smugglers by profession,” as they had contrived, in spite of the raging of hostilities, as all merchants will contrive, to pour into the continent every description of merchandise. [\[266\]](#)

M. Thiers states [\[267\]](#) that Talleyrand knew nothing of this decree until it was made public, although Napoleon had despatched extraordinary couriers to the governments of Holland, Spain, and Italy with orders to some, and a peremptory summons to others, to carry it into immediate execution. Indeed Marshal Mortier, who had already invaded Hesse, was ordered to proceed with all speed to the Hanseatic towns, Bremen, Hamburg, and Lubeck, and to seize not only those towns but the ports of Mecklenberg and of Swedish Pomerania, as far as the mouths of the Oder. He was further instructed, by occupying the rich entrepôts of these towns, to seize all goods of English origin, to arrest the English merchants, to transport to Germany a certain number of seamen taken from the flotilla of Boulogne, in order that they might cruise in boats at the mouths of the Elbe and Weser, and to sink at once every merchant vessel suspected of attempting to run the blockade.

Russian campaign
conceived.

While carrying into effect all over Europe “the continental system,” shadowed forth in this decree, in retaliation, as Napoleon alleged, of the English “paper blockade,” and fulminating his memorable manifesto against England, its author, as is now confessed, was meditating a march to the Vistula, to compel Russia, the only remaining friend and ally of England, to turn

against her, while he at the same time attempted to turn the Poles against Russia, by amusing them with the silly notion of the restoration of the kingdom of Poland under the benign protection of France, and to work upon the Sultan of Turkey, with a view to excluding England from the whole of Europe, and thus “to achieve the command of the ocean by land.”

Berlin decree
enforced.

The news of the Berlin decree did not, however, create at first so much alarm as might have been anticipated. Its extreme rigour led the majority of shipowners to believe it could not be enforced; though more prudent parties waited to see the upshot of the affair before they hazarded their cargoes on distant voyages. Matters, consequently, remained in a very uncertain state until March 1807, when enterprising shipowners resumed their shipments. These were carried on to a moderate extent, till August 1807, when it was found to a certainty that the Berlin decree had been put in force, and that, wherever the French could send their custom and excise officers, a number of vessels and cargoes had been seized, so that a virtual suspension of all shipping to the continent took place from that date.

Increased rates of
insurance.

The seizure of various vessels at Antwerp raised the rates of insurance from England to Holland to fifteen, twenty, and thirty guineas per cent., and, at even these exorbitant rates, the greatest difficulty was experienced in effecting an insurance. It was then when her maritime commerce had suffered severely, that the English government resolved to put in force retaliatory measures of an equally stringent character.

English Orders in
Council, 1807.

The first Order in Council^[268] only contained certain regulations under which the trade to and from the enemy's country should thereafter be carried on. The *second* order,^[269] 17th of January, 1807, set forth that “whereas the sale of ships by a belligerent to a neutral is considered by France to be illegal; and whereas a great part of the shipping of France and of her allies has been protected from capture during the present hostilities by transfers or pretended transfers to neutrals; and whereas it is fully justifiable to adopt the same rule, in this respect, towards the enemy which is applied by the enemy to this country,” his Majesty in Council consequently orders “that in future the sale to a neutral of any vessel belonging to the enemy shall not be deemed to be legal, nor in any manner to transfer the property, nor to alter

the character of such vessel; and all vessels now belonging, or which shall hereafter belong, to any enemies of his Majesty, notwithstanding any sale or pretended sale to a neutral, after a reasonable time shall have elapsed for receiving information of this order, at the place where such sale or pretended sale was effected, shall be captured and brought in, and shall be adjudged as lawful prize to the captors.”

Preamble of third
Order in Council.

Terms of this Order.

The *third*, and far the most important order, issued on the 11th November, 1807, declared the absolute blockade of his Majesty’s dominions, and of all countries under their control, with certain exceptions which were specified. The much criticised preamble recited that “whereas certain orders establishing an unprecedented system of warfare against this kingdom, and aimed especially at the destruction of its commerce and resources, were some time since issued by the government of France, by which the British Islands were declared to be in a state of blockade, thereby subjecting to capture and condemnation all vessels, with their cargoes, which should continue to trade with his Majesty’s dominions: and whereas by the same orders, all trading in English merchandise is prohibited; and every article of merchandise belonging to England, or coming from her colonies, or of her manufacture, is declared lawful prize:” and whereas “the nations in alliance with France, and under her control, were required to give, and have given, and do give, effect to those orders: and whereas his Majesty’s order of the *9th of January* last, ^[270] has not answered the desired purpose, either of compelling the enemy to recall those orders, or of inducing neutral nations to interpose with effect to obtain their revocation; but, on the contrary, the same have been recently enforced with increased rigour: and whereas his Majesty, under these circumstances, finds himself compelled to take further measures for asserting and vindicating his just rights, and for supporting that maritime power which the exertions and valour of his people have, under the blessing of Providence, enabled him to establish and maintain; and the maintenance of which is not more essential to the safety and prosperity of his Majesty’s dominions, than it is to the protection of such States as still retain their independence, and to the general intercourse and happiness of mankind: his Majesty is therefore pleased” to order “that all ports and places of France, their allies, or of any other country at war with his Majesty, and all other ports and places in Europe, from which, although

not at war with his Majesty, the British flag is excluded, and all ports and places in the colonies belonging to the enemy, shall from henceforth be subject to the same restrictions, in point of trade and navigation, with the exceptions hereinafter mentioned, as if the same were actually blockaded by his Majesty's naval forces in the most strict and vigorous manner."

Neutrals.

All trade in articles or manufactures of such countries was declared unlawful; and "every vessel trading from or to the said countries or colonies, together with all goods and manufactures and merchandise on board, shall be captured and condemned as prize to the captors."^[271] His Majesty being desirous, nevertheless, not to subject neutrals to any greater inconvenience than is absolutely inseparable from carrying into effect a just determination to counteract the designs of his enemies, and to retort upon them the consequences of their own violence and injustice, and being yet willing to hope that it may be possible (consistently with that object) still to allow neutrals the opportunity of furnishing themselves with colonial produce for their *own* consumption and supply; and even to leave open for the present such trade with the enemy as shall be carried on directly with the ports of his Majesty's dominions, or of his allies," makes exceptional certain places and points which are there recited.

In this order the falsification of certificates of origin was specially dealt with, and vessels carrying such simulated papers were declared lawful prizes. On the 18th of November another Order in Council was issued approving the draft of instructions to the commanders of H.M. ships of war and privateers to carry out the previous order. On the 25th of November additional orders and instructions were issued, containing supplemental provisions, and specifying the periods at which the Orders in Council of the 11th of November should come into operation at distant ports of the world; and, on the 18th of December, 1807, further supplemental orders were promulgated, all directed to carry out the views of government in the West Indian colonies and in the Mediterranean.^[272]

The Order in Council^[273] of the 11th of November is referred to even in the present day as a justification of the Berlin Decree. It ought, however, to be remembered, by those who desire to question the character of England for uprightness, that the Prussian government had previously in a forcible and

hostile manner taken possession of the electorate of Hanover, and had notified “that all British ships should be excluded from the ports of the Prussian dominions, and from certain other ports in the north of Europe, and not suffered to enter or trade therein;” and had further declared (5th of April, 1806) “that no ship or vessel belonging to any of his Majesty’s subjects be permitted to enter or clear from any ports of Prussia, and that a general embargo or stop be made of all ships and vessels, at that time, or which should hereafter come into any of the ports, harbours, or roads of the United Kingdom of Great Britain and Ireland, together with all persons and effects on board the said ships and vessels.” Surely, considering the circumstances of the King of Prussia’s perfidy,^[274] this Order in Council must be deemed justifiable.

The Order in Council of *the 16th May, 1806*, whereby all the ports from the Elbe to Brest were declared to be strictly blockaded, contained a proviso “that this blockade *shall not extend to neutral vessels* having on board merchandise *not belonging to the enemies of his Majesty*, and not contraband of war; except, however, the coast from Ostend to the mouth of the river Seine, which is hereby declared subject to a blockade of the strictest kind.” This Order in Council, which the French pronounced “barbarous,” and “a paper blockade,” etc., was actually signed by Charles James Fox himself, nor can there be any doubt that the coasts thus declared in a state of blockade were in the strictest sense subject to such declaration, since the perils of leaving the harbours embraced in it were such that hardly any one of even the enemy’s armed vessels ventured to incur them. Considering the circumstances of the times, and that Napoleon was then organising a European confederacy in order to fall upon England with his whole concentrated power, it must be admitted that the Whig Order in Council was not only justifiable by the law of nations, but imperatively called for by expediency. Orders providing for the blockade of harbours and coasts which it was at the moment in the highest degree perilous to enter, and for the interim detention of the Prussian cargoes, in retaliation for the unprovoked invasion of Hanover by the Prussian troops, and the exclusion of British commerce, all brought about by the direct intrigues of Napoleon, were clearly within the law of nations, and, moreover, seem now to have been, at the time and under the circumstances, a very moderate exercise of the rights of a belligerent. To attempt to palliate the Berlin Decrees on the

grounds of the “barbarous” character of the previous Orders in Council, was obviously “a weak invention” of the enemy.^[275]

Embargo on British ships in Russia.

Milan Decree, Dec. 17, 1807.

Russia having been bribed by the acquisition of Finland, Moldavia, and Wallachia, followed the example of Prussia, and lost no time in breaking off all intercourse with England. On the 28th of August the Emperor Alexander laid an embargo on every English ship then in the Russian ports. Napoleon returned for a short time to Paris, proceeding thence to Italy, and, on the 17th of December, 1807, issued from Milan the second celebrated Decree, a fitting supplement to the Berlin Decree of the year previous: this Decree was couched in the following terms:—

Preamble and articles.

“Napoleon, Emperor of the French, King of Italy, and Protector of the Rhenish Confederation(!): observing the measures adopted by the British government, on the 11th of November last, by which vessels belonging to neutral, friendly, or even Powers, the allies of England, are made liable not only to be searched by English cruisers, but to be compulsorily detained in England, and to have a tax laid on them of so much per cent. on the cargo, to be regulated by the English Legislature: observing further that by these acts the British government denationalises the ships of every nation in Europe; that it is not competent for any government to detract from its own independence and rights, all the sovereigns in Europe having in trust the sovereignties and independence of their flag; that if by unpardonable weakness, which in the eyes of posterity would be an indelible stain, such a tyranny was allowed to be established into principles and consecrated by usage, the English would avail themselves of it to assert it as a right, as they have availed themselves of the tolerance of governments to establish the infamous principle that the flag of a nation does not cover goods, and to give to their right of blockade an arbitrary extension which infringes the sovereignty of every State: we have decreed, and do decree as follows:

“1. Every ship, to whatever nation it may belong, which shall have submitted to be searched by an English ship, or made a voyage to England, or shall have paid any tax whatsoever to the English government, is thereby, and for that alone, declared to be denationalised, to have forfeited the protection of its own king, and to have become English property.

“2. Whether the ships thus denationalised by the arbitrary measures of the English government enter into our ports or those of our allies, or whether they fall into the hands of our ships of war or of our privateers, they are declared to be good and lawful prizes.

“3. The British Islands are declared to be in a state of blockade, both by land and sea. Every ship, of whatever nation, or whatsoever the nature of its cargo may be, that sails from the ports of England, or those of the English colonies, and of the countries occupied by English troops, is good and lawful prize as contrary to this decree, and may be captured by our ships of war, or our privateers, and adjudged to the captor.

“4. These measures, which are resorted to only in just retaliation of the barbarous system adopted by England, which *assimilates its legislation to that of Algiers*, shall cease to have any effect with respect to all nations who shall have the firmness to compel the English government to respect their flag. They shall continue to be vigorously in force as long as that government does not return to the principle of the law of nations, which regulates the relations of civilised states in a state of war. The provisions of the present decree shall be abrogated and null in fact as soon as the English abide again by the principles of the law of nations, which are also the principles of justice and honour.”

Bayonne Decree,
April 17, 1808.

It may here be conveniently added, that by a further decree of the 17th of April, 1808,^[276] dated at Bayonne, all American vessels, then in the ports of France, and such as should come in thereafter, were ordered to be seized.

Such was the tenor of these extraordinary manifestoes; and the history of the world furnishes no example of similar violations of the ordinary rules which influence the conduct of civilised nations, even in the fury of the most internecine hostilities.

Effects of the
Decrees and Orders
in Council in
England.

The policy of these decrees became the battle-ground of party in England during several successive years. In fact they affected so many powerful classes in so many different ways, that it was natural that in a parliamentary government, not then always acting from the most disinterested motives, a great party clamour should be created. Nor, indeed, can it be doubted that the Berlin Decrees, and still more the Milan and

Bayonne Decrees, struck a heavy blow at the American neutral trade; while, on the other hand, it cannot be denied that the merchants of England carried on a profitable clandestine trade with the continent through the intermediation of neutral ships, chiefly American. This commerce Napoleon resolved to destroy at the hazard of risking a war with the United States; and by the policy he pursued in coercing the Americans to resist the English Orders in Council, he achieved two objects: first, he discountenanced and did all he could to suppress a trade which enriched his enemies, and secondly, he fomented a feeling of hostility against England, whereby, as was proved in the sequel, England found a new enemy ranged against her. The merchants connected with America, who had employed their shipping in carrying on a contraband trade with the continent, inveighed loudly against the impolicy and “barbarous tyranny” of the English Orders in Council, and asserted that these were the cause, *the original cause*, of all the evils which ensued. Yet, in point of fact, those merchants who were not shipowners cared little in what vessels their goods reached the continent so long as the insurance effected secured them from loss, and they could carry on the trade to a profit.

Interests of the
shipowners
maintained.

If such a system could have been allowed to prevail, it is obvious that the shipowners of England would have been altogether shut out from carrying on the ordinary trade of the country, and the whole business of the transportation of commodities must have been monopolised by neutral powers, who would reap incalculable benefit from the calamities of the war. Napoleon, discerning clearly the usual practice of the ports of Europe, and the enormous quantity of English goods shipped from England and her colonies in American bottoms, at once struck a blow at this commerce by seizing every vessel belonging to that country then at Antwerp, Bordeaux, and Bayonne, and by burning those in the port of St. Sebastian; nevertheless, the Americans, instead of asserting openly and boldly the independence of their flag, as they did in later years, secretly intrigued with Napoleon to obtain a special immunity from his decrees for their shipping trade with England.

Napoleon infringes
his own decrees.

But while Napoleon was vainly fulminating his decrees against England, and putting into motion his whole power in Europe to carry them out, he himself first set

the example of their evasion, and for a temporary profit established a system which tended to neutralise the very object he was making so many efforts to accomplish. Scarcely had a few months elapsed after the publication of the Berlin Decree, before it was discovered that a large source of revenue might be opened by granting, at exorbitant prices, licences to import British colonial produce and manufactures.^[277]

Moniteur, Nov. 18,
1810.

Rise in the price of
produce and
freights,

These licences were granted ostensibly to benefit French manufacture, under the obligation of exporting French or continental produce to an equal amount, a condition, however, which was easily and frequently evaded. In this manner a most lucrative trade was carried on, notwithstanding the exorbitant rates of the licences, and the great additional charges to which the whole transaction was subjected. British manufactures and colonial produce rose to an extravagant price in France, while foreign produce realised almost as greatly enhanced prices in England; so that, although the mass of the people on both sides the Channel suffered deeply from the interruptions caused by the Decrees on the one hand and the numerous Orders in Council on the other, producing great obstructions to the ordinary course of commerce, numerous classes amassed fortunes by these disturbing elements.

To add to the many sufferings the war created and to the confusion these sweeping proclamations had entailed, the price of wheat rapidly advanced in the spring of 1808. The scantiness of the crop of the previous year was beginning to be seriously felt, while apprehension daily increased that the exclusion of the British flag from the trade of the Baltic would cut off from England her supplies of food from that quarter of the world.^[278]

partly accounted for
by the Orders in
Council.

But though British ships were to a great extent excluded from the trade of the Baltic, the Orders in Council enabled them in the long run to obtain almost a complete monopoly of the other portions of the carrying trade of the world. England at this time had practically exclusive possession of the East and West Indies; and the colonial produce brought in her vessels was, in spite of the efforts of Bonaparte, distributed at a great profit over the whole of the continent of Europe. It is unnecessary here to enter into a dissertation as to the general effect of a monopoly produced by war on prices or on the interests of the consumer; nor is it necessary to lay down

the principle that, in the long run, a state of peace must, in these days at least, prove far more profitable to the shipowner than a state of war. But during the latter period of the great French war, whatever diminution may have taken place in the building of ships, it is certain that at no period was British shipping more prosperous, or employed at higher freights. Scarcely a ship belonging to any other nation could sail without a licence, which, following the example of France, the British government had rendered imperative.^[279] The whole of the exportable produce of the East and West Indies, and a large portion of that from South America, now came to the ports of Great Britain, either for consumption or re-exportation; and any effort of Bonaparte to exclude these necessary articles from the continent proved nearly, if not altogether abortive. England now, to all intents and purposes, obtained a monopoly, costly it is true, but she can never again hope to carry on hostilities with any of the great powers of Europe and bring, as it were, under her dominion at the same time all the material riches of the world.^[280]

But while the cost of articles imported from the continent of Europe was enhanced by the difficulty of communication, and the circuitous routes it often became necessary to adopt, similar causes raised the price of colonial produce, and of some descriptions of British manufactures, to a still greater proportionate height on the continent, so that the severity with which the decrees of the enemy were enforced operated more directly against imports from England than against exports to that country, and many curious instances besides those we have just mentioned are given of the extraordinary rates paid for freight.^[281]

Ingenuity of
merchants in
shipping goods.

Among the various means devised by the ingenuity and enterprise of adventurers to elude and overcome the obstacles presented by the decrees of the enemy, one in particular, which was resorted to on an extensive scale, deserves mention. Several vessels laden with sugar, coffee, tobacco, cotton-twist, and other valuable commodities were despatched from England at very high rates of freight and insurance to Saloniki, in European Turkey. Refined sugar and other goods were packed in boxes made at a considerable additional expense, so that each package should not exceed about two hundredweight. These, when landed, were conveyed on mules and pack-horses through Servia and Hungary to Vienna, for the purpose of being

distributed over Germany, and sometimes even into France. The articles sold at enormously high prices. Sugar fetched 5s. to 6s. per lb.; coffee 7s. per lb.; indigo 18s.; and cotton 7s. and 8s. per lb. [\[282\]](#)

Smuggling.

On the 5th September, 1807, the English made themselves masters of the small island of Heligoland (which was confirmed to them by the Treaty of Kiel, January 14th, 1814), and thence enormous quantities of British goods were smuggled into Holstein, and thence again were conveyed at a charge of 33 to 40 per cent. within the French custom-house line. This regular traffic, being well known to the imperial authorities, and sometimes connived at on account of its enormous profits, was alleged as a justification for the sale of licences, especially as Bourrienne, who at that time was resident at Hamburg, had represented to Napoleon that he had much better at once authorize the trade on these terms, and realise for himself this contraband profit. Napoleon adopted the proposal, and in consequence sixty millions of francs (2,400,000*l.*) worth of English produce was in one year openly imported into that town alone. The same system was adopted in Prussia; while legions of custom-house officers and coastguards were employed to put down contraband trade with the English.

Licence system in England.

The English government having been unable to resist the importunities of the manufacturing and mercantile interests, could not therefore forbear from following the pernicious example thus set by Napoleon. When the system, though different in many respects, had been fully established in Great Britain, the number of licences issued rose from four thousand nine hundred and ten in 1808, to no fewer than fifteen thousand two hundred and twenty-six in 1809, and eighteen thousand three hundred and fifty-six in the year 1810. Though these licences were professedly regulated upon fixed principles, they were nevertheless a source of jobbery and fraud, and great speculation and corruption prevailed, “a fruitful source,” as Lord Stowell observed, “of simulation and dissimulation from beginning to end.”

Cost of English licences.

Such licences were payable on a graduated scale on imports and exports not transferable, as well as upon transferable exports and imports. The fees received at the Admiralty were for licences to merchant vessels to carry guns; on granting Mediterranean papers; on ships' fines for loss of papers; on ships'

protection for three months; on protection granted to barges and boats for a similar period; on commissions, warrants, and appointments; on granting letters of marque; and on licences to join convoy; the Privy Council Office charging for licences to trade 4*l.* 16*s.* each, besides gratuities, which were divided amongst the clerks.^[283] The amount of the fees during the height of the licence system was calculated to yield annually about 100,000*l.*^[284] beyond the public stamp of 1*l.* 10*s.* which was added before delivery of the licence.

But the whole system of licences proved utterly indefensible, and, being granted to foreign vessels to the prejudice of English shipping, it grew at last to be altogether intolerable. Beyond the mere amount of fees claimed by the Council Office, the Secretary of State's fees for the sign-manual were as much again, and even this aggregate amount was frequently exceeded. For instance, it is reported in the 'Parliamentary Proceedings' that there was paid by a certain John Lubock for the certificate of one cargo, imported or exported, 15*l.* 0*s.* 6*d.*, and for each duplicate, if required, 3*l.* 12*s.*; part of this was, however, admitted to be for agency. The charge for a ship going out in ballast to import a cargo of timber from Wilmington, in the United States, was 17*l.* 2*s.* 6*d.* A licence for St. Domingo (special) to trade to and from that island, cost 25*l.* 1*s.* 6*d.* For an order allowing small vessels to trade to and from Holland for six months, the charge for one licence amounted to 15*l.* 0*s.* 6*d.*; but an order for six ships could be obtained for 44*l.* 5*s.* 6*d.* One agent is reported to have paid no less than 3,952*l.* 7*s.* 6*d.* in the course of a year for licences alone.^[285]

Their marketable value.

Sometimes, however, they were estimated at an even extravagant value. Mr. A. Baring said, in the course of a debate in Parliament on the subject, that he would have given 15,000*l.* for one of the licences issued, which, owing to a clerical error in the substitution of one word for another, became of that marketable value. No wonder that the merchants importuned the government for these licences, when they not only served as a protection to their property, but might, by a lucky error, become the means of making a man's fortune. In this point of view the licences were wholly and entirely unjustifiable. It seems further that where applications were made, a considerable amount of control and interference were exercised in framing them before they were granted. Mr. Brougham drew a picture of the President and Vice-President

of the Board of Trade laying their heads together, and passing a whole morning in determining with the utmost gravity “whether one cargo should consist of cotton or of wool, whether scissors should be added, whether nails should be added to the scissors; whether the nails or the scissors should be left out, or whether the commerce of the country might or might not be ruined by throwing in a little hemp with the nails and the scissors to make up the cargo.”^[286] But this was not all.

Working of the
licensing system in
England.

Simulated papers.

The licence to sail from port to port, for example, contained the following clause: “*The vessel shall be allowed to proceed, notwithstanding all the documents which accompany the ship and cargo may represent the same to be destined to any neutral or hostile port, or to whomsoever such property may belong.*” With this licence, the ship which carried it, foreign or British, was enabled to pass through the British fleet; every vessel thus authorized being permitted to take on board another set of papers, which were, in point of fact, a forgery from beginning to end. Should the vessel be overhauled by English cruisers, she nevertheless continued her voyage unmolested. If, for example, she had actually cleared out from London, it was stated in the simulated papers that she had cleared out from Rotterdam. With this view, the proper description was made out as nearly as possible in the handwriting of the Custom-house officer at Rotterdam; and, if it were necessary that the signature of the French minister of state should be affixed, as in the case of Holland, this was skilfully forged, and even the fantastic signature of Napoleon himself was sometimes attached to these forged documents!^[287] These forgeries were not done perfunctorily or by halves, for not only were the names forged, but the seal was admirably engraved, and the wax closely imitated. Indeed a regular set of letters were frequently also forged, containing a good deal of fictitious private anecdote, with a mixture of such news from Rotterdam as might be supposed to be interesting to mercantile people, together with an imaginary letter from a merchant in Rotterdam to the shipowner.

Agencies for the
purpose of
fabricating them.

Thus provided, the vessel set forth from London to encounter the manifold perils of the sea. The most respectable houses in London made application for similar licences, and every merchant who, with the

privity of his clerks, sailed a vessel under such circumstances was compelled to become conversant with the humiliating mysteries of this fraudulent trade. But to make matters still worse, the forgeries were confirmed by the solemn oaths of the captain and the crew when they arrived at their destined port. Indeed it had become so common a practice that perjury under such circumstances was not dealt with as a crime, nor was it considered a crime on their part, as their owners compelled them to swear that all their letters and documents were genuine. Every sort of interrogatory was put to the captain and the crew calculated to discover the real port whence the vessel had sailed, and these questions the captain and crew were obliged to evade by numerous false oaths. The feeling that they were doing no wrong could alone have induced them thus to act. They were even obliged to declare from what quarter the wind blew when they left Rotterdam and took a pilot on board, although they were never near the place, together with many other particulars, all confirmed by oath, perjuring themselves at every stage. To such an extent did these frauds prevail that at last they were reduced to a regular system. Individuals formed themselves into established mercantile agencies, in order to facilitate the simulation of these papers. Indeed they openly issued circulars avowing their object. One of these extraordinary productions has been enshrined in a parliamentary debate, Mr. Brougham having published to the world the following “atrocious circular.”^[288]

“Liverpool, ——

“GENTLEMEN,

“We take the liberty herewith to inform you that we have established ourselves in this town for the sole purpose of making simulated papers, which we are enabled to do in a way which will give ample satisfaction to our employers, not only being in possession of the original documents of the ships’ papers and clearances to various ports, a list of which we annex, but our Mr. G. B. having worked with his brother, Mr. I. B., in the same line for the last two years, understands all the necessary languages, and knows what is required.

“Of any changes that may occur in the different places on the continent in the various custom-houses and other offices, which

may render a change of signatures necessary, we are careful to have the earliest information, not only from our own connections, but from Mr. I. B., who has proffered his assistance in every way, and who has for some time past made simulated papers for Messrs. B. and P. of this town, to whom we beg leave to refer you for further information.

“We remain,” etc.

This singular document was accompanied by a list of about a score of places, for which these agents had clearances all ready at the instant for disposal to those merchants who, from the exigencies of the times, found themselves compelled to resort to such practices. Indeed these knaves knew perfectly well that if the merchants of England refused to participate in this “filthy commerce,” the traders in Boston would not have any such scruples, still less those of Pappenburg, or some of the ports of Danish Holstein.

FOOTNOTES:

[264] France asserted, and America seems to have admitted that the first departure from the Law of Nations was this Act of Mr. Fox’s Administration, and that this Act led to the Berlin Decree; but this is a pretence (see ‘Key to Orders in Council,’ p. 1). It is worth while to give briefly here the dates and order of these different decrees, etc. (1.) Mr. Fox’s Order for blockade of French coast, April 8, 1806. (2.) Berlin Decree, Nov. 10, 1806 (recapitulated, Nov. 24, 1806). (3.) Lord Grey’s Order in Council, Jan. 7, 1807. (4.) Orders in Council of Nov. 11, 1807, by the Portland administration. (5.) Milan Decree, Dec. 17, 1807. (6.) Bayonne Decree, April 17, 1808. (7.) Rambouillet Decree, March 23, 1810. (8.) Fontainebleau Decree, March 23, 1810. The Bayonne and Rambouillet Decrees were those most directly issued against the Americans.

[265] We cannot read with patience such denouncements of barbarism, and such professions of liberty and justice from one who about this period ordered a poor bookseller of Nuremburg, by name of Palm, to be arbitrarily arrested, and brought before a military tribunal at Bremen, where he was condemned to be unceremoniously shot, because he had published and distributed a pamphlet, which questioned the “justice” of Napoleon’s acts, as the conqueror of Germany. If ever there was a martyr in the cause of “liberty” it was this poor man, whose most unjustifiable execution in August 1806, was regarded with horror throughout Europe.

[266] Alison, vol. xi., p. 105, in a note, mentions a striking instance of how the Berlin decree was opposed even to Napoleon’s own interests. Shortly after its issue there arrived at Hamburg an urgent order for the immediate delivery of a very large amount of clothing for his army; but the resources of the Hanse Towns were so totally unable to provide within the specified time the requisite supply, that Bourrienne, the French diplomatic agent, after trying in vain every other expedient, was obliged to

contract for it with English houses. Thus while the Emperor was boasting that by the continental system he had excluded British goods from the continent, 50,000 to 60,000 of his half-naked soldiers were, in the depth of winter, clothed by the manufacturers of Halifax, Leeds, and other English towns.

[267] M. Thiers' 'Consulat et l'Empire,' vii. 222.

[268] This is Mr. Fox's Order of April 8, 1806.

[269] This is Lord Grey's Order. The *Morning Chronicle* of Jan. 4, 1808, in commenting on the above order, remarks that Lord Grey "distinctly stated to the United States of America that their acquiescence in a code which violated the rights of independent States would compel this country to take steps for its own protection.... The Decree is certainly directed against the Americans—it is a menace to her; ... she must choose her party."

[270] By the Portland Administration, of which Canning and Perceval were members: two orders would seem to have been issued on the same day. Key to 'Orders,' p. 5.

[271] These Orders in Council are dispersed through a multitude of works. In 1808 they were laid before Parliament, and will be found *in extenso* in vol. x. 'Parl. Papers' of that year.

[272] Such was the effect in England of these proclamations, that in the months of September and October 1807, when these or similar orders were anticipated, no fewer than sixty-five applications were made to the Commissioners of Customs at the port of London for permission to re-land cargoes, already shipped in the Thames for exportation to the continent of Europe, the impression being that goods arriving there in English vessels would be confiscated ('Parl. Papers,' vol. x., 1808, p. 11).

[273] The Orders in Council were fully examined by Mr. Alex. Baring in his pamphlet. Mr. Baring's sympathies were strongly American, but, on the whole, fair to this country (see 'Enquiry into Causes and Consequences of the Orders in Council,' Lond. 8, 1808).

[274] Alison, ch. xlii. (1806).

[275] *Vide* Martin's 'Law of Nations,' Sup. 5, 437, 435, and 'Annual Register,' 1806, p. 677, for the Order in Council detaining Prussian ships. In discussing "the rights of war as to neutrals," Wheaton remarks that "during the wars of the French Revolution the United States, being neutral, admitted that the immunity of their flag did not extend to cover enemy's property, as a principle founded on the customary law and established usage of nations, though they sought every opportunity of substituting for it the opposite maxim of *free ships, free goods*, by conventional arrangements with such nations as were disposed to adopt that modification of the universal law" (vol. ii. pp. 176, 177).

[276] There is a further Decree of March 23, 1810, known as the 'Rambouillet Decree' on this subject (see 'Key to Orders in Council,' No. 13).

[277] *Moniteur*, 18th Nov., 1810. At Hamburg, in 1811, under the bloody government of Davoust, an unhappy father was shot for having introduced into his house a small sugar-loaf, of which his family stood in need: yet at that very moment Napoleon was probably signing a licence for the importation of a million of such loaves. Smuggling on a small scale was punished with death; but the government carried it on upon the greatest scale. The same regulations filled the prisons with victims and the imperial coffers with revenue. Note by Alison, vol. xi. p. 173, from Bourrienne, vol. vii. p. 233.

[278] The freight on wheat from the Baltic rose to 50s. per quarter. The price of linseed advanced from 43s. to 150s. Hemp rose in price from 58*l.* to 108*l.* per ton; flax from 58*l.* per ton in 1807, to 118*l.* per ton in the following year. Memel timber, which, during 1806 and 1807, had varied from the extremes of 73s. to 170s. per load, advanced to 340s. per load; while deals rose in a similar proportion. Russian tallow rose from 53s. to 112s. per cwt. Freights on all these articles ranged

exceedingly high. For instance, timber was charged at 10*l.* per load; tallow at 20*l.* and hemp at 30*l.* per ton; in fact, at ten to twenty times greater than the current rates of the present period (Tooke's 'History of Prices,' vol. i. pp. 309-343).

[279] A copy of these warrants will be found in 'Parl. Papers,' 1808, vol. xi. p. 117. They were signed by the Lords of the Treasury.

[280] Many remarkable cases occurred of goods being sent by a circuitous route. On one occasion two parcels of silk were despatched from Bergamo, in Italy, to England at the same time. One was sent by the way of Smyrna, and the other by the way of Archangel. The former was a twelvemonth, and the latter two years on its passage. The expenses attending the importation of silk which was brought by these and similar routes through the north of Europe were enormous. Some silk likewise came through France, and the charges of conveyance from Italy to Havre, and duty of transit, amounted to nearly 100*l.* per bale of 240 lbs. net weight, exclusive of freight and insurance from Havre hither.

[281] For instance, the charge of freight and French licence on a vessel of very little more than fifty tons burthen have been known to amount to 50,000*l.* for the voyage, merely from London to Calais and back. In another instance a vessel, the whole cost of which, including the outfit, did not exceed 4,000*l.*, earned a gross freight of 80,000*l.* on a voyage from Bordeaux to London and back (see Tooke's 'History of Prices,' vol. i. p. 310).

[282] As an instance in our own experience of the effect of blockades in more recent times, it may be mentioned that England obtained, during the whole of the late war with Russia, her supplies of hemp, tallow, and other Russian produce in almost as great abundance from that country as she did during peace, *but* at greatly enhanced prices to the British consumer. These articles, instead of being shipped in the ordinary course of commerce direct from the Baltic ports, were carried across the frontiers into Germany, or Belgium, or France, and by railway rapidly found their way to the ports of neutral countries, and thence were exported to England, so that the modern means of transit would seem not only to render in a great measure nugatory the effect of blockades, but to greatly enhance the price of all articles to the nation which establishes them. Thus, while England was very heavily taxed to maintain an effective blockade of the Russian ports, her people paid at least one hundred per cent. more for numerous articles produced in that country, articles, too, be it remembered, necessary for their existence. Would it not be advisable for English statesmen to consider if, in the interests of this country, the right of blockade, as well as the capture of private property at sea, could not now be erased from the ancient laws of nations?

[283] The amount received in 1807 was 12,609*l.* 12*s.*

[284] 'Parl. Papers,' 27, 1808, vol. x. p. 359.

[285] *Vide* 'Proceedings in the Privy Council on Licences to Trade and Navigate,' vol. x. p. 1808.

[286] *Vide* Speeches of Mr. Brougham and Mr. Canning ('Parl. Debates,' vol. xxi. p. 1108, et seq.).

[287] Mr. Brougham said in the House of Commons that he had himself seen the forged signature of Napoleon (*Nap*).

[288] Mr. Brougham's speech on the Licence Trade ('Parl. Debates,' vol. xxi. p. 1114).

CHAPTER IX.

Effect of the Orders in Council on American trade, A.D. 1810—Complaints of the Americans against England—Policy of Napoleon towards neutrals—Non-intercourse Act—Secret terms with America—Partiality of the United States towards France—Contentions at home respecting the Orders in Council—Declaration of war with America—Motives of the Americans—England revokes her Orders in Council—Condemnation of the conduct of the United States—Impressment of American seamen—Fraudulent certificates—Incidents of the system—War with America—Necessity of relaxing the Navigation Laws during war—High duties on cotton—Great European Alliance—Napoleon returns to Paris—Germans advance to the Rhine—Treaty of Chaumont—The Allies enter Paris—End of the war by the Treaty of Paris, 1814—Napoleon's escape from Elba—His landing in France and advance on Paris—British troops despatched to Belgium—Subsidies to European powers—Fouché—Last campaign of Napoleon and defeat at Waterloo—Reflections.

Effect of the Orders
in Council on
American trade,
A.D. 1810.

Complaints of the
Americans against
England.

Although the Orders in Council asserted the purpose which England had in view at the time they were issued, these commercial retaliatory measures can only be justified on the ground of extreme necessity. Desperate measures on the part of the enemy were then met by measures as desperate on the part of Great Britain. She would, if she had dared, been glad to have dispensed with them, for though they thwarted the designs of Napoleon and impoverished his people, they injured her own commercial pursuits; while their effect on her relations with the United States of America was of the most irritating and unpleasant character. When they came into full force, the English export trade with that country, previously valued at twelve millions sterling per annum, ostensibly fell to five and a quarter millions, although the total aggregate exports experienced no such corresponding diminution, thereby proving that the Americans had absorbed, as the greatest maritime neutrals, the largest share of the carrying trade. But when the English Orders in Council, issued in consequence of Napoleon's decrees, struck a blow at this trade, the Americans, seeing so lucrative a branch of their commerce withdrawn from their hands, set up an indignant appeal, and, though tamely acquiescing in Napoleon's still harsher measures, declaimed furiously against the English government, when it exhibited a resolute determination to prevent the carrying trade of the world being taken from English shipowners.

The most important of the British Orders in Council, as we have seen, bore date 11th November, 1807, the Milan Decree following on the 17th of December of the same year; but the Americans, having been apprised of the intentions of the English government, adopted precautionary measures by imposing a general embargo from and after the 22nd of December, 1807. [289] Nothing can prove more conclusively how unpopular this step was among the shipowners of the United States than the fact that every vessel in the foreign trade which heard the intelligence kept out of their ports, preferring to run the risk of capture rather than lose their share of the enormous profits they were making in their neutral bottoms, by a clandestine trade with France and England. The American government clearly foresaw that the extreme measures adopted by both belligerents would annihilate their foreign carrying trade, and restore to England that power and its accompanying commercial advantages, which her maritime superiority had already conferred on her in the great contest in which she was engaged.

Policy of Napoleon
towards neutrals.

Non-intercourse
Act.

One of the objects of Napoleon by his decrees was evidently to prey upon the known susceptibility of the Americans, and to urge them, on the pretence of the independence of their flag, to resist the executive authority exercised by England, whether with regard to the right of neutrals, the right of search, or the impressment of American seamen, all fruitful sources of complaint on the part of the American government. Nor had he, indeed, unwilling listeners, for the Americans, in their diplomatic proceedings, exhibited an unequivocal tendency to favour Napoleon. Although statements were made in Parliament that the Americans would have joined England in the war against France if she would have consented to rescind the Orders in Council as regarded their shipping, all these allegations were unfortunately at variance with the truth, and were, in fact, only put forward by interested English merchants who could no longer avail themselves of American bottoms to carry on their trade. Finding their embargo inoperative, as American vessels preferred an adventurous commerce and large profits to a ruinous inaction, the United States government removed it; but as the European governments were inflexible in their policy, they immediately afterwards passed the Act of Non-Intercourse, [290] by which all commercial

interchanges with France and England were prohibited; the result being the Rambouillet Decree, issued by Napoleon on the 23rd of March, 1810, which ordered that all American vessels and cargoes arriving in any of the ports of France or of countries occupied by French troops, should be seized and condemned.

Secret terms with
America.

On the 1st of May, 1810, Congress passed a further Act, excluding British and French armed vessels from the waters of the United States, but providing that if either of these nations should modify its edicts by the 3rd of March, 1811, of which fact the President was to give notice by proclamation, and the other did not, within three months after, pursue a similar course, commercial intercourse with the first might be renewed, but not with the second. It, however, appears that while Napoleon was intriguing with the American minister in Paris to concert hostile anti-commercial measures against England, he had issued on the 5th of August, 1810, the Trianon Decree,^[291] ordering the sale of all American vessels seized, and the proceeds to be paid into the treasury. In spite, however, of this perfidy, the United States came to an understanding with Napoleon, that they would, as he desired, “cause their flag to be respected,” that is, break with England, provided their vessels were released, and provision made for their enjoying the monopoly of the continental carrying trade.

Partiality of the
United States
towards France.

Contentions at
home respecting the
Orders in Council.

Accordingly, on the 2nd of November, 1810, the President issued his proclamation declaring the French decrees revoked, thus renewing intercourse between the United States and France; and on the 10th of the same month another proclamation appeared, interdicting commercial intercourse with England.^[292] These antagonistic demonstrations were accompanied with a vast amount of popular declamation against England, and as Napoleon was then rising to the height of his ambitious career, the people of the United States were, it is to be feared, ready to be his acquiescing instruments in assisting to rivet the chains of the nations of Europe, provided they were secured the monopoly of the carrying trade, to the displacement of English shipping. But whatever motives may have governed their conduct, whether mere commercial interest, or a more broad national policy, it is beyond controversy that in the negotiations and

language held throughout there was a marked partiality towards France and her ruler, and a corresponding coldness and animosity against England. This disposition of the United States to display subserviency to the French emperor, and their hostile temper towards Great Britain, daily increased, but it was not until 1812 that the long smouldering ashes of suppressed enmity broke out into open hostilities.^[293] In England the contentions which arose respecting the Orders in Council shook the commercial peace of the country. Every man espoused the side with which his own peculiar interests were interwoven, claiming, however, to be the infallible guide upon the subject to all his countrymen. Mr. Alexander Baring, the second son of Sir Francis Baring, who had passed many years in the United States, where he and his brother Henry had formed matrimonial alliances, published a pamphlet^[294] which greatly favoured the American view of the subject, and exhibited a feeling of the greatest alarm lest “as past errors had brought us to the brink of a precipice, the next might throw us over it.”^[295]

Declaration of war
with America.

Although these Orders in Council were loudly condemned by the Whigs, who made them their leading stalking-horse, whereby to assail the ministry, the Tories and the government were inflexible, and chose rather to risk a rupture with the United States than to relax their policy. They were still of opinion that the infallible consequences of repealing these orders and of giving up the licence trade would be to open the ports of France, and to transfer to the United States the commerce of the world. This determination at last brought about the long pending rupture, but other reasons were not wanting to hasten this lamentable event.

Motives of the
Americans.

The Americans, seeing the vast preparations made by Napoleon for the subjugation of Russia, had evidently calculated that he would succeed, and that, the continental system being established, they, holding a monopoly of the carrying trade, could, in league with France, humble England, their great maritime and commercial rival. Consequently their government declared war on the 18th of May, 1812, and General Hall immediately invaded Canada. But the English declaration of war was not issued until the 11th of October, 1812,^[296] about the very moment when Napoleon commenced his fatal retreat from Moscow, which, however, was not then known. Mr. Barlow, the American minister at Paris, had been invited to proceed to

Wilna in the rear of the Imperial army; and there can be no doubt that Napoleon, in the event of success, would have dictated the terms of the treaty with the United States which Mr. Barlow had hitherto in vain endeavoured to secure. Napoleon, as everybody knows, failed utterly in his Russian campaign, Barlow died in Poland, and the Americans found themselves at war with England on grounds which not one of their historians ever ventures to defend, and which their statesmen of to-day would heartily repudiate, if war on such shallow and selfish pretences was again attempted.

As it was not until the *11th of May, 1812*, that Mr. Barlow received “FOR THE FIRST TIME”^[297] a copy of the decree of the *28th of April, 1811*, by which the Berlin and Milan Decrees were revoked, it is clear that this fact affords a complete justification for the course pursued by the English government; the United States choosing to rely and to insist upon the verbal assurances of Napoleon that the decrees were revoked, when at the very moment new seizures and confiscations were being made by his orders.^[298] It was not until the 21st of May that the American minister in London produced a copy, or what purported to be a copy, of an instrument which professed to bear date the 28th of April, 1811. This decree, by which the American vessels were protected, recites “that whereas Congress has established a non-intercourse with England, and excluded her vessels, merchandise, and those of her colonies from entering the ports of the United States, therefore we decree,” etc. It is self-evident that the moment relations were renewed between the United States and England, Napoleon reserved to himself the right to take ulterior measures. But his object was now effected, war had been declared, and, as the French said triumphantly, “England had a new enemy.”

England revokes
her Orders in
Council.

The English ministers, although they considered the document produced most unsatisfactory, decided on revoking the Orders in Council, conditional upon the Non-intercourse Act being also rescinded; but, the Americans having pre-determined on war, frustrated the pacific measures which had previously been taken by England. To crown the unwarrantable conduct of the American government, it afterwards was shown that when they proclaimed the declaration of war, and the extreme measure of issuing “letters of marque,” they were actually in possession of the report of the

French Minister for Foreign Affairs of the 12th of March, 1812, promulgating anew the Berlin and Milan Decrees, as fundamental laws of the French empire, under the false pretext that their monstrous principles were found in the treaty of Utrecht, and were therefore binding upon all nations.^[299] Indeed the whole intrigue seems to have been a masterpiece of perfidy, and their reasons for war were so untenable that the Americans, in their speeches and diatribes, were compelled to make the most of the English impressment system and the original blockade of 1806, which they denounced as a paper blockade, perhaps conscious that if they had made a treaty with Napoleon, the blockade of the French coasts might have proved a fresh obstacle to their monopolizing the whole trade of the continent, under the colour of a neutral flag.

Condemnation of
the conduct of the
United States.

An impartial perusal of all the documents relating to this rupture makes the inimical disposition of the government of the United States, their complete subserviency to the ruler of France, and their hostile temper against Great Britain conspicuous in every page of their official correspondence with the French government. England might well say that she looked for a different result. From their common origin, from their common interest, from their professed principles of freedom and independence, the United States was the last power in which Great Britain could have expected to find a willing instrument and abettor of French tyranny and despotism. The Americans, however, seem to have been blinded by a short-sighted view of European affairs, not anticipating that a few months would produce a complete revolution in the whole aspect of continental affairs, and that the power of Napoleon would in so short a period have passed away.

Impressment of
American seamen.

When the English Parliament re-assembled in February 1813, the House of Commons unanimously carried the address approving the war with the United States, on the ground of maintaining the maritime rights of Great Britain. The Americans had industriously circulated a report that the British had impressed fifteen thousand to twenty thousand American seamen. The absurdity of such a statement must be apparent to every reflecting person; the report, however, was not addressed to such parties, but to the demagogues of both countries, who alone desired war. By the Admiralty records it was plainly proved that

out of one hundred and forty-five thousand seamen then employed in the British navy, the whole number who claimed to be American subjects, a claim, too, the justice of which rested upon their simple declaration, was but three thousand five hundred, and that out of every four individuals who claimed their discharge in right of being citizens of the United States, only one established his claim on any tolerable ground whatever. Supposing, however, one-half of the claimants to have had a rational ground for demanding their liberation, the whole number of Americans in the British navy could not have exceeded from sixteen to seventeen hundred, and it cannot be supposed that England should have involved herself in a new war with a view to retain the services of such an inconsiderable number of reluctant hands.

Fraudulent
certificates.

Indeed the fact cannot be questioned that the English government had invariably given directions to the officers of her navy not to press seamen, professing to be American born, who were found on board American vessels with certificates signed by the collector of customs of an American port, even though it was well known that these certificates were easily obtained in the United States, the American government making no effort to check their fraudulent emission. In the port of New York the system of obtaining false certificates had become so disgracefully open, that in one day, ludicrous as it may appear, an old woman was allowed by the collector to qualify a whole host of seamen by swearing she knew them to be American citizens; and when the clerk remonstrated against its impropriety, and appealed to the collector with regard to the credibility of the witness, he was told by his superior that it was no business of his, for that he only acted ministerially in the affair; so that this old woman continued during the entire day to receive her two dollars for every seaman who, through the oath administered to her, obtained his certificate.^[300] The same system prevailed at Philadelphia; certificates were also frequently transferred from one individual to another, and became as much a matter of bargain and sale as any other description of chattel property; the most ridiculous part of the system being, that after a transfer of this description it was no unusual thing to see produced by a sailor of colour a certificate for his protection, in which he was described to be of “*a fair complexion, light hair and blue eyes!*”

In all these indefensible proceedings the Americans held that a British subject, who by a false oath converted himself into an American citizen, or who naturalised himself in the United States, in conformity with their laws, ceased to owe allegiance to the king of his native country, and was entitled to their protection; and, in support of this strange doctrine, whenever this view was impeached, the American envoy merely replied that he had no instructions on that point. In the parliamentary discussions which took place upon the subject, Mr. A. Baring, with all his Whig tendencies and strong American predilections, while affecting to believe that the Russian campaign and Napoleon's intrigues had nothing to do with the declaration of war by the Americans, strongly maintained the English right of impressment, adding "that if there were sixteen hundred American seamen in our navy, there were more than sixteen thousand British seamen in the American navy;"^[301] and he condemned ministers for not carrying on the war against the United States with greater vigour: at that moment, however, every effort was concentrated to strike down Napoleon.

The truth of Mr. Baring's recommendations soon became too apparent. Although the Americans when they declared war had only four frigates fit for service, the *Constitution* not being then finished, they launched such a fleet of privateers that English merchant vessels were captured in large numbers; but it was only when two of their frigates were taken that the English were aroused to the necessity of meeting with greater force their new rivals on the ocean. It ought, however, to be remembered that in the well-known cases of the capture of the *Guerriere*, the *Macedonian*, and the *Java*, by the *Constitution* and the *United States* respectively, the odds were largely on the side of the Americans, especially in the weight of their armaments and size of their vessels. Moreover the American crews were generally one-third English, and, however much we may regret to have to admit the fact, certain it is that, on board the *United States*, there were men who had actually served under Lord Nelson on board the *Victory* at Trafalgar^[302]. But it was not until the *Shannon* took the *Chesapeake*, in the presence, as is related, of a crowd of yachts which had come out from Boston to see the English frigate captured, that the British regained the supremacy they had so long held upon the ocean.^[303]

During this unfortunate war many difficulties arose with respect of the importation of American cotton, as that necessary article of commerce, in

spite of the English navigation laws, still in some mode found its way to her ports in neutral bottoms. Consequently there arose a complication, in which the cotton-spinners stood in direct antagonism with the interests of the shipowners. By the laws of war trade could not be carried on with America except by royal licence; the Act of the 43 George III., c. 153, only giving power to legalise importations. The general navigation laws of England prohibited importation except in their own ships, or in the ships of the places where the commodities imported grew. The Act of George III., therefore, conflicted with that of Charles II., and the shipowners viewed any relaxation of the provisions of the old navigation laws with the deepest alarm.

Necessity of relaxing the Navigation Laws during war.

Thus, whenever a war with a maritime power supervened, the navigation laws were relaxed in favour of some paramount interests, such as, in the present case, that of the cotton-spinners, whose demands for raw cotton required to be supplied. Even in a state of war every nation must of necessity provide as far as possible for the supply and sale of those raw materials of produce, the manipulation of which tends in a great degree to employ the industry and promote the general prosperity of large classes of the community. England had been thus compelled to sacrifice, or evade by licences or otherwise, her Orders in Council, although every statesman who could exercise a disinterested judgment had a full conviction of their expediency under the circumstances in which she was then placed. In like manner the United States, a few years previously, had been compelled to sacrifice their system of embargoes, which was a favourite policy of the actual dominant party in America; and the Czar, in his incipient efforts, had been incited to resist Napoleon's dictation as to what merchant vessels he should or should not admit into his ports, although this decision raised the question of the existence of national independence.

High duties on cotton.

But with all these obvious principles patent to every legislator in both Houses of Parliament, it is the fact that a duty of TWOPENCE per *pound* was levied on the importation of COTTON WOOL if imported in British ships, and THREEPENCE per *pound* if imported in *ships not British built*. Such were the strange anomalies of protection and such the difficulties which all similar

legislative measures must ever create in the necessary commercial intercourse between nations. England has, however, now happily corrected all this fallacious legislation, and consequently a population of wealth and national power has been created in the very centre of the kingdom unsurpassed for intelligence in any previously existing manufacturing community. The shipowners of the kingdom, instead of stopping up and checking the fountain of prosperity at its source, now suffer it to flow in its natural channels, and they find that their own interests, instead of being impaired by the change, have kept pace with the general prosperity enjoyed by other classes.

Great European Alliance.

Turning now to the great wars which still raged in Europe, we may, by way of continuity, remind our readers that the consent of the King of Prussia having been reluctantly obtained, for he still inclined to Napoleon, the treaty of Kalitsch was signed on the 1st of March, 1813. ^[304] This treaty constituted the foundation of that grand Alliance which soon after accomplished the overthrow of Napoleon, and the deliverance of the European continent. The people of Prussia, to a man, had risen to arms to deliver their fatherland from the grasp of their French oppressor, and the king, though dreading the ire of Napoleon, who could easily have purchased his neutrality at the time, felt conscious that it was now a question of life and death for him, and no longer hesitated. The treaty, therefore, was signed, and Russia agreed never to lay down her arms until Prussia was reconstituted as she stood anterior to 1806. A proclamation was issued to all the German princes, announcing that the allies had no other object in view but to rescue Germany from the domination of France. Four days afterwards the Russian general proclaimed the dissolution of the Confederation of the Rhine, and the Duke of Mecklenburg-Schwerin gave the first example of an adhesion to the new Alliance.

Napoleon returns to Paris.

Napoleon, with Caulaincourt in the same vehicle, had reached Paris before the intelligence of his retreat from Moscow had become known. With his accustomed vigour he soon restored tranquillity and confidence in the capital, raised three hundred and fifty thousand men by a conscription voted by the obsequious Senate, and contrived to wring from the Pope a Concordat, wherein his Holiness yielded up the point for which he had lost the papal

throne and suffered so long an exile. Confident in the moral and religious powers thus acquired by a reconciliation with the Church, Napoleon's joy was intense. He put forth the whole strength of his varied resources to place his army upon the best footing. In the meantime, however, the forces under the Duke of Wellington were advancing; and while the storm gathered fast in Spain, outraged Germany was marshalling her forces to expel the invader from her confines. The decisive battle of Vittoria was fought on the 21st of June, 1813, and Pampeluña besieged in the latter end of July. The British army under Wellington entered France on the 8th of October, and Pampeluña surrendered on the 31st of the same month. England had also secretly opened negotiations with Austria, which, favoured by Wellington's victories, were brought to a satisfactory conclusion; and, with the view of crushing her formidable enemy, she poured out her treasure like water. Portugal received from her a loan of two millions sterling; Sicily four hundred thousand; Spain, in money and stores, two millions; Sweden a million; Russia and Prussia three millions; Austria one million; besides warlike stores sent to Germany to the amount of two millions more. The war on the continent cost England this year, in subsidies or other contributions to foreign powers, ten million four hundred thousand pounds; and the total expenditure of England for 1813-14 amounted to the enormous sum of one hundred and eighteen millions; the sum paid for transports alone being 565,790*l*.

Germans advance
to the Rhine.

Napoleon quitted Paris to take the command of his army in April. The details of the battles of Lützen, Bautzen, and Hochkirche, which followed, are too well known to be here recounted. Austria, instigated by England, on the 15th of August declared war against France; but Napoleon seemed still favoured by fortune, as he repulsed the attack of the main army at Dresden on the 27th of that month; and it was only at the great battle of Leipsic, where Napoleon had concentrated his forces, when the Saxon and Würtemberg troops passed over from the French ranks and joined the Allies, that his army was completely routed. Then the conqueror of a hundred battles fell back upon the Rhine, breaking through the Bavarian army, which obstructed his passage, and soon afterwards returned to Paris once more utterly defeated. [\[305\]](#) The Germans now raised the thrilling and invigorating cry "To the Rhine!" and the Allies issued, on the 4th of December, their declaration from Frankfort, still offering peace, which Napoleon answered by raising

another three hundred thousand men by conscription. The Allied armies crossed that far-famed river, while Schwartzburg entered France through Switzerland.

Treaty of
Chaumont.

The struggles and guerilla warfare which followed are too familiar to every reader of history to require recapitulation. Even after the battle of La Rothière Napoleon might have concluded terms of peace if he had chosen to make concessions. Before the final blow he haughtily said that he was nearer Munich than the Allies were to Paris; and to renounce even the frontier of the Rhine after so much bloodshed was worse than death to him. To the last he struggled against Lord Castlereagh's influence, whose presence in the Allied camp was worth a host of generals in circumventing his intrigues. England had already concluded a treaty with Joachim Murat of Naples, and Soult had been once more defeated by Wellington at Orthes (Feb. 27, 1814), on French ground, when on the 1st of March the treaty of Chaumont was agreed on by the Allied powers. By this celebrated diplomatic instrument it was stipulated that in the event of Napoleon refusing the terms which had been offered to him—viz., the reduction of France to the limits of the old monarchy, as they stood prior to the Revolution, the four Allied powers, Austria, Prussia, Russia, and England should each maintain one hundred and fifty thousand men in the field; and that England should pay an annual subsidy of five millions sterling, to be equally divided between the three continental powers, besides maintaining her own contingent complete from her own resources. Such were the prodigious efforts made to put the crowning act to all her previous efforts to accomplish the utter destruction of the common enemy.

The Allies enter
Paris.

The Allies now made rapid advances upon Paris; on the 1st of April their victorious armies entered the capital of France; and on the 10th of April the dynasty of the Bourbons was restored by a decree of the Senate. The battle of Toulouse, fought after the events in Paris,^[306] terminated the brilliant campaign carried on by the Duke of Wellington; and, after one of the most sanguinary wars ever waged in history, the pacification of Europe was for a time restored, Napoleon being assigned to the island of Elba, where he was allowed to retire with a liberal and independent revenue.

End of the war by
the Treaty of Paris,
1814.

These acts were confirmed by the treaty of Paris, 30th of May, 1814; and in a short time after Denmark made peace, having been compelled to cede the kingdom of Norway to Sweden. It may be added, though the facts must be familiar to most of our readers, that by the treaty of Paris France was reduced to the limits of 1792; Belgium was united to Holland, and constituted the kingdom of the Netherlands; Savoy and Piedmont were restored to the King of Sardinia; Tuscany to its former grand-duke, Ferdinand III.; and Lombardy was given to Austria.

But no sooner had the powers assembled at Vienna to settle the delineations of territory which had been so grievously disturbed by Napoleon, than difficulties met them at every stage. The Bourbons at Paris were beset with claims quite impossible to be conceded. Insolvency, consequent upon Napoleon's wars, stared them in the face. Russia demanded the whole grand-duchy of Warsaw as the reward of her sacrifices, and adduced abundant arguments to support her claims. Prussia wished to be reinstated in all respects, statistical, financial, and geographical, as she stood at the commencement of the war in 1806, with such additions as might be practicable according to the treaty of Kalitsch. Accordingly, besides various provinces on the left bank of the Rhine, she claimed the whole of Saxony, while Prussia and Russia, by friendly concessions, were united in their demands.

Napoleon's escape
from Elba.

France, Austria, and England opposed these sweeping annexations of the northern nations; and Alexander, annoyed that England and Austria should resist his pretensions, was even more fiercely indignant that Talleyrand, representing France, should "with black ingratitude" hesitate to grant what he asked. To support these pretensions Alexander kept up an army of two hundred and eighty thousand men in Lithuania and Poland, and published an address announcing his intention to restore to the Poles their lost nationality; Prussia had reorganised her army ready for action; Austria maintained her forces on a war footing; and British troops in great number were sent over to Belgium; till a million of armed men, in the midst of a congress assembled for the general pacification of the world, were retained under their banners ready for mutual slaughter. When, however, the political reasons which prompted France, Austria, and England to form a secret arrangement to

carry out the treaty of Paris somehow transpired, the views of the northern powers were materially modified; but while their rulers were still discussing the fresh territorial arrangements to be determined upon, the news suddenly reached Vienna that Napoleon had quitted the island of Elba, and had again entered France. This thunderbolt dispelled at once the numerous jealousies which had been fast gathering during the winter. All minor differences were forgotten, and, at the first meeting of the plenipotentiaries, a declaration was drawn up and signed in the name of all the Powers, which in the most rigid terms proscribed Napoleon as a public enemy, and expressed their determination to employ their whole forces to prevent Europe from being again plunged into revolutionary confusion.

His landing in France and advance on Paris.

The escape of Napoleon from Elba, his landing, his addresses to the soldiers and to the people, the defection of Labedoyère, his triumphant advance by Lyons to Paris, the treason of Ney and flight of the Bourbons to Ghent as the imperial adventurer approached the capital, are all well-remembered events. They succeeded each other with astonishing and bewildering rapidity. On the 21st of March Napoleon found himself once more in the palace of the Tuileries, with the whole army of France enthusiastic in his favour. The efforts made at a counter-revolution by the Bourbons in the provinces signally failed, and Napoleon, with fortune at his back, seemed to have seized once more permanently the imperial sceptre.

British troops despatched to Belgium.

Subsidies to European Powers.

Fouché.

But England again stood like a lion in his path. On the 6th of April the Prince Regent announced formally to the House of Commons the events which had occurred. War was approved unanimously by the Lords, and only thirty-seven members could be found to vote against it in the Commons. The nation to a man put forth its concentrated strength. An enormous sudden demand took place for transports to carry over troops and munitions of war to Flanders, which it was intuitively seen must be the battle-ground whereon the future peace of Europe was to be decided. The House of Commons provided the sinews of war with unbounded liberality. The property-tax, producing 15,000,000*l.*, was renewed. Subsidies were voted to the extent of 11,000,000*l.* to Austria, Russia, Prussia, Hanover, Spain, Portugal, Sweden, Italy, and the

Netherlands; and all Europe in a few weeks bristled with bayonets. Napoleon sought to obtain popularity by conceding a constitution; but no reflecting man had much confidence in these paper declarations. Caulaincourt tried in vain to open negotiations for peace; but his couriers were stopped on the frontiers. It was intimated to him that the Allied Sovereigns would not swerve from their resolutions: "all Europe had declared war against Bonaparte." The Emperor Alexander was especially moved, and said that "Europe requires an example." Murat, at the head of an army of fifty thousand Neapolitans, made a diversion in favour of Napoleon by marching to the Po; but they fled like a flock of sheep before the Austrians. Treason now lurked in the councils of Napoleon. Fouché was detected in a correspondence with Metternich. Napoleon threatened to hang him, but did not dare. As Carnot wisely said, the Republicans only permitted Napoleon to reign because they thought him more favourable to their views than the Bourbons; so Napoleon dissembled, under the necessity of keeping both in power. Each predominant power in succession had been fully conscious of the innate treachery of Fouché, but each was compelled to employ him.

Last campaign of
Napoleon, and
defeat at Waterloo.

Leaving a council to direct affairs in Paris, Napoleon left that city to commence his last campaign, which ended in his final overthrow at Waterloo on the 18th of June, 1815.

Reflections.

Every impartial reader of history can hardly fail to see that though the maritime decrees of Napoleon on the one hand, and the English Orders in Council on the other, had nothing to do with the origin of the lamentable wars which so long shook Europe to its base, they were the means, in a great measure, of their prolongation, and were the origin, in an essential manner, of the war between England and the United States of America. Attempts on the part of governments to deprive nations of what is necessary for their existence must ever produce the most serious consequences. Besides, it is alike vain and presumptuous for weak man to interpose obstacles in the way of securing to large masses of the people articles absolutely requisite for them, and which, so far as we can divine the inscrutable ways of Providence, are produced for the general use and welfare of mankind. Indeed, the mind is impressed with a singular sensation on beholding a great conqueror, just

reposing after one of his most signal victories, issuing decrees that would render almost every sea desolate, and prevent an interchange of commodities as necessary for the daily wants of his own people as for those of other nations.

In gaining his great victories, in adding state after state to his dominions, and in placing brother after brother on the throne of ancient kingdoms whose dynasties he had overthrown, Napoleon may for some mysterious purpose have been performing the part assigned to him by a Higher Power, and accomplishing the destinies of which, under Heaven, he was to be the instrument. But when he extended his ambition to the ocean, when he undertook to overwhelm the innocent peoples of many nations by his maritime decrees, he left the orbit in which evidently it had been his destiny to move for one on which his fleets had been invariably defeated, and where he himself was never seen except as a fugitive, and at last as a prisoner of war in the hands of the ancient rival of his country.

FOOTNOTES:

[289] This Act, in its fullest stringency, meant no commercial intercourse with any European state (see 'Key to Orders in Council,' No. 10).

[290] This Act passed Congress on the 1st of March, 1809; generally it provided that the "commerce of America was opened to all the world except France and England." The ships of war of both countries were excluded from American ports ('Key to Orders in Council,' No. 11).

[291] 'Report of the Chamber of Deputies,' 1835.

[292] Holmes' 'American Annals,' vol. ii. pp. 441, 442.

[293] The case of the English will be found treated at great length in Mr. Stephen's speech, March 1809, a full verbatim report of which will be found at the end of vol. xiii. 'Parl. Debates' for that year.

[294] See *ante* for notice of the celebrated pamphlet.

[295] Concluding sentence of Mr. Baring's 'Inquiry into the Causes and Consequences of the Orders in Council, and an Examination of the Conduct of Great Britain towards the Neutral Commerce of America.'

[296] Though the Bill for declaring war was passed by the House of Representatives by seventy-nine to forty-nine, the votes in the Senate in favour of war were only nineteen to seventeen (see Holmes' 'American Annals,' vol. i. p. 448; and 'American Diplomacy,' p. 235.)

[297] *Vide* his letters of that date; we use his own words, as quite conclusive.

[298] *Vide* Monroe's letter, Jan. 14, 1812, to Mr. Foster, Consul-General of Great Britain.

[299] This document is in the 'United States State Papers, Foreign Relations,' vol. iii. p. 457, and is further referred to in the 'Declaration of the Prince Regent,' Jan. 9, 1813. The obnoxious Decrees are renewed in full vigour, while the Duke of Bassano was affecting to wonder that the Americans had never had a copy of the Decree revoking them.

[300] Statement of Lord Castlereagh, Feb. 18, 1813.

[301] Mr. A. Baring, afterwards Lord Ashburton, said that, in an American ship in which he arrived at Portsmouth harbour from the United States, a person came on board to search for British seamen. All the crew produced certificates but one, who was carried off in the boat, amidst the jeers of the American captain, who said, "There, they have taken a man who was never out of Pennsylvania in his life, and who, thinking no one could doubt it, did not provide himself with a certificate; and have left three fellows who have been only six months out of a British man-of-war, but who have been wiser in securing certificates."

[302] See James' 'Naval History,' vol. vi.

[303] Though numerous British merchant vessels were at the commencement of the war captured by privateers, the Americans suffered the most deeply before its close from the effects it produced in their commercial relations. Their foreign trade, which anterior to the rupture with Great Britain amounted to 22,000,000*l.* of imports and 28,000,000*l.* of exports, carried on in 1,300,000 tons of shipping, was almost annihilated. So disastrous were the effects of the war, that in the two short years of its existence two-thirds of the mercantile and trading classes in all the States of the Union became insolvent, and such were the suffering and public discontent in the States of Massachusetts and Connecticut that the feeling of nationality was nearly extinguished. Indeed a large portion of the people, when peace was restored, were preparing to take steps to break off from the Union, to assert their national independence, and to make terms with Great Britain (see 'De Tocqueville' and 'Annual Register' for 1814, p. 193).

[304] Alison, v. x. p. 121.

[305] The order of events was as follows: at first on the advance of the French they were victorious everywhere, especially on the historical fields of Lützen, Bautzen, and Hochkirche, and also at Würtschen; but the tide of victory turned after a brief armistice, and Dresden was Napoleon's last success in a pitched battle. Culm, Katzbach, Gross-beeren, and Dennewitz had proved that the French were no longer invincible, and prepared for the final and crushing crisis, rendered all the more severe by the defection of two brigades of Saxon foot, twenty-two guns, and the Würtemberg cavalry, in the middle of the great battle of Leipsic, Oct. 18, 1813.—Alison, ch. xxxi.

[306] It is now certain that Soult, feeling sure of beating Wellington at Toulouse, had received the news of the entrance of the Allies into Paris four days before he fought the final battle of the great war, on April 10, 1814.—Alison, xi. p. 309.

CHAPTER X.

United States of America—Her independence recognised, 1783—Commercial rights—Retaliatory measures—Threatening attitude of Massachusetts—Constitution of the United States—Good effects of a united Government—Maritime laws and laws respecting Neutrals—Feeling on both sides the water—Treaty between Great Britain and United States—The right to impose a countervailing tonnage duty reserved—Difficulty of the negotiation—Remarkable omission respecting cotton—Indignation in France at the Treaty—The French protest against its principles—Interest of England to have private property free from capture at sea—Condemnation of ships in the West Indies and great depredations—Outrages on the Americans—Torture practised by French cruisers—The advantages of the war to the Americans—Impulse given to shipping—Progress of American civilisation—Advances of maritime enterprise—Views of American statesmen—The shipwrights of Baltimore seek protection—Great Britain imposes countervailing duties—Effect of legislative measures on both sides—Freight and duty compared—Conclusions drawn by the American shipowners—Alarm in the United States at the idea of reciprocity—Objections to the British Navigation Act—Threatened destruction to American shipping—Popular clamour—Opinions in Congress—Great influence of the shipowners—Early statesmen of the United States—Their efforts to develop maritime commerce—First trade with the East—European War of 1803—Its effect on their maritime pursuits.

United States of
America.

A brief exposition has already been given of the trade and navigation of the British colonies of North America, which in 1776 declared their independence, and after an unwise and ineffectual resistance on the part of Great Britain, achieved their object, and became, in 1783, the now great transatlantic republic, known as the United States of America.

Her independence
recognised, 1783.

For some time after their independence had been acknowledged, the people of the infant republic were slow in recovering from the extraordinary efforts they had made to secure their position as a nation. There were domestic as well as foreign obstacles to overcome. Each of the thirteen States at first contended for its own immediate interests. Some of them declared for a system of free-trade; others were in favour of protection. When a five per cent. *ad valorem* duty on foreign produce was proposed by Congress, with a view to pay off the debt of the federation, the opposition of one State alone, that of Rhode Island, was sufficient to defeat the project. And when the State of Pennsylvania levied a duty on foreign produce, New Jersey, equally washed by the waters of the Delaware river, admitted the same articles

brought by foreign merchant vessels free of duty, the result being that goods could be easily smuggled into one State from the other. Nor did the troubles of the new States end here.

Commercial rights.

Retaliatory measures.

No sooner had their independence been acknowledged than there arose, as we have seen, in Great Britain a controversy respecting the extent of the commercial rights which it would be advisable to concede to the republic; the main point in contention being whether the vessels of the United States should be excluded from her West Indian settlements, as the vessels of all other nations were by the Navigation Act, and from a commerce at that time constituting the most valuable branch of the whole British trade. As this view of the question prevailed, Congress, in 1784, recommended to the legislatures of the different States the adoption of a law prohibiting for fifteen years the importation and exportation of every species of merchandise in any vessels belonging to foreign powers which had not connected themselves with the government of the United States by commercial treaties. The recommendation of retaliatory measures, as has too frequently been the case in all ages and with all nations, found ready favour with the New England States, whose people were almost exclusively engaged in maritime pursuits. The merchants and shipowners of Boston, who had played so determined and conspicuous a part in the great revolution, were highly exasperated by their exclusion from the ports of the West Indies, and by the regulations adopted with regard to British fisheries in the American seas. They viewed also with alarm the establishment of British factors in their country.

Threatening attitude of Massachusetts.

Massachusetts consequently passed an Act for the regulation of navigation and commerce, whereby they prohibited the exportation of any American produce or manufacture from their ports in vessels owned by British subjects after the 1st of August, 1785; with a provisional exception in favour of those British settlements whose governors should reverse their proclamations against the admission of American vessels into their ports. They also levied several extra duties to be paid by vessels belonging to foreigners, and especially by British subjects. There was, however, a proviso, containing a permission for newly-built vessels constructed in Massachusetts, though partly or wholly

owned by British subjects, to take in cargoes upon equal terms with the citizens of the United States, but only for their first departures.

Several States, following the example of Massachusetts, levied duties of various kinds on foreign tonnage. In some of the States 1s. per ton was imposed, while in others foreign vessels were subjected to a tax of from 3s. to no less than 5s. per ton, counterparts, in many respects, to the ancient navigation laws of England. However prejudicial to other nations, these high and conflicting rates led to a general misunderstanding among the States themselves, which contributed about as much as any foreign competition would then have done to check the progress of American navigation. But a common interest soon made it manifest to the people of the United States that these differential, or rather protective duties could not be maintained, and that some general regulations were essential to the safety and welfare of the Union, and to the development of its trade and navigation. In short, the different States found it absolutely necessary to part with a portion of their individual liberty in order to secure the combined and wholesome action of the entire Union. Indeed they soon perceived the necessity of confiding to Congress alone the power of regulating and controlling their intercourse with foreign nations; and, with this object in view, a convention was called to revise the articles of the confederation.

Constitution of the
United States.

By the constitution of the United States (Art. 1, Sec. 8, 9, 10), Congress was vested with the power of regulating commerce with foreign nations. It was therefore stipulated, on the recommendation of the convention, that no tax or duty shall be laid on articles exported from any State; that “no preference shall be given by any regulation of commerce or revenue to the ports of one State over that of another;” and that no vessels bound to or from one State should be obliged to enter, clear, or pay duties in another. Further, that “no State shall, without the consent of Congress, lay any impost or duty on imports or exports except what may be absolutely necessary for executing its respective laws; that the net produce of all duties or imposts laid by any State on imports or exports shall be for the use of the treasury of the United States, and that all such laws shall be subject to the revision and control of Congress.”

The good effects of
a united
government.

The adoption of this paper constitution, as yet not quite in force to its legitimate extent in some of the Southern States, conferred upon the United States the sovereign attributes of a great nation. It secured the domestic tranquillity then so much required, and laid the foundation for amicable treaties of commerce and navigation with foreign powers. Placed as the people of the United States were, without any relations of amity with other nations, but happily unshackled with any trading monopolies to limit their free action, it was obviously to their interest to invite other countries to their shores, and to form with them friendly alliances of commerce and navigation. Accordingly their then Secretary of State, seeing that some of the States were opposed to protection, proclaimed with great wisdom the principles of free-trade; and in his manifesto on this subject^[307] remarked that “instead of embarrassing commerce under piles of regulating laws, duties, and prohibitions, it should be relieved from all its shackles in all parts of the world. Would even a single nation,” he continued, “begin with the United States this system of free commerce, it would be advisable to begin with that nation.”

Unfortunately other nations, and more especially Great Britain, as well as the Northern States of America, were not then prepared to adopt, pure and simple, the principles he propounded; and although American vessels were then admitted to the British possessions in the East Indies upon the most favoured footing, the great majority of the English people had no inclination to yield one iota of their ancient navigation laws without an equivalent, as they considered these laws to be the chief, if not the sole cause of their maritime success and supremacy. Nor would the English government make any concessions with regard to Light dues and Local charges, of which the shipowners of the United States justly complained, and have still, though to a much less extent, some cause for complaint. The Board of Trade contended that these charges were of ancient establishment and the property of private persons or of corporate bodies, and that the funds arising from them were in many instances applicable to public works or charitable purposes.

Maritime laws and
laws respecting

With regard to maritime regulations an intimation was given by the Lords of the Council that Great Britain might consent to insert in a commercial treaty with the

neutrals.

Feeling on both
sides the water.

United States all the articles of maritime law which had of late years been inserted in her commercial treaties with other foreign powers; expressly excepting, however, any article allowing the ships of the United States to protect the property of the enemies of Great Britain in time of war, *which should on no account be admitted*. On the other hand, the more violent partisans in America for unrestricted trade with the West Indies threatened to break off all commercial intercourse with Great Britain unless their demands were complied with. In this controversy it is amusing to observe that grave members of the English Council actually gave an authoritative opinion: "That the articles which the people of the United States now send to European markets are but few, and can be obtained in equal perfection from other countries; and," they added, "IT IS MORE LIKELY *that the demand for them from thence should in future* DIMINISH RATHER THAN INCREASE." If these short-sighted mortals could but have opened the book of the future, and could have contemplated the prodigious supply of cotton, and corn, and other raw produce which have been derived from the United States since the resources of its fertile and varied soil have been developed, they would have paused before they hazarded such crude and altogether erroneous vaticinations. They, moreover, decried the trade in grain as precarious, and asserted that no system of foreign commerce permanently profitable could be founded upon it.

Treaty between
Great Britain and
the United States.

Happily, however, a treaty of amity and commerce and navigation was at last concluded between the two nations; but we need only here refer to those portions of it which more especially affected their navigation. By this treaty it was arranged that during the continuance of the French war, and for two years after its termination, the citizens of the United States might carry in vessels of their own, not exceeding the burthen of seventy tons, to the British West Indies, all such produce or manufactures of the United States as could be lawfully carried from the States to the islands by British vessels; and also that American vessels might carry back from the islands to the States all such West Indian produce as British vessels might carry to the same quarter; the same duties being levied by each government on the ships of the one country as on those of the other engaged in this trade. The United States were, however, expressly debarred from carrying

molasses, sugar, coffee, cotton, etc., the produce of the West Indies, to any other part of the world.

The right to impose
a countervailing
tonnage duty
reserved.

The liberty of continuing to trade to the ports of the territories of Great Britain in the East Indies was confirmed to American vessels; the government of the United States engaging that such vessels should carry the goods brought away by them from India to no part of the world except their own ports in America. By the 15th article it was agreed that no higher duties should be charged in the ports of either country upon vessels belonging to the other than were paid by the like vessels on merchandise of all other nations; nor should any prohibition be imposed upon the exportation or importation of any articles to and from the territories of the two contracting parties respectively, which should not equally extend to all other nations.^[308] But the British government reserved to itself the right of imposing on American vessels entering into the British ports in Europe a tonnage duty equal to that which was payable by British vessels in the ports of America; and also such duty as might be adequate to countervail the difference of duty payable on the importation of European and Asiatic goods, when imported into the United States in British or in American vessels. Both parties further agreed to treat with regard to a more exact equalisation of duties. If a vessel should be taken or detained on suspicion of having enemy's property on board, or of carrying contraband articles, it was stipulated that only the illegal portion of the cargo should be condemned and made prize.

By the 21st article the two governments bound themselves not to permit their subjects or citizens to accept commissions from the enemies of the other, nor to permit such enemies to enlist any of their subjects or citizens into the military service; any subject or citizen acting contrary to this article being made punishable as a pirate. By subsequent articles the contracting parties agreed that neither would permit privateers, commissioned by the enemies of the other, to arm or to trade in their ports, still less allow a vessel belonging to the other to be taken within any of its bays, or within cannon-shot of its coasts. In case of a rupture between the two countries, the subjects or citizens of the one residing in the dominions of the other were secured the privilege of remaining and continuing their trade, so long as they committed no offence against the laws; and even if their conduct

should induce the government to order them to depart from the country, they were allowed twelve months to remove their families and effects.

Difficulty of the negotiation.

These were the chief articles of this treaty. The disaffected on both sides the water found, however, as has almost invariably been the case in commercial treaties, great fault with it. The shipowners of the United States complained of the restrictions put upon their shipping intercourse with the West Indies; while the cavillers in Great Britain looked upon the permission to use vessels of seventy tons in the trade between the United States and these islands as equivalent to the creating a nursery of seamen for the use of America. But the treaty, in spite of these cavillings, was signed by Lord Grenville and Mr. Jay on the 19th of November, 1794. It was not, however, until the 25th of October, 1795, that the ratifications between the two governments were exchanged. The House of Representatives in the United States did not sanction this treaty till the 30th of April, 1796, nor was the Act for carrying its provisions into effect passed in the British Parliament till the 4th of July, 1797.^[309] Throughout the whole negotiation Mr. Jay admits that he was apprehensive of giving umbrage to France; but while he is eloquent about the British spoliations on American commerce, he was forced to admit that British vessels had been captured by French privateers, illegally armed in American ports, and that some of them had actually been taken in the waters of the United States. The obligation of the United States to make compensation for these captures was also admitted by Washington. But the great difficulty of bringing the negotiation to a satisfactory issue cannot be better described than in the words of Mr. Wm. Jay.^[310]

“On his arrival in England, the revolutionary frenzy in France was at its height. Robespierre was revelling in all the wantonness of unbridled power, and the French people, the unconscious vassals of a bloody tyrant, were perpetrating acts of cruelty and impiety which excited the astonishment and abhorrence of all who duly estimated the claims of humanity and the obligations of religion. With this people the British monarch was waging a war, in which he was supported by the enthusiastic co-operation of his own subjects,^[311] and by the alliance of Russia, Austria, Spain, and Sardinia. Although in this war the United States were *professedly neutral*, yet it was well known that the sympathies of a large portion of their citizens were enlisted *on the side of France*, and that they were with difficulty restrained

by their government from violating the duties of neutrality. The late proceedings of Congress, also, had tended but little to conciliate the goodwill of England. The American war, and the consequent independence of her colonies, had moreover wounded the pride of Britain, and engendered feelings towards the United States unpropitious to the negotiation. The extent of her resources, the number of her allies, the nature of the war in which she was engaged, and her resentments towards the United States, all combined to indispose Great Britain either to acknowledge the wrongs she had committed or to make reparation for them.”

It was in this treaty that Mr. Jay proposed to insert a clause “that if it should unfortunately happen that Great Britain and the United States should be at war, there shall be no privateers commissioned by them against each other.” Unhappily the clause was considered inadmissible by Lord Grenville, and in fact, although the proposition is embraced in Mr. Jay’s original instructions, the American government have receded from the views they then propounded unless other nations exempt private property from capture at sea. [\[312\]](#)

Remarkable omission respecting cotton.

It may seem singular that the American minister should have consented to prohibit the exportation of cotton, one of the articles enumerated in the clause relating to the West Indian trade. The explanation is curious. In the original draft of the treaty, the United States minister stipulated to prohibit during the continuance of the article in force, all “West Indian productions and manufactures.” The expression was, on reflection, deemed to be too general, and it was agreed to specify the prohibited articles, and accordingly “cotton” was inserted as a West Indian production; the cotton then used in the United States being almost wholly brought from the West Indies. [\[313\]](#) A few months prior to Mr. Jay’s departure for England, Mr. Jefferson, the Secretary of State, in a report to Congress on the commerce of the United States, enumerated the exports of the country, but made no mention of cotton. It was not, in fact, then known as a production of the United States, although it now requires for its transport a greater amount of shipping than almost any other article in the whole range of commerce.

The treaty so satisfactorily concluded between Great Britain and the United States, having been undoubtedly a successful effort of diplomacy in

Indignation in
France at the treaty.

bringing together two nations which had been torn asunder by revolution, was viewed in France with the most profound alarm and indignation. The resentment of the French scarcely knew any bounds. They were full of the idea that the Americans owed their national independence to the aid rendered by them to the revolted colonies, a support which, as already explained, was furnished with a view less to promote the cause of freedom in the United States than to aim a blow at the maritime power of England.

The French protest
against its
principles.

So loud and clamorous were the complaints against the treaty, that if the voice of the French had been listened to, an open rupture must then have ensued. They publicly declared that it violated in a positive and hostile manner the treaty they had concluded “in favour of the Americans in the year 1778, by which the United States agreed to guarantee the possessions of France in the West Indies; whereas, by this treaty, the very furnishing of provisions to the French islands was pronounced illegal.”^[314] They alleged that it “deprived France of all the advantages stipulated in a former treaty;” and they charged the Americans with “the abandonment of their neutral rights, to the injury of France,” in not maintaining the pretended principle of the modern law of nations, that free ships make free goods, and that timber and naval stores for the equipment and armament of vessels are not contraband of war.

Interest of England
to have private
property free from
capture at sea.

On this question, of such paramount importance to England, considering the vast amount of her maritime commerce, much has been said and written, and every view of the subject has been argued with great care and consummate ability. No doubt the feeling of nations is becoming more in favour of the principle of making all goods not contraband of war exempt from capture at sea, and the views of the more modern English statesmen are inclining in that direction; but it is only by taking a retrospective view of the measures unscrupulously adopted by both France and England during their mighty struggle that a conjecture can be formed of what will be the future effect of such or similar compacts. While waging internecine war against each other, the people of England and France were famishing alike for want of food. Should such circumstances again arise, it is not easy to suppose, much less to hope, that nations so

powerful at sea as Great Britain, with their people thus suffering, would be bound by any compact that stopped the supply from America or elsewhere; and it is almost as futile to hope that they would relinquish their power of hampering their enemies' commerce at sea unless it were stipulated that neutral nations are bound to enforce the compact. Though England still stands first as a maritime power, and has consequently at her disposal the most extensive means of destroying an enemy's maritime commerce, she has, on the other hand, by far the largest amount of property of any nation at all times afloat, and must therefore be the largest sufferer in the event of hostilities with any power which can equip a fleet of privateers. Consequently, it was hoped by a large portion of the English people, when the American government in 1856 declined to become parties to the declaration of the European Powers assembled in conference at Paris, unless all private property was made free from capture at sea, that Great Britain would have readily acquiesced in the proposal.

Condemnations of
ships in the West
Indies,

This policy did not, however, suit France in 1797; and to show in a practical manner their displeasure at the treaty into which the United States had entered with England, the French republic issued in the same year the circular, already incidentally noticed, in which they announced that the conduct of France towards neutrals would be regulated by the manner in which they should suffer the English to treat them, thus opening a wide door to spoliation, in defiance of subsisting treaty obligations. At Malaga and Cadiz the French consuls interpreted this unprincipled notification or decree as an authorization to capture and condemn all American merchantmen for the single circumstance of their being destined to a British port. But the most disastrous effect was produced in the West Indies, whose seas swarmed with privateers and gun-boats; which were stimulated into active operation by the latitude allowed to their depredations by the indefinite terms of that decree, and the explanatory orders of the agents of the French directory at Guadaloupe and St. Domingo. These agents captured and confiscated American vessels under the most shameless and contradictory pretexts. All neutral vessels bound to certain enumerated ports, which it was pretended in the decree had been given up to the English, were unceremoniously condemned. The fact of an American vessel being bound to an English port sufficed for her sweeping condemnation, and not unfrequently for that of her cargo. Any informality in a bill of lading; any irregularity in the

certified list of the passengers and crew, the supercargo being, for instance, by birth a foreigner, although a naturalised citizen of the United States; the destruction of a paper of any kind soever, and the want of a sea letter, were deemed sufficient to warrant the condemnation of American property, even when the proofs of the property were indubitable.

and great
depredations.

Outrages on the
Americans.

In the West Indies the most audacious scenes of depredation were exhibited; so much so that the conduct of the public agents and of the commissioned cruisers surpassed all former examples. American vessels were not only captured under the French decrees, but when brought to trial in the French tribunals, they with their cargoes were condemned, without admitting the owners or their agents to make any defence. Indeed a system of spoliation seems to have been brought into practice for the obvious purpose of insuring condemnations. By a monstrous abuse in judicial proceedings, frauds and falsehoods, as well as flimsy and shameless pretexts, passed unexamined and uncontradicted, and were made the foundation of sentences of condemnation. American citizens were beaten, insulted, and imprisoned; and even their prisoners of war were exchanged with the British for Frenchmen. American property going to or coming from neutral ports was seized, and in many cases forcibly taken when destined for France, or actually in *French ports*, without any pretence whatever, except that the French required it for their own purposes.

Torture practised by
French cruisers.

Nor did their wanton and outrageous conduct against the Americans stop here. Many accounts are extant of attempts to effect condemnations by bribing the officers and seamen of the American vessels to swear falsely; and it was further reserved for those days, when offered bribes were refused, and threats despised, to endeavour to accomplish the object by *torture*. In a protest set forth by Captain Martin, master of the *Cincinnati*, a vessel of about two hundred and twenty-nine tons, belonging to Baltimore, the fact of torture having been resorted to by the French cruisers appears to be placed beyond all doubt.^[315] In this protest he states that while on his voyage from Baltimore to London he was boarded by a French armed brig under English colours, when he with five of his crew were taken on board, and though the vessel's papers when examined left no doubt of the nationality of his ship

and cargo, being American, the officer in command of the French brig insisted that the cargo was English property, and assured Martin that if he would admit the fact, and formally acknowledge it, his full freight should be paid, and he should have a present of one thousand pounds. But the overture was spurned, the master declaring the whole to belong solely to Aquilla Brown of Baltimore, merchant. “Whereupon the French officers thumb-screwed the said master in the cabin of their said brig, and kept him in torture to extort a declaration that the said cargo was English property, for nearly four hours, but without the desired effect.” A vessel heaving in sight, Martin was liberated, but it was not until the *Cincinnatus* reached the English Channel that she was relieved by H.M.S. *Galatea*, and finally reached Dover. Mr. Rufus King, minister of the United States in London, personally examined Captain Martin’s thumbs, and said “they still bear the marks of the torturing screws, and the scars will go with him to the grave.”^[316]

The advantages of the war to the Americans.

But with all these drawbacks to the progress and success of American shipping, and the great disadvantages to which neutrals are exposed during a state of war, which often counterbalance the advantages they enjoy of seizing upon the carrying trade of the world, it cannot be denied that the memorable revolution of France in 1789, and the wars consequent upon the events, created a vast demand for American exports, and secured for the Americans a very considerable portion of the carrying trade of Europe. They not only carried the colonial productions to the several parent states, but they also became the purchasers of them in the French, Spanish, and Dutch colonies. A new era was indeed established in their commercial history, and their merchants and shipowners increased in numbers to an extent out of all proportion to the general state of the population.

Impulse given to shipping.

Many persons who had realised moderate capitals from mercantile and other pursuits now become daring adventurers as carriers by sea [there being no trading companies, whose monopolies have a withering effect upon individual enterprise], the practice became common for Americans to frequently change their pursuits, a practice springing out of a native energy of the people still prevailing. Foreigners were admitted without reservation to all the privileges of the citizens of the United States, although the government

carefully excluded them from any participation ostensibly in the benefits arising from the possession of ships. No aliens were permitted to be either sole or part owners of American vessels. The predominant spirit of that period had a powerful effect in determining the character of the rising generation, and the brilliant prospects held out by maritime enterprise led them to neglect for a time the mechanical and manufacturing branches of industry.

Progress of
American
civilisation.

By this greatly extended intercourse with other nations the Americans not only augmented their material wealth, but became acquainted with the habits, manners, science, arts, resources, wealth, and power of those countries with which they carried on a profitable trade. They were thus enabled to avail themselves of all the stock of accumulated experience and wisdom which the elder nations of Europe had slowly, and, at the cost of so much labour, bloodshed, and incessant struggles, secured. With some modification of the English constitution, the Americans, having as yet no ancient aristocracy, chose an elective republican form of government; but the well-framed body of English laws formed the basis on which the whole framework of society rested. In almost everything relating to the conduct of commercial and maritime affairs the English code was adopted, and became transplanted and firmly rooted in the hearts of the American people. In a natural desire to appear free and original, they affected some changes, but these were merely partial; and, both in theory and practice, English laws relating to shipping, with such prudent modifications as the change of position and circumstances required, were adopted, and formed the model of American practice and legislation.

Advances of
maritime enterprise.

With these incalculable advantages, a rich soil, an enterprising and free people, a country indented with harbours and bathed by magnificent navigable rivers, it is scarcely a matter for wonder that their maritime enterprise made rapid advances. The capital of the shipowners being thus suddenly augmented, they were enabled to explore new sources of wealth. The entire globe was circumnavigated with a view to open new markets. Merchants who had been long engaged in trade were confounded by the changes so rapidly effected. The less experienced considered the newly acquired advantages as matters of right which would remain to them. They did not contemplate a

period of general peace, when each nation would carry its own productions in its own vessels; when the jealousy of rivals would suggest the imposition of differential or practically prohibitive duties; when foreign commerce would be again fettered and limited by “enumerated articles,” and when, with reduced profits on shipping transactions, a much greater amount of circumspection would be necessary.

Views of American
statesmen.

It was in the midst of this career of prosperity in the United States that many far-seeing American statesmen urged on the then reluctant attention of those of their countrymen who dwelt along the sea-board the paramount necessity of dedicating their surplus capital to the extension of agricultural industry. These men urged that the food heretofore exported by America to foreign countries might not be required for European consumption, and that many of the hands then engaged in active hostilities, either for defence or conquest, would be required for agriculture. Instead of there being always a deficiency of food in Europe, it was quite possible that there might be a surplus of provisions, the many thousands in their armies and fleets being added to the productive classes, and thus diminishing the chief branch of freight enjoyed by the United States shipping.

The experience of the interval from 1783 to 1791, when American trade was so much depressed, had not been lost upon keen and calm observers, and many able American writers incessantly pointed to the vast, rich, fertile uncultivated lands in the south and west of the Union, as the inexhaustible mine of wealth from which the future greatness and power of the States must be derived, and urged their countrymen to encourage and direct their efforts to that branch of domestic industry. This salutary advice was not altogether lost at that time upon the Americans; but it has since been ardently pursued, with what success the exports of the articles of corn and cotton alone will fully establish.

The shipwrights of
Baltimore seek
protection.

Nevertheless, the shipowners of the United States were at the earliest period of their existence as a nation infected with the principles of self-protection on which the English Navigation Act had been founded; for in the very first session of Congress, 1789, the shipwrights of Baltimore and South Carolina, in rehearsing their grievances to the House of Representatives, copied identically the numerous complaints urged on this

side the water. They pointed out the diminished state of ship-building in America, and the ruinous restrictions to which their vessels were subject in foreign ports; and, among the advantages looked for from the national government, was the increase of the shipping and maritime strength of the United States of America by laws similar in their nature and operation to that Act. Whichever way they looked, they perceived that the United States ought soon to become as powerful in shipping as any nation in the world. They insisted that, upon the closest examination of the subject, they were better prepared for a Navigation Act than England had been when the British Navigation Act was passed in 1660. They argued that though the registered tonnage of that kingdom did not then exceed ninety-six thousand tons, it had reached close upon eight hundred thousand tons in 1774, an increase, in little more than a century, of about seven hundred and four thousand tons. Why, therefore, exclaimed the Baltimore shipwrights, why should not we adopt a similar wise policy?

Arguments such as these, reiterated over and over during a course of years, produced in time their effect upon Congress, many of whose members had been strongly opposed to the treaty with England. French influence was also brought to bear in every conceivable way against it, and at last the protectionists of the United States were enabled to carry a measure through the Legislature sanctioning certain differential duties in favour of their own vessels as against those of England trading with their ports. From this time commenced that war of retaliation which, in one shape or other, continued between the two nations for nearly half a century.

Great Britain
imposes
countervailing
duties.

In the fifteenth article of the treaty of commerce and navigation the British government had reserved the right of countervailing these discriminating duties, and the United States had bound themselves not to impose any new or additional duty on the tonnage of British ships or vessels, or to increase the then subsisting difference between the duties payable on the importation of any article in British American ships; so that when Congress imposed increased duties, the English Parliament exercised the reserved right stipulated in the treaty, and thus by the Act of Geo. III., c. 97, countervailing duties were imposed, payable on the importation of American goods in American vessels, in addition to the duties payable on their importation in British ships.^[317] Additional duties were also imposed

upon certain specified articles, and three per cent. *ad valorem* upon enumerated articles.

Effect of legislative measures on both sides.

Such, then, was the legislation on both sides, as it most materially affected merchant shipping. The American shipowners and merchants looked upon every proceeding on the part of the British Legislature as levelled especially against themselves; and, jealous of everything which militated against their own interest, they contended that the Parliament of Great Britain had exceeded the fair intent and meaning of the treaty of 1794, and had secured for the British shipowners the exclusive carriage to Great Britain, in time of peace, of some of the most important objects of American exportation. They pointed out that the English had selected fish, oil, and tobacco, articles of great bulk, as objects on which the highest countervailing duties had been imposed. They alleged that in consequence of this countervailing duty upon oil, a British ship of two hundred and fifty tons register, carrying two hundred and fifty tuns of oil to great Britain from the United States, would pay 453*l.* 15*s.* sterling less duty thereon than the same oil would pay if imported into Great Britain in an American ship. By a similar operation, a British ship of two hundred and fifty tons, carrying four hundred hogsheads of tobacco, of one thousand two hundred pounds each, to Great Britain from the United States, would pay 360*l.* sterling less duty than would be payable on the same quantity of tobacco imported in an American ship; the whole freight, at 35*s.* sterling per hogshead, would only amount to 700*l.* sterling, which, after deducting the countervailing duty of 360*l.*, would leave to the American a net freight of only 344*l.* 1*s.* sterling.

It was further pointed out that rice, when imported into Great Britain in an American ship, was charged with a duty of 8*d.* per hundredweight more than when imported in a British ship; and that an extra duty amounting on a tierce of rice to 3*s.* 9*d.* sterling, the freight of a tierce of rice being then about 12*s.* sterling, was also demanded. It was said that no person would give 15*s.* 9*d.* freight in an American when he could have the same carried for 12*s.* in a British ship. Pot and pearl ashes were made to pay a countervailing duty of 9*d.* per barrel; and as the freight of such a barrel was presumed to be 5*s.* to 5*s.* 6*d.* sterling in times of peace, a difference of 9*d.* sterling would effectually give the carrying trade to British ships of all the ashes exported from the United States to Great Britain.

Conclusions drawn
by the American
shipowners.

From such arguments as these the shipowners of the United States drew the conclusion that Great Britain, by her countervailing Act, secured effectually the carrying, for her own wants and foreign commerce, of the American fish-oil, tobacco, pot and pearl ashes, rice, indigo, and cotton; and, having obtained the carriage of these bulky articles, all minor objects, except naval stores, not being sufficiently important to form entire cargoes, would also, of necessity, be carried in British ships. The small *export* duty imposed by the British Parliament, of *one-half* per cent. on all goods, wares, and merchandise of the growth or manufacture of Great Britain on their exportation to any port in Europe within the Straits of Gibraltar, and of *one* per cent. on similar goods when exported to any place not being in Europe or within the Straits of Gibraltar, subjected the United States to a duty on exports double that which was paid by the nations of Europe. Of course this extra duty, small as it was, but utterly wrong in principle, served to make a new grievance, and the Americans contended that this *discriminating*, or, more properly, this *differential*, duty was in contradiction to the spirit of the treaties which subsisted between the United States and Great Britain.

Two modes were proposed to the American Legislature to obviate the disadvantages resulting to the carrying trade of the United States from these countervailing and differential duties. The one was, to increase the American discriminating^[318] (differential?) duties, so as to counteract the injury they experienced from the operation of the countervailing duties of other nations. The other was, to relinquish the American duties (so far as they related to goods, wares, and merchandise, the growth, produce, or manufacture of the nations to which the ship in which these were imported belonged) in favour of such foreign nations as would agree to abolish such of their discriminating duties as were in their operation injurious to the interests of the United States.

Alarm in the United
States at the idea of
reciprocity.

The mere intimation of a design to inaugurate something like a policy of reciprocity, if not of entirely free-trade, struck alarm into the minds of the shipowners and shipbuilders of the United States. They held meetings, in which their patriotic feelings of indignation, as seems to have been the case in other countries as well, were singularly intermingled with a keen sense of self-interest, not perhaps very wisely directed. But, carried away by popular

clamour, engendered but too often by parties who had only a very limited view of their own and of the national interests, the great mercantile bodies of New York, Boston, and Philadelphia strenuously opposed any remission of the American differential tonnage duties. They insisted that, taking anterior years as a guide, the loss to the revenue would not be less than \$450,000 per annum. They viewed the project with alarm, believing that if carried out it must essentially injure the commerce of the United States; as its immediate effect, by opening the market for freight to the lowest bidder, would be to shift the carrying trade from the hands of their own merchants to those of foreigners. In this way the American shipowners argued that foreigners would build cheaper, equip cheaper, and sail their vessels at less cost than they could, at the same time intimating that Europeans were generally satisfied with a less profit than the American merchant could afford to receive.

Objections to the
British Navigation
Act.

Threatened
destruction to
American shipping.

Accordingly, they contended that to meet the advances of Great Britain and to repeal the American countervailing Acts, would not be to place the two nations on an equal footing, so long as England retained her Navigation Act. The mutual repeal of differential tonnage duties they urged would not establish a perfect system of reciprocity; as the Americans, in that case, would thus permit Great Britain to carry to the United States, not only goods the growth or manufacture of that country, but of all others, while by maintaining in force her Navigation Act, the Americans would be expressly confined in their trade to the carriage of goods the growth or manufacture of the United States. British vessels would accordingly bring goods from England to America, take a freight in one of the ports of the United States to the British colonies, where American vessels are not admitted, and thence a third, home, making three freights in one voyage; so that foreigners would crowd their wharves, underbid their freight, monopolize their markets, and “leave American vessels idly to rot in their docks.”^[319]

Such was the almost universal feeling against the measure entertained by the shipowners of the United States, who endeavoured to enlist the agricultural and mechanical classes on their side, and employed for this purpose arguments which have been repeated over and over again in our

own generation. They asserted that although, generally speaking, freight is paid by the consumer, and that, therefore, it may be said it is immaterial to the farmer how high or how low it may be, nevertheless this is not the case when the demand ceases or slackens; it then falls back on the husbandman. In this point of view, to transfer the American trade to foreigners would, it was alleged, lessen very much the certainty of the demand.

They went farther, and told the agriculturists that the active enterprise of the American merchants and shipowners was constantly on the alert in looking abroad to every part of the world for a market, and if it was anywhere to be found, or if there existed only a reasonable presumption that it might be found, the farmer was thereby secured a ready vent for his produce. Perhaps the calculation of the merchant might be disappointed, perhaps not even a freight would be earned, and he might be ruined; nevertheless, this misfortune did not reach the farmer, who had secured the benefit of a good market. But, in the event of American vessels disappearing, he must then be left at the mercy of chance adventurers for a market; and when the demand is not very great, the price of the freight would be deducted from the article itself. This serious contingency, it was argued, must tend necessarily to lessen essentially the value of the farmer's produce. As nothing less than the total annihilation of the American merchant navy was anticipated, it was pointed out to the mechanic that those numerous bodies connected with shipbuilding, the carpenter, the blacksmith, the sail-maker, the rope-maker, and others would of course all be thrown out of employment; their labour would be neither wanted nor paid for. The American ships, being, under these circumstances, banished from their native shores, would no longer furnish a nursery for seamen, but that valuable class of citizens would be driven to seek for their bread in other countries, and finally, in any future European wars which might supervene, and which were constantly liable to happen, the American people would find themselves denuded of seamen and ships, and would not be able to avail themselves of that neutral position which reflection and experience equally warranted them in calculating upon, as one of the "blessings" allied to their remote and secure geographical position.

Popular clamour.

The history of these struggles shows that however enlightened the members of Congress may have been, it was, even at that time, impossible to run counter to

popular clamour, although this may have been instigated by perhaps an erroneous view of the self-interests of the parties primarily concerned. The consumer did not feel the same deep immediate interest in the controversy as the shipowner, whose voice was loudly heard in Congress through the representatives of the great ports and maritime towns.

Opinions in
Congress.

Upon a consideration of all the circumstances, Congress was led to consider that any retaliatory legislation imposing heavier discriminating duties on foreign tonnage or goods would in its consequences materially tend to increase the commercial warfare, and render more serious the war of tariff between the United States and foreign nations. The reflecting, far-seeing members perceived that if the United States were to increase her differential duties, there was every probability that England and other foreign nations would also augment theirs in every instance, and that at every time the United States pursued their plan of increase, foreign nations would repeat the same process. But they were met at all points, as we have seen, by the almost universal opposition of the American shipowners, who were as eager to maintain a protectionist policy in shipping as any of their rivals in the same business on this side the Atlantic.

Great influence of
the shipowners.

Though the shipowners of the Northern States exercised for a time considerable influence over the Legislature, a committee of the House of Representatives passed a resolution which went no further than to recommend to the House, "That so much of the several Acts imposing duties on the tonnage of ships and vessels, and on goods, wares, and merchandise imported into the United States, as imposes a discriminating duty of tonnage between foreign vessels and vessels of the United States, and between goods imported into the United States in foreign vessels and vessels of the United States, *ought to be repealed*, so far as the same respects the produce or manufactures of the nation to which such foreign ships or vessels shall belong, such repeal to take effect in favour of any foreign nation whenever the President shall be satisfied that the discriminating or countervailing duties of such foreign nation, so far as they operate to the disadvantage of the United States, have been abolished."

This important resolution, opening the door to reciprocal measures, was declared to be more consistent with the true interest, as well as with the

peaceful disposition, of the United States than any retrograde movement. Although no legislative action followed this enunciation of the principles of reciprocity, it formed at a future period the basis of both negotiation and legislation with foreign powers. The time, however, had not then arrived for the avowal and practice of a much wiser and more enlightened policy than that by which nations were guided before, and for some years after, the close of the eighteenth century.

Early statesmen of the United States.

Their efforts to develop maritime commerce.

Perhaps no nation of modern times has produced more enlightened statesmen than those who regulated the affairs of the United States for full half a century after the declaration of its independence. They had, as we have seen, numerous difficulties to contend with, both at home and abroad, but these were overcome with a tact and genius which commands our admiration. Though materially assisted in their efforts to extend and develop their shipping by the seafaring habits of the people, by the natural maritime resources of their own country, and by the advantages they derived as neutrals during the war which so long raged in Europe, they were ever ready to encourage increased intercourse with distant nations, in spite of the opposition of the maritime States to those liberal measures which they had so frequently propounded, and in which they had been too often thwarted.

First trade with the East.

But though the American shipowners, as a body, and as would seem to be the case with the majority of shipowners of all countries, clung to protection, they were individually quite as daring, and even more energetic, than those of Great Britain. So early in their independence as 1785 a vessel from Baltimore in Maryland displayed, for the first time, the American flag in the Canton river, where she discharged a cargo of American produce, and loaded in return a cargo of teas, China ware, silk, and other produce for her own country. In September 1788, Captain Read, the commander of an American merchantman, arrived in Philadelphia from a voyage to China, wherein he had performed the outward passage by stretching from the Cape of Good Hope to the south of New Holland (Australia), and running northwards along the east side of that vast island, until he reached his port of destination. As we have seen, other American merchant vessels had reached the British possessions in India at a time while as yet prolonged

voyages to the most distant regions of the globe were deemed such arduous efforts of nautical skill, as only to be performed in safety by a few experienced commanders in the service of Spain, Portugal, Holland, and England, who had been accustomed to the navigation of those distant seas, and were familiar with the routes, and the prevailing periodical winds. So rapid indeed was their progress, that out of the million tons of sea-going vessels owned in the United States at the commencement of this century, no less than seven hundred and twenty thousand were employed in their trade with foreign nations. Although some historians^[320] attribute this prosperity in great measure to their protective laws, it will be found mainly due to the facilities which the United States afford for maritime pursuits, the abundance and cheapness of timber suitable for shipbuilding purposes, and especially, as we have just mentioned, to the energy of the people and the advantages they derived as a neutral nation.

War of 1803.

Its effect on
maritime pursuits.

When in May 1803, the war again broke out between France and England, the shipowners of the United States, with their characteristic energy, were prepared to avail themselves, to an even greater extent than they had hitherto done, of the numerous advantages which a European war conferred on them as neutrals. Hostilities between two great nations must ever be a most grievous calamity, but it was greatly aggravated in the present instance by the depredations of American privateers hoisting, as might suit their purpose, French or English colours, under men, too, who were almost as reckless and daring in their acts as the English and Dutch buccaneers of the early part of the eighteenth century, some of them frequently making capture of vessels belonging to their own countrymen.

But though an examination of the State papers collected by the Americans themselves furnishes abundant proof of too many unblushing acts of piracy committed by vessels built and equipped in American ports, and frequently manned almost exclusively by citizens of the United States, there is no reason to suppose that their lawless acts were committed by the consent or knowledge of the American government. When the arm of the law is not sufficiently strong, there are always abundance of adventurers of all nations ready to take advantage of its weakness and, in the name of neutrals or under the flag of belligerents, as may best suit their purpose, to fit out from neutral ports cruisers with no other object than plunder; and there were too

many of such vessels cruising about the ocean during the last twelve years of the mighty struggle between France and England. The government of the Federation was as yet incapable of controlling the ardour, love of gain, and enterprise which render similar adventures as fascinating as they are profitable; but it exclaimed incessantly against both England and France for alleged breaches of the laws of nations, and did not, or would not, see the violations committed by their own or by professing citizens sailing under the flag of the United States in vessels built and equipped in their own harbours, and especially in the port of Baltimore, at that time, and for some years afterwards celebrated for the construction of vessels of great beauty and symmetry, and of extraordinary speed.

FOOTNOTES:

[307] 'Reports, House of Representatives,' Feb. 23, 1791.

[308] This "most favoured footing clause" has been a fruitful source of reclamation between the two countries.

[309] The reader will find an account of the negotiations in Mr. Jay's correspondence, 'Life of John Jay,' New York, 1833.

[310] Mr. William Jay was the son and historian of his father, John Jay, the ambassador from the United States (*vide* vol. i. p. 324).

[311] The most ardent supporters of the war were the shipowners: the Whigs and the Radicals did all they could to neutralise the power of the executive.

[312] Privateering was finally abolished by the great Powers of Europe March, 30, 1856; but the Americans refused to agree to this unless all private property was made free from capture at sea. The right of blockade was also proposed to be given up. This the English government declined assenting to, asserting "that the system of commercial blockade was essential to its naval supremacy." During the recent civil war in America all the great Powers agreed in disallowing privateering, and it was also forbidden by the Treaty of Washington; hence, when Jefferson Davis announced his intention of issuing "letters of marque," Lincoln replied that the officers and men in any such ships would be shot as pirates.

[313] Of 404,135 pounds imported into the United States in 1792, no less than 373,350 came from the West Indian islands.

[314] The whole ground of dispute between France and the United States is recited in a *most voluminous* despatch, Jan. 16, 1797, from Mr. Pickering to Mr. Pinckney, United States Minister at Paris. It will be found in 'American State Papers,' vol. i. p. 559.

[315] Captain Martin's Protest *in extenso* will be found in the 'American State Papers,' vol. ii. pp. 64-65.

[316] *Vide* letter of Rufus King, ‘State Papers,’ vol. ii. pp. 29-64. The case seems undoubtedly well authenticated.

[317] The duties imposed were as follows:—On pig-iron, bar-iron, and pearl ashes, ten per cent. additional, when imported without certificate from the British Colonies in America; ten per cent. upon the customs duties on pitch, tar, resin, turpentine, masts, yards, bowsprits, and manufactured goods and merchandise (except wood-staves and tobacco); and a similar percentage upon the customs duties on all manufactured wood-staves when imported from Europe in British ships. On oil of fish, blubber, whale-fins, and spermaceti, ten per cent. on the customs duties payable when imported from countries not under the dominion of Great Britain. On tobacco, one shilling and sixpence per one hundred pounds weight; and on all other American goods, ten per cent. upon the customs duties payable for the same when imported in British-built vessels from the American States. The countervailing duties were to be calculated upon the rates of duties as they stood previously to the Act of 37 Geo. III., c. 15. By the statute above recited, a tonnage duty of two shillings sterling was imposed on all American vessels arriving in the ports of Great Britain.

[318] The Americans always employ the word “discriminating” for our “differential” duty. Our sugar duties were discriminating duties. The duties on the three categories of tea, before they were made uniform, were discriminating duties, distinguishing qualities of different values. The present duty on foreign and Cape wines is a *differential* duty.

[319] If the word “British” is substituted for “American,” we have the exact expression constantly used by the opponents in England during the numerous meetings held in 1849 against the repeal of the British Navigation Laws.

[320] Tybert’s ‘Statistical Annals of the United States.’

CHAPTER XI.

A special mission sent to England—Concessions made in the Colonial trade—Blockades in the Colonies, and of the French ports in the Channel—The dispute concerning the trade with the French Colonies—What is a direct trade—Reversal of the law in England—Effect in America—Instructions to Commissioners—Proceedings of the shipowners of New York—Duties of neutrals—Views of the New York shipowners—Conditions with respect to private armed vessels—Authorities on the subject—Negotiations for another treaty—Circuitous trade—Commercial stipulations—Violation of treaties—Complaints of the Americans against the French—Language of the Emperor—Bayonne Decree, April 17, 1808—American Non-intervention Act, March 1, 1809—Intrigues in Paris against England—Hostile feelings in United States against England—Diplomatic proceedings in Paris—Convention with Great Britain—Retaliatory Acts to be enforced conditionally—Hostile legislation against Great Britain—Bonds required—Treaty negotiations renewed—Dutch reciprocity—Bremen reciprocity.

Although there is reason to fear that the shipowners of America, having made the profits of a war in Europe a matter of deliberate calculation, paid less attention than they might otherwise have done to the remonstrances of the British government against their piratical acts, they had, on the other hand, some reason for complaining of the conduct of British cruisers. The Americans complained that their vessels were searched on the high seas, not merely for enemies' goods, but, as already noticed, for seamen to man the British navy, a practice which they alleged was derogatory to them, and tended to destroy all cordial friendship between the two countries. In reply, the English government held that no State had such jurisdiction over its merchant vessels upon the high seas as to prevent a belligerent from searching them for contraband of war, or for the persons and property of enemies; and if, in the exercise of that right, the belligerents should discover on board of a neutral vessel any of their subjects who had withdrawn from their lawful allegiance, they asked upon what grounds could the neutral refuse to give them up.

But the public mind was so inflamed in the United States by stories of thousands of Americans forced to serve in the British Navy; of American ships upon the high seas deprived of their hands by British cruisers, and compelled to put into the nearest port for want of seamen to pursue the voyage; and of other outrages still more extraordinary and unpardonable, that, looking only to the alleged abuses of the right, their popular leaders

went to the extreme of denying its existence altogether. A Bill upon this principle was consequently brought into Congress, but it was rejected by the Senate. ^[321]

A special mission
sent to England.

When, however, the American government determined to send a special mission to England for the adjustment of differences between the two nations, the British habit of impressing on the high seas was stated as the foremost of the American grievances, and their plenipotentiaries were instructed to urge the abandonment of a practice “so disgraceful and injurious to their country, as the point most essential to its peace, honour, and tranquillity.”

Concessions made
in the colonial
trade.

Blockades in the
colonies, and of the
French ports in the
Channel.

As the second ground of complaint, the alleged violation of neutral rights by seizing and condemning their merchantmen though engaged in lawful commerce, involves a variety of important considerations, which were incessantly the subjects of dispute, it may be desirable to state the substance of the views of the American government and of English jurisconsults on so important a question. England had conceded to the Americans, in the previous war, permission to trade with the colonies of the enemy for articles intended for their own domestic consumption; and in case no market was found in the United States for articles imported with that intention, she had permitted them to re-export those articles to any part of the world not invested by her blockading squadrons. In 1804 certain ports of Martinique and Guadaloupe, French colonies, were declared to be in a state of blockade, and the siege of Curaçoa was also converted into a blockade. In August of the same year a rigorous blockade was declared to be established at the entrances of the ports of Fécamp, St. Valery, Caux, Dieppe, Treport, the Somme, Etaples, Boulogne, Calais, Gravelines, Dunkirk, Nieuport, and Ostend. Bonaparte at that moment was threatening England with invasion, and England was putting forth all her strength to repel the attempt and to circumvent his designs. America looked calmly on, and profited, as we have seen, by the struggle, pushing forward her pretensions and alleged grievances with the view of annoying as much as she could both belligerents, and especially Great Britain. England, as is well known, had constantly refused the Americans permission to trade directly between the colonies of the enemy and the mother-country, but had

tolerated the indirect communication above mentioned, on the supposition that the goods so transmitted had been intended originally for American consumption, and would not have been re-exported, but for want of a market in the United States.

The dispute concerning the trade with the French colonies.

“It is now distinctly understood,” said his Majesty’s Advocate-General, in a report officially communicated by Lord Hawkesbury to the American government, and transmitted to all the Vice-Admiralty Courts aboard,^[322] “and so decided by our highest tribunals, that the produce of the colonies of the enemy may be imported by a neutral into his own country, and may be re-exported from thence, even to the mother-country of such colony; and in like manner the produce and manufactures of the mother-country may, in this circuitous mode, legally find their way to the colonies. The *direct* trades, however, between the mother-country and its colonies have not, I apprehend, been recognised as legal, either by his Majesty’s government, or by his tribunals. What is a *direct* trade, or what amounts to an intermediate importation into a neutral country, may sometimes be a question of some difficulty: a general definition of either, applicable to all cases, cannot well be laid down. The question must depend upon the particular circumstances of each case. Perhaps the mere touching at a neutral country to take fresh clearances may properly be considered as a fraudulent evasion, and as, in effect, the *direct* trade; but the High Court of Admiralty^[323] has expressly decided that landing the goods and paying the duties in the neutral country breaks the continuity of the voyage, and is such an importation as legalises the trade, although the goods be re-shipped in the same vessel, and on account of the same neutral proprietor, and be forwarded for sale to the mother-country or the colony.”

But his Lordship admitted that the decision of Sir William Scott by no means went so far; that distinguished judge remarking in the most guarded manner that it was not his business to determine “what was a *bonâ fide* importation.” However, from Lord Hawkesbury’s commentary upon the judgment, presuming that he indorsed the Judge-Advocate’s opinion, by sending it to America as an extract, it came to be universally understood in the United States that the mere landing of the goods, and paying the duties in the neutral country, were sufficient to break the continuity of the voyage and to legalise the trade; whereas the landing and the payment of the duties

were only deemed the best criteria or the best evidence obtainable of a *bonâ fide* importation. This distinction became afterwards of great importance, although the peace of Amiens put an end for a time to all controversies on the subject. But when hostilities recommenced between France and England, the American merchants, recollecting the footing on which the trade had been placed at the conclusion of the previous war, embarked in it without apprehension, as a commerce perfectly lawful. An immense amount of tonnage was employed in this trade, which was carried on without interruption till the summer of 1805, when a decision on new grounds was adopted by the English Admiralty Courts, which suddenly, and without the smallest warning, exposed the whole of the American merchant vessels to seizure and condemnation.

Reversal of the law
in England.

It was now decided that the proof of payment of duties in America was no evidence of a *bonâ fide* importation into that country,^[324] because payment of duties did not mean that the duties had been actually paid in money, but that they had been secured by bonds; and from the peculiar system of revenue laws established in the United States, the merchant who re-exported goods previously imported, gained a profit by his transactions with the custom-house, instead of suffering any loss or deduction from his gains. The importer, when the duties were ascertained, gave bonds for the amount; but if the next day he should enter the goods for exportation again, he became entitled to debentures from the custom-house, payable on the same day with the bonds, and made out for the same sums, with a deduction of only three and a half per cent., which was retained for the government. The bonds given originally by the merchant remained unissued in the custody of the revenue officers; while the debentures became an assignable and transferable security for money, capable of being recovered by a summary process; and if the importer failed, enjoyed a priority before all private demands. The result of the whole operation, therefore, was that the government lent to the private credit of the merchant the character of a public security, in lieu of his bonds deposited at the custom-house, and received three and a half per cent. on the amount of these bonds in return for the accommodation it afforded. Now, however admirable this system may be in reference to the trade of the United States, it utterly broke down when adduced as evidence of a *bonâ fide* importation, or as a proof that the duties had been paid or

secured in the United States according to law; as, in point of fact, the merchant gained by repeating the transaction.

Effect in America.

Instructions to
commissioners.

The English courts, therefore, acting in perfect consistency with the principle of their former decisions, when these facts were made known to them, refused any longer to admit the payment of duties in America as a proof of a *bonâ fide* operation. On the other hand, the merchants of America, without looking at the legal grounds of former decisions, had trusted to Lord Hawkesbury's communication made during the previous war, which led the American government to believe that "landing the goods and paying the duties legalised the trade," and had consequently embarked their capital and ships in a commerce they felt assured was a legal and permitted trade. When, therefore, they saw their vessels captured by the British cruisers, without any previous warning, and brought into the Vice-Admiralty Courts for adjudication, they naturally complained of the violent and inconsistent conduct of England, and loudly accused her of robbery and injustice. Indignation meetings, as they have since been termed, were convened in all the principal commercial cities of America; declarations and resolutions were voted; and petitions and remonstrances were addressed to the President and Legislature. Congress, as was natural, caught the flame with which it was surrounded, and after a multitude of injudicious and inflammatory resolutions, passed a non-importation Act^[325] against the manufactures of Great Britain, to take effect in the ensuing month of November. In the meantime the commissioners sent to negotiate with Great Britain were instructed to obtain from the government a clear and precise rule for regulating their trade with the colonies of the enemy, which should not be liable to be changed by Orders in Council or instructions to cruisers.

Proceedings of the
shipowners of New
York.

Duties of Neutrals.

Before examining the third point of the complaints urged by the Americans, it will conduce to the general comprehension of the whole scope of the quarrel if reference is made to the proceedings of the merchants and shipowners at New York shortly before this period. It requires very little penetration to perceive that the arming of vessels in the ports of the United States, under pretence of being bound to the East Indies, was a mere cloak for privateering. There were

then plenty of freebooters under the American flag, who cared but little which side they espoused, so as they could succeed in a very profitable maritime adventure. In fact their depredations on the seas rose to such a height that Congress was at last compelled to take cognisance of their proceedings, and a Bill was brought forward to restrain merchant vessels of the United States from sailing in an armed condition. The shipowners of New York upon that occasion put upon record their sentiments, and some of the principles they expounded are well deserving reflection and attention. They^[326] acknowledged with satisfaction that since the commencement of the existing war the commerce of the United States had not, to their knowledge, suffered any injuries which could justly be attributed to the governments of Europe. They disclaimed explicitly any intention to derive unfair advantages from the misfortunes of the belligerent nations; and they solemnly engaged to support with all their influence any regulations enjoined by treaties or by the established usages of civilised States. They only desired to foster their native genius for enterprise. The duties of neutral merchants, as understood by them, consisted in the observance of the following rules:—

1st. Not to protect under false appearances the ships or property of the subjects of belligerent nations.

2nd. Not to resist reasonable visitation and search by the ships of war of belligerent nations.

3rd. Not to supply either party with articles contraband of war; and,

4th. Not to enter ports in a state of blockade.

Views of the New
York shipowners.

They did not consider it a duty or usage of neutral nations to enforce by legal sanction the observance of these rules, but merely to apprise their citizens of the nature of their obligations, arising under treaties or under the general law of nations, by which they would be subjected to such penalties as custom had established. These penalties, the New York merchants asserted, could only be rightfully inflicted by regular tribunals, established by the belligerent nations in such fashion that they should not exceed the right of condemning the property attempted to be illegally concealed or transported: they would, accordingly, cheerfully submit to a law for restraining the armament of private merchantmen, except in conformity with the following principles:

Conditions with
respect to private
armed vessels.

1st. That the vessels should wholly belong to citizens of the United States.

2nd. That the cargoes laden on board such vessels shall wholly belong to citizens of the United States, and except necessary munitions and merchandise to and from ports eastward of the Cape of Good Hope, and westward of Cape Horn, shall in no degree consist of articles declared contraband of war, either by the general law of nations, or by treaties with the United States.

3rd. That the owners of armed vessels be required to give bonds for a reasonable amount that they shall not sell or charter such vessels in the dominions of any foreign state or nation, in America or elsewhere, to the subjects of the belligerent parties.

4th. That the masters and chief officers of all armed vessels be required to give bonds that they will not enter a blockaded port, and that they will not resist lawful visitation and search by a national ship of any European belligerent power; while, if deemed expedient, the masters and chief officers may be further rendered liable to such personal penalties as the wisdom of Congress may prescribe.

It will be seen that the New York merchants, who might then be presumed to represent the most influential body of the shipowners and merchants of the Union, never attempted to impeach any of the principles which had been held by all civilised nations, as establishing the law of nations, especially as regards the right of search. Indeed the highest authorities in the United States have laid down, “that the right of visitation and search of neutral vessels at sea is a belligerent right essential to the exercise of the right of capturing enemy’s property, contraband of war, and vessels committing a breach of blockade.”^[327]

Text writers generally concur in recognising the existence of this right. Sir W. Scott remarks, “All writers upon the law of nations *unanimously* acknowledge it, without the exception of even *Hubner* himself, the great champion of neutral privileges.” In fact the many European treaties which have reference to this right deal with it as pre-existing, and merely regulate the exercise of it.

Authorities on the subject.

These authoritative expositions of the law, as drawn from American as well as European text writers, notwithstanding the long period which has elapsed since the eventful struggle at the commencement of the present century, are the more necessary to be here quoted as there are unfortunately still recurrences of these disputes respecting the exercise of the right of search, and it must be conducive to a good understanding between England and all other nations, that an accurate interpretation of the law of nations should be generally established and observed.

Negotiations for another treaty.

The scope of this work will not admit of entering into all the details of the conferences in respect of the treaty which was shortly afterwards entered into between Great Britain and the United States, and which had become the more necessary after the unfortunate encounter^[328] between the *Chesapeake* and H.M.S. *Leopard* in Hampton Roads, where England was held by various authorities to be in the wrong. It is now generally admitted that the commissioners on both sides were animated by a sincere desire to establish a firm and lasting friendship between the two countries, on terms mutually advantageous, though it is deeply to be lamented that their efforts at negotiation were at times much thwarted by popular clamour on both sides the water.^[329] Considering the state of public opinion in America, and the instructions which they appear to have received from their government, the American commissioners, in particular, evinced in the strongest manner their disposition to conciliation, when, after many fruitless conferences held in the hope of devising some adequate substitute for the practice of impressing on the high seas, they consented, contrary to their instructions, to proceed with the other articles of the treaty, pledging the government of Great Britain “to issue instructions for the observance of the greatest caution in the impressment of seamen, and of the greatest care to preserve citizens of the United States from any molestation or injury, and to afford immediate redress upon any representation of injury sustained by them;” engaging besides at any future period “to entertain the discussion of any plan that should be devised to secure the interests of both States, without any injury to rights to which they are respectively attached.”

Circuitous route.

In the other questions between the two countries, the negotiators were more fortunate in bringing their labours

to a successful issue. On the subject of the circuitous trade permitted to the United States, between the colonies of the enemy and other parts of the world, an article was framed which satisfied the American commissioners. A clear rule for the regulation of that commerce was substituted in place of the uncertain and variable system under which it had been previously conducted. The principle was taken from Lord Hawkesbury's communication, to which reference has just been made, which defined the difference between a continuous and an interrupted voyage; but, besides requiring that the goods should be landed and the duties paid in the neutral country, this article expressly stipulated that, on re-exportation, there should remain, after the drawback, a duty to be paid of one per cent. *ad valorem* on all articles of the growth, produce, and manufacture of Europe; and on all articles of colonial produce a duty of not less than two per cent. The maritime jurisdiction of the United States was guaranteed by the 12th article, against the alleged encroachments and violations of his Majesty's cruisers; and on account of the peculiar circumstances of the American coast, an extension of maritime jurisdiction, to the distance of five miles from shore in American waters, was mutually conceded by both parties, with certain limitations, having reference to other powers, expressed in the treaty.^[330]

Commercial stipulations.

The commercial stipulations contained in this treaty seem to have been framed on the fairest and most liberal principles of reciprocal advantages to both countries; but before the treaty reached the United States for the requisite ratification, and indeed before it was signed in London, the celebrated Berlin Decree^[331] had been issued, and the position of England was thereby very greatly altered in respect to neutrals.

Violation of treaties.

But treaties, in those days of national convulsions, were of little avail; they were too frequently made only to be broken; and from the experience of the past, and the wholesale destruction of the private property alike of neutrals and belligerents during periods of hostility, we may learn that it is unsafe to rely, in similar cases, on the validity and security of any paper pledges without the general guarantee of nations. Although France, as well as England, had entered into treaties of amity with the United States, which were in force between 1803 and 1809 inclusive, no less than thirteen hundred and three

American merchant vessels were captured between those dates by the cruisers of both nations.

Although nominally captured under the operations of the French Decrees and English Orders in Council, many of these captures were made in direct violation of existing treaties, and not a few in obedience simply to the will of the Emperor on the one hand, and that of the English Council on the other. Of the five hundred and thirteen American merchantmen taken by the French, and the forty-seven by the Neapolitans, antecedent to the Berlin and Milan Decrees, one hundred and seventy-four were condemned and burnt, four were compromised, and twenty-one acquitted; while two hundred and nine captured during the operation of these decrees were condemned and burnt, thirty-three released or compromised, and eighty-eight altogether acquitted. Of the vessels captured by the Neapolitans, forty-one were confiscated or condemned, two restored, and four not accounted for. In the category of the vessels burnt at sea no fewer than thirty-seven were destroyed in order to keep secret the movements of the French squadron; and a large number because they had touched at ports in England on their way to continental ports, some of them having done so only through stress of weather. To recompense the losses thus sustained, the Americans claimed from the French government eighty millions of francs, a demand which proved so serious a cause of dispute as almost to embroil the two countries in war.

But the captures by the English of American merchant vessels in the same period amounted to seven hundred and forty-five, and of those taken before the issue of the Orders in Council two hundred and forty-three were condemned, one hundred and fifty acquitted, and eighty-eight released; while out of the number subsequently taken two hundred were condemned, one hundred and ninety-one acquitted, and ninety-three restored to their owners.

Complaints of the
Americans against
the French.

America, had she had the power, would undoubtedly have resented by force of arms many of these captures; but between two such belligerents she was helpless, and had to submit, though not altogether in silence, to proceedings against her shipowners, too frequently as unjust as they were unjustifiable. While the rigorous enforcement of the right of search on the part of the English, and the decrees of the French excluding from their ports

every neutral vessel which had English goods on board, or had touched at any of the ports of that country, remained in force, it was impossible for the shipowners of the United States of America to carry on an oversea trade with any prospect of success. French cruisers, scattered over the seas, with orders to sink or burn any ship which might reveal their route to the English (who, with all their naval force, could not control the immensity of the seas), captured American vessels for contraventions committed a few days after, and sometimes before, the publication of the decrees. As the news of each seizure reached the American minister in Paris, he complained with increasing energy. He invoked the principles alike of international and civil law, appealing to the convention by which the rights of neutrals were guaranteed, forbidding the application of laws until they could have become known, and, in the name of his outraged government, declared that “such proceedings, and the continuation of such acts, could not fail to interrupt the good understanding, which had so long subsisted between the two Powers, and had been mutually advantageous, which it would be unwise to destroy for the sake of pillaging a few merchant vessels.”^[332]

Language of the
Emperor.

But Napoleon understood perfectly well his own policy. Casting aside all those rules which restrain constitutional governments, his aim was to excite the Americans to open war against England; and whilst thus trampling upon the rights of America, the French minister was instructed *to proclaim those of neutrals* in the name of the Emperor! In a letter from M. Champigny to Mr. Armstrong, 12th Feb., 1808, it is stated that “A merchant vessel is a floating colony; any act of violence committed against such a vessel is an attack on the independence of its government. The seas belong to no nation; they are the common property, the domain of all.” In spite, however, of the enunciation of these just and liberal principles, and while admitting that the Berlin and Milan Decrees were flagrant violations of them, Napoleon incessantly threw the entire blame upon England, who, he alleged, had provoked these orders, and by setting up the indisputable dogma that the independence of the flag was a right common to all powers, he attempted to coerce the Americans into resisting by force the retaliatory measures to which England, in defence of her own commerce, was compelled to resort. Indeed M. de Champigny^[333] explicitly says, “the Emperor has no doubt that the United States, considering the position in which *England has placed the*

continent, particularly since its decree of the 11th of November, *will declare war against her*:" adding, "War does exist, *de facto*, between England and the United States, and the Emperor considers it as having been declared on the day on which England issued its orders. With this view, the Emperor, willing to consider the United States as engaged in the same cause with all the Powers who have to defend themselves against England, has adopted no definite measure with regard to the American vessels which may have been brought into the French ports. He has ordered them to be retained under sequestration until a determination could be taken with regard to them, which determination would depend upon the disposition manifested by the American government."

Bayonne Decree,
April 17, 1808.

Such language could only be interpreted in one way: "Make war against the mistress of the seas without delay, and then I will consider whether I will release the American vessels which in violation of the laws of nations I have seized." Language such as this, supported by the tempting promise to restore the American ships he had captured, could only be the result of a deliberately planned policy on the part of Napoleon. By his Bayonne Decree, 17th April, 1808, he had given orders to seize all American vessels then in the ports of France, and such as should come in thereafter; and in an explanatory note of the 25th of April, 1808, addressed to the American minister at Paris, had stated that the decree of the 17th instant directed the seizure of vessels coming into the ports of France after that date, because no vessel of the United States could then navigate the seas without infringing their own laws, thus furnishing a presumption that they did so on British account or in British connection.

Finding that the French seizures were incessant, the American minister at Paris in the beginning of 1808 declared that the conduct of France towards the United States, instead of advancing the views of the Emperor, had an entirely contrary effect, and was calculated to defeat them. Whilst admitting^[334] that the United States were ready to go to war with Great Britain for the purpose of avenging certain alleged outrages committed on American rights as a neutral nation, he reminded M. de Champigny that the French had also most grievously invaded those rights, showing at the same time that the reparation of those injuries, by relieving the American property from sequestration, and by renouncing for the future the right of

seizure in such cases, would be the most efficient means of forming new and more intimate connections between the United States and France.

American Non-intervention Act, March 1, 1809.

Intrigues in Paris against England.

As the American shipowners had set at defiance the embargo imposed on the ports of the United States, their government on the 1st of March, 1809, replaced it by the Act of Non-intervention, whereby all intercourse between America, France, and England was interdicted under severe penalties, and the ports of America closed against the armed vessels of both belligerents. In communicating this act to the French government, General Armstrong took care to call special attention to its conditional character, and to disavow all hostile views and intentions, declaring it to be a measure of precaution in order to preserve the vessels of the United States from the numerous dangers to which they were exposed by the continuance of their intercourse with France. He subsequently added that “the Non-intercourse Act was a fresh appeal *to the wisdom and justice* of the Emperor, as a simple modification of the imperial decrees relating to the right of neutrals would instantly restore the commerce between the United States and France. The United States,” he continued, “did not in fact require a repeal of these decrees, having the greatest deference for the dignity of the chief of a great empire; and declared they would be satisfied if an interpretation were given to them which would thenceforward free American vessels from harassments and capture; finally, entering into the views which the Emperor had so often manifested”—that is to say, a league to humble the power and destroy the commercial navy of Great Britain. Indeed General Armstrong declared “that he was authorized, in case France should give the required explanation, and England should refuse a sufficient explanation, to state that the President of the United States *would recommend an instant declaration of war against the latter Power.*” These insidious propositions were not accepted by France. The Emperor persisted in requiring a repeal of the orders of the British Council before he would revoke the imperial decree, and left it with the United States to obtain such repeal by their own efforts. This attempt at reconciliation with France was then abandoned by the Americans, and the Non-intercourse Act remained in full vigour.

Hostile feelings in United States

But while the feelings of the people of the United States were becoming daily more hostile to Great Britain, the

against England.

Diplomatic
proceedings in
Paris.

American government, under some strange delusion, insisted upon the sincerity of France in the early repeal of her decrees. Quiescent under the outrages committed by the French upon their merchantmen, they were furious against the English. Every little incident was seized upon to inflame the public mind against Great Britain. Indeed the President sent a message to Congress stating “that the continued evidence afforded of the hostile policy of the British government against our national rights strengthens the considerations recommending and urging the preparation of adequate means for maintaining them.” The resolutions for this object were carried by such large majorities in the House of Representatives, that war became unavoidable. Both parties boasted of their moderation and forbearance; both alleged the reason and justice of their cause; nevertheless both were determined by motives of state policy operating respectively upon the interests of each country. In the beginning of the year, in order to leave no pretext for England, the American minister at Paris pressed the French government to issue an official or authentic Act; and at length, on the 10th of May, 1812, he received, as we have seen, a copy of *a decree dated 28th April, 1811*, by which the Berlin and Milan Decrees were repealed, so that the knowledge of this decree was withheld from the United States for more than a year,^[335] and was only brought to light and publicly avowed when Napoleon had so far wrought upon the Americans as to commit them to the unfortunate war with Great Britain.

Convention with
Great Britain.

Peace was happily concluded on the 24th of Dec., 1814, and in 1815 a convention was signed in London between the United States and Great Britain to regulate the commerce and navigation between their respective countries.^[336] It was framed upon the model of the English reciprocity treaties, which were the first steps taken by her towards a future greater freedom of trade. By the terms of the 2nd article, the equalisation of the duties on tonnage and imports was extended to the vessels of both nations, as far as related to their intercourse with the British dominions in Europe and the United States. By that convention the English confirmed to the United States vessels a free direct communication with their dominions in the East Indies, with liberty during peace to trade in any articles not entirely prohibited.

Pursuant to this convention, the vessels of Great Britain, and the merchandise imported therein, when they entered the ports of the United States were exempted from the payment of extra duties of tonnage and import; provided the vessels arrived from, and the merchandise consisted of the growth, produce, and manufacture of, the British dominions in Europe. The same reciprocity was conferred upon American vessels proceeding to Great Britain laden with merchandise of similar character. But at the end of Article 2 there was a special proviso, that “the intercourse between the United States and his Britannic Majesty’s possessions in the West Indies, and on the continent of North America, shall not be affected by any of the provisions of this Article, but each party shall remain in the complete possession of its rights, with respect to such an intercourse.”^[337]

Retaliatory Acts, to
be enforced
conditionally.

In retaliation, Congress on the 1st of March, 1817, passed an Act providing that “on and after the 30th of June of that year a duty of two dollars per ton” should be paid “on all foreign vessels which should enter in the United States, from any foreign place to and with which the vessels of the United States are not ordinarily permitted to enter and trade.” And it was further enacted, in almost the exact words of the English Navigation Laws, that after the 30th of September, 1817, no merchandise should be imported into the United States from any foreign place except in vessels of the United States, or in “such foreign vessels as wholly belong to the citizens or subjects of that country of which the merchandise is the growth, production, or manufacture, or from which it can only be, or most usually is, first shipped for transportation.” Adding that, “the regulations aforesaid are only applicable to the vessels of such foreign nations as have adopted or may adopt similar provisions;” and providing that “merchandise imported into the United States contrary to the Act aforesaid,^[338] and the vessel in which the same is imported, are forfeited to the United States.” It was further determined that “the coasting trade is only allowed in vessels of the United States”; and that “merchandise imported from one port into another port in the United States, in a vessel belonging wholly or in part to a subject of any foreign power, unless such merchandise shall have been imported in such vessel from a foreign port, and that the same shall not have been unladen, is forfeited to the United States.”

Hostile legislation
against Great
Britain.

In 1818 Congress made their navigation laws still more stringent by enacting,^[339] “That from and after the 30th of September next, the ports of the United States shall be and remain closed against every vessel owned, wholly or in part, by a subject or subjects of his Britannic Majesty, coming or arriving from any port or place in a colony or territory of his Britannic Majesty, that is or shall be, by the ordinary laws of navigation and trade, closed against vessels owned by citizens of the United States; and such vessel, that in the course of the voyage shall have touched at, or cleared out from, any port or place in a colony or territory of Great Britain, which shall or may be, by the ordinary laws of navigation and trade aforesaid, open to vessels owned by citizens of the United States, shall nevertheless be deemed to have come from the port or place in the colony or territory of Great Britain, closed as aforesaid against vessels owned by citizens of the United States, from which such vessel cleared out and sailed before touching at and clearing out from an intermediate and open port or place as aforesaid; and every such vessel, so excluded from the ports of the United States, that shall enter or attempt to enter the same in violation of this Act, shall, with her tackle, apparel, and furniture, together with the cargo on board such vessel, be forfeited to the United States.”

Bonds required.

“After the date above mentioned, no vessel owned wholly or in part by subjects of his Britannic Majesty, though the same may have been duly entered in the United States, and the duties on goods, wares, and merchandise imported duly paid, can be cleared out laden with articles the growth, produce, or manufacture of the United States, before the owner or consignee shall have given bond and sureties, in double the value of the articles aforesaid, that they shall not be landed in any port or place in a colony or territory of his Britannic Majesty, which by the ordinary laws of navigation and trade is closed against vessels owned by citizens of the United States.”

Treaty negotiations
renewed.

Such was the mode adopted by the Americans to coerce Great Britain into the relinquishment of her exclusive colonial trade. But at the very same time a negotiation was opened in London to carry out the views of the government of the United States, to settle all the differences relating to impressments, the fisheries and boundaries, and to secure a fresh treaty and convention on

terms of reciprocity. Prior to entering upon the negotiations, it was agreed that the subsisting convention should be continued for a term of not less than eight years.

Dutch reciprocity.

In 1818 a reciprocity treaty was concluded between the United States and the King of the Netherlands on the same basis as the convention subsisting with Great Britain. The Dutch colonial trade was not, however, included within the conditions of the treaty.

Bremen reciprocity.

The President of the United States, in his proclamation dated the 24th of July, 1818, announced that he had received satisfactory proof that the burgomasters and senators of the free Hanseatic city of Bremen had abolished, after the 12th of May, 1815, all discriminating and countervailing duties, so far as they operated to the disadvantage of the United States; and accordingly he declared that the American Tonnage Duties Acts were repealed in so far as they affected Bremen. A very considerable trade in tobacco and other American productions resulted from this first step towards freedom of trade with Germany. Though England for a time rejected the principles of reciprocity in the form offered by the government of the United States to the nations of Europe and accepted by the Netherlands, it was found impossible to conduct to advantage the rapidly increasing commerce of the world in the face of these constantly recurring retaliatory measures. Consequently in 1820 she found it not merely necessary, but to her interest, to adopt a more liberal maritime policy, and to relax in some measure her stringent navigation laws.

FOOTNOTES:

[321] *Vide* 'Annual Register,' 1806, p. 246.

[322] *Vide* 'Annual Register,' 1806, and 'American State Papers,' Foreign Relations, 1801, vol. ii. p. 491.

[323] This decision is called the "*Polly*" case, for which see 'Robinson's Reports,' vol. ii. p. 368, for the judgment of Sir William Scott (Lord Howell).

[324] This point was first decided in the case of the *Essex*, May 1805; and after an elaborate argument, the same decision was pronounced in the case of the *William*, March 1806.

[325] Act of April 18, 1806.

[326] This very interesting document (December 21, 1804) will be found in United States 'State Papers,' Commerce and Navigation, vol. i. p. 582.

[327] Wheaton's 'Elements of International Law,' Rights of war as to Neutrals, vol. ii. ch. iii., 1836.

[328] Holmes' 'Annals of America,' vol. ii. p. 434.

[329] It may be reasonably doubted whether Captain Humphreys, of the *Leopard*, was guilty of anything beyond going slightly beyond his instructions in taking from the *Chesapeake* three men who had deserted from the *Melampus*, but who were not actually named in the order sent to him by the Admiral of the Station, the Hon. G. C. Berkeley. That his order from Admiral Berkeley completely justified his firing into the *Chesapeake* cannot be questioned; but whether it was wise for Admiral Berkeley to issue such an order is another matter. The surrender of the *Chesapeake* took place in March 1807; and on the news reaching London, together with a Proclamation from Jefferson, the English government at once disavowed the act of Admiral Berkeley, and recalled him. It is further clear that if the captain of the *Chesapeake* had answered the hail of Captain Humphreys honestly and truly, his ship would not have been fired into.

[330] This document will be found in 'Parl. Papers,' 1808, vol. xiv. It will be found also in American 'State Papers,' together with a most voluminous correspondence.

[331] November 21, 1806.

[332] Mr. Armstrong's letter to M. Champigny, at Paris, 'American Foreign Relations,' vol. iii. There is a vast number of letters.

[333] Letter, August 22, 1809, to Mr. Armstrong.

[334] General Armstrong's letter, February 4, 1808.

[335] 'Diplomacy of the United States,' p. 133.

[336] The convention was signed on the 3rd of July, 1815 (*vide* 'Hertslet's Treaties,' vol. ii. p. 386); but so far as regards the great questions on which differences had arisen it settled nothing. It professed, indeed, to adjust the question of the north-east boundary; but this point was not arranged until many years afterwards, the two countries having been previously on the point of rupture. The north-west boundary, afterwards known as the Oregon dispute, was left *in statu quo*. Neither party cared to agitate the impressment question, although the Americans had at one period made this the chief ground for going to war. Both parties made a barren declaration, that they were desirous of continuing their efforts to promote the entire abolition of the slave-trade. The vapourings about neutral rights, with which the world had been nauseated for a number of years, were buried in silence, to be resuscitated whenever a national cry of agitation might be necessary for electioneering purposes. The question about blockade was set aside just in the like manner. The American claims relating to the impressment of seamen fell to the ground; and, with the exception of the Paris Declaration of 1856, the rights of neutrals, to a large extent, remain undecided to this day. The boundary question was deferred, not decided upon; and in 1834, as the award of the empire, the King of the Netherlands, did not satisfy either party, both refused to abide by it, and it was only settled by the award of the Emperor of Germany in 1872.

[337] The United States, in 1816, enacted "that so much of an Act as imposes a higher duty of tonnage or of import on vessels, and articles imported in vessels of the United States, contrary to the provisions of the countries between the United States and his Britannic Majesty, the ratifications

whereof were mutually exchanged the 22nd of December, 1815, be, from and after the date of the ratification of the said convention, and during the continuance thereof, deemed and taken to be of force and effect.”

[338] Act, March 1, 1817.

[339] Act, April 1818.

CHAPTER XII.

Earliest formation of wet-docks and bonded warehouses—System of levying duties—Opposition to any change—Excise Bill proposed, 1733—but not passed till 1803—Necessity of docks for London—Depredations from ships in London—The extent of the plunder—Instances of robberies—Scuffle hunters—“Game” ships—Ratcatchers—River-pirates—Their audacity—Light horsemen—Their organisation—“Drum hogsheads”—Long-shore men—Harbour accommodation—Not adequate for the merchant shipping—East and West India ships—Docks at length planned—West India Docks—Regulations—East India Docks—Mode of conducting business at the Docks—London Docks—St. Katharine’s Docks—Victoria and Millwall Docks—Charges levied by the Dock Companies—Docks in provincial ports, and bonded warehouses—Liverpool and Birkenhead Docks—Port of Liverpool, its commerce, and its revenue from the Docks—Extent of accommodation—Extension of Docks to the north—Hydraulic lifts and repairing basins—Cost of new works—Bye-laws of the Mersey Board—The pilots of the Mersey—Duties of the superintendent—Conditions of admission to the service—Pilot-boats and rates of pilotage.

The earliest formation of wet-docks and bonded warehouses.

Although the wars in which Great Britain had been so long engaged tended very materially to retard her maritime and commercial progress, they gave her, on the other hand, a position among the nations which at that period of her history could perhaps only have been achieved by force of arms; nor, though a sad stumbling-block in her path, did they prevent the development of those inventions which have done so much in our own time to make her the first of maritime nations. The steamship, to which we shall have occasion frequently, and at considerable length, to refer, had its birth, for all practical purposes, in the midst of war; while the dock, bonding, and warehousing systems, without which England never could have become the chief market of the world, were then, for the first time, successfully introduced. The power of steam, it is true, had been known, and the advantages which docks and bonding warehouses were likely to confer had been discussed long before the commencement of the present century, but it was only then that they were brought into useful and remunerative operation.

So early as 1660 the Commercial wet-dock on the Surrey side of the River Thames was opened to shipping, and, in 1662, the magistrates of Glasgow purchased the land on which Port Glasgow is now erected, and constructed there a harbour and a graving dock; but these were the only works of the

kind in any way worthy of note until an Act, passed in 1709,^[340] authorized the construction of a wet-dock at Liverpool. Close upon another century, however, elapsed ere the Act was passed which led to the construction and opening of the West India Docks of London. Nor had anything been done before that period to carry into effect the recommendations of Sir Robert Walpole, who, so far back as 1733, had strongly urged the desirability of some sort of warehousing system, whereby the duties levied upon imported goods might be collected so as to meet the convenience of their owners or consignees, and to protect the revenue.

System of levying duties.

Previously to 1802, if the duties were not paid on the arrival of the goods at the port of discharge, their owners or consignees were required to enter into bonds with the Customs to provide security for the amount due to the Crown. “It was often,” remarks McCulloch,^[341] “very difficult to find sureties, and the merchant, in order to raise funds to pay the duty, was frequently reduced to the ruinous necessity of selling his goods immediately on their arrival, when perhaps the market was already glutted. Neither was this the only inconvenience that grew out of this system, for the duties having to be paid all at once, and not by degrees as the goods were sold for consumption, their price was raised by the amount of the profit on the capital advanced in payment of the duties; competition, too, was diminished in consequence of the greater command of funds required to carry on trade under such disadvantages, and a few rich individuals were enabled to monopolize the importation of those commodities on which heavy duties were payable. The system had besides an obvious tendency to discourage the carrying trade. It prevented this country from becoming the *entrepôt* for foreign products by hindering the importation of such as were not immediately wanted for home consumption, and thus tended to lessen the resort of foreigners to our markets, inasmuch as it rendered it difficult, or rather impossible, for them to complete an assorted cargo. And in addition to all these circumstances, the difficulty of granting a really equivalent drawback to the exporters of such commodities as had paid duty opened a door for the commission of every species of fraud.”

Opposition to any change.

Nevertheless, when Sir Robert Walpole, in 1733, first introduced his famous Excise Scheme, requiring all importations of tobacco and wine to be deposited in

Excise Bill
proposed, 1733,

public warehouses until the duty had been paid, there were the loudest clamours against a measure meant, not merely for the security of the revenue, but for the benefit and convenience of the merchants, who, however, scouted his proposal. Indeed, those of them who had availed themselves of the facilities afforded by the existing system for defrauding the revenue resisted the measure by every means in their power, exasperating the people to a state of the wildest fury against it.

but not passed until
1803.

Necessity of docks
for London.

No valid or ostensible reasons were then assigned for their determined opposition, nor were any arguments worthy of record brought forward against the proposed Bill. “We shall be ruined,” alike exclaimed the merchant and the shipowner; while the parliamentary opponents of the government, taking up the cry, ultimately obliged Sir Robert, who “narrowly escaped falling a sacrifice to the ungovernable rage of the mob which beset the avenues to the House of Commons,”^[342] to abandon the Bill. So enduring were the impressions made by the violent opposition to Walpole’s scheme, and so strong the force of prejudice, that this most valuable measure lay dormant for more than sixty years, and even then might not have become law had the necessity of establishing docks with bonding warehouses attached to them not been brought prominently under public notice by Mr. Patrick Colquhoun, in his remarkable treatise on the commerce and police of the River Thames. Increased accommodation for the number of ships frequenting the river had now become equally necessary, the trade of London with distant nations requiring in 1796 no less than three thousand five hundred and three small craft of different sorts to discharge or load the merchant vessels which lay in the stream.

Depredations from
ships in London.

London, therefore, from the extent of its trade, and the disproportionate space allotted on the surface of the water for the accommodation of vessels frequenting the port, and on land for the collection and stowage of their cargoes, at that time afforded numerous and greatly increased facilities for the secret disposal of merchandise and property of every kind. A wide and lucrative field was thus opened for the depredations of a host of plunderers of every sort, trained in their nefarious arts with all the regularity and system of a disciplined body. Their numbers and stratagems of course increased with the augmentation of

the commerce of the river; and especially with the practice of sending cargoes in lighters to wharves at the distance of several miles from the discharging vessels, or from the wharves on board the loading vessels, the necessary result of the overcrowded state of the harbour. The great numbers of lumpers, watermen, lightermen, coopers, and labourers employed upon the wharves, as well as the seamen and petty officers of too many vessels, in league with the lower classes of revenue officers, now formed a large and dangerous band of conspirators against the property of the merchants and the revenues of the Crown. Mates of merchantmen then claimed by custom as their perquisites the sweepings of the hold, consisting of such parts of the cargo as might from any cause have dropped out of their packages; and numerous charges were made against the inferior members of this class, whose duty it was to take care of the cargo under their charge, that they had been tempted to injure the packages with a view to increase their perquisites. Mr. Colquhoun's treatise furnishes an account of the vessels employed in the trade of London, and of the value of their cargoes, with an estimate of the number of packages plundered in each branch of trade during the year ending the 5th of January, 1798. ^[343]

The extent of the
plunder.

From this statement it would appear that in that year there were eighteen hundred and forty-three foreign, and eleven thousand six hundred and one British vessels, embracing those employed in the coal and coasting trades, of a tonnage, including their repeated voyages, of one million seven hundred and seventy-six thousand three hundred and twenty-six tons, entering and clearing to and from the port of London. The value of the imports and exports he computed at 60,591,000*l.* (a very large estimate, but no doubt he includes the repeated transfers by ship or barge), in, perhaps, three million packages. He estimates the amount of plunder of the West India packages alone at no less a sum than of 232,000*l.* The plunder of the East India trade he sets down at 25,000*l.*, and of the cargoes of the vessels in that of the United States of America at 30,000*l.* The entire aggregate amount of plunder, including 20,000*l.* in the coal trade, and the like sum in the coasting trade, he estimates at 461,500*l.* from merchant vessels, while the loss in tackle, apparel, and stores of thirteen thousand four hundred and forty-four vessels he computes at 45,000*l.*, making the total depredations during one year in the River Thames, prior to the construction of docks and the establishment of the warehousing system, as not less than 506,500*l.* To

this amount must be added a large sum for the depredations on stores belonging to ships of war, which were by no means exempt from plunder.

As regards the depredations at that time committed upon merchant shipping and goods, Mr. Colquhoun mentions one remarkable case, of the enormous quantity of fifty tons of sugar,^[344] three whole puncheons of rum, besides three hundred gallons pumped out of different casks, and a large quantity of coffee, which were proved to have been plundered from one vessel.

Instances of
robberies.

In another case, in August 1794, a small vessel arrived in the river from Antigua, with seventy hogsheads of sugar, five of which were actually stolen by three tidesmen in collusion with the mate and a well-known receiver. In this case the master of the vessel, happening to be a stranger, had expressed so much apprehension with regard to the dishonesty of the lumpers, that the revenue officers proposed, with a view of allaying his fears, to discharge the cargo. The result being that, while he remained on shore in fancied security, he lost one-fourteenth part of the whole!

Scuffle-hunters.

“Game” ships.

One gigantic system of plunder seems to have prevailed throughout. There were “scuffle-hunters,” who offered their services in long aprons, well adapted to wrap up and conceal whatever they could pilfer, and who were “longshore” thieves of the worst class. The lightermen committed the most nefarious robberies. The bumboatmen who were licensed to hawk goods among the shipping, and the “Peter-boatmen” employed in fishing, swelled the number of delinquents. There was also a numerous class denominated “mudlarks,” who stole whatever, above or below the water, they could lay hands upon. Whenever a “game-ship,” that is, a ship whose officers were corrupted for the purposes of plunder, was discharging her cargo close to the shore, these mudlarks were accustomed to prowl about, grubbing in the mud under her bow and quarters, for the purpose of receiving from the lumpers and others employed in the delivery, bags and handkerchiefs of sugar, coffee, and other articles, which they conveyed to the houses and shops of the receivers, according to the plan which had been preconcerted by the confederates in this general conspiracy. Rum, pillaged in large quantities, was obtained by means of a regular system applicable to the nature of the article. Skins and prepared bladders with wooden nozzles were secretly conveyed on board, a bribe being given,

as in the case of sugar and coffee, to the mate and revenue officers for a licence to draw off a certain quantity from each cask, for which a pump called a *jigger* had been previously provided, and also tin tubes, adapted to render the booty accessible in every situation. By these and similar devices the skins and bladders were filled, and handed over to the mudlarks and other hangers-on who infested the neighbourhood of the ship.

Rat-catchers.

The ingenuity of men devoid of the principles of moral rectitude is ever fertile in devising the means of subsistence by criminal expedients. Among the various classes of delinquents who contributed to the removal of plunder from ships and vessels in the river were a set of rascals who pretended to follow the occupation of rat-catchers. These itinerants, who professed to know how to destroy the vermin, being permitted to go on board in the night to set their traps, and afterwards to visit them at such hours as they chose to prescribe for themselves, became dangerous auxiliaries to lumpers and others who had previously concealed plunder in the hold, until a convenient opportunity should occur to get it removed without exciting suspicion. In some instances these ingenious thieves not only committed the depredations described, but, for the purpose of obtaining access to different ships, and increasing the demand for their professional labours, had no scruple in conveying the rats alive from one vessel to another, as a means of receiving payment for catching the same animals three or four times over, and of thus extending the field for plunder.

River-pirates.

But the “river-pirates” were the most desperate and depraved of the fraternity of nautical vagabonds, as their exploits were invariably covered by receivers who kept old iron and junk shops in places adjacent to the Thames, and who were ever ready to receive and conceal the nocturnal plunder of these hostile marauders, many of whom were armed, and all provided with boats, perhaps stolen, for the particular object in view.

The practice of the “river-pirates” seems to have been to select the darkest nights for committing their depredations, having previously reconnoitred the river, during the day, for the purpose of marking the particular vessels and craft most likely to afford a rich booty, either from the nature of the merchandise, stores, or other materials which were accessible, or from the circumstances of their being without the protection of a nightly watch.

Their audacity.

In the port of London, where so many vessels were constantly lading and discharging valuable merchandise in the stream, and where from two hundred to five hundred open barges and other small craft in which this merchandise was deposited in its transit to and from the shore offered so many temptations for plunder, it is easy to conceive how audacious these marauders would become, unrestrained by police or any hazard of apprehension, and emboldened by the strength of their own desperate and organized gangs. Well-authenticated instances have been adduced of river-pirates cutting bags of cotton and other merchandise from the quarters of ships on their first arrival, and even of their weighing anchors, and getting clear off with these heavy articles, together with the cables and everything portable upon the deck. One instance in particular is recorded, where an American and a Guernsey ship were plundered in this manner by the actual removal both of anchors and cables, the robbery being, in fact, completed in the view of the masters of the vessels, who were only alarmed in time to reach the deck and ascertain the fact from the pirates themselves; who, as they rowed from the vessels with their cumbrous booty, wished the astonished masters a very “good morning.”

Light horsemen.

The night-plunderers were sometimes denominated “light horsemen;” and they generally carried on their depredations through the connivance of the revenue officers. For a licence to commit plunder, by opening packages of sugar, coffee, and other produce during several hours in the night, no less than from twenty to thirty guineas were usually paid to the mate and the revenue officers, who almost invariably went to bed while the robbery was perpetrated, affecting ignorance of the whole transaction.

Their organisation.

Drum hogsheads.

Most of these infamous proceedings were carried on according to a regular system, and in gangs, frequently composed of one or more receivers, together with coopers, watermen, and lumpers, who were all necessary, in their different occupations, to the accomplishment of the general design of wholesale plunder. They went on board the merchant vessel completely prepared with iron crows, adzes, and other implements to open and again head up the casks; with shovels to take out the sugar, and a number of bags made to contain a hundred pounds

each. These bags went by the name of “black strap,” having been previously dyed black, to prevent their being conspicuous in the night, when stowed in the bottom of a river boat or wherry. In the course of judicial proceedings it has been shown that in the progress of the delivery of a large ship’s cargo, about ten to fifteen tons of sugar were on an average removed in these nocturnal expeditions, exclusive of what had been obtained by the lumpers during the day, which was frequently excessive and almost uncontrolled, whenever night plunder had taken place. This indulgence was generally insisted on and granted to lumpers, to prevent their making discoveries of what they called the “drum hogsheads” found in the hold on going to work in the morning, by which were understood hogsheads where from one-sixth to one-fourth of their contents had been stolen the night preceding. In this manner one gang of plunderers was compelled to purchase the connivance of another, to the ruinous loss of the merchant.

Long-shore men.

The total number of the mates and crews of vessels, revenue officers, lumpers, coal-heavers, coopers, watermen, lightermen, night-watchmen, scuffle-hunters, and labourers employed in warehouses was then computed at thirty-six thousand three hundred and forty-four, of whom no fewer than nine thousand six hundred were pronounced by Mr. Colquhoun as delinquents and participators in the rascality then prevailing. In addition to these, there were one hundred river-pirates, two hundred night-plunderers, two hundred “light-horsemen,” five hundred and fifty receivers of a dozen different classes, besides two hundred mudlarks, most of whom had no other calling, forming together a formidable band of ten thousand eight hundred and fifty marauders, who constituted the component parts of this great machine of organized crime, to the loss of the revenue and the infinite detriment of the best interests of commerce and navigation.

Harbour accommodation.

Towards the close of the last century the harbour accommodation for the greatly increasing amount of merchant shipping frequenting London was, with the exception of that part where small vessels discharged their cargoes between Blackfriars and London Bridge, limited to that portion of the river extending from London Bridge to Deptford, being in length about four miles, with an average width of four hundred and fifty yards. This harbour comprised—1st. The Upper Pool, from London Bridge to Union Hole, for

ships of two hundred and fifty tons and under, being in length sixteen hundred yards, and capable of holding three hundred and twenty-nine vessels, coasters and other small craft. 2nd. The Middle Pool, from Union Hole to Wapping New Stairs for ships of three hundred and fifty tons, being seven hundred and fifty yards, and capable of accommodating one hundred and twenty-six middle-sized vessels. 3rd. The Lower Pool, from Wapping New Stairs to Horseferry-tier, near Limehouse, for ships of four hundred tons, being eighteen hundred yards. 4th. From Horseferry to the mooring chains at Deptford, for ships of four hundred and fifty to five hundred tons, drawing seventeen to eighteen feet water, extending two thousand seven hundred yards in length, capable of holding three hundred and twenty large ships, and these two bring Limehouse, affording accommodation besides for fifty-four ships, and Deptford about a similar number. At that time the large East Indiamen, drawing from twenty-two to twenty-four feet water, could not discharge higher up the river than Blackwall.

Not adequate for
the merchant
shipping.

From the foregoing account it would seem that there was not convenient space for more than eight hundred and eighty vessels in the harbour; yet it frequently happened, when the fleets arrived together, that from thirteen to fourteen hundred vessels, including coasters, were in port at the same time. As many as three hundred colliers have been seen at one time in the Pool, where there were besides usually from one hundred and fifty to two hundred sail of other coasting craft.

East and West India
ships.

The East India Company discharged the cargoes of their ships into their own decked hoys, and transferred them to warehouses, which were then deemed “splendid and commodious in the highest degree.” Their goods were carted to these warehouses from their own quays, where they were deposited under the care of revenue officers specially appointed, as the duties were never paid until the goods were delivered after a sale had been effected.^[345] But, with the exception of a few small vessels, which landed their goods at wharves, and the timber-laden vessels, which made rafts of their cargoes on the river, the West India and all other traders discharged their cargoes into lighters, creating a state of confusion which, combined with the enormous amount of depredations, at length stimulated the parties most largely interested to devise means for protecting themselves, and suppressing the existing evils.

Docks at length
planned.

West India Docks.

The West India merchants, being the greatest sufferers, took the lead, and through their exertions an Act of Parliament, which met with much opposition,^[346] was obtained for the construction of the West India Docks, on the Isle of Dogs, with powers to the Lord Mayor and Corporation of the City of London to excavate a canal sufficiently large and deep to be navigated by ships, extending across the head of that peninsula between Blackwall and Limehouse Hole. The stock of the Company at the commencement of this important undertaking amounted to only 500,000*l.*, with power to augment it to 600,000*l.* if necessary. They were restricted from raising their dividends above ten per cent. They were required to inclose the docks, wharves, and warehouses connected therewith with a wall of brick or stone, not less than thirty feet in height, with strong gates, and to carry round them a ditch of at least twelve feet in width constantly filled with water to the depth of six feet. They were expressly forbidden to allow any slips for building or repairing vessels on their premises; nor were they allowed to be concerned in the building or repairing of vessels.

Regulations.

All vessels engaged in the West Indies were required to load and deliver their cargoes in the Company's docks, or in the river below Blackwall, except in the case of embarking naval stores for the royal service at Deptford. Schedules of rates and other particulars were annexed to the Act. The construction of these works constituted the first great step to the improvement of the river, and led to the formation of the other spacious and commodious docks which now adorn the metropolis, affording the incalculable advantages of an almost entire security to property. The success of the scheme of wet docks prepared the way for the eventual establishment of the warehousing system on a more complete and comprehensive scale than that which had been proposed by Sir Robert Walpole. Though violently opposed when first introduced, it has perhaps done more than any other measure to develop the maritime resources and trade of Great Britain with foreign nations, and has proved of immense advantage in the protection of the revenue.^[347]

East India Docks.

The West India Docks originally consisted of about twelve acres of water space appropriated in two equal parts for the use of vessels inward and outward bound, known as the Import and Export Docks; these communicate with each other

by means of locks, having a basin of more than five acres at the lower entrance, and another of about half that size contiguous to Limehouse. In 1829 the South Dock, formerly the City Canal, was added, and further important additions were made to the works in 1869-70. Between the docks are ranges of handsome and commodious warehouses for the purpose of receiving in bond all descriptions of produce subject to duty, especially rum, brandy, and other spirituous liquors. These docks are now amalgamated with the East India Docks Company, formed some years afterwards, and have a united capital of upwards of 2,000,000*l.*, their management being vested in a board of thirty-eight directors, who are elected by the shareholders. Their business is no longer limited to that of the East and West Indies, and ships to and from all parts of the world receive and discharge their cargoes there, though they naturally retain a very considerable proportion of those descriptions of produce for the reception of which they were originally constructed.

Mode of conducting
business at the
Docks.

Under the conditions of the Acts of Parliament whereby the Docks were established, the directors have power to levy rates and frame regulations and bye-laws for the proper conduct of business. For instance, certain rules require to be observed by vessels entering or leaving the docks, and by the crews while they remain there. For the protection of the revenue, no ship is allowed to break bulk until her cargo is duly entered, nor any baggage to be taken away until it has been examined by an officer of the Customs. Bills of lading must be specially endorsed so as to clearly designate the party to whose order the contents are to be delivered; and no orders for goods are received until the manifest (particulars) of the cargo, certified by the captain of the vessel in which they were imported, has been deposited in the Dock Company's office. Every description of merchandise is deliverable by warrant, with the exception of goods imported in bulk, and a few specially excepted articles which are deliverable by cheques or sub-orders, unless their owners otherwise desire and are agreeable to pay the extra expense of sorting them into separate and distinct parcels. To facilitate passing orders and paying the cheques due upon goods, the Company open deposit accounts upon a request from their owner or consignee, with such deposit as he may think proper to make, provided it is not less than 10*l.* By opening these accounts the business of the consignee with the Dock Company is greatly facilitated, especially when goods are subject to the warehouse rent

charge. Landing rates are charged upon the gross weight, and include delivering or receiving by land, wharfage and housing, piling on the quay or loading from the landing scale, weighing or gauging, and furnishing landing weights, and tales or gauge accounts of the strength of spirits as ascertained by the Customs.

London Docks.

Before the West India Docks were opened another company had applied for and obtained an Act of Parliament for constructing docks on a much more extensive scale in the parishes of St. George's in the East, Wapping, and Shadwell, which were principally intended for the reception of tobacco, rice, wine, and brandy. These, the London Docks, were opened for business in 1805, and all vessels laden with the articles we have just named were bound for a period of twenty-one years to discharge in them, except such as arrived from the East or West Indies. The premises of this Company, which are surrounded with high walls, cover an area of about one hundred acres, and the stock of the Company amounts^[348] to upwards of five millions sterling, a very considerable portion of it having been appropriated to the purchase of the land and the houses which occupied the site of the Docks.

The western dock has a water area of more than twenty acres; that of the eastern covers about seven acres, and the tobacco dock, confined exclusively to the reception of vessels laden with that article, occupies one acre of water space, while the warehouse for the reception and storage of tobacco, perhaps still the largest in the world, is capable of containing twenty-four thousand hogsheads, and covers no less than five acres of land. The other warehouses are upon an almost equally extensive scale, and, though in separate blocks, cover an area of nearly nineteen acres. Below them and the tobacco warehouses are vast arched vaults which can contain, exclusive of the gangways, sixty-six thousand pipes of wine and spirits. Hydraulic machinery is now in use in all parts of the docks for the purpose of discharging the cargoes of vessels and landing them on the quays or delivering them into the warehouses, and it is no uncommon thing to discharge from one ship a thousand tons of cargo in the course of twelve or fifteen hours. There are besides large basins for the reception of vessels at the Wapping and Shadwell entrances, the latter covering six acres of water space, with an entrance-lock of three hundred and fifty feet in length, and

sixty feet in width, having at spring-tide a depth of twenty-eight feet of water over the sill of the dock-gates.

St. Katharine's
Docks.

Victoria and
Millwall Docks.

The St. Katharine's Docks, situated still farther up the river, incorporated by the Act of 6 George IV., cap. 105, were partially opened for traffic in October 1828. They lie immediately below the Tower of London, and though only occupying one-fourth of the space of the London Docks, cost upwards of two and a half million sterling in their construction, arising in a great measure from the increased cost of the land and the houses which had to be removed, and from the more expensive character of their warehouses. Here vessels of upwards of a thousand tons register are docked and undocked without difficulty, by night as well as by day, an advantage peculiar to this establishment. The more recent docks, such as the Victoria and Millwall, also on the north side of the Thames, but below the others, occupy a much larger space, though the amount of business as yet carried on in them is comparatively limited, especially as regards the value of the goods imported. The Victoria, situated immediately below the East and West India Docks, extends from Bow Creek to Galleon Reach, a distance of nearly three miles, and embraces an area of about six hundred acres of what was known as the Plaistow Marshes, although only sixteen acres are as yet occupied as a half-tide basin, seventy-four acres as the inner or main wet-dock, and about twelve acres of canal, intended to intersect the eastern lands of the Company. These docks were formed in 1850 at a cost of about 1,600,000*l.*, increased by various additions and improvements, and notably by amalgamation, a few years ago, with the London and St. Katharine's Docks, all of which now form one company. The only entrance to the Victoria Docks from the Thames is at present from Bow Creek, by means of a lock three hundred and twenty feet in length, eighty feet in width, and twenty-eight feet in depth. In the main dock there are six jetties, five of which have warehouses erected upon them, and on the north side there is an enormous shed capable of containing no less than one hundred thousand tons of guano, the entire London trade in that article being now confined to the Victoria Docks. There is also a warehouse covering an area of four acres, appropriated to the stowage of tobacco. A branch railway runs through the whole of the premises, conveying goods from alongside the ships to all parts of the kingdom.

The Millwall Docks, situated in the Isle of Dogs, and contiguous to those of the West India Dock Company, were incorporated by Act of Parliament on the 25th of July, 1864, and opened for traffic about four years afterwards. The property of this Company comprises an area of more than two hundred acres, thirty-five and one-third of which have been converted into a wet-dock capable of receiving merchant vessels of the largest class, with a quay wall frontage of eight thousand two hundred feet, and entrance-locks eighty feet in width. Its capital, comprising ordinary and preference shares and debenture stock, amounts to about 1,130,000*l*. A graving-dock capable of receiving vessels of from fifteen hundred to two thousand tons has been formed in connection with the wet-dock, thus affording to shipowners the advantage of examining and repairing their vessels without requiring them to be ballasted and sent out into the river. The gates, bridges, warping capstans, and other machinery are worked by hydraulic power. The Millwall Docks, like the Victoria, and all the other docks, except the London and St. Katharine's, are in direct railway communication with the City of London and the various railways of the Northern and Midland districts. Possessing many natural advantages, and affording increased facilities for the more rapid conduct of business, these docks will no doubt soon secure a larger proportion of the trade of London than now falls to their lot.^[349]

Charges levied by
the Dock
Companies.

Although the dues vary in the several establishments, except where there is combination, the leading rules and regulations by which their business is conducted are similar. They are all vast stores, where goods and produce subject to duty can be deposited either for home consumption or re-exportation, as well as wet-docks where ships can, at all times, lie afloat, alike free from the risks to which they were formerly subjected on the river by the dangers of its navigation, and the plunder of the combined rogues by whom the Thames was so long infested.

Docks in provincial
ports, and bonded
warehouses.

Besides the old Commercial Dock on the south side of the Thames, and the Grand Surrey Canal, both devoted almost exclusively to the reception of ships with cargoes not subject to duty, such as deals and timber, there are now wet-docks in most of the important ports of the kingdom, varying in size according to the trade of the place or district, but, with the exceptions we have named, they are all the creation of the present century. Bristol,

Southampton, Hull, Great Grimsby, Cardiff, Newport, Newcastle, Glasgow, Leith, Sunderland, Dundee, Cork, and the Tyne have each their wet-docks, of greater or less capacity, with warehouses where goods subject to duty can be bonded. Besides these there are now forty-eight towns or ports in England, nineteen in Scotland, and eighteen in Ireland, where the privileges of bonding are allowed, and from which goods can be obtained for home consumption, or for re-exportation.

Liverpool and
Birkenhead Docks.

But Liverpool, including Birkenhead, has a far larger amount of dock accommodation than any other port in Great Britain, or, indeed, in the world and no works of a similar character, of either ancient or modern times, can be compared with them. Gibbon has described the port of Ostia, to which we have already referred,^[350] with its docks, as the boldest and most stupendous works of Roman magnificence; but, so far as we can now trace, they were in the extent of their accommodation altogether insignificant when compared with the docks which at present line the banks of the river Mersey. These extend on its eastern shore upwards of five miles in length, and the works now contemplated or in course of construction will add at least another mile in length to these already gigantic undertakings.

Port of Liverpool,
its commerce, and
its revenue from the
docks.

Though the entrance to the estuary of the Mersey is encumbered by sand-banks, there is at low-water spring-tides a depth over the bar of eleven feet, and as the water rises twenty-one feet in neap and thirty-one feet in spring-tides, there is ample depth for vessels of the largest size over its shallowest and most dangerous part. The channel is also well defined by numerous buoys, beacons, lightships, and lighthouses, and vessels entering the harbour have the advantage of the services of the most daring and experienced pilots to be found in this or in any other country, who are constantly cruising about, in their well-equipped cutters, in search of inward-bound vessels long before they reach that part of the navigation which is in any way dangerous. To this noble river and the facilities which its docks afford for the expedition and safe conduct of maritime commerce may be attributed, combined with its position as the readiest outlet for the vast manufactures of the surrounding district, the rapid rise of Liverpool. As an indication of its extraordinary prosperity, it is sufficient to state that while in 1812^[351] the revenue of the Trustees, levied upon four hundred and

forty-seven thousand tons of shipping and their cargoes, did not exceed 45,000*l.*, it had in 1871 reached 562,953*l.*, upon no less than six million one hundred and thirty-one thousand seven hundred and forty-five tons of shipping; and in the year ending 1st July, 1872, the shipping frequenting the port had increased to six million five hundred and thirty thousand three hundred and eighty-six tons, and the annual revenue to 592,258*l.*

Extent of
accommodation.

But the docks themselves are the marvel of the place. Along the whole of the eastern bank of the river (the site of Liverpool) there will shortly be, for upwards of six miles in length, the finest range of wet-docks in the world, protected by a sea-wall of an average thickness of eleven feet, and forty feet in height from its foundations, faced with massive blocks of granite, perhaps in itself one of the greatest works of the kind of modern times. Through the courtesy of the Secretary, we ascertain that the existing docks with their basins cover a water area of two hundred and sixty acres, and have a quayage of upwards of eighteen lineal miles: and to these must be added the Birkenhead Docks, on the opposite bank of the Mersey, comprising about one hundred and sixteen acres of water space, and embracing more than nine lineal miles of quays. So that out of the whole area of the Dock Estate, comprising one thousand five hundred and thirty-eight acres, upwards of one hundred docks^[352] of one sort and another, have already been formed, covering an area of upwards of four hundred and twenty-four acres of water-space, and having more than twenty-eight miles of quay walls. These figures furnish an idea of the vast extent and character of the works under the control of the Mersey Docks and Harbour Board, and show what unaided private enterprise can accomplish. The wet, as well as the graving-docks, are capable of receiving the largest description of vessels. The graving-docks, with two exceptions, are from forty-five to one hundred feet in width, and from four hundred and fifty to seven hundred and fifty-eight feet in length, containing no less than twelve thousand one hundred square feet of flooring.

Nor do the facilities afforded to maritime commerce at this great sea-port end here. There are wooden landing-stages on both sides of the river, resembling floating islands, connected with the shore by bridges which rise and fall with the tide. One of these stages measures one thousand and forty feet in length, with a width of from thirty-five to fifty feet, and another is

one thousand and two feet long, and eighty feet wide. There are also wet docks belonging to the Corporation of Liverpool and other persons, comprising water-space of upwards of eleven acres. The warehouses, though perhaps affording less convenience and accommodation than those of London, are likewise upon a large scale. Only three docks, the Albert, Stanley, and Wapping, are surrounded with bonding warehouses: the other docks have warehouses contiguous to them, but as a large portion of the produce, both free and subject to duty, is conveyed by railway or barge to Manchester and other inland towns, accommodation storage is not required to the same extent as in London. The tobacco warehouse, however, is six hundred and thirty feet in length, with a width throughout of three hundred and fifty feet; while there are warehouses for the reception of corn capable of receiving four hundred thousand quarters of wheat or other descriptions of grain. Nearly all the docks are surrounded with open sheds on the quays for the reception and temporary stowage of goods and produce. Many of these are handsome structures, and all of them substantial and very commodious. There are besides in the Nelson, Princes, and in one or two other docks, “transit sheds,” one storey in height and substantially built, where ships can be discharged with extraordinary rapidity, and their cargoes safely stored until it suits the convenience of the owners or consignees to remove them to the warehouses. Steam dredging-machines are ready whenever required to remove accumulations of mud in the docks, basins, and approaches, and these at all times maintain the full depth of water, while strict rules are enforced, and a large and efficient body of police^[353] are permanently employed.

Extension of docks
to the north.

Notwithstanding the vast accommodation at present afforded to shipping, the growing wants of Liverpool are so rapid that it has been found necessary to materially increase the existing accommodation, besides widening the entrances to some of the existing docks, and increasing the area of their water-space. Three more large docks are to be constructed to the north, one to contain an area of twenty acres of water space, and three thousand and seventy lineal feet of quayage; another to embrace forty-three and three-quarters acres of water space, surrounded by ten thousand eight hundred and seventy lineal feet of quay walls; and the third to contain eighteen acres of water-space, with a gross quayage of three thousand eight hundred and sixty-five lineal

feet.^[354] At least one of these docks is to be capable of receiving ships of the largest size, with quay walls suited for vessels “ranging up to six hundred feet in length, should such a type come into use.” It is proposed to surround them with sheds ninety-five feet wide, “flanked by roadways ranging from eighty to one hundred feet in width,” except at the ends of the branch docks, where the erection of stores or warehouses are contemplated, which are to be fitted with “elevators,” on the American principle, for the purpose of unloading grain in bulk from the hold of the ships to the different floors.

Hydraulic lifts and
repairing basins.

But besides these wet-docks and warehouses, it is proposed to construct hydraulic lifts, each with a framework five hundred feet in length and sixty feet in width, capable of receiving and raising the largest class of vessels, and “admitting ordinary repairs and overhauling to be effected with safety, economy, and expedition.” On the eastern side of the basin of these wet-docks there are to be constructed two graving-docks, with sixty feet width of entrance, each eight hundred and fifty feet in length, and having adjoining “*lye-bye*” berths of sufficient capacity to accommodate and facilitate the working and free entry of the largest description of ships. Between the graving-docks it is proposed to make another dock eight hundred and twenty feet long and one hundred and forty feet wide, to be specially adapted for repairing purposes, with quays one hundred and thirty feet in width, provided with the largest and most convenient class of cranes. These various new docks, with separate entrances from the river, are to be in direct communication with the existing docks, so as to form one almost unbroken line of the finest dock accommodation in this or any other country.

On the southern side of the Dock Estate, that is to the south of the existing docks, there is to be a half-tide basin to the east, in connection with the Brunswick basin, of one thousand one hundred and thirty feet in length and seventy feet in width, surrounded by convenient quays and sheds in direct communication with the railway. Opening from the existing basin, and extending in a north-eastern direction, with a passage of sixty feet in width, another wet dock is contemplated, one thousand three hundred and thirty feet in length, by three hundred feet in width, comprising a water area of

eight and three-quarter acres, and a total quayage of two thousand eight hundred and forty lineal feet.

Cost of new works.

Eastward, and in connection with the dock now described, by means of a sixty-foot passage, there is to be an “import dock,” one thousand four hundred and fifty feet in length, with eleven acres and a half of water-space, and a quayage of three thousand two hundred and eighty lineal feet; while at the extremity of the whole, the half-tide basin at present in use is to be more than doubled in size, and another graving-dock constructed seven hundred and forty-five feet in length, with “repairing berths,” which will be applicable for other trade purposes, and if thus used, furnished with forty and twenty-ton hydraulic cranes. When these new works are completed the water area of the Liverpool Docks will be increased by more than one hundred and thirty-three acres, and upwards of thirty thousand lineal feet added to the present vast extent of quayage. Their estimated cost^[355] is 4,834,051l., which will raise the borrowed capital of the Mersey Docks and Harbour Board to close upon twenty millions sterling.

While the docks are in the nature of a private undertaking, receiving no aid whatever from government, and happily allowing no government interference beyond the right to appoint three members of the board, they are at the same time a public trust; the surplus revenue, after providing for current expenses and the interest of money borrowed, being in all cases applied to the reduction of the rates.^[356] The regulations of the Board are very complete, and the dock-charges, as well as the cost of delivering cargoes, moderate.

Bye-laws of the Mersey Board.

The laws framed pursuant to the Acts of Parliament for the government of these vast undertakings are embraced in one hundred and fifty-nine clauses. They state who shall be stevedores or porters employed to discharge or load vessels in the docks, and their duties; they regulate the conduct of masters and pilots, and the conditions alone on which ships will be allowed to enter the docks, inflicting penalties for violation of the rules;^[357] they fix the charges for the use of the graving-docks; stipulate the condition of the railway-trucks, and the length of the trains to be used within their docks, requiring great attention on the part of those persons who are in charge of them. No craft of

any kind is allowed to ply for hire on the river without being registered at the Dock Office unless a steam or a ferry-boat; and these are, in some respects, under the control of the Board. Certain places are specially appropriated for the discharge and stowage of timber; and all cotton and other merchandise (not being wooden goods) must be removed from the quays of most of the docks within forty-eight hours from the time of discharge. The bye-laws further embrace the conditions on which fires, exclusively confined to the consumption of coal or coke, may be used on board vessels in the docks, and all lights must consist of “oil lamps or candles contained in glass lanterns or globes.”

The pilots, who still maintain an exclusive monopoly, are under the control of a Pilotage Committee elected from the members of the Mersey Board. Subject to the orders of this committee there is a superintendent of pilots, whose duties are of an arduous and responsible character. He has to see that full reports of all occurrences affecting this important service are furnished to him; that the Acts of Parliament and bye-laws are duly observed at the respective stations; and it is his especial duty to arrange that the pilot-boats at these stations are effectively occupied by day and night. He is required to visit occasionally, as time and circumstances admit, the whole of the stations, and record the particulars of his inspection. He is also required to make a strict and careful survey of every pilot-boat at least once every year, reporting upon her condition and equipment, as required by the bye-laws. It is further his duty every five years to visit and survey all the ports and anchorages, lights and lighthouses, buoys, beacons, and seamarks, a thorough knowledge of which is required from pilots on passing their examination; and he is required to carefully note for the good of the service all changes in the buoys, channel, lights, etc., which may have been made since the date of his last survey, and report upon any matters which may appear to him desirable in the interests of navigation. Nor do his duties here end, for it is required of him “to attend promptly to the complaints of shipowners, shipmasters, or other interested persons, in reference to pilots or pilotage, and generally to do all that lies in his power to maintain and increase the discipline and efficiency of the pilot service:” this service, therefore, though exclusive, is no doubt on all occasions most effectively performed. [\[358\]](#)

Conditions of
admission to the
service.

No candidate for the pilotage service is admitted for examination if he is under fifteen or over eighteen years of age, or unless he is able to read and write well, and possesses a fair knowledge of arithmetic. He must also present a medical certificate of sound health, and be physically competent for the labour he has to undergo. When these requirements are met to the satisfaction of the Board, he is, after a month's probation, apprenticed for seven years, the Board reserving to itself the power of cancelling his indentures should he fail to give satisfaction or prove incompetent for his duties. At the expiration of his third year of apprenticeship he becomes eligible for examination for a third-class licence; at the end of five years he may be promoted to the second class; and after a third examination he may be admitted, at the expiration of his apprenticeship, to a full licence.

Pilot-boats.

Every pilot-boat must be of at least forty tons, painted in a particular manner, and have on board, besides a complete equipment of spars, sails, and the ordinary stores and provisions, "two punts for boarding vessels, a good telescope, two lanterns, a swivel or other small gun, and a supply of rockets and bluelights for making signals; also a sufficient number of life-buoys and life-belts," as well as an approved chart of the Bay of Liverpool, and charts of the latest survey of the various places under the jurisdiction of the Board, or which its pilots are required to frequent. Each pilot-boat has a master, second master, and third master, and ten apprentices, who, with the other pilots on board, are to take charge of vessels in rotation, according to their respective grades and qualifications, so that every man has a fair proportion of labour, the master in command always having a discretionary power to set the turn aside in peculiar cases, the circumstances of every such case being duly entered in the log-book, and reported to the Pilotage Committee when required. The earnings of each of the pilot-boats, which, by the way, are private property, licensed by the Board, are divided into shares and distributed in fixed proportions among the owners, masters, and crew, according to their class. Seven separate stations are allotted to the boats on the look-out for inward-bound vessels, which must be strictly kept, so that it is hardly possible, even in the thickest or most stormy weather, for any ship approaching the banks to miss a pilot-boat, if the captain adopts the most ordinary precautions, and the means readily available to find one. The duty of the seventh and last of these boats is to take the pilots out of vessels

outward bound, and when she has her complement of pilots and apprentices on board, to return with them to Liverpool.

and rates of pilotage.

The pilotage rates, limited by Act of Parliament, are levied by scale according to the draught of water. An extra charge, regulated by the Mersey Docks and Harbour Board, is allowed for piloting ships beyond the Liverpool pilotage limits, as also for transporting vessels from certain prescribed places, or transferring them from one dock to another.

FOOTNOTES:

[340] 8 Anne, chap. xii.
[341] ‘Commercial Dictionary,’ p. 1504.
[342] ‘Commercial Dictionary,’ p. 1505.
[343]

SPECIFICATION OF THE TRADES.	VESSELS.		Tonnage, including their repeated Voyages.	Value of Imports and Exports.	Estimate of the Amount of Packages Out and Home.	Estimate of the Amount of Plunder.
	Foreign.	British.				
				£		£
East Indies	3	50	41,466	10,502,000	300,000	25,000
West Indies	11	335	101,484	11,013,000	400,000	232,000
British American Colonies	0	68	13,986	1,638,000	65,000	10,000
Africa and Cape of Good Hope	0	17	4,336	531,000	20,000	2,500
Whale Fisheries, North and South	0	45	12,230	314,000	20,000	2,000
United States of America	140	0	32,213	5,416,000	260,000	30,000
Mediterranean and Turkey	29	43	14,757	509,000	70,000	7,000
Spain and the Canaries	119	2	16,509	947,000	60,000	10,000

France and Austrian Netherlands	121	1	10,677	1,015,000	20,000	10,000
Portugal and Madeira	55	125	27,670	853,000	50,000	8,000
Holland	329	0	19,166	2,211,000	60,000	10,000
Germany	172	63	37,647	10,672,000	240,000	25,000
Prussia	527	81	56,955	432,000	60,000	10,000
Poland	31	38	17,210	242,000	70,000	5,000
Sweden	100	9	14,252	322,000	50,000	3,000
Denmark	194	8	48,469	806,000	60,000	5,000
Russia	5	225	56,131	2,017,000	150,000	20,000
Jersey, Guernsey, Alderney, and Man	4	42	5,344	302,000	15,000	2,000
Ireland	3	273	32,824	2,539,000	160,000	5,000
Coasting Trade	0	6,500	560,000	6,600,000	900,000	20,000
Coal Trade	0	3,676	656,000	1,710,000	...	20,000
	1,843	11,601	1,776,326	60,591,000	3,030 000	461,500
Annual loss in tackle, apparel, and stores, of 13,444 vessels						45,000
Total depredations, estimated at						506,500

[344] Vide Mr. Colquhoun's work, p. 109. Five revenue officers received 150*l.* each, independently of the money received by the mate and agents in this iniquitous business.

[345] Rival traders looked enviously on this privilege, "which could not fail to give an inconceivable spring to commercial pursuits if extended to all the other great branches of trade." And yet the warehousing system, when proposed, met, as we have seen, with fierce opposition.

[346] Local Acts, 59 Geo. III., cap. 79.

[347] The opposition to the construction of docks in London was so great that the watermen and barge-owners frequenting the Thames not merely claimed, but obtained a large sum of money by way of compensation, nominally on the ground of being deprived of their vested rights to the use of the foreshore of the river; but beyond this pecuniary compensation, a clause was inserted in the Dock Acts, granting to all watermen for ever the right of entering the docks, and delivering or receiving whatever amount of cargo they pleased, *free of any charge*. These privileges, granted no doubt originally to stifle opposition, they still retain to their own gain and that of the wharfingers, but to the loss of the companies. Surely when the monopoly of the companies expired, a monopoly to which they were for the time fully entitled, considering the service they had rendered to the Crown in the protection of the revenue, these privileges to the barge-owners should also have been withdrawn.

[348] The capital of this dock company, since amalgamated with the St. Katharine's and Victoria Docks, amounted on the 1st January, 1873, to 8,809,872*l.* The report of the Company states that "the number of loaded ships from foreign ports which entered the docks during the six months ending the 31st of December last, was 746, measuring 519,359 tons, and for the corresponding period in 1871,

759 ships, measuring 526,931 tons The quantity of goods landed in the docks during the past six months was 294,462 tons, and for the corresponding period in 1871, 285,854 tons. The stock of goods in the warehouses of the docks on the 31st of December last was 347,696 tons, and at the same period in 1871, 338,436 tons.”

[349] Papers supplied by the Secretary to the Company.

[350] Gibbon, c. xxxi.; and [vol. i. p. 189](#).

[351] Accounts, Mersey Docks and Harbour Board, for the year ending July 1, 1872.

[352] This number includes wet and dry, or graving-docks, half-tide docks, basins, locks, and floats. The number of wet docks, exclusive of basins and locks, is somewhere between forty and fifty, but in some instances it is difficult to distinguish one from the other. The details will be found in [Appendix No. 7](#).

[353] The expense of the dock police force alone amounted in 1872 to 25,636*l.* 4*s.* (see Accounts, Mersey Docks and Harbour Board).

[354] Reports of G. F. Lyster, Esq., Engineer of the Mersey Docks and Harbour Board, 1872.

[355] Engineer's Reports, p. 14.

[356] The [frontispiece](#) to this volume contains a plan on a reduced scale of the whole of the existing and contemplated dock-accommodation, which has been courteously supplied by the Secretary.

[357] Bye-laws of the Mersey Docks and Harbour Board, 1866.

[358] Bye-laws, Mersey Docks and Harbour Board, p. 36.

CHAPTER XIII.

East India Company—Early struggles—Rival company—Private traders—Coalition effected—Their trade, 1741-1748, and continued difficulties up to 1773—Their form of charter—Rates of freight—Gross earnings—Evidence of Sir Richard Hotham before the Committee of Inquiry—The effect of his evidence—Reduction of duties, August 1784—Extent of tea trade—Opposition of independent shipowners—India-built ships admitted to the trade—Board of Control established, 1784—Value of the trade, 1796—Charter renewed, with important provisions, from 1796 to 1814—Restrictions on private traders—East India Company's shipping, 1808-1815—The trade partially opened—Jealousy of free-traders—Efforts of the free-traders at the out-ports—Comparative cost of East India Company's ships and of other vessels—Opposition to the employment of the latter—*Earl of Balcarras*—Her crew—Actions fought by the ships of the Company—Conditions of entering the service—Uniforms—Discipline—Promotion—Pay and perquisites—Abuse of privileges—Direct remuneration of commanders—Provisions and extra allowances—Illicit trade denounced by the Court, and means adopted to discover the delinquents—Connivance of the officers of the Customs—Pensions, and their conditions—Internal economy of the ships—Watches and duties—Amusements—Gun exercise—Courts-martial—Change in the policy of the East India Company—Results of free-trade with India, and of the Company's trading operations—China trade thrown open, 1832-1834—Company abolished, 1858—Retiring allowances to commanders and officers—Compensations and increased pensions granted—Remuneration of the directors—Their patronage.

Early struggles.

We have already noticed the difficulties English navigators had to encounter in their earliest endeavours to gain a share of the lucrative trade which, after the discoveries of Vasco de Gama, the Portuguese carried on with India, and their long struggles against them and the Dutch East India Company, who shared it with them for more than a century, thus maintaining a virtual monopoly of the commerce of the East. Nor were the English any more successful when the Pope's Bull ceasing to have effect induced the government of England to grant to the few merchants and shipowners we have named the charter of incorporation, ^[359] for the purpose of encouraging the systematic development of that valuable trade. Although the charter gave to the association an exclusive monopoly of the commercial intercourse between England and India, besides numerous special privileges, the directors had considerable difficulty in obtaining the requisite capital to equip their first expedition. ^[360] Indeed, their success, as a whole, for many years afterwards, though occasionally considerable, was not equivalent to the risk they encountered; and even when they had secured factories or depôts at Surat and settlements in Bengal, their

prosperity was of so variable and unstable a character that their charter had to be frequently renewed with increasing privileges.

But it is unnecessary to further trace the varying fortunes of the East India Company^[361] since the Revolution, or the origin of the clamour against their monopoly. Suffice it to state that the charges of delinquency and mismanagement which were brought against the directors and employés induced the House of Commons, re-echoing the feeling out of doors, to send up, in 1692, an address to the Crown requesting the immediate dissolution of the Company, and praying for the incorporation of a new association.

Private traders.

However, it was not until 1698 that the government, being in want of money, resolved to throw the trade of India open to the highest bidder. The existing Company was outbid by another association, whose tender to supply two millions sterling was accepted, and an Act passed embodying it under the name of “The English Company trading to the East Indies,” with exclusive possession of the commerce of the East for ever; subject only to the right of the Old Company to continue to trade for three years longer. But the Old Company, having through its treasurer subscribed for and obtained 315,000*l.* of the loan, became the largest shareholders in the new and rival body. The greatest confusion of conflicting interests consequently ensued. There was the Old Company, trading with its vessels for three years, and at the expiration of that period to be left in legal possession of all its forts and factories in India, besides whatever privileges it had acquired in the East from the native authorities, while, secondly, there was the New Company in the field, but without any Indian possessions whatever, and opposed by a rival body seeking its destruction, and wielding a controlling power over its operations. Thirdly, there were a few subscribers to the late loan, who had declined to join the New Company, but who, by the terms of the original contract with the government, were, nevertheless, entitled to trade each for himself, so long as the two millions remained unpaid; and, lastly, there were such private traders as had cleared out from England previously to the 1st of July, 1698, who had a right, in virtue of a clause in the Act, to carry on their trade till they should think fit to return to England. No fewer than sixty ships were employed by these rival traders; a number far in excess of the

requirements of the trade, so that the first effects of the competition were ruinous to all parties concerned.

The 100*l.* shares of the Old Company fell to 37*l.*; and their rivals being in no better position tended further to exasperate the two companies, whose animosities divided the whole kingdom into two parties, the Old Company being supported by the Tories, and the New by the Whigs. At the dissolution of Parliament in 1700, each party spent enormous sums to procure the election of their friends, and the nation was in a ferment about the contention between them. At length, in July 1702, a tripartite indenture was executed, wherein Queen Anne, with the Old Company and the New Company jointly concerned, became the contracting parties. ^[362]

Coalition effected.

Satisfactory estimates were taken of the value of the possessions in India of both companies, and adjusted accordingly. Various minor arrangements were made, and after a period of seven years the new association was inaugurated with the title “The United Company of Merchants of England trading to the East Indies;” and thus, in 1708, that powerful body was restored, or rather recreated, which became ultimately possessors of a considerable portion of the vast continent of India, and rulers over more than a hundred million people.

Their trade, 1741-1748, and continued difficulties

But this united Company was frequently opposed. In 1730 the merchants of Bristol and Liverpool, with other capitalists resident in London, made vigorous efforts to prevent the government from granting a renewal of the Company’s charter, under an impression that its profits were enormous. Such may have been the case in some branches of their trade, or in special years; but it afterwards appeared that, on an average of eight years, ending 1741, the value of British goods and products of all sorts exported by the Company to India and China amounted to only 157,944*l.* per annum, while the average annual value of imports during the seven years ending 1748 was not more than 188,176*l.*; ^[363] so that their profits as merchants could not have been large, unless the percentage of gain was excessive upon the amount of business they transacted. Some of their servants, no doubt, realised immense fortunes, especially when the Company secured possession of large tracts of land. But the Company itself, not many years afterwards, was involved in debt and difficulties; and, so far from being

able to pay government the stipulated sum of 400,000*l.* per annum, the directors were compelled in 1772 to apply to the Treasury for a loan. Indeed, had it not been for the greatly increased consumption of tea in Great Britain, the Company at this period would have ceased to carry on any branch of trade with the East, so that its commercial monopoly would then have happily come to an end.

up to 1773.

Their form of charter.

Rates of freight.

A secret committee of Parliament^[364] was, however, appointed to inquire into the mode in which the business of the Company had been managed, and from its proceedings some valuable information may be obtained with regard to the trade of the East at this period, and the mode in which shipping business of the highest class was then conducted. As the chief object of the inquiry seems to have been to ascertain if the Company could build and navigate ships at less cost than they could be chartered, the rates of freight, size of vessels, the conditions of charter, and other matters came under the consideration of the committee. The charter-party was exceedingly voluminous.^[365] In it the Company covenanted with the shipowners that no vessel was to carry less than four hundred and ninety-nine tons at the rate therein specified, including eighty tons of iron kentledge^[366] for the purpose of ballast. It further provided that notwithstanding “the ship is let to freight for four hundred and ninety-nine tons, yet the Company may, if they think fit, lade what more they please,” at certain rates. The rates of freight varied. For instance, from China the freights on rough goods were 24*l.* per ton in 1753; 37*l.* in 1760; and 29*l.* in 1772. Fine goods in the same years paid 27*l.*, 40*l.*, and 32*l.* respectively. The freights from Bombay in these years were somewhat higher; and the rate of demurrage^[367] per day was 12*l.* 2*s.* in 1753, 20*l.* 3*s.* 4*d.* in 1760, and 18*l.* 3*s.* in 1772.

Gross earnings.

Voluminous accounts were produced of the vessels employed, their capacity and cost. Those engaged for India in 1772 will suffice to furnish an illustration. In that year thirty-three ships were employed by the Company, of twenty-three thousand one hundred and fifty-nine tons, builder’s measurement, which brought home twenty-one thousand one hundred and fifty-eight tons of merchandise, the cost of freight amounting to 457,600*l.*, besides an allowance for surplus freight of 95,390*l.* 16*s.* 8*d.*, and 57,733*l.* 11*s.* 4*d.* paid

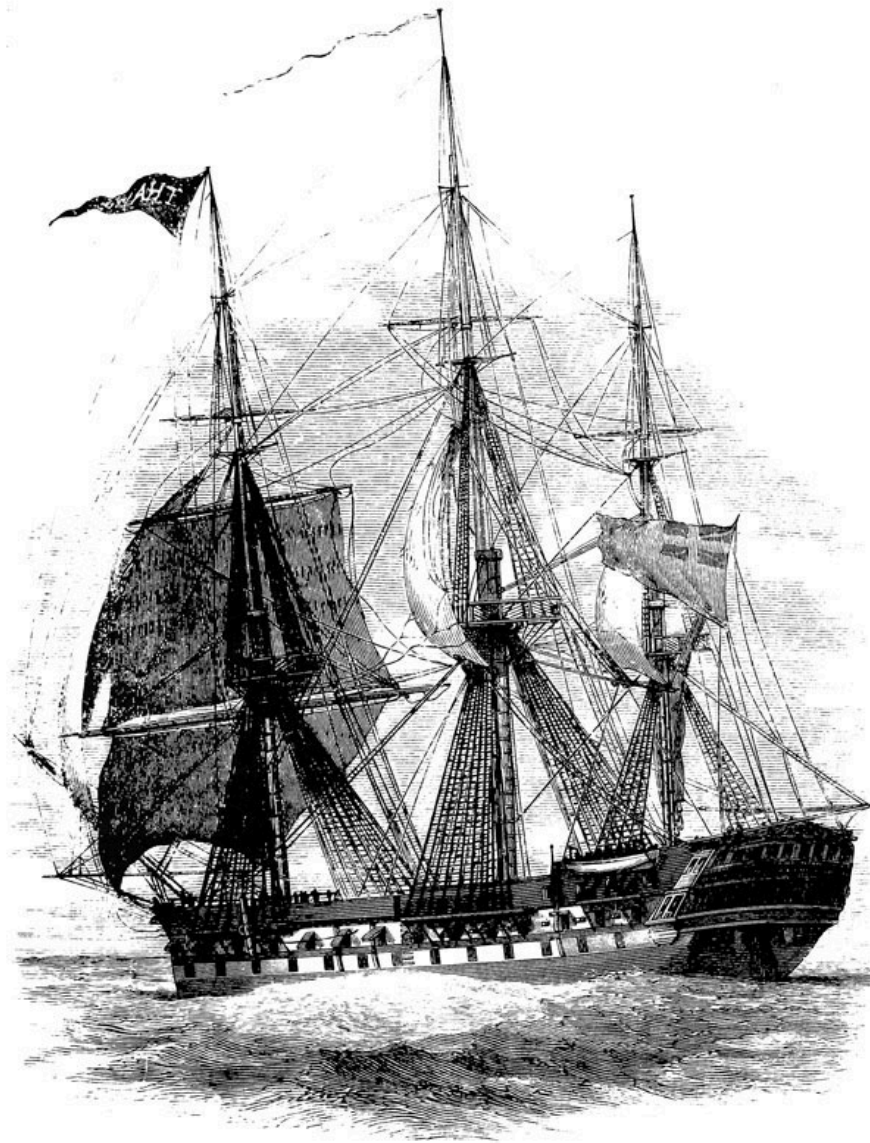
for demurrage. From a return furnished of the China ships engaged during the five years preceding 1773, the Company appears to have imported fifty thousand three hundred and forty-three tons of produce, in vessels registering forty-eight thousand eight hundred and sixty-five tons, builder's measurement.

Evidence of Sir Richard Hotham before the Committee of Inquiry.

The effect of his evidence.

Among the witnesses who appeared before the committee, there was no one more intelligent than Sir Richard Hotham, an eminent shipowner, who declared that the existing mode of freighting ships by the Company was absurd, and that their charter-party was one of the most useless for the purpose that could possibly be conceived. Analysing the whole system, and the clumsy and expensive mode in which they conducted their business, he gave the following particulars of what they actually paid for carriage on every ton of produce imported from the East:—

	£	s.	d.
80 tons of kentledge, at the fixed rate of 9 <i>l.</i> 13 <i>s.</i> 4 <i>d.</i> per ton	773	6	4
11 tons of China ware, at the chartered rate of 29 <i>l.</i> per ton	319	0	0
393 tons of tea and silk, at the chartered rate of 32 <i>l.</i> per ton	12,576	0	0
15 tons, private trade, at the chartered rate of 32 <i>l.</i> per ton	480	0	0
<u>499</u>	<u>14,148</u>	<u>6</u>	<u>4</u>



**THE 'THAMES' EAST INDIAMAN, 1360 TONS REGISTER, 25
GUNS, AND 130 MEN. E. W. COOKE, R.A.**

Or equal to 32*l.* 10*s.* per ton, after the freight on kentledge had been deducted; and he showed how a saving could be effected in the cost of freightage on the vessels employed, from China alone, of upwards of 43,000*l.* annually.^[368] Sir Richard offered to bring goods from any part of the East at twenty guineas per ton, and this offer, combined with other important facts which had been adduced in evidence, produced at the time various changes in the mode of conducting the chartering and loading of their vessels. The Company also resolved to construct vessels of a larger class for their own use, vessels which became famous in more modern

times, of which we furnish an illustration of one of the latest [on the preceding page](#).

Reduction of duties,
August 1784.

Extent of tea trade.

Though the operations of the Company as traders continued in full force for ten years after this inquiry, its shipping business underwent very considerable changes by reason of Mr. Pitt's judicious reduction of the duties on various Indian productions,^[369] especially on tea; the duty on which was then reduced from 120 to 12½ per cent. *ad valorem*. High duties had been found to encourage smuggling,^[370] and divert the trade from England to continental nations. Although in the nine years preceding 1780 the importation of tea from China to Europe amounted to 118,783,811 lbs., only 50,759,451 lbs. out of that quantity had been imported in vessels belonging to or chartered by the Company. But the change in the duty effected a revolution, and the sales and importations of tea by the Company were trebled. Their export trade also increased, and in 1789 they began to ship tin to China for the first time. Whilst the value of their exports in 1784 was only 418,747*l.*, in twenty-seven ships, it rose in 1792 to 1,031,262*l.*, employing forty-three vessels. On the other hand, the quantity of bullion despatched to the East materially declined. During the same period the "private trade" carried on by the commanders and officers of the Company's ships, and by the merchants holding licences who resided in India, rose from 144,176*l.* of imports in 1783, to 400,784*l.* in 1794,^[371] and increased to no less than double that amount in the following ten years.

Opposition of
independent
shipowners.

The Liverpool and Bristol shipowners now began to agitate still further for a participation in the East India trade. The Company, however, having obtained fresh capital, were thus enabled, combined with other causes, to secure a renewed lease of exclusive commercial power, which now virtually extended over Europe, and was not overthrown until many years afterwards. The Dutch East India Company having incurred enormous losses, and the other companies having either relinquished the business or declined to such a point as to render their rivalry no longer dangerous, left the trade of the East to a large extent in the hands of the English. In 1789 the Portuguese, who once engrossed the whole of the oriental trade, had but three ships at Canton, the Dutch five, the French one, the Danes one, the United States of America fifteen, and the English East India Company forty,

while British subjects residing in India had a similar number. Moreover, a very considerable portion of the trade of the East was then conducted in Indian ships, owned by the natives, by whom as many voyages were undertaken from India to China, and from the coast of Malabar to the Persian Gulf and the Red Sea, as in the days before the passage to Europe by the Cape of Good Hope had been discovered.

India-built ships
admitted to the
trade.

It was not, however, until 1795 that India-built vessels were permitted to convey goods to London. In the course of that year a great number of the Company's ships having been employed in the service of the English government, instructions were sent to the Presidencies to engage vessels of India build at 16*l.* per ton for rice and other dead-weight stowage, and 20*l.* for light goods to the Thames, with liberty to take back on their own account whatever merchandise they pleased to the territories of the Company, or to any place within the limits of its charter.

Many of them having been constructed on speculation, under an impression that they would be permanently employed, although warned by Lord Cornwallis to the contrary, their owners were greatly disappointed when they found that after the immediate wants of the government and the Company had been satisfied their services were no longer required. English shipowners in the service of the Company inflexibly maintained their monopoly, and having secured stipulations for a number of voyages during successive years, they successfully opposed for a time any innovation of a permanent character upon their chartered rights. The contest, however, which arose between the independent merchants of England, who had combined with the owners of native shipping against the Company on this point, induced the Directors to make various concessions, which were the prelude to the opening of the trade at a future period.

Board of Control
established, 1784.

But, apart from this combination, the Act of Mr. Pitt, passed in 1784, constituting a Board of Control to superintend the affairs of the Company, had paved the way for many changes. This board consisted of six members of the Privy Council, who were to superintend, check, and control all operations and concerns in any way relating to the civil and military government or the revenues of the territory and possessions of the Company; and the Act further provided that all communications to or from India touching the

above matters were to be submitted to this Board of Control, the Directors reserving to themselves power to amend their instructions. A secret committee of three directors was formed, with which the Board of Control might transact any business it did not choose to submit to the Court of Directors, and to whom persons returning from India were required, under severe penalties, to declare the amount of their fortunes; while a tribunal was constituted which had for its sole object the trial of any person accused of misconduct in India, consisting of a judge of each of the three chief law-courts in England, of five peers and seven members of the House of Commons, the last being chosen by lot at the commencement of each session. Although the Directors were left to superintend their shipping and commercial affairs, as they had hitherto done, the Board of Control exercised an indirect influence over their proceedings both at home and in India.

Value of the trade,
1796.

During the three years ending 1796, the value of the Company's exports of British produce and manufactures fluctuated from 928,783*l.* to 1,031,262*l.*; but this increase may be attributed mainly, if not wholly, to the great reductions which the Act of 1784 had effected in the duties on tea, and the vast increase which consequently took place in its consumption.

Charter renewed,
with important
provisions, from
1796 to 1814.

When, in 1796, the Company's charter was again renewed, the important provision was made that all his Majesty's subjects, residing in any part of his European dominions, were to be allowed to export to India any article of the produce or manufacture of the country where they resided, except military stores, ammunition, masts, spars, cordage, pitch, tar, and copper, and the Company's civil servants in India, as well as the free merchants resident there, were permitted to ship, on their own account and risk, all kinds of Indian goods, except calicoes, dimities, muslins, and other piece goods. But so jealous were the Directors of competition in their commercial operations, that they prevailed on the government to insert various clauses in the new charter whereby neither the merchants of India nor of England generally, nor any of the Company's servants, were allowed to export or import except in ships belonging to or chartered by the Company; appropriating, however, under various restrictions, three thousand tons of space in their ships for the use of private

traders, at the reduced rate, in time of peace, of 5*l.* outwards, and 15*l.* homewards, for every ton occupied by them in the Company's ships, but stipulating that this rate of freight might be increased in time of war by the approbation of the Board of Control.

Restrictions on private traders.

"It might have been," remarks Mr. M'Culloch,^[372] "and indeed was most probably foreseen, that very few British merchants or manufacturers would be inclined to avail themselves of the privilege of sending out goods in the Company's ships, or of engaging in a trade fettered on all sides by the jealousy of powerful monopolists, and where consequently their superior judgment and economy would have availed almost nothing. As far therefore as they (the English merchants) were concerned, the relaxation was more apparent than real, and did not produce any useful results." Indeed Lord Melville quotes, from a letter written by the Marquess of Hastings to the Company, dated 21st of March, 1812, the following passage, "It will not be denied that the facilities granted by that Act (the Act of 1796) have not been satisfactory, at least to the merchants of this country or of India. They have been the source of constant dispute, and they have even entailed a heavy expenditure upon the Company without affording to the public any adequate benefit for such a sacrifice."^[373] This privilege was, however, made use of to a considerable extent by private merchants in India, and also by the Company's servants returning from India, many of whom invested a portion or the whole of their fortunes in the produce of India suited for the English markets.

Notwithstanding the privileges secured by the Act of 1796, and the superintendence of the Board of Control, the finances of the Company again fell into the same unprosperous state in which they had previously been, although accounts of a large surplus revenue to be immediately derived from India were issued from time to time to the public, and various Acts of Parliament were passed for the appropriation of surpluses which never had any existence except in the imagination of the persons who framed them!

East India Company's shipping, 1808-1815.

The wars in which they had been engaged with the Mahrattas, and other powers in the East, although they had terminated in a vast accession of territory, did not add to the pecuniary resources of the Company, and were consequently disapproved of at home. During 1808

and 1809 they were particularly unfortunate, having lost in those two years four outward-bound and ten homeward-bound ships^[374], the cargoes of these vessels, with the advances made to the owners, including 60,729*l.*, the value of one of the ships which belonged to the Company amounting to no less than 1,048,077*l.* The calamities of the French war had also reached the Company, which suffered by the deficiency in the amount of their sales at home, partly in consequence of a reduced demand for Indian produce and manufactures, but chiefly on account of the convulsed state of Europe, and the interdiction of commercial intercourse with almost every country of the Continent to which previously their goods were exported.

The trade partially opened.

Happily in 1814 the trade of the Company, for so many years jealously guarded as a strict monopoly, was thrown entirely open to private competition, in so far as respected the Indian continent, although the exclusive trade to China, deemed by far the most lucrative at the time, was still preserved, in spite of the efforts of Manchester, Glasgow, and Bristol to open it to the general competition of all classes. Several sensible men in the House of Commons urged upon the Company the policy of throwing open the whole trade to the enterprise of private shipowners and merchants, arguing that the affairs of the Company would be benefited, rather than prejudiced, by such an arrangement; but the interests of private individuals connected with the Company predominated both with the government and with Parliament.

Jealousy of free-traders.

The consideration of this Bill occupied the entire session of 1813, and in its conditions^[375] may be traced the slow effects of the efforts of the free-traders to procure the total overthrow of the Company's privileges in respect of shipping. Such was the jealousy with which these were viewed, that Mr. Baring moved an amendment to one of the resolutions confining the return of vessels from India to the port of London, though holding out the idea that this restriction was to be limited to five years. The mercantile men in the House of Commons supported the amendment, upon the ground that such a restriction would operate to the better security of the revenue, and would offer a more convenient market for foreigners. One speaker, Mr. Thornton, laughed at the pretensions of the out-ports to share in the trade, which in the same breath he pronounced delusive as regarded the profits to be made in it.^[376]

Efforts of the free-traders at the out-ports.

But the people of the out-ports did not show any disposition to be deluded by these inconsistent arguments. They stood up stoutly for their own interests, and for the cause of free-trade. They considered themselves quite as well qualified as any of the East India directors to form a judgment how far a trade with the East could be carried on with profit by their own vessels.

Comparative cost of East India Company's ships and other vessels.

Indeed the fact was beyond all dispute that the cost of the ships fitted out by the East India Company was thirty, forty, and even fifty per cent. greater than those of private shipowners. It was credibly stated that the Company paid for their vessels 40*l.* per ton, while more suitable vessels could be built and equipped for 25*l.* per ton. The Company's ships were, it was admitted, fitted up very expensively for their passengers, but it was denied that this was necessary for the purpose of carrying goods and produce to or from India. On the other hand, the supporters of the East India Company's monopoly inquired, and with considerable reason, whether any ship could be built and equipped for 25*l.* per ton which would be as capable of contending against an enemy as were the ships of the Company, or if such private ships would be fit for the service of the country during war.^[377]

Opposition to the employment of the latter.

It is, however, interesting and amusing, if not instructive, to look back and reflect upon some of the arguments employed by the champions of monopoly in behalf of their own interests. They pretended that it was only out of regard to the shipowners of the out-ports, to protect them from the dangerous speculation into which they were about to precipitate themselves and their capital, that they desired all East India trading ships should by law be compelled to come to London. It was only to slip in between the rashness of adventurers and their ruin that they supported the measure; it was not to uphold monopoly; it was not to exclude the rest of the country from participating in the benefits of the Eastern trade; the opposition to the out-ports all sprang from pure benevolence, pure kindness and mercy! Such was the folly and blindness of the great merchants who supported the ultra claims of the Company. The shrewd men of the out-ports did not, however, appreciate such unexampled patriotism, and so

struggled for their privileges, such as they were. But the difficulty with which they obtained these small concessions indicates how deeply rooted the principles of monopoly had become during a period of two hundred years; nor was it till many years afterwards that any material progress was made in the commerce of England with the East.

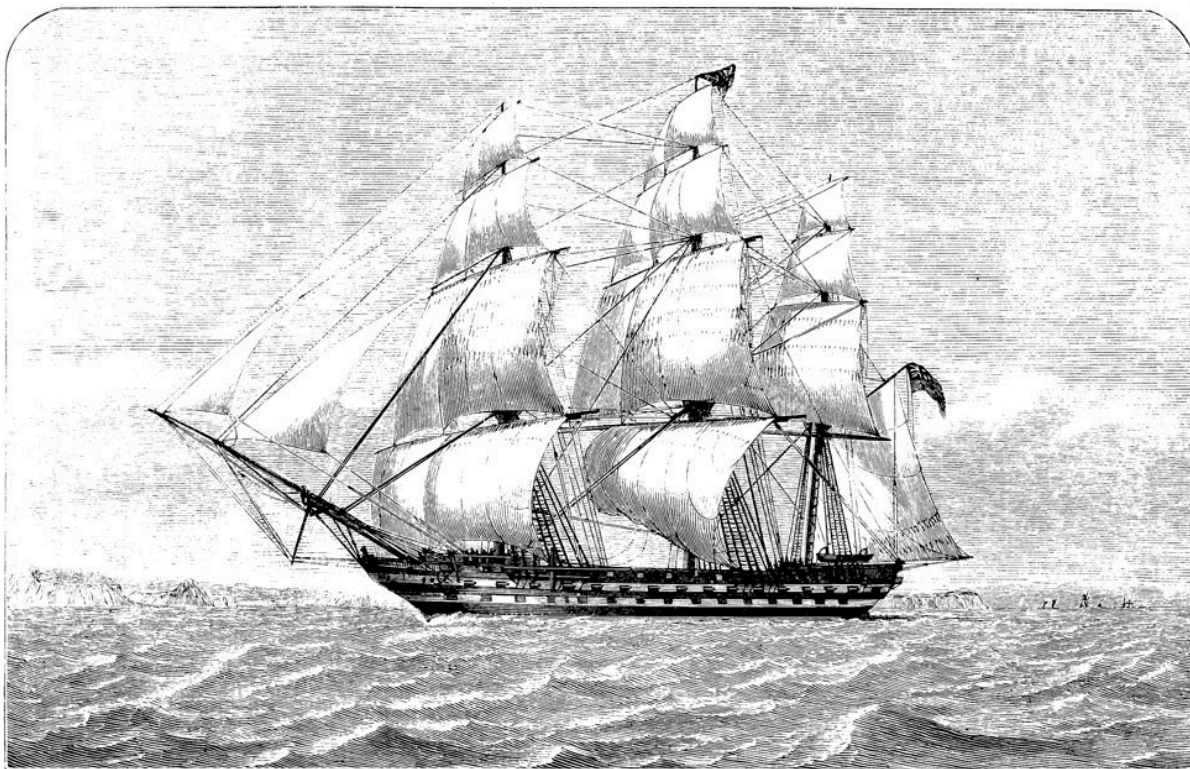
The number of ships employed by the Company varied now quite as much as in former years. In the “season” of 1809-10 they despatched to their different stations in Bengal, Madras, Bombay, China, Ceylon, and Penang forty-seven ships, measuring thirty-two thousand five hundred tons; and in the season of 1819-20 twenty-three vessels, measuring twenty-six thousand two hundred tons, besides twenty-one vessels which they had chartered, of ten thousand nine hundred and forty-eight tons; whereas, in 1829-30 they only despatched twenty ships belonging to or permanently engaged by the Company, and twelve which they had chartered. [\[378\]](#)

Earl of Balcarras.

Her crew.

Actions fought by
the ships of the
Company.

On the following page we furnish an illustration of another of the largest and finest vessels belonging to the Company. This ship, the *Earl of Balcarras*, built in 1815, registered one thousand four hundred and seventeen tons, and was manned by a crew of one hundred and thirty men, consisting of the commander, six mates, a surgeon and his assistant, six midshipmen, purser, boatswain, gunner, carpenter, master-at-arms, armourer, butcher, baker, poulterer, caulker, cooper, two stewards, two cooks, eight boatswains, gunner’s, carpenter’s, caulker’s, and cooper’s mates, six quartermasters, one sail-maker, seven servants appropriated to the commander and leading officers, and seventy-eight seamen. The crews of ships of from eight hundred to thirteen hundred tons register varied from one hundred and two to one hundred and thirty men, or nearly four times the number required for merchant sailing-vessels of similar size of the present day. But the vessels of the East India Company combined many of the requisites of ships of war, and gained numberless laurels in many a gallant and hard-fought action. [\[379\]](#)



EAST INDIA COMPANY'S SHIP 'EARL OF BALCARRAS.'

Conditions of
entering the service.

Uniforms.

Five supernumeraries beyond the crew were allowed to each ship, two of whom had the privilege of appearing on the quarter-deck. Penalties were inflicted for taking on board persons without the permission in writing of the Company's agents, varying from 20*l.* for a black servant, up to 500*l.* for a European; and bonds had to be given by all passengers bringing native servants from India to bear their expense while in England, and the cost of their return to that country. Every commander in the Company's service was required to be at least twenty-five years of age, and to have performed, before receiving his appointment as such, one voyage in the regular service of the Company as chief or second officer, or to have commanded a ship in the extra service. Chief mates were required to be twenty-three years of age or upwards, and to have made a voyage as second or third mate in the service to and from India or China; second mates must also have performed a similar voyage, and were not eligible unless they were twenty-two years of age. Third mates were required to be twenty-one, and to have made two voyages as midshipmen or otherwise in the Company's service, whilst the fourth mate must have reached the age of

twenty years, and been a voyage to or from India and China in a Company's ship, or in that of any other service, of which he had to produce satisfactory certificates. Their uniform, in the case of a commander, consisted, when in full dress, of a blue coat, black velvet lappels, cuffs and collar, with a bright gold embroidery "as little expensive as may be;" waistcoat and breeches of deep buff; the buttons were of yellow-gilt metal, with the Company's crest; cocked-hats, side-arms, "to be worn under the coat," and black stocks or neckcloths; while the undress consisted of blue coat with lappels, black collar and cuffs, waistcoat and breeches deep-buff, and buttons similar to the full-dress suit.

Discipline.

Somewhat similar uniforms, though of a less ornamental character, and without swords, were worn by the chief, second, third, and fourth officers, but with the distinguishing mark of one, two, three or four small buttons, respectively, on each cuff of their coats. To preserve the "utmost uniformity" in the dress, so far as regarded the buff coat and the gilt buttons, patterns of these were kept for view at the shipping offices, and at the Jerusalem Coffee House, for the guidance of the masters and mates of the extra ships engaged by the Company. All officers in both divisions of the service were strictly enjoined^[380] "not, on any account, to appear in boots, or black breeches and stockings;" and to be in full-dress uniform when attending the Court of Directors "on any occasion whatever." Commanders were especially required^[381] "to keep up the worship of Almighty God" on board their ships every Sunday when circumstances admitted, and to see that the log-book contained the reasons for any omission, under a penalty of two guineas for every omission of mentioning the performance of divine service or of assigning satisfactory reasons for the non-performance thereof.

Promotion.

With regard to promotions, the Company in their own ships adhered to the strict rule of seniority, always supposing good character, conduct, and abilities; and their promotions were made from one ship to another as vacancies occurred.^[382] Commanders were appointed to ships before they were launched, so that they might superintend their equipment and outfit for sea. The first appointments of midshipmen to the ships of the Company were made by the members of the Court of Directors in succession, according to seniority, so that every member might have one nomination before any

other member had a second; and no youth was eligible as a midshipman under thirteen or over eighteen years of age, unless he had been one or two years at sea, when the admission in the latter case might be extended to the age of twenty. Assistant surgeons were also nominated by the members of the Court, the chairman having the first nomination, rising by seniority to surgeons, if their abilities and conduct were in all respects satisfactory. The appointment of pursers was left to the commander, subject to the approval of the Committee of Shipping. When vacancies of any kind amongst the superior grades of officers occurred abroad, they were filled up temporarily by the Indian government, the Select Committee at Canton, or by the commander of the ship in which they occurred. But the command of a ship was not allowed to be given to an officer who was not competent, by the rules of the service, for the charge, unless the vacancy could not be otherwise filled, in accordance with these rules, at the place where the vacancy happened. ^[383]

Pay and perquisites.

In the [Appendix, No. 12](#), will be found the scale of wages paid in money to the officers and crew of a ship of eight hundred tons in the service of the Company, towards the close of the last and during the early part of this century; but 10*l.* per month to the commander, and 5*l.* per month to the chief mate, very imperfectly represent their remuneration. So many were their privileges, and so numerous their perquisites, that during five India or China voyages a captain of one of the Company's ships ought to have realised sufficient capital to be independent for the remainder of his life. Under the head of "Indulgences," the Court of Directors, "desiring to give all due and fitting encouragement to the commanders and officers of ships employed in their service," ^[384] allowed them to participate in the Company's exclusive trade by granting to them a certain amount of tonnage space outwards and homewards in their ships, wherein they might embark, on their own account, free of freight, any goods or manufactures they pleased, except "woollens, camlets, and warlike stores," which goods the Company thought proper to reserve for their exclusive trade. They had likewise, in proportion to their rank, the privilege of exporting bullion to a specified extent. Homewards they could import any articles they pleased, except tea, China-ware, raw silk, or nankeen cloth from India; nor were they allowed to import from China raw silk, musk, camphor, arrack, arsenic, or other

poisonous drugs. The quantity of tea allowed to be imported from China and Bencoolen was limited to 9,336 lbs. for the commander, 1,228 lbs. for the first mate, and 4,668 lbs. for the other mates, and the boatswain, gunner, and carpenter.

Abuse of privileges.

In each ship ninety-seven tons of space was also appropriated to the commander and officers, including those of a subordinate class, such as the quartermasters, stewards, cooks, carpenter, boatswain, gunner, caulker, armourer, and sail-maker; but the commander had the lion's share, as his proportion of the whole amounted to no less than fifty-six and a half tons. They had besides the privilege of importing in similar proportions China-ware on their own account, provided it was brought as a flooring to the teas, and did not exceed from twenty to forty tons, according to the size of the ship. The commanders likewise received the passage-money of all passengers, except troops, less the cost of their provisions and wine. They, with the officers, were further allowed to bring home as much surplus tonnage as their ships could stow with safety and convenience, not exceeding thirty tons in each vessel, provided such goods were stowed in places not allotted to the Company's cargo, or had not been tendered to them by the Company's agents in India or China, or in the event of the ship not bringing home her expected quantity of goods, provided they produced satisfactory proof to the Committee of Private Trade that such deficiency was not occasioned by any default or neglect on their part. The importation of dunnage^[385] appears also to have been a perquisite or privilege allowed to the commanders and officers; but this seems to have been abused, as no doubt many other privileges were, for we find that the Court resolved, "that as large quantities of rattans, shanghees, canes, bamboos, sapan, or other articles have been brought home in the Company's ships, under the denomination of dunnage, far beyond what is necessary for the protection of the cargo and stores, occupying tonnage to the exclusion of goods, or cumbering the ship, the Court have resolved that unless what is brought home of those articles appears absolutely and *bonâ fide* necessary for and used as dunnage, any exceedings of such requisite quantity shall be charged against the tonnage of the commanders and officers."^[386]

When we take these various privileges and perquisites into consideration, the *direct* remuneration to the commander of one of the Company's ships,

Direct remuneration
of commanders.

inclusive of his monthly pay must have averaged from 3,000*l.* to 5,000*l.* each voyage;^[387] but considering the various other privileges and “indulgences” granted to him, and the opportunities he had for trading on his own account in the export and import of goods and produce at a time when the fabulously valuable commerce of India was an exclusive monopoly in the hands of the Company, we need have no hesitation in estimating the value in many instances on each voyage of a commander’s appointment at from 8,000*l.* to 10,000*l.*, or perhaps a great deal more if he was a shrewd man of business, and had sufficient capital to fill the space allotted to him as well as the “dunnage” corners, and “places not allotted to the Company’s cargo,” or not appropriated by their agents, with goods and produce of their own.

Provisions and
extra allowances.

Besides an ample supply of provisions to each ship, the commander had almost every luxury he could desire provided at the expense of the Company.^[388] He was also allowed to import two pipes of Madeira wine,^[389] which were not reckoned as part of his allowance. The first mate, besides his proportions of freight and provisions, had as “indulgences” on each voyage twenty-four dozen of wine or beer, two firkins of butter, one hundredweight of cheese, one hundredweight of grocery, and four quarter cases of pickles. The second the same as the chief, except that his allowance of wine or beer was limited to twenty dozen; and the other officers in somewhat similar proportions. So that their appointments, if not so lucrative as that of the commanders, must have been very desirable and comfortable.

If such were the advantages of the officers in the maritime service of the Company, what must have been the gains of its civil servants in India, who appear not to have been limited or controlled to the same extent in their perquisites or trading privileges. No wonder that the Company, even with its vast monopoly, found itself frequently in difficulties, and obliged to seek, especially in the earlier portion of its career, the assistance of government. Indeed instances sometimes occurred when the commanders and officers, not having filled their allotted space with produce of their own, received for it from China not less than 50*l.* per ton as freight to London; and in one instance within our own knowledge, the commander of one of the ships employed on the “double voyage”—that is, from London to India, thence to China,^[390] and thence back to London, where he had a large

interest in the freight on cotton or other produce conveyed from India to China—realised no less than 30,000*l*.

Illicit trade
denounced by the
Court,

But notwithstanding these numerous privileges, the Court of Directors having frequently received information of an illicit trade carried on by too many of the officers and commanders of their ships, at last resolved, with the view of putting an end to practices “so detrimental to the revenue, the Company, and the fair trader,” to invariably dismiss from their service any one found guilty of such practices. Indeed, in the hope of detecting the delinquents, they went so far as to publish advertisements, wherein they state that “having received information that great quantities of woollens, camblets, and warlike stores have been illicitly imported; also great quantities of tea, muslins, China-ware, diamonds, and other merchandise have been imported in their ships and smuggled on shore,” they “offer a reward to any person who shall make a discovery of such offence of one-half of what the Company shall recover and receive over and above all other rewards the parties are entitled to by law.”^[391]

and measures
adopted to discover
the delinquents.

But these illicit practices appear at one time to have been carried on not merely in London and at the ports to which the ships of the Company traded in India and China, but at places in England, Scotland, and Ireland their ships had no business to be; for the Court of Directors passed a standing order wherein it was declared that within six weeks of the clearance of the cargoes of the homeward-bound ships, the commander and officers were required to attend a joint committee of private trade and shipping, to whom it was referred to make strict inquiry into the reasons of any deviations made on the passage to London, or during any portion of the voyage, and the committee were enjoined with all convenient speed to report their opinion to the Court. The Directors further “resolved unanimously” that, as these illicit practices were shown to have occurred, and were “frequently carried on” at foreign ports, as well as at out-ports in England, Ireland, and Scotland, to which the ships proceeded “contrary to the orders and instructions given to the commanders,” or by “means of vessels which meet the Company’s ships at sea, and there deliver goods to, and receive goods from them,” stringent measures should be adopted to detect the delinquents.^[392] It was consequently further ordered that the clerk

to the Committee of Private Trade should within four weeks of the arrival of each ship collect from her journals, and from letters and other means of information brought before him, an account of all the ship's proceedings "to or towards any port or place, both outward and homeward, without or contrary to the Company's orders or instructions, and of all the ship's deviations from, or loitering in, the course of her voyage in the English Channel or elsewhere," and report the same in writing to the chairman or deputy chairman, and also to the Committees of Private Trade and Shipping. If satisfactory accounts were not given for these deviations, the solicitor to the Court was instructed to file a bill in the Court of Exchequer against the commander of the ship or other persons implicated.

Connivance of the
officers of Customs.

But though deviations for any such purposes must have been difficult to trace, as so many excuses could be brought forward in the shape of contrary winds, stress of weather, sickness, loss of spars and sails, or the necessity of a fresh supply of water and provisions for the crew and passengers, the Court of Directors appear to have done everything in their power to discover the delinquents by still further resolving, that on the arrival of the Company's ships in the River Thames the clerk of the Committee of Private Trade was forthwith to give notice thereof to the Master Attendant or his assistant, or if they were otherwise previously employed, to the Surveyor of Shipping or his assistant, to proceed at once on board of the ship, and before any goods were delivered to carefully examine the state and condition of her hold, and of every part of the lower decks, and report to the Committee of Private Trade what vacant space, if any, remained therein which was fit and proper for the stowage of goods, and also whether any packages appeared to have been removed or displaced during the homeward-bound passage. When any vacant space was discovered which could not be satisfactorily accounted for, the commander was fined in the sum of 100*l.* for every sixty cubical feet of such vacant space. But these apparently stringent regulations were somehow or other too frequently of no avail, especially in cases where the illicit practices were effected by the connivance of the officers of Customs, or in various other ways, more easily understood than explained, so that convictions were too often rendered impossible or impracticable. And whenever these were made and actions were raised, the "compositions of such suits, very much to the prejudice of the Company," were so frequent that the Court had to request the Commissioners of his Majesty's Customs

“to be pleased to give an account to its solicitor of all suits which were pending,” and from time to time “of all suits that shall hereafter be brought against any of the commanders and officers of the Company’s ships for practices of smuggling.”^[393]

Considering the very high remuneration of the Company’s commanders and officers, and the very liberal manner in which they were treated, we should have thought that no one among them would have been guilty of illegal practices, especially when they were found to be highly prejudicial to the interests of employers at whose hands they were so handsomely treated. But such, we fear, must have been the case, towards the close of the last century, and that to a large extent, or the Court would not have deemed it necessary to issue such stringent regulations for their suppression. Happily the class of men, and the high character of the families to which, as a rule, they belonged, who entered the service in later years, combined with the rigorous enforcement of the Company’s regulations, brought about a different state of things, and put an end to a system which ought never to have prevailed in the best paid maritime service in the world: and did we not feel bound to record such instances of wrong and ingratitude, as these official documents too clearly reveal, we would gladly omit altogether the notice of acts which reflect great discredit on a class of men otherwise deserving our respect and our gratitude for the invaluable services they, on more than one occasion, rendered to their country.

Pensions, and their conditions.

But the liberality of the Company was not confined to the most ample remuneration to their commanders and officers while in active service. It extended to them in their retirement, and provided for those of their widows and children who required its aid. In 1800 the Court of Directors^[394] resolved that every commander, officer, seaman, or other person who had served in any of the Company’s ships, or any of its freighted vessels, for eight years, and who had regularly contributed to what was known as the “Poplar Fund,”^[395] should be entitled to a pension, subject to the following conditions: that is to say, where a commander was not worth 3,000*l.*, or did not possess a fixed income of at least 150*l.* per annum, he became entitled to a pension of 100*l.*; and in cases where the chief or second mate had not 2,000*l.*, nor a clear income of 100*l.*, he received a pension of 60*l.* per annum. The other officers, down to the midshipmen, were also allowed pensions of from 30*l.*

to 18*l.* per annum if they did not possess a certain fixed income, or were not worth 600*l.* Commanders' widows who stood in need of aid received 80*l.* per annum, and 16*l.* for each child under five years of age; and their orphans were each allowed 33*l.* 6*s.* 8*d.* per annum. In these allowances were included the widows, children, and orphans of all mates, pursers, surgeons, and midshipmen who had served in the Company's own or chartered ships, for the period of eight years; or who had been killed, or maimed, or wounded in the service, so as to be rendered incapable of further service at sea.

Internal economy of
the ships.

Watches and
Duties.

The internal economy and discipline on board of the Company's ships were much more perfect than in any other merchant vessels of the period. The crew or seamen of each were divided into two watches, starboard and larboard; the officers into three watches. Each watch of the former had, during the night, four hours' rest below, and four hours' duty on deck. At half-past six A.M. the watch on deck commenced to wash and clean decks; at half-past seven the hammocks were piped up, and stowed in the hammock nettings round the waist by the quartermasters. At eight o'clock all hands breakfasted, after which they commenced the ordinary duties of the day. These consisted, when the men were not required to set, shorten, or trim sails, of work of the most multifarious description, such as setting up rigging, shifting or repairing sails, splicing ropes, making spun yarn, weaving mats, painting, tarring, greasing masts, and so forth. Twice every week, Wednesdays and Saturdays, they cleaned and holy-stoned^[396] the 'tween-decks, in the fore part of which they slept and had their food, the whole crew being divided into messes of eight men each, who had a space allotted to them between the guns, where their mess utensils were arranged. When these cleaning and scouring operations were finished, the 'tween-decks were carefully inspected by the commander and surgeon, to see that everything was clean and in order, and that all mess kids, brass pots, and kettles, tin pannikins, and other utensils were properly scoured and polished.

On Sunday no work was allowed to be performed except what was urgent and necessary; and on the morning of that day the crew were mustered and inspected before assembling at prayers, which every person on board was expected to attend in his best attire. Dinner was served at noon; after that

the men, on week-days, resumed their work until the “*dog watches*,” which commenced at four P.M. These, no doubt, derived their name from the fact that they were (according to Theodore Hook) *cur-tailed*, that is, lasted for only two, instead of four hours each watch, viz., from four to six, and from six to eight, when the crew, instead of going below to rest, usually employed themselves in sorting the contents of their sea-chests, or in making or repairing their clothes, and frequently in games or other amusements, which every good commander encouraged. On Saturdays, during these hours, if the weather permitted, they had their dance or songs and music, drinking health and wealth, long life and happiness to their “wives and sweethearts.” In harbour the crews of the Company’s ships performed, without the assistance, as now, of the natives, all the work on board, such as discharging, loading, and stowing cargo, as well as stripping and refitting the rigging of their ships, and keeping the boats in order. In China they rowed guard, on Sundays, among the ships in harbour. One day every week was allotted to washing their clothes; and once every month they scrubbed their hammocks. These were known as “washing” days.

Courts-martial.

Nor did their duties end here. The Company’s ships were ships of war, as will be seen by the many gallant actions they fought, as well as merchantmen. Each of them mounted from twelve to twenty-six guns, chiefly eighteen-pounders, and the men were drilled to gun-exercise with almost as much care as the gunners of the royal navy. They had likewise to go through a regular course of musket, cutlass, and other small-arms drill, in which they were expected to be thoroughly efficient, as also in the art of handling the boarding-pike, more especially for the purpose of defence. Courts-martial were held on board, as in ships of war, the members of which were composed of the commander and the four senior or sworn officers, the fourth or junior mate giving his opinion of what the verdict ought to be before any of the other members. And when punishments were inflicted, which was too frequently the case for the most trifling offences, the lash from the brawny arm of a boatswain’s mate over the bare back and shoulders of the delinquent was much more severely felt than would have been the lash of a drummer’s mate. Three dozen of such lashes was no uncommon punishment.

Change in the
policy of the East

The renewal of the Company’s charter in 1814, until 1831, though granted by Parliament, was, as we have

India Company.

seen, so stoutly opposed by the representatives in Parliament of the out-ports and the great manufacturing districts, that various concessions were offered to the growing intelligence of the people and to their increasing wants. But the granting of licences and the extension of conditional privileges did not satisfy the demands of a people who were beginning to ask their rulers the unanswerable question why they should not be allowed to purchase what they required in the cheapest markets; and who saw that though the territory of the Company had increased to an enormous extent, its commerce, considering the extent of the land and the richness of the soil now in the Company's possession, was altogether insignificant; in a word, that territorial aggrandisement had now become the *Alpha* and *Omega* of the Company's policy.

Results of free trade
with India,

Events thoroughly demonstrated the force and truth of these impressions. In the face of many difficulties, private traders, whenever they obtained a footing in the trade of the East, were certain immediately afterwards to secure an ascendancy over the Company in its trading operations, and in a very short time trebled the trade of England with the East. Such in this case, as in numerous other instances, are the effects of individual energy, even when curtailed and contracted as in the present instance, over monopoly, however influential and powerful. How indelibly marked are now the footprints of free-trade in the pages of the commercial history of the East Indies! In 1814, when the close monopoly of the Company was brought to an end, the value of exports from the United Kingdom to British India amounted to 1,870,690*l.*; in 1820, after the trade had been partially opened to individual energy, it reached 3,037,911*l.*; in 1830, when still somewhat fettered, it was 4,087,311*l.* In 1840 the exports amounted to 5,212,839*l.*; and in 1850 to 7,242,194*l.* In 1854 the value of the exports and imports was 20,293,572*l.*; in 1860 it had reached 32,791,195*l.*; and in 1870 it amounted to no less than 45,183,912*l.* [\[397\]](#)

and of the
Company's trading
operations.

It is very questionable if the East India Company, even at the period of its closest monopoly, or, indeed, during any portion of its career, ever realised much profit by its *commercial* operations. Many of their employés were enabled to amass very considerable fortunes, but the shareholders were paid their dividends from other sources of gain than commerce: sources it is not

our province to explore; and perhaps, for the credit of England, it would be better if a veil could be drawn over many of the acts of the Company and its servants. Nor were the Directors, whatever they may have been as individuals, competent, as a body, to conduct a lucrative commerce at distances so remote. “It was not in the nature of things,” remarks Mr. McCulloch,^[398] “that the Company’s purchases could be fairly made; the natives could not deal with their servants as they would have dealt with private individuals, and it would be absurd to suppose that agents authorized to buy on account of government, and to draw on the public treasury for the means of payment, should generally evince the prudence and discretion of individuals directly responsible in their own private fortunes for their transactions. The interference of such persons would, under any circumstances, have rendered the East Indian trade peculiarly hazardous. But their influence in this respect was materially aggravated by the irregularity of their appearances. No individual not belonging to the Court of Directors could foresee whether the Company’s agents would be in the market at all, or, if there, to what extent they would either purchase or sell. So capricious were their proceedings, that in some years they laid out 700,000*l.* on indigo, while in others they did not lay out a single shilling, and so with other things. A fluctuating demand of this sort necessarily occasioned great and sudden variations of price, and was injurious alike to the producers and the private merchants.”

China trade thrown
open, 1832-1834.

Indeed when, in 1832, the renewal of the Company’s charter came to be again discussed in Parliament, the Directors had no valid reasons to offer against the entire opening of their trade, and had evidently no longer any desire, especially in face of the increased power of the free-traders, to resist the demands which were made to allow private shipowners to trade to all parts of the East, including China, on the same conditions, in all respects, as the vessels belonging to or chartered by the Company: the owners, therefore, finding it impossible to compete, with any prospect of success, against individual energy, unless protected, sold their ships, and from that time the Company ceased to be traders.

Company
abolished, 1858.

In the [Appendix](#)^[399] will be found an account of how the vessels belonging to the Company were disposed of, the names of their purchasers, and the prices realised, which

are small indeed compared with what they must have cost.^[400] From April 1834, when the Company's trade with China ceased, its functions have been wholly political, and the Directors, though retaining their patronage in the civil and military services, became little more than a council to advise and assist the president of the Board of Control. In 1858 they were deprived by Parliament of all their power and privileges, and ceased to exist as a governing body, the whole of the British dominion in India being then placed under a Secretary of State in Council for India, and its military and civil services merged with those of the United Kingdom.

Retiring allowance
to commanders and
officers.

When the Company's commercial operations were brought to a close the commanders and officers of their "maritime service"^[401] memorialised the Court for compensation for loss of employment, and requested to be placed on a footing somewhat equivalent to what the officers and servants on their own ships would have been entitled to claim by law or usage, had they been discharged or otherwise deprived of employment. This memorial, which will be found in the [Appendix](#), contains a good deal of information connected with the service worthy of perusal. Though drawn up in the form of a petition, it reads more like a demand, the memorialists resting their claims upon certain words in their agreements for servitude, and upon one of the sections of an Act of Parliament.^[402]

Compensations and
increased pensions
granted.

Although opposed to the demand, and furnishing very valid reasons for their opposition, the Directors,^[403] nevertheless, after reference to a meeting of shareholders, and to Parliament, "being anxious to extend the measure of relief as widely as possible," granted compensation to all commanders and officers who had been actually employed in the "maritime service" within the period of five years antecedent to the 22nd of April, 1834, upon their declaration that it had been their intention to continue to follow their profession in the maritime service of the Company. This compensation amounted to a money payment of 1,500*l.* to each commander, 1,000*l.* to a master, and sums ranging from 600*l.* to 150*l.* to the chief mate, down to the fourth mate and purser. Besides these payments, they gave by way of further compensation to each commander, upon their declaration as to the number of voyages which they would have performed had the service continued, the sum of 4,000*l.* for three unexpired voyages,

3,000*l.* for two voyages, and for one voyage of which they had been deprived, 2,000*l.* Pensions^[404] were likewise granted by the Company on a graduated scale to commanders and officers who had served ten years in the service, not for sickness or incapacity, but simply on the ground, for which their own attestation was sufficient, that they were unable to obtain employment, and that any income they possessed should go in abatement of such pension.

The commanders of the ships belonging to the Company (their number was small compared with those on the hired or “maritime service”) who had five voyages to perform were each paid, by way of compensation, a sum of 5,000*l.*; four voyages, 4,500*l.*; three voyages, 4,000*l.*; two voyages, 3,000*l.*, and one voyage, 2,000*l.*; while the officers of these ships received compensation according to the situations they filled.^[405] Nor were they less liberally dealt with in the way of pensions when the commercial affairs of the Company were brought to a close. Each commodore then received 400*l.* per annum; each commander 300*l.*; and each officer, from the chief down to the warrant officer, was granted a pension for life, ranging from 200*l.* to 30*l.* per annum. Widows were allowed two-thirds of their husbands’ pensions during their widowhood. Nor were the children overlooked, for they too received pensions according to their wants.

We should have been at a loss to understand the cause of the very liberal conduct of the East India Company to its servants, had the Directors themselves not derived emoluments far beyond what they were entitled to receive by the conditions on which they had agreed to serve, and our readers also might have been puzzled to understand why they displayed such extraordinary liberality. No doubt some qualms of conscience led them to feel that they ought to pluck the beams from their own eyes before scrutinising too narrowly the motes in those of their servants.

Remuneration of
the Directors.

The fixed and acknowledged remuneration to the Directors was 300*l.* per annum; but the general opinion of the day seems to have been (and this opinion was frequently expressed) that the worth of each directorship amounted to no less than 10,000*l.* per annum, in one form or another; and certainly the avidity with which these directorships were sought after, when a vacancy occurred, and the large sums of money expended in obtaining the appointment, too clearly show that there were valid reasons for the popular

rumour. Candidates, who were nearly all men otherwise in the enjoyment of lucrative employment as bankers or merchants, or who had filled high appointments in the civil or military service of the Company, would not have sent “carriages and four” to remote parts of the kingdom for voters, each of whom was limited to four votes, to secure an appointment to which they were expected to devote some portion at least of their time, and this, too, for the paltry remuneration of 300*l.* per annum. Indeed it was not in the nature of things that they should do so.

Their patronage.

The reason, however, may be explained by the fact that, associated with the position of a Director, there was a large amount of patronage under his own immediate control, which he claimed by rotation. That this must have been of very considerable value, may be suspected from the fact that the successful candidate sometimes gave the whole of his first year’s patronage to the chairman of his election committee. The estimated value of these nominations we have no means of knowing, nor would it be possible to ascertain what other sources of gain were within the reach of those Directors who felt disposed to avail themselves of them. Among, however, the more common and direct appointments, all the cadetships were at their disposal, as were also assistant-surgeons, chaplains, solicitors, and pilots, who were constantly required to fill up vacancies, or meet the ever-increasing demands of the service. Governors and members of the Indian Council had likewise to be supplied, and their places filled as vacancies occurred. Then there were writerships, worth from 4,000*l.* to 6,000*l.* per annum, at the disposal of the Court; while there was a grand plum in the appointment of young gentlemen to the civil service of the Company in China, each of whom, if he lived, was certain to reach the office of “Tyepan,” known to be worth 20,000*l.* per annum. But the appointments to this special and highly-favoured service were exclusively in the gift of the chairman, who seems almost invariably to have bestowed them upon some member of his own family, or near relative, or upon the son of a Director who, no doubt, reciprocated so great a favour when he had the opportunity. These nominations, however, were considered so valuable, that, though the chairman had double patronage, he was expected not to exercise any portion of it during the remainder of the year when the nomination to the Tyepanship fell to his lot.

FOOTNOTES:

[359] The first Charter of Incorporation was dated 31st December, 1660.

[360] Macpherson's 'Commerce of India,' p. 81.

[361] Captain Meadows Taylor, in his 'Manual of the History of India,' Lond., 1871, has devoted his 5th book to a very clear, full, and condensed account of the East India Company and its doings from 1613 to 1784 (pp. 387-501).

[362]

	£
By this important instrument the Old Company, in addition to their subscription of	315,000
Agreed to purchase stock at par from the New Company to the amount of	673,500
Making their joint-stock	998,500
Being equivalent to the remaining New Company's stock	998,500
Which, with the stock of the separate traders	23,000
Constituted the total united capital of	2,000,000

See further details in 'Charters of East India Company from 1601,' etc. Lon., 4to., 1774.

[363] McCulloch's 'Commercial Dictionary,' p. 567.

[364] 'Report on the East India Company,' vol. iv.; Reports of Committees, House of Commons.

[365] It will be found at p. 264 of these reports, and occupies fourteen folio pages of closely-printed double columns. Those extracts from it which required "the attention of the commanders and officers in the maritime service" of the Company are given in [Appendix No. 8](#) of this volume.

[366] Pigs of iron cast for permanent ballast.

[367] Compensation due to the shipowner from the freighter for unduly delaying his vessel in port beyond the time specified in the charter-party or bill of lading.

[368] At a later period no less than 50*l.* per ton freight was on more than one occasion paid for the voyage, beyond an allowance for contingencies. From Hardy's 'Registry,' pp. 18, 20, and 22, at a court of Directors held on the 23rd September, 1796, the ship *Admiral Gardner*, of eight hundred and thirteen tons, commanded by "John Woolmore, Esq.," appears by the minutes to have been chartered on the following conditions:—

	£	s.	d.	
"Peace freight to China, or circuitously and to all parts of India alike, for six voyages certain.				per
	21	0	0	ton.
"Surplus, peace and war				per
	10	10	0	ton.

“For a variety of expenses arising from war, including the additional charges of insurance, beyond 8 guineas per cent., and the expenses of bounty and manning to be paid, at all events either on the ship’s arrival or in 18 months, whichever shall first happen. The difference of seamen’s wages beyond 26s. per month, and the charges of replacing seamen impressed into her Majesty’s service, maintenance and returning of Lascars, to be at the risk of the Company.”

per
18 10 0 ton.

Total freight and charges paid to the shipowner

£50 0 0

[369] Act of 24 Geo. III., s. 2, c. 29.

[370] Mr. Travers, the wholesale grocer in St. Swithin’s Lane, told Mr. Pitt that he found a bag of smuggled tea in his area every night: how it came there he could not tell; but he was sure he should find it there whilst the duty was so high. Mr. Pitt wisely took the hint, and reduced the duty.

[371] The rules and regulations established for the shipping of goods by the private trade will be found in Hardy’s ‘East India Registry,’ Appendix, pp. 58, 59.

[372] ‘Commercial Dictionary,’ p. 570.

[373] Papers published by the East India Company in 1813, Hardy, p. 84.

[374] In the [Appendix, No. 9](#), there will be found a list of the East India Company’s ships lost, burnt, taken, or otherwise destroyed, from 1700 to 1819, from Hardy’s ‘Registry.’

[375] The conditions respecting merchant shipping will be found specified in the clauses relating to goods (from 6 to 16, both inclusive) of the Bill.

[376] Parl. Debates, 16 June, 1813, Hansard, p. 685.

[377] Speech of Sir William Curtis, Hansard, p. 691.

[378] A list of the ships of the Company in 1820, with their tonnage, number of guns, men, and where built, will be found in the [Appendix, No. 10](#).

[379] See [Appendix, No. 11](#), for a condensed account of many of these actions.

[380] Company’s instructions, Hardy, p. 91.

[381] Company’s instructions, Hardy, p. 97.

[382] The strict rule of promotion by seniority only applied to the eight ships belonging to the East India Company. In the ships belonging to private individuals, which were chartered by the Company, for a specific number of voyages, the promotion of the officers depended very much upon their ability and good conduct, or the influence which could be brought to bear in their favour with the owners, by whom all such appointments and promotions were made; but the command of these ships was almost invariably sold to the highest bidder, competent to fill the situation, the price averaging about 3000*l*.

[383] Hardy, pp. 114-118.

[384] *Ibid.* p. 76.

[385] “Dunnage” is loose wood, horns, rattan, coir, etc., stowed among casks to prevent their moving, or under dry cargo to prevent the bilge water getting to it and spoiling it.

[386] Hardy, p. 80.

[387] In 1834, after the Company had been deprived of its trading privileges, and no longer required to maintain its maritime service, Captain Innes, of the chartered ship *Abercrombie Robinson*, memorialised the Company, in his own name and in that of other commanders, for “compensation for the loss of employment in consequence of the discontinuance of the Company’s trade.” He therein estimates his “emoluments and income accruing from his appointment as commander, upon an average of his last three voyages,” as follows:—

	£ s. d.
Eighteen months’ pay, at 10 <i>l.</i> per month	180 0 0
	£ s. d.
Fifty-six tons privilege, outward, at 4 <i>l.</i> per ton	224 0 0
From port to port, at 30 rupees per candy	336 0 0
Homeward, at 33 <i>l.</i> per ton	1,848 0 0
	2,408 0 0
Primage	100 0 0
Two-fifths tonnage, from port to port, 478 tons, at 30 rupees per candy	2,868 0 0
Less, charged by the Hon. Co., 2 <i>l.</i> per ton	956 0 0
	1,912 0 0
Passage-money, after allowing for the provisions and stores provided for the passengers	1,500 0 0
	6,100 0 0

Making 6,100*l.* per voyage for the last three voyages, “exclusive of the profits on investments.”

[388] See Victualling Bill, [Appendix, No. 13](#); Hardy, p. 81.

[389] Hardy’s “Registry,” p. 51.

[390] In the passage from Bombay to China, where the ships were chiefly laden with cotton, the commanders and officers, by a resolution of the Court of the 6th March, 1805, were allowed nearly two-fifths of the whole tonnage space of the ship’s capacity for their especial use and benefit, and free of all charge, on the very reasonable condition that “the Company shall not be subjected to any expense whatever for securing the Company’s cotton or otherwise.” In the event of the Company not requiring to ship any cotton or other goods on their own account on this intermediate voyage, the remaining three-fifths’ space in the ship’s hold, usually appropriated for their own use, was to be disposed of to the highest bidder, but the commander and officers were in all cases to have the

preference, with the very prudent and no doubt necessary precaution, that “they were to deliver their proposal at the same time with the other tenders, and were not to be allowed to amend their tenders after their proposals have been opened.” Similar privileges were granted to the commanders and officers employed in the intermediate trade between Bengal or Madras and China.—Regulations, East India Company. Hardy, pp. 132, 133.

[391] Hardy, pp. 119, 120.

[392] Ibid. pp. 121, 122.

[393] Standing orders of the East India Company, Hardy, p. 23.

[394] Minutes of Court of Directors of the East India Company, 8th April, 1800, Hardy, p. 126.

[395] As every officer in the service, and the greater portion of the crews, did contribute monthly towards this fund, these pensions were consequently not altogether gratuitous on the part of the Company.

[396] “Holy-stone” is the sandstone used for cleaning the decks. The name is originally derived either from tombstones taken from churchyards for the purpose, or from the fact that the sailors have to go on their knees to perform this labour (Admiral W. H. Smyth, p. 387).

[397] Returns furnished by the Board of Trade.

[398] ‘Commercial Dictionary,’ p. 571, edition of 1869.

[399] List of large ships belonging to or in the service of the East India Company in 1831, and how they were disposed of, [Appendix, No. 14](#).

[400] The rates of freight paid to the last vessels chartered by the Company in 1832-1833 ranged from 12*l.* 15*s.* to 14*l.* per ton to and from China, and only 7*l.* 12*s.* to 9*l.* 15*s.* to and from Bombay (Hardy, pp. 20-22); and although these rates were double what can now be obtained, they were unremunerative, considering the cost of construction of these vessels, their small capacity in proportion to their registered tonnage, and their large current expenses.

[401] Although the Company frequently engaged vessels for a single voyage, those employed in the regular service were invariably chartered for six consecutive voyages, the custom being for tenders to be issued, specifying the number of vessels required, their tonnage and equipment, and inviting their owners to make offers at so much per ton for six voyages certain (sufficient time being allowed for construction and outfit), so that nearly all the ships in the regular service of the Company were specially built for the purpose, shipowners, as a rule, naturally hesitating to invest a large capital on a particular description of vessel, unless her employment was secured by contract for a length of time sufficient to justify the expenditure.

[402] Memorial of Captain Probyn, etc., July 1834, [Appendix No. 15](#), p. 548.

[403] Minutes of Court of Directors, 5th August, 1834. Hardy, p. 29.

[404] The pensions voted by the Proprietors of the East India Company, and approved by the Directors, were as follows: Commander, 250*l.* per annum; chief to fourth mate, inclusive, from 160*l.* to 70*l.*; fifth, and sixth mates, 59*l.*; surgeons, 160*l.*; their assistants, 70*l.*; pursers, 100*l.*; midshipmen, 30*l.*, and boatswains, carpenters, and gunners, each 25*l.* per annum. Widows, one-half of their husbands’ pensions during their widowhood; children, the usual allowance. But these were reduced one-fifth by an order from the President of the India Board, 12th Nov., 1834.

[405] The two officers who stood first for promotion received each 2,400*l.*; the two second officers in a similar position were each paid 2,200*l.*; the third officers, 2,100*l.*; and the remaining two officers received 2,000*l.* each. The other mates were remunerated in sums of from 1,600*l.* to 150*l.*, whilst midshipmen who had made four voyages were paid 100*l.*, and those who had served two voyages,

75*l.* each. Carpenters, gunners, and boatswains who had served five years in the service received each from 100*l.* to 150*l.*

CHAPTER XIV.

Progress of shipping—*Thetis*, West Indiaman—A “Free-trader”—Internal economy—Provisioning and manning—Shipping the crew—Crimps and agents—Duties on departure of ship—Watches—Duties of the Master,—Who has control over navigation—Making and shortening sail—Tacking, etc.—Ordinary day’s work, how arranged—Right of the Master over the cabin—Authority and usages in the English, Dutch, and Prussian marine—Danish and Norwegian system—Duties of Chief Mate—His duties in port—Tacking “’bout ship”—Reefing topsails—Log-book—Mate successor in law to the Master—Mode of address to Chief and Second Mates—Duties of Second Mate—Ordinary day’s work—Care of spare rigging—Stores—Third Mate—His general duties—Carpenter—Sail-maker—Steward—Cook—Able seamen, their duties—Division of their labour—Duties of ordinary seamen—Boys or apprentices—Bells—Helm—“Tricks” at the helm—Relieving duty—Orders at the wheel—Repeating of orders at wheel—Conversation not allowed while on duty—Colliers.

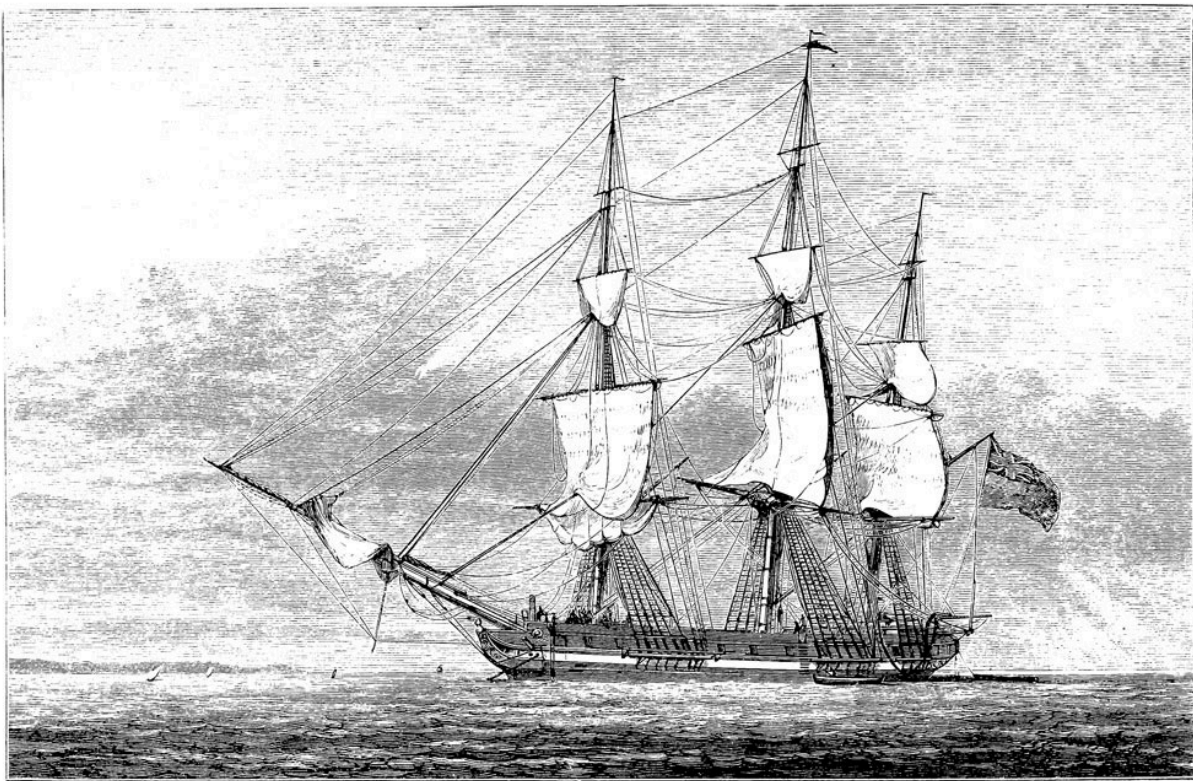
The close of the great European war, combined with the opening of the trade to the East Indies, and other causes of minor importance, produced various and somewhat important changes among the merchant vessels of all nations. The greatly extended field for maritime commerce, and the competition which arose, obliged the shipowners of different countries, among whom those of the United States, towards the close of the period to which we now refer, took the lead, to pay more attention than they had hitherto done to the combination of capacity with speed, and greater economy in the navigation of their vessels. Attention also began to be directed to the substitution, as far as practicable, of mechanical skill for manual labour. They saw that the ships of the East India Company, however magnificent, were not adapted to compete successfully or profitably in an unprotected trade. That of the British West Indies, which had ever been open to the free competition of British shipowners among themselves, had given a greater scope for improvement in these respects than the protected trade of the East; consequently in the trade with the West we find, at a comparatively early period of the present century, a class of vessels much better adapted for competition than any of the vessels in the service of the East India Company. An illustration of one of these, copied from Mr. Cooke’s interesting sketches, will be found on the [opposite page](#).

Thetis, West

Though the *Thetis* is somewhat modern, she is a fair representation of the type of vessels which had long

Indiaman.

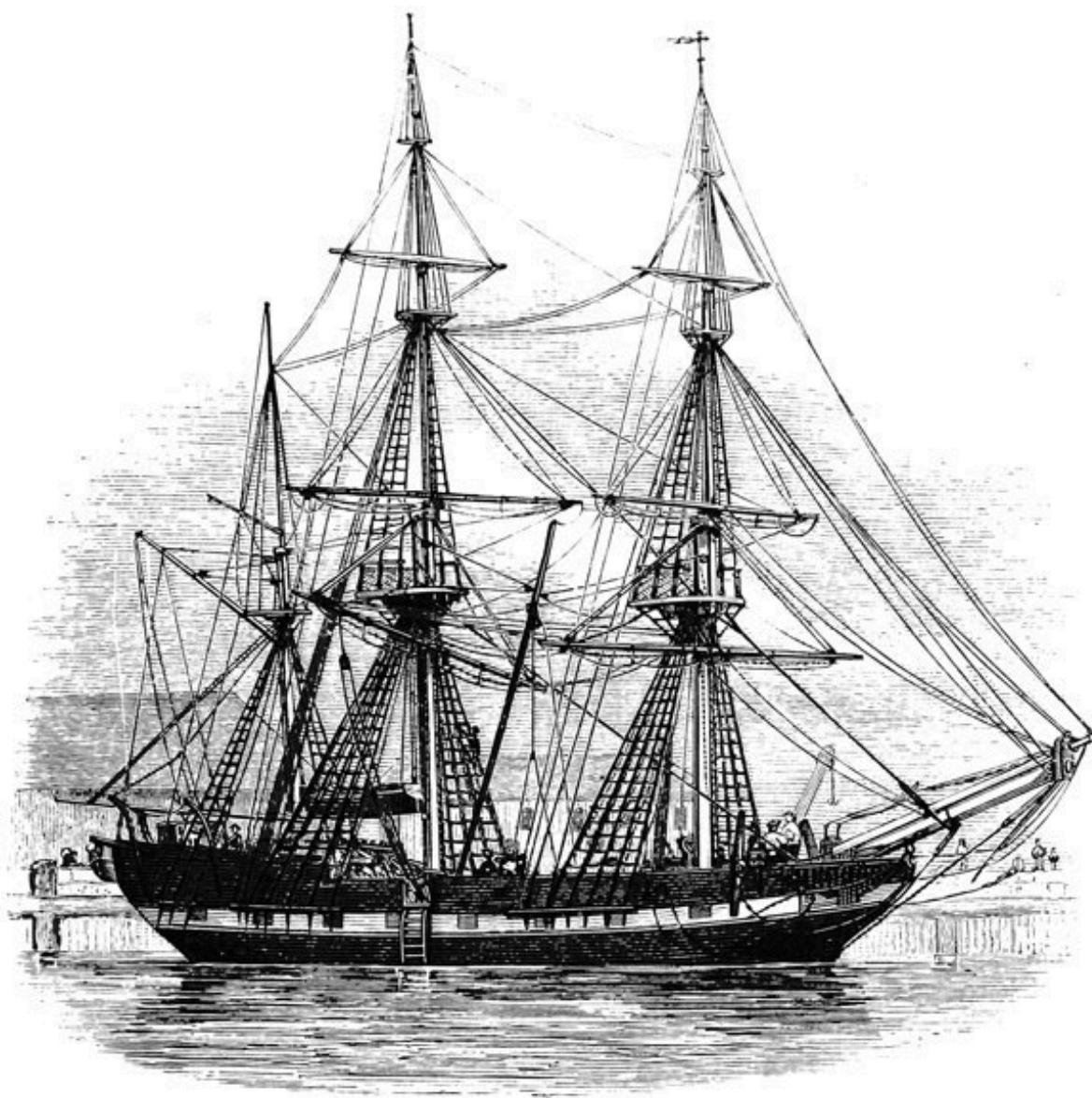
been employed by the enterprising merchants, more especially of Bristol and Liverpool, in their trade with the West Indies. Unlike the vessels in the service of the East India Company, her capacity for cargo was considerably in excess of her registered tonnage, and her complement of crew less than one-half in proportion to her tonnage. Nor were these vessels inferior to them, either in speed or other sea-going qualities, though they too were greatly surpassed by those of a later period, their owners as yet understanding but imperfectly the advantages derived by increasing the length of their vessels in proportion to the breadth.



THE 'THETIS,' WEST INDIAMAN.

Hitherto vessels, for instance, of twenty-five feet beam, seldom exceeded one hundred feet in length, keel and forerake, and although the Americans, in their once famous "Baltimore clippers," set the example of increasing the length to five, and even to six times the breadth of the beam, it was not until the English were thrown into competition with the shipowners of that nation, in every branch of their carrying trade, that they were induced, or rather obliged, to adopt, in this respect, the improved models of their enterprising transatlantic competitors.

After the trade to the East Indies had been thrown open, a number of vessels, ranging from three hundred and fifty to seven hundred tons register, were built. They were not, however, exclusively employed in the trade with the East, but were free to seek employment wherever they could obtain the most remunerative returns, and were to be found in all parts of the world in search of freight. An illustration of one of these vessels, known as Free-Traders, will be found on the [following page](#).^[406]



FREE-TRADE BARQUE.—E. W. COOKE, R.A.

Internal economy.

As sailing vessels of this description, in which we may include all classes, from the Indiaman to the collier, are

now in various branches of trade being fast superseded by steam, and by the great changes which the improvements of later years have created, we should ill perform the duty we have undertaken did we not, though at the risk of wearying our readers with detail, leave a record, however imperfect, of the internal economy of the ordinary merchant vessels of a generation now rapidly passing away, and attempt to furnish an account of the various duties and responsibilities of the master, officers, and seamen, as they existed prior to the passing of the Merchant Shipping Act. No special code then existed, either in Great Britain or the United States, for the maintenance of discipline, or the provisioning and treatment of the crews of trading vessels when beyond the jurisdiction of the Admiralty; but certain usages were, as a rule, recognised by the courts of justice. In the marine of the United States discipline was more stringent, and distinctions of rank more rigorously enforced than in that of England.

Provisioning and
manning.

But there was a great difference in different ports, among different owners, as to the part the master was to take in supplying and manning the vessel. In most cases the owner put on board all the stores, furnishing the master with directions, sometimes in writing, as to the manner in which he should dispense them, the directions being more or less liberal, according to the character of the owner. In other cases these details were left to the master's discretion, who generally gave the owner an inventory of all the stores and provisions he thought necessary for the use of the crew and the navigation of the ship.

Shipping the crew.

Crimps and agents.

In the engagement of the seamen various modes prevailed. In most cases the whole arrangement was left to shipping masters, who were paid so much a head for each man they engaged, and were responsible for their appearance on board at the time of sailing. The crews were generally assembled by them two or three days, sometimes only one day, before the ship sailed; neither the master nor owner, too frequently, knowing anything of the men before the vessel went to sea. Occasionally the seaman saw the ship before he joined her, but often not. In Liverpool, however, when the men were unable to obtain employment for themselves, they registered their names at an office opened for that purpose, whence the captain chose his crew. Moreover, it was no uncommon thing to see them taken to the ship's side in cartloads, in such a state of intoxication that they

were unable to walk on board. Riggers generally had charge of the vessel up to that time. In London the practice for owners of vessels going on voyages round the Cape of Good Hope or Cape Horn was to employ an agent, familiarly known as a “crimp,” who engaged the greater part of the crew. If ten or twenty men were wanted, perhaps double that number were brought on board, out of which the chief mate selected a sufficient company; the agent receiving a note for two months’ wages, a portion of which he had generally advanced previously to the seamen, either in cash or in slops, [\[407\]](#) and also 5s., his procuration fee. When the agents or crimps, who were too frequently of questionable character, saw that the seamen had signed the ship’s articles in due form, they paid them the balance of the advance, taking care that another fee, varying from 5s. to 20s., was deducted from the proceeds of the notes, and that they, or their substitutes, were on board in time for sailing. In some instances the master, and occasionally the owner, if he had himself been at sea, selected the men; but a shipping master was even then needed to see them on board, and generally to complete the business.

All respectable owners not only attended to the seaworthiness and proper equipment of the ship, but were wont, in person, when they had time, though too many of them had not, or did not allow themselves the requisite time, to inspect the forecabin, to see it properly cleaned, whitewashed, or painted, and furnished with every reasonable convenience for the crew. [\[408\]](#)

Duties on departure
of ship.

Everything being in readiness, the Custom-house and other regulations complied with, and the crew on board, the vessel was placed under charge of a pilot, the master having little else to do while the pilot was on board than to see everything in order, and that his commands were executed. When, however, the pilot left, the entire control and responsibility of the crew, ship, and cargo devolved upon the master. Soon after the pilot left, and when things were settled down, and in something like order, it was usual for the master, especially if the vessel was bound on a distant voyage, to call all hands aft, and briefly address them about the voyage upon which they had entered, and the respective duties they had to perform. After this the crew was divided into “watches,” in two equal parts.

In the generality of merchantmen there are but two watches—the larboard, being under the charge of the chief, and the starboard, of the second mate,

Watches.

the master himself not keeping watch, but coming and going at his discretion. The starboard watch is sometimes called the captain's, no doubt from the fact that in the early days of the merchant marine, when vessels were smaller, there was but one mate, and then the master stood his own watch, as he does at present in coasters, colliers, and similar craft. In dividing the crew into watches the master usually allows the officers to choose the men, one by one, alternately; but sometimes makes the division himself, after consultation with his officers. The men are chosen as equally as possible, with reference to their qualities as able seamen, ordinary seamen, or boys; but if the number is unequal, the larboard watch claims the odd "hand," since the chief mate does not go aloft, or do other duty on his watch, as the second mate does on his. The cook always musters with the larboard watch, and the steward with the starboard. If there is a carpenter, and the larboard watch is the larger of the two, he generally goes aloft when required with the starboard watch, otherwise with the larboard; and, as soon as the division is made, if the day's work is over, one watch is set, and the other sent below.

Among many customs prevailing at sea which are difficult to trace to their origin, we may notice that, on the first night of the outward passage, the starboard watch takes the first four hours on deck, and on the first night of the homeward passage the larboard does the same. The sailors explain this by the old phrase, that the master takes the ship out, and the mate takes her home. The dog watches, as already explained in the case of the ships of the East India Company, are the two reliefs which take place between four and eight o'clock, P.M., each of which being only two hours on deck instead of four. The intention of these watches is to change the turn of the night watch every twenty-four hours; so that the party watching from eight to twelve one night shall succeed on the following one from midnight till four in the morning.

Duties of the Master,

The master takes the bearing and distance of the last point of departure from the land; from that point the ship's reckoning begins, and is regularly entered in the log-book, which is kept by the chief mate, the master examining and correcting the reckoning every day. The master also attends to the chronometer, azimuth-compass, and other instruments on board, and takes

the altitude of the sun at mid-day, or the lunar observations, with the assistance of his officers. Every day, a few minutes before noon, if there is the least prospect of being able to get a sight of the sun, the master comes upon deck with his quadrant or sextant, and the mates usually follow his example. The second mate does not always perform this duty, but is ready to assist on Sundays, or when no other work requires his attention. As soon as the sun crosses the meridian "noon is made," by striking eight bells, and a new nautical day commences. The reckoning is then corrected by the observation, which fixes the latitude of the ship, under the master's superintendence. In taking the lunar observations to correct the longitude, as ascertained by the chronometer, the master is assisted by both his officers; in which case he measures the angle of the moon with the star or sun, the chief mate taking the altitude of the sun or star, and the second mate that of the moon.

In regulating the hours of duty, sleep, meals, etc., the master has absolute power; the usual times being nearly the same in all vessels. The hour for breakfast is usually seven bells in the morning (half-past seven), dinner at noon, and supper whenever the day's work is over, generally by six o'clock. If the voyage is of long duration, the crew are, as a rule, put upon an allowance of food as well as water, the dispensing of the stores and regulating of the allowance resting, of course, with the master, though the duty of opening the casks, weighing and measuring the contents falls upon the second mate. The chief mate enters in the log-book every barrel or cask of provisions that is broached. The steward takes charge of all the provisions for the use of the cabin, and keeps them in his pantry, over which he has the direct control. The average of allowance in merchant vessels was six pounds of bread per week, three quarts of water, and one pound and a half of beef, or one and a quarter of pork a day to each man. But from want of some fixed scale of allowances in the British service, great discontent frequently arose on the part of the crews, particularly on long voyages. In coasting vessels, where the work is hard and constant, the allowance of beef and bread was generally unlimited; but a large amount of suffering was too frequently endured by the seamen on long voyages from the paucity of provisions in store, especially in merchant vessels of small size, and in particular trades. In the timber trade the practice of carrying the water and wet provisions for the ship's company on deck frequently led to such serious consequences, that it became necessary to secure the preservation of

an adequate portion of them in some part of the vessel accessible in cases of peril, so as to prevent the dreadful scenes of hunger, misery, and lingering death to which so many seamen were and are exposed from the loss of water and provisions.

Who has control
over the navigation.

Making and
shortening sail.

The entire control of the navigation and working of the ship lies with the master. He gives the course and general directions to the officer of the watch, who enters upon a slate, at the end of his watch, the course made, and the number of knots each hour the ship has sailed, together with any other observations he may think worthy of record. The officer of the watch is at liberty to trim the yards, to make alterations in the upper sails, to take in and set royals, topgallant sails, etc.; but no important alterations can be made, such as reefing or furling the courses, or topsails, without the special order of the master, who in such cases always ought to be on deck and take the command in person. When on deck the weather-side of the quarter-deck belongs to him, and as soon as he appears the officer of the watch usually leaves it, and goes over to leeward, or forward, into the waist. If the alteration to be made is slight, the master usually tells the officer to take in or set such a sail, and leaves to him the particular orders as to the braces, sheets, etc. The principal manœuvres of the vessel, such as tacking, wearing, reefing topsails, getting under way, and coming to anchor, require all hands. In these cases the master ought himself to take the command, and to give his orders in person, standing upon the quarter-deck. The chief mate superintends the forward part of the vessel under the master, and the second mate assists in the waist, the crew being at their respective stations. The master, except in very small vessels, never goes aloft, nor performs any work with his hands, unless at his own discretion.

Tacking, etc.

In tacking and wearing, ^[409] he gives all the orders as to trimming the yards, etc., though the chief mate is expected to look out for the head yards. Such is also the case in getting under way, and in coming to anchor, the master taking the entire personal control of everything, the officers acting under him in their respective stations.

In the ordinary day's work, however, the state of things is somewhat different. Here the master does not superintend personally, but gives general

Ordinary day's
work, how
arranged.

instructions to the chief mate, whose duty it is to see to their execution. In order to understand this distinction, it is necessary to define the two great divisions of duty and labour on shipboard. One is the working and navigating of the vessel; that is, the keeping and ascertaining the ship's position on the ocean, directing her course, the making and taking in sail, trimming the yards to the wind, and the various nautical manœuvres and evolutions of a vessel. The other branch is the work done upon the hull and rigging to keep them in order, such as fitting, repairing, and tarring the rigging; all of which, together with the manufacture of "small stuffs," to be used on board, constitute a part of "the day's work" of the crew. As to the latter, the master usually confers with the chief mate upon the state of the vessel and rigging, and tells him, more or less in detail, what he wishes to have done. It then becomes the duty of that officer to see the work accomplished. If the master sees anything of which he disapproves, or has any preference in the modes of performing the work, he should convey his wishes to the officer, instead of giving his orders direct to the men. The Americans, as especially exhibited in every rank of their society, even where no rank is supposed to exist, complain that this considerate conduct is not sufficiently attended to in British merchant ships;^[410] and we concur in the opinion they have laid down, that a contrary course lessens the authority of the chief mate over the crew, and indirectly also the master's own moral influence. The same remarks apply to any other work doing upon the ship or rigging; such as bending or unbending sails, knotting, splicing, serving,^[411] etc., which constitute the day's job work of a vessel. If the chief officer is a competent man, the master in person is not expected to trouble himself with the details of any of these things; indeed, were he to do so to any extent, it would probably lead to unpleasantness and difficulty.

In the packet ships, either from Liverpool to New York, or in other important mail vessels, in which there were a considerable number of passengers, the master had still less to do with the day's work. The navigation and working of the ship, with proper attention to his passengers, being sufficient to occupy his entire thoughts.

Right of the Master
over the cabin.

The master has the entire control of the cabin, and usually lives in a state-room by himself. The chief mate dines with him in the cabin, and the second mate looks

out on deck while they are below, dining at the second table afterwards. In large packet-ships, however, the mates dine together, and the master looks out for the ship while they are at dinner, dining with his passengers at a later hour.

Authority and
usages in the
English,

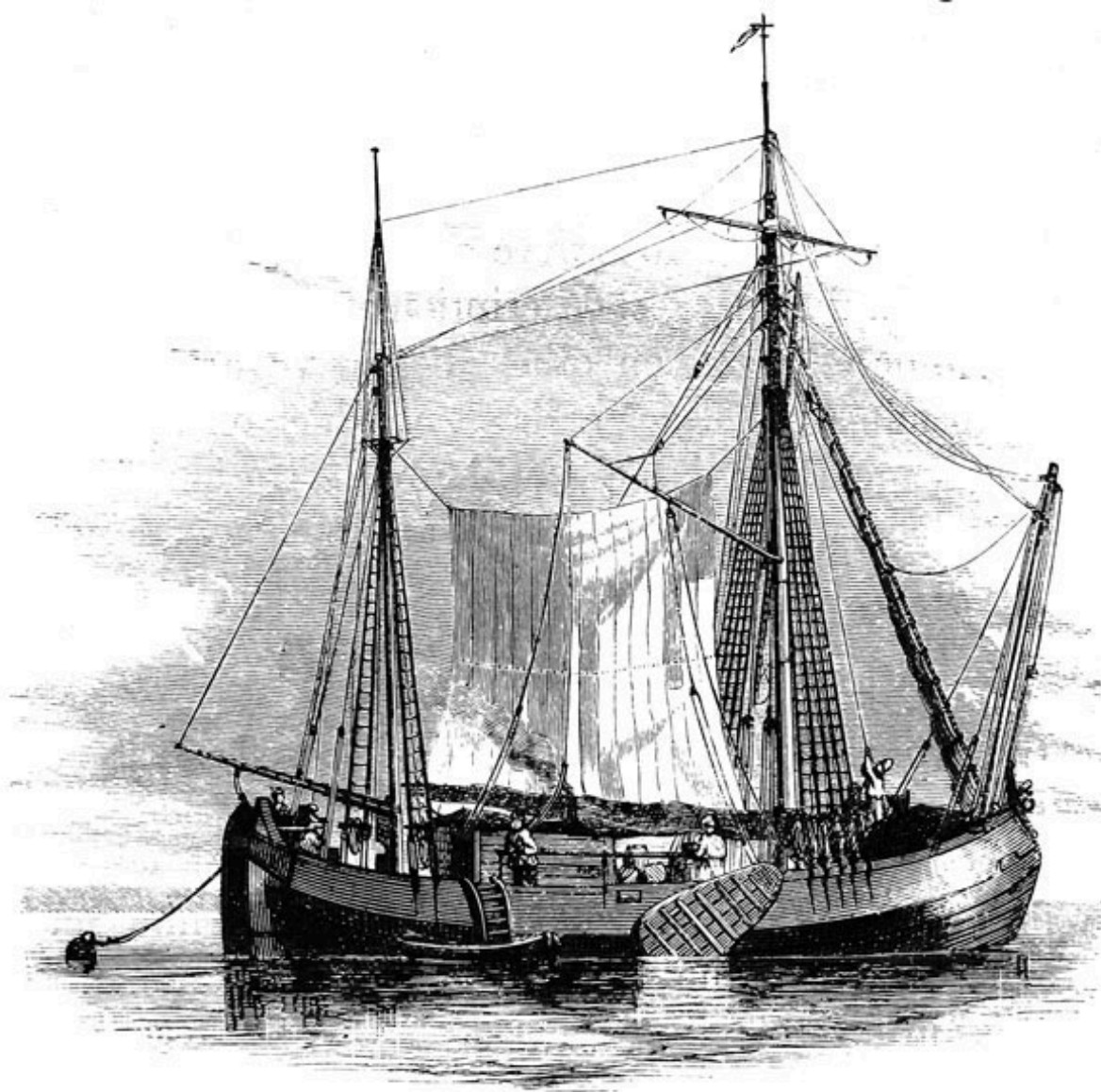
Everything of importance that occurs, as the describing a sail, or land, or the like, must be instantly reported to the master, who has such entire control of the discipline of the ship that no subordinate officer has authority to punish a seaman, or to use any force, without the master's order, except in cases of necessity not admitting delay. He has also the complete direction of the internal arrangements and economy of the vessel; and upon his character and the course of conduct he pursues depend in a great measure the character and success of the ship, and the conduct of the other officers and men. He has a power and an influence, both direct and indirect, which may be the means of much good and much evil. If he is profane, passionate, tyrannical, indecent, and intemperate, more or less of the same qualities will spread themselves or break out among officers and men; which would have been checked if the head of the ship had been a man of high personal character. He may make his ship almost anything he pleases, and may render the lives and duties of his officers and men pleasant and profitable to them, or may introduce disagreements, discontent, tyranny, resistance; in fact he may make the situation of every one on board as uncomfortable as can well be imagined. Every master of a vessel who lays this to heart, and considers the greatness of his responsibility, may not only be a benefactor to all those whom the course of many years' command will bring under his authority, but may render a service to that very important part of the community to which he belongs, and do much to raise the character of the merchant navy. We have had many instances in the British mercantile marine of the variable and opposite qualifications of masters.

Dutch, and

In the Dutch ships the qualifications for both masters and mates are considerable.^[412] Gentlemen of good families and superior education enter the merchant service of that country, and, long prior to any system of examination being established in England, the Dutch masters and mates were subjected to one.

But these examinations were confined to the officers employed in their largest description of vessels trading to India, or engaged on other distant

voyages. In their coasting vessels, or galliots, of which on the [following page](#) there is an excellent illustration from Mr. Cooke's sketches, the masters and mates were not required to pass an examination except so far as to satisfy the owners of their competency for their respective duties.



DUTCH GALLIOT.—E. W. COOKE, R.A.

Prussian marine.

In Prussia a mate, before he is licensed, must be twenty years of age, and have been five years at sea. There are two different grades, for each of which a licence is obtained. The first qualifies him for every voyage; the second limits him to the Baltic, in vessels of any size, but not exceeding forty lasts if they trade to the

Cattegat, or the Skager-rock, as far as the Naze of Norway. Captains have three grades: the first class qualifying them to navigate to any part of the world; the second restricting them to the seas of Europe, the Mediterranean, the Black Sea, and the Atlantic; those who have only a third-class certificate not being allowed to navigate beyond the Baltic, the Cattegat, and Skager-rock. A captain of the first class must not be less than twenty-eight years of age, and have sailed as captain of the second class for not less than two years, or as mate beyond the limits prescribed for captains of the next or lower grades. Captains of the second class are required to be twenty-four years of age, and must have sailed two years as mates of the first grade beyond the limits prescribed for a mate of the second class; and no one can be licensed as captain of the third class at a less age, and unless he has been for two years a mate of the second class. The commissioners by whom they are examined are generally shipowners, captains of vessels, and ship-builders. [\[413\]](#)

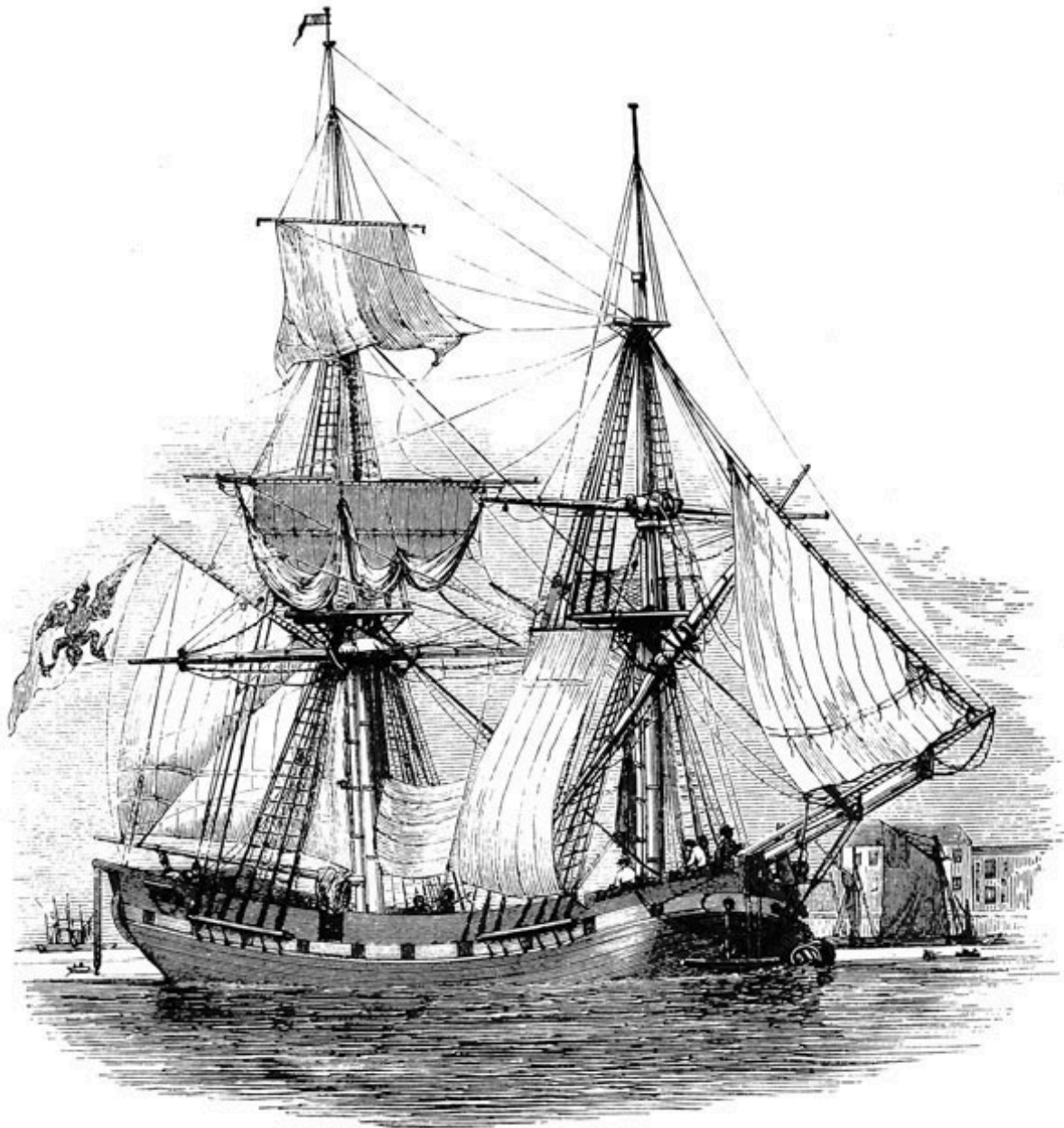
Though the maritime commerce of Prussia has been chiefly confined to the Baltic and Mediterranean, and is limited in extent compared with that of nations greatly their inferior in other respects, German seamen are in no way behind those of either Norway or Holland, and their ordinary trading vessels, of which an illustration will be found on the [following page](#), are of a substantial and useful description.

Danish and
Norwegian systems.

In Denmark, before any one can be licensed as a mate, he must have made two voyages to the Mediterranean, and one to the East and West Indies, besides being acquainted with the navigation of the Cattegat and the Baltic. He has also to produce certificates from the captains with whom he has previously sailed, as to his being a steady and good seaman, as well as a navigator in all its details, and not under twenty-three years of age. The qualifications for mate also qualify for captain; but before being appointed to a command he is required to become a burgher of the place where he usually resides, and to pay the fees securing him the right of citizenship. The examinations are conducted by a captain and two lieutenants of the navy.

Examinations in Norway only extend to mates, but those who are found qualified as such may command merchant vessels. Their examination is also conducted by a captain of the royal navy and two lieutenants. The practice of Sweden is somewhat similar, except that a mate, who is

examined only once, is required to undergo a second examination before he becomes master.



PRUSSIAN SNOW.—E. W. COOKE, R.A.

Duties of Chief
Mate.

We have seen that in all matters relating to the care or, and work done upon, the ship and rigging, the master gives general orders to the mate, who attends personally to their execution in detail. And this is practically the custom prevailing in merchant vessels of all nations.

It is the duty of the chief mate in carrying on the day's work to find every man something to do, and to see that it is done. He appoints the second mate his work, as well as the work of each common seaman; and if the master is dissatisfied with anything, or wishes a change to be made, the orders must be given to the chief mate, so as to avoid any interference of the master with the men individually. It is likewise his duty to examine all parts of the rigging, reporting anything of importance which requires attention to the master; he must also see that there are supplies and instruments ready for every kind of labour, or for any emergency, although the more immediate care of these things, when provided, belongs to the second mate or boatswain.

In getting under way, and coming to an anchor, it is his duty to attend to the ground-tackle, and have everything ready forward for setting sail. In the former case, stationing himself on some elevated position on the forecastle where he can see the cable outside of the hawse-hole, he orders and encourages the men in their work of raising the anchor from the ground, and informs the master when he sees it is "apeak," at the same time ordering the men aloft to loose the sails. The sails being loosed, he awaits the order from the master to have the windlass again manned, and the anchor hove up to the bow. When the vessel is under way, and there is no pilot on board, the master takes immediate control, ordering the yards to be braced and sail set, the chief mate seeing to the "catting and fishing"^[414] of the anchors.

In coming to anchor, similar duties devolve upon the chief officer, who must see the anchors and cables ready for letting go, and that spare hawsers, kedges, and warps are at hand, the master ordering how much chain is to be overhauled. As the vessel draws in towards her anchoring ground, the master gives all the orders as to trimming the yards and taking in sail, and has the entire charge of the man at the helm, it being the mate's duty only to see that a competent seaman is there. In furling the sails the whole superintendence devolves upon the mate, who sends the men aloft, remaining in his place on deck himself, and giving his orders to them while on the yards as to the manner of furling, and seeing the ropes hauled taut, or let go on deck, as may be necessary.

His duties in port.

These illustrations suffice to show the distinctions between the duties of a master and a mate, in the

principal evolutions at sea of an ordinary moderate-sized merchant vessel. While in port the chief mate has much more the control over the vessel than when at sea. As there is no navigating or working the vessel to be attended to, the master has little to engage him, except transactions with merchants and others on shore, and the general directions as to the care of the ship. Besides the work upon the ship and rigging, while in port, the chief mate has the charge of receiving, discharging, stowing, and breaking out the cargo. In these duties he has the entire control, under the general direction of the master. It is the mate's duty to keep an account of all the cargo as it goes in and comes out of the vessel, and, as he generally gives receipts, he is bound to use great care and accuracy. When cargo is coming in or going out he stands in the gangway to keep an account, while the second mate is in the hold with some of the crew, breaking out or stowing, he being responsible for the proper stowage and delivery of the cargo. When the master is on shore, the chief mate is necessarily commander of the ship for the time, and though the law will extend his power proportionably for cases of necessity, yet, except in instances which will not admit of delay, he must not attempt to exercise any unusual powers, but should refer everything to the master's decision. The mate has no right, for instance, to punish a man during the master's absence, unless it be a case in which delay would lead to serious consequences.

Neither of the mates stand watch at night when in harbour, but the chief should always be the first to be called in the morning, as it his duty to summon the men to their work, and apportion to them their respective duties. In cleaning the ship, such as washing down decks, etc., which is done the first thing in the morning, each mate, while at sea, takes charge of it in his watch, in turn, as the one or the other may have the morning watch; but in port the second mate oversees the washing down of the decks, under the chief mate's general orders.

Tacking "bout
ship."

We have furnished, in a preceding part of this work, a specimen of the orders given, and of the language employed by masters two hundred years ago; we now give a description of an ordinary manœuvre in the present century. While at sea, in tacking, wearing, reefing topsails, etc., and in every kind of "all-hands work," when the master is on deck, the chief mate's place, as we have said, is forward. In the evolution of tacking ship, the master, finding that the

ship will not “lay her course,” instructs him to “see all clear for stays,” or “ready about.” The chief mate then goes forward, orders all hands to their stations, and sees everything clear and ready on the forecastle. The master asks, “All ready forward?” and being answered, “Ay, ay, sir,” motions to the man at the helm to put the wheel down, and calls out, “Helm’s alee,” to which the mate, in order to let the master know he is heard and understood, responds, “Helm’s alee,” and sees that the head sheets are let go. The master then gives the order to “raise tacks and sheets,” which is executed by the mates and the men with them, loosening all the ropes which confine the corners of the lower sails, in order that they may be more readily shifted to the other side. When the ship has turned her head directly to windward, the order is given by the master to “brace about,” turn round all the yards on the main and mizen-masts; the mate attending to the foretack, letting go the bowlines and braces on one side, and as expeditiously drawing them in on the other side, so as to wheel the yards about the masts; the lower corner of the mainsail is then, by means of its tack, pulled down to its station at the chess-tree; and all the after sails are at the same time adjusted to stand upon the other board. Finally, when the ship has fallen off five or six points, the master exclaims, “Let go and haul;” then the sails on the foremast are with great rapidity wheeled about by their braces. In this manœuvre the mate will see to the adjustment of the fore-yards, while the master usually trims the after-yards, guiding the men at the work by such exclamations as, “Well! the main yard;” “Topsail yard, a small pull on weather braces;” “Topgallant yard, well;” so that every sail may be trimmed up sharp to the wind.

Reefing topsails.

In reefing topsails, the chief mate, except in small vessels, keeps his place forward, and looks out for the men on the yards. But he sometimes goes aloft with the men in vessels of 500 or 600 tons, and takes his place at the weather earring. If both topsails are reefed at once, his place is at the main; but if one sail is reefed at a time, he leads the men from one yard to the other, in all cases taking the weather earring,^[415] acting in a similar manner when the courses require to be reefed; but he is not required, as a rule, to work with his hands, except in an emergency, like the second mate and the seamen, his time and attention being sufficiently taken up with superintending and giving orders.^[416]

Log-book.

The law looks upon the chief mate as standing in a different relation to the master from that of the second mate or the men. He is considered a confidential person, to whom the owners, shippers, and insurers look, in some measure, for special duties and qualifications. The master, therefore, cannot remove him from office, when abroad, except under very peculiar circumstances, and then must be able to prove his action in the matter justifiable. One of these duties which the law throws upon him, as we have shown, is the keeping of the log-book. This is a very important trust, as the record of the evidence of everything occurring during the voyage, the position of the ship, the sail she was under, the wind, and so forth, at any one given moment, may become matters of great consequence to all concerned. So it is in like manner with reference to anything that may occur between the master or officers and the crew. Each officer, at the end of his watch, not merely enters on the log-slate, which usually lies on the cabin table, or in some convenient place, the courses, distances, wind and weather during his watch, and anything worthy of note that may have occurred, but it is the duty of the chief mate once in twenty-four hours to copy from the slate the entries into the log-book, and to vouch for their accuracy, although the master usually examines it, making any corrections or observations he may consider necessary. The practice, however, of copying from the slate after it had been submitted to the master, led, in many instances, to great abuse, as the chief mate then became only the instrument of the master, and, too frequently, entered in the log-book whatever the latter might dictate. But these abuses have been remedied by the authorization, under the Merchant Shipping Act, of official logs, to which we shall refer hereafter, as well as to the numerous important changes in the merchant service of England which have since been made.

Mate successor in law to the Master.

Mode of address to Chief and Second Mates.

The law also makes the chief mate the successor to the master in case the latter should die, or be unable to perform the duties of his office; and this without any action on the part of the crew when at sea, or of the consignees of the vessel when in harbour abroad. It is always important, therefore, that to the practical seamanship and activity necessary for the discharge of the proper duties of his office the mate should add a sufficient knowledge of navigation, to be able to carry the ship on her voyage should anything happen to the master. In the case of a ship coming from the East Indies,

there is a decision that no ship insured can be deemed *seaworthy* unless she have on board, at the time of sailing, a mate competent to take command of the ship in the event of the death or sickness of the master. This principle, however, can in strictness only be applied to long voyages, and a high American authority calls it in question.^[417] Both the chief and second mates are always addressed by their surnames, with the courteous prefix of “Mr.,” and are answered with the addition of “Sir.” This is a requirement of ship’s duty, and an intentional omission of such courtesies constitutes an offence against the rules and understanding of the service.

Duties of Second Mate.

The duties of the second mate are to command the starboard watch when the master is not on deck, and to lead the crew in their work. It was not formerly deemed indispensably necessary that he should be a navigator, or even be able to keep a journal; but it is obvious that many advantages must have resulted from his being acquainted with navigation, together with a general competency to keep the log, so that he might have the chance of promotion, in the contingency of any accident happening to the chief mate, or of his removal from office. The second mate, however, does not even now, either by law or custom, necessarily succeed to the office of chief mate in the same manner that the chief mate succeeds to that of master: it lies in the discretion of the master, for the time being, to appoint whom he pleases to the office of chief mate; nevertheless, if the second mate be really fit to perform the duties of the office, he is usually appointed.

When the starboard watch alone is on deck, and the master is below, the whole of the duties devolve on the second mate, he alone being then in charge of the ship. In furling sails, the second mate also goes aloft to the topsails and courses, and takes the “bunt,”^[418] that being an important place in all such operations. He is not expected to go on the mizen topsail-yard for any service, and though, in bad weather, and in case of necessity, he would do so, yet it would be out of the usual course. He might also, in heavy weather, assist in furling the jib, but he never furls a top-gallant sail, royal, or flying-jib. In short, the fore or main-topsail and the courses are the only sails which the second mate is expected to handle, either in reefing or furling.

Although the proper place for the second mate on a yard is the bunt in furling, and at the weather earring in reefing, when the first mate is not aloft

[and it is the custom to give him every chance] yet he cannot retain them by virtue of his office; and if he has not the necessary strength or skill for the stations, it is no breach of duty in a seaman to take them from him; on the contrary, he must always expect in such a case to give them up to a smarter man. If the second mate is a youngster, as is sometimes the case, being put forward early for the sake of “promotion,” or if he is not active and ambitious, he will refrain from attempting to take the bunt or weather earring.

Ordinary day's
work.

In the ordinary day's work on shipboard the second mate works with his hands like a common seaman. Indeed he ought to be the best mechanical seaman on board, and be able to take upon himself the nicest and most difficult jobs, or to show the men how to do them. Among the various pieces of work constantly going forward on the vessel and rigging there are some that require more skill and are less irksome than others. The assignment of all these duties belongs to the chief mate, and if the second mate is a good seaman, he will have the best and most important work allotted to him; as, for instance, fitting, turning in, and setting up rigging, rattling^[419] down, and making the neater straps, coverings, graftings,^[420] pointings, etc.; but if he is not, he will have to employ himself upon the inferior jobs, such as are usually assigned to ordinary seamen and boys. But whatever may be his capacity, he “carries on the work,” when his watch alone is on deck, under directions previously received from the chief mate or commander.

It is a common saying among seamen that a man does not get his hands out of the tar-bucket by becoming second mate. The obvious meaning of which is, that as a great deal of tar is used in working upon rigging, and it is always put on by hand, the second mate is expected to put his hands to it as the others do. If the chief mate were to manipulate any piece of work, and it should be necessary to put any tar on it, he might call some one to tar it for him, as all labour by hand is voluntary with him; but the second mate would be expected to do this for himself, as a part of his work. These matters, however trivial in themselves, serve to illustrate the different lights in which the duties of the officers are regarded by all seafaring men. But there are some inferior services, such as slushing down masts and sweeping decks, in which the second mate takes no part; and if he were ordered to do so it

would be considered as a punishment, and if resisted might lead to a difficulty.

In working ship, making or taking in sails, the second mate pulls and hauls about deck with the rest of the men. Indeed, in all the work he is expected to join in, he should be the first man to take hold, both leading the men and working himself. In one point, however, he differs from the seamen, in that he never takes the helm. That duty is left to the men, who steer the vessel under the direction of the master or officer of the deck. He is also not expected to go aloft to reeve or unreeve rigging, rig in and out booms when making or taking in sail, or other minor duties. In the event, however, of any accident, as carrying away a mast or yard, or if any unusual work is going on aloft, as the sending up or down of topmasts or topsail yards, or getting rigging over the mast-head, sending down or bending a heavy sail in a gale of wind, or the like, then the second mate should be there to take charge of the work.

Care of spare
rigging.

Stores.

Another important part of the duties of a second mate, when there is no boatswain on board, is to take charge of the spare rigging, hawsers, blocks, sails, and small stuffs, and of the instruments for working upon rigging, as marlinspikes, serving-boards, and so forth. If, for instance, the chief mate orders a man to do a piece of work with certain implements and certain kinds of materials, the man will apply to the second mate for them, and he must supply them. If there is no sail-maker on board, the second mate is required to attend to the stowing away of the spare sails, and whenever one is called for it is his duty to go below and find it. So also with the stores. It is his duty to see to the stowing away of the water, bread, beef, pork, and all the provisions of the vessel; and whenever a new cask of water or barrel of provisions is to be opened, the second mate must attend to it.

While in port, when cargo is taking in or discharging, the place of the second mate, as we have pointed out, is in the hold; but if the vessel is lying at anchor, so that the cargo has to be brought on or off in the boats belonging to the ship, then the boating duty falls upon the second mate, who goes and comes in the boats, and looks after the landing and taking off of the goods. The chief mate seldom leaves the vessel when in port; he is considered as the shipkeeper. So if a warp or kedge is to be carried out, or a

boat is lowered at sea, as in boarding another vessel, or when a man has fallen overboard, in all such cases the second mate should take charge of the boat.

Third Mate.

His general duties.

Merchant vessels bound on long voyages, in which there are many vicissitudes to be anticipated, sometimes carry a third mate; this practice has only obtained of late years, and his precise duties have scarcely become settled by usage. He does not, however, command a watch, except in very large vessels, but belongs to the larboard watch, and assists the chief mate in his duties. He goes aloft with the larboard watch to reef and furl, as the second mate does with the starboard, and performs very nearly the same duties aloft and about decks. If he is a good seaman he will take the earring and bunt on the head-yards, as the second mate does on the after-yards; and in the allotment of work he will be favoured with the most important jobs, if fit to perform them; otherwise he will be put upon the work of an ordinary seaman. He is not expected to handle the light sails. He stands no helm, lives aft, and will look out for the vessel at meal-times, if the second mate dines with the master and chief mate. While in port he should be in the hold or in the boats, as his services may be needed, thus dividing the labour with the second mate. Perhaps his place would more properly be in the boats, as that is considered more in the light of fatigue duty. He also relieves the second mate of the charge of the stores, and sees to the weighing and measuring of the allowances; and in his watch on deck he relieves the chief mate of the inferior parts of his duty, such as washing decks in the morning, and looking after the boys in clearing up the decks at night.

Here it may be remarked that the expression *mate* implies, in its general sense, an assistant, as boatswain's mate, carpenter's mate, sail-maker's mate, steward's mate, cook's mate, and when a surgeon is on board, and has an assistant, he too is designated a mate.

Carpenter.

Almost every merchant vessel of a large class, or bound upon a long voyage, carries a carpenter. His duty is to work at his trade under the direction of the master, and to assist in all-hands work, according to his ability. If he ships for an able seaman as well as carpenter, he must be capable of doing seaman's work upon the rigging, and taking his turn at the wheel, if called upon. If he does

not expressly ship for seaman as well as carpenter, no nautical skill can be required of him; but he must still, when all hands are called, or if ordered by the master, pull and haul about decks, and go aloft in the work usual on such occasions, as reefing and furling. Though not an officer, and unable to give an order to the smallest boy, he is nevertheless a privileged person. He lives in the steerage with the other petty officers, has charge of the ship's chest of tools, and in all things connected with his trade is under the sole direction of the master.^[421]

Sail-maker.

Almost all ships of the largest class carry a sail-maker, although usually the older seamen are sufficiently skilled in the trade to make and mend sails, and the master or chief mate should know how to cut them out. With regard to the duties of the sail-maker, the same remarks apply to him that were made upon the carpenter. If the sail-maker ships also for seaman, he must do an able seaman's duty, if called upon; and if he does not so ship, he will still be required to assist in all-hands work, according to his ability; and in bad weather, or in case of necessity, he may be put with a watch, and required to do ship's duty with the rest. In all-hands work he is mustered with either watch, according to circumstances. He usually lives in the steerage^[422] with the carpenter, and always, like him, takes his food from the galley. He has no command, and when on deck his place is on the forecastle with the rest of the crew. In the work of his trade he too is under the sole direction of the master, or of the chief mate in the master's absence; and in ship's work he is as strictly under the command of the mates as is a common seaman.

Steward.

The duties of steward vary according to the description of merchant or passenger vessel in which he may be employed. In the higher class of packet-ships, where there are numerous first-class passengers, and where a good table is kept, the steward has waiters or under-stewards, who perform most of the labours of attendance, the chief having the general superintendence of the whole. It is his duty to see that the cabin and state-rooms are kept in order; to see to the laying and clearing of the tables; to take care of the dishes and utensils appertaining thereto; to provide the meals, under the master's directions, preparing the most delicate dishes himself; to keep the general charge of the pantry and stores for the cabin; to look after the cook in his department, and generally to attend to the comfort and convenience of the passengers. These

duties generally absorb all his time and attention, and he is not called upon for any ship's duty.

In ordinary merchant vessels the steward performs the work which falls to the under-stewards of the large packets; cleans the cabin and state-rooms; sets, tends, and clears away the table; provides everything for the cook; and has charge of the pantry, where all the table furnishings and the small stores are kept. He is also the body-servant of the master. His relation to the chief mate is not, it appears, quite settled; but the general understanding is, that, although he waits upon him at table, and must obey him in all matters relating to the ship's work, yet he is not in any respect his servant. If the mate wished any personal service done, he would solicit it, or make some compensation.

In small vessels the steward must come on deck whenever all hands are called, and in working ship pulls and hauls about decks with the men. The main sheet is called the steward's rope, and this he lets go and hauls aft in tacking and wearing. In reefing and furling he is expected to go upon the lower and topsail yards, and especially the mizen topsail yard of a ship. No seamanship is expected from him, and he stands no watch, sleeping in at night, and turning out at daylight; yet he must do ship's duty according to his ability when all hands are called for working ship, or for taking in or making sail. In these things he obeys the mates in the same way that a common seaman would, and is punishable for disobedience.

Cook.

The cook almost always lives in the fore-castle, though sometimes in the steerage. He stands no watch, sleeping in at night, and working at his business during the day. He spends his time mostly in the cook-house, which is called the "galley," where he cooks both for the cabin and fore-castle. This, with keeping the galley, boilers, pans, kiddles, and other cooking utensils in order, occupies him during the entire day. He is, however, called with all hands, and in tacking and wearing, works the fore-sheet. He is also expected to pull and haul about decks in all-hands work, and is occasionally called from his galley to give a pull at a tackle or halyards. ^[423]

Seafaring persons, before the mast, are divided into three classes: able seamen, ordinary seamen, and boys, or "green hands." If any man is found incompetent to perform the duty he contracts for, his wages can not only be

reduced to the grade for which he is fitted, but something additional is occasionally deducted for the deception practised, and for the loss of service, besides the difficulties which too frequently arise from his misrepresentation, the crew justly deeming it a sort of fraud upon themselves. If, for instance, the articles provide for six able seamen, the men expect as many; and if one of them proves unequal to his assumed rating, the duties which would be commonly done by six seamen will fall upon the five, leaving the vessel short-handed for the voyage. But the hardship is felt still more in the watches, for if the delinquent is not a capable helmsman, the increased duty at the wheel alone would of itself be a serious evil. The officers also feel at liberty to punish a man who has so imposed upon all hands, and accordingly every kind of inferior and disagreeable duty is put upon him; and as he finds no sympathy from the crew, his situation on board is made very unpleasant.

Their duties.

To “haul, reef, and steer” constitute a sailor in ordinary phraseology, but something more is required from an able seaman, who should, in addition to these duties, be a good workman on rigging; and a man’s skill in this work is the chief test of his seamanship; a competent knowledge of steering, reefing, furling, and the like being taken for granted, and being no more than is expected from an ordinary seaman, though there is, of course, a great deal of difference in the relative skill and neatness of the work of different men; but no man will pass for an able seaman, in a square-rigged vessel, who cannot make a long and short splice, fit a blockstrap, pass seizings^[424] to lower rigging, and make the ordinary knots in a fair and workmanlike manner.

Division of their labour.

In working ship the able seamen are stationed variously; though for the most part upon the forecastle, at the main tack or fore and main lower and topsail braces; the light hands being placed at the cross-jack, and fore and main top-gallant and royal braces. In taking in and making sail, and in all things connected with the working of the vessel, there is no duty which may not be required of an able seaman; yet there are certain things requiring more skill and strength, to which he is always put, and others which are as invariably assigned to ordinary seamen and boys.^[425] In reefing, the able seamen go out to the yard-arms, and the light hands stand in toward the slings; while in furling, the bunt and quarters belong to the able seamen, and the yard-arms to the

boys. The light hands are expected to loose and furl the light sails, such as royals, flying-jib, and mizen top-gallant sail, and the men seldom go above the cross-trees, except to work upon the rigging, or to send a mast or yard up or down. The fore and main top-gallant sails, and sometimes the flying-jib of large vessels, require one or more able seamen for furling, but are loosed by light hands.

Duties of ordinary seamen.

An ordinary seaman is expected to hand, reef, and steer, under the usual circumstances, and to be competent to “box the compass.”^[426] He must likewise be acquainted with all the running and standing rigging of a ship; be able to reeve the studding sail gear, and set a top-gallant or royal studding sail out of the top; loose and furl a royal, and a small top-gallant sail or flying-jib; and perhaps also send down or cross a royal yard. But he need not be a complete helmsman, and if an able seaman should be put into his place at the wheel in bad weather, or when a ship is steered with difficulty, it would be no imputation upon him, provided he could take his turn^[427] creditably under ordinary circumstances. But his duty depends a good deal upon whether there are boys or green hands on board or not. If there are, he has a preference over them, as an able seaman has over him in the light work; and since he stands his helm regularly, and is occasionally set to work upon rigging with the men, he will be favoured accordingly in the watch, and in common duty about decks. The distinction, however, between ordinary seamen and boys is not very nicely observed in the merchant service, and an ordinary seaman is frequently called upon for boy’s duty, though there are boys on board and at hand. If an officer wished for some one to loose a royal, take a broom and sweep the decks, hold the log-reel, coil up a rope, or the like, he would probably first call upon a boy, if at hand; if not, upon an ordinary seaman; but upon either of them indifferently before an able seaman.

Boys or apprentices.

We have already defined the term *boys*, as embracing all green hands of whatever age; as well as boys who, though they may have been at sea before, are not strong enough to rate as ordinary seamen. It is a common saying that a boy does not ship as knowing anything. Accordingly if any one enters as a boy, and upon boy’s wages, he cannot be blamed, although he may not know the name of a rope in the ship, or even the stem from the stern. In the ordinary

day's work the boys are taught to draw and knot yarns, make spun yarn, foxes, sennit, and so forth, and are employed in passing a ball, or otherwise assisting the able seamen in their jobs. Slushing masts, sweeping and clearing up decks, holding the log-reel, coiling up the running rigging, and loosing and furling the light sails are duties which are invariably put upon the boys or green hands. They stand their watches like the rest, are called with all hands, go aloft to reef and furl, and work whenever and wherever the men do, the only difference being in the description of work upon which they are put. In reefing, the boys lay in towards the slings of the yard, and in furling go out to the yard-arms. They are sent aloft immediately as soon as they get to sea, to accustom them to the motion of the vessel, and to moving about in the rigging and on the yards. Setting top-gallant studding sails, and reeving the gear, shaking out reefs, learning the names and uses of all the ropes, and how to make the common hitches, bends, and knots, are also included in the knowledge first imparted to beginners. There is some difference in the manner in which boys are put forward in different vessels. Sometimes in large vessels, where there are plenty of men, the boys never take the wheel, and are seldom put upon any but the most simple and inferior duties. In others, they are allowed to take the wheel in light winds, and gradually, if they are of sufficient age and strength, become regular helmsmen. So also, in their duties aloft, if they are favoured, they may be kept at the royals and top-gallant sails, and gradually come to the earring of a mizen topsail.

Bells.

Bells mark the time at sea. At noon, eight bells are struck, that is eight strokes are made upon the bell: and from that time it is struck every half-hour throughout the twenty-four, beginning at one stroke, but never exceeding eight. A watch of four hours runs out the bells. Even bells come at the full hours, and the odd bells at the half-hours. For instance, eight bells is always twelve, four, or eight o'clock; and seven bells always half-past three, half-past seven, or half-past eleven. They are sounded by two strokes following each other quickly, and then a short interval: after which two more; and so on. If it is an odd number, the odd one is struck alone, after the interval. This is to make the counting more sure and easy; and by such means the distinction between a full hour and a half-hour is more plainly indicated.

Helm.

Each watch steers the ship in its turn, and the watch on deck supplies the helmsman, even when all hands are called. Each man stands at the helm two hours, which is called his “trick.” Thus there are two tricks in a watch. Sometimes, in very cold weather, the tricks are reduced to one hour, and if the ship steers badly in a gale of wind, two men are sent to the wheel at once. In this case the man who stands on the weather side of the wheel is the responsible helmsman, the other at the lee side merely assisting him by steadying it or aiding its more rapid revolution.

“Tricks” at the helm.

The men in the watch usually arrange their tricks among themselves, the officers being satisfied so long as there is always a man ready to take the helm at the proper time. In steering, the helmsman stands on the weather side of a wheel, and on the lee side of a tiller. But when steering by tiller-ropes with no hitch round the tiller-head, or with a tackle, as in a heavy gale and a rough cross sea, when it is necessary to ease the helm a good deal, it is better to stand up to windward and steer by means of the tiller-ropes.

Relieving duty.

In relieving the wheel, the man should come aft on the lee side of the quarter-deck, as indeed he almost invariably does, and go to the wheel behind the helmsman, taking hold of the spokes so as to have the wheel in command before the other lets go. Before letting go the helmsman gives the course in an audible voice to the man that relieves him, who repeats it aloud, just as it was given, so as to make it sure that he has heard it correctly. This is especially necessary, since the points and half-points are so much alike that a mistake might easily be made. It is the duty of the officer of the watch to be present when the wheel is relieved, in order to see that the course is correctly reported and understood; which is another reason why the course should be spoken in a loud tone of voice.

Orders at the wheel.

If a vessel is sailing close-hauled and does not lay her course, the order is “Full and by;” which means, by the wind, yet all full. If she lays her course, the order then is her course, as N.W. by W. or W.S.W., and the like. When a man is at the wheel he has nothing else to attend to but steering the ship, and no conversation should be allowed with him. If he wishes to be relieved, it should not be done without the permission of the officer, and the same form

of giving and repeating the course must be gone through, even though absent from the helm for only a few minutes.

Repeating of orders
at wheel.

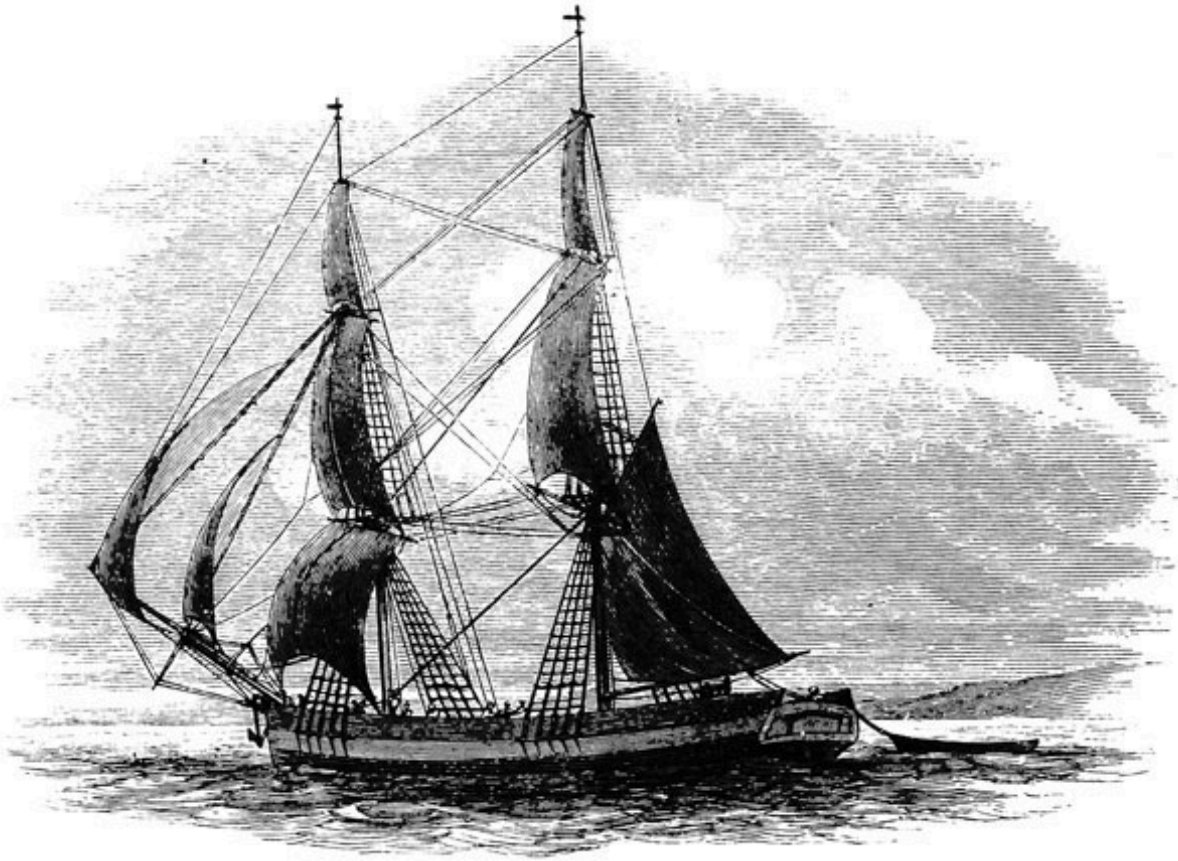
If an order is given to the man at the helm as to his steering, he should always repeat the order distinctly, that the officer may be sure he is understood. For instance, if the order is a new course, or “Keep her off a point,” “Luff a little,” “Ease her,” “Meet her,” or the like, the helmsman should answer by repeating the course or order, echoing the precise words, and should not answer, “Ay, ay, sir,” or simply execute the order as he understands it. This practice of repeating every word, even the most minute order at the wheel, is well understood among seamen, and a failure or refusal to do so is an offence sometimes leading to disagreeable results. If, when the watch is out and the other watch has been called, all hands are detained for any purpose, such as reefing topsails, setting studding sails, or the like, the helm should not be relieved until the work is done and the watch ready to go below.

Conversation not
allowed while on
duty.

In well-disciplined vessels no conversation is allowed among the men when they are employed at their work; that is to say, it is not allowed in the presence of an officer or of the master; and although, when two or more men are together aloft, or by themselves on deck, a little low conversation might not be noticed, yet if it seemed to take off their attention, or to attract the attention of others, it would be considered a misdemeanour. In this practice variations occur in different vessels. Coasters, colliers, or other small vessels on short voyages, do not preserve the same rule; but no seaman who has been accustomed to first-class ships will object to a strictness as to conversation and laughing, while at the day's work, very nearly as great as is observed in a school. While the crew are below in the forecastle great licence is given them; and the severest officer will never interfere with the noise and sport of the forecastle, unless it is an inconvenience to those who are on the deck. In working ship, when the men are at their stations, the same silence and decorum are observed. But during the dog-watches, as already noticed, and when the men are together on the forecastle at night, and no work going forward, smoking, singing, spinning yarns (telling stories), and so forth are allowed; and, in fact, a considerable degree of noise and skylarking is permitted, unless it amounts to positive disorder and disturbance.

It is a good rule to enforce, that whenever a man aloft wishes anything to be done on deck, he should hail the officer of the deck, and not call out, as is sometimes done, to any one whom he sees about the deck. The proper place for the seamen when they are on deck, and are not at work, is on the forecastle, which comprises so much of the upper deck as is forward of the after fore-shroud. There the crew may have their meals, if they choose, in fine weather. Their food is cooked in the galley. It is placed in wooden tubs, or “kids,” by the cook and taken away by the men. Tea or coffee is also served out to the men, each of whom provides his own eating utensils, usually consisting of a tin pot, an iron spoon, and his “jack-knife,” which serves alike for fork and carver, and numerous other purposes. Such was, and still is to a large extent, the internal economy of the ordinary merchant sailing vessels of all nations.

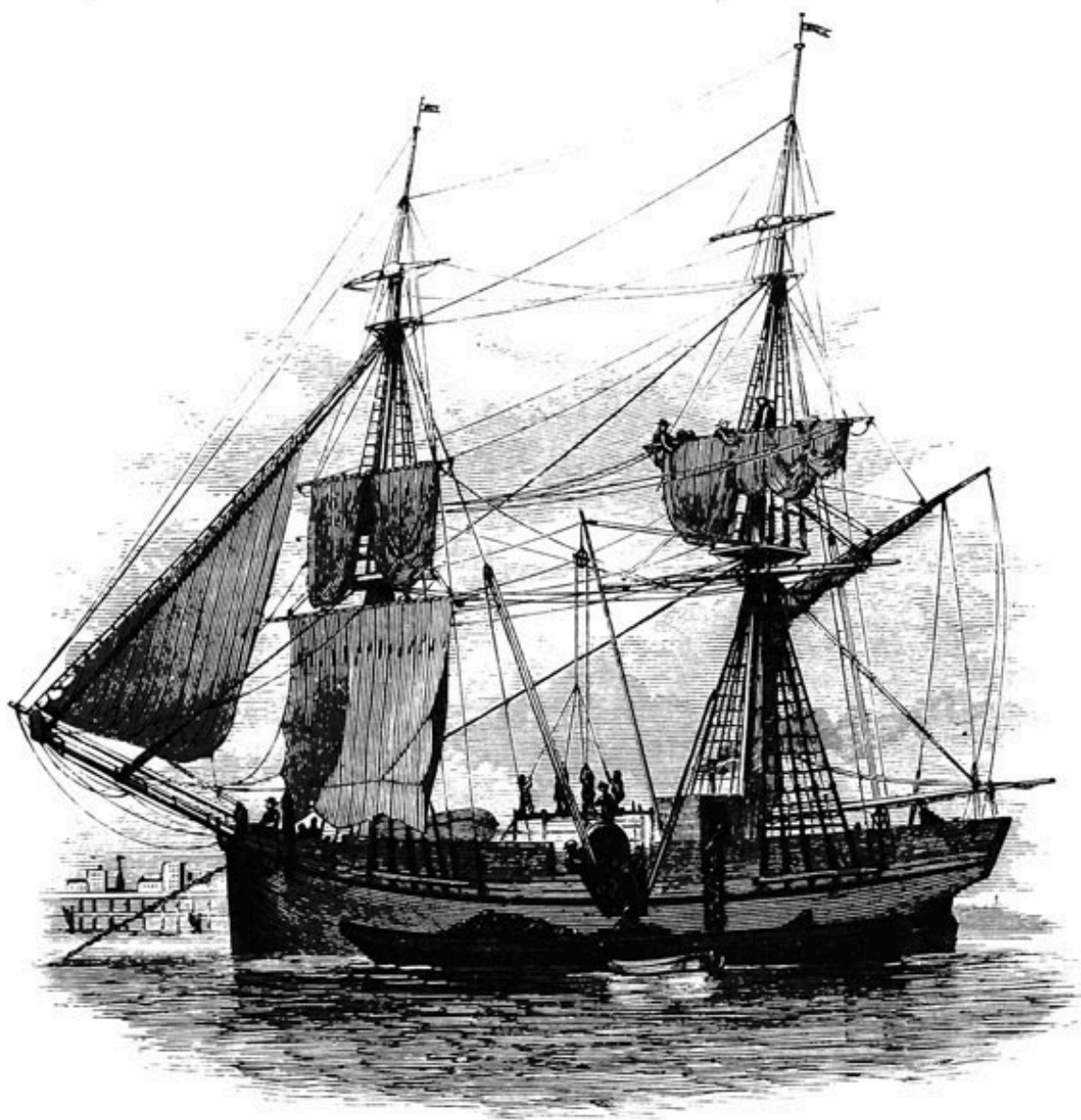
Before closing our remarks on the vessels of other days, there is one class which ought to receive more than a passing notice, and that is the English collier. Mr. Cooke furnishes an admirable illustration of one of these vessels, now being fast superseded by steam, in the following sketch.



COLLIER.—E. W. COOKE, R.A.

The average size of the regular collier has long been about 230 tons register, with a capacity of from fourteen to seventeen keels of coals;^[428] and they were chiefly employed in the trade between the northern coal ports and London, although a considerable number of them were required to supply the wants of the outports (especially before the introduction of railways), and to these many of them still trade as well as to London. The crew of each vessel generally consisted of ten persons, all told, comprising the master, mate, and cook—who also performed seaman's duty—five sailors, and two boys. Their duties were of the most arduous description. They were usually engaged for the voyage at a sum which included the discharge of the cargo, and sometimes the supply of their own provisions. Mr. Cooke furnishes an illustration of one of these vessels discharging her coals in the Pool (see [below](#)). The men are employed, as will be seen, “jumping” the coals in baskets, which, after passing through the weighing machine, are delivered into barges alongside. This jumping operation required a good deal of practical skill, and greenhorns often got awkward falls. It consisted of four

men who held in their hands whip lines, attached to a rope, which was passed over a single pulley with a basket fastened to the end of it. As the basket was being lowered into the hold the men walked up a temporary platform, not unlike an ordinary four-barred gate placed slightly on the incline. When the basket was filled with coals they “jumped” from the top of this stage on to the deck, the weight of their bodies raising the basket in one whip to a point where a man in attendance could instantaneously capsize its contents into the weighing machine; thus the operation of discharging the coals proceeded with extraordinary rapidity.



COLLIER DISCHARGING.—E. W. COOKE, R.A.

Perhaps no branch of maritime commerce ever produced hardier or more alert seamen than that of the Northern coal trade. During her great naval engagements England looked to that trade more than to any other for the best, or at least the hardest and most daring seamen for her navy. Indeed, it afforded a supply of men who could go aloft in any weather and fight the guns, with the green sea frequently rolling through the port-holes. They never saw danger. Accustomed to work their way amongst shoals and sandbanks, and along iron-bound coasts in their frail craft, and during the most tempestuous weather, the shelter of a man-of-war was like a haven of rest to them. But though they frequently faced dangers without a thought which would have made the regular man-of-war's man tremble, they stood sadly in want of discipline, and were with great difficulty trained to order, so that the comparatively easy life of a man-of-war's man had few attractions for them. On board of the collier, master, mate, and men smoked their pipes together; and if they did not mess from the same kid, they were in all other respects pretty much alike, creating an equality and freedom more in accordance with their habits and tastes than the drill and daily routine of the royal navy.

FOOTNOTES:

[406] It was not until 1850, when the English Navigation Laws were repealed, that any material advance was made by the shipowners of Great Britain in the improvement of their vessels. In that year, when they were in a very desponding state, seeing nothing before them but "ruin," the result, as they conceived, of an entirely free-trade policy, the author had the hardihood to order to be built, for his own use in the trade between London, Australia, and India, six ships, each of an average size of eight hundred tons register, and with a capacity of from eleven hundred to fourteen hundred tons, according to the nature of the cargo. The crew of each of these vessels consisted of the master, first and second officers, steward, cook, boatswain, carpenter, sail-maker, seventeen seamen, and five apprentices, or thirty "all told;" a very great difference, as will be seen, in the capacity and current expenditure, but no great advance in the proportionate dimensions, for the length was only one hundred and forty-five feet to a beam of thirty-one feet, and twenty-two feet depth of hold. Such was the popular prejudice even then among British shipowners against any material increase in the length. The impression had prevailed for centuries that a long ship must be weak, and a narrow one dangerous, from her "liability to capsize;" and no amount of argument would convince the old school of shipowners to the contrary. At last the author, anxious to practically test this question, built in 1853, contrary to the advice of numerous well-meaning friends, an iron sailing ship, which in length measured close upon seven times the width of her beam. Such a "monstrous" deviation from "established rules," and that, too, in a "tin kettle," the name by which the comparatively few iron

ships then built were familiarly known, created considerable discussion, mingled with many gloomy forebodings as to the result. The ship, when finished, loaded in London and sailed, with a general cargo and her full complement of passengers, for Australia. She encountered rough weather, and meeting with some slight accident, had to anchor in the Downs for repair. The captain, officers, and crew were fully satisfied with the strength, safety, and good sea-going qualities of the ship; but after this trivial accident the popular outcry against her became so strong that the author recalled her, and despatched the passengers to their destination in another vessel. Though his pecuniary loss was very considerable, he resolved to make it rather than encounter the howl of indignation which must have arisen had he sent the ship to sea and any disaster befallen her, which might have happened to any other ship, whereby the lives of the passengers were lost or placed in jeopardy. The crew remained by her. No alteration whatever was made in her construction. She proceeded almost immediately afterwards, with a full cargo of general merchandise, to Bombay, and on her return the captain reported that he never sailed in a finer or safer sea-going vessel. Such vessels are now very common, and many of them, especially steamers, are much more extreme in length in proportion to their beam.—So much for popular prejudice.

[407] “Slops,” general term for ready-made clothes (Maydman, 1691). In a MS. wardrobe of Queen Elizabeth there is an order to John Fortescue to deliver some fustian for “sloppe for Jack Green, our foole” (Adm. W. H. Smyth, p. 633).

[408] These duties were too frequently overlooked, and the accommodation for seamen when at sea, or in harbour abroad, is still far from being as comfortable as the ordinary run of cheap lodging-houses on shore, although it has been greatly improved of late years, more especially since the Merchant Shipping Act came into operation. Previously it was generally of a wretched description, and as the Author has the most vivid recollection of the forecastle of the ship in which he served his apprenticeship, a description of it may serve to illustrate an ordinary specimen of the sea homes of sailors forty years ago.

The vessel in which he served was about four hundred and twenty tons register, and of North American build. She was ship-rigged, and had a flush deck, that is, there were no erections upon the deck except the galley or cook-house, which stood before the long-boat; on each side of both were lashed, to ring-bolts in the deck, the spare spars, and to these were again lashed a row of puncheons or butts filled with fresh water. This vessel was employed in the trade between Great Britain and Demerara, making occasionally a voyage to the Bay of Fundy (Nova Scotia) for lumber, a description of boards used for the heading of rum and molasses casks and sugar hogsheads. Her crew (she had more than the usual complement) consisted of twenty-one persons all told, comprising the master, or “captain,” first and second mates, and steward, all of whom lived in the cabin. Besides these there were the carpenter, cooper, and cook—who with the steward were expected to assist in seaman’s duties—ten seamen, and four apprentices. One of the latter lived with the carpenter and cooper in a place called the “steerage,” that is, a small space temporarily separated by some rough stauncheons and boards from the cargo in the square of the after-hatch. Here their tools, with various rope and sail stores, were also kept. The cook, ten seamen, and three apprentices had their abode in the forecastle. This place, which was in the “’tween decks” at the extremity of the bow, may have been about twenty-one feet in width at the after or widest part, tapering gradually away to a narrow point at the stern. The length in midships was somewhere about twenty feet, but much less as the sides of the vessel were approached. The height was five feet from deck to beam, or about five feet nine inches from deck to deck at the greatest elevation between the beams; the only approach to it being through a scuttle or hole in the main deck, about two and a half feet square. Beyond this hole there were no means of obtaining either light or ventilation, and in bad weather, when the sea washed over the deck, the crew had to do as best they could without either, or receive the air mixed with spray, and sometimes accompanied by the almost unbroken crest of a wave, which, in defiance of all the tarpaulin guards, too frequently found its way through the scuttle. Here fourteen persons slept in

hammocks suspended from the beams, and had their daily food. There was no room for tables, chairs, or stools, so that the tops of their sea-chests in which they kept their clothes and all their possessions, were substituted for those useful and necessary household articles. In fact so closely were these chests packed that it was difficult to sit astride them, the mode which the sailors found most convenient for taking their meals, especially in rough weather. But the whole of this limited space was not appropriated to the use of the crew, for it contained a rough deal locker, in which the beef and soup-kids and other utensils were kept, while the stout staunchions or knight-heads which supported the windlass on the upper deck came through the forecastle, and were bolted to the lower beams; and too frequently, when the ship was very full of cargo, a row of water-casks and provisions were stowed along the after-bulkhead, which was a temporary erection; while on the top of these, cables, coils of rope, and numerous other articles were piled. At all times it was a foul and suffocating abode, and in bad weather the water and filth which washed about the deck and among the chests and casks created the most intolerable and loathsome stench. Here, however, these fourteen sailors and apprentices slept, washed, dressed, and had their food, except in fine weather, when they took their meals on deck, their food consisting almost entirely of inferior salted pork, beef, which was sometimes nearly as hard and unpalatable as the kids in which it was served, and brown biscuits, too often mouldy and full of maggots. To make matters worse, the forecastle of the ship to which the Author refers was full of rats, and he has the most vivid recollection of one of these animals on more than one occasion finding its way into the hammock where he slept. In the West Indies the place was so suffocatingly hot that the sailors invariably slept wherever they could find a clear place upon deck or in the tops; and in winter, when approaching the English Channel, or when on an intermediate voyage to the Bay of Fundy, it was as bitterly cold, no stoves or fires of any kind being allowed on board except in the galley and in the cabin. No Siberian slaves ever suffered so much from the intensity of the cold as did those of the sailors and apprentices of that ship, who had not deserted, during two months of a winter when she lay at anchor in one of the roadsteads of the Bay. The bow ports were then obliged to be open to receive the cargo, and could only be covered with matting during the night. One of these ports opened upon the forecastle, so that its occupants might almost as well have slept upon deck, their damp clothes as they lay upon the chests or hung suspended from the beams being frequently frozen to such an extent that the ice had to be beaten from them before they could be again used.

[409] “Wearing” is the reverse of tacking. The head of the vessel in this operation is put away from the wind and turned twenty points of the compass, instead of twelve, and without strain is brought up on the opposite tack. Lords St. Vincent, Exmouth, and other distinguished naval officers preferred “wearing” when possible, as less damaging to the sails and spars than tacking; but in merchant vessels, where progress is an object, tacking, when practicable, is invariably adopted.

[410] Dana’s ‘Seaman’s Friend.’

[411] “Serving,” or service-rope, is spun yarn wound round a rope by means of a serving board or mallet (Adm. W. H. Smyth, p. 608).

[412] The Dutch government do not compel the owners of merchant vessels to take any fixed number of seamen, as was required in British ships under the Navigation Act, but the Dutch Commercial Society, a very large trading company, appears to have made a regulation in the year 1843, that every Dutch ship which went out to Batavia should take on board one ass for every hundred tons! Evidence of Mr. William von Houten before a Committee of the House of Commons, 1843.

[413] Evidence given before a Committee of the House of Commons, 1843.

[414] Nautical terms for raising and stowing the anchor.

[415] The “earrings” are small ropes to fasten the upper corners of the sail to the yard. The “courses” are the sails hanging from the lower yards of a ship, viz, the mainsail, foresail, and mizen. A ship is said to be “under her courses” when no other sails are set (Admiral W. H. Smyth, pp. 270 and 218).

[416] In a man-of-war there is always a lieutenant of the watch on the weather side of the quarter-deck, but it is not so in the merchant service. When the ordinary day’s work is going forward the mates must be about the decks or aloft, like the petty officers of a ship of war; and it is only while the work is going forward, or in bad weather, on Sundays, or at night, that the officer of the watch, if the master is not there, keeps the quarter-deck.

[417] Chancellor Kent impugns this decision, and says the warranty of seaworthiness implies no more than that the assured must have a sound and well-equipped vessel, with reference to the voyage, and have on board a competent person as *master*, a competent person as *mate*, and a competent crew as *seamen*; and he cites cases where, as regards the American coasting and West India trades, this doctrine has been discarded. (See Arnold’s work, p. 721.)

[418] The “bunt” is the middle part or cavity of the square sails, that is, of the mainsail, foresail, topsails, and top-gallant sails.

[419] “Ratlings,” or rat-lines, are small ropes crossing the shrouds parallel with the deck, and answering the purpose of the rounds of a ladder.

[420] “Graftings” are ornamental weavings of fine yarn, etc, on the strop of a block; applied also to the tapering ends of ropes, sometimes called “pointings” (Admiral W. H. Smyth, pp. 562 and 345).

[421] The chief mate has no authority over the carpenter *in his trade*, except in the case of the master’s absence or disability. In all things pertaining to the working of the vessel, however, and as far as he acts in the capacity of seaman, he must obey the orders of the officers as implicitly as any of the crew; though, perhaps, an order from the second mate would come somewhat in the form of a request. Nevertheless there is no doubt, in point of discipline, he must obey the second mate in his proper place, as much as he would the master in his. Although the carpenter lives in the steerage, he gets his food from the galley, from the same mess with the men in the forecabin, having no better or different fare in any respect, and he has no right on the quarter-deck, but must take his place on the forecabin with the common seamen. In many vessels, during fine weather and on long voyages, the carpenter stands no watch, but “sleeps in” at night, is called at daylight, and works all day at his trade.

[422] “Steerage” generally means the portion of the ’tween-decks just before the gun-room bulk-head in ships of war, and below the after hatchway in merchant vessels.

[423] In regular passenger-ships the cook is not required to do any duty about decks, except in case of necessity, or of common danger. In other vessels, if strongly manned, neither the cook nor steward is sent upon the yards, yet it can, without doubt, be required of them, by the usage and understanding of the Merchant Service, to go upon a topsail or lower yard to reef or furl. In a merchant vessel where all hands are called the order applies to every one on board except the passengers. Those of the crew who do not keep watch are termed “idlers,” who besides turning out with all hands, are sometimes called up to help the watch on deck in any heavy or difficult duty in cases, when it is not desirable to call the other watch, who may have had severe service.

[424] “Seizings,” the fastening of any two ropes, or of different parts of the same rope, with turns of small stuff (Admiral W. H. Smyth, p. 606).

[425] In allotting the jobs among the crew, reference is always had to a man’s rate and capacity, and it is considered a decided imputation upon an “able seaman,” to put him upon inferior work, such as turning the spynarn winch, knotting yarns, or picking oakum, while there are boys on board, or other work to be performed more within the line of his knowledge and capacity.

[426] To repeat the names of the thirty-two points of the compass in order and backwards, and to answer any questions relative to its subdivisions (Admiral W. H. Smyth, 'Sailor's Word Book,' p. 127).

[427] A seaman's spell at the wheel is called his "trick." (Ibid. p. 697.)

[428] A keel is 21 tons 5 cwt.

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APPENDICES.

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The Booke made by the Right Worshipful Mr. Robert Thorne, in the yeere 1527, in Sivil, to Doctour Ley, Lord ambassadour for King Henry the Eight, to Charles the Emperoar, being an information of the parts of the world, discovered by him and by the King of Portingal: and, also of the way to the Moluccaes by the North.

Right noble and reverend in I.C. I have received your letters, and have procured and sent to know of your servant, who, your Lordship wrote, should be sick in Merchena. I cannot there, or elsewhere heare of him, without he be returned to you, or gon to *S. Lucar*, and shipt. I cannot judge but that of some contagious sicknesse hee died, so that the owner of the house, for defaming his house, would bury him secretly, and not be knowen of it. For such things have often times happened in this countrey.

Also to write unto your Lordship of the new trade of Spicery of the Emperour, there is no doubt but that the Islands are fertile of cloues, nutmegs, mace, and cinnamom; and that the said islands, with other there about, abound with golde, rubies, diamonds, balasses, granates, jacincts, and other stones and pearls, as all other lands that are under and near the Equinoctiall. For we see where nature giveth anything she is no niggard. For as with us, and other, that are aparted from the said Equinoctiall, our mettals be lead, tin, and iron, so theirs be gold, silver, and copper. And as our fruits and grains be apples, nuts, and corne, so theirs be dates, nutmegs, pepper, cloues, and other spices, and as we have jeat, amber, cristal, jasper, and other like stones, so have they rubies, diamonds, balasses, saphyres, jacincts, and other like. And though some say that of such precious mettals, graines, or kind of spices, precious stones, the abundance and quantity is nothing so great as our mettals, fruits, or stones, above rehearsed; yet if it be well considered, how the quantitie of the earth under the equinoctiall to both the Tropicall lines (in which place is found the said golde, spices, and precious stones), is as much in quantity as almost all the earth, from the Tropickes to both the Poles; it cannot be denied but there is more quantitie of the sayd mettals, fruites, spices, and precious stones, then there is of the

other mettals, and other things before rehearsed. And I see that the preciousness of these things is measured after the distance that is between us, and the things that we have appetite unto, for in this navigation of the Spicerie was discovered, that these Islands nothing set by golde, but set more by a knife and a nayle of iron, then by his quantitie of golde, and with reason, as the thing more necessary for mans service. And I doubt not but to them should be as precious our corne and seeds, if they might have them, as to us their spice; and likewise the pieces of glasse that here we have counterfeited are as precious to them as to us their stones; which by experience is seen daylie by them that have trade thither. This of the riches of those countries is sufficient.

Doctor Ley's
letters.

This was the fleet
wherein Cabot
discovered the river
of Plate, 1526.

Touching that your Lordship wrote, whether it may bee profitable to the Emperour or no; it may be without doubt of great profite; if, as the king of *Portingal* doth, he would become a merchant, and prouide shippes and their lading, and trade thither alone, and defend the trade of these Islands himselfe. But other greater businesse withholdeth him from this. But still, as now it is begunne to be occupied, it would come to much. For the shippes coming in safetie, there would thither many every yere, of which to the Emperour is due of all the wares and jewels that come from thence the fifth part for his custome cleare without any cost. And besides this, hee putteth in every note a certaine quantitie of money, of which hee enjoyeth of the gaines pound and pounds like as other adventurers doe. In a fleete of three shippes and a carauel that went from this city armed by the merchants of it, which departed in April last past, I and my partener have one thousand four hundred duckets that we employed in the said fleete, principally for that two Englishmen, friends of mine, which are somewhat learned in the Cosmographie, should goe in the same shippes, to bring me certaine relation of the situation of the countrey, and to be expert in the navigation of those seas, and there to have informations of many other things, and advise that I desire to knowe especially. Seeing in these quarters are shippes, and mariners of that countrey, and cardes by which they saile, though much unlike ours, that they should procure to have the said cards and learne how they understand them, and especially to know what navigation they have for those islands northwards, and northeastwards.

The Newe found
Islands discovered
by the English.

Mappe of the
World.

For if from the said islands the sea did extend, without interposition of land, to saile from the north point to the northeast poynt, one thousand seven hundred, or one thousand eight hundred leagues, they should come to the Newfound Islands that we discovered, and so we should be neerer to the sayd Spicerie by almost two thousand leagues then the Emperour, or the King of *Portingal* are.

And to advise your Lordship whether of these Spiceries of the King of *Portingal* or the Emperours is nearer, and also of the titles that either of them hath, and howe our New found lands are parted from it (for that by writing without some demonstration it were hard to give any declaration of it) I have caused that your Lordship shall receive herewith a little Mappe or Carde of the World: the which I feare me shall put your Lordship to more labour to understand than me to make it, onely for that it is made in so little roome, that it cannot be but obscurely set out, that is desired to be seene in it, and also for that I am in this science little expert: yet to remedy in part this difficulty it is necessary to declare to your Lordship my intent, with which I trust you perceiue in this Card part of your desire, if, for that I cannot expresse mine intent, with my declaration I doe not make it more obscure.

First, your Lordship knoweth that the Cosmographers have divided the earth by 360 degrees in latitude, and as many in longitude, under the which is comprehended all the roundnes of the earth: the latitude being divided into foure quarters, ninetie degrees amount to every quarter, which they measure by the altitude of the Poles, that is the north and south starres, being from the line Equinoctiall till they come right under the north starre the said ninetie degrees, and as much from the said line equinoctiall to the south starre be other ninety degrees. And as much more is also from either of the said starres, agayne to the Equinoctiall. Which imagined to bee round, is soone perceived thus, 360 degrees of latitude to be consumed in the said foure quarters of ninetie degrees a quarter: so that this latitude is the measure of the worlde from north to south, and from south to north. And the longitude, in which are also counted other 360, is counted from west to east or from east to west, as in the Card is set.

To know the

The sayd latitude your Lordship may see marked and divided in the ende of this Card on the left hand, so that

latitudes.

if you would know in what degrees of latitude any region or coast standeth, take a compasse, and set the one foot of the same in the Equinoctial line, right against the said region, and apply the other foote of the compasse to the said region or coast, and then set the sayd compasse at the end of the Card, where the degrees are divided. And the one foote of the compasse standing in the line Equinoctial, the other will show in the scale the degrees of altitude or latitude that the said region is in. Also the longitude of the world I have set out in the nether part of the Card, containing also 360 degrees which begin to be counted after *Ptoleme* and other Cosmographers from an headland called *Capo Verde*, which is over against a little crosse, made in the part occidental, where the division of the degrees beginneth, and endeth in the same *Capo Verde*.

To know the
longitudes.

Now to know in what longitude any land is, your Lordship must take a ruler or a compasse, and set the one foot of the compasse upon the land or coast whose longitude you would know, and extend the other foot of the compasse to the next part of one of the transversal lines in the Oriental or Occidental part: which done, set the one foot of the compass in the said transversal line at the end of the nether scale, the scale of longitude, and the other foot sheweth the degree of longitude that the region is in. And your Lordship must understand that this Card, though little, containeth the universal whole world betwixt two collaterall lines, the one in the occidentall part descendeth perpendicular upon the 175th degree, and the other in the orientall on the 170th degree, whose distance measureth the scale of longitude. And that which is without the two said tranversall lines, is onely to show how the Orientall part is joined with the Occident, and Occident with the Orient, for that that is set without the line in the Oriental part, is the same that is set within the other line in the Occidental part; and that that is set without the line in the Occidental part, is the same that is set within the line in the Orientall part, to show that though this figure of the world in plaine or flatte seemeth to have an end, yet one imagining that this said Card were set upon a round thing, where the endes should touch by the lines, it would plainely appeare howe the Orient part joyneth with the Occident, as there without the lines it is described and figured.

And for more declaration of the said Card, your Lordship shall understand, that beginning on the part occidental within the line, the first land that is set out is the maine land, and islands of the Indies of the Emperour. Which maine land or coast goeth northward, and finisheth in the land that we found, which is called here *Terra de Labrador*. So that it appeareth the said land that we found, and the Indies, to be all one maine land.

Now called the
straight of
Magelane.

The sayd coast from the sayd Indies southward, as by the Card your Lordshippe may see, commeth to a certaine straight sea, called *Estrecho de Todos Santos*: by which straight sea the Spainiards goe to the Spicerie, as I shall declare more at large; the which straight sea is right against three hundred fifteene degrees of longitude, and is of latitude or altitude from the Equinoctiall three and fifty degrees. The first land from the sayd beginning of the Card toward the Orient are certaine islands of the *Canaries*, and islandes of *Capo Verde*. But the first maine land next to the line Equinoctial is the sayd *Capo Verde*, and from thence northward by the straight of this sea of *Italie*. And so followeth *Spayne*, *France*, *Flanders*, *Almaine*, *Denmarke*, and *Norway*, which is the highest part toward the north. And over against Flanders are our islands of *England* and *Ireland*. Of the landes and coastes within the streights I have set out onely the regions, dividing them by lines of their limits, by which plainely I thinke your Lordship may see, in what situation everie region is, and of what highnesse, and with what regions it is joyned. I doe thinke few are left out of all *Europe*. In the parts of *Asia* and *Affrica* I could not so well make the sayd divisions: for that they be not so well knowen nor need not so much. This I write because in the said Card be made the said lines and strikes, that your Lordship should understand wherefore they doe serve. Also returning to the aforesaid *Capo Verdo*, the coast goeth southward to a cape called *Capo de buona Speransa*, which is right over against the 60 and 65 degree of longitude. And by this cape go the Portingals to their Spicerie. For from this cape toward the Orient, is the land of *Calicut*, as your Lordship may see in the headland over against the 130 degree. Fro the sayd Cape of *Buona Speransa* the coast returneth toward the line equinoctiall, and passing forth, entreth the Red Sea, and returning out, entreth again into the gulfe of Persia, and returneth toward the Equinoctiall line, till that it commeth to the headland called *Calicut* aforesayd, and from, thence the coast making a gulfe, where is the river of *Ganges*, returneth toward the line to a headland called *Malaca*,

where is the principal Spicerie: and from this Cape returneth and maketh a great gulfe, and after the coast goeth right toward the Orient, and over against this last gulfe and coast be many Islands, which be Islandes of the Spiceries of the Emperour. Upon which the Portingals and he be at variance.

Doctor Ley's
demand.

The said coast goeth toward the Orient, and endeth right against the 155 degrees, and after returneth toward the Occident northward: which coast not yet plainly knownen, I may joine to the New found lande found by us that I spake of before. So that I finish with this briefe declaration of the Card aforesayd. Well I know I should also have declared how the coasts within the straights of the Sea of *Italie* runne. It is playne that passing the straights on the north side of that Sea after the coast of *Granado*, and with that which pertaines to *Spaine*, is the coast of that which *France* hath in *Italie*. And then followeth in one piece all *Italie*, which land hath an arme of the sea, with a gulfe which is called *Mare Adriaticum*. And in the bottome of this gulfe is the citie of *Venice*. And on the other part of the sayd gulfe is *Sclavonia*, and next *Grecia*, then the streights of *Constantinople*, and then the sea called *Euxinus*, which is within the sayd streights: and coming out of the said streights, followeth *Turciamaior* (though now on both sides it is called *Turcia*). And so the coast runneth southward to *Syria*, and over against the sayd *Turcia* are the Islands of *Rhodes*, *Candie*, and *Cyprus*. And over against *Italie* are the Islands of *Sicilia* and *Sardinia*. And over against *Spaine* is *Majorca* and *Minorca*. In the ende of the gulfe of *Syria* is *Judea*. And from thence returneth the coast toward the Occident, till it commeth to the streights where we began, which all is the coast of *Affrike* and *Barbarie*. Also your Lordship shall understand that the coastes of the sea throughout all the world, I have colored with yellow, for that it may appeare that all that is within the line colored yellow is to be imagined to be maine land or Islands, and all without the line so coloured to bee Sea: whereby it is easie and light to know it. Albeit in this little roome any other descriptions would rather have made it obscure than cleere. And the sayd coasts of the sea are all set justly after the maner and forme as they lie, as the navigation approveth them throughout all the Card, save onely the coastes and Isles of the Spicerie of the Emperour which is from over against the 160, to the 215, degrees of longitude. For these coastes and situations of the Islands every of the Cosmographers and pilots of *Portingal* and *Spayne* do set after their

purpose. The Spanards more toward the Orient because they should appeare to appertain to the Emperour: and the Portingals more toward the Occident, for that they should fall more within their jurisdiction. So that the pilots and navigants thither, which in such cases should declare the truth, by their industrie do set them falsely every one to favour his prince. And for this cause can be no certaine situation of that coast and islands till this difference betwixt them be verified. Now to come to the purpose of your Lordships demand touching the difference between the Emperour and the king of *Portingal*, to understand it better, I must declare the beginning of this discoverie. Though peradventure your Lordship may say that in that I have written ought of purpose, I fall in the proverbe, *a gemino ouo bellum*. But your Lordship commanded me to be large, and I take license to be prolixious, and shall be peradventure tedious, but your Lordship knoweth that *Nihil ignorantia verbosius*.

The Pope
reprehended.

In the yeere 1484 the king of *Portingal* minded to arme certaine Carvels to discover this Spicerie. Then forasmuch as he feared that being discovered, every other prince woulde sende and trade thither, so that the cost and peril of discovering should be his, and the profite common; wherefore first he gave knowledge of this his mind to all princes Christened, saying that hee would seeke amongst the infidels newe possessions of regions, and therefore would make a certaine armie: and that if any of them would helpe in the cost of the sayd armie, he should enjoy his part of the profite or honour that should come of it. And as then this discovering was holden for a strange thing and uncertaine; nowe they say that all the Princes of Christendome answered, that they would be no part of such an armie, nor yet of the profit that might come of it. After the which he gave knowledge to the Pope of his purpose, and of the answeere of all the Princes, desiring him that seeing that none would helpe in the costes, that he would judge all that should bee found and discovered to be of his jurisdiction and command that none other princes should intermeddle therewith. The Pope said not as Christ saith, *Quis me constituit iudicem inter vos?* He did not refuse, but making himself as Lord and judge of all, not onely granted that all that should be discovered from Orient to Occident should be the kings of *Portingal*, but also, that upon great censures no other Prince should discover but he. And if they did, all to bee the kings of *Portingal*. So he armed a fleete, and in the yeere 1497

were discovered the Islands of *Calicut*, from whence is brought all the spice he hath.

After this in the yere 1492, the kinge of Spaine willing to discover lands toward the Occident without making any such diligence, or taking licence of the king of *Portingal*, armed certaine carvels, and then discovered this *India Occidental*, especially two Islands of the sayd *India*, that in this Card I set forth, naming the one *La Dominica*, and the other *Cuba*, and brought certaine golde from thence, of the which when the king of *Portingal* had knowledge, he sent to the king of *Spaine*, requiring him to give him the sayd islands. For that by the sentence of the Pope all that should be discovered was his, and that hee should not proceede farther in the discoverie without his licence. And at the same time it seemeth that out of *Castil* into *Portingal* had gone for feare of burning infinite number of Jewes that were expelled out of *Spaine*, for that they would not turne to be Christians, and carried with them infinite number of golde and silver. So that it seemeth the king of *Spaine* answered, that it was reason that the king of *Portingal* asked, and that to be obedient to that which the Pope had decreed, he would give him the sayd Islands of the *Indies*. Nowe for as much as it was decreed betwixt the sayde kings that none should receive the others subjects, fugitives, nor their goods, therefore the king of *Portingal* should pay and returne to the king of *Spaine* a million of golde or more, that the Jewes had caryed out of *Spaine* to *Portingal*, and that in so doing he would give these Islands and desist from any more discovering. And not fulfilling this, he would not not onely not give these Islands, but procure to discover more where him thought best. It seemeth that the king of *Portingal* would not, or could not with his ease pay this money. And so not paying, that he could not let the king of *Spaine* to discover: so that he enterprised not toward the Orient where he had begun and found the Spicerie, and consented to the king of *Spaine*, that touching this discovering they should divide the worlde betweene them two. And that all that should be discovered from *Cape Verde*, where this Card beginneth to be counted in the degrees of longitude, to 180 of the sayd scale of longitude, which is halfe the world toward the Orient, and finisheth in this Card right over against a little crosse made at the said 180 degrees, to be the king of *Portingals*. And all the land from the said Crosse towarde the Occident, until it joyneth with the other Crosse in the Orient, which containeth the other hundreth and eightie degrees, that is the other halfe of the worlde, to

be the king of *Spaines*. So that from the land over against the said hundreth and eighty degrees untill it finish in the three hundred and sixtie on both the ends of the Card, is the jurisdiction of the king of Spaine. So after this maner they divided the world betweene them.

The Longitudes
hard to be found
out.

Now for that these Islands of Spicery fall neere the terme and limites betweene these princes (for as by the sayd Card you may see they begin from one hundred and sixtie degrees of longitude, and ende in 215), it seemeth all that falleth from 160 to 180 degrees should be of *Portingal*: and all the rest of *Spaine*. And for that their Cosmographers and Pilots coulde not agree in the situation of the sayde Islandes (for the *Portingals* set them all within their 180 degrees, and the *Spanards* set them all without): and for that in measuring, all the Cosmographers of both partes, or what other that ever have bene cannot give certaine order to measure the longitude of the worlde, as they doe of the latitude: for that there is no starre fixed from East to West, as are the starres of the Poles, from North to South, but all mooveth with the mooving divine: no maner can bee founde howe certainly it may bee measured, but by conjectures, as the Navigants have esteemed the way they have gone. But it is manifest that *Spaine* had the situation of al the lands from *Cape Verde*, toward the Orient of y'e *Portingals* to their 180 degrees. And in all their Cardes they never hitherto set the saide Islands within their limitation of the sayd 180 degrees, (though they knew very well of the Islands,) till now that the *Spaniards* discovered them. And it is knowen that the king of *Portingal* had trade to these Islands afore, but would never suffer *Portingal* to go thither from *Calicut*: for so much as he knew that it fell out of his dominion: least by going thither there might come some knowledge of those other Islands of the king of *Spaine*, but bought the cloves of marchants of that countrey, that brought them to *Calicut*, much deerer than they would have cost, if he had sent for them thinking after this maner it would abide alwayes secret. And now that it is discovered he sendes and keepes the Spaniards from the trade all that he can.

Also it should seeme that when this foresaid consent of the division of the worlde was agreeed of betweene them, the king of *Portingal* had already discovered certaine Islandes that lie over against *Cape Verde*, and also certaine part of the maine lande of *India* toward the South, from whence he

sette *Brasill*, and called it the land of *Brasil*. So for that all should come in his terme and limites, hee tooke three hundred and seventie leagues beyond *Cape Verde*: and after this, his 180 degrees, being his part of the worlde, should begin in the Carde right over against the 340 degrees, where I have made a little compasse with a crosse, and should finish at the 160 degree, where also I have made another little marke. And after this computation without any controversy, the Islands of the Spicery fal out of the *Portingals* domination. So that nowe the *Spaniards* say to the *Portingals*, that if they would beginne their 180 degrees from the sayde *Cape Verde*, to the intent they should extende more toward the Orient, and so to touch those Islandes of the Spicerie of the Emperour, which is al that is betweene the two crosses made in this Card, that then the Islands of *Cape Verde* and the lande of *Brasil* that the *Portingals* nowe obtaine is out of the said limitation, and that they are of the Emperours. Or if their 180 degrees they count from the 370 leagues beyond the said *Cape Verde*, to include in it the said Islands and lands of *Brasil*, then plainly appeareth the said 180 degrees should finish long before they come to these Islands of the Spicerie of the Emperour: As by this Carde your Lordship may see. For their limits should begin at the 340 degrees of this Carde, and ende at the 160 degrees, where I have made two little markes of the compasse with crosses in them.

So that plainly it shoulde appeare by reason, that the *Portingals* should leave these Islands of *Cape Verde* and land of *Brasil*, if they would have part of the Spicerie of the Emperours: or els holding these, they have no part there. To this the *Portingals* say that they will beginne their 180 degrees from the self same *Cape Verde*: for that it may extende so much more toward the Orient, and touch these Islandes of the Emperours: and woulde winne these Islands of *Cape Verde* and land of *Brasil* neverthelesse, as a thing that they possessed before the consent of this limitation was made.

So none can verely tell which hath the best reason. They be not yet agreed. *Quare sub Judice lis est.*

But without doubt (by all conjectures of reason), the sayd Islands fall all without the limitation of *Portingal* and pertaine to *Spaine*, as it appeareth by the most part of all the Cardes made by the *Portingals*, save those which they have falsified of late purposely.

New found land
discovered by the
Englishmen.

But now touching that your Lordship wrote, whether that which we discovered toucheth anything the aforesayd coastes: once it appeareth plainely, that the Newefound land that we discovered, is all a maine land with the *Indies* occidentall, from whence the Emperour hath all the gold and pearles; and so continueth of coast more than 5000 leagues of length, as by this Carde appeareth. For from the said New lands it proceedeth toward the Occident to the *Indies*, and from the *Indies* returneth toward the Orient, and after turneth southward up till it come to the Straits of *Todos Santos*, which I reckon to be more than 5000 leagues.

Note.

So that to the *Indias* it should seeme that we have some title, at least that for our discovering we might trade thither as others doe. But all this is nothing neere the Spicerie.

To sail by the Pole.

Of the Straites of
Magelane.

Now then if from the sayd New found lands the sea be navigable, there is no doubt, but sayling northward and passing the Pole, descending to the Equinoctiall line, we shall hit these Islands, and it should be a much shorter way, than either the *Spanards* or the *Portingals* have. For we be distant from the Pole but thirty and nine degrees, and from the Pole to the Equinoctiall be ninetie, the which added together, bee an hundred twenty and nine degrees, leagues 2489, and miles 7440: Where we should find these Islands. And the Navigation of the Spaniards to the Spicerie is, as by this Card you may see, from *Spaine* to the Islandes of *Canarie*, and from these Islandes they runne over the line Equinoctiall southwarde to the Cape of the maine land of the Indians, called the *Cape of Saint Augustine*, and from this Cape southwards to the straites of *Todos Santos*, in the which navigation to the said straites is 1700 or 1800 leagues; and from these Straites being past them, they return towarde the line Equinoctiall to the Islands of Spicerie, which are distant from the saide Straites 4200, or 4300 leagues.

The navigation of the Portingals to the said Islandes is departing from *Portingal* southward toward the *Cape Verde*, and from thence to another Cape passing the line Equinoctiall called *Capo de Bona Speransa*, and from *Portingal* to the Cape is 1800 leagues, and from this Cape to the Islands of Spicerie of the Emperour is 2500 leagues.

So that this navigation amounteth all to 4300 leagues. So that (as afore is sayd) if between our Newe found lands, or *Norway*, or Island, the seas towards the north be navigable, we should goe to these Islands a shorter way by more than 2000 leagues.

Note.

Benefite to
England.

And though we went not to the sayd Islandes, for that they are the Emperours or kings of *Portingal*, wee shoulde by the waye and comming once to the line Equinoctiall, finde landes no lesse riche of golde and Spicerie, as all other landes are under the sayd line Equinoctiall: and also should, if we may pass under the North, enjoy the navigation of all *Tartarie*. Which should be no lesse profitable to our commodities of cloth than these Spiceries to the Emperour, and king of *Portingal*.

Objection.

But it is a generall opinion of all Cosmographers, that passing the seventh clime, the sea is all ice, and the colde so much than none can suffer it. And hitherto they had all the like opinion, that under the line Equinoctiall for much heate, the land was uninhabitable.

Answered.

A true opinion.

A voyage of
discovery by the
Pole.

M. Thorne and M.
Eliot discoverers of
New found land.

The cause why the
West Indies were
not ours; which also
Sebastian Gabot
writeth in an Epistle
to Baptista
Ramusius.

Yet since (by experience is proved) no lande so much habitable nor more temperate. And to conclude, I thinke the same should be found under the North, if it were experimented. For as all judge, *nihil fit vacuum in rerum natura*. So I judge there is no land uninhabitable, nor sea innavigable. If I should write the reason that presenteth this unto me, I should be too prolix, and it seemeth not requisite for this present matter. God knoweth that though by it I should have no great interest, yet I have had and still have no little mind of this businesse: so that if I had facultie to my will, it should be the first thing that I woulde understand, even to attempt, if our seas northward be navigable to the Pole, or no. I reason, that as some sicknesses are hereditarious, and come from the father to the sonne, so this inclination or desire of this discoverie I inherited of my father, which with another marchant of *Bristow* named *Hugh Eliot*, were the discoverers the New found lands, of the which there is

no doubt (as nowe plainely appeareth), if the mariners would then have bene ruled, and followed their pilots minde, the lands of the West Indies (from whence all the gold commeth) had bene ours, For all is one coast, as by the Carde appeareth, and is aforesayd.

Also in this Carde by the Coastes where you see C. your Lordship shall understand it is set for Cape or headland, where I. for Iland, where P. for Port, where R. for River. Also in all this little Carde, I think nothing be erred touching the situation of the land, save only in these Ilands of Spicerie; which for that (as afore is sayd) every one setteth them after his mind, there can be no certification how they stand. I doe not denie that there lacke many things, that a consummate Carde should have or that a right good demonstration desireth. For there should be expressed, all the mountaines and rivers that are principall of name in the earth, with the names of Portes of the sea, the names of all principall cities, which all I might have set, but not in this Carde, for the little space would not consent.

Your Lordship may see that setting onely the names almost of every region, and yet not of all, the roome is occupied. Many Islands are also left out, for the said lack of roome, the names almost of all Portes put to silence, with the roses of the windes or points of the compasse: For that this is not for Pilots to sayle by, but a summary declaration of that which your Lordship commanded. And if by this your Lordship cannot wel perceive the meaning of this Carde, of the which I would not marveile, by reason of the rude composition of it, will it please your Lordship to advise me to make a bigger and a better mappe or els that I may cause one to be made. For I know myself in this and all other nothing perfect, but *Licet semper discens, nonquam tamen ad perfectam scientiam perueniens*. Also I know, to set the forme sphericall of the world in Plano after the true rule of Cosmographie, it would have bene made otherwise than this is: howbeit the demonstration should not have bene so plaine.

And also these degrees of longitude, that I set in the lower part of this Card, should have bin set along by the line Equinoctiall, and so then must be imagined. For the degrees of longitude neere either of the poles are nothing equalled in bignesse to them in the Equinoctiall. But these are set so, for that setting them along the Equinoctial, it would have made obscure a great part of the map. Many other curiosities may be required which for the nonce I did not set downe, as well for that the intent I had principally, was

to satisfy your doubt touching the spicerie, as for that, I lack leasure and time. I trust your Lordship correcting that which is erred, will accept my good will, which is to doe anything that I may in your Lordships service. But from henceforth I knowe your Lordship will rather command me to keep silence than to be large, when you shall be wearied with the reading of this discourse. Jesus prosper your estate and health.

Your Lordships,

ROBERT THORNE, 1527.

Also this Carde, and that which I write touching the variance between the Emperour and the king of *Portingal* is not to be shewed or communicated there with many of that court. For though there is nothing in it prejudicial to the Emperour, yet it may be a cause of paine to the maker; as well for that none may make these Cardes but certaine appointed, and allowed for masters, as for that peradventure it would not sound well to them, that a stranger should know or discover their secretes: and would appeare worst of all, if they understand that I write touching the short way to the Spicerie by our seas. Though peradventure of troth it is not to be looked to, as a thing that by all opinions is impossible, and I thinke never will come to effect: and therefore neither here nor elsewhere is to be spoken of. For to move it amongst wise men, it should be had in derision. And therefore to none I would have written nor spoken of such things; but to your Lordship to whom boldly I commit in this all my foolish fantasie as to myself. But if it please God that into England I may come with your Lordship, I will show some conjectures of reason, though against the general opinions of Cosmographers, by which shall appeare this that I say not to lacke some foundation. And till that time I beseech your Lordship, let it be put to silence; and in the meane season, it may please God to send our two Englishmen, that are gone to the Spicerie, which may also bring more plaine declaration of that which in this case might be desired.

Also I know I needed not to have been so prolix in the declaration of this Carde to your Lordship, if the sayd Carde had beene very well made, after the rules of Cosmographie. For your Lordship would soone understand it better than I, or any other that could have made it: and so it shoulde appeare that I shewed *Delphinum natare*. But for that I have made it after my rude maner, it is necessary that I be the declarer or gloser of my own worke, or els your Lordship should have had much labour to understand it, which now

with it also cannot be excused, it is so grossely done. But I knew you looked for no curious things of mee, and therefore I trust your Lordship will accept this, and hold me for excused. In other mens letters that they write they crave pardon that at this present they write no larger; but I must finish, asking pardon that at this present I write so largely. Jesus preserve your Lordship with augmentation of dignities. [\[429\]](#)

Your servant,

ROBERT THORNE, 1527.

APPENDIX No. 2.

Letter of the Company of the Merchant Adventurers to Russia to their Agents.—Vol. ii. p. 83.

“You shall understand we have fraighted for the parts of Russia foure good shippes to be laden there by you and your order: That is to say, the *Primerose* of the burthen of 240 Tunnes, Master under God, John Buckland: The *John Evangelist*, of 170 Tunnes, Master under God, Laurence Roundal: The *Anne* of London, of the burthen of 160 Tunnes, Master under God, David Philly; and the *Trinitie* of London of the burthen of 140 Tunnes, Master under God, John Robins, as by their charter parties may appeare; which you may require to see for divers causes. You shall receive, God willing, out of the said good ships, God sending them in safety for the use of the Company, these kinds of wares following, all marked with the general marke of the Company as followeth, 25 fardels containing 207 sorting clothes, one fine violet in graine, and one skarlet, and 40 cottons for wrappers, beginning with number 1, and ending with number 52. The sorting clothes may cost the first peny 5*l.* 9*s.*, the cloth, one with the other. The fine violet 18*l.* 6*s.* 6*d.* The skarlet 17*l.* 13*s.* 6*d.*, the cottons at 9*l.* 10*s.* the packe accompting 7 cottons for a packe: more 500 pieces of Hampshire kersies, that is 400 watchets, 43 blewes, 53 reds, 15 greenes, 5 ginger colours, 2 yellowes which cost the first peny 4*l.* 6*s.* the piece, and three packes containing 21 cottons at 9*l.* 10*s.* the packe, and part of the clothes is measured by Arshines. More 9 barrels of Pewter of Thomas Hasels making &c. Also the wares bee packed and laden as is aforesayde, as by an invoice in every shippe more plainly may appeare. So that when it shall please God to send the saide good shippes to you in safetie, you are to receive our said goods, and to procure the sales to our most advantage either for ready money, time or barter: having consideration that you doe make good debts, and give such time, if you give any, as you may employ and returne the same against the next voyage; and also foreseeing that you barter to a profit and for such wares as be here most vendible, as waxe, tallowe, traine oile, hempe and flaxe. Of furies we desire no great plentie, because they be dead wares. And as for felts we will in no wise you send any. And whereas you have provided tarre, and as we suppose, some hempe ready bought, our

advise is that in no wise you send any of them hither unwrought because our freight is 4*l.* a Tunne or little less: which is so deare, as it would not beare the charges; and therefore we have sent you 7 ropemakers, as by the copies of covenants here inclosed shall appeare; whom we will you set to worke with all expedition in making of cables and ropes of all sorts. Let all diligence be used that at the returne of these shippes we may see samples of all ropes and cables if it be possible, and so after to continue in worke, that we may have good store against the next yeere. Therefore they have neede to have a place to work in, in the winter; and at any hand let them have hempe ynough to spinne their stuffes; for seeing you have great plentie of hempe there, and at a reasonable price, we trust we shall be able to bring as good stuffe from thence, better and cheaper than out of Danske; if it be diligently used, and have a good overseer.

“Let the chiefest lading of these foure shippes be principally in waxe, flaxe, tallowe, and trayne oyle. And if there be any more wares than these ships be able to take in, then leave that which is least in valeu and grossest in stowage untill the next shipping; for wee do purpose to ground ourselves chiefly upon those commodities, as waxe, cables and ropes, traine oyle, flaxes and some linen yarne. As for Masts, Tarre, Hempe, Feathers, or any such other like, they would not bear the charges to have any considering our deere freight. We have sent you a skinner to be there at our charges for meate, drinke and lodging, to view and see such furies as you shall consider cheape and buye, not minding nevertheless, that you shall charge yourselves with many, except those which be most vendible, as good martens mimures, otherwise called Lettis and Mynkes. Of these you may send us plentie, finding them good and at a reasonable price. As for sables and other rich furies, they bee not every mans money; therefore you may send the fewer, using partly the discretion of the Skinner in that behalfe.

“We heare that there is great plentie of steele in Russia and Tartarie whereof wee would you sent us part for an example and to write your mindes in it what store is to be had; for we heare say there is great plentie and that the Tartars steele is better than that in Russia. And likewise we be informed that there is great plentie of Copper in the Emperours Dominions; we would be certified of it what plentie there is and whether it be in plates or in round flat cakes, and send us some for example. Also we would have you to certifie us what kind of woollen cloth the men of Rie and Reuel and the

Poles and Lettoes doe bring to Russia and send the scantlings of them with part of the lists and a full advice of the lengths and breadths, colours and prices, and whether they be stained or not: and what number of them may be uttered in a yeare, to the intent that we may make provisions for them for the like sorts, and all other Flemish wares which they bring thither and be most vendible there. And to certifie us whether our set clothes be vendible there or not and whether they be rowed and shorne; because of times they goe undrest. Moreover, we will you send us of every commodity in that Country part, but no great quantity other than such as is before declared. And likewise every kind of Lether, whereof we be informed there is great store bought yeerely by the Esterlings and Duches for hie Almaigne and Germanie.

“More that you doe send us for a prooffe a quantity of such earth, hearbes, or what thing soever it be, that the Russes do die, and colour any kind of cloth, linen or wollen, Lether or any other thing withall: and also part of that which the Tartars and Turkes doe bring thither, and how it must be used in dying and colouring. Moreover that you have a special foresight in the chusing of your Tallowe and that it may be well purified and dried, or else it will in one yeere putrifie and consume.

“Also that you certifie us the truth of the weights and measures, and howe they do answere with ours, and to send us 3 nobles in money, that we may try the just value of them.

“Also we doe send you in these ships ten young men that be bound Prentises to the Companie whom we will you to appoint every of them as you shall there find most apte and meete, some to keep accompts, some to buy and sell by your order and commission, and some to send abroad into the notable cities of the Countrey for understanding and knowledge.”[\[430\]](#)

APPENDIX No. 3.

Inventory of ye Great Barke, A.D. 1531.—Vol. ii. p. 93.

“Thys is the inventory of the Great Barke vyeuwyd by youre humble servant Christopher Morris, the 6th day of October, the 23 year of our soverayne King Henry the 8th.

“Item, in primis, the shype with one overlop (overloop or orlop, deck): Item the fore castell, and a cloos tymber deck from the mast forward, whyche was made of lait: Item, above the fore castell, a decke from the mayne mast afterward: Item a nyeu mayne mast of spruce (a sort of fir so called), with a nyeu staye hounsyd (bound round), and skarvyd (or scarfed, one piece of timber let into another in a firm joint) with the same wood; whyche mast ys of length from the hounse to the step 25 yards; the mayne mast, about the patnas, ys 23 hands about: Item a nyeu mayne mast yaerd of spruce of oon piece.

“Item, the takyll pertaynyng to the said mayne maste, 6 takells on a syd.

“Item, 9 shrowds, and a back staye on either syde.

“Item, in all the takylles, 6 shyvers (sheevers or sheaves, which run in the blocks, whether brass or wood) of brass; that is to say 4 shyvers in three pennants, and two in the bowser takylls. Item a payer of thyes (ties or lifts, the ropes by which the yards hang) and a payer of hayliards: Item a gyver (a double block) with two brasing shyvers: item the mayne parrel, with trussys and two drynghs: Item 2 lystys (tysts, ropes which belong to the yard-arms); item 2 braseys: Item 2 tregets: Item a mayne kerse; Item a bonnet (bonnet belonging to another sail) haulf warren, with shouts tacks and bollyings: Item a nieu mayne top: Item a top mast, and a top sayle, with all theyr apparrell: Item a mayne myssen mast; and a mayne myssyn yaerd of spruce of oon pece.

“Item a payer of haylleards, and a tye for the sayd mayne myssen yaerd: item 5 shrouds on eyche (each) syd: item a mayne myssen haulf a top: item a mayne myssen sayle haulf worren.

“Item a bonaventure mast; with a yaerd of spruce of oon pece, with 3 shrouds on a syde. Item a payer of hayliards: item a tye with haulf a top: item a bonaventure sayle, sore worren.

“Item, a foer mast with 4 takylls, and 7 shrouds on a syd: with a tye and a payer of hayliards with 4 brasyn shyvers: Item a fore sayle yaerd with the apparrells, 2 trussys;—item 2 lystys; 2 braessys; 2 top sayll shoutts; 2 bollyngs; a fore staye; item fore sayll shoutts; two tacks such they be, Item foer sayle koors, with 2 bonnetts, sore worren: item a fore top mast, with a yaerd, with sayles, and takyll pertayning to yt.

“Item a bowsprytt of ooke, item a sprytt sayle yard, skarvyd with a sprytt sayle sore worren.

“Item 4 ankers, with two old cabulls;—and another old cabull whyche they say ys in the watar.

“Item towe katt howks (catt hooks to raise the anchor): and two fysche hooks (fish hooks for fishing the anchor): item 4 pollys with brasyn shyvers: item, a snatche polly; a luff hoke (a takell with 2 hooks): item 2 pollys for the mayne top sayle: item 2 great dubbell pollys with woddyn shyver: item 17 pollys, great and small: item 4 kuyll of small ropys of roers stuff: item 4 boye ropys, good and bad; a fyd of iron (an instrument used for splicing ropes known as a marlin-spike): item a shype kettel of 24 gallons: item a pytche pott of brasse: item a grynding stoen: item a crowe of yeron: item a pytche trouth.

“Item a pompe with three boxys; and a pomp stavys: item 3 compasses, and a kenning glass (spy-glass or telescope): item 5 lanternnes.

“Item a great boat pertayning to the shyppe; with a davyd, with a shyver of brass: item xii owers, and a schulb.

“Hereafter followeth the ordinances pertayning to the sayde shype, item, in primis, two brazyn pecys called kannon pecyes on stokyys which wayith, The one 9c. 3q. 11lb. the other 10c. 1q. 17lb. whole weight 20c. 28lb: Item 2 payer of shod wheelles nyeu: item 2 ladyng ladells.

“Starboard side. Item oon port pece of yeron cast with 2 chambers: item a port pece of yeron, with one chamber: Item a spruyche slyng with one chamber.

“Larboard side. Item oon port pece with 2 chambers: Item another port pece, with oon chamber, whyche chamber was not made for the sayd pece.

“In the forecastell. Item a small slyng with 2 chambers. Item another pece of yeron with 2 chaemers, the oon broken.”[\[431\]](#)

APPENDIX No. 4.

Furniture of the Harry Grâce à Dieu, in Pepysian Library at Cambridge,
Vol. ii. p. 94.

GONNES OF BRASSE.		GUNNES OF YRON.	
Cannons	iiii	Port Pecys	xiii
Di-Cannons	iii	Slyngs	iiii
Culveryns	iiii	Di-Slyngs	ii
Sakers	iiii	Fowlers	viii
Cannon Pesers	ii	Baessys	lx
Fawcons	ii	Toppe peces	ii
		Hayle shotte pecys	xl
		Hand Gonnes complete	c
GONNEPOWDER.		SHOTTE OF YRON.	
	Lasts.	For Cannons	c
Serpentyn Powder in Barrels	ii	For Di-Cannons	lx
Corn Powder in Barrels	vi	For Culveryns	cxx
		For Di-Culveryns	lxx
		For Sakers	cxx
		For Fawcons	c
		For Slyngs	c
		For Di-Slyngs	l
		Crosse barre Shotte	c
		Dyce of Yron for Hayle Shotte	iiii ^m

SHOTTE OF STOEN AND LEADE.		MANYCIONS.	
For Canon Peser	lx	Pych hamers	xx
For Porte Pecys	ccc	Sledges of Yron	xii
For Fowlers	c	Crows of Yron	xii
For Toppe Pecys	xl	Comaunders	xii
For Baessys Shotte of Leade	ii ^m	Tampions	v ^m
		Canvas for Cartowches	i ^{quar}
		Paper Ryal for Cartowches	vi

Arrowes, Morry Pycks

Byllys, Daerts for Toppys

Bowes, Bowestryngs

Bowes of Yough v^c

Bowe Stryngs x Grocys

Morrys Pykes cc

Byllys cc

Daerts for Toppis, Doussens c

HABILLIMENTS OF WARRE.

Ropis of Hempe for wolyng and brechyng x Coyll

Naglis of sundere sorts i^m

Baggs of Ledder xii

Fyrkyns with Pursys vi

Lyme Potts x Douss.

Spaer Whelys iiiii Payer

Spaer Truckells iiiii Payer

Spaer Extrys	xii
Shepe Skynnys	xxiii
Tymber for Forlocks	c Feet

APPENDIX No. 5.

Names of all King's Majesty's Shippes, Galleys, Pynnasses, and Row barges; with their tonnage and number of Soldiers, Mariners, and Gunners; and also the places where they now be.

5 Jan. A. R. Ed. VI. primo.

Vol. ii. p. 95.

SHIPPES AT WOLWIDGE.

The *Harry Grâce à Dieu*, 1000 tons. Souldiers, 349. Marryners, 301. Gonners 50. Brass Pieces, 19. Iron Pieces, 103.

AT PORTSMOUTH.

	Tons.	Soldiers.	Brass Pieces.	Iron Pieces.
The Peter	600	400	12	78
The Mattheue	600	300	10	121
The Jesus	700	300	8	66
The Pauncy	450	300	13	69
The Great Barke	500	300	12	85
The Lesse Barke	400	250	11	98
The Murryan	500	300	10	53
The Shruce of Dawske	450	250	10	39
The Cristoffer	400	246	2	51
The Trynytie Henry	250	220	1	63
The Swepe Stake	300	230	6	78

The Mary Willoughby	140	160	6	23
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GALLIES AT PORTSMOUTH.

	Tons.	Soldiers.	Brass Pieces.	Iron Pieces.
The Anne Gallant	450	250	16	46
The Sallamander	300	220	9	40
The Harte	300	200	4	52
The Antelope	300	200	4	40
The Swallowe	240	100	8	45
The Unycorne	240	140	6	30
The Jeannet	180	120	6	35
The New barke	200	140	5	48
The Greyhounde	200	140	8	37
The Teager	200	120	4	39
The Bulle	200	120	5	42
The Lyone	140	140	2	48
The George	60	40	2	26
The Dragone	140	120	3	42

PYNNASSES AT PORTESMOUTH.

	Tons.	Soldiers.	Brass Pieces.	Iron Pieces.
The Fawcone	83	55	4	22
The Black Pynnes	80	44	2	15
The Hynde	80	55	2	26
The Spannysheshallop	20	26	2	7
The Hare	15	30	2	10

ROW-BARGES AT PORTESMOUTH.

	Tons.	Soldiers.	Brass Pieces.	Iron Pieces.
The Sonne	20	40	2	6
The Cloude in the Sonne	20	40	2	7
The Harpe	20	40	1	6
The Maidenheade	20	37	1	6
The Gilly Flowre	20	38	1	6
The Ostredge Flowre	20	37	1	6
The Roose Slipe	20	37	2	6
The Flower de lewce	20	43	2	7
The Rose in the Sonne	20	38	1	6
The Port quilice	20	38	1	6
The Fawcone in the Fetterlock	20	45	3	8

DEPTFORD STRAND.

	Tons.	Soldiers.	Brass Pieces.	Iron Pieces.
The Graunde Mrs	450	250	1	22
The Marlyon	40	50	4	8
The Galley Subtill, or Roo Galley	200	250	3	28
The Brickgantyne	40	44	3	19
The Hoyer barke	80	60	3	5
The Hawthorne	20	37	3	5

IN SCOTLAND.

	Tons.	Soldiers.	Brass Pieces.	Iron Pieces.
The Mary Hamborrow	400	246	5	67
The Phœnix	40	50	4	33
The Saker	40	50	2	18
The Doble Roose	0	43	3	6

	Tons.	Nombre of Men.
Totale Number of Ships, &c.	53	6255
Soldiers		1885
Maryners		5136
Gonners		759
		7780 ^[432]

APPENDIX No. 6.

Vol. ii. p. 177.

“A note of all the Shippes that’s bound for Turkey out of England, and the Burden of them and the Captaynes Names as followeth: [\[433\]](#)”

THE KING’S MAT^{IES} SHIPPS.

	Tunns	Capt.
The Lyon	668	Sir Robert Mansell
The Vantgard	661	Sir Rich. Hawkins
The Raine bow	661	Sir Tho. Batten.
The Reformation	620	Cap. Manering.
The Destine	550	Cap. Love.
The Anthelopp	443	Sir Hen. Palmer.

THE MARCHANTS.

The Low fenex	300	Cap. Cave.
The Hercules	300	Cap. Pennington.
The Samuell	300	Cap. Harris.
The Hector	300	Cap. Towerson.
The Neptune	300	Cap. Haughton.
The Bonaventure	300	Cap. Chidlie.
The Centurion	250	Sir Fra. Tanfield.
The Marigold	250	Sir John Fearn.
The Primrose	180	Sir John Handen.
The Barbary	180	Cap. Porter.
The Restore	130	Cap. Raymond.

The George	130	Cap. Pett.
The Robert	100	Cap. Gyles.
The Marmaduke	100	Cap. Harbest.”

APPENDIX No. 7. VOL. ii. p. 433.

MERSEY DOCKS AND HARBOUR BOARD.

Tabular Statement, showing the Water Area, Quay Space, Width of Entrance, and Depth of Sill for each of the Liverpool and Birkenhead Docks, with particulars of the Graving Docks, Open Basins, Landing Stages, and Gridirons.

JANUARY, 1872.

The Old Dock Sill is the Datum to which all Levels refer, and is preserved on a Tide Gauge at the West side of the Centre Pier of the Entrances to the Canning Half-Tide Dock.

The Old Dock contained an Area of 3 acres 1890 yards, and 557 lineal yards of Quay Space.

Its Passage contained an Area of 3 acres 675 yards, and 90 lineal yards of Quay Space.

LIVERPOOL DOCKS.

LIVERPOOL DOCKS.	Position and Width of Entrance or Passage.	Sill below Datum.	Coping at Hollow Quoins above Dtm.	Water Area.	Lineal Quayage.
	Ft. In.	Ft. In.	Ft. In.	Ac. Yds.	Miles Yds.
North Carrier's Dock	West 40 0	6 0	27 0	2 3423	0 641
South Carrier's Dock	West 40 0	6 0	27 0	1 4515	0 615

Canada Half-Tide Dock	West	60	0	7	9	28	0	11 1010	0 1002
Canada Half-Tide Dock	South	80	0	7	9	28	0	..	..
Canada Half-Tide Dock (Lock 110 feet long)	N. West	32	0	6	0	28	0	..	..
Canada Half-Tide Dock	S. West	20	0	6	0	28	0	..	..
Canada Lock (498 ft. long)		100	0	7	9	28	0	1 3479	0 487
Canada Dock	S. East	50	0	6	6	29	0	17 4043	0 1272
Canada Dock	S. West	80	0	6	6	29	0	..	..
Huskisson Dock	..	..		..		..		14 3451	0 1039
Huskisson Branch Dock.	..	..		..		..		7 592	0 910

Huskisson Lock (338 ft. long)	East	80	0	6	6	38	0	0	4682	0	342
Huskisson Lock (338 ft. long)	West	45	0	6	0	26	0	0	3650	0	330
Sandon Dock	West	70	0	6	6	30	11	10	100	0	867
Wellington Half-Tide Dock.	East	70	0	6	9	30	9	3	813	0	400
Wellington Half-Tide Dock.	West	50	0	6	6	28	0	..		..	
Wellington Dock	West	70	0	6	6	31	0	7	4120	0	820
Bramley- Moore Dock	North	60	0	6	0	26	0	9	3106	0	935
Bramley- Moore Dock	South	60	0	6	0	26	0	..		..	
Nelson Dock	South	60	0	6	6	26	0	7	4786	0	803

Stanley Dock	West	51	0	5	8	29	0	7	120	0	753
Stanley Dock	Canal	18	0	2	6	29	0	..		..	
Canal Basin, let to Bridgewater Trust	West	18	0	O.D.S.		26	0	0	920	0	110
Collingwood Dock	West	60	0	6	9	26	0	5	244	0	553
Collingwood Dock	Canal	18	0	2	6	26	0	..		..	
Salisbury Dock	West North	60	0	6	11	26	0	3	2146	0	406
Salisbury Dock	West South	50	0	6	11	26	6	..		..	
Salisbury Dock	West Lock	18	0	2	6	26	0	..		..	
Clarence Graving Dock Basin	North	45	0	4	9	26	0	1	1056	0	291

Clarence Graving Dock Basin	South	45	0	4	6	26	6	..	..
Clarence Half-Tide Dock	West	50	0	5	0	26	8	4 1794	0 635
Clarence Dock	West	47	0	3	2	26	0	6 273	0 914
Trafalgar Lock	North	45	0	6	7	23	10	0 2937	0 256
Trafalgar Dock	North	45	0	6	7	21	11	5 4546	0 764
Victoria Dock	North	45	0	4	11	21	11	5 3559	0 755
Victoria Dock	South	50	0	6	6	26	0	..	..
Waterloo Dock	South	60	0	8	0	22	1	3 2146	0 533
Corn Warehouse Dock	South	60	0	8	0	22	1	2 3375	0 506

Half-Tide Dock to Corn Warehouse Dock	West North	65	0	8	0	31	0	4 3250	0 429
Half-Tide Lock (110 ft. long)	West Middle	32	0	8	0	31	0	..	..
Half-Tide Lock	West South	65	0	8	0	31	0	..	..
Prince's Dock	North	45	0	5	11	27	5	11 1490	0 1178
George's Dock	..	..		..		..		5 154	0 645
George's Dock Passage	South	40	3	4	6	24	5	0 2439	0 356
				Sill above Datum					
Manchester Dock	{ West	32	10	0	3	23	3	1 595	0 339
	{			Sill below					

				Datum							
Manchester Lock (86 ft. long)	West	33	8	3	9	24	3	0	315	0	57
Canning Dock	West	45	0	6	1	26	2	4	376	0	585
Canning Half-Tide Dock	West North	45	0	6	3	28	3	2	2688	0	429
Canning Half-Tide Dock	West South	45	0	6	3	28	3	..		..	
Albert Dock	North	45	0	6	4	26	0	7	3542	0	885
Albert Dock	East	45	0	6	0	26	0	..		..	
Salthouse Dock	North	45	0	6	0	26	0	6	2019	0	784
Wapping Basin	North	50	0	6	0	26	0	1	3151	0	454
Wapping Basin	South	50	0	6	0	26	0	..		..	

Wapping Basin	West	40	0	6	0	25	0	..	..
Wapping Dock	West	50	0	6	0	26	0	5 499	0 815
Wapping Dock	South	50	0	6	0	26	0	..	..
King's Dock	South	42	0	5	0	26	1	7 3896	0 875
Queen's Half-Tide Dock	West North	70	0	6	9	31	0	3 3542	0 445
Queen's Half-Tide Dock	West South	50	0	6	9	31	0	..	..
Queen's Dock	West	50	0	6	0	26	0	10 1564	0 1214
Queen's Dock	South	60	0	6	6	28	9	..	..
Coburg Dock	West	70	0	6	0	30	6	8 26	0 1053

Brunswick Dock	North	60	0	6	6	27	0	12 3010	0 1086
Brunswick Dock.	West	42	0	5	6	26	0	..	..
Brunswick Half-Tide Dock	West	45	0	6	0	26	6	1 3388	0 491
Toxteth Dock	West	40	0	5	0	26	0	1 469	0 393
Harrington Dock	West	29	9	1	2	23	1	0 3740	0 315
Herculaneum Half-Tide Dock	North	80	0	8	0	31	0	3 3000	0 416
Herculaneum Half-Tide Dock	South	60	0	8	0	31	0	..	..
Total Water Area and Quay Space of the Liverpool Docks								243 1559	17 263

LIVERPOOL BASINS.

LIVERPOOL BASINS.	Width of Entrance.	Height of Piers above Datum.	Water Area.	Lineal Quayage.
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	Ft.	In.	Ft.	In.	Acres	Yds.	Miles	Yds.
Canada Basin	250	0	32	0	6	4528	0	546
Sandon Basin	200	0	31	0	6	904	0	702
George's Ferry Basin	67	0	23	8	0	1344	0	160
Chester Basin	36	0	22	2	0	2568	0	288
South Ferry Basin	60	0	30	6	0	2927	0	205
Harrington Basin	40	0	23	3	0	3917	0	308
Herculaneum Basin	40	0	26	0	0	2200	0	204
Total Water Area and Quay Space of the Liverpool Basins					15	3868	1	653
Total Water Area and Quay Space of the Liverpool Docks					243	1559	17	263
Total					259	587	18	916

AREA OF THE DOCK ESTATE.	
Liverpool	1,032 Acres.
Birkenhead	506 Acres.
Total	1,538 Acres.

BIRKENHEAD DOCKS.

BIRKENHEAD DOCKS.	Position and Width of Entrance or Passage.	Sill below Datum.	Coping at Hollow Quoins abv. Dtm.	Water Area.	Lineal Quayage.
	Ft. In.	Ft. In.	Ft. In.	Ac. Yds.	Miles Yds.

WEST FLOAT		..	..		..	..		52	19		2	210
Basin near Canada Works	West		50	0	..	..		1	2554		0	543
Basin near Canada Works	East		50	0	..	..		1	84		0	390
Duke Street Passage			100	0	7	6	26	6	..		..	
EAST FLOAT		..	..		..	..		59	3786		1	1506
Corn Warehouse Dock			30	0	O.D.S.		26	0	1	453	0	555
Railway Companies' Basin		..	..		..	..		0	606		0	113
Lock from Low-Water Basin 238 feet long			50	0	..		26	0	0	1333	0	234

Inner Sill	..	..	9	0	..	..	..			
Outer Sills	..	..	12	0	..	..	..			
Inner Northern Entrances	North	100	0	9	0	26	0	..	0	242
Lock 198 feet long	Middle	30	0	..	26	0	0	667	0	264
Inner Sill	..	..	9	0	..	..	..			
Outer Sills	..	..	12	0	..	..	..			
Lock 274 feet long	South	50	0	..	26	0	0	522	0	300
Inner Sill	..	..	9	0	..	..	..			
Outer Sills	..	..	12	0	..	..	..			
Alfred Dock	..	..	..	..	8	2922	0	482		
Outer Northern Entrances										

Lock 348 feet long	North	100	0	12	0	31	0	0	3888	0	352
Lock 198 feet long	Middle	30	0	12	0	26	0	0	667	0	377
Lock 398 feet long	South	50	0	12	0	26	0	0	2222	0	391
Egerton Dock	West	70	0	7	4	25	0	3	4011	0	754
Morpeth Dock	West	70	0	5	5	25	0	11	2404	0	1299
Railway Companies' Basin	South	25	0	O.D.S.		26	0	0	3144	0	319
Morpeth Branch Dock	West	85	0	..		26	0	4	243	0	637
Morpeth Lock 398 feet long	River	85	0	12	0	26	0	0	3777	0	441
Total Water Area and Quay Space of the Birkenhead Docks								147	722	8	609

BIRKENHEAD BASINS.

BIRKENHEAD BASINS.	Width of Entrance.		Height of Piers above Datum.		Water Area.		Lineal Quayage.	
	Ft.	In.	Ft.	In.	Acres	Yds.	Miles	Yds.
Low-Water Basin	300	0	26	0	14	0	0	1360
North Basin	500	0	31	0	4	2843		689
Total Water Area and Quay Space of the Birkenhead Basins					18	2843	1	269
Total Water Area and Quay Space of the Birkenhead Docks					147	722	8	609
Total					165	3565	9	878

TOTAL AREA OF THE LIVERPOOL AND BIRKENHEAD DOCKS AND BASINS.

	Acres	Yds.	Miles	Yds.
Total Water Area and Quay Space of the Liverpool Docks and Basins	259	587	18	916
Total Water Area and Quay Space of the Birkenhead Docks and Basins	165	3565	9	878
Total	424	4152	28	34

LEVELS OF TIDES AT LIVERPOOL.

*Derived from the Record of the Self-Registering Gauge at George's Pier
deduced from Ten Years' Observations, 1854 to 1863. Datum Old Dock Sill.*

	Ft.	In.	
An extraordinary High Tide, as marked on the Leasowe Lighthouse	25	0	Above Datum.
An extraordinary High Tide, 20 January, 1863	23	9	"
Average High-Water Mark of Equinoctial Spring Tides.	21	1	"

Average High Water of Spring Tides, including Equinoctial Tides	19	0½	”
Average High-Water Mark of Ordinary Spring Tides, excluding the Equinoctial Tides	18	10	”
Mean High-Water Level	15	6	”
Highest High-Water Mark of Neap Tides	14	8	”
Average High-Water Mark of Ordinary Neap Tides	11	7	”
Lowest High-Water Mark of Neap Tides	8	7	”
Mean Tide Level (Ordnance Datum)	5	0	”
Highest Low-Water Mark of Neap Tides	4	1	”
Average Low-Water Mark of Ordinary Neap Tides	1	5	Below Datum.
Lowest Low-Water Mark of Neap Tides	3	10	”
Mean Low-Water Level	5	6	”
Average Low-Water Mark of Ordinary Spring Tides, exclusive of Equinoctial Tides	8	8	”
Average Low-Water Mark of Spring Tides, inclusive of Equinoctial Tides	8	10	”
Lowest Low-Water Mark of Equinoctial Spring Tides	10	4	”

LIVERPOOL GRAVING DOCKS.

LIVERPOOL GRAVING DOCKS.	Position and Width of Entrance.		Sill below Datum.		Coping at Hollow Quoins abv. Dtm.		Length of Floor.		Total Length of Floor.	
	Ft.	In.	Ft.	In.	Ft.	In.	Ft.	In.	Ft.	In.
Canada Lock as a Graving Dock	100	0	7	9	28	0	..		588	0

Huskisson Lock as a Graving Dock			80	0	6	6	38	0	..		395	0
Sandon Graving Docks,	No. 1	East	60	0	3	6	26	0	565	0		
	No. 2	East	70	0	3	6	26	0	565	0		
	No. 3	East	60	0	3	6	26	0	565	0		
	No. 4	East	70	0	3	6	26	0	565	0		
	No. 5	East	45	0	3	6	26	0	565	0		
	No. 6	West	45	0	3	6	26	0	565	0		
											3390	0
Clarence Graving Docks,	No. 1	N. Outer	45	0	3	0	26	6	451	0		
		N. Inner	45	0	0	6	18	0	289	0		
	No. 2	S. Outer	45	0	3	0	26	6	454	0		
		S. Inner	32	0	0	6	18	0	286	0		
					Sill above Datum.						1480	0
Canning Graving Docks,	No. 1	North	35	9	1	8½	23	3	436	0		

Queen's Graving Docks,	No. 2	South	35	9	Sill below Datum.						918	0
					0	0½	23	3½	482	0		
	No. 1	East	42	0	1	8¼	27	7¾	465	0		
Brunswick Graving Dks.	No. 2	West	70	0	3	6	27	5	467	0	932	0
	No. 1	East	41	0	2	6	26	6	460	0		
Herculaneum Grvg. Dks.	No. 2	West	41	6	2	6	26	6	462	0	922	0
	No. 1	West	60	0	4	0	26	0	758	6		
	No. 2	East	60	0	4	0	26	0	753	0	1511	6
Total Length of Floor of the Liverpool Graving Docks										10136		

BIRKENHEAD GRAVING DOCKS.

BIRKENHEAD GRAVING DOCKS.	Position and Width of Entrance.		Sill under Datum.		Coping at Hollow Quoins abv. Dtm.		Length of Floor.		Total Length of Floor.	
	Ft.	In.	Ft.	In.	Ft.	In.	Ft.	In.	Ft.	In.

Morpeth Lock as a Graving Dock		85 0			12 0		26 0		..		468 0	
West Float	No. 2	East	50	0	7	9	25	0	750	0	..	
	No. 3	West	85	0	7	9	25	0	750	0	1500	0
Total Length of Floor of the Birkenhead Graving Docks											1968	0
Total Length of Floor of the Liverpool Graving Docks											10136	6
Total											12104	6

LIVERPOOL GRIDIRONS.

GRIDIRONS.	Breadth of Gridiron.		Length.	
	Ft.	In.	Ft.	In.
Clarence Graving Dock Basin—The Blocks are laid 2 feet 2 inches below the Datum at the South end of the Gridiron, and 3 inches below at the North end	25	6	313	6
King's Pier—The Blocks are laid at the level of the Datum	26	0	509	0
Total Length of the Liverpool Gridirons			822	6

LANDING STAGES.

Liverpool.—	Prince's Stage	1002 6 long;	80 wide,	4 Bridges from the shore.
	George's Stage	505 0 long;	80 wide,	2 Bridges from the shore.
Birkenhead. —	Low Water }	1040 0	50 & 35 long; wide,	2 Bridges from the shore.
	Basin Stage }			

Woodside Stage 800 0 80 wide, 2 Bridges from the
 long; shore.

NOTE.—The South end of the Woodside Stage, for a length of 300 feet, including one of the Bridges, is appropriated to the use of the Birkenhead Commissioners. The 500 feet Northwards, and the other Bridge, is under the superintendence of the Dock Board. In connection with this stage there is a Floating Bridge, 678 feet in length by 30 feet in width, by means of which an easy incline for Carriage Traffic is maintained at all times of the Tide.

DOCKS BELONGING TO THE CORPORATION OF LIVERPOOL AND OTHERS.	Width of Entrance.	Level of Sill.		Level of Coping above Datum.	Water Area.
		Above Datum.	Below Datum.		
	Ft. In.	Ft. In.	Ft. In.	Ft. In.	Ac. Yds.
<i>The Corporation of Liverpool.</i>					
The River Craft Dock	Outer 30 0	0 3	..	25 4	1 3416
Lock, and Eagle Basin	Inner 30 0	1 3	..	25 10	..
Ditto Anderton Basin	.. 40 0	..	..	..	0 1198
<i>The Trustees of the late Duke of Bridgewater.</i>					
Duke's Dock	Outer 40 0	..	4 6	25 6	2 1336
	Middle 28 10	0 6	..	22 9	..
	Inner 40 0	..	6 0	25 0	..
Ditto Egerton Dock	.. 20 0	0 6	..	23 0	0 2700
<i>The London & North-Western</i>					

<i>Railway Company.</i>									
Garston Dock	North	20	0	..	6	0	26	0	6 1200
	South	50	0	..	..		..		..
									11 170

The Leeds and Liverpool Canal is in communication with Stanley Dock through Four Locks and Five intermediate Basins. The Locks are each 81 feet long by 16 feet 6 inches wide, and the Total Rise is 46 feet 6 inches. The Level of the Water in the Canal is 58 feet above the Datum.

APPENDIX No. 8, Vol. ii. p. 448.

Extracts from the Ship's Charter party, which requires the attention of the Commanders and Officers in the Maritime Service of the East India Company.

58. The commander to give notice to the secretary, in writing, when the ship arrives at Gravesend, outward bound.

59. The commander also to give notice to the secretary at the expiration of the time limited for the stay of the ship at Gravesend, or in the Hope, outward bound.

60. The Company are to have liberty to survey the ship at any time, and to lay by for their surveyors, who are to be civilly treated, and to be provided with reasonable and convenient food and lodging.

61. The ship not carrying the full number of guns, the commander and owners to forfeit for each gun wanting, 40*l.*, and not to be disposed of without leave of the Company's servants to whom the ship is consigned. The owners and commander to forfeit 100*l.* for every gun sold, and the commander rendered incapable of continuing in the service.

62. The commander or master to obey the Company's orders during the voyage, and also committees appointed by them, or their governors, president, agents, chief factors, or assigns.

63. The master or officers displaced (or by decease), the next in rank to succeed him.

64. The command, or any office in the ship, not to be bought, or sold.

65. An order of encouragement, to the following effect, to be put up in the ship, and to be continued during the voyage.

66. "The Court of Directors of the United Company of Merchants of England, trading to the East Indies, being willing to encourage the mariners of all their ships to be just to the said Company, and careful of their effects and trade, and observant of all injuries done or doing thereto, as also to animate them to defend their said ships and their estates on board, in case

they should be assaulted by any enemy, do hereby declare that they will allow and pay the following rewards, at the return of the ship from the East Indies, into the River Thames, and finishing this present voyage; that is to say, to every seaman that shall prevent any wilful and malicious damage to any part of the said Company's effects, or shall save the same from being lost, a reward suitable to their merit therein. To the widow, children, father or mother of every seaman that shall lose his life in the defence of the ship, as aforesaid, thirty pounds. To every seaman that shall lose a leg or arm, or both, in such defence, thirty pounds. To every seaman that shall receive any other wound, such sum of money as the said Court of Directors shall think fit, upon producing a certificate from their commander or superior officer, touching their merits. That every seaman so wounded in defence of the ship shall be cured of his wounds at the charge of the said Company and owners."

67. The ship to touch at such places as shall be ordered; receive in and deliver out any goods.

68. The ship not to touch at any place, but what ordered to touch at; or to take any foreign coin or bullion, goods or provisions, at any place short of her consigned port, without an especial licence from the Court of Directors. Penalty, the forfeiture of the goods, and 100*l.* per day for detention of the ship.

69. The cargo to be stowed in the best manner, to prevent damage; and disposed of in the ship in such manner and in such places as will not lumber or incommode her working, or render her incapable of defence.

70. No goods are to be shot loose in the hold, nor any luggs to be cut off the bales, under penalty of the Company paying but half the freight of goods thus damaged; and bales not to be opened without giving notice, under penalty of 10*l.*; for pepper shot loose between decks, the freight will not be paid for.

71. The ship to make no deviation, and the whole cargo to be delivered into the Company's warehouses.

72. The ship, if she touch at the island of Ascension or St. Helena, must not sail without leave of the governor and council. Penalty, 200*l.*

73. The ship not to touch at Barbadoes, or any port in America, or any of the Western Islands, or Plymouth, or put into any port of England or Ireland, without orders (unavoidable dangers of the sea excepted). Penalty, 500*l*.

74. The commander, chief and second mates to keep journals of the ship's daily proceedings, from her first taking in cargo in the River Thames to her return and discharge of her cargo in England, and of the wind and weather, and all remarkable transactions, accidents, and occurrences during the whole voyage; also of everything received into and delivered from the ship; and are afterwards to be delivered to the Company on oath, if required.

75. No unlicensed goods to be carried in the ship; or to take any passengers without leave.

76. The ship to have her complement of men during the voyage.

77. That it shall not be lawful for the master of the ship, or any other officer of the ship, to furnish any of the seamen with money, liquor, provisions beyond the value of one-third of what the wages of such seaman shall amount to at the time of furnishing the same.

78. The paymaster to be appointed by the Company, and owners to pay seamen's wives, etc., one month's wages in six.

79. The commander to have the use of the great cabin, unless for the use of the Company's servants.

80. That the part-owners or master do send in the ship the value of 500*l*. in foreign coins or bullion (the same to be weighed in and passed through the Company's Bullion Office), to be made use of for extraordinary expenses during the voyage. Penalty, 20*l*. per cent.

81. The commander to be supplied with 200*l*. per month, by way of impress or provisions, while in India or China.

82. The Company to pay for the hire of Lascars, in the room of seamen employed in India.

APPENDIX No. 9. VOL. ii. p. 458.

*Ships belonging to or in the service of the East India Company
burnt, lost, taken, or otherwise destroyed, from the year 1700 to
the year 1819.*

Date.	Ships' Names.	Tons.	By what Means.
1702	Queen	320	Taken.
1703	Neptune	275	Lost.
—	Dover	180	Taken.
1704	Hester	350	Lost.
—	Albemarle	320	Lost.
1705	Edward and Dudley	300	Taken.
—	Bombay	300	Blown up.
1707	Herbert	210	Taken.
—	Dispatch	110	Blown up.
1708	Godolphin	280	Lost.
—	New George	400	Taken.
1709	Sherborne	400	Lost.
1709	Dutchess	430	Taken.
—	Phœnix	400	Lost.
1710	Jane	180	Taken.
1711	Blenheim	250	Burnt.
1715	Catherine	350	Lost.
1716	Success	250	Lost.
1718	Vansittart	480	Lost.

1719	St. George	480	Lost.
—	King George	450	Lost.
—	Cassandria	380	Taken.
—	Chandos	480	Lost.
1720	Addison	400	Lost.
—	Dartmouth	400	Lost.
1721	Nightingale	480	Lost.
1729	Berrington	440	Lost.
1731	Eyles	400	Lost.
1733	Oakham	480	Burnt.
1734	Derby	480	Taken.
1735	Pelham	480	Lost.
—	Compton	480	Burnt.
1736	Deckar	490	Lost.
—	Sussex	490	Lost.
—	Newcastle	495	Lost.
—	Devonshire	495	Lost.
1737	Resolution	495	Lost.
—	Anglesea	490	Lost.
1738	Normanton	495	Lost.
1741	Grantham	495	Lost.
1742	Princess Louisa	498	Lost.
1743	Nottingham	498	Lost.
—	Northampton	498	Lost.
1744	Prince of Orange	495	Lost.
—	Princess Mary	498	Taken.

1745	Princess Amelia	498	Taken.
1746	Heathcote	498	Lost.
—	Winchelsea	498	Lost.
—	Anson	499	Taken.
1747	Lincoln	498	Lost.
—	Dolphin	370	Lost.
1749	Duke of Cumberland	499	Lost.
—	Lynn	499	Lost.
1754	Doddington	499	Lost.
1756	Grantham	499	Taken.
—	York	499	Lost.
1756	Expedition	350	Taken.
1759	Streatham	499	Lost.
1760	Denham	499	Taken.
1761	Griffin	499	Lost.
1762	Walpole	499	Taken.
1763	Elizabeth	499	Burnt.
1764	Earl of Holderness	499	Lost.
—	Ajax	499	Lost.
—	Earl Temple	499	Lost.
—	Winchelsea	499	Lost.
1765	Albion	499	Lost.
1766	Falmouth	499	Lost.
1767	Lord Clive	499	Lost.
1768	Earl of Chatham	499	Lost.

1769	Lord Holland	499	Lost.
1771	Verelet	499	Lost.
1772	Duke of Albany	499	Lost.
1773	Lord Mansfield	499	Lost.
—	Royal Captain	499	Lost.
1774	Huntingdon	499	Lost.
1777	Marquis of Rockingham	758	Lost.
1778	Colebrooke	723	Lost.
—	London	723	Lost.
1779	Valentine	676	Lost.
—	Osterley	758	Taken.
—	Stafford	804	Lost.
1780	Royal George	758	} Taken by the combined Fleets of France and Spain, August 9th, 1780.
—	Hillsborough	723	
—	Mountstuart	758	
—	Gatton	758	
—	Godfrey	716	
1781	General Barker	758	Lost.
1782	Earl Dartmouth	758	Lost.
—	Grosvenor	729	Lost.
—	Fortitude	758	Taken.
—	Earl of Hertford	758	Lost.
—	Brilliant	703	Lost.
1783	Blandford	606	Taken.

—	Hitchinbrooke	528	Lost.
—	Duke of Athol	755	Burnt.
—	Fairford	755	Burnt.
—	Duke of Kingston	723	Burnt.
1784	Major	755	Burnt.
1785	Montague	755	Blown up.
1786	Halsewell	758	Lost.
1787	Hartwell	937	Lost.
—	Mars	696	Lost.
1789	Vansittart	828	Lost.
1791	Foulis	765	Never heard of.
1792	Winterton	771	Lost.
1793	Princess Royal	805	Taken.
1794	Pigot	765	Taken.
1796	Triton	800	Taken.
—	Dutton	761	} Lost on the West India Expedition.
—	Ganges	784	
—	Middlesex	852	
—	Pousborne	804	
1797	Ocean	1189	Lost.
—	Martha	406	Lost.
1798	Princess Amelia	808	Burnt.
—	Raymond	793	Taken.
—	Woodcot	802	Taken.
—	Henry Addington	1200	Lost.
1799	Earl Fitzwilliam	803	Burnt.

—	Osterley	755	Taken and retaken.
1800	Queen	801	Burnt.
—	Kent	820	Taken.
—	Earl Talbot	1200	Foundered.
1803	Culland's Grove	576	Taken.
—	Lord Nelson	820	Taken and retaken.
—	Hindostan	1248	Lost.
—	Prince of Wales	820	Foundered.
—	Admiral Aplin	558	Taken.
—	Comet	529	Taken.
1804	Princess Charlotte	610	Taken.
—	Brunswick	1200	Taken.
1805	Earl of Abergavenny	1200	Lost.
—	Warren Hastings	1200	Taken and retaken.
—	Ganges	1200	Lost.
—	Britannia	770	Lost.
1806	Lady Burges	820	Lost.
—	Fame	492	Taken.
—	Shelton Castle	584	Foundered.
1808	Lord Nelson	818	}
—	Glory	549	} Foundered.
—	Experiment	502	}
—	Walpole	820	Lost.
—	Travers	577	Lost.
1809	Britannia	1200	Lost.

—	Admiral Gardner	813	Lost.
—	Calcutta	819	} Foundered.
—	Jane, Duchess of Gordon	820	}
—	Bengal	818	}
—	Lady Jane Dundas.	820	}
1809	Europe	820	} Taken and retaken.
—	Streatham	819	}
—	Asia	820	Lost.
—	Windham	820	Taken and retaken.
—	United Kingdom	820	} Taken.
—	Charlton	818	}
—	True Briton	1198	Foundered.
1810	Earl Camden	1200	Burnt.
—	Ocean	1200	Foundered.
—	Ceylon	818	Taken and retaken.
1812	Harriet	549	Burnt.
1813	Euphrates	596	Lost.
—	Marquis Wellesley	820	Lost.
—	Earl Howe	876	Lost.
—	William Pitt	572	Foundered.
1814	Devonshire	820	Lost.
1815	Bengal	950	Burnt.
1817	Elphinstone	1200	Burnt.
1818	Cabalva	1200	Lost.

APPENDIX No. 10. VOL. ii. p. 462.

A list of Ships belonging to or chartered by the East India Company, in 1820, where built, tonnage, and number of guns and men.

Ship's Name.	Where and when built.		Tonnage.	Guns.	Men.
Apollo	Paul	1812	693	12	65
Asia	Barnard's	1811	1012	26	115
Astell	Mestaer's	1810	871	26	100
Atlas	Paul	1812	1291	26	130
Bombay	Bombay	1809	1246	26	130
Bridgewater	Brent's	1812	1339	26	130
Buckinghamshire	Bombay	1816	1369	26	130
Canning	Wigram's	1817	1326	26	130
Carnatic	Perry's	1808	863	26	102
Castle Huntly	Bengal	1812	1274	26	130
Charles Grant	Bombay	1810	1252	26	130
Cornwall	Bengal	1811	798	12	75
Dorsetshire	Barnard's	1799	1268	16	110
Duke of York	Wigram's	1817	1327	26	130
Dunira	Barnard's	1817	1325	26	130
Earl of Balcarras	Bombay	1815	1417	26	130
Essex	Perry's	1812	1352	26	130
General Harris	Brent's	1812	1339	26	130
General Hewitt	Bengal	1811	894	26	110

General Kyd	Bengal	1813	1327	26	130
Herefordshire	Bombay	1813	1342	26	130
Inglis	Penang	1811	1321	26	130
Kellie Castle	Wigram's	1818	1350	26	130
Lady Campbell	River	1816	684	12	65
Lady Melville	Wigram's	1813	1321	26	130
Larkins	India	1807	676	12	60
London	Pitcher's	1817	1352	26	130
Lord Castlereagh	Randall's	1802	847	26	110
Lowther Castle	Pitcher's	1811	1507	26	130
Marchioness of Ely	Well's	1802	1016	26	115
Marquis Camden	Pitcher's	1812	1329	26	130
Marquis of Ely	Perry's	1801	1316	12	115
Marquis of Huntly	Brent's	1811	1348	26	130
Marquis of Wellington	Barnard's	1812	1033	26	115
Matilda	India	1803	774	12	75
Minerva	Bombay	1813	976	26	115
Moffatt	India	1804	846	12	75
Orwell	Ipswich	1817	1335	26	130
Prince Regent	Barnard's	1811	1036	26	115
Perseverance	Pitcher's	1801	1335	26	130
Phœnix	Barnard's	1814	887	26	102
Princess Amelia	Barnard's	1808	1319	26	130
Princess Charlotte of Wales	Dudman's	1812	1016	26	115
Regent	Bengal	1811	910	12	90

Rose	Well's	1811	1024	26	115
Streatham	Dudman's	1804	861	26	110
Scaleby Castle	India	1798	1237	26	130
Thames	Barnard's	1819	1360	26	130
Thomas Coutts	Wigram's	1817	1334	26	130
Thomas Grenville	Bombay	1809	923	26	107
Vansittart	Bengal	1813	1313	26	130
Warren Hastings (Rawes)	Perry's	1793	1356	26	130
Warren Hastings (Larkins)	Barnard's	1802	1004	26	120
Waterloo	Wigram's	1816	1325	26	130
Winchelsea	River	1803	1310	12	115
Windsor	Barnard's	1818	1332	26	130
William Pitt	Barnard's	1804	857	26	110

APPENDIX No. 11, VOL. ii. p. 464.

Historical Abstract of Public Duties performed by the East India Company's Maritime Service.

In 1601 the first fleet, under Lancaster, took possession of St. Helena, entered into a treaty with the King of Acheen, settled a factory at Bantam, and captured a valuable carrack of nine hundred tons burthen.

During 1609 the Company's ship *Solomon* engaged and defeated several Portuguese ships, and in 1611 their fleet, under command of Captain Saris, proceeded to Japan, and settled a Company's factory at Firando; while in this year a large ship belonging to the Company, assisted by a pinnace, maintained five several engagements with a squadron of Portuguese, and gained a complete victory over forces much superior.

In 1612 the Company's fleet, under the command of Captain Thomas Best, engaged the Portuguese fleet, consisting of four galleys and twenty-six frigates, in two separate actions, when the Portuguese were defeated with great loss.

In 1613 the Company's fleet, under the command of Captain (General) Downton, attacked and defeated the Portuguese fleet near Surat, sinking and burning most of the enemy's ships; and in 1616 their fleet, under Captain Pring, took a valuable Portuguese frigate, and defeated the Dutch fleet in a severe action at Batavia.

1619. A great naval action between four Company's ships, under the command of Captain Shilling (who was killed), and a Portuguese fleet, in which the Company's ships were victorious. This fleet also took possession of Saldanha Bay.

1620. Four of the Company's ships defeated the Portuguese fleet and captured several junks belonging to the Mogul.

1622. Ormuz taken by the Company's fleet, in concert with the King of Persia's forces. By this capture the first and most valuable commercial treaty with that monarch was obtained.

1623. In the twenty-first year of the reign of James I. he authorized the Company to exercise martial law in their ships at sea.

1630. A great naval battle near Surat, in which the Company's fleet was victorious over the Portuguese.

1635. The Company's fleet, under Sir Thomas Grantham, recapture Bombay.

The Company's fleet captured forty sail of Mogul ships at Ballasore.

1662. At the expiration of more than *half a century* after the commencement of the trade to India, men-of-war first sent out.

1690. The Company's ship *Herbert* fought a desperate action at Johanna against four ships of superior force, and beat them off, but in the moment of victory she unfortunately took fire and blew up.

1703. The Company's ships *Chambers* and *Canterbury*, in the Straits of Malacca, engaged *in the night* a French sixty-four and a frigate. The *Canterbury* was taken, but the *Chambers* gallantly renewed the action at daylight, and having crippled her opponents, escaped. The following is an extract from the commander's log: "To prevent all thought among my men of surrendering ye ship, and make ym desperate, I nailed the ensigne to the staff from head to foot, stapled and fore-cockt the ensigne staff fast up. I resolved to part with ship and life together."

1746. A French squadron, consisting of *L'Achille*, sixty-four, and two frigates, appeared off St. Helena to intercept the homeward-bound fleet. An Indiaman's long-boat was fitted out under the command of a midshipman, who succeeded in gaining the weather-gage of the enemy's squadron unperceived, and cruised for the purpose of warning the expected fleet. Six of the Company's ships fell in with the squadron, and maintained a running fight for several days, till they anchored in All Saints' Bay, where they were blockaded by *L'Achille* and her consorts, notwithstanding which, they ultimately escaped and reached England in safety.

1757. The Company's ships *Suffolk*, *Houghton*, and *Godolphin* fell in with two French frigates off the Cape, and after a smart action beat them off. The Court of Directors highly commended the conduct of the commanders, officers, and crews upon this occasion, and each ship received a gratuity of 2,000*l*. These ships were commanded by Captain Wilson, who was made

commander of all the Company's ships, and appointed to the *William Pitt*, in which ship he discovered Pitt's Straits, 1759, and "pointed out to admiring nations a new track to China, founded on philosophic principles."

1758. At the recapture of Fort William many of the Company's ships were employed, and in some instances the crews were engaged on shore.

1759. When the Dutch, with four frigates of thirty-six guns each, two frigates of twenty-six guns each, and another ship mounting sixteen guns, with crews of fifteen hundred men on board, attempted to capture the British possessions of Bengal, they were driven back, and captured by the Company's ships *Calcutta*, *Duke of Dorset*, and *Hardwicke*.

In the same year the Company's ship *Hardwicke* fought an action with a French frigate.

1760. The Company's ships *Royal George* and *Oxford* intercepted and captured three Dutch ships and three sloops off Culpec. In 1761 the Company's ship *Shaftesbury* stood into Madras Roads, in defiance of two French ships there blockading the town, who attacked her, but, succeeding in beating them off, she then embarked a detachment of troops, and proceeded to St. Thomas, where she engaged and beat off a French frigate. The captain, officers, and crew of the *Shaftesbury* were warmly commended for their gallant conduct on this occasion, and received a reward of 2,000*l*.

The Company's ship *Winchelsea* fought a French frigate single handed and beat her off. The Court in this case also distributed the sum of 2,000*l*. among the crew for their gallant conduct.

1779. The Company's ship *Bridgewater* fought an American privateer of superior force, and beat her off, for which the crew received a reward of 2,000*l*. from the Court of Directors.

1782. The Company's ships, under Commodore Johnstone, fought a gallant action at Port Praya, in which the enemy were defeated.

1786. The *Princess Royal*, Captain Horncastle, fought an action in the Straits of Malacca.

1793. The Company's ships *Triton*, *Royal Charlotte*, and *Warley*, in company with H.M.S. *Minerva*, were employed in the blockade of Pondicherry, and assisted at the capture of that place.

1794. The Company's ship *Pigott* fought a gallant action at Bencoolen with three French frigates. In this year, there not being a single English man-of-war in the Indian Seas, or to the eastward of the Cape, and while the port of Calcutta was blockaded, and the whole trade of India a prey to large and well-appointed privateers, the Company's ships *William Pitt*, *Britannia*, and *Houghton*, under Commodore Mitchell (who was knighted for his services on this occasion), cruised in the Indian seas as men-of-war for the protection of commerce. They captured two large privateers, and defeated a French squadron of two frigates, a brig of war, and an armed ship, the *Princess Royal*.

When, in 1795, the great expedition was ordered for the West Indies, application was made to the Company for assistance, and fourteen of the Company's ships were fitted out immediately, and ten others sold to Government and equipped as line-of-battle ships.

In the same year an expedition was fitted out at St. Helena, consisting of the Company's ships *Goddard*, *Mauship*, *Hawkesbury*, *Airly Castle*, *Asia*, *Essex*, and *Busbridge*; which proceeded to cruise to windward of the island, where they intercepted and captured a valuable fleet of nine Dutch Indiamen. This undertaking involved in its consequences the annihilation of the Dutch East India Company.

The Company's ships *Bombay Castle*, *Exeter*, and *Brunswick* were fitted out as men-of-war at Bombay, and assisted in taking the Cape of Good Hope.

1797. When at the mutiny of the Nore, the Court of Directors called upon their officers to serve on board his Majesty's ships for the defence of the river, the request was promptly and zealously answered by the maritime service at large.

Commodore Farquharson, of the Company's service, with a fleet of their ships, fell in with the French Admiral De Sercey and a powerful squadron of men-of-war; the Indiamen immediately formed the line of battle, and gave chase to the enemy, who crowded all sail, and was soon out of sight. This bold manœuvre saved a valuable fleet to the Company and to the nation.

In 1797, on the expedition against Manilla, several of the Company's ships were fitted out to act as men-of-war, and in 1798 the *Hughes* was equipped at Bombay to protect the trade on the Malabar Coast. That year the Company's ships *Royal Charlotte*, *Cuffnells*, *Phænix*, and *Alligator* assisted H.M. ships *La Pomone*, *Argo*, and *Cormorant* in convoying a large fleet of merchantmen and transports to Lisbon. On the 25th of September they fell in with a French fleet of nine sail, consisting of one eighty-gun ship and eight frigates. The signal was made for the Company's ships to form the line with those of his Majesty's, and the convoy were ordered to push for Lisbon. This manœuvre, and the warlike appearance of the Indiamen, deterred the French admiral from attacking them, so that the whole fleet reached Lisbon in safety.

1799. The Company's ships *Earl Howe* and *Princess Charlotte* received instructions from H.M.S. *Victorious* to cruise between the Palmyra Rocks and Pigeon Island. The commander and officers having received commissions from Government, they were occupied in this service until the close of 1800.

1800. The French frigate *Melée* was taken single-handed by the Company's ship *Exeter*, Captain Meriton. In the same year a gallant defence was made by the Company's ship *Kent* against the *Confiance* of twenty-six guns, commanded by the celebrated Surcoufe, and though the *Kent* was captured, it was only after having lost her commander and twenty-two men killed and thirty-four wounded; the action lasted nearly two hours.

On the 27th of June the Company's ship *Arniston*, Captain Campbell Majoribanks, having just anchored at Bencoolen, was attacked by a French sloop of war, supposed to be the *Confiance*, of twenty-six guns. The *Arniston* promptly cut her cable, gave chase, and fired several broadsides into her: but, outsailing the *Arniston*, by beating to windward, she escaped after a chase of several hours.

That year the *Hughes*, cruising in the Bay of Bengal for the protection of trade, engaged a French ship, which also escaped from superiority of sailing, after having thrown her guns overboard.

In 1801 the Company's ship *Phænix*, Captain Moffat, captured a French privateer single-handed, and the Company's ship *Admiral Gardner*, Captain Saltwell, beat off the *Bellona*, French frigate, single-handed.

1803. The Company's homeward-bound China fleet (with a number of country ships and whalers under protection), having no men-of-war in company, fell in with the French Admiral Linois, in the *Marengo*, eighty-four-gun ship, *Semillante*, forty guns, *Belle Poule*, forty guns, *Corvette*, twenty-eight guns, and a brig of eighteen guns. The enemy being to windward, Commodore Dance, at the suggestion of Captain Timins, made the general signal to tack. The Indiamen then stood towards the French fleet, engaged, defeated, and chased them out of sight. The details of this extraordinary victory of English *merchant ships* over French *men-of-war* are familiar to the readers of naval history. The fleet, consisting of China ships, was valued at six millions, and the revenue on the tea alone amounted to upwards of three millions sterling. Commodore Dance was knighted, and various rewards were distributed among the captains, officers, and seamen. In that year the Company's ships *Lord Castlereagh* and *Lady Castlereagh* were fitted out and cruised in the Bay of Bengal for the protection of trade.

In that year also the Company's ship *Preston* acted as guard-ship at Kedjaree.

During 1804 the *Hughes* sailed from Bombay by request of the Government, cruising in company with H.M.S. *Concord* to intercept French frigates expected off the coast.

In 1805 the Company's ships *Camden* and *Wexford* were fitted out in Bombay Harbour, and cruised in the Indian seas for the protection of trade, whilst the *Cumberland*, Captain Farrer, under convoy of Sir Thomas Troubridge, received and returned several broadsides, within pistol-shot, from the French line-of-battle ship *Marengo*, and from a large frigate, her consort.

In 1806 the Company's ship *Warren Hastings* fought a most gallant action against the French frigate *Piedmontese*, and although at last captured, the enemy hauled off several times during the action, which lasted for four hours.

In 1810 the Company's ships and seamen were employed at the taking of the Isle of France; and in 1812 the Company's ship *Astell* was gallantly defended against a very superior force, and escaped, in consequence of the crippled state of her opponents.

APPENDIX No. 12, VOL. ii. p. 467.

List of Wages of the East India Company's Ships.

	By the Month.		
	£	s.	d.
1 Commander	10	0	0
1 Chief Mate	5	0	0
1 Second Mate	4	0	0
1 Third Mate	3	10	0
1 Fourth Mate	2	10	0
1 Fifth Mate	2	0	0
1 Sixth Mate	1	15	0
1 Surgeon	5	0	0
1 Purser	2	0	0
1 Boatswain	3	5	0
1 Gunner	3	5	0
1 Master-at-Arms	2	15	0
1 Carpenter	4	0	0
1 Midshipman and Coxswain	1	15	0
4 Midshipmen, each	1	15	0
1 Surgeon's Mate	3	10	0
1 Caulker	3	10	0
1 Cooper	2	15	0
1 Captain's Cook	3	5	0
1 Ship's Cook	2	0	0

1 Captain's Steward	1	15	0
1 Ship's Steward	2	0	0
2 Boatswain's Mates, each	2	0	0
2 Gunner's Mates, each	2	0	0
1 Carpenter's First Mate	3	0	0
1 Carpenter's Second Mate	2	10	0
1 Caulker's Mate	2	10	0
1 Cooper's Mate	2	0	0
6 Quartermasters, each	2	0	0
1 Sail-maker	2	5	0
1 Armourer	2	5	0
1 Butcher	1	15	0
1 Baker	1	15	0
1 Poulterer	1	15	0
2 Commander's Servants, each	1	3	0
1 Chief Mate's Servants, each	1	0	0
1 Second Mate's Servants, each	0	18	0
1 Surgeon's Servants, each	0	15	0
1 Boatswain's Servants, each	0	15	0
1 Gunner's Servants, each	0	15	0
1 Carpenter's Servants, each	0	15	0
50 Foremast Men, each	1	15	0
Total	102		

APPENDIX No. 13. VOL. ii. p. 471.

Copy of the Victualling Bill of the East India Company's Ships.

"By whose order the under-mentioned are to be received on board.	For Regular Ships.	1200 tons, 950 tons, 800 tons ships.
Company's Husband or Assistant.	Ale, Beer, Wine, or other liquors, in casks or bottles, for the use of the Commander's table, allowing 252 gallons, or 86 doz. quart bottles per ton.	13 tons, 13 tons, 13 tons.
Sealers at the India Wharf.	*Beef, Pork, Bacon, Suet, and Tongues.	40 tons, 35 tons, 25 tons.
Ship's Husband.	Beer, strong and small, in casks (not bottles).	28 tons, 28 tons, 28 tons.
Sealers at the India Wharf.	*Bread.	350 cwt., 310 cwt., 270 cwt.
Ship's Husband.	Butter.	30 firkins, 30 firkins, 30 firkins.
	Brandy, or other spirits, for the ship's company.	10 punches, 9 punches, 8 punches.
	Billet Wood.	25,000, 25,000, 25,000.
	Brimstone.	2 cwt., 2 cwt., 2 cwt.
	Coals.	20 chaldron, 20 chaldron, 15 chaldron.

	Candles.	50 dozen, 50 dozen, 50 dozen.
	Cheese.	50 cwt., 50 cwt., 50 cwt.
Sealers at the India Wharf.	*Chirurgery and Drugs.	65 <i>l.</i> value, 55 <i>l.</i> value, 50 <i>l.</i> value.
Ship's Husband.	Canvass.	30 bolts, 25 bolts, 20 bolts.
Sealers at the India Wharf.	Confectionery.	6 cases, 6 cases, 6 cases.
	*Essence of Malt.	260 lbs., 230 lbs., 200 lbs.
	*Essence of Spruce.	260 lbs., 230 lbs., 200 lbs.
	*Flour.	134 cwt., 100 cwt., 88 cwt.
Ship's Husband.	Fish.	21 cwt., 18 cwt., 16 cwt.
Sealers at the India Wharf.	Grocery.	80 cwt., 70 cwt., 50 cwt.
Ship's Husband.	*Gunpowder.	63 barrels, 60 barrels, 50 barrels.
	*Iron Shot.	6 tons, 7 tons, 4 tons.
Company's Husband, or Assistant Ship's Husband.	Iron for store.	6 tons, 4 tons, 4 tons.
Sealers at the India Wharf.	*Lime or Lemon Juice.	130 gallons, 115 gallons, 100 gallons.
	Lead Shot of sorts.	5 cwt., 5 cwt., 5 cwt.
	*Mustard Seed.	10 bushels, 10 bushels, 10 bushels.
	Oatmeal.	50 bushels, 50 bushels, 50 bushels.

	Oil, Sweet and Lamp.	300 gallons, 300 gallons, 300 gallons.
	Oats, Barley, and Bran.	500 bushels, 500 bushels, 500 bushels.
	Oranges and Lemons.	6 chests, 6 chests, 6 chests.
	Oilman's Stores.	8 cases, 8 cases, 8 cases.
	*Pease.	200 bushels, 190 bushels, 180 bushels.
Ship's Husband.	Pitch.	20 barrels, 20 barrels, 20 barrels.
	Potatoes.	15 tons, 15 tons, 10 tons.
	Red and White Herrings and Salmon.	5 barrels, 5 barrels, 5 barrels.
	Rosin.	6 cwt., 6 cwt., 6 cwt.
	Spare Cordage.	7 tons, 5 tons, 5 tons.
Sealers at the India Wharf.	Sheet Lead for store.	2 tons, 2 tons, 2 tons.
Ship's Husband.	Salt, White and Bay.	40 bushels, 40 bushels, 40 bushels.
Sealers at the India Wharf.	Slops.	2 chests, 2 chests, 2 chests.
	Tobacco.	30 cwt., 25 cwt., 20 cwt.
Ship's Husband.	Tar.	20 barrels, 20 barrels, 20 barrels.
	Turpentine.	3 barrels, 3 barrels, 3 barrels.
	*Vinegar.	11 hds., 11 hds., 9 hds.
	*Water.	70 tons, 60 tons, 50 tons.

Boatswain's, Gunner's, and Carpenter's stores, as usual, that are not particularly before mentioned, seeing them to be such.

APPENDIX No. 14, Vol. ii. p. 483.

A List of the Large Ships belonging to the East India Company's Service in 1831, and how disposed of, with the prices realised for them.

Sum.	Ships' Names.	By whom purchased.	Date.
£8,000	Abercrombie Robinson	Messrs. Palmer, McKilloh and Co.	Oct. 9, 1834.
6,500	Asia	Thomas Heath, Esq.	Sept. 20, 1831.
4,100	Atlas, <i>broke up</i>	Charles Carter, Esq.	May 20, 1831.
..	Berwickshire, <i>at sea</i>	..	..
..	Bombay, <i>at sea</i>	..	..
10,550	Buckinghamshire	Messrs. Thacker and Mangles	June 25, 1834.
5,750	Canning, <i>broke up</i>	Joseph Somes, Esq.	May 7, 1834.
10,000	Castle Huntly	Bought in by Owners	Decr. 11, 1834.
8,500	Charles Grant	Messrs. Hyde and Lennox	Feby. 15, 1834.
..	Duchess of Athol	..	..
..	Duchess of Sussex	..	..
..	Dunira, <i>to be broken up.</i>	..	..
10,700	Earl of Balcarras	Thomas A. Shuter, Esq.	Sept. 17, 1834.

7,500	Edinburgh	James Gardner, Esq.	July 2, 1834.
6,000	Farquharson, <i>laid up</i> .	Joseph Somes, Esq.	May 23, 1834.
6,600	George the Fourth, <i>outward bound</i>	John Nicholson, Esq.	May 28, 1834.
6,600	General Harris, <i>broke up</i>	Joseph Christall, Esq.	Oct. 29, 1831.
6,250	General Hewett	William Tindall, Esq.	Sept. 22, 1830.
9,100	General Kyd	John Pirie, Esq.	Oct. 8, 1834.
..	Herefordshire	..	..
9,150	Inglis	Bought in by Owners	Oct. 30, 1834.
8,000		Bought in by Capt. J. C. Lochner.	Nov. 15, 1834.
5,900	Kellie Castle	Capt. R. Pattallo	Nov. 1834.
10,000	Lady Melville	John Campbell, Esq.	Aug. 1832.
8,650	Lowther Castle, <i>to be</i>	Joseph Somes, Esq.	Sept. 24, 1830.
5,300	<i>broken up</i>		June 18, 1834.
5,900	London, <i>broke up</i>	Thomas Ward, Esq.	May 7, 1834.
7,500	Lord Lowther	Capt. A. Grant	July 16, 1834.
..	Marquis of Camden, <i>at sea</i>	..	..
..	Marquis of Huntly, <i>to be broken up</i>	..	..
7,000	Marquis of Wellington	Don Pedro	Sept. 11, 1832.

9,400 2,400	Minerva, <i>for Captain's stores at sea</i>	Henry Templer, Esq.	Aug. 20, 1831.
6,600	Orwell, <i>at sea</i>	Messrs. Isacke and Co.	Jany. 21, 1834.
6,500	Prince Regent, <i>at sea</i>	Messrs. Wigrams and Green	Sept. 28, 1830.
3,000	Princess Charlotte of Wales, <i>broke up</i>	J. Childers, Esq.	April 20, 1831.
..	Reliance	..	..
4,500	Rose	Bought in by Owners	Oct. 16, 1834.
6,900	Scaleby Castle.	Henry Templer, Esq.	Aug. 6, 1834.
13,500	Scaleby Castle.	Bought by Jas. Walkingshaw, Esq., with stores, and ready for sea	Oct. 11, 1834.
..	Sir David Scott	..	..
10,700	Thames	John R. Pidding, Esq.	Aug. 1832.
3,550	Thames, 40/64th of ship	James Christall, Esq.	Sept. 10, 1834.
..	Thomas Coutts, <i>outward bound</i>	..	..
..	Vansittart	..	..
6,650	Thomas Grenville, <i>laid up</i>	Messrs. Ward and Somes	July 2, 1834.
..	Warren Hastings	..	..
..	Waterloo, <i>materials sold, and began breaking</i>	At Public Sale	June 11, 1834.

	<i>up,fetched about £7,200.</i>		
..	William Fairlie	..	..
..	Winchelsea, <i>broke up</i>	..	1833.
7,950	Windsor	William Dallas, Esq.	Nov. 13, 1834.

APPENDIX No. 15. Vol. ii. p. 84.

Memorial Letter from Captain George Probyn, Chairman of the Committee of Commanders and Officers of the Maritime Service, dated 30th July, 1834.

To the Honorable the Court of Directors of the East India Company. The Memorial of the Commanders and Officers of the Maritime Service of the Company

SHEWETH:

That the Maritime Service of the East India Company has existed for a period of upwards of two hundred years; that the ships and seamen employed by the said Company have been, in a great degree, instrumental in acquiring and securing the now vast territory of British India, and in advancing its commercial success to that degree which it so long maintained. That your Memorialists entered into that service in the confident expectation that it was a provision for their lives, and they were justified in such expectation by the fact that the Company's trading Charter was perpetual, and that the continuance of their trade must have rendered a Maritime Service necessary. That by the measure of last session of Parliament, the trade of the Company being suddenly stopped, your Memorialists are altogether deprived of their profession, and those prospects on which they relied for their advancement in life, in entering the service of your Honorable Company, are destroyed.

Under such circumstances, your Memorialists, on behalf of themselves and the other members of the service, most respectfully urge their claim on your Honorable Court for that compensation which, by the Act referred to, the Company is authorized to grant to persons employed "by or under the Company, who have suffered loss by the discontinuance of their trade." Your Memorialists trust that it is not necessary for them now to urge the validity of their claim as persons employed by or under your Honorable Company. The words in question were introduced into the Act expressly to meet the claims of your Memorialists, which were recognised by Parliament as within the scope and object of the Legislature; and if it were doubtful whether your Memorialists were employed "by," there could be no doubt

that they were employed “under” your Honorable Company. The Maritime Service, however, has been so frequently recognised by the Company as a branch of its establishment, that no substantial doubt can exist that your Memorialists were in the direct service of the Company. It is true that, by the arrangements of the Company, the Commanders and Officers were allowed to be recommended by the Ship-Owners, but they were recommended to the service of the Company. They were examined and approved by your Honorable Court, and sworn into the service of the Company; they were paid by the Company, and subject to fine, suspension, and dismissal by the Company, and not by the Owners; they wore the uniform of the Company, enjoyed rank and command under the Company, and became eligible to offices of high honour and emolument. The officers of the Maritime Service took precedence of the officers of the Company’s Bombay Marine; the Commanders ranked with Field Officers in India, and were eligible to the office of Master-Attendant and other offices of profit in India.

The Commanders in the Maritime Service, though serving in different ships, owned by different parties, held seniority according to the date of their being first sworn into the Company’s service, and gave orders to the Commanders and Officers of such ships. In all these respects there was no preference to the Commanders of the few ships belonging to the Company. Seniority was the title to command, and the Officers of the Company’s own ships were in the same grade as those of the regular ships. Your Memorialists forbear to enter into details on this question, they will merely, therefore, refer to the following Resolution of Court:—

“Sec. 6. It is ordained, that the Court of Directors shall, as soon as reasonably may be, from time to time, preserve and keep a list or register of all existing Commanders and Sworn Officers which have been or shall be employed in the Company’s Maritime Service, except Commanders and Officers who have been or shall be dismissed or removed for misbehaviour, or shall have resigned and quitted the service; and all the Commanders and Sworn Officers of ships already built, now building, or to be built for the service of the Company, or taken up as regular ships, shall be selected from such list or register, but with liberty to admit new Officers to the lowest station of Sworn Officers as the service may require, with the approbation

of the Court of Directors, so as always to keep up a sufficient number of Commanders and Officers regularly bred in the service.”

In conformity with the policy proposed in the above resolution, the Honorable Company has encouraged the formation of a class of Commanders and Officers for their particular service, and your Memorialists, under that encouragement, have been induced to enter the service, and have committed their prospects in life to your Honorable Company; and now that the service, from no fault of your Memorialists, from no decline in trade or natural fluctuation of events, but by the violent hand of power, and with views to public policy, is destroyed, your Memorialists confidently rely upon the justice of your Honorable Court to award them compensation. The policy of the Honorable Company, in thus forming Officers for their Commercial Navy, was based upon the most accurate view of their own interest and advantage. The Maritime Service of your Honorable Company was one of great trust and responsibility. The most valuable cargoes were necessarily entrusted to your Commanders, and such was the confidence justly reposed in them, that this property was left altogether uninsured either against sea-risk or baratry. Without assuming extraordinary merit to your Memorialists, they confidently assert that this important pecuniary saving could not have been effected but by Commanders and Officers who had been educated for, and brought up in, the particular service: your Memorialists, however, find that the qualifications which were so important to the service of your Honorable Company are of small account in the open trade system, and Ship-Owners object to employ individuals who have navigated only in vessels of so high a class of equipment as those in the service of your Honorable Company. This is no fancied evil.

The education and habits of your Memorialists as Officers of the Company’s service afford a decided objection to their employment in the free trade; and in proof of this fact, your Memorialists beg to state, that although the tonnage now engaged in the trade to India and China has doubled, not one-fifth of the Officers of the Company’s service have obtained employment.

Your Memorialists moreover entered the service of your Honorable Company from their interest in that particular connection. That interest is of no avail to advance them in another service; and even were employment

obtained, your Memorialists could not look to be remunerated upon a scale in any degree commensurate with the emolument derived from the Company's service, where higher qualifications were required and paid for.

From the regulations of your service, your Memorialists were alone eligible to stations in the Company's regular ships, while in the general Commercial Navy of the country, they have not even a fair prospect of competing with others; they have not only lost a profession in which they had graduated, and in which they had expected to find a provision for life, but they have lost a connection by which their interest in that profession would have been insured. This is the ground of your Memorialists' present claim. All the service sustain the loss of profession and connection, and it is in respect of this loss that they ask for compensation.

Your Memorialists state this the more prominently, because they have heard it proposed that compensation should be limited to such Officers as could show an engagement for future employment; but your Memorialists conceive that this is an unsound principle. The Honorable Company established a service with a view to insure a succession of Officers for their employ. There are not now Officers more than sufficient for the supply of the average number of ships employed by your Honorable Company; it is obvious, therefore, that these Officers had a reasonable and just ground to expect, and would have found, employ in the service of the Company but for the Act of last session, which has suddenly destroyed this prospect. Many cases exist, in which, from illness and other temporary causes, Officers were not at the moment of the closing of the Company's trade in active service, though they might, and probably would, have resumed it; and your Memorialists conceive that all are entitled to compensation who have not absolutely resigned or been dismissed from the Company's service. If it should be determined to draw a line, to exclude those who have discontinued the service for a certain period, there must be cases of exemption, otherwise the most meritorious Officers would be excluded: but your Memorialists are satisfied, that the attempt to restrict compensation to those who were in actual service, or about immediately to resume it, would be in its operation partial and unjust, and would not afford relief commensurate with the injury. Your Memorialists cannot too strongly press upon the consideration of the Court the fact, that as the number of Commanders and Officers is not excessive, all had a reasonable expectation

of employment of which they are altogether deprived, and yet few might be able to show any actual contract for employment, particularly having regard to the temporary system adopted by the Company in the last two or three years, of chartering old ships from voyage to voyage.

Your Memorialists cannot enter into speculations as to what might have been the extent of the Company's trade if continued. They are fully satisfied that it must have been carried on upon a scale of great magnitude; but this must be mere matter of conjecture. It is by reference only to the past, which is capable of being ascertained, that the loss of your Memorialists can be estimated, and not by surmising a state of things which has no existence.

Your Memorialists have not hitherto proposed any particular scale of compensation, conceiving it to be more respectful to your Honorable Court to await a suggestion from them, and satisfied, from the scale of pensions granted to your Home Establishment, of the desire of the Court to relieve those who have suffered from the consequences of the abolition of the Company's trade.

The subject, however, having been referred to your Honorable Court with the favourable recommendation of the Proprietors, your Memorialists beg respectfully to present their case before your Honorable Court, with an earnest hope that they may be compensated upon the only principle which can afford them adequate relief, viz., by grant of pensions to the Commanders and Officers who have served the Company. Your Memorialists therefore beg respectfully to submit to your Honorable Court a scale of compensation, which has been prepared with an anxious desire to preserve the utmost moderation.

Your Memorialists are aware that a scale of allowance has been previously prepared, slightly differing from that now submitted. The alterations your Memorialists have made are in favour of the Junior grades of the service, upon which the loss will fall heavily, while the compensation proposed is not considerable. Upon a point so deeply affecting them, your Memorialists feel assured that their suggestion will be received with a favourable consideration, and that your Memorialists will experience at the hands of your Honorable Court that liberality which has ever characterised the conduct of the Honorable Company towards its Officers.

And your Memorialists, etc., etc.

(Signed) GEORGE PROBYN,
*Chairman of the Committee of Commanders
and Officers.*

London, 30th July, 1834.

FOOTNOTES:

[429] Hakluyt, vol. i. pp. 214-220.

[430] Hakluyt, vol. i. pp. 297-9.

[431] Cotton Library, British Museum.

[432] Archæol. vol. xxvi.

[433] Harl. 1579, f. 150.

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